

CHARLES BRADLAUGH

A RECORD OF HIS LIFE AND
WORK BY HIS DAUGHTER.
HYPATIA BRADLAUGH BONNER.

With an Account of his
Parliamentary Struggle
Politics and Teachings
by John M. Robertson,
M.P. . Seventh Edition
With Portraits and Appendices

T. FISHER UNWIN

LONDON— LEIPSIK

ADELPHI TERRACE— INSELSTRASSE 20

1908

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CHARLES BRADLAUGH.

CHAPTER I.

IN THE UNITED STATES AGAIN.

Mr. Bradlaugh had agreed to make a second lecturing tour through the States in the autumn of 1874, and he started on it under the most inauspicious circumstances. We have just seen how he was obliged to delay his journey—just as earlier in the year he had been obliged to hasten his return—to contest the election at Northampton, where he was once more defeated for the third and last time. He had originally taken his passage by the White Star Line, in the *Republic*, leaving on September 24th. At his request the owners obligingly transferred him to the *Baltic*, leaving October 1st. Unable to get away by this boat, he forfeited his passage, and leaving Northampton on the night of the poll, he just caught the Cunard ship the *Parthia* at Queenstown on the 7th. He started on his voyage despondent, utterly wearied, and with "a tightish sensation about the heart," for he had hoped and believed until the last half-hour that he was going to win the election. He thought, too, that before he had left the town he had succeeded in pacifying his disappointed and angry supporters in Northampton, but the receipt of a telegram at Holyhead, telling him of the rioting there and the calling out of the military, depressed him more than ever.

When he got on board the *Parthia* a curious little incident happened. As he was "standing gloomily, watching the last package carried on board," he wrote, "I was approached by a man, a steerage passenger, who, reverently touching his billycock hat, said, 'Father, do you go with us to the other side?' For a moment I was puzzled; but seeing that the man was serious, I answered, 'You are mistaken; I am not a Father.' The man looked dubious, nervously scratched the deck with a blackthorn held loosely in his left hand, and rejoined, 'No offence meant; I ask your reverence's pardon, but anyhow, it will be a blessing to have you with us on board, Father.' That I looked clerical I had been told by the *Gaulois*, which described me in 1871, when attending the Paris Courts Martial, as dressed like a bishop; but this man's evidently earnest disbelief in my repudiation of priestly honours, coupled with his quiet acquiescence, made me doubt whether I was really the man

who had been placarded a few hours before in Northampton as 'Bradlaugh the Blasphemer.'"

The journey began badly, and continued so until New Jersey was sighted. The sea was rough, the *Parthia* rolled, and the captain proved a churl. The embarkation of the steerage passengers was managed with an "uncouth harshness" which was painful to witness; to threaten "to put a man 'in irons' for coming back to give a last wave of his hand to a weeping sweetheart," commented my father, "was just a little too hard." On the 17th the passengers on board the *Parthia* had the mortification of seeing the *Adriatic* (White Star Line), which had left Liverpool two days after them, pass them, and forge ahead with a speed which soon left the *Parthia* behind. Everything seemed combined to render his journey unpleasant and vexatious.^[1]

My father arrived in New York unfortunately too late for many of his engagements. He was due to speak in Dartmouth College (New Hampshire) on the 20th, and he had barely time to get there. On the way he was delighted to meet Henry Wilson in the train. They chatted long together, enjoying each other's company, and talking much of Charles Sumner, a man revered and honoured by both, who had died since Mr Bradlaugh's last visit to America. As it happened, too, Sumner's opinion of my father's first lecture in Boston had only lately been published in the Boston papers. It was given in a letter written by Wendell Phillips in reply to some inquiries made of him by the Secretary of a lecture committee at Winchester, Mass. The letter ran:—

"DEAR SIR,—In reply to your note of October 1st would say: I heard Mr Bradlaugh the first time he spoke in Boston. What Mr Sumner, who sat near me, said of that lecture, will deservedly have more influence and weight than any opinion of mine. While Bradlaugh was speaking, Sumner looked to me and said, 'This is very fine.' At the close of the lecture he remarked, 'This is, I think, the most eloquent speech I have heard for some years.'

WENDELL PHILLIPS."

"BOSTON, October 2, 1874."

At Dartmouth Mr Bradlaugh lectured to the students in their church, and the Rev. Dr Smith, President of the College, presided at his lecture. Two days later he was speaking at Cambridge, having this time a fine audience of over a thousand persons, including most of the Cambridge professors and a strong force from Harvard College. At Philadelphia on the 25th he won the

sympathies of a crowded meeting, although here he had been publicly preached against, and people had been warned not to go to his lecture. At Charlestown (Mass.) he spoke in the Trinity Methodist Episcopal Church, with the pastor, the Rev. Mark Trafton, as president. In Boston he spoke in the Rev. James Freeman Clarke's Church of Disciples, and at Winchester in the Unitarian Church—"and yet," he said, "miracles are not believed in!" On the journey from Bangor to Dexter my father, at the invitation of the engine-driver, rode part way on the engine, and he relates how he found himself "perched on a nice soft seat in a corner, with my toes near enough to the furnace to make me forget that a sharp frosty wind was whistling; engine-driver Chase turned out to be quite a philosopher, and I had a pleasant time." Presently they had to slacken speed; "there are cattle on the track, three oxen and three full-grown calves. They run on in front, sometimes crossing the line; we ring the bell, whistle furiously, and puff-puff vociferously, till at last engine-driver Chase gets angry and says, 'It is no use, those cattle are as stupid as your House of Lords.' 'Yes,' I answered, 'and will get run down like the Lords, if they do not get off the track.'"

Senor Castelar stated after Mr Bradlaugh's death that he was shunned by the ladies; but Senor Castelar's English was a little at fault. When my father was at Delaware he was taken by the students to the Female College, "where," he said, "the president introduced me to the senior ladies' class, who sang to me the American national hymn. I was asked to make them a speech, and am afraid I made myself supremely ridiculous. It is no joke to be suddenly called on to say something to twoscore of extremely good-looking young ladies.... They all looked happy, and gave me a very pleasant greeting, one which made me think of my own girls at home." The girls on their side were evidently equally pleased with their visitor, for just before my father commenced his lecture that evening he received the following note:—

"The members of the Clionian Society, having made Mr Bradlaugh an honorary member of the same, desire, if he has no serious objection, to see him wear their badge this evening.

ANNA C. LONG."

He did wear the badge in his button-hole, "and very pretty it looked, and very pretty the donors looked too as they sat in the opera-house in front of me," he said.

In continuing his journey west he lectured at Chicago, and this time he was fortunately able to spend some hours with Hypatia Carlile and her husband. At Milwaukee his visit created extraordinary enthusiasm. "Nearly all the prominent lawyers, divines, newspaper men, merchants, thinkers, and writers of the city, with their wives, heard his first lecture; and they applauded at shorter intervals than any lecturer ever was applauded here before. It is rare indeed that such an aggregate of intellect is seen gathered together at one time in this city as was the case on Thursday, and that one man receives such approval."^[2] The Milwaukee people urgently begged for a second lecture, which a fortunately vacant date in the following week enabled him to give them.

Iowa was the furthest point west he reached on this visit, the whole journey covering a distance of more than 4500 miles. When he went west again in the following February he met with a terrific snowstorm, generally described as the worst seen for many years. At Milwaukee the cold was so severe that at his lecture the audience sat enveloped in furs and rugs, although the janitor protested that he had used three tons of coal in his endeavour to warm the Music Hall. "The next time," commented my father, "I hope he will use thirty tons." The cold grew more and more intense, until at Fond du Lac (Wisconsin) which he reached on 10th February, the spirit thermometers registered forty degrees below zero. On leaving Fond du Lac there was a wait of ten hours at the station before any train came by which he could get to Oshkosh, where he was due that evening; at which place—reached only just in time—he found a fine audience awaiting him in spite of the weather, if "weather" can be looked upon as an adequate term for atmospheric conditions where one thermometer registers forty-five degrees below zero and the others are congealed. The following day he was due at Madison, but as traffic was suspended he remained for a short time snow-bound at Oshkosh. Towards the end of February his farewell lecture was given at Chicago to the largest audience he had had that winter. "Every seat was filled, the stage was filled, the aisles were filled, and even the staircases were alive with people."^[3] On this journey west he did a tremendous amount of travelling; in one stretch of eight days he was only two nights in bed.

In the Eastern States he had lectured at Salem (Mass.), with Dr Loring once more for his host and chairman, and an audience who gave him a glorious

reception, although, apart from the warmth of their greeting, nearly everything was in "a state of unmitigated freeziness." At Bangor (Maine), where the snow was six feet deep in drifts, and was nowhere less than two feet save on the most travelled roads, the intense cold (twenty-three degrees) kept away the audience; but amongst those who did "brave the elements" was the Chief Justice of the Supreme Court of Maine, who warmly congratulated Mr Bradlaugh at the end of his lecture. At Lynn (Mass.), where he gave one of his last lectures in New England, in going from the railway station to the hall, he humorously relates: "I sat down twice to reflect on the uncertainty of human progress. To sit down in snow two or three feet deep is not dangerous, but is cold, and most certainly is ridiculous, especially when the sitter is tall and heavy. The second time I sat down I broke one of my ribs—that is, one of my umbrella ribs, and I filled my gloves with snow. I was reconciled to my fate when I learned that the gentleman sent out to escort me, and whom I had missed, had sat down three times."

At Philadelphia he spoke before the Pennsylvania Peace Society, and was delighted to find amongst his auditors Mrs Lucretia Mott. After the lecture Mrs Mott, on the invitation of the chairman, stood up to speak, and, said my father, "I felt reverence for the white-haired dame, which was mingled with astonishment when, her voice losing the tremor of age noticeable in the first few sentences, she spoke as clearly and distinctly as though at least thirty years had been taken from the count of her full-spent life. I valued highly the praise she gave me."

At Boston and at New York he was welcomed as heartily as ever. After his first lecture this time at Boston it had been noted that "for once" the great audience, who, it was said, seemed completely under his control, remained to hear the last word; after the last it was agreed that his lectures had been the greatest success of the season. His headquarters had been this time in Boston, and whenever he returned there from his lecturing journeys receptions were given to him, and every one seemed eager to show him some kindness or courtesy. Not the least valued mementoes of this visit were a complete and finely bound edition of Sumner's works, a handsome memorial volume printed in honour of Sumner, and three fine photographs of the dead statesman. All these were brought him at different times by the Hon. Joshua B. Smith, who idolised the great Abolitionist. He brought these

tokens of Sumner to my father because, as he once said, "Mr Bradlaugh was the friend of one I loved."

Although he was comparatively little at New York, still while he was there he met amongst others James Paxton, E. C. Stedman, the poet, and Anna E. Dickinson, who greatly charmed him by her apparent sincerity, her eloquence, and her clearness of thought.

My father returned at the end of February, with the satisfaction of knowing that, despite its ominous commencement, his winter's work had been a success in every way. The liabilities incurred by his sudden departure from the United States the year before, and his delayed arrival this year, had been met, and his indebtedness at home had been cleared to the extent of £1000.

He came home by the *City of Brooklyn*, and met with a very stormy passage. There was a furious gale, the waves sweeping the decks and bursting the doors. The wheel became unmanageable; the wheelmen were flung right and left. "For five hours and twenty minutes," wrote my father a week later, "our engines were stopped; the sea played with our helpless vessel as with a toy, and the whole of those on board stood near death's gates. Captain J. S. Murray behaved in this terrible emergency with a courage and self-possession for which no praise can be too high. The *City of Brooklyn*, too, proved to be a good sea boat, and the morning light saw us out of danger; but in that twenty-four hours we only made ninety-one miles, and the log recorded a 'violent hurricane with mountainous seas.'"

My father's departure for the United States for his third lecturing tour, in the autumn of 1875, was very different from that of the year before, or even that of 1873. Now, at last, Fortune seemed to smile upon him, and everything was propitious. He set out in gay spirits and high hopes; his successes of the last two winters had assured him a welcome when he reached the States, and there was every prospect that by the time he came home again he would be able to lighten that terrible incubus of debt even more substantially than before.

He sailed in the *City of Berlin*, then one of the largest and most perfectly fitted Atlantic Liners afloat. He felt quite at home in her, for there were several familiar faces amongst the officers, and the captain was so courteous that the passengers voted him a special vote of thanks. It is rather curious that this resolution should have been signed on behalf of their

fellow-passengers by Dr Fessenden, N. Otis, and Mr Bradlaugh, because a little later Dr Otis proved a friend in need to my father. On the voyage all went well, the weather was good, and the *Berlin* made a record passage of seven days eighteen hours.

After two or three days spent in New York my father went on to Boston, to find that city in the throes of an election for the office of Governor of Massachusetts. He attended a "Republican rally" at the old Faneuil Hall, and as he sat listening to the speeches of Henry Wilson and others, the influence of the room seemed to grow upon him; he remembered that it was there "that Otis pleaded against Lord North and George III.; it was there that the Boston men gathered that very December day on which the tea was thrown overboard in Boston harbour; it was there that groans accompanied the reading of the Boston Ports Bill." The meeting had the still further interest to him that it was presided over by R. H. Dana, the man who had been counsel for Anthony Burns.

Another question was also agitating, not merely Boston, but the whole country, and dividing parties into hostile camps, and that was the Currency question; and as upon this subject my father and Wendell Phillips took opposite views, their relations were by no means so friendly as heretofore.

The religious feeling which had been raised against Mr Bradlaugh every time was renewed with special bitterness this winter, and created quite a panic amongst the managers of lecture courses. It is much to their credit that the Rev. Dr Miner and the Rev. Dr Lorrimer had the courage to disregard the outcry, and invited him to lecture to their congregations as before.

At the end of October he was feeling very unwell, but persisted in continuing his work, and for a week or two seemed rather better. Since the friendship which sprang up between them on board the *City of Berlin*, Dr Otis and my father had not lost sight of one another, and when he became worse again he consulted Dr Otis, who strongly advised change of scene and climate, as preparation for the hard work and the cold which would have to be faced on his Western tour. Hence, in the middle of November, finding himself part way there, he went on to Washington. At Washington he found that almost his only friend in the city, Henry Wilson, the Vice-President of the United States, was lying sick unto death in the Capitol. He

called upon him, but finding him so ill, simply left his card. Mr Wilson, on hearing of his visit, sent his secretary with a note—the last, I believe, that he ever wrote—asking him to come on the following morning, but my father never saw him again. He returned to the Fifth Avenue Hotel, New York, sad and ill. Dr Otis saw him professionally and in the report he sent to England early in December he said he had been suffering from "much work and little rest" for several days; later he found him suffering from pleurisy and some threatenings of typhoid. As the fever rapidly developed, Dr Otis suggested that he should go to St Luke's Hospital, where he could have the best care—professional and general—and on my father agreeing, he took him there in his own carriage on 30th November. At St Luke's Hospital Mr Bradlaugh felt that he owed his life "to the great skill and generous kindness of Dr Leaming, to the unremitting attentions of Dr Abbe, and to the patient and never-ceasing care of my nurse, William Shaw." Even before he was allowed to leave his bed it was decided he could do no more lecturing that season, and within four days from leaving his sick-bed he was on board the *City of Richmond* on his way home. Friends said he was rash—that the journey would kill him. He was so weak that he could scarcely stand, and he shed tears almost directly a kind word was said to him; but if his body was weak, his will was strong; he would go, and he was sure that he would grow stronger more quickly moving on board ship than inactive in New York. A copy of "Alice in Wonderland" had been accidentally left in his cabin; he was so weak that it took him nearly the whole voyage to read this little book; he laughed over it and delighted in it like a child. Afterwards, he always remembered it with a certain enjoyment, and was ever ready to quote from it such touching verses as "You are old, Father William," "'Tis the voice of the sluggard," or "Will you walk a little faster?"

Speaking of his sudden return a week or two later, Mr Bradlaugh said: "I came back to England because I was advised that it would have been suicide in my weak state to face the Western winter. I come back to Europe reluctantly, for I went to the United States to earn enough money to pay my debts, and I am compelled to return poorer than I left. Indeed, I owe it to Mr Moncure D. Conway's assistance that I was enabled, at the moment, to discharge the obligations my illness had created in New York."

Mr Conway has since told me that when he went to see my father while he lay ill in the St Luke's Hospital, my father begged him to make inquiries of

nurse and doctors whether he had said or done anything during the time of his illness which could be construed into an alteration of his opinions upon religious subjects. He wished Mr Conway, in the event of his death, to bear testimony that his convictions had remained unchanged. Mr Conway, whose own opinions were by no means so heretical as Mr Bradlaugh's, was nevertheless anxious to carry out the wishes of the sick man with the utmost exactitude, and therefore made the most scrupulous inquiries. But he only learned that Mr Bradlaugh had been a most docile, uncomplaining, and grateful patient, and that he had not uttered a single word which could afford the slightest justification for a suggestion of recantation. That my father's dread of the usual "infidel deathbed" myth was well founded we know by what has happened since 1891. Even as it was, although he recovered from his illness in New York, and was alive to contradict such fables, it was actually said that he had sent for a minister to pray with him, and one clergyman was even reported to have specified the "minister" as a Baptist! It was long before my father entirely recovered from this illness, and although formerly a smoker, after this he lost all desire for a cigar. It was not until a few years before his death that he renewed the habit, and even then only in a very modest way—a cigar in going to the House of Commons, a cigar in coming back he enjoyed; at other times he smoked little.

It is worth noting that while Mr Bradlaugh was in the States, whenever he had an evening to spare, wherever he might happen to be, he generally devoted it to going to hear some lecture or sermon, or attending some meeting. In this way he heard, amongst others, Parker Pillsbury, Newman Hall, O. B. Frothingham, M. D. Conway, Horace Seaver, and Dr Miner. He two or three times attended and spoke at Women's Suffrage meetings, and was invited on at least two occasions to take part in Masonic festivals.

Everywhere he went he made careful inquiries into the labour conditions of the locality, and where possible, he visited mill and factory, and talked with both workers and employers. He also specially studied the workings of the liquor laws in the States where they obtained, and the effect of his observations was to decide him against them. On each visit he wrote home weekly letters for the *National Reformer*, which were interesting for what they told about his own doings and about persons, and invaluable to intending emigrants for the information they gave concerning labour in the

different States which he visited. He afterwards published the result of his investigation into labour questions in America as a little booklet entitled "Hints to Emigrants."

CHAPTER II.

MRS BESANT.

In 1874 Mr Bradlaugh lost a friend and gained one. Between himself and the friend he lost the tie had endured through nearly five-and-twenty years, of which the final fourteen had been passed in the closest friendship and communion, tarnished neither by quarrel nor mistrust. By the death of Austin Holyoake my father lost a trusty counsellor and loyal co-worker, and the Freethought movement lost one who for fully twenty years had served it with that earnest fidelity, high moral courage, and unimpeachable integrity which were amongst his most striking characteristics. In health and in sickness he toiled incessantly to promote the interests of the cause he had at heart, and at no time of his life did he shrink from duty or responsibility.

Austin Holyoake died in the spring of 1874, and was buried in Highgate Cemetery in the presence of a great crowd of sorrowing friends. Just before his death he dictated his "Sickroom Thoughts" to his wife, uttering the last broken paragraph only a few hours before he died. For three years he had known that death was near, and this final statement of his opinions on death and immortality was purposely deferred until the last moment he deemed it prudent, so that he might leave a record of his last deliberate opinions, and as such these "Thoughts" provoked very considerable comment.^[4]

Austin Holyoake, like his friend, lived and died a poor man, and my father pledged himself to him on his deathbed to raise a sum of £650 to purchase the printing and publishing business hitherto conducted by Mr Holyoake in the interests of Freethought literature. The money raised was to benefit the widow and the two children, and the business was to be handed over to Mr Charles Watts. A subscription which was started realised rather less than £550, and the National Secular Society determined to make up the balance out of a legacy left to the President by a Dr Berwick. Unfortunately, however, Dr Berwick's trustee absconded with the money, and consequently, as Mr Bradlaugh had promised his dead friend that the sum of

£650 should be raised, he paid the deficiency out of his own pocket, by weekly instalments.

Austin Holyoake, the friend Mr Bradlaugh lost, was steadfast, loyal, unassuming, and unswerving in his opinions; Mrs Annie Besant, the friend he gained, was even more remarkable, though in a very different way.

Having enrolled herself a member of the National Secular Society in August 1874, Mrs Besant sought Mr Bradlaugh's acquaintance. They were mutually attracted; and a friendship sprang up between them of so close a nature that had both been free it would undoubtedly have ended in marriage. In their common labours, in the risks and responsibilities jointly undertaken, their friendship grew and strengthened, and the insult and calumny heaped upon them only served to cement the bond.

This lasted for many years until Mrs Besant's ceaseless activity carried her into paths widely divergent from those so long trodden by her colleague, paths which brought her into close association with persons strongly inimical to Mr Bradlaugh and the aims to which he was devoting his life. For some time before he died, he had, as Mrs Besant herself has written in her recently published *Autobiography*,^[5] lost all confidence in her judgment; she had disappointed him, and it would be unworthy of both not to recognise that the disappointment was very bitter, though his desire to serve her and shield her always remained unchanged. For thirteen years she had stood upon the same platform with him; and when she one day said that for ten years she had been dissatisfied with her own teaching, he felt it very keenly, but he neither uttered a word of blame himself, nor would he allow any one else to blame her in his hearing.

Every movement, every cause, has its ebbs and flows; there seems to be only a certain amount of activity possible to men in the mass, and now it flows in one direction, now in another. The Freethought movement, when Mrs Besant came into it, had for some years been slowly but surely increasing in activity and prosperity. The National Secular Society, although not so complete an organisation as it was soon to become, was nevertheless to be found in all the great centres of population. The *National Reformer*, the representative organ of Freethought, in the five years which lay between 1867 and 1872 had nearly doubled its circulation, and was read in almost all parts of the world. It was sent to the three presidencies of India, the United

States and Canada, New Zealand, Australia, the Cape of Good Hope, the West Indies, Egypt, France, Belgium, Italy, Spain, and Germany. On its staff there were several very able writers, and if it was not exactly a profitable property, it at least paid its way.

People have sometimes deliberately asserted that Mrs Besant's desertion and Mr Bradlaugh's death inflicted an irremediable injury on the cause of Freethought, but this is merely an assertion, and one which will not bear a moment's investigation. Happily for the human race, the growth of public opinion does not depend upon any single man or woman, however able, however energetic, he or she may be. The loss of a leader amongst men may for a moment check the onward movement, and it may be there is even a temporary reaction—a swing back—but never in the history of the world has the loss of one of its pioneers proved an "irremediable injury" to the cause of progress.

If indeed it should be thought, and it is a proposition that I am not in a position to deny, that this is a moment of ebb in the tide of Freethought, the fact would only be in harmony with the general tendency of the times, and would prove nothing against the ultimate acceptance of the truths of Materialism. The growth of population in our great cities has caused the evils of poverty to press more closely upon general attention, and the public energy is directed towards seeking a solution for these immediately important problems, rather than for those more abstract theorems arising out of religious speculation.

Mrs Besant was herself obeying this tendency when, in 1886 she thought she had found in the optimistic dreams of Socialism a remedy for this most bitter of human ills. This was the point upon which she first diverged from Mr Bradlaugh, and once having separated her thought from his, the breach swiftly widened. Socialism was, as it were, the fork in the Y of their lives. Nothing, I think, will show how far these two had drifted asunder more than that Mr Bradlaugh should first learn of Mrs Besant's adhesion to the Theosophical Society through an article written by her in a weekly paper, and not from her own lips.

Mrs Besant's first contribution to the *National Reformer* appeared in its issue for 30th August 1874, and with that she entered in good earnest upon the work which was to engross her for many years to come. Over the

signature of "Ajax" she commenced a series of notes, entitled "Daybreak," which were to mark "the rising of the sun of liberty ... when men should dare to think for themselves in theology, and act for themselves in politics," and these notes were continued weekly for several years. From August 1874 to April 1891 Mrs Besant remained connected with the *National Reformer*, first as contributor, and then as sub-editor, becoming shortly afterwards co-editor and co-proprietor. The co-editorship was resigned in October 1887 for reasons set forth by Mrs Besant in her *Autobiography*,^[6] and the co-proprietorship ceased with the dissolution of the partnership between herself and Mr Bradlaugh, in December 1890.

When my father heard Mrs Besant's first lecture in August 1874, in the Co-operative Society's Hall, Castle Street, upon the "Political Status of Women," it impressed him as "probably the best speech by a woman" he had ever listened to. It was not until the following year, however, that Mrs Besant started definitely as a lecturer upon the Freethought platform, but from that time forward she was indefatigable. She was very fluent, with a great command of language, and her voice carried well; her throat, weak at first, rapidly gained in strength, until she became a most forcible speaker. Tireless as a worker, she could both write and study longer without rest and respite than any other person I have known; and such was her power of concentration, that she could work under circumstances which would have confounded almost every other person. Though not an original thinker, she had a really wonderful power of absorbing the thoughts of others, of blending them, and of transmuting them into glowing language. Her industry her enthusiasm, and her eloquence made of her a very powerful ally to whatever cause she espoused.

Mrs Besant had been connected with the Freethought party for about two and a half years when an incident occurred which was destined to have considerable and lasting results. In the winter of 1876 a man, alleged to have an unpleasant reputation as a seller of indecent literature, was convicted at Bristol for selling a pamphlet, written by an American physician of repute, Dr Charles Knowlton. This pamphlet, entitled "Fruits of Philosophy: An Essay on the Population Question," had been on sale in England for forty years, and this was the first time it had been prosecuted. It had been openly sold by James Watson, a publisher of the highest repute, who had been dead only a short time; by Mr G. J. Holyoake; by Austin

Holyoake up to the time of his death; and by others both in England and America. Mr Charles Watts had bought the plates of this and other works from the widow of James Watson, and, acting upon Mr Bradlaugh's advice, Mr Watts went to Bristol, and declared himself the responsible publisher of the book. He was himself arrested on 8th January 1877, and on 12th January was committed for trial at the Central Criminal Court. The trial was to be heard on 5th February, but before that day arrived Mr Watts came to the conclusion that the pamphlet was indefensible, and decided to withdraw his plea of "not guilty," and to plead "guilty" instead. Upon learning this, Mr Bradlaugh felt exceedingly angry. "If the pamphlet now prosecuted," he said, "had been brought to me for publication, I should probably have declined to publish it, not because of the subject-matter, but because I do not like its style.^[7] If I had once published it, I should have defended it until the very last." He was strongly of opinion that the matter ought to be fought right through; and differing so widely on a matter of principle with Mr Watts, he determined to sever all business connection with him. He gave his reasons for this course as follows:—

"The Knowlton pamphlet is either decent or indecent. If decent, it ought to be defended; if indecent, it should never have been published. To judge it indecent, is to condemn, with the most severe condemnation, James Watson, whom I respected, and Austin Holyoake, with whom I worked. I hold the work to be defensible, and I deny the right of any one to interfere with the full and free discussion of social questions affecting the happiness of the nation. The struggle for a free press has been one of the marks of the Freethought party throughout its history, and as long as the Party permits me to hold its flag, I will never voluntarily lower it. I have no right and no power to dictate to Mr Watts the course he should pursue, but I have the right and the duty to refuse to associate my name with a submission which is utterly repugnant to my nature and inconsistent with my whole career."

When Mr Watts' case came on for trial he pleaded "guilty," and was released, on his own recognisances of £500, to come up for judgment when called upon. It was contended at the trial that it was unlawful to publish such physiological details as were to be found in Dr Knowlton's pamphlet, even for a good purpose. Mr Bradlaugh and Mrs Besant (who had now entered into a formal partnership under the style of "The Freethought

Publishing Company") determined to republish the pamphlet to test the right of publication.

A great deal was said at the time by way of blaming Mr Bradlaugh for allowing Mrs Besant to associate herself with him in this struggle, and of lauding Mrs Besant for her great courage in this defence. Many were the unworthy taunts cast at Mr Bradlaugh for "sheltering" himself "behind a woman," though not one of those who sneered stayed to reflect that even if this association had some advantages it also had distinct disadvantages. The gain was both to the principles involved, and to my father personally. To see a woman brave enough to stand by the side of a man in defence of the free publication of unpopular doctrines, was an incentive to the public to investigate those doctrines with a view to forming an independent judgment upon them; it was also an inspiration and a constant spur to the man—had he been the one to need spur or inspiration in such a cause. Mrs Besant's unwearying industry in working up the extra-legal side of the case, in hunting up in other works statements of physiological fact exactly similar to or stronger than those found in the prosecuted pamphlet, was invaluable. In the week which intervened between the verdict and the sentence on their own case, Mr Bradlaugh took the opportunity to express his appreciation of Mrs Besant's work, and this despite the fact that her decision to join in the defence was contrary to his wish and advice. He wrote:—

"I have often faced hard toil, but I have never had to encounter persistent, wearying, anxious labour greater than that of the last three months. And here—while my hand is yet free to pen these lines—let me record my deep sense of gratitude to the woman who has shared my fight, aided me by her help, encouraged me by her steadfastness, and strengthened me by her counsel. It is not alone the brilliant eloquence, patient endurance, and sustained effort manifested for so many hours in the Court—qualities displayed by Mrs Besant, which, coupled with her great tact, won repeated praise from the Lord Chief Justice, and congratulations from almost the whole of the barristers who crowded the Court—so much of Mrs Besant's work has been recorded by most of the press in terms of the highest laudation. The personal acknowledgment from myself is more due for the weeks of unrecognised but most wearying and continued drudgery in analysing a mass of scientific works, searching out authorities, and generally preparing the huge body of materials required for use on the trial.

Few can appreciate the enormous labour involved in the careful analysis of medical works, and their comparison, line by line, with the Knowlton Pamphlet. Yet, without this labour, the defence would have been impossible."

The disadvantages of the dual defence were considerable, but they were known to very few, and were moreover purely personal. Upon Mr Bradlaugh lay the whole responsibility of the defence; his was the mind that planned it, and he had to conduct the fight, not merely for himself, but for the woman beside him; he had to consider two briefs instead of one, and as Mrs Besant was at that time totally unfamiliar with the procedure of the Law Courts, he had to instruct her, not only in the things it was desirable she should say, but also in those which were better left unsaid. He was but too well aware that Mrs Besant risked not alone imprisonment, but also the loss of her child; and in the event of failure, and the imprisonment of both himself and his colleague, the problem naturally presented itself, Who was to edit the *National Reformer*, and to look after the new business? Mr Watts' plea of "guilty," followed by Mr Bradlaugh's indignation, had for the moment produced considerable division amongst former friends, and there had been hardly time to reckon which were friends and which were foes. Nothing could better mark the extent of my father's difficulty than the fact that he had to hand over these onerous duties to us, his daughters, two girls fresh from a dreary country life, and hardly out of our teens. Hence, although he was justly proud that a woman whom he held in such esteem should stand by him publicly at such a moment, it increased his anxieties and his responsibilities enormously that Mrs Besant's risks were so heavy, and there was thus no trusty colleague free to undertake the burden of a weekly journal, and the drudgery of the management of the new publishing business.

Some at least of these difficulties were pointed out to Mrs Besant; friends besought her by every argument they could think of not to risk the loss of her child; but she had chosen her course, and she adhered to it in spite of all entreaties. And such is the irony of fate that she lost the society of her daughter for ten years, and was subjected to the grossest insult from Sir George Jessel, as Master of the Rolls, for defending doctrines she now repudiates.

CHAPTER III.

PROSECUTION OF MR BRADLAUGH AND MRS BESANT.

On Friday, 23rd March, Mr Bradlaugh and Mrs Besant went together to the Guildhall, to deliver the earliest copy of the new edition of the Knowlton pamphlet to Mr Martin, the Chief Clerk, with a notice that they would personally attend, at a certain hour on the following day, to sell the pamphlet. Similar notices were left at the chief office of the Detective Department, and at the office of the City Solicitor. On Saturday afternoon Stonecutter Street was thronged with a crowd of persons anxious to purchase copies of the pamphlet from Mr Bradlaugh or Mrs Besant, and amongst these purchasers detectives were easily identified by Mr Bradlaugh's quick eye. A few days later the partners were arrested on a warrant—not served with a summons—and marched off to Bridewell, after a fruitless search for compromising literature had been made on the Stonecutter Street premises. From the Police Court, where Mrs Besant had to endure the indignity of being personally searched, they were conveyed to the Guildhall. Mr Alderman Figgins heard the charge, and remanded the case until the 17th of April.

A defence committee was formed, which soon included the names of many well-known men and women, both in England and abroad, and a fund was started to meet the expenses of the defence. The long lists of subscribers which appeared week by week in the columns of the *National Reformer* give unmistakable proof of the widespread sympathy.

When the further hearing of the case came on at the Guildhall, the prosecution was conducted by Mr Douglas Straight and Mr Mead, instructed by Mr Nelson, the City Solicitor. Mr Figgins was again the presiding magistrate, and there were several other aldermen on the Bench. At this hearing—which lasted a couple of days—Mr Straight offered to proceed against Mr Bradlaugh alone, letting the charge against Mrs Besant drop but to this the latter would on no account agree. At the conclusion they were liberated on their own recognisances, to appear at the Central Criminal

Court on 7th May. The prospect of standing in the dock of the Old Bailey was not very alluring to my father, so he went to the Court of Queen's Bench and made an application to the Lord Chief Justice (Sir Alexander Cockburn) and Mr Justice Mellor for a writ of *certiorari* for the removal of the case to that Court, to be heard before a judge and a special jury. After some argument the Lord Chief Justice said:—

"If, upon looking at it [the pamphlet], we think its object is the legitimate one of promoting knowledge in a matter of human interest, then lest there should be any miscarriage resulting from any undue prejudice, we might think it is a case for trial by a judge and a special jury. I do not say it is so, mark, but only put it so; that if, on the other hand, science and philosophy are merely made the pretence of publishing a book which is calculated to arouse the passions of those who peruse it, then it follows we must not allow the pretence to prevail, and treat the case otherwise than as one which may come before anybody to try. If we really think it is a fair question as to whether it is a scientific work or not, and its object is a just one, then we should be disposed to accede to your application, and allow it to be tried by a judge and special jury, and for that purpose allow the proceedings to be removed to this Court. But before we decide that, we must look into the book, and form our own judgment as to the real object of the work."

Their Lordships took the book to consider on its own merits, and refused to read the evidence given at the Police Court. A few days later the writ was granted in the following words:—

"We," said the Lord Chief Justice, "have looked at the book which is the subject-matter of this indictment, and we think it really raises a fair question as to whether it is a scientific production for legitimate purposes, or whether it is what the indictment alleged it to be, an obscene publication. We think that is a question which will require to be decided by a judge, and, we think, by a special jury, and therefore there will be a writ of *certiorari* granted."

Mr Bradlaugh's recognisances for £400 for the costs of the prosecution were accepted. He regarded this granting of the writ by the judges, going hand in hand, as it were, with the very plain language of the Lord Chief Justice, as a most favourable sign; and on the matter of the recognisances Mrs Besant wrote: "They become as we go on small by degrees and beautifully less. We began by arrest on a warrant; from a warrant we passed to liberation on bail, four sureties and our own recognisances being required; from this we proceeded to liberation on our own recognisances only, and now we are free on Mr Bradlaugh's sole recognisance."

The name of the prosecutor had not yet transpired, though at the outset it was assumed that the city authorities were responsible for the proceedings, since at the first hearing before Mr Figgins the name of the City Solicitor

had been mentioned, while at the second counsel appeared instructed by him. In May, however, the identity of the prosecutor had sunk into still greater obscurity, for on the 4th of that month Mr Nelson (the City Solicitor) declared in writing that "the Corporation of London has nothing and never has had anything to do with the prosecution." He further stated "in general terms" that the prosecution was instituted by the Police. When, however, Colonel James Fraser, the Commissioner of Police, was applied to, he evaded any direct answer by referring my father to the sworn "information," which of course only gave the name of the detective, Wm. Simmonds, who, as informer, had bought the pamphlet. Simmonds was formally asked if he were the responsible prosecutor, but he merely acknowledged the receipt of Mr Bradlaugh's letter. My father, on 11th May, applied to Mr Justice Lush, at Chambers, for the name of the responsible prosecutor, but while the judge expressed his opinion that he ought to know, he regretted that he had no power to help him.

At this time the public excitement was further increased by the action of the Government, which commenced to make seizures in the Post-Office of literature sent out from the Freethought Publishing Company's office. Not only were open book packets seized, but in some cases even sealed parcels were suspected of being tampered with.

Not merely was Knowlton's "Fruits of Philosophy" confiscated, but also copies of the "Freethinker's Text-book," and a pamphlet written by Mr Bradlaugh entitled "Jesus, Shelley, and Malthus," as well as a considerable number of copies of the *National Reformer*. Concurrently with this a raid was made upon the shop of that brave old man, Mr Edward Truelove, in High Holborn, and a large quantity of Robert Dale Owen's "Moral Physiology," as well as another pamphlet "Individual, Family, and National Poverty," were seized by persons representing the Society for the Suppression of Vice, who immediately commenced a prosecution against Mr Truelove.

In the last days of the month Mr Bradlaugh made an application to the Court to take the case at an early day; it was fixed for the 18th June, and shortly afterwards it became known that the Solicitor-General, Sir Hardinge Giffard, Q.C., M.P. (now Lord Halsbury) was chosen the leading counsel for the prosecutors—whoever they might be. Up to this point—the eve of one of those great forensic contests which marked various periods in Mr

Bradlaugh's life—he felt that the press as a whole had not been unfair, although indeed there had been some journals coarse and foul in attack, usually on the ground of Mrs Besant's association with himself. As regards the issue of the struggle, he wrote that to predict the verdict would be worse than folly, though, "should the deliverance be against us," he urgently begged his friends to aid his daughters in keeping his journal afloat until he should be free to edit it again. Mrs Besant's descriptive accounts of the various preliminary legal proceedings are all written in a light, often jesting, vein; indeed, I am inclined to think that she hardly realised all the gravity of her situation; a true sense of the possibilities involved was perhaps somewhat obscured by the atmosphere of excitement and admiration in which she was living.

On the trial it was Mr Bradlaugh's object to show that the doctrine of the limitation of the family was to be found in many other works in general circulation dealing with economical questions; and that in medical works, many published at popular prices, and some specially intended for the use of young people, there were physiological descriptions set forth in identical or even stronger language. Amongst other witnesses Mr Bradlaugh subpoenaed Professor and Mrs Fawcett (to formally prove certain statements in Prof. Fawcett's book), Charles Darwin, the Rev. J. W. Horsley (Chaplain of the Clerkenwell House of Detention), and the Rev. S. D. Headlam—the two latter to give evidence as to overcrowding. Prof. Fawcett refused to take his subpoena, and declared he would send Mrs Fawcett out of the country rather than that she should appear as a witness in the case. A second attempt was made to induce him to take the subpoena in a friendly way, but he again refused, putting his hands behind his back so that the paper should not be surreptitiously put into them—of which he need have had no fear. Charles Darwin wrote his thanks for the courtesy of the notice, saying:—

"I have been for many years much out of health, and have been forced to give up all society or public meetings; and it would be great suffering to me to be a witness in Court. It is, indeed, not improbable that I may be unable to attend. Therefore, I hope that, if in your power, you will excuse my attendance.... If it is not asking too great a favour, I should be greatly obliged if you would inform me what you decide, as apprehension of the coming exertion would prevent the rest which I require doing me much good."

As Mr Darwin was going away from home, he gave addresses where he might be found if he was wanted. But of course it was decided to manage without his evidence. Mr Horsley and Mr Headlam were both most

courteous, and there was one volunteer witness whose help was invaluable—Mr H. G. Bohn, the founder of the well-known Bohn's Library. Dr Drysdale and Dr Alice Vickery also gave their assistance with the utmost cheerfulness. The trial was heard before the Lord Chief Justice, and extended over four days. The ability of the defence excited universal comment, and the masterly summing-up of the Judge was spoken of in the papers as being strongly in favour of Mr Bradlaugh and Mrs Besant. But in spite of defence and summing-up the jury, after an absence of an hour and a half, brought in the following verdict: "We are unanimously of opinion that the book in question is calculated to deprave public morals, but at the same time we entirely exonerate the defendants from any corrupt motives in publishing it."

The Lord Chief Justice instructed the jury that this was a verdict of guilty. The foreman bowed acquiescence. The Clerk asked if they found the defendants guilty upon the indictment. The foreman again bowed, and a verdict of guilty was recorded. Sentence was not pronounced immediately; it was postponed for a week. The jury, however, were by no means so decided at heart and so unanimous as the prompt bow of the foreman led one to believe. One of these twelve "wise men and true" applied to the Associate for £4, 4s. as payment for his attendance; two others returned each their guinea fee to be put down to the defence; one wrote that he did not agree with the verdict, subsequently stating that six of the jury did not intend to assent to a verdict of guilty, and that it had been arranged that if the Lord Chief Justice would not accept their special verdict they should again retire and consult. During the time they were locked in they discussed so loudly that they were heard outside, and their discussion was found to be by no means confined to the offence which they were supposed to be considering, as it included amongst other things the heretical views of the defendants.

On the 28th June Mr Bradlaugh and Mrs Besant attended the Court of Queen's Bench to receive judgment from the Lord Chief Justice and Mr Justice Mellor. My father had thought it likely that there might be a heavy fine, but unlikely that there would be any sentence of imprisonment. He drew £250 from the bank, and showed me the notes as he put them in his pocket-book, bidding me, in the event of a sentence of imprisonment, take the notes from him and pay them into the bank again; and my sister and I

accompanied him and Mrs Besant into Court. The Solicitor-General opened by moving the Court for judgment; some discussion arose on the absence of the *postea*, and then Mr Bradlaugh submitted three propositions to the Court: (1) A motion to quash the indictment; (2) a motion for arrest of judgment; and (3) a motion for a new trial. But the Lord Chief Justice would neither consent to a new trial nor to a rule for an arrest of judgment; he left the decision as to quashing the indictment to the Court of Error, declining, however, to stay execution until error was determined. The arguments over these points took up the whole morning, and after luncheon the Solicitor-General, in order to influence the Judge in his sentence, brought forward two affidavits, one asserting that Mr Bradlaugh and Mrs Besant had continued to sell the pamphlet since the verdict, and the other stating that Mrs Besant, in a speech at the Hall of Science on the previous Sunday, had represented the Lord Chief Justice as being favourable to them, and the verdict as against his summing-up. Sir Alexander Cockburn was greatly incensed at the alleged reference to himself, and regarded the continued sale in the light of "a grave and aggravated offence." My father offered that if the Lord Chief Justice would stay proceedings until the writ of error was argued, he would pledge himself that no sort of advantage would be taken of the indulgence of the Court to continue the sale of the condemned book; but as yet the Judge was obdurate. "I think we must pass sentence," he said. "Have you anything to say in mitigation?"

"I respectfully submit myself to the sentence of the Court," my father replied in his gravest tones. "I have nothing to say in mitigation of punishment," added Mrs Besant.

The Judge then proceeded to sentence them to imprisonment for six calendar months, to a fine of £200 each, and to enter into their own recognisances for £500 each for two years.

The judgment was delivered towards the end of a long day of hard and wearisome fighting, and my father, who, with Mrs Besant, had of course received the sentence standing, was very white; his voice, however, was quite firm when, the Lord Chief Justice having concluded, he quietly and respectfully asked, "Would your lordship entertain an application to stay execution of the sentence?"

"Certainly not," was the answer. Mr Bradlaugh bowed; the officer of the Court moved forward to take him and Mrs Besant into custody; my father gave me his pocket-book, and bade us follow him as far as we were allowed. We had nearly reached the door when the Lord Chief Justice spoke again. In milder tones he said: "On consideration, if you will pledge yourselves unreservedly that there shall be no repetition of the publication of the book, at all events until the Court of Appeal shall have decided contrary to the verdict of the jury and our judgment; if we can have that positive pledge, and you will enter into your recognisances that you will not avail yourselves of the liberty we extend to continue the publication of this book, which it is our bounden duty to suppress, or do our utmost to suppress, we may stay execution, but we can show no indulgence without such a pledge."

Mr Bradlaugh replied: "My lord, I meant to offer that pledge in the fullest and most unreserved sense, because, although I have my own view as to what is right, I also recognise that the law having pronounced sentence, that is quite another matter so far as I, as a citizen, am concerned. I do not wish to ask your lordship a favour without yielding to the Court during the time that I take advantage of its indulgence." My father added that he wished it to be quite clear that he only pledged himself to stop the circulation of the book until the decision of the Court of Error. The Judge was satisfied with this assurance, although the Solicitor-General was not, and Mr Bradlaugh and Mrs Besant were liberated on their own recognisances of £100 each.

This "on consideration" of the Lord Chief Justice entirely changed the course of events. In the following February (1878) the case was argued in the Court of Appeal before the Lords Justices Bramwell, Brett, and Cotton, who in a very elaborate judgment gave their decision in favour of Mr Bradlaugh and Mrs Besant; and the indictment was quashed on the ground that the words relied upon by the prosecution as proving their case ought to have been expressly set out. Two American cases brought forward by the Solicitor-General before the Lord Chief Justice as against Mr Bradlaugh's argument were regarded by the Lord Justices of Appeal as of no weight; while any value they might have had was absolutely in favour of the defendants.

The total amount disbursed in this defence and provided by public subscriptions was £1065. The expenses of the prosecution must have been

enormous; but to the end the name of the prosecutor was refused. In March 1878 Mr Bradlaugh wrote: "It is not the Government, we are assured on the highest authority; it is not the Vice Society; and it is positively stated that it is not the city authorities, and yet the City Solicitor instructed counsel, and the proceedings are conducted from the law offices of the Corporation." However, in spite of the positive statement of the City Solicitor, the official report of the Common Council mentioned that the prosecution was ordered by Alderman Ellis; and later, at a meeting of the Common Council, presided over by the Lord Mayor, the Solicitor, in answer to a question, said the prosecution was instituted by the city police and carried on by him under the direction of Alderman Ellis. The actual costs of the prosecution would be, he thought, "about £700." As Mr Bradlaugh commented: "This becomes embarrassing; on 4th May 1877 Mr T. J. Nelson wrote that 'the Corporation of London has nothing and never has had anything to do with the prosecution.' If so, why do the city authorities pay even £700 towards the costs? And who pays the rest? For with three counsel to fee all through, £700 will most certainly not cover the bill.... Why, unless the Solicitor-General, as a labour of love, worked half-price, his fees alone would spoil the £700." And, as my father further asked, "Why did Alderman Ellis direct the prosecution?" for he was not even the sitting magistrate.

In addition to the main proceedings in the Court of Queen's Bench and the Court of Error there were a number of side issues which were heard before other Courts; points were argued in *banco*; an application was made to Mr Vaughan for the 650 copies of the Knowlton pamphlet seized by the Vice Society at Mr Truelove's. An appeal was lodged at the General Sessions against Mr Vaughan's order for their destruction, a successful application was made to the Court of Queen's Bench to quash Mr Vaughan's order, and a summons heard against Inspector Wood for unlawfully detaining the pamphlets. Not a few were the comments in the press when twice within six months Mr Bradlaugh succeeded in getting quashed decisions given against himself (first, the indictment, and with it the sentence of imprisonment and fine, and next the magisterial order). One journal even suggested that "much loss of time might be avoided" if Mr Bradlaugh were appointed "to consult with our legal luminaries and revise their decisions."

In the meantime Mr Edward Truelove had been twice tried. At the first trial the jury did not agree; but at the second, which took place in May 1878, he

was sentenced to four months' imprisonment and a £50 fine. Scores of purses were eagerly opened to furnish the fine, but no one, alas! could relieve this brave heart from the hardships of a prison. Mr Truelove, suffering for his opinion's sake, was obliged to wear the garb of common felons and to associate with them, and although nearly seventy years of age, he was compelled to pick oakum and to sleep upon a plank bed.

The immediate effect of these prosecutions was to draw public attention to the teaching of Malthus and his disciples. Works upon the population question were eagerly bought and read; and as the subsequent gradual lowering of the birth-rate in England testifies, the idea of the limitation of the family to the means has certainly, if slowly, made some way. The Malthusian League, first started by Mr Bradlaugh in the early sixties, was, in 1877, revived on a much larger scale; its branches and its literature soon spread to all parts of the kingdom, and enormous meetings were held everywhere. In November Mrs Besant brought out a pamphlet to supersede the Knowlton essay, entitled "The Law of Population: its Consequence and its Bearing upon Human Conduct and Morals." It was dedicated to the poor, and was eagerly welcomed by them. Mrs Besant in 1891 withdrew her pamphlet from circulation, a step which matters the less as, since 1877, there have been other books written by medical men dealing with the same subject and issued at popular prices. But although there was this distinct gain to the public, not only in the stand made for the free discussion of such a question of vital economical importance, and in the sweeping away of general indictments, the cost to the principals in the drama was heavy indeed. Mr Truelove, a man of unimpeachable integrity, was, as I have just said, cut off from his family, and made the associate of felons. In April 1878 Mr Besant appealed to the law to give him the custody of his daughter.^[8] The litigation arising out of this lasted many months; Mrs Besant lost her child, was grossly insulted by Sir George Jessel, and at length, the strain proving too much even for her strong constitution, her health gave way, and she was thrown upon a bed of sickness.

Nor was the position much less trying for Mr Bradlaugh. It must not be lost sight of that the ultimate responsibility for the defence, in every detail of these different law proceedings continuing over several years, remained with him: his hand was in it all. He made a great fight, but his days and often the greater part of his nights were spent in constant work and anxiety.

CHAPTER IV.

AN UNIMPORTANT CHAPTER.

In the foregoing account of the prosecution of my father and Mrs Besant I have thought it best not to burden the narrative with any side issues not immediately important. As, however, it is my object in this book to picture my father and his surroundings as clearly as possible, so that from the picture a just judgment of his character may be derived, I will now devote a few pages to passing details more or less directly connected with this prosecution or arising out of it.

As soon as Mr Watts decided to plead "guilty," under the circumstances which have already been mentioned, and it became known that Mr Bradlaugh and Mrs Besant had determined to publish the prosecuted pamphlet, it was found that there were would-be prosecutors eager for the fray, and ready to commence on anything else, whilst awaiting the new issue of Knowlton's essay.

One morning I was seated on the floor (chairs were a scarce commodity at Turner Street) in my father's study sorting some pamphlets when a knock was heard at the street door; the landlady opened it, and then came to say that a man had called who particularly wished to see Mr Bradlaugh. "Ask him in," said my father, and I began hurriedly to rise from my lowly position, but a "Stay where you are" nailed me to the floor. "What can I do for you?" asked Mr Bradlaugh pleasantly, as a thick-set man of middle age, with a reddish beard, entered the room. The man replied that he wished to buy a copy of a book written by my father and entitled, "Man, whence and how." Rather to my surprise, because as a rule he refused to sell any literature from his Turner Street lodgings, and indeed kept none there for sale, my father hunted up a copy of the Freethinker's Text-Book, Part I., entitled "Man, whence and how? or Revealed and Real Science in Conflict," carefully dusted it, and handed it to the man, asking suavely, "Is there anything more I can do for you?" The man replied that that was all, put the book in his pocket, paid for it, and went away. He was hardly

outside the door when my father began to laugh. "Did you see his boots, Hypatia?" he asked. "His boots!" I repeated vaguely, wondering rather what the joke was. "Yes; he actually came in the regulation boots," he said. "That was a detective, and those who instructed him evidently think that 'Man, whence and how?' is some book upon the population question." Undoubtedly it is a book upon the population question, but not exactly from the Malthusian point of view; and if it was bought in that idea, the purchasers must have felt rather foolish when they read the first lines referring to the Hebrew chronology and the alleged creation of Adam and Eve!

In 1876 my father was relieved from the pressure of those debts which had been burdening him for so long. First of all a Liverpool friend died, bequeathing to Mr Bradlaugh £100, less legacy duty. This is a "new experience," said my father on receiving the money, adding, "I owe £90 less than I owed last week." Then in August he received £2500 through a compromised will suit. Mr Henry Turberville, brother of Mr R. D. Blackmore, had a very great admiration for my father; so much so that the year before his death, when my father was about to go to the United States, he felt so anxious not to lose sight of him that he offered to pay the whole of his debts if only he would not go. He made a will leaving the bulk of his property, valued at £15,000, to Mr Bradlaugh, and to simplify matters he also made him his sole executor. Not long after this Mr Turberville, while staying at Yeovil, died suddenly, having a few hours before made his will in favour of a daughter of a chemist of the neighbourhood. Mr Blackmore asked the Court to pronounce for an intestacy, and he joined with Mr Bradlaugh as against the propounders of the new will. At last a compromise was agreed upon, by which Mr Bradlaugh received £2500 in addition to his costs. Like the £90 legacy, the £2500 was immediately applied by my father to the discharge of his liabilities. I was in Court with him when the suits were compromised, and we went straight from the Court to the office of his chief creditor. "That was only just in time, my daughter," he said, as we turned towards home.

As one or other of us girls was now almost continuously with my father, and his books were bursting all available bounds at Turner Street, in February 1877 he decided to seek some more wholesome and more commodious lodging. Turner Street left much to be desired from the

sanitary point of view. I remember one hot summer's evening a kindly, enthusiastic gentleman, who lived in the west of London, came eastwards to speak at one of the working-men's clubs. My father was to take the chair for him, and he came to Turner Street before going to the club. We all walked down together, and this gentleman, turning with enthusiasm to my sister and me, said, "I think your father living here is just the right man in the right place!" My sister and I looked at one another; it had been so hot that day, yet we had not been able to open our windows to let in the air because of the abundance of smells which came in with it. If Turner Street was the "right" place, we, at least, did not appreciate it.

At the end of February we removed to 10 Portland Place (as it was then called), Circus Road, St John's Wood. It was a queerly-arranged house; we had the top floor and the basement, with a bath-room on the first floor, the ground floor and the rest of the first floor being occupied by a firm of music-sellers. In the basement was a very large and dark room, which we used for meals, and in which at first our tiny table and four chairs looked very desolate. On the top floor was one large room given over to my father's study, the other rooms being quite small. The library again outgrowing its bounds, in 1880 it descended to the still larger room on the first floor, whence the books were sold after the death of their owner in 1891.

At Circus Road my sister and I started housekeeping for my father, with one little servant much given to fainting. I was appointed head cook to the establishment, and my father and sister uncomplainingly devoted themselves to the task of swallowing my experiments in the culinary art. Never once, either while I cooked for him myself, or later when we ordered his dinners for him, do I remember my father grumbling at the food we set before him. His meals had to be punctual to the moment, or, if asked for at an unaccustomed hour, they had to be promptly served; if that was done, he was content with whatever was given him.

We had been only a few weeks at Circus Road when the new edition of the Knowlton pamphlet was printed. Mr Bradlaugh was away in Scotland, and as Mrs Besant's mind was filled with the idea of the possibility of a police raid and seizure of the stock, we hid parcels of the pamphlet in every conceivable place. We buried some by night in her garden, concealed some under the floor, and others behind the cistern. When my father was informed of this cleverness he was by no means pleased, and sent word

immediately that there should be no more hiding; and as soon as he came home again the process began of finding as quickly as possible these well-hidden treasures—some indeed so well hidden that they were not found till some time afterwards. He also knew that a search was possible, but he had no wish to look supremely ridiculous—to put it no more seriously—by parcels being found in all these eccentric places.

When the Saturday came on which Mr Bradlaugh and Mrs Besant attended at Stonecutter Street to sell the new edition of the Knowlton pamphlet, my sister and I went with them: not to sell the book—that my father would not allow—but to help in the mechanical work of counting out dozens or in giving change; for although there had been no other advertisement than the one announcement in the *National Reformer*, the crush of buyers in the little shop was enormous, and in the course of twenty minutes over 500 copies changed hands, in single copies or in small numbers. Several days elapsed between this formal sale and the arrest, but my father had told me that in the event of such an arrest I was immediately to go home and fetch his volumes of Russell "On Crime and Misdemeanours," while my sister was to remain with them to take any instructions at the moment. Mr Bradlaugh notified the police headquarters that he and Mrs Besant would attend at 28 Stonecutter Street from 10 to 11 A.M. for the convenience of the arrest. The police accordingly made their appearance promptly at ten o'clock one morning; I flew off to St John's Wood, collected the great books, and caught the next train to the city. It was a warm morning, I was hot with running, and anxious, for I rather think that I had some sort of notion that "Russell" was a sort of golden key to unlock all legal difficulties. City men in the train, going to their ordinary business, looked at me rather curiously as I sat in the carriage closely hugging those three bulky red volumes (which would slip about on one another, for I had not stayed to tie them together) on criminal procedure, of all things for a girl of nineteen to be carrying about with her on a sunny April morning.

But my sister and I felt very, very lonely and very cold at heart as we sat in the dreary Police Court at the Guildhall—I hardly know how we got there—listening to cases of drunkenness or assault, and waiting, with a shudder of horror and disgust at the thought, for our father and Mrs Besant to come and take their places in that dock which we had seen occupied by some of the lowest specimens of London low life. The time came for people to

snatch what lunch they could get; and a kindly gentleman with a slightly foreign accent came to us and wanted to take us to lunch. He knew us, for he was my father's very good friend, Mr Joannes Swaagman, though we did not know him. However, he talked to us of our father, and found the way to persuade us, so we went with him; and I shall never forget the feeling of gratitude towards him, and the sensation of comfort we felt in seeing his friendly face and hearing his friendly voice. We attended the first day's hearing at the Guildhall, but at our father's wish we were not afterwards present during the trying of the case, either at the Guildhall or at Westminster. After they were committed for trial Mr Bradlaugh proceeded to make his arrangements for the conduct of his paper, and of his new business in case of a hostile verdict. The course he then took proves, as I have said, in a startling way how utterly alone he felt at that moment—old ties were broken, new ones were not yet tested; to whom could he turn to help him in this emergency? There was no one but his daughters—girls with no experience, and in many ways young for their years. But we might be ignorant, we might be stupid; still we loved him so well that we could not help being absolutely faithful to any trust he might confide to us. I was apt to be more forward than my sister; she was nearly two years my elder, but she was needlessly distrustful of herself, and so I was the one whom my father selected to instruct in the possible editorial duties. I sat with him, note-book in hand, with fainting heart at the frightful prospect, and meekly took note of all his wishes. I was then taken into the bank, introduced to the manager, and recorded my signature, for I was to be the financial agent also!

During the long hours of the four days' trial at Westminster, my sister and I used to walk up and down the great hall, watching for any one to come out with any news of how the case was going on. Melancholy figures we must have looked, nearly always alone, dressed in black gowns—for our mother had died suddenly in the midst of all this—and very frightened at heart at what might happen. There was one person who used invariably to step out of his way to speak to us as he passed up the great hall to his place in the House of Commons, and that was Joseph Biggar, the Member for Cavan. A little kindness at an hour such as this makes an impression on the mind that nothing can efface, and my sister and I never afterwards heard Mr Biggar's name mentioned without recalling how he thus kindly went out of his way to say a pleasant word to a couple of girls miserably walking up and down

outside those Law Courts at Westminster. On the fourth day we were summoned inside the Court. The jury had retired, and every one was so sure of a verdict for the defence, that my father thought we should like to hear it—for in spite of all his worries and anxieties, he could yet think of us at such a moment. When the verdict came it was a shock, the more so that until a few minutes before, when an idea of the truth somehow reached the Court, a favourable one had been anticipated.

On the first day (Monday) of the trial, in giving the history of the Knowlton pamphlet, Mrs Besant, as a matter of course, mentioned that it had been sold by Messrs Holyoake & Co., saying, "One of the firm is Mr George Jacob Holyoake, whose name is probably well known to you. The other is Austin Holyoake," and further, "from Mr Holyoake the book went into the hands of a Mr C. Watts." On Wednesday, the third day, a communication from Mr G. J. Holyoake appeared in the *Times*, in which he attempted to explain away his connection with the pamphlet, adding, moreover, that after the Bristol trial he advised Mr Watts to discontinue its publication. As the only effect of this letter could be to injure the defendants, it may be imagined that my father did not take it as a very kindly act.^[9] Indeed, Mrs Besant put it that the letter was one "carefully calculated to prejudice the jury against us, and sent to the very paper with which one of our jurymen^[10] was connected." As Mr Holyoake had been silent so long, "silent while he sold it, silent while he profited by the sale, would it have been too great an exercise of self-control," she asked, "if he had maintained his silence for two days longer?"

The next week my sister and I were with my father and Mrs Besant all day in Court when sentence was pronounced; but in spite of all our vague fears, I do not think we altogether realised what imprisonment could mean until the Judge pronounced the awful words. The whole Court seemed to fade away as I listened, and it needed the knowledge that my father relied upon me to do something for him to bring me to myself. I took his pocket-book from him as he had bidden me, and was with my sister mechanically following him from the Court when we were stopped by the Lord Chief Justice, his mild tones forming a contrast to the last sharply uttered words. It seemed, indeed, as though ages of agony had been lived through in those few minutes.

Apparently Sir Alexander Cockburn had been told of our waiting outside, and had noticed us in the Court, as afterwards some very kindly words which he had said of Mr Bradlaugh and ourselves were repeated to my father.

When, later on, Mrs Besant was directed by order of Sir George Jessel to give up her daughter, my father knew that Mr Besant's advisers would not lose a moment in claiming her. By his instructions we drove at once to Mrs Besant's house and carried off Mabel to Circus Road. We then took her by road to Willesden Junction Station, and there gave her into Mrs Besant's keeping as she was passing through, on her way to fulfil a lecturing engagement at Manchester. Thus the poor mother was able to take her farewell of her child in peace, instead of having her torn from her arms at a moment's notice. Then when Mrs Besant's health gave way we nursed her through her illness, and went with her to North Wales, where she rapidly regained her strength.

Up to the time of Mrs Besant's illness she used to ride with us regularly when time permitted, but after that she gave it up for a while. I was never very strong, and one day the doctor had said to me, "If you were a rich young lady, I should order you horse exercise," to which my father, who was with me, replied, "She is not a rich young lady, doctor, but we will see what can be done." And my riding, which was purely the outcome of fatherly love and a desire for his daughter's health, has been turned by some people into a sort of crime against Mr Bradlaugh!

My sister cared very little about riding, so after Mrs Besant gave it up I used to go out alone, riding a little mare, Kathleen, which Mrs Besant then kept at livery stables. As Kathleen had several little peculiarities of temper, and I was accustomed to ride quite alone, I used to ride her in Regent's Park in the quiet of the morning. One snowy morning in March she bolted with me, and after a considerable run we fell together just within the Clarence Gate. I was carried insensible to the nearest doctor, and my sister was summoned by a passer-by who recognised me. Mr Bradlaugh had been lecturing in Scotland, and was travelling all night so that he might reach London in time to be in the Appeal Court at half-past ten, where Mrs Besant was appealing against the decision of the Master of the Rolls. When he was near home some one stopped my father's cab, and he came on at once, to

find me lying unconscious on the floor of the doctor's parlour. Nothing had been done for me; the doctor could not even say whether any bones were broken; his wife had indeed brought me a cup of tea, but of that I knew nothing. To make up for any lack of attentions to my poor body, they turned their thoughts to my sister's soul, and in the afternoon the doctor's wife wrote to my sister that she would pray to her "Heavenly Father" that "in this great affliction you may be led to know Him as your Saviour and Comforter." If a Freethinker wrote to a Christian who was sick or in trouble that hell was a delusion and heaven a myth, it would justly be considered an outrage, but the zealot has two codes of morality—one for those who differ from him, and another for himself.

It must have been very hard for my father that day in Court; three lectures the day before, travelling all night, and at home a daughter who, for aught he had been able before leaving to learn to the contrary, might be dying or permanently injured.

CHAPTER V.

MORE DEBATES.

In April 1874 the preliminaries for a six nights' discussion between Mr Bradlaugh and the Rev. Brewin Grant, B.A., were arranged. It was to be held in the Bow and Bromley Institute, and to commence on the 20th of May. It will be remembered that Mr Grant was no novice in debate, and had in fact several times previously met Mr Bradlaugh on the platform. These encounters had been so unpleasant that my father quite shrank from any renewal of them, and the present debate was brought about mainly through the mediation of the Rev. A. J. Harrison, M.A. On the first three nights Mr Grant was to attack Secularism, and Mr Bradlaugh to defend, and then Mr Bradlaugh was to assail Christianity, and Mr Grant defend. On the first evening the chair was taken by the Rev. Arthur Mursell, and Mr Grant as the opener had the opportunity to set the course of the debate, but so little did he realise his responsibilities that in his opening speech, almost indeed in his opening words, he fell back upon his old tactics of vulgar personalities, and this, of course, provoked some reply from Mr Bradlaugh. On the second night the Rev. Brewin Grant was perhaps not quite so bad, and my father for his part had resolved to try and endure the taunts levelled against himself, and against those with whom he worked. With the fourth night, when the chair was taken by the Rev. Mr Driffield, Rector of Bow, came Mr Bradlaugh's opportunity, and he made the most of it; this time he was the first speaker, and he opened the debate in a careful and closely reasoned speech, but unfortunately Mr Grant was not content to follow him. The *Eastern Post*, in an article on the first four nights, remarked that if the Rev. Brewin Grant was selected by the churchmen of the district, the choice did "no credit to their judgment." The writer went on to point out that although Mr Grant had the advantage of being able to prepare his speech for the first three nights, he did not show himself capable of speaking with any sequence or coherence, but instead he flung all sorts of opprobrious charges at Mr Bradlaugh, and introduced the most trivial personalities, which had not the remotest bearing upon the subject. "Mr Bradlaugh in his first speech

gave his definition of Secularism, which ought to have furnished excellent material for criticism and debate; but his reverend opponent adhered to the system of personal disparagement, and at last Mr Bradlaugh retaliated.... Things improved somewhat on the fourth night, but this was perhaps due to the fact that the exponent of Secularism led the debate."^[11] This, from the pen of an outsider, will serve to show the impression produced upon those who listened to the speeches. The chairman of the committee of the Bow and Bromley Institute waited upon Mr Bradlaugh after the first night, and told him in the presence of the Rev. Mr Schnadhorst (one of Mr Grant's committee) that in consequence of Mr Grant's conduct they had received a requisition, in which clergymen had joined, asking them to put an end to the debate.

On the fifth night the North London Railway Company, to whom the Institute belonged, stepped in and closed the hall just as the people were assembling to go in. As there was no proper legal agreement for the hire of the hall, there was no redress. There had been no notice of the closing of the hall, hence Mr Bradlaugh and Mr Grant, the chairman and the committees, were all in attendance at the Bow and Bromley Institute, as well as the audience who had paid their money to hear the debate. It was decided, on taking a vote of those present, to adjourn to the nearest available place and finish the debate there. The Clay Hall grounds were suggested, and there is an amusing account of Mr Bradlaugh proceeding to this place followed by the audience, who were considerably added to from the general public *en route*. The proprietor was at first rather alarmed at the advent of such a besieging party, but a reassurance from Mr Bradlaugh and a payment in advance soon calmed his fears. Mr Grant, however, for reasons best known to himself, did not come to Clay Hall, although the Revs. A. Mursell, W. Schnadhorst, S. Bardsley, and W. Loveridge came, as well as other friends of Mr Grant. Mr M. D. Conway, who was to have taken the chair, also followed the party to the Clay Hall grounds, where he presided at the informal meeting then held. The whole matter was discussed, and the kindly words on both sides cleared away much of the ill feeling which had grown up during the debate; and at the conclusion of the meeting, in replying to the vote of thanks, Mr Conway said:—

"GENTLEMEN,—I must say that I came to-night with a good deal of pain and apprehension. Though I accepted the invitation to preside at this discussion, I did so in the interests of truth, and from my desire to promote anything like honest discussion.

When I read the debate as reported in the *National Reformer* for the first time, I thought that Mr Bradlaugh seemed to resemble St Paul—that is, that he was fighting with beasts; and I came down with a great deal of apprehension that there might be scenes that were not decorous. I quite felicitate you and myself that instead of that, and instead of such recriminations, we happen to be in the presence of gentlemen on both sides who have indicated so much fairness and so much fine spirit. I will say for Christians, that if what has been levelled at Mr Bradlaugh, as it seems to me, has conveyed any impression against the Christian religion, as perhaps it has to some minds, the extremely gentlemanly discourse of some of the Christians we have had here to-night is calculated to recall that."

Mr Mursell spoke to Mr Bradlaugh as to fresh arrangements, but Mr Bradlaugh had never wanted to meet Mr Grant, and now would only do so if a dozen clergymen put him forward as their representative; "then, and then only," he said, he would meet him, "not as Mr Grant, but as the representative of those dozen clergymen." For his part, he would be no party to doing anything voluntarily towards renewing such scenes as they had just had. Strange as it must seem to any one who has read the pages of these debates, Mr Grant found fifteen clergymen willing to vouch for him as a fit and proper person to represent their views on Christianity, and another (and happily, final) debate was arranged for the following year. My father, in order to show that he did not measure all clergymen by Mr Grant's inches, selected Mr Mursell to represent him in the preliminary arrangements, just as on the previous occasion he had consented to abide by the decision of the Rev. A. J. Harrison. The debate was to be held on one night in each week for six weeks,^[12] and by securing South Place Chapel as the building in which it should be held the Committee were ensured against the possibility of intolerant proprietors closing the doors of the hall upon them in the midst of the discussion. The subject to be argued as chosen by the Committee was, "Is Atheism, or is Christianity, the true Secular Gospel, as tending to the improvement and happiness of mankind in this life, by human efforts, and material means?" Mr Grant was to lead on the first three nights, with objections to show that Atheism was not the true Secular Gospel. Mr Bradlaugh on the remaining three nights was to show that Christianity was not the true Secular Gospel. As might have been expected, this debate was only a modified repetition of what took place on the previous occasion; Mr Grant was certainly less free of speech, but with all that he could not keep clear of personal accusations and epithets which at times provoked much unseemly uproar and confusion.

Much has been said at one time or another about Mr Bradlaugh's adoption of the views of Spinoza, and to leave his position perfectly clear on that head I will quote the words he himself used in answer to his opponent on the third night of this debate. "It is perfectly true," he said, "that the argument as to one existence was adopted from Spinoza.... The precise distinction between the views of Spinoza and myself is this: Spinoza contended for the infinite attributes of extension and intelligence. I cannot conceive the possibility of attributes, except as the characteristics of the thing conditioned, the mode thought, and, therefore, cannot conceive infinite attributes at all. Spinoza held one existence, which, to him having infinite intelligence, made him a Pantheist; and I, not able to conceive that, stand to Spinoza in the relation of Atheist, and that is just the distinction between my thought and that of Spinoza."

On the fourth night the Rev. A. Mursell took the chair, and made kindly acknowledgment of the uniform courtesy he had all through received from Mr Bradlaugh. On this, and for the remaining nights, my father, according to the arrangements, had the debate. On each occasion his opening speech was carefully prepared, and was listened to with the most profound attention; but although a man may "lead" a debate, he cannot compel his antagonist to follow, and on the fifth night the Rev. Brewin Grant actually brought a manuscript prepared beforehand, which, unless by the merest coincidence, could obviously be no kind of reply to the arguments Mr Bradlaugh was advancing. This MS. he read very quickly, and often almost inaudibly, and again his conduct resulted in uproar and confusion. At the conclusion of Mr Bradlaugh's final speech, although there was still one to come from the Rev. Brewin Grant, the audience had become so incensed with that gentleman that the majority determined to leave. Mr Grant thereupon bent down to his own reporter, and read to him from his MS. quickly and in a low tone of voice. As it was impossible to argue upon propositions which he could not hear, Mr Bradlaugh also rose and left the building. On the sixth and last night Mr M. D. Conway occupied the chair. At the very outset considerable confusion was caused by Mr Grant's demand that some rules should be read from a book which Mr Bradlaugh objected to as incorrect and unauthorised. At length the chairman settled the matter by saying to Mr Grant, "If you can give me the Divine Authority for the infallibility of this little volume, I will read it all." When Mr Bradlaugh sat down after his last speech, he had so moved the audience that they

called for three cheers for him; but he begged them, if they thought he deserved praise, to show it by remaining perfectly quiet during the fifteen minutes that Mr Grant had still to address them. His hearers responded to his appeal, and listened mutely to the end.

A few words from a speech delivered by the Rev. Arthur Mursell, in the Free Trade Hall, Manchester, in the spring of the following year,^[13] give some insight into the impression Mr Bradlaugh's eloquence produced, even under such difficult circumstances as those of a debate with Mr Grant. Said Mr Mursell:—

"I am indebted to one whom the world calls an Atheist, and who accepts the designation, but whom, in social intimacy, I would rather call my friend than thousands of the Christians whom I know; a man who, while casting doubt upon Him I call my Master, has shown more of His spirit in the practical intercourse of life, as far as I know it, than many a champion of orthodoxy; a man of honest, though religiously benighted creed, and eloquent tongue; to such a man I am indebted for a stimulus to fervour in the cause of what I deem the vital truth, which prompts me to attempt to press it home with emphasis upon you now. In public debate upon the principles of Christianity which he opposed, he closed a speech, smarting under what he deemed the too flippant satire of his antagonist, in words something like these:—'If I believed in a God, which I do not; if I believed in a hell to be escaped, which I do not; if I believed in a heaven to be won, which I do not; do you imagine I could allow myself to rack my brain in coining the paltry jests of a buffoon, and tickling the groundlings' ears with quips and quirks? No! I would exhaust the logic of my brain, and the passion of my heart, in seeking to convince and persuade mankind that they might shun the one and gain the other, and try to seal a testimony which should be worthy of my conscience and my creed.' I felt condemned at my own apathy, as the eloquent sceptic lifted before me the standard of fidelity."

The debate held ten months later with Mr Walter R. Browne, M.A., Fellow of Trinity College, Cambridge, is both pleasant and instructive reading. The question discussed was, "Can miracles be proved possible?" and the debate arose out of some lectures upon the subject of Miracles, delivered a little while before by Mr Browne in Leeds. The discussion was held in the Albert Hall, Leeds, on two evenings in April 1876. The Mayor (Alderman Croft) presided at the request of the Vicar of Leeds, and on both evenings there was a large audience of earnest and orderly people, who gave the closest attention to the whole proceedings. The report is pleasant reading, because one sees the undoubted intention on the part of each disputant to make his position clear to the other and to the audience; that he was influenced by no mere desire to catch the other tripping for the sake of a moment's applause. The moods of disputants and auditors seemed in complete harmony, and

throughout there was not the slightest sign of disturbance or disorder. Mr Browne at the outset expressed his small confidence in the utility of public debates as a means of arriving at truth, and thought they were of little advantage either to the debaters or to the audience; but Mr Bradlaugh met this by remarking that he thought "that every objection which applies to a debate in public between two persons, applies with equal, if not greater, force to an *ex parte* statement made by one person in public, and that the mere delivery of controversial lectures upon such a subject necessitates that the person delivering the controversial lecture should be prepared to recognise at least as much utility in the clashing of his thought publicly with another man's, disagreeing with him, as in the mere utterance of his own thought where there is no one to check it at the moment."

The instructive character of the debate does not lie in any definite conclusion which might be arrived at by a reader in doubt as to the possibility or impossibility of miracles, but rather in a realisation of the difficulty two capable men with different points of view may have in settling upon a common meaning for certain words. In Mr Browne's first speech he defined a miracle to be "a supernatural marvel wrought by God," but this was a definition upon which they could not agree, because Mr Browne would not accept Mr Bradlaugh's meaning for "nature," as "the totality of all phenomena," and as equivalent to the word "existence," or the word "universe," nor would he himself define "God," for that, he said, was "beyond definition." The meaning of the words "force" and "creation," the idea of "perception," the doctrine of "free-will," and the existence of evil, all proved stumbling blocks to the smooth course of the debate; but as Mr Browne truly said in his concluding speech on the first evening, while it was true that they had not at that time advanced very far in the argument, it was better to make the ground sure as they went along than to attempt too much before their conceptions were clear. Some of Mr Browne's arguments were, for a trained speaker and debater, amazingly feeble. For example, his objection to Mr Bradlaugh's definition of the word "nature" was founded upon "the simple reason that such words as 'supernatural,' 'preternatural,' and 'unnatural,' are certainly used amongst us," and it did not seem to have occurred to him that these might be merely instances of a popular misuse of words. He also thought that the American War, which resulted in the abolition of slavery, showed "conclusively that there was a God who governs the world;" in this case his mind seemed to dwell only on the one

fact of the abolition of slavery, and to ignore the waste of human life and the horrors of the war as well as the prior fact of the slavery itself.

Mr Bradlaugh has often been accused of talking about the "unknowable," but a passage from this debate will show in what sense he used the word—if, indeed, he ever did use it. Referring to the allegation of creation, he said: "To me creation is a word without meaning; I only know creation in relation to change. I do not mean by it origination of substance; I only mean change of condition. I do not mean the bringing into being that which was not; I only mean the conditioning existence by characteristics by which I had not hitherto conditioned it. I cannot conceive the possibility of a period when existence was less than it is now. I do not mean that because I cannot conceive it, therefore it is not true. But I do mean that, as I cannot conceive it, you who say you can are bound to give me your conception of it. Understand me clearly, I do not put any such monstrous proposition in this debate as that the inconceivable is therefore the untrue, or that because a position is inconceivable to me, therefore I have a right to call on all other men to reject it. But I do put it, that you have no right to call upon me to accept any position which is inconceivable to me; that you are bound to tell me how you conceive it before you have a right to ask me to accept that it is possible." I do not remember to have heard Mr Bradlaugh speak of the "unknowable;" and that he should use such a term is quite contrary to the whole of my experience of his careful methods of speech. In any case the above will serve to show that he would not be likely to put "any such monstrous proposition," as that the to him "unknowable" was therefore unknowable to men with wider means of knowledge.

In June of the same year Mr Bradlaugh held a debate with Mr Robert Roberts, a leader of a sect called the Christadelphians. He had challenged Mr Bradlaugh to the discussion, and the subject selected was, "Are the Scriptures the Authentic and Reliable Records of Divine Revelation?" The question was to be argued for six nights, two at Leicester and four at Birmingham. After the two nights at Leicester Mr Bradlaugh avowed his disappointment; he had hoped that at any rate the discussion would bring out some new thought, but after two evenings' experience, he doubted whether that result would be attained. "He may be a good preacher," said my father; "he is most certainly not a good disputant." At Leicester the audience were small; at Birmingham they were larger, but the debate does

not seem to have been any more enlightening. Mr Roberts was described by one of the Birmingham auditors as "a man of considerable fluency of speech, and overflowing with religious enthusiasm," and also "in all respects a courteous gentleman," but unfortunately those qualities did not make him a debater. On each evening a quarter of an hour was occupied by each disputant in questioning his antagonist according to the Socratic method, and this feature of the proceedings seemed specially to attract the audience, although indeed it must require considerable practice and skill before it can be successfully carried out. Mr Roberts challenged Mr Bradlaugh to further debate, but this the latter felt obliged to respectfully decline on the ground of the challenger's "utter incompetency."

A few days later Mr Bradlaugh was at Liverpool discussing the necessity for disestablishing and disendowing the State Church. His antagonist was Mr William Simpson, the working men's candidate at Liverpool at the general election of 1874. The Concert Hall, Lord Nelson Street, was densely packed, and it was said that there were thousands unable to obtain admission. The arguments were closely followed by those present, and although there was no sort of disturbance, the audience were sufficiently excited to give audible expression to their appreciation or disapproval, and such interruptions were generally met by a sharp repartee from the speaker of the moment.

Mr Simpson, while praised for his fluency, courage, and resource, was not thought equal to his task,^[14] and in reading the verbatim report of the debate, one is drawn to the conclusion that he scored his greatest successes when making his greatest jokes.

My father had an unusual number of debates this year, and a little later in the summer was at Darlington discussing with a Mr J. H. Gordon on the question of "Atheism, is it rational?" The proceeds, after paying expenses, were given to the Darlington Hospital. There was no shorthand report, but in an article very hostile to Mr Bradlaugh which appeared in a local paper, there is a description of him well worth reproducing. The writer professed to think that my father's Atheism—which he said, with that calm assurance born of ignorance, paid him well "in money and gratified vanity"—was not a matter of conviction, but merely the result of a desire to be in opposition to the majority. He further ventured to prophesy that in Parliament he would

be a failure.^[15] The following portrait of Mr Bradlaugh sketched by a pen so unfriendly, is a singular testimony to his power:—

"Mr Bradlaugh is a tall, muscular man, who stands firm on his legs, with broad shoulders, between which is a massive, square, powerful head. He dresses in plain black, relieved only by an ordinary display of linen, and a slender watch chain. He is closely shaven as a Roman priest. His features are large and open, his eyes are of a grayish hue, and his hair, which is fast turning gray, falls back from a brow on which intelligence, perception, and power are strongly marked. He has a face which can be very pleasing and very stern, but which conceals the emotion at will. As he sits listening to the denunciations of his opponent the smile of incredulity, the look of astonishment, the cloud of anger, pass quickly over his countenance. Rising from his seat, and resting one hand upon the table, he commences very quietly in a voice which, until the ear is accustomed to it, sounds unpleasant and harsh, but which, when it becomes stronger, loses much of its twang, and sounds almost musical. His enunciation is singularly distinct, not one word being lost by the audience. He addresses himself to all parts of the house—gallery as well as body. When warmed by his subject, he advances to the centre of the platform, and looking his audience full in the face, and with right hand emphasizing every important sentence, he expresses himself in tones so commanding and words so distinct that his hearers may be hostile or friendly, but cannot be indifferent. One may retire horrified at his sentiments, even disgusted at his irreverence and audacity—from a Christian's standpoint—but no one would go to sleep under him. He can be complimentary and humorous, but is more at home in sarcasm and denunciation. He is never ponderous; nevertheless, the grave suits him better than the gay. Cheering does not seem to affect him, though he is by no means indifferent to it; but he is quick to perceive disapproval, and is most powerful when most loudly hissed. With head erect, face coloured with a flush which has in it a little of defiance as well as earnestness, now emphasising with his right hand, now with folded arms, now joining the tips of his fingers as if to indicate the closeness of his reasoning, as he would have the audience believe it, he stands defying opposition, even going out of his way to increase it, and revelling in his Ishmaelism."

Then, comparing him with his opponent:—

"Mr Bradlaugh has not much action, but what he has is dignified, which Mr Gordon's never is. He can be severe, even harsh, but never petulant and peevish, which Mr Gordon frequently is. Mr Bradlaugh may abuse his opponent, but it is boldly, not like a bad-tempered school-girl. He can be pleasant, but never assumes the grimaces and gestures of a Merry Andrew. His features are expressive, but he never pulls faces. He is essentially a strong man, strong in his language and his oratory, self-sustained, bold in the way he meets and even avoids the topic of dispute."^[16]

There are, of course, some phrases in this description which I should contravene, but apart from these, it is a most vivid and lifelike picture of my father as a speaker. It is, however, a mistake to suppose that Mr Bradlaugh wantonly went out of his way to increase opposition, or revelled in his "Ishmaelism;" what is quite true is, that if in pursuing the path he had marked out for himself he increased opposition, he went on just the same,

and did not turn away by so much as a hair's-breadth to avoid it. At heart he might be bitterly wounded, but that did not make him falter. To take, for example, one of the latest cases: when his attitude on the Employers' Liability Bill provoked such a storm of opposition from the very men for whom he worked, he wrote pathetically to a friend: "It is a little saddening to me to find that in the close of my life I am to be regarded as doing disservice to the men whom I desire to serve." But although he felt the men's distrust thus keenly, he did not hesitate nor turn from his course.

Nor did he revel in his "Ishmaelism;" he had no pride in being an outcast, neither had he any shame in it; the shame of his position was not his, it was theirs who thrust him into it. It shows a complete lack of appreciation of the facts to suggest that a man like Mr Bradlaugh could delight in being regarded as a sort of moral leper by his fellow-men, who indeed neglected no means to exclude him and his from society.

I have noticed these two points because it has been a common error to assume that because my father did not quail before opposition, therefore he courted it, and that because he was not ashamed when the law said, "You are an Atheist, and as such you are outside our protection," therefore he rejoiced in being so distinguished. Both assumptions are equally and entirely without foundation.

In the same year also Mr Bradlaugh held a written discussion with the Rev. John Lightfoot, of Wolverhampton, on the subject of Eternal Torment. This controversy consisted of four letters from each disputant, and was printed in the *National Reformer*; it was afterwards issued in pamphlet form, and is still obtainable.

In 1877 he had too much work to allow him to indulge in public discussions on theological subjects, but in 1878 he held a debate with the Rev. R. A. Armstrong, a Unitarian minister much respected in Nottingham. This encounter was the result of a lecture given by Mr Bradlaugh in Nottingham in defence of Atheism, and as a reply to some lectures delivered by Professor Max Müller under the Hibbert Trust. Mr Armstrong offered some opposition at the close of Mr Bradlaugh's address, and a debate was suggested. Nothing further was said at the time, but the local Secular Society took the matter up, and pressed Mr Armstrong in such "courteous and earnest terms," that after consultation with his friends, he agreed to

accept the challenge. The subject selected for discussion was, "Is it reasonable to worship God?" and the time appointed was the 5th and 6th of September. The debate was a great success, not indeed as furnishing the audience with a cut-and-dried answer "Yes" or "No" to the question argued by the disputants—a result rarely, if ever, attained—but both sides of the question were put forward with a calm and serious earnestness which must have been very pleasant to listen to. Mr G. B. Rothera made an admirably impartial chairman, and the audience, which crowded every corner of the Co-operative Hall long before the hour fixed for commencement, listened throughout with close and appreciative attention.

On the morning of the 5th Mr Bradlaugh had gone early to Coldbath Fields Prison to attend the release of Edward Truelove from his six months' imprisonment in defence of a free press. It had been a dull, close morning, damp with the rain which had not long ceased falling; inside the gaol the chaplain, not seeing my father and Mr Truelove's son, had sneered at the crowd of Freethinkers waiting in the damp and gloomy street without; had sneered, too, at the Freethinker, the prisoner, within, whose age might have been his protection. This was a sorry preparation for debate, but when the evening was over my father said, "I left London in no mood for debating. Coldbath Fields atmosphere hung about me all day, but the debate, as far as the first night has gone, is the most pleasant one in which I have ever taken part."

The discussion was afterwards republished as a pamphlet, to which Mr Armstrong added, by invitation, a few prefatory words giving his reasons for taking part in it, and suggesting books for study to those who wished to learn more of the positive argument for Theism and Worship.

The last debate in which Mr Bradlaugh took part prior to 1880 was one in the early part of March 1879, with the Rev. W. M. Westerby, a Congregational minister of Burnley. The subject agreed upon, and worded by Mr Westerby, was, "Has, or is, man a soul?" The chair was taken on each of the two evenings by the Rev. R. Littlehales, Baptist minister, and the audiences were large and orderly. "The Rev. R. Littlehales was thoroughly impartial" said Mr Bradlaugh, "quite doing his duty, but scarcely saying a word that was not absolutely necessary." Of his opponent Mr Westerby, he spoke as "an able speaker, with considerable tact and judgment, and

showing the utmost courtesy." The proceeds were given to the Blackburn and East Lancashire Infirmary, without any deduction for the expenses of the disputants. That was all very well as far as Mr Westerby was concerned, for the discussion took place in his own town; but Mr Bradlaugh had to journey from London to Burnley at his own cost, and pay his own hotel expenses. This heavy tax he rightly regarded as unreasonable, and such as should not have been demanded of him, nevertheless he thought the result was worth the sacrifice, and was glad he had made it. Indeed, this debate is regarded by many as one of the best in which Mr Bradlaugh ever took part. Amongst them, the Burnley and Preston papers gave about thirty-five columns of report; leading articles were written and sermons were preached upon the subject, and in that part of Lancashire, at least, the arguments were pretty thoroughly discussed. A verbatim report was published,^[17] and in that and in a little pamphlet^[18] issued many years before this discussion, Mr Bradlaugh's position on the question of the "soul" is fully set out.

CHAPTER VI.

SOME LATER LECTURES.

Mr Bradlaugh addressed an audience in Oxford for the first time early in May 1875, when he spoke upon the subject of "Land and Labour." Some difficulty had been made as to the use of the Town Hall, and a smaller hall, known as the Holywell Music Room, was engaged. A number of undergraduates put in an appearance, but as Mr A. R. Cluer, who was also present, observed, it was evident that they had come "more with the intention of attempting to interrupt than to listen quietly. But after the first few sallies of undergraduate wit had been effectively met and replied to by Mr Bradlaugh, in which encounters the laugh always remained on his side, the audience was tolerably peaceful." The Oxford papers gave their different versions of the lecture, but they all joined in the announcement that the chairman was a sweep by trade, whereat my father immediately wrote, "If Mr Hines is not ashamed to again preside for me, I shall be glad to ask him to take the chair at my next meeting." The "next meeting" followed close on the heels of the first, for on the 26th Mr Bradlaugh was again in Oxford, speaking in a room crowded to excess, upon the subject of "One Hundred Years of Tory Rule." The majority of the audience was composed of undergraduates, and the interruption kept up by these gentlemen in embryo was so continuous that "a complete sentence was almost impossible." Appeals to the good sense and decency of the audience were in vain; cigars and pipes were lit and smoked; shouts, yells, hisses, and insulting remarks were continued throughout the lecture. One of the most prominent of the disturbers was said to be Lord Lymington, son of the Earl of Portsmouth, who not only himself misbehaved, but also encouraged others to do likewise. In January 1877 my father was once more in Oxford, lecturing this time in the Town Hall. Again the undergraduates mustered for a disturbance, and at one time, when a townsman was knocked down by a gownsman, it seemed as though a general *melée* was imminent.^[19] This time, however, firmness and good temper brought all things right, and the lecture was allowed to come to a peaceful termination. It was succeeded by

a sharp fire of questions, enjoyed no less by the person questioned than by the questioners.

A subject which Mr Bradlaugh lectured upon very much in 1876, especially during the early part of the year, was the Suez Canal. He had only just returned from America when he learned privately of the purchase by the English Government of the Viceroy of Egypt's shares in the Suez Canal. Ill as he was—he was just convalescent from typhoid fever—he at once gave a lecture protesting against the purchase, a protest in which for some time he stood quite alone. He wrote a stirring article asking, "Why should the people of England pay £4,000,000 to the Viceroy of Egypt?" and he lectured against the purchase week after week. About four or five weeks later others also began to protest. Sir Geo. Campbell, M.P., in the *Fortnightly Review*, was one of the first to take ground against the Government. Inspired by Mr Bradlaugh, resolutions of protest were passed in different parts of the country, and so thoroughly did public opinion change that by the end of March the *Standard* itself was corroborating statements my father had made early in January.

An amusing circumstance happened at Darwen when Mr Bradlaugh was lecturing there in the summer of 1876. A foolish Christian challenged him to pay a visit of consolation to an old bed-ridden woman named Peggy Jepson, and offered him a sovereign if he would go. Amidst much laughter and cheering, he took the sovereign, and carried it straight to the old woman, who was of course surprised and delighted beyond measure with the unexpected gift; this was a form of "consolation" which met with her decided approval. Not so with the Christian challenger, however. He was so irritated that he threatened Mr Bradlaugh with County Court proceedings for the return of his pound.

At the end of September in this year my father and Mrs Besant had been invited to lecture at Congleton on two successive evenings, and to be the guests of Mr and Mrs Wolstenholme Elmy, at Buglawton, during their stay. The Town Hall having been refused for their lectures, the Salford Mill, an old silk mill, was engaged. Mr Bradlaugh spoke the first evening on "The right to speak and the right to think," but a certain section of the inhabitants of Congleton thought so little of these rights that they kept up a perpetual

din outside the mill, and smashed the windows by throwing stones. While the attention of those on the platform was distracted by the removal of a little child out of reach of the falling glass, some coward threw something at Mrs Besant, striking her a severe blow on the back of her head. After the lecture the little party had a mile and a half to walk to Buglawton, which they did accompanied by a noisy crowd, which alternately used language of opprobrium and sang "Safe in the arms of Jesus." When the escort got too demonstrative Mr Bradlaugh and Mr Elmy turned about and faced them, and then, like sheep, the crowd turned about too. A woman was struck full in the face by a Methodist shoemaker, whom she had detected in the act of throwing mud and had reproved. At the house the crowd remained yelling outside until midnight. But if Monday (the first night) was bad, Tuesday was worse, because the rioting was more organised. For two hours before the lecture a crowd assembled in front of Mr Elmy's gate, hooting impartially every one seen entering or leaving the house. A cab had been engaged to drive to the mill where Mrs Besant was to lecture, although she was still suffering from the hurt of the evening before, and as they got into the vehicle a volley of stones was thrown, but fortunately no one was hurt. During the lecture eight persons came in together, and it was soon evident that a thorough disturbance was planned. One of the new-comers shouted, "Put her out," and as this seemed the signal for a fight, my father said sternly that the next one who interrupted should be put out. A man named Burbery, a local tradesman and well-known wrestler who boasted his prize cups, invited Mr Bradlaugh to make the attempt upon him. My father saw that if the lecture was to go on something must be done, and that quickly, so he descended from the platform, and laying hands upon the champion, after a short struggle ejected him, and handed him over to the charge of the police outside. The audience inside cheered and hooted; the crowd outside yelled and threw stones—one of which, striking Mrs Elmy, cut her severely over the right eye. The excitement subsided in a few minutes, however, and the lecture concluded, and discussion was held in perfect quiet and order. An attempt was made at Mr Elmy's house to repeat the scene of the night before, but my father and his host went out, and at length succeeded in frightening the disturbers away.

I was myself present on one occasion when Mr Bradlaugh had himself to put some rufflers out of a hall in Newman Street, London. In June 1877 a

meeting on the Population question was held at Cambridge Hall, and was attended by a number of medical students from, I believe, the Middlesex Hospital. There was a crowded meeting, and there were, in addition to my father, several speakers, both men and women. Several of the medical students got up to move amendments, and in the midst of a very coarse speech by one of them, some of his friends at the side commenced to flourish thick sticks, and emphasize their opinions by bringing these same sticks into contact with the heads of the peaceful members of the audience. A general fight seemed imminent, when Mr Bradlaugh in commanding tones requested every one to keep his seat, and himself going up to the ringleaders, seized three of them by their collars—two in one hand and one in the other—and partly carrying, partly pushing them down the hall, cast them out of the door amidst cheers of delight from the audience.^[20] The students who remained ventured on no more disturbance, and the meeting proceeded in peace and order.

In the autumns of 1877 and 1878 Mr Bradlaugh took my sister and me with him on a lecturing tour he was making in Scotland with Mrs Besant. These tours were a sort of combination of work and holiday, in which the work was to pay for the holiday, and they were both greatly enjoyed by us all. We went as far north as Aberdeen, and came south as far as Hawick. In several of the towns we visited—notably at Perth and Edinburgh—we found kind and hearty friends equally eager to make the holiday part of our visit as great a success as the work itself.

The arrangements were all well made, and it was not until the second visit that any serious hitch arose, and that came unexpectedly at Edinburgh. In 1877 Professor Flint had delivered a series of lectures on "Theism," under the auspices of the Baird Trustees. My father wrote some replies to them, and on sending the first to Professor Flint he received this kindly letter in acknowledgment:—

"Johnstone Lodge, Craigmillar Park,
"Edinburgh, December 25th, 1877.

"SIR,—I thank you kindly for sending me a copy of the *National Reformer* for December 23rd. I shall read with interest any criticisms you may be pleased to make on my book on 'Theism,' and I shall endeavour to answer them in a note or notes to the volume on 'Anti-theistic Theories,' a copy of which will be forwarded to you. I regret that my time will not allow me to do more than this.—Thanking you sincerely for your personal courtesy towards me, from whose views you so thoroughly dissent, I am, Sir, yours very truly, R. FLINT.

"C. BRADLAUGH."

In the autumn of 1878 Mr Bradlaugh determined to take one of Professor Flint's lectures, "Is belief in God reasonable?" and make some reply to it from an Edinburgh platform. The Music Hall was duly engaged, the lectures were advertised for the 26th and 27th of September, and everything promised successful meetings both for himself and for Mrs Besant. On the 23rd, however, the directors of the hall cancelled the hiring. As Mrs Besant's subject was "Christianity: Immoral in Theory and Demoralising in Practice," it was thought at the outset that the refusal was on her account, but a special mention of the subject of Mr Bradlaugh's lecture in the letter written by the directors contradicted this impression. The Edinburgh Freethinkers were indignant; they sought legal advice, but found they had no redress, Professor Flint's lectures had been largely attended and fully reported in the Scotch papers, but of course he had argued in the affirmative. The Committee who had arranged the lectures for Mr Bradlaugh and Mrs Besant then went to the Artillery Hall, and explained all the circumstances; the hall was then hired and paid for, but on the same afternoon the hall-keeper returned the money, saying that the proprietors would not let it for the purposes required, and further, that he was instructed to have the place "guarded by police" on the Thursday and Friday evenings. Many fruitless attempts were made to obtain a hall. On Thursday Mrs Besant's lecture had to be abandoned, and we went to the theatre instead, whilst a large number of persons, who had not seen the notices of postponement, assembled at the Artillery Hall. The Society of Arts Hall was obtained for Friday, and when this was known, much pressure was put upon the proprietors to rescind their contract; they held out until the afternoon, then they also gave way and refused the hall, and when the audience came in the evening they found the doors locked and the place under police protection. At last Mr Bradlaugh wrote to Professor Flint, shortly stating the

case, and appealing to his sense of fair play to aid him in procuring a platform in Edinburgh where he might reply to his arguments. To this letter he received the following reply:—

"Edinburgh, September 30, 1878.

"SIR,—It appears to me that you have very good reason to complain of the injustice of the persons who, after granting you the use of their halls, cancelled their contracts. I sincerely regret the treatment you have met with in Edinburgh in this respect. I have no influence, however, with the directors of public halls in this city, and therefore cannot do more than assure you that I cordially wish you the fullest liberty you can desire to discuss and criticise my lectures on Theism. The more freely the grounds of religious belief are examined from all points of view the better.—I am, etc.

R. FLINT."

One immediate outcome of this exhibition of intolerance was an offer, publicly made and advertised in the *Scotsman*, of a sum of £500 towards the building of a hall in which free discussion might be held.

Mr Bradlaugh lectured many times in Edinburgh both before and after this date, but, as far as I am aware, this is the only time on which he had any difficulty about obtaining a hall to speak in.

Many Scarborough people will recall the fuss made over Mr Bradlaugh's lecture there in the Old Town Hall on "Eternal Hope and Eternal Torment" in April 1879. A protest, signed by nearly every clergyman in the borough, was sent to the Corporation. That Mr Bradlaugh should lecture in a public building belonging to the town was, said these intolerant clerics, "a public scandal," and "a most serious outrage upon the convictions of the rate-payers." The Mayor moved that this protest be entered upon the Minutes, but there were only five votes in favour of his motion, and it was therefore rejected. My father lectured in Scarborough in 1882 on "Perpetual Pensions," and was to have lectured there again in 1889, but this engagement had to be cancelled in consequence of his serious illness.

CHAPTER VII.

LUNATICS.

I suppose that all public men are more or less troubled with lunatic correspondents and lunatic visitors, so that in this respect Mr Bradlaugh was in no way singular; but perhaps they gave him more trouble than most men because he was so easy of access. Any one who wished to see him had only to knock at the door, to ask, and to be admitted if my father were at home.

Letters from insane persons were of constant occurrence, but they were soon disposed of—the wastepaper basket was large and was always at hand. There was one man, however, who wrote my father daily for years; indeed, sometimes he would write twice in a day. His letters were without coherence, written on scraps of paper of all shapes and sizes, and I do not remember that he ever gave either his name or his address.

But if there was the ever-hospitable wastepaper basket ready to receive a lunatic's letters, a lunatic visitor needed to be treated more discreetly. This was especially the case at Turner Street, where the room was small, and there was not much space in which to move about. When a visitor called he was usually requested to be seated at the side of the writing-table opposite my father. The chairs were few, and if the visitors were many, some had to sit on piles of books or pamphlets.

One day a man called at Turner Street, and was asked to sit down in the customary way. My father inquired his business, and without going much into detail the visitor explained, with a queer, uncertain look in his eyes, that he had "a mission from God" to kill him; and thereupon he drew out a formidable-looking knife. Mr Bradlaugh examined the man's face, and saw that it was no foolish hoax being played upon him. There was a quiet determination about his would-be murderer that was anything but reassuring.

The chair in which my father always sat was an old-fashioned, high-backed oaken chair, with arms, and from the back at the right hand hung, suspended

by a strap, his heavy Colt's revolver; between himself and the lunatic was the small writing-table, 27 inches wide. My father carefully felt behind him until he felt the revolver under his fingers, and then he quietly asked the man if he was quite sure that God had given him this mission. Yes, the man said; he was "quite sure." "Have you consulted any one about it?" "No," was the reply. "Don't you think it would be better to do so?" gently insinuated Mr Bradlaugh; "I should be inclined to talk it over with some one—with the Archbishop of Canterbury, for instance—were I in your place. You see it might be rather awkward afterwards if there should happen to be any mistake about the matter."

This apparently was a view of the case which had not previously occurred to the lunatic, but he promptly accepted it, and announced his determination to go to Lambeth Palace forthwith; and it was with a perceptible feeling of relief that my father heard the street door close upon his visitor. He knew that there was no danger to the Archbishop, as there was no probability of such a man being allowed to see him.

Mr Bradlaugh had had a case a little before this of which the circumstances were rather peculiar. A man named John Sladen came up from his home in Cheshire on Thursday, March 31st, 1870, and in the evening he went to the New Hall of Science in Old Street, where a social gathering was about to be held to commemorate the tenth anniversary of the publication of the *National Reformer*. Before the proceedings commenced, John Sladen made himself known to Mr Austin Holyoake, to whom he was previously an entire stranger, and asked him if he could speak with Mr Bradlaugh for a few minutes. Mr Holyoake introduced him to Mr Bradlaugh, who took him into a private room. In the course of conversation Sladen informed my father that he had determined to kill the Queen, giving as his chief reason (if my memory serves me) that she wanted to marry him. Mr Bradlaugh returned to Mr Holyoake, and explained the state of affairs to him, and they both agreed that the police ought to be informed, so my father went to the police station and saw the inspector, who sent an officer in plain clothes to the Hall. In order to avoid any disturbance amongst the people present, Sladen was allowed to remain until ten o'clock, when, as Mr Holyoake said, the police officer "very adroitly got him away." Sladen was so sensible on most matters that at first the police were disinclined to believe in his madness, but before the night was out they had more than sufficient proof.

On the following morning Mr Bradlaugh telegraphed to Sladen's friends, and went himself to the police station to see that he was properly cared for. Eventually he was sent to Hanwell Asylum, and on the earliest opportunity he wrote reproaching my father. Of course he did not think he was mad, and he told Mr Bradlaugh that as he had been the means of putting him in the Asylum, it was his duty to get him out, or at any rate to send him papers to read. Later on my father communicated with Dr Bayley, the physician to the Asylum, who assured him that Sladen was not fit to be released, and that any political reading would be calculated to excite him and retard his cure. But a few years later I believe he was allowed to have the *National Reformer*. My father never lost sight of him; he used to send to the Asylum to make enquiries, and Sladen also wrote to him occasionally; he always felt Sladen's to be a sad case, and was oppressed by a feeling of responsibility in the matter just because he was the one to hand him over to the police. Of course there was a small public sensation about the matter, which the newspapers did their best to fan into a big one at Mr Bradlaugh's expense. The east end of London was posted with large placards announcing "A Threat to murder the Queen at the New Hall of Science."^[21] An evening paper^[22] giving a report of the proceedings, told how Sladen "heard Mr Bradlaugh lecture" at the Hall of Science, and *after the lecture* told Mr Bradlaugh of his determination to kill the Queen. The next morning this report was repeated, but with additional embellishments. Now it was said that Sladen "went to hear a lecture by Mr Bradlaugh, and soon afterwards burst into threats of such violence towards Her Majesty that he was taken into custody as a dangerous lunatic."^[23] That there was no lecture at the Hall that evening, that there was no bursting out into threats of violence, that Sladen spoke to Mr Bradlaugh *before*, and not *after*, the commencement of the evening's proceedings, were of course matters of mere detail, without value when compared with the opportunity of raising a prejudice against Mr Bradlaugh. Similarly, when the lad O'Connor tried to frighten the Queen with an empty pistol, it was said that probably a large "share of the mischief was caused by the lad's attendance on the lectures of a notorious Infidel and Republican lecturer, whose inflammatory discourses, falling on a weak, excitable, untrained mind, produced the natural effect and goaded him on to mischief."^[24] That there was no evidence that the lad had ever attended any such lectures was apparently of small importance.

At Circus Road I can recall several mad visitors: one in shirt sleeves and leather apron, who offered to reveal a secret to Mr Bradlaugh whereby he might become possessed of millions; another, a little old lady, who told with a mysterious air how she was "the Secret History;" another, who was so noisy that he had to be put out, and who then remained in the street below shouting out that Mr Bradlaugh had ill-used him, till he brought out all the neighbours to their doors, and the commotion he raised threatened to hinder the traffic. Then there were some who claimed to be descendants of one or other of the Brunswicks, and as such entitled to the Crown; but provided they were quietly listened to, these gave little trouble save in the time they wasted.

CHAPTER VIII.

THE "WATCH" STORY.

There have been some fictions so pertinaciously circulated about Mr Bradlaugh that any story of his life would be incomplete without some reference to them. Lies are so proverbially hard to kill, however, that I dare not feel confident that even an exposure of them here will altogether discredit these old favourites, but at least I hope that it may have some little effect.

I think the most popular of all these is what has come to be known as "the watch story," and for this reason I have taken the trouble to trace back its history, not exactly to its origin, but for the last hundred years or so. The defiance of Deity, which is really only the converse of the prayer, is a very ancient idea, and the old stories mostly ended in the punishment or death of the person who so rashly defied the Omnipotent. The so-called Atheist who, in the time of the French Revolution, defied God to prevent him drinking his cup of wine, was struck dead to the ground, and the cup was dashed untasted from his lips. Even during this century, as late as 1849 or 1850, the story was told of a wicked soldier who rode out of the ranks, and turning his horse's head, faced his companions, exclaiming, "If there be a God, let Him now prove it by striking me dead before you." In a few minutes this rash young man was a corpse—a victim to the wrath of an outraged Deity and a solemn warning to his comrades.

When this fable is related, not of vague personalities such as the "Atheist" or the "wicked soldier," but of actual living persons, the termination has to be amended,^[25] and the moral loses something of its point. The first time that it was told of Mr Bradlaugh was, as far as I can trace, in the year 1867. There was at that time a certain Conservative journal called the *British Monarchy*, the editor of which, desiring to damage the Reform League, expressed his opinion in choice and elegant language that the meetings of the League gave

"An opportunity to the roughs of the Metropolis to sack the shops, ... goaded on by the fool who says in his heart there is 'no God,' which reminds us," he went on, "of a

fact related of a resigned leading member of the Reform League, and the supposed projector of the 'Good Friday meeting'^[26] of this year. This would-be lawgiver and law-maker, travelling on the Great Eastern Railway, was as usual endeavouring to propagate his hateful opinions. He had the presumption to offer, it is said, as a proof of his assertion that 'there is no God,' the fact that if, on taking out his watch from his pocket, he held it in his hand for some minutes and was not struck dead, it would be conclusive evidence of the truth of his opinions. He was not struck dead because of God's long-suffering mercy. He reminds us of Pharaoh; may he escape his fate!"

Mr Bradlaugh never by any chance sought to propagate his opinions in a railway carriage, nor was he ever guilty of "such ridiculous folly," as he contemptuously termed it, as that attributed to him by the *British Monarchy*. Long before this story was attached to Mr Bradlaugh name it was told of Abner Kneeland, the Pantheist and abolitionist in America; indeed, the defiance of Deity in this particular manner is said to have originated in a story told by an American of Abner Kneeland.^[27] It was ascribed to Mrs Emma Martin,^[28] a Freethought speaker in England, who was eulogised by Mr G. J. Holyoake as "beautiful in expression, quick in wit, strong in will, eloquent in speech, coherent in connection, and of a stainless character, she was incomparable among public women." It was related again and again of Mr G. J. Holyoake, who wrote a denial of it as early as January 1854. Many times also was the challenge ascribed to Mrs Harriet Law, a lecturer on the Freethought platform thirty years ago; and later, when Mrs Besant came into the movement, she was made to play the part of heroine in this affecting drama, although, as she herself pointed out, "there is one very queer thing about the story; it never appears in any report given at the time of any lecture, and no one speaks of having heard the challenge the day, week, or month, or year after it was done. The pious Christian always heard it about twenty years ago, and has kept it locked in his bosom ever since."^[29]

From 1867, when the *British Monarchy* first associated this story with Mr Bradlaugh's name, down to 1880, when my father commenced a prosecution against a man named Edgcumbe, not a single year passed without some repetition of it. Since this prosecution, although it still occasionally shows signs of life, it is not nearly so vigorous. The story was circulated, not merely by vulgar and irresponsible purveyors of slander, but even by persons whose position gave an air of unimpeachable veracity to anything they might choose to say.

The first person to relate the "watch" story orally of Mr Bradlaugh was Mr Charles Capper, M.P., who, as it may be remembered, told it with some detail at a public meeting at Sandwich during the general election of 1868, giving the name of Mr Charles Gilpin as his authority.^[30] My father at once wrote to Mr Capper that he had read his speech "with indignation, but without surprise, for no inventions on the part of my enemies would now surprise me." He had, he said, "seen Mr Charles Gilpin, and so far as he is concerned, I have his distinct authority to entirely deny that he ever told you anything of the kind, and I have therefore to apply to you for an immediate retraction of and apology for your cowardly falsehood, which has been industriously circulated in Northampton, and which could only have been uttered with the view of doing me injury in my candidature in that borough. Permit me to add, that I never in my life (either in Northampton or any other place) have uttered any phrase affording a colour of justification for the monstrous words you put in my mouth."

But Mr Charles Capper would not retract, and would not apologise, so Mr Bradlaugh, who felt all the more incensed about this, because of the dragging in of Mr Gilpin's name as authority for the slander, brought an action against him. Before it could be brought into Court, however, Mr Capper died.

In the December of the same year, during the hearing of the proceedings in the *Razor* libel case, the counsel for the defendant Brooks asked Mr Bradlaugh, in cross-examination, "Did you not once at a public lecture take out your watch and defy the Deity, if he had an existence, to strike you dead in a certain number of minutes?" "Never. Such a suggestion is utterly unjustifiable," was my father's indignant answer.

In the winter of 1869, the Rev. P. R. Jones, M.A., of Trinity Church, Huddersfield, added the weight of his authority to the slander. The municipal elections were about to take place, and the cry of "infidel" had been raised against one of the candidates for the West Ward. Hence, on the Sunday immediately before the election, Mr Jones preached a sermon against "infidels" and "infidelity," and, as an "apt illustration of his subject," he charged Mr Bradlaugh with the watch episode. When this came to the ears of the Huddersfield Secular Society, they lost no time in writing to ask Mr Jones whether he had indeed made such a statement concerning Mr

Bradlaugh. This, said the *Huddersfield Examiner*, the reverend gentleman had not "the manliness to admit ... nor even the courtesy to acknowledge the receipt of the secretary's letter." The Committee of the local Secular Society waited for seven days, and then appointed a deputation to wait upon the Rev. Mr Jones. The editor of the *Examiner* observed that the explanation then given by that gentleman was "not very satisfactory, and I do not wonder he was so tardy about making it. He had heard the absurd story some years ago, but the person who told it to him had left Huddersfield; and on such slender authority as this he brought a charge of using senseless and blasphemous words against Mr Bradlaugh." The Rev. P. R. Jones, M.A., in the course of his duties must have preached obedience to the ninth commandment, but he evidently did not always enforce his teachings by a personal example.

Just about the same time another clergyman, the Rev. Dr Harrison of St James's Church, Latchford, in a sermon preached upon that favourite but not very polite text, "The fool hath said in his heart, There is no God," was reported^[31] to have told the story, with a slight variation, of some unnamed person.

"What did they think of a man at Manchester," he asked, "standing up at a public assembly and opening the Bible in the presence of the people, and saying if the Bible was true he hoped God would strike him dead? That was in the newspapers not long ago. A creature, a worm, a being dependent upon the Almighty, raising his puny arm against the Deity, asking God to strike him dead if the Bible were true. It would not have been a wonder if God had struck him dead; the wonder was that God should be so merciful as to let him live."

When the Rev. Dr Harrison was challenged as to the name of the man, the time, and place of the occurrence, and the names of the newspapers which reported it, he could of course give no satisfactory authority for his statements.

In the summer of 1870 the *Christian*, in a tirade against infidelity, stated that "the well-known Atheist Bradlaugh, at a public meeting in London, is reported to have taken out his watch, with these words, 'If there be a God in heaven, I give Him five minutes to strike me dead.'" Upon this being brought under his notice, my father said that he was "really weary with contradicting this monstrous lie."

The *Liverpool Porcupine* in the same year gave a startling variation on the ordinary version. A certain unnamed person—by implication, Mr Bradlaugh—"called on the Almighty, if he had any existence, to strike dead *some relative*, and thus prove his power." The *Porcupine* forgot that it is the Christian creed which teaches the doctrine of the scapegoat, and even the sacrifice of a relative. It forms no part whatever of Atheistic teachings.

The Rev. R. S. Cathcart, agent to the Religious Tract Society, in addressing a meeting in the Corn Exchange, Gloucester, in the autumn of 1871, lamented the spread of infidelity in the north of England, where, he said, it was encouraged by a "blatant orator, Bradlaugh, from London." He added that there was even "one poor benighted woman" who "had actually produced her watch and challenged God, if, she said, there be one, to appear before them on the platform at a given time." Mr Cathcart, on being asked as to the when, and where, and the woman, failed to make reply.

The next carrier of the slander was an important one. The *Financial Reformer* for the December of the same year (1871) described Mr Bradlaugh as "the superenlightened gentleman who pulled out his watch at an open-air meeting and challenged Almighty God to strike him dead within five minutes, if God there were." My father was becoming somewhat accustomed to having this accusation made by persons who wished to make out a case against the "infidel," but to find it in the *Financial Reformer* was an unexpected blow. He wrote a courteous letter to the editor, but the editor made no reply; he wrote to Mr Robertson Gladstone, the president of the council publishing the paper, but Mr Robertson Gladstone left the letter without notice. At length, thoroughly angry, he wrote to the printers, threatening legal proceedings. A proof of an "apology" already in type was sent him, but it was not such as he felt he could accept, and he wrote to the printer to that effect. The apology was then somewhat amended, and with the copy of the *Financial Reformer* containing it the editor sent a letter to Mr Bradlaugh, conveying a frank and full expression of his regret. Upon receiving this my father forgave not only the offence, but the tardiness of the acknowledgment, and, moreover, expressed his sense of indebtedness to the editor for his apology.

The *Stourbridge Observer* of about the same date also repeated the watch story of "Bradlaugh," and, with incredible coarseness, added that "he has

been known on another occasion to stop a lame man in the streets, and tell him that he would spit upon such a God as his that would allow him to remain in that deplorable condition." Mr Bradlaugh, at the request of his Stourbridge friends, specifically contradicted both these stories; but, he added, it was too much to expect him to continually contradict every scandalous calumny to which the press gave ready circulation against him.

One of the next places in which the story appeared was Dudley, where, in the winter of 1873, during my father's absence in America, it was related by the Rev. B. M. Kitson, who apparently introduced it into a speech for the benefit of the Additional Curates' Aid Society. He located the episode at the Hall of Science in Old Street, City Road. As soon as Mr Bradlaugh could obtain the reverend gentleman's address after his return to England, he wrote requesting Mr Kitson to retract, or to furnish him with the name of his solicitor. Mr Kitson retracted the statement, and expressed his regret for having made it.

In the spring of 1874, the Rev. Mr Herring related the tale to some school children at a school near Goswell Road, and in the following August the Rev. Edgar N. Thwaites, of the Church Pastoral Aid Society, carried it to Salisbury.

A month later, the *Weekly News*, in referring to the Northampton election, remarked that Northampton was specially prominent, "because Mr Bradlaugh, the Radical orator who challenged the Almighty to strike him dead, has appeared in person." Anything is fair in war or elections, some people seem to think.

In the following year the Rev. Mr Cripps, of the Primitive Methodist Chapel, Thetford, started a new variation on the old theme. At the end of one of Mr Bradlaugh's lectures, a smith "fresh from work," induced him to go down on one knee (the narrator was extremely precise in unimportant details) and proposed that they should pray to God to "strike him dead in five minutes." This proposal seems to have somewhat disturbed Mr Bradlaugh, for according to Mr Cripps, he "jumped up, picked up his hat, and rushed out of the building." The Rev. Mr Cripps, on being challenged by Mr Bradlaugh, referred him to another minister as his authority—the

Rev. M. Normandale, of Downham Market, Norfolk; and, moreover, refusing to accept Mr Bradlaugh's "unsupported denial," adhered to his statement.

The next person to repeat the watch story—but without naming the "infidel"—was, I deeply regret to say, the Rev. Basil Wilberforce, at Southampton. The local Freethinkers were justly indignant, and Mr J. F. Rayner, the Secretary of the Southampton Secular Society, at once flatly contradicted the tale. The only reparation Mr Wilberforce thought it necessary to make was to say that he was "glad to hear it was not true," and this offhand mode of disposing of the matter did not do much to soothe the irritated feeling of the Southampton Freethinkers. The liberality and kindly-heartedness of the late Rev. C. E. Steward, Vicar of St Peter's, in great measure disarmed their anger; and later on Canon Wilberforce himself learned to hold the Freethinkers of the district, as well as Mr Bradlaugh, in respect, and in consequence taught them in turn to respect him.

A man at Longton in 1876, whose name I do not know, brought the story to a finer point. Hitherto it had always been told on the authority of some second person, but this man appears to have deliberately stated that he *saw* Mr Bradlaugh pull out his watch, and *heard* him defy God to strike him dead. This manner of telling the tale in the first person soon found favour, for only a few months later a phrenologist, calling himself Professor Pasquil, was reported to have said that he was present at Huddersfield when Mr Bradlaugh went through the performance before several hundred persons. He must have "the bump of falsehood splendidly developed," commented Mr Bradlaugh. "No such event, or anything to justify it, ever took place anywhere; it is a deliberate untruth." The myth was repeated in the same year at Haughley by a Mr Scarff, and in the following year at Bristol, where there seemed to be some confusion as to whether it was Mr Bradlaugh or Mrs Besant who was the chief actor; Mrs Besant's name being now introduced for the first time. "This story is a deliberate lie," wrote my father in a state of exasperation, "and has been formally contradicted at least one hundred times."

At length, in the spring of 1877, the Rev. Dr Parker, of the City Temple, took the matter into his fostering charge. It left his lips, if the report^[32] of his

sermon is to be believed, in a form the coarseness of which quite equalled, if it did not transcend, all that had gone before. Said he—

"There is a woman going up and down the country lecturing, and may be in London city at this moment, and she proudly cries out that there is no God, and she takes out her watch and says, 'Now, if there be a God, I give him five minutes to strike me dead,' and she coolly stands watching the hand of her watch dial, and because she is not struck dead by the time she stipulates, she cries out that there is no God; and working men run after this woman, and pay for listening to this ginger-beer blasphemy, and the ravings of a half-drunken woman."

Mr Bradlaugh offered Dr Parker the use of the columns of the *National Reformer* in which to verify his statement, but, needless to say, Dr Parker did not avail himself of this offer.

In 1878 the fable was told by "H. Clewarth, Esq.," at the Mile End Assembly Hall, of Mrs Besant, and by a revivalist preacher named E. B. Telford of Mrs Harriet Law. Mr Telford also indulged in the effective first person, even mentioning the detail that the watch was a gold one. [\[33\]](#)

Now we come to a still further development. In June 1879, Mr Bradlaugh was lecturing in Huddersfield. He spoke three times on the Sunday, and at the conclusion of his afternoon discourse a man got up, and with the utmost assurance pretended to my father's face that he had heard him defy God to strike him dead in the Philosophical Hall of Huddersfield itself. A Christian gentleman, understood to be the editor of the local *Examiner*, rose and warmly repudiated any complicity in this audacious falsehood. Almost at the same time the story, with variations, was repeated by a preacher of Aberdeen named Marr. He gave as his authority a certain unknown person, John Kinch, who, it was asserted, had been actually present when Mr Bradlaugh thus defied God.

I have been able to note here only recorded instances of the telling of this story, but they will serve to show the astounding vitality of a slander, even when it is one so monstrously absurd as this. It will be seen how people of all kinds lent themselves to its circulation, and how reluctant they were to apologise when convicted of error. I am far from asserting that they all uttered the calumny knowing it to be a calumny; that, in the case of such a man as the Rev. Basil Wilberforce, would be unthinkable; but I do say that they did not take reasonable pains to satisfy themselves of the truth of a

story which, on the face of it, was in the highest degree improbable and absurd.

When Mr Bradlaugh was elected to Parliament in 1880 the wildest tales were told about him, and, of course, amongst others the old "watch" story came up. A Leicester paper which published it retracted and apologised; but another, the *British Empire*, was less ready; my father, provoked beyond endurance, went to Bow Street and asked for a summons against S. C. Lister, a director, and J. Edgcumbe (or Edgcome), secretary to the *British Empire Company*. Edgcumbe was also the writer of the paragraph in which the episode was dramatically described. Mr Bradlaugh would have proceeded against the author only, but the libel was repeated in the paper on a later date, and therefore he felt that he could not excuse the directors. The summons was granted, and when the case came before the magistrate, after Mr Bradlaugh had made his opening statement, he went into the witness-box to declare there was not a word of truth in the paragraph. In the course of the cross-examination a rather amusing theological discussion arose between magistrate, counsel, and witness, in which the two former seemed quite unable to follow Mr Bradlaugh's reasoning. "One existence," Mr Vaughan thought, must mean "supreme existence;" failing that, counsel asked was it "mere actual physical existence"? My father was examined as to a number of places where the "watch" episode was alleged to have occurred, and about a man, John Field, then in court, who, induced by Mr Bradlaugh, was supposed to have prayed on his knees to God to strike him (Mr Bradlaugh) dead, whilst my father timed him, watch in hand. When, however, John Field, who called himself a Baptist minister, was in the witness-box, his replies were such that the magistrate said that he had better be withdrawn, as he could not possibly receive his evidence. A witness (Bridge) swore to having heard my father defy God in the manner alleged at Tavistock in 1853; but at the adjourned hearing, when he was wanted for cross-examination, he was not to be found. Amongst the witnesses were three from Northampton, who all swore they had heard my father make the challenge at various times and places in Northampton. Two had travelled to London together, having their tickets taken for them by a local missionary; but at first they swore they knew nothing of each other, and the facts only came out gradually under cross-examination. At the end of the second day's hearing the defendants were committed for trial.^[34] Mr Vaughan suggested

that the charge should be withdrawn against Lister, as he was only a director. Mr Bradlaugh said, if Mr Lister would give his assurance that he knew nothing of the first or subsequent publications of the libel, he would be content to drop the charge against him. Mr Lister protested that he knew nothing of the matter, and Mr Bradlaugh was about to withdraw the charge when the defendants' counsel coolly asked that it should be dismissed with costs. I imagine, however, that at a later stage my father consented to withdraw the case against Lister, for the name of Edgcumbe only figures in the further proceedings.

The trial, which was removed by the defendants by *certiorari* to the Court of Queen's Bench, was expected to take place at the end of June, and, since prosecutors in Crown cases cannot personally address the jury or argue points of law, my father had to employ solicitors (Messrs Lewis) and counsel (Mr Charles Russell, Q.C., M.P., and Mr Moloney); Sir Hardinge Giffard was briefed to appear for Edgcumbe. After some delays, Edgcumbe was ordered to deliver his pleas within a certain time, so that the trial might come on in November. In these pleadings the episode was alleged to have taken place at The Philosophical Hall, Huddersfield, about 1860 or 1861; The Theatre, Northampton, 1860, 1862, 1863, 1865, or 1866; The Woolpack Inn, Northampton, 1859; The Corn Exchange, Northampton, 1865 or 1866; The Hall of Science, London, 1879 or 1880; The Cleveland Hall, London, 1865 or 1866; The Nelson Street Lecture Hall, Newcastle, 1875; Tavistock, 1853, 1854, or 1860; St George's Hall, Southwark, 1862 or 1863; St James' Hall, Plymouth, 1870; Duke of York Public House, Cardiff, 1868.

As the vagueness of these dates made it almost impossible to get rebutting evidence, Mr Bradlaugh demurred to the plea on this ground, and in March 1881 his demurrer was heard by Mr Justice Grove and Mr Justice Lindley. Mr Moloney argued for Mr Bradlaugh that the plea was not sufficiently particular: it was only necessary to prove one occasion to justify the libel, hence evidence had to be brought to negative every case, and Mr Justice Grove, intervening, said, "If this plea is good, what is to prevent a party from pleading a volume of instances all possibly untrue, and at all events putting it upon the prosecutor to discover the particular instance really intended to be relied upon?" Sir H. Giffard argued that the plea was sufficient, but the Court did not agree with him. It held that the plea was

bad, and Mr Justice Lindley further said it was embarrassing and unfair. After some discussion the Court gave the defendant leave to amend within three weeks on payment of costs; otherwise judgment would be given for the Crown.

Edgcumbe now gave a series of more or less specific dates on which he alleged that Mr Bradlaugh had defied God. He also abandoned five of his former cases and introduced new ones at Bristol, Keighley, Leeds, and Stourbridge. He further stated that on two occasions, at the theatre at Northampton, Mr Bradlaugh had cast a Bible upon the ground and stamped upon it. My father was put to tremendous trouble in procuring witnesses from the different places, but he received help which he greatly appreciated from unexpected quarters—from Christians who had been present on some of the alleged occasions.

When, however, the time came, the defendant did not proceed to trial, as he was bound to under his recognisances. My father might have taken proceedings to estreat the recognisances; but as the *British Empire* had ceased to exist, and the editor had already been heavily fined by having to pay the costs of the demurrer, he was advised to let the matter rest. This course he was perhaps the more inclined to, as he was himself so terribly harassed by the litigation and trouble arising out of the Parliamentary struggle.

He was rewarded for his forbearance by having the "watch" story again repeated of him—notably by Mr Grantham, Q.C., M.P.,^[35]—with the addition that he had "not dared to go on with his action."

[Note.—Where exact references are not given in this chapter, the *National Reformer* is cited.]

CHAPTER IX.

OTHER FABLES.

There are other fables told about my father which have enjoyed a popularity almost equal to that of the famous watch episode. There is the allegation—referred to elsewhere—that he compared God with a monkey with three tails. This was started by the *Saturday Review* in 1867, and was for years continually reappearing in all sorts of unexpected quarters. Indeed, it was repeated as late as 1893 in a book published by Messrs Macmillan.^[36] Perhaps next in order should come two, which have seen considerable service as arguments in favour of Christianity. One, which I will call the "cob of coal" story, appeared for the first time, as far as I am aware, in a Leeds paper in 1870 in the following form:—

"Some time ago I heard an amusing story about Mr Bradlaugh and one of his audience at Wigan. After concluding his lecture, Mr Bradlaugh called upon any of them to reply to any of his arguments. Lancashire produces a rare crop of shrewd, intelligent working men, and one of these, a collier, rose and spoke somewhat as follows: 'Maister Bradlaugh, me and my mate Jim were both Methodys till one of these infidel chaps cam' this way. Jim turned infidel, and used to badger me about attending class-meetings and prayer-meetings, but one day in the pit a large cob of coal came down on Jim's 'yead.' Jim thought he was killed, and ah! man, but he did holler.' Then turning to Mr Bradlaugh, with a very whimsical, knowing look, he said, 'Young man, there's nowt like cobs of coal for knocking infidelity out of a man.' We need hardly say that the collier carried the audience with him."

This was copied into some London papers, and in the course of a couple of years found its way to Belfast; but the scene of action had now become changed from Wigan to Manchester. Two years later still it appeared at Hereford, under the auspices of the Rev. J. W. Bardsley. The "some time ago" of 1870 had contracted to "recently" by 1874, and there were other small alterations of detail. By 1882, my father said he had contradicted this anecdote fifty times at least. It never had the slightest foundation in fact; it is unadulterated fiction from beginning to end; it is absurdly improbable; and yet there are people so credulous that it has been repeated year after year, and even since my father's death. Indeed, the more childish this class

of story, the better it has seemed to satisfy those to whom it was addressed—at least, if we may judge of its success by the number of its repetitions.

The next is the "old woman" anecdote, which I find first in the *Christian Age* for November 1871, put in this way:—

"The other day Mr Bradlaugh was lecturing in a village in the north of England, and at the close he challenged discussion. Who should accept the challenge but an old, bent woman, in most antiquated attire, who went up to the lecturer and said, 'Sir, I have a question to put to you.' 'Well, my good woman, what is it?' 'Ten years ago,' she said, 'I was left a widow with eight children utterly unprovided for, and nothing to call my own but this Bible. By its direction, and looking to God for strength, I have been enabled to feed myself and family. I am now tottering to the grave; but I am perfectly happy, because I look forward to a life of immortality with Jesus in heaven. That's what my religion has done for me: what has your way of thinking done for you?' 'Well, my good lady,' rejoined the lecturer, 'I don't want to disturb your comfort, but—' 'Oh! that's not the question,' interrupted the woman, 'keep to the point, sir; what has your way of thinking done for you?'

"The infidel endeavoured to shirk the matter again; the feeling of the meeting gave vent to uproarious applause, and Mr Bradlaugh had to go away discomfited by an old woman."

This pious fiction is said to have originated with the Rev. Mr Bradbury, of Openshaw, in the early part of 1871; but then it was Mr Charles Watts who was the "discomfited infidel," and not Mr Bradlaugh. From the *Christian Age* the story was passed on, evidently without the slightest examination or care for its accuracy. In 1872 it was repeated in large type by the *Methodist Visitor*, word for word, "the other day" included. Mr Bradlaugh contradicted this idiotic story again and again; no such incident ever occurred at any of his lectures. In spite of all contradiction, however, the "old woman" remained as lively as ever, and my father was confronted with her year after year, until I almost wonder he had patience left to write a civil denial of her existence.

An anecdote, reported^[37] to have been told by the Rev. H. W. Webb-Peploe at a meeting of the Bible Society at Stroud in 1875, has at least the merit of being amusing, and certainly came as news to no one more than to the persons chiefly concerned. It was said that Spurgeon "went to Bradlaugh's Hall to reply to the Infidel," and to that end "read two or three texts from the Scriptures.... This seems to have astonished Bradlaugh, for he arose, and as he went out of the room, he said, 'What the devil is to be done with that man? he is in earnest.'" If the Rev. Charles Spurgeon ever, by any chance,

did go to "Bradlaugh's Hall," he carefully concealed his visit from "Bradlaugh."

Fictions concerning my father's treatment of various members of his family have been very common. By a painful coincidence, my little brother had only been a few days in his grave when my father was asked to contradict a statement that he had "about twelve months ago deserted his wife and children." Six months after, the story ran that he had "caused his mother to die of a broken heart," had been "drummed out of the army," and was "a man whose morality is of no higher stamp than to suffer himself to be the father of an illegitimate child." It is an interesting point in the study of the evolution of slanders, that this most persistent one of Mr Bradlaugh having caused his mother to die of a broken heart should have been started during his mother's lifetime.^[38] The allegation of deserting his children, and throwing them upon the parish, was published by Mr Edmund Yates in the *World* in 1875. A little later Mr Yates announced that Mr Bradlaugh had written him contradicting this, and suggesting that if on inquiry Mr Yates found his allegation untrue, he should contribute £5 to the Masonic Boys' School. The editor of the *World* formally expressed his regret, "unreservedly" withdrew his accusation, and contributed the £5. The suggestion was really the result of the intervention of a mutual friend, as Mr Yates himself acknowledged in 1891, at the same time admitting that the paragraph complained of would have afforded Mr Bradlaugh "ample grounds for appealing to the law, with the likelihood of recovering a large amount in damages."

But the slander thus floated by the *World* could not be effaced from the public mind, even by Mr Yates' "unreserved withdrawal," and later in the same year it turned up in full vigour at Oxford. A Mr Bendall went to the shop of a grocer and town councillor named Laker to make some purchases, and in the course of conversation he mentioned that he was going to London. Mr Laker asked if he was going to hear Moody and Sankey, but Mr Bendall said that he was not; he was going to hear Mr Bradlaugh. The man Laker then said, "Bradlaugh! he was had up for neglecting his family, and leaving them chargeable to the Union. I read it in the *Daily Telegraph*." Mr Bendall denied this, and bet Laker £50 to 5s. that it was not true. Laker took the bet, and Mr Bendall then wrote out the statement, which they both

signed. The paper was sent to Mr Bradlaugh, who eventually brought an action against Mr Laker.^[39]

The defendant pleaded "Not guilty," but did not attempt to justify his statement or to offer any apology, although Mr Bradlaugh said that, if during the course of the trial an apology had been offered, he should have been quite content.

Mr Grantham, the counsel for the defence, was very coarse in his remarks. He scouted the idea that "Bradlaugh" could be injured by any slander, and told the jury that, if they did give him a verdict, a farthing damages would be "far too much" at which to estimate the damage "Bradlaugh" had sustained. As usual, an endeavour was made to play upon the religious feelings of the jury, and when Mr Bendall was in the witness-box he was questioned as to his belief in Christianity, the Bible, and Jesus Christ, until Mr Justice Field, who heard the case, interfered and reproved the counsel for importing these questions into the case. Mr Grantham suggested the whole thing was a "plant," but this accusation, the judge later on pointed out, might rightfully increase the damages awarded.

Mr Justice Field, in summing up, complimented Mr Bradlaugh on the temperate manner in which he had stated his case, and warned the jury not to allow their judgments to be warped by topics of prejudice which had been introduced into the defendant's case. The jury returned a verdict for Mr Bradlaugh, with £40 damages, which my father at once handed over to a charity.

But even this did not quite kill the slander, and a few years later it began again to show signs of life.

There was no limit of any kind to the fictions circulated about my father, nothing was too vile, nothing too absurd, and nothing too wildly impossible to say about him. As an example of the last, I think it would be difficult to find anything to compare with one written by the London correspondent of the *New York Herald*, during the illness of the Prince of Wales from typhoid fever. I discovered an allusion to this story in looking over a file of the *Newcastle Weekly Chronicle* for 1872; reference was made to the *Pall Mall Gazette*, from which I learned that the London correspondent of the *New York Herald* professed that he had been informed by a mysterious person

"well posted" as to the doing of the different European Secret Societies, that "a certain leader of the English Revolutionists whom he designated 'The English Delescluze,' has over and over again declared from public platforms that the Prince should never sit on the throne, and that lately, when Queen Victoria was seriously ill, the same man had said in an interview with the reporter for a London paper, that although the event of the Sovereign's death occurring just then would without any doubt find the Society not quite prepared to act, yet that they could never lose such an opportunity to advance their cause." "This," commented the *Pall Mall Gazette*, "is, of course, an atrocious libel on Mr Bradlaugh." "The poison," continued the informant to his gaping listener, the *Herald's* London correspondent, "was a new and most subtle one. How the Prince was actually dosed he did not pretend to know. The emissary of the International charged with the execution of the sentence of death was left to himself, and was simply bidden to take as few innocent lives in carrying it out as possible; but it was suggested to him to mix the poison with the contents of the Prince's pocket flask, and this it was probable he had succeeded in doing." This marvellous story was received in England with the condemnation and ridicule it deserved, and I only give it here now to show to what lengths prejudice and a disordered imagination will lead a man.

I suppose it is only in the natural course of things that an Irish paper^[40] should have the funniest story, and one too that seems really original. This journal discovered that in the summer, when Republican agitation was slack, Mr Bradlaugh took up "the more useful—if less profitable—occupation of a bagman." Presumably this was intended to be severely sarcastic; it was only ridiculous and untrue.

At intervals throughout my father's career he has, of course, been constantly accused of being in the pay of some one or other. This kind of accusation is common to most public men, so it was not likely that he would escape. In 1872, when it was asserted that "Bradlaugh and Odger" were sold to "Gladstone and Morley," the *Saturday Review* thought it no shame to suggest that "perhaps after all there is some truth in the story."^[41] A few months before, said my father, it was "Bradlaugh was sold to the Tories, now it is the Whigs who have made the purchase;" and he mockingly regretted "that neither party have even paid a deposit." At other times he was charged with being in the pay of the Prince Napoleon, of the

Commune, of Sir Charles Dilke, of the Carlists, and, last of all, in that of the Maharajah of Cashmere. This was so much believed in, that a gentleman belonging to a prominent Liberal Club actually told me that it was a good thing my father died poor and in debt, as it, at least, discredited that rumour.

I do not profess to have by any means exhausted the list of fables associated with Mr Bradlaugh's name. I have merely taken a few of the more persistent or more remarkable as examples of the whole.

To expose the misstatements and the travesties of Mr Bradlaugh's opinions would require a whole volume. What he thought and what he taught on theological, political, and social questions will be found in his own writings, and his own words must necessarily be the most effective contradiction or confirmation of the "hearsays" of prejudice.

CHAPTER X.

PEACE DEMONSTRATIONS, 1878.

During the Russo-Turkish War great anxiety was shown by the Tories to drag England into the struggle; war songs were sung in the music halls; the old hatred of Russia was fanned into a blaze, and the new love of Turkey nourished into some sort of enthusiasm. The "Jingo" fever ran high, and the more peacefully-disposed seemed quite overwhelmed by the noise and clamour of the war party. Some of the working men of London, however, determined to make a public protest in favour of peace, and against those who were seeking to increase the burdens of the nation at a time when there were people dying of starvation in Wales, in Sheffield, and in the Forest of Dean. A meeting was consequently held on the afternoon of February 24th, in Hyde Park, in response to a general appeal made by the Hon. Auberon Herbert, Mr Ackrill, and Mr Bradlaugh on behalf of the working men's committee to the working men of the metropolis to resist the effort then being made to drag the country into an Eastern war.

There had been so much rowdyism at former meetings on this subject, that it was resolved to enrol a special force to prevent this one from being broken up by ruffianism. Mr Bradlaugh's special contingent was to consist of fifty marshals and five hundred deputy marshals, who wore his Northampton colours, and were furnished with "wands of office." It was not thought right to ask unarmed men to confront the brutality of the war-at-any-price men, who came armed with all manner of weapons; yet it was not desired to provoke an attack by any show of force, so after some deliberation it was decided that the marshals should be armed with short staves similar to the constables' truncheon. These the men were instructed to keep concealed, unless they were required for purposes of defence. Mr Herbert's special adherents were similarly armed, and wore a green favour.

Fearing a fight, my father would not allow us to go with him to the meeting, and would not be happy about our going at all, until we had promised not to get into the crowd. So we went to the Park early to watch the great masses

of men gathering quietly together, with neither bands, banners, nor procession, unless the clubs coming up in bodies could be called coming in procession. The mauve, white, and green rosettes—which we with a committee of ladies had so lately made—were soon conspicuous by their number; above them were smiling holiday faces, while below lay the formidable staves which we had helped to serve out that very morning, but of which not a sign could be seen, although we, who knew they were there, looked attentively for them. The platform was set up, surrounded by a ring of men with locked arms three or four deep. By and by groups of young men passed us armed with sticks, long and thick; these joined together in gangs, and amused themselves by making a series of brutal rushes, after the stupid aimless fashion of the "roughs" on Lord Mayor's Day. But these medical students—for the hospitals had been whipped up to turn out in aid of the Tory and the Turk—unlike their honoured exemplars, deliberately intended to injure.

The meeting was tremendous, orderly and quiet at first, and the applause which greeted Mr Herbert when he rose to preside showed that the majority were favourable to peace. Every facility had been given to the war-party to move an amendment; every courtesy had been shown them, and everything possible done to avoid a pretext for disturbance. But no pretext was necessary. Mr Herbert had barely begun to speak when an attack was made simultaneously on three sides of the ring; sticks flashed in the air, and staff replied to stick with such energy that the attack on two sides was repelled; that at the back, however, was successful, the ring was broken through, and the platform destroyed. In spite of all this, Mr Bradlaugh succeeded in putting the resolution, and all those within hearing voted for it; but the tumult was so great that it was impossible to guess how much was heard or understood.

My sister and I stood by the water breathlessly watching a dense mass of men with sticks in air struggling slowly towards the gate, feeling sure that Mr Bradlaugh must be the centre of a great display of enmity; and people even cried to us, "Your father is there. He will be killed! he will be killed!" And while we were watching, we ourselves nearly became involved in a rush of the war-party from another direction. Frantic cries of "Duck him! The water! Duck him!" made us glance round, and we found we had only just time to escape. When we had reached a place of safety, and were able

to look round again, the fighting mass was broken up; and learning from some one, whom my father had told to seek us, that he was unhurt and had gone home, we also hastened to make the best of our way back. We learned that none of our own friends were seriously hurt; and the hearty and repeated bursts of cheering at my father's appearance where he lectured that night marked the relief felt at seeing him safe and unhurt.

Mr Bradlaugh had held many meetings in Hyde Park, but he had never had one broken up. He had had a magnificent gathering in 1875 to protest against the grant of £142,000 to the Prince of Wales for his journey to India, but all had been quiet and orderly. Now, neither he nor those with whom he was acting liked the idea of their demonstration for peace ending in this way, so it was determined to make another attempt. The war party, however, who stood at nothing, determined to break up this meeting also. An assault upon the leaders of the Peace movement was deliberately planned, and Mr Bradlaugh afterwards obtained the names of certain Tories who had paid and instigated the assailants. On this occasion—Sunday, the 10th of March—no attempt was made to set up a proper platform, but there were human volunteers for a living one—no light matter when it came to bearing a man of Mr Bradlaugh's inches. Mr Herbert briefly stated the object of the meeting, and called upon my father to move the resolution, and from the shoulders of his living platform he moved "that the meeting declares in favour of peace," and the resolution was forthwith seconded, formally put, and voted upon with but few dissentients. So far all was well, and the meeting was dissolved. Upon this, however, there immediately began a series of regularly-organised attacks by paid roughs, militia-men, medical students, and "gentlemen." Armed with sticks, pieces of twisted gas-piping, sharpened iron, loaded bludgeons, and other weapons, they were a truly gallant company. Some of the defending staves were ominously cut and dug into by the sharp and pointed instruments used by the attacking party. For a few minutes the fighting was severe; my father for an instant was taken off his feet in the struggle, and his upraised arm caught the murderous rain of blows intended for his head. Up again almost at once, and having the fight thus forced upon him, he struck five blows in reply, which were said to have sent as many men to St George's Hospital. Those were the only blows he struck that day, the rest of the time he merely warded off any aimed at himself. One man attacked his head with some sharp iron instrument fastened to a long stick, which cut his silk hat through from crown to rim. A

brave little party of "swells" attacked him at the back, but these were attended to by his working-men friends. This assault by the war party was as wanton as it was vicious, because the meeting was over, and had already begun to quietly disperse.

A few weeks later stories were current that Mr Bradlaugh's staff was taken from him by a young man "half his size;" and a couple of Scotch papers seriously reported that he had had to pay £72, 11s. for breaking the head of another young man. He never heard of any one who had persuaded a court to value his broken head even at the odd 11s.; and as for the staff, Mr Bradlaugh gave it to us after the meetings, and I have it now, together with a number of torn Jingo flags and broken Jingo sticks that were brought to us as trophies of the fight.

The blows showered down upon Mr Bradlaugh's arm had injured it very severely; a dangerous attack of erysipelas set in; he was very ill, and for sixteen days he was confined to the house. Even then he went to the Old Bailey in Mr Truelove's case before he ought to have gone out. He was ill and depressed; the nation seemed so eager for war; the wanton ferocity exhibited and encouraged in Hyde Park in the cause of war made him for the moment almost hopeless. He looked on "in sadness while the people suffer a Tory Government to create the possibilities of debt, dishonour, and disgraceful defeat, or still more disgraceful victory;" and once more he raised his personal protest in favour of peace. Although, as matters fell out, we did not go to war, we nevertheless decided upon having the pleasure of paying for it. As it was aptly put, the game as determined upon by Lord Beaconsfield was "Pay first; fight next; afterwards, if you have time, you can fix upon the object to be attained."

CHAPTER XI.

THE NATIONAL SECULAR SOCIETY.

I am now closely approaching the end of my task, and as yet I have only mentioned the National Secular Society incidentally. To leave it without further notice would be doing scant justice both to my father and to the association with which he worked so actively, and with which his name must ever remain connected, whatever its future history may be.

The National Secular Society has sometimes been confounded with the London Secular Society, of which Mr George Jacob Holyoake and Mr Bradlaugh were successively presidents; but that was merely a London Society, and not a general association. Indeed, I believe there had never been any general association of the Freethinkers of Great Britain until 1866, when it was felt that some endeavour should be made to organise them. There were local secular Societies all over the kingdom, there were isolated Freethinkers to be found everywhere, but hitherto there had been no attempt to unite them into one general federation. Without organisation much propagandist work had been done: in a single year, for instance, 250,000 tracts were distributed; with organisation it was believed that much more might be accomplished. But propaganda was by no means the only object to be gained by uniting Freethinkers in one general society. In September a provisional programme for the proposed National Secular Society was put forward. Mr Bradlaugh by consent assumed the office of President of the Society until the first Conference. In the programme it was stated that the objects of the Society would be:—

To form an Association for mutual help for all the Freethinkers of Great Britain.

To conduct in the United Kingdom a more vigorous Freethought propaganda, especially in districts where Freethinkers are few, and Freethought lectures rare.

To establish a fund for the assistance of aged or distressed Freethinkers.

To promote Parliamentary and other action in order to remove all disabilities on account of religious opinions.

To establish secular schools and adult instruction classes in connection with every local society having members enough to support such schools or classes.

The idea of a National Society was well taken up, and members were enrolled in all directions. It was intended to hold a Conference early in the following year, but this was postponed, partly on account of Mr Bradlaugh's ill-health, and did not actually take place until the end of November, when it was found that the Society had made a very successful start in life—a success which was fully confirmed by the time the Conference met again a year later. A special Lecturing Fund was established in 1867, and by the aid of this the accredited lecturers of the Society went into places where the Freethinkers were too poor and too few to themselves bear the whole expenses of a meeting; and in this way towns and villages were visited by a Freethought lecturer where before Freethought was almost unheard of. The provisional statement of the principles and objects of the Society was very soon amended in some minor details, and ten or twelve years later a Revision Committee was appointed and the rules newly stated.

In 1869 the Society brought out the first Secular almanack ever published. It was edited by "Charles Bradlaugh and Austin Holyoake," and met with an immediate and complete success, transcending even the hopes of its promoters, the first edition being sold out in one day. This almanack has been continued without intermission until the present time. At Mr Austin Holyoake's death, Mr Charles Watts became co-editor with Mr Bradlaugh, and in 1878 he was superseded by Mrs Annie Besant. When Mr Bradlaugh resigned his office as President of the National Secular Society—in 1890, after his serious illness of the previous winter—the new President, Mr G. W. Foote, became editor of the almanack in conjunction with Mr J. M. Wheeler.

With the exception of the year 1872, when Mr Arthur Trevelyan, J.P., was elected President, Mr Bradlaugh held the chief office of the Society from the time of its foundation until his resignation, and it was always a source of immense pride to him that he was chosen representative of the Freethinkers of Great Britain and Ireland. He laboured untiringly for the Society; not merely for the organisation as a whole, but for the separate branches and for the individuals which comprised it. "During thirty years," he said on the day he resigned, "I think I may say I have never refused any help to any branch that I thought was justified in asking for help."

He never held any paid office, but on the contrary often paid money out of his own pocket for the purposes of the Association. He estimated that the

sum he had earned and given in actual cash to the Society and its branches during the time he was connected with it amounted to £3000. The Society, on its side, released him and Mrs Besant from a payment of £420^[42] due to it at the time of his resignation.

His yearly Conference reports, although they make no pretence at being detailed records, are yet landmarks, as it were, of the work accomplished by the Society; his yearly Conference speeches^[43] often give the most vivid glimpses of himself, of his pride in work accomplished, and his aspirations for work yet undone. Often, too, their terse and moving language reveals the truest, most unstudied eloquence.

The National Secular Society proved itself an organisation of the utmost value, not merely as a propagandist association, but in all cases in any degree connected with the Freethought movement where combined action was required. When Mrs Besant was deprived of her child; at the time of Mr Bradlaugh's Parliamentary struggle, with its countless phases; during the prosecutions for blasphemy, and on many other occasions, meetings were held or petitions were got up simultaneously all over the country. The members of the Society were and are nearly all poor men and women; but what they have lacked in riches they have made up in energy; what they could not contribute in money, they have given eagerly and cheerfully in work.

Many people misconstrued Mr Bradlaugh's reason for resigning his office as President of the National Secular Society. Some said he made a choice between his Freethought and his Parliamentary work, and selected the latter; others said he had long been gradually subordinating his anti-theological work to his political work, with a view to dropping the former; others, that his action was entirely due to a modification in his heretical opinions; and others again said that he was not in harmony with the members of the Society. The truth was so obvious and so simple that all seemed loth to accept it, and searched for complicated motives under the plain facts. At the special Conference summoned to receive his resignation, Mr Bradlaugh gave his reasons in a voice which was low and faltering, as much from the feelings which overcame him as from his recent illness.

"With very slight break," he said, "I have led in this movement for over thirty years—a fairly long period in any life. I have been President of the

Society, with the same slight break, since the Society began, and I am very sorry, very sorry, to resign office this morning. Unfortunately, while the work was never easy, it has become much harder since 1880, with the Parliamentary struggle and the litigation in which the struggle involved me. I have felt for the past three or four years—and I think I have conveyed that feeling to you in my annual speeches—that the pressure must sooner or later bring a breakdown. Last October that breakdown came, and the wonder is that I am here to tender you my resignation at all. I was then brought face to face with the difficulty that I could no longer do all the work I had done.... No resource is then open to me but to resign. Some kind friends have suggested that I might hold the office nominally.... But I could not do that; I must be a real President or none. My fault has been that I have sometimes been too real a one, but it is no easy matter to lead such a voluntary movement as ours.... I don't want to leave you. I could not take any other office in the Society after having been so long your President; but if you thought it right to elect me a member for life, I should be grateful to you for doing it."

In this statement from Mr Bradlaugh's own lips is contained the whole and sole reason for his resignation. To be a "real" President of the National Secular Society involved the performance of a vast amount of labour, the greater part of which was unrecognised and unseen. This he felt had become beyond his powers; it was not in him to bear the name and let others do the work; in giving up the duties of his position he must also give up its honours. Only those who knew the pride he had always felt in holding this office of President of the associated Freethinkers of the nation knew the pain it cost him to lay that office down.

CHAPTER XII.

THE LAST CHAPTER.

The year 1880 saw the last of the long struggle in Northampton and the beginning of that in the House of Commons. For twelve years my father fought prejudice and misrepresentation in Northampton, for six years longer he had to fight prejudice and misrepresentation in the House of Commons. But the shorter fight was the harder one; it was carried on incessantly, without the slightest intermission. It was a terrible six years. The litigation alone is something appalling; in that time eight suits were begun and ended.

First there was the libel suit against Edgcumbe, which dragged on for more than a year, and ended in nothing.

Second came *Clarke v. Bradlaugh*. This was an action for penalties against Mr Bradlaugh for having sat and voted without taking the oath. Commenced in July 1880, it came before the judges six times, and was ultimately decided in favour of Mr Bradlaugh in April 1883.

Third—*Bradlaugh v. Newdegate*. An action for maintenance brought by Mr Bradlaugh against Mr Newdegate, and decided in favour of the former in April 1883.

Fourth—*The Queen (Sir Henry Tyler) v. Bradlaugh, Foote, and Ramsey*. An action for blasphemy, decided in Mr Bradlaugh's favour in April 1883.^[44]

Fifth—*Bradlaugh v. Erskine*. An action against the Deputy-Sergeant-at-Arms for assault, in removing Mr Bradlaugh from the lobby of the House of Commons on August 3, 1881.^[45] Commenced in April 1882, this suit was decided against Mr Bradlaugh in January 1883. In March the Government enforced their claim for costs against him.

Sixth—*Gurney v. Bradlaugh*. A suit entered upon by Mr Gurney of Northampton, to try the validity of the conduct of the majority of the House in preventing Mr Bradlaugh from taking the oath and his seat in the House. Mr Justice Mathew discharged the jury, refusing to hear the case on the ground that it was a collusive action.

Seventh—Bradlaugh v. Gossett. In July 1883 Mr Bradlaugh applied for an injunction to restrain the Sergeant-at-Arms from using physical force to prevent him from entering the House. Decided against Mr Bradlaugh in the February of the following year.

Eighth—Attorney-General v. Bradlaugh. An action for penalties against Mr Bradlaugh for having sat and voted without having subscribed the oath. This case was heard at bar, and judgment given for the Attorney-General. This was appealed against, and the matter settled in October 1880; Mr Bradlaugh paid his own costs, but nothing further.^[46]

All these lawsuits, each involving the discussion of points of the greatest intricacy, and in which my father's brain was pitted against those of some of the greatest lawyers in England, would have been enough to tax the powers of any ordinary man, even if he had had no other struggles. But in these six years there were many other struggles; there were six elections, most of which were carried on under extremely harassing conditions. It was one constant battle within the walls of the House and without, and in the blind fury of their rage his antagonists spared neither my father nor any one whose name was associated with his. Sir Henry Tyler proceeded against Mr Foote and Mr Ramsay for blasphemy, only because along with them he hoped to be able to drag Mr Bradlaugh down. Sir Henry Tyler tried to deprive my sister and myself, as well as Mrs Besant and Dr Aveling, of our right to teach under the Science and Art Department, only because he hoped to wound Mr Bradlaugh by an attack upon his daughters^[47] and his friends. The Somerville Club (at the instigation of Miss Eliza Orme) refused to accept the daughters of Charles Bradlaugh as members.^[48] University College would not permit my sister Alice—a woman of stainless honour and of the highest character—and Mrs Besant to study botany within its walls;^[49] the National Liberal Club, having actually invited Mr Bradlaugh to become a member, insulted him by refusing to elect him.^[50]

The country was flooded with literature making the most infamous charges against him, and in the name of religion men went from town to town to preach against him. Even Cardinal Manning, a prince of the greatest Church in Christendom, was not too exalted to stoop to cast his stone at the despised Atheist. Within the precincts of the great Commons House itself he had to sit in silence, with no right of reply, whilst he heard his character assailed, and those who worked with him basely slandered. Within those

same historic walls he was set upon and terribly ill-used by officials, ordered to their work by gentlemen claiming to represent the nation. I was at Westminster on the day which witnessed this strange example of the boasted "English love of fair play." I tremble as I recall it.

We went to Westminster by train, my sister and I, with Mrs Besant and some friends of hers. The sight which met our eyes as we came out of the station was one not to be readily forgotten; immense masses of orderly men and women kept easily within certain limits by a thin line of police. There was a quick recognition of us as we passed along by friends from all parts of the country, who gave us grave and serious greeting. At the gates of Palace Yard we were challenged by the police, but allowed to pass on presenting our petition, and going on to Westminster Hall we found it occupied by little groups of men from all corners of England.^[51] These groups grew and grew, until the great hall seemed full, and voices were heard on all sides crying, "Petition," "Petition." At the head of the steps near the door leading to the lobby we took up our position. By-and-by an agonising rumour flew through the Hall, "They are killing him; they are killing him!" and swift on the heels of this came the angry cry, again and again repeated, "To the House!" and with this, the surging forward of the crowd. So few police had been spared to guard this entrance that they would have been absolutely powerless to resist these men—not London "roughs," but the pick of the London clubs, and, more formidable still, men from many a Midland town, and from many a North country pit and factory, whose hearts were bound up in my father, and who had come to London that day to petition for justice. The police command, "Keep back!" fell upon deaf ears. My sister and I involuntarily put ourselves in front of the doors, facing the crowd. Mrs Besant sprang forward, and in a few impassioned words she begged them to consider what Mr Bradlaugh's wishes would be. The effect was instantaneous. The foremost fell back, and kept others back till all were self-controlled once more; but the white, set faces told of the struggle in their hearts. "But we *can't* stay here and know he is being murdered, and do nothing to help him," said one in a choking voice. Some terrible minutes passed, but there was no further attempt to pass through the doors. By-and-by a message reached us from my father that he was gone to Stonecutter Street, and that we were to join him there. At Stonecutter Street we found him quite calm and self-possessed, but his coat hanging in rents,

his ashen face and still quivering flesh telling the tale of the struggle he had just passed through.

In a few days he fell very ill. The small muscles of both arms were ruptured; erysipelas supervened, and the left arm was very bad indeed, needing constant attention by day and night. All day long from early morning to the small hours of the next day there were people calling, some friendly and some very much otherwise, besides press men and persons on business. My father had no rest, and one day the physician said, "You will never get well, Mr Bradlaugh, if you don't get out of this room."

"You wish me to go away?" asked my father.

"Yes."

"When?"

"At once."

"I will go to-day," was the characteristic reply.

I packed up the necessary baggage, a fly was ordered to take us to the station, and at Mrs Besant's suggestion it was decided to go to Eastbourne. I was nursing my father, so I went with him, while for a day or so my sister remained behind to attend to things at home. Mrs Besant accompanied us. On the way to the station my father, who was feeling very ill and very depressed, said he did not care to go to Eastbourne—it was too fashionable; so I took the map from the railway guide and called over the names of places on the South Coast until he stopped me at Worthing, and then we turned about to go to there instead of to Eastbourne. My father had both arms in slings, and at the station Mrs Besant and I had to walk one each side of him to protect them from the impertinent and the unfeeling who crowded round to stare at him. Arrived at Worthing, we got into a cab, asking the driver if he could recommend us to a quiet hotel; he looked compassionately at the only too evidently sick man, and said he thought West Worthing would suit us best. Whilst he was getting the luggage, a clergyman whom we had seen inside the station came out, and walking up to the open cab stared rudely at my father, and as he turned away said loudly, for us to hear, "That's Bradlaugh; I hope they'll make it warm for him yet."

West Worthing did suit us, as the cabman surmised; my father's health daily improved, and indeed there is little doubt that his timely removal to this quiet spot saved his life for the time. After a few days my sister joined us, and we all felt the better for the change, as much from the momentary respite as from the fresh air and sea breeze.

The expenses of the litigation and the various elections were enormous, both directly and indirectly. Although eventually Mr Newdegate had to bear the whole of the costs in the suit which he brought against Mr Bradlaugh, yet the latter had to find several hundred pounds—about £725 in all—to pay into court at different times. These sums were ultimately repaid to him, but liabilities had to be incurred to produce them at the required moments. The shorthand notes in the three days' appeal from the trial at bar alone cost him £50. In the case of *Bradlaugh v. Erskine*, in which the House of Commons defended its officer, the Government made Mr Bradlaugh pay the costs, under the circumstances a very harsh and unusual proceeding. Very little time was allowed to elapse before the claim was insisted upon, and to find the money my father had to choose between more borrowing and selling his library. Yet if the motion carried unanimously and "amid cheers" on the 27th January 1891 means anything, it is an acknowledgment that the House was in the wrong when it instructed its officer to prevent Mr Bradlaugh by force from obeying the law. It was not merely the direct cost, however; there were the indirect penalties also. For instance, in February 1885, after the appeal from the trial at bar (which, with its subsequent proceedings alone covered thirteen days), my father spoke of the worry and uncertainty which had "for months arrested nearly all my means of earning money." People were always subscribing in an endeavour to pay for him the expenses they knew of, and many were the sacrifices some of them made in their eager desire to help. One old Yorkshire miner, who had been sorely troubled that times were so hard with him that he could spare nothing, one day came triumphantly to his friend saying, "I have made it all right; I will go without the half pint for a week, and send it to the lad."^[52] Many cut down their usual allowance of tobacco, and some went altogether without. One poor man sent his silver watch, the only thing of value which he possessed; some people in London, touched at hearing of this sacrifice, offered to join together to buy him a gold one in acknowledgment of it, but he would not hear of it. Several times I have known a cabman refuse to take

his fare.^[53] Many poor people sent their small subscriptions weekly or monthly. But my father always worried about these funds; he could not bear the thought of his poor friends denying themselves their little luxuries, or even perhaps their necessities, and he always promptly closed a fund when it had been open some fixed time or directly the specific sum was reached.

A constant accusation brought against Mr Bradlaugh was that of living in aristocratic style,^[54] and of having a most enormous income.^[55] As a matter of fact, he had no income other than what he earned from day to day, and his habits and mode of life at Circus Road were of the simplest possible kind. His bedroom was very small, about 10 feet by 9 feet, with just room for his bedstead, chest of drawers, wash-stand, and a couple of chairs. His library, on the first floor after 1880, was a very large room with five windows to it; but spacious as it was, it was by no means too large for his books. The room was shelved all round to the very edges of the windows, except just over the fireplace; and there were also three sets of movable shelves on the floor of the room. The furniture was quite simple—just a desk, writing-tables, cane-seated chairs, my father's two old oaken arm-chairs from Tottenham, and an easy chair, which was bought specially for him one time when he was not well. There was no other "easy" chair in the house, and only one small sofa—really a bedroom lounge—which my sister bought for me one morning when I was ailing. I doubt whether the whole of my father's furniture would have fetched five-and-twenty pounds at a sale. Our meals we had downstairs in a very dark basement room under our landlord's music shop, and here the blue books were also stored.

My father's habits were as simple as his surroundings. He was an early riser, and at whatever time he got home at night he was in his study soon after seven in the morning. Even when he was not home from the House of Commons till four o'clock in the morning, it was seldom he lay in bed after eight. He had a cup of tea as soon as he was down, and he worked at his desk until breakfast-time, which he liked punctually at eight. If he was more than usually busy or worried, he asked for his breakfast to be brought to his study, and he would take it as he worked; but my sister and I always affected to be vexed if he did this, because we liked to get him away from his work and into another room for his meals. About the middle of 1877 his ever-increasing correspondence obliged him to have regular clerical assistance, and his secretary came at nine. He was in to callers until ten or

half-past. This was the time he saw people who wanted to consult him on legal or private matters: he listened patiently to their troubles, and often gave them most helpful advice how to get out of them. All sorts of difficulties were confided to him—family troubles, dissensions between husband and wife, between employer and employed; great troubles and small were brought to him, and those who brought them were sure of a sympathetic and patient listener, and a confidant to whom they could unreservedly open their hearts.

If Mr Bradlaugh did not have to attend a Committee of the House he would have his dinner (or "lunch," as it was indifferently called) at half-past twelve, and this was followed by a cup of tea in his library; if he were in all day, he had his afternoon tea (just a cup of tea and a crust of bread and butter) at four, and his supper about seven or half-past seven. At his dinner and supper he drank hock or burgundy.^[56] Often after supper there would be a little pleasant chat, sometimes a game of chess, and, more rarely, whist with a dummy. If my father was too tired or too worried for any of these, he would go to bed as early as half-past eight or nine, lie and read for a while, and then sleep soundly until morning. Of course it was not often he could do this, for his evenings were usually spent in lecturing or at the House of Commons.^[57] The only time during the session which he could rely upon for seeing callers, answering letters,^[58] and earning his living, was from seven A.M. until the time he left for the House. Saturday evening and Sundays were generally employed in lecturing. Until 1884 his holidays were of the rarest and the shortest. In that year he first went fishing at Loch Long. At the suggestion of some Scotch friends, a cottage was taken for a month that summer at Portincaple, a lovely and secluded spot just opposite Loch Goil. My sister and I and a Scotch lady, Miss Lees, stayed the whole time; different friends came and went, and my father spent a week fishing. The cottage belonged to Finlay M'Nab, fisherman and ferryman, and had belonged to his father and grandfather before him. On nearly all Mr Bradlaugh's fishing expeditions Finlay M'Nab was his boatman. They would go off just after breakfast, or sometimes even earlier, get dinner at Carrick Castle or Ardentinny, and come home at sunset with a big bag of fish. After 1884 we went to Portincaple several summers in succession, and then Mr Bradlaugh took to going there in the Easter and Whitsun recess, and for a few days after Parliament rose. On these occasions he went alone, but Mrs M'Nab attended to all his comforts indoors as though he were at

home, and outdoors her husband looked after the bait and the boat—except on Sundays; then, my father had to content himself with the dangerous amusement of fishing from the rocks, whilst Finlay looked wistfully on.

Mr Bradlaugh was a very even-tempered man, and those who waited on him usually served him eagerly. He never found fault unnecessarily, and provided an attempt was well meant, it mattered little, as far as his behaviour went, if the result was not equal to the intention. He was most generous and tender-hearted, except to those who had wantonly taken advantage of the confidence he reposed in them to deceive him. Such persons called him hard and unrelenting, for even if he forgave them they never again held quite the same place in his esteem. Some critics have said he was a man of unrestrained passions; others have said he was absolutely passionless. Neither is right. He was a man of very strong feelings, but he had an iron will. At a critical moment in his life, when he was greatly tempted to follow a certain course, a friend urged upon him that if he did he would injure the work he had at heart. My father replied by stretching out his arm, and closing his fingers over an imagined object. "I have not a passion," he said, "that I could not crush as easily as an egg within my hand if it were necessary for the good of the cause I love." And he was true to his word.

In 1877 when Mr Bradlaugh severed his business connection with Mr C. Watts, he started, as I have said, a publishing business in connection with Mrs Annie Besant, under the style of the Freethought Publishing Company. The business premises were at Stonecutter Street, E.C., and here, with small premises, a small staff, and a small rent, the Company did fairly well. In 1882, however, my father was induced against his better judgment to lease a shop at the corner of Fleet Street and Bouverie Street (now occupied by the Black and White Company). Here the premises were large and the rent heavy. To make matters worse, about a couple of years later, owing to the financial difficulties of his landlord, he was reluctantly obliged to take up the remainder of the lease of the whole building, and thus he became saddled with the rent and taxes—amounting to more than seven hundred per annum—and the responsibility of a great house in the city. In order to raise the capital required to meet these expenses, Mr Bradlaugh with Mrs Besant issued debenture stock to the amount of four or five thousand pounds, the interest on which was paid with unfailing regularity until my father's death.

But as he had feared, the business at Fleet Street did not thrive sufficiently to support so large an establishment; the greater part of it had always been, and was then, a postal business, hence it could be carried on as well in a little shop in a side street as in a large corner shop in such a thoroughfare. The details of the managership of the publishing department were in the hands of Mrs Besant and my sister Alice, but as both were without the least experience in business, my father was the final referee on all matters, and it was he of course who had to provide for quarter-day with its heavy rent, taxes, and debenture interest.

In 1884, unable to let the upper portion of the building, Mr Bradlaugh decided to utilise it himself by setting up a printing-office, and doing his own printing. This department was put under the control of Mr Bonner, to whom I was then engaged to be married. As my husband was already familiar with the management of a printing-office, Mr Bradlaugh's only trouble with this branch of his business was in finding the money, and this was not a great anxiety, as it paid for itself from the very first. It is true the profits were never great, for the prejudice against giving work to any establishment connected with the name of Bradlaugh at first limited the work almost to the printing of his own publications. My father was very glad to be saved responsibility, even in this small matter for, as he often said, he had never intended to become a publisher, and he had never intended to become a printer; he had so many things on his hands that he had time neither for one nor the other; he had, in fact, no inclination for commercial pursuits: they had always been forced upon him by circumstances.

When it was known that I was going to attempt some story of my father's life, there were many things I was told that I must not fail to mention. Amongst others, one friend said: "You must not fail to notice that Mr Bradlaugh was an essentially grateful man; he never forgot the smallest favour or the smallest kindness that was shown him." That is absolutely true; he could forget most injuries, "his heart was as great as the world," but it was not large enough "to hold the memory of a wrong;" a kindness he never forgot.^[59] When John Bright pledged himself in the House of Commons for my father, the latter was greatly affected, and speaking to us in private about it was quite overcome. He had disagreed often with John Bright, and had sometimes spoken his disagreement with the utmost

frankness; later on they were opposed upon the subject of Home Rule, but after the day when that lion-hearted old man so unexpectedly and so courageously spoke on his behalf, Mr Bradlaugh never mentioned his name save with the most profound respect and gratitude. And yet this trait of gratitude, so strong in himself, he never seemed to expect in others; or at least he seldom showed surprise at its absence. He once helped to Baltimore a Russian prisoner, escaped from Siberia, who had come to him with letters from Continental friends. The months rolled by, and nothing further was heard of the man. A great deal had been done for him, and one day I expressed myself very strongly on his ingratitude. My father stopped me by quietly saying that I must learn to do a right thing just because it was right, and not because I expected gratitude or any other reward for what I did. I felt the rebuke keenly, but I had nothing to say, for I instantly realised that he preached to me no more than he himself practised.

It is remarkable how quickly Mr Bradlaugh made his personality felt when once he was allowed to sit quietly in Parliament. Some persons had sneeringly said that he would "soon find his level," or that he would "soon sink into obscurity," but he rapidly proved that he at least did not regard the House of Commons merely as "the best club in England." His patience in mastering details, his perseverance and persistence in what he undertook, and the work he accomplished, were all so notable that he had sat in the House barely one year when the possibility of a seat for him in the next Radical ministry began to be discussed.^[60] His constant attendance at the House and at Committees—and he was rarely absent—interfered greatly with his lecturing in the provinces during the session, although almost every available evening was utilised for London and suburban lectures, many of which were given away.^[61] In consequence of this he was driven more and more to rely upon his pen as a means of earning money. It was always easier to him to speak than to write upon a subject. His style was terse and direct; his thoughts and his words came so fast that a verbatim report of an hour's speech filled several newspaper columns. His gestures, his expression, the modulation of his voice, pointed and explained his spoken words. But it nearly always irked him to write long upon a subject; his letters were for the most part models of brevity, and he tended to make his articles brief also. If a magazine editor asked him to write an article of six

thousand words, and he had said all he wanted to say at that moment in four or five thousand, he hated to add to it, and often, indeed, he would not.

By incessant labour my father earned a fair income, but he could not keep pace with his heavy expenses, and the burden of his debts each year weighed upon him more and more heavily. He would sigh regretfully that he was not so young as he used to be, and these things troubled him more than formerly. At the end of August 1888, writing his "Rough Notes" in the *National Reformer*, he said: "Many folks write me as though now Parliament stood adjourned, I could be easily taking holiday and rest. I wish this were possible, but in truth I have to work very hard to reduce my debts and live. I shall, I hope, have four and a half days' fishing in Loch Long from mid-day on Monday, September 3rd, to the morning of Saturday the 8th, but this short holiday is more than counterbalanced by the heavy lecturing work of the recess. This week, for example, I address seven meetings; next week eight. Many write to me to give lectures in aid of branches, clubs, and associations, and I do help very often, but surely it is not necessary for me to constantly repeat that my only means are those I earn from day to day by tongue and pen. My great trouble now is lest I should be unable to earn enough to meet my many heavy obligations, in which case I should be most reluctantly obliged to relinquish my Parliamentary career."

This "Note" had a most unexpected result; it was reproduced with generous comments in the press, and a committee was formed to raise a fund to clear off the balance of £1500 of debt still remaining from the six years' Parliamentary struggle. This fund was only open one month, until October 1st,^[62] and in that short time £2490 was subscribed in sums varying from 1d. to £200. Now at last my father seemed to be getting into smooth waters; the only financial burdens left upon him were in connection with his business, and these he hoped to gradually lighten. But within a few weeks he had to face a new trouble. On the 16th November my sister Alice was taken very ill with typhoid fever at Circus Road; for the sake of greater quiet, we moved her to my rooms at 19 Avenue Road, where, meningitis having supervened, she died on 2nd December. She expressly asked that in the case of her death she should be cremated, and we were most anxious to carry out her wishes, but the Woking Crematorium was then undergoing structural alterations, and it was not possible to do so. This short and

unexpected illness, with its fatal termination, was a great shock to Mr Bradlaugh, and I went to him at Circus Road the next morning as soon as I could get away. I found him terribly depressed, working in his room in a bad atmosphere, with the gas alight and all the blinds down. Knowing how he ordinarily shrank from any outward display of his feelings, and especially how much he disliked mere form, I said, "Why, how is this? Why have you pulled all the blinds down?" He said brokenly, "They [the servants] did it; I thought it might be your wish." I put out the gas, drew up the blinds, and opened a window for a few moments to let in a little fresh air. He was himself out of health, and I did not like to see him sitting there in that close and heated atmosphere. I asked if he was going to the House? No; he did not think he should, he replied. I urged him to go, believing it was the best thing he could do. He did go, but he could not stay long; somehow an announcement of my sister's death had got into the papers, and Members sympathised with him in his sorrow in such kindly fashion that he was obliged to come away lest he should break down. A night or two later he made his speech in reply to Mr Broadhurst on the Employers' Liability Bill, and if his words had in them somewhat more of acerbity than usual, I often think that it was in a measure due to the biting pain of his own grief.

On the 5th my sister was buried at the Brookwood Necropolis, where already some members of our family lay. Many who had known her, and whose lives had been helped by hers, begged that there might be a public funeral; but my father shrank from exposing his sorrow even to the most sympathetic of friends, and we quietly and silently laid her in her last resting-place, where, alas! she was so soon to be joined by her stricken father. Her death was not allowed to pass without the Christian commonplaces as to "the miserable barrenness of the sceptic's theories" in the presence of domestic calamities; and Mr Bradlaugh asked what would be thought of him if at a similar hour he should obtrude upon some Christian some mocking word upon the horrors of the theory that "many are called and few are chosen"?

My husband and I now went to live at Circus Road, and as my father was suddenly without a secretary, I filled the post while he was seeking a fresh one. I had given up the class teaching, in which I had been for many years associated with my sister, having thus a certain amount of leisure, and finding I could manage all that was wanted, I begged him to let me continue

his work. I liked to feel I was helping him, if only in the mechanical way of writing at his dictation.

During the later years of his life, Mr Bradlaugh was often out of health and suffered a great deal, especially in the arm so badly injured on the 3rd August 1881. The strain—mental as well as physical—of the six years 1880-85 had been tremendous.^[63] But a week at Loch Long with Finlay M'Nab and his rod and line seemed to restore him to health again; we never thought of anything serious, he appeared so big and strong. In October 1889, however, he fell ill—so ill that for some time it seemed doubtful whether he would recover, but thanks to the skill of his old physician Dr Ramskill, and the assiduous care of his friend and colleague on the Vaccination Commission, Dr W. J. Collins, he gradually struggled back to life once more. It was thought that his health would be greatly benefited by a voyage to India, and therefore he decided to attend the Fifth National Congress in Bombay. Mr M'Ewan, M.P., who was then enjoying a holiday abroad, sent Mr Bradlaugh a cheque for £200 so that money difficulties should not hinder him from following the doctor's advice; and with the cheque, Mr M'Ewan sent a most delicately worded letter, which touched the sick man to the heart.

The shadows of death lay very close to him, and he had a hard fight back to the light again, but he longed ardently to live. There was so much that he had put his hand to, which the position he had now won in the House would enable him to do with comparative ease. As he lay in his bed in his study^[64] he turned over and over in his mind plans by which he might economise his strength in the future. It was quite clear that he must do less lecturing, and must depend more and more on his pen. He resolved to try and sell the remainder of the Fleet Street lease, and to give up his publishing business; he also planned to gradually pay off the debenture-holders, and when it was free from all money entanglements, to hand over the printing plant to my husband to carry on the business in his own name and on his own responsibility. One thing he felt he could do immediately. After he had been lying very quiet for some time, he startled me one day by suddenly saying that he had determined to resign the Presidency of the National Secular Society, and he bade me get pen and paper, and take his instructions for a letter to the Secretary. I tried to argue the matter with him and begged him to reflect upon it, to do nothing hastily, and reminded him that people would

say if he resigned then, in his illness, that he had recanted. His face, which all along had been set and stern, darkened as I said this. People must think what they choose, he said, he could no longer do everything; something must go; the Presidency entailed a great deal of work, and he must give it up. I tried to say something more, but he stopped me, saying sharply that he had made up his mind. I was disconcerted by the tone and manner, so unusual from him to me, and left the room a moment to recover my equanimity. I was back almost immediately, and went to the desk to get the note-book to take down the letter to Mr Forder (the Secretary). I heard my name spoken gently, and turning, saw my father holding out his hand to me. I went to the bedside. "Now, my daughter," he said affectionately, "I want you to tell me what you were going to say just now." He listened patiently whilst I urged upon him that, although he was strong enough to despise the misrepresentation that would surely follow the abrupt and unexplained announcement of his resignation, it was hardly fair to his friends who would have to bear taunt and sneer, and would be unable to quote a word out of his mouth in reply. He replied that the reason for his immediate resignation was that he could not be a President in name only, and, without himself taking part in the work, be held responsible for the sayings and doings of others—with whom he might or might not agree—on behalf of the Society. He thought, however, he might leave his formal resignation until his return from India, although he would at once intimate his intention. He added with a tender smile, "I promise you that I will make a statement which shall not leave any one in doubt as to my opinions." The religious question troubled him so little that he had not even thought about it until I spoke of the possibility of misconstruction. The severity and sternness of his demeanour in making the announcement of his resolve was due solely to the pain it had cost him to give up an office he valued so highly, and which he had hoped to retain until the laws relating to Blasphemy were erased from the Statute Book.

It was generously offered to pay my passage to Brindisi so that I might care for my father during the first days of his journey, but my own health did not permit me to accept so delightful an offer. He seemed really too ill to go alone, and the memory of his face, so haggard and so grey, as I last saw it at the vessel's side, was an abiding pain. He sent back a pencilled note by the pilot, and a letter from every port, to tell how he was gaining strength each day. On board the steamer every one was kind to him. At Bombay every

one was more than kind; all seemed to vie with each other in showing him attentions—Indians and English residents alike. A house and attendants were put at the disposal of himself and Sir William Wedderburn, President of the Congress, and the latter made things easy for the invalid by many a courteous act. Although it had been announced that Mr Bradlaugh could not stay long enough in Bombay to receive addresses, yet a large number were presented to him, of which about twenty were in caskets or cases of worked silver, carved sandal wood, inlaid ivory, and other beautiful specimens of native work. The duty alone on these amounted to about £19, and was paid by the Congress Committee.

Mr Bradlaugh's interest in Indian affairs, and his comprehension of the needs of the people, were recognised both at home and in India. In India he was joyfully called the "Member for India," and at home his views on Indian matters were listened to with growing respect. Lord Dufferin sought an interview, and afterwards had considerable correspondence with him, and before Lord Harris set out for Bombay he also made a point of seeing the acknowledged representative in Parliament of the Indian people.

Mr Bradlaugh returned from Bombay at the end of January (1890), much better in health than we had dared to hope, and we now quite believed that with care he would become thoroughly strong again. The birth of my little son in the April of this year prevented me from attending to my father's correspondence, and at my request, my place was filled by a friend of mine and of my sister's, Mrs Mary Reed. My father soon grew very fond of my little boy, and would now and then put aside his writing and take him on his knee, protesting that he had never before left his work to nurse a baby, and sometimes wondering whether, when the boy grew up, he would go fishing with him.

The advent of the baby and all his paraphernalia made us feel more crowded for space than ever, and as the music publishers had a room on the first floor which they used as a stock-room, my husband arranged to rent this, and we furnished it as a sitting-room. We made it look as pretty as we could, and it was ready for us at the end of September. On my father's birthday (the 26th) I persuaded him to take us to the theatre, and we went to the Lyceum to see *Ravenswood*. On coming home we had supper in the bright new room instead of the dark place underground, and many were my father's jokes about the unwonted splendour of his surroundings. Alas! it

seemed that that room was furnished only for him to die in three months later.

The winter of 1890 set in early and severely. In November it began to snow, and snow and fog continued well into the new year. With the cold weather my father began to feel ill again. He thought of going to Paris to spend the New Year, but he could not afford it. I was sorry he could not go, for he always came back the better for a few days in Paris. He was a welcome visitor to the French capital; he had never been made to feel himself an outcast from society there. Coming home with him one fearfully foggy night in December^[65] from a lecture he had been delivering at the Hall of Science on behalf of a testimonial to Mr Forder, the Secretary of the National Secular Society, the conversation turned upon the value of his books, and he mentioned two or three which he thought—erroneously, as it turned out—very valuable. I asked him if he would not sell them; if he could get a holiday and health with the money they would fetch, they would be well worth the exchange. "Ah, my daughter, when I sell my books——" he began, and his unfinished answer told all the sadness of his thought. Twice he would have had to sell them if friends had not come to his aid—once, as I have said, to pay the Government costs in *Bradlaugh v. Erskine*, and next in the *Peters and Kelly* case. He loved his books; to part with them seemed like parting with his heart's blood.

On the 10th January my father went out in the afternoon; it was densely foggy and bitterly cold. When he returned a few hours later I ran down to him as usual, and was horrified to see his face—it was the same face that I had seen in the worst of his sickness of the previous winter. This was the first attack of the spasms of the heart, although we did not then know it; it was comparatively slight,^[66] and after a little my father seemed himself again. The improvement, however, was more apparent than real; in less than a week from that day he was compelled to keep his bed, and in less than a month he lay in his grave. He died on the 30th January, firm in the convictions in which he had lived, and was buried on the 3rd of February, next my sister in the Brookwood Necropolis. The funeral was a silent one, without speeches and without display,^[67] but people attended it from all parts of England—one miner even came from Scotland. People of all sorts and all conditions travelled to this remote spot to show their respect for the man who had given his life in the service of his fellows.

At Mr Bradlaugh's death his assets were not nearly sufficient to meet his liabilities, but amongst these liabilities there was not a single personal item; they were every one in connection with the Fleet Street business. Most of the creditors cheerfully agreed to accept a composition of ten shillings in the pound; of this £1700 was raised by public subscription, and the remainder was furnished by the sale of the library,^[68] Indian presents,^[69] and the lease of 63 Fleet Street. It was a wonderful testimony to the regard in which my father was held that people should join together to help in paying his debts after his death. Four other memorials to him have been projected, of which three are now complete. The first to be finished was the monument at Brookwood. It consists of a bronze bust of Mr Bradlaugh, by Mr F. Verheyden, on a red granite pedestal. It was erected at a cost of £225; and the money was subscribed absolutely spontaneously, without a single appeal or one word of request. Then came the statue of Mr Bradlaugh erected by his constituents in Abington Square, Northampton, and unveiled on the 25th of June 1894, in the presence of the greatest crowd ever assembled in that town. Lastly, there is the memorial which was organised in the House of Commons, and energetically promoted by the daughters of Richard Cobden, one of our country's noblest men. This took the form of making some provision for myself, and to that end a house has been bought with the money subscribed.

There is one other memorial which from its nature is not likely to be completed for some years. It is a project to build a hall, to be called the "Bradlaugh Memorial Hall," to be used for the purposes of promoting the great causes with which Mr Bradlaugh was identified. It took close upon a hundred years to build a Memorial Hall to Thomas Paine; it remains to be seen how long it will take to erect one to the memory of Charles Bradlaugh.

PART II.

BY

JOHN M. ROBERTSON.

CHAPTER I.

PHILOSOPHY AND SECULARIST PROPAGANDA.

It may here be well to give a general view of Bradlaugh's teaching on the great open questions of opinion and action, taking separately the old provinces of religion and politics. When he came most prominently before his countrymen he had a very definite repute on both heads, having spoken on them in nearly every town of any size in the country; but neither then nor later could it be said that anything like the majority of the public had a just or accurate idea of his position. The obstacle was and is partly prejudice, partly incapacity.

§1

To begin with, even the distinct title of "Atheist" may mean any number of things for any number of persons. Ill-informed and even some well-informed people commonly describe an Atheist as one who says "There is no God," and that "Things happen by chance." To say to such persons—as has been said a thousand times—that for an Atheist both phrases are meaningless, seems to give no help: we must begin at the beginning, and show how the dispute arose. And it is useful to keep in view that Bradlaugh's Atheism, in the evolution of English Freethought, is only a generation removed from the Deism of Thomas Paine, which is much the same as the Deism of Voltaire. Deism or Theism is to-day reckoned a quite "religious" frame of mind; but it was the frame of mind of men who in their day were hated and vilified by Christians as much as Bradlaugh in his. Explicit Atheism is only in our own day become at all a common opinion. The men so described in former ages, so far as we know (if we set aside the remarkable developments of the Italian Renaissance), have nearly always been Deists or Pantheists, of whom the latter of course tend logically to coalesce with Atheism, but who have in their own names alike professed to repudiate Atheism. Thus Hobbes and Spinoza, who last century were constantly called Atheists by Christians, always professed to have a God-

idea; and the Freethinkers who showed head in England in the first half of the eighteenth century were all professing Deists. Systematic Atheism began to arise among the more penetrating or more trained thinkers of the latter half of the century. Thus Hume, after professing Deism throughout his life, left for posthumous publication his "Dialogues concerning Natural Religion," which amount to the surrender of all forms of Theism. Of Voltaire in his latter years, when he strongly attacked the Atheism of Holbach, it was said by the more high-flying talkers of the Paris drawing-rooms: "Why, he is a bigot; he is a Deist." But even Voltaire, as Mr Morley has shown, was somewhat less of a Deist after the earthquake of Lisbon; and "Candide" is not a good Theistic tract.^[70] Diderot, again, reached explicit Atheism; and his friend Holbach wrote, in the "Système de la Nature," the first systematic and straightforward Atheistic treatise of modern times.^[71] In England the movement was less rapid. Bolingbroke went pretty far towards a Lucretian or Agnostic Theism; and the upper-class Deism which on his lines held out against the opportunist orthodoxy of Butler, necessarily tended to make its Deity a very remote and inaccessible Power. But Freethought, to get any hold on the general mind in the thickening populations of the latter half of last century and the first half of this, had to begin again, and more effectively, on the lines of the first Deists. The incredibility of the sacred books had to be made clear before more abstract issues could be settled. In this task Voltaire, the pupil of the English Deists, was the great performer for all Europe. It was Paine however who first, in the turmoil of the Revolution, brought home to thousands of English artisans and other plain men the incredibility of what had so long passed as divinely-revealed truth. He could do this the better because of the power and fame of his work in politics, and because of his constant profession of a devout belief in a beneficent God, on whom he declared the Bible narratives to be a libel. It probably needed this element of popular religion to keep up any continuous current of popular Free-thinking in England throughout the great reaction which followed on the French Revolution. But the argument of Butler held good against Paine as against the earlier Deists. If the Bible stories were irreconcilable with the idea of a "good," omnipotent God, equally so are the operations of Nature. And though there are many people who can be led by that argument to believe or make-believe in the Bible (though it makes no more for the Bible than for

the Koran), there were others who felt bound to take the logical alternative, and decide that the "good God" of popular half-faith is a dream.

Such progress is a question of time. Atheism in a psychological sense began with the beginning of physical science. Pure Theism, in its early form of polytheism, saw in all natural movements and forces the expression of a personal power or powers, analogous to man; and its gods were and are simply magnified projections of humanity. Thus the sun, moon, and planets, the winds, the thunder, the lightning, the rivers, the fountains, the seas, were all figured as ruled and moved by personal deities. As soon, however, as astronomy made certain the perfectly regular movements of the sun and stars, Theism was to that extent logically limited, and Atheism to that extent logically possible. Astronomy was strictly godless in so far as it showed the universe to move by undeviating law. Of course this perception is but a small part of human consciousness and daily life; and the habit of theising, so to speak, easily overrode the habit of atheising. But every advance in exact knowledge of Nature, and in the capacity for exact thought, tended to encourage the atheistic view, and to discredit the theistic. Hence the spread of Atheism and Agnosticism among the Greeks in their progressive and scientific period. It needed the constant reform and modification of theistic doctrine, and later the complete arrest of all scientific thought, to keep the theistic view of things in power and place. And there had to be a revival of science and exact thinking before there could again be talk of Atheism.

It follows, however, that all early Atheism, so-called, was only the rejection of theistic ideas from some part of the business of life. The Christians were "Atheists" for the Pagan multitude, because they rejected the only God-ideas which the Pagan multitude harboured. In the same way the Christians who later scouted the worship of images of God (as Persians and Jews had done long before) were Atheists for those Christians who could only conceive of an imaged God. Prejudice has its own logic. When again medical men rested more and more on inductive method and rational (even if mistaken) procedure, and less and less on sorcery and invocation, they were naturally called Atheists, because they excluded "God" from an important and perilous province of action. Logically, the more a man is a Theist, the more of "God's" intervention he sees in life. No man is a Theist in all things; but in the ages of ignorance men were theistic in most matters. The kingdom of God, in a practical sense, is a sphere in which man is

confessedly ignorant or impotent. "God's will" is the name for the forces which man cannot control, and does not understand. It covers a storm, a pestilence, a good or bad harvest, a stroke of luck, but not an indigestion, or the breaking of coal when struck by a hammer. Thus it is that every new advance of science, every new explanation of a body of facts in terms of law and innate tendency, is at first denounced as Atheistic. After the physicians came the physicists. The great Kepler, in keeping with his idealistic method, was so steeped in Theism as to fancy that the planets were kept up to time by guiding angels. Newton, however, was flatly accused of Atheism for explaining the universe in terms of the law of gravitation. He had driven God out of the world, it was said; and so far as his physics went, it was true. Yet he himself was an ardent Theist; and he even sought to make good his Theism by the theory that "matter" was first without gravitation, and that God added the attribute. With or without this safeguard, however, Newton's generalisation was sufficiently abstract to leave popular religion intact; and practical Theism even assimilated and gained by his science. It was not till geologists began to explain the formation of the earth in terms of law and tendency that the great shock came. God had hitherto been generally conceived as shaping the earth, were it only because there was no other explanation at hand; and, above all, geology clashed with Genesis. Hence a much more serious resistance, and a much more general imputation of Atheism; though the first geologists were mostly Deists, and believers in the special creation of animal life. The next and the most serious shock was that given by Darwinism, which removed "the divine idea" from biology. Over this came the loudest outcry of all; and the odium would have been overwhelming were it not for the number of naturalists who took up the new doctrine as a matter of special science. "God" is now for scientific people practically removed from the sphere of all the "natural" sciences; and the results attained in this connection by educated people are slowly being attained by the ill-educated; the mass of the clergy having gradually assimilated the conclusions of biology as their predecessors did those of geology and physics.

The inevitable next step is the reduction to scientific order of the lore of human affairs. This step was taken in a large part by Buckle, somewhat out of the due order of time, just before Darwin issued the "Origin of Species;" and Buckle has had on the whole more of religious enmity than even Darwin, though, significantly enough, he expressly insisted on Theism

while Darwin kept it vaguely in the background. Buckle's Theism so plainly leaves his Deity nothing to do in human affairs that his belief, however fervid, could avail nothing to propitiate the class whose function is to explain history in terms of divine interference. Buckle, a professed Theist, is for all practical purposes in the position of an Atheist, save in respect of his personal and emotional belief in a future state. A God who in no way comes in contact with men, for good or for ill, is too thin a conception to count for much.

Atheism, then, is only a development of a process of thought that began ages ago under Polytheism. It has been reached in the past by isolated thinkers; there seem to have been Atheists at the time of composition of parts of the Vedas; and each one of the great steps of scientific generalisation has been anticipated by men who were not able to bring the idea home to their own age. It is the giving the step its name that creates the greatest shock. And when a reformer does not even wait to have his position named for him, does not merely undermine Theism by a new scientific treatment of a province of fact, but goes to the logical root of the matter and declares that the latest Theism is at bottom no more true than the oldest, though stripped of certain crudities—then it is that the maximum of odium is evoked. The Atheist, in reality, does but carry negation a step further than does the Theist himself. As Bradlaugh used to point out, the modern Theist denies the existence of any type of "God" save his own. Whatever he may see fit to argue about the folly of denying the possibilities of the unknown, he is quite confident that there is in the universe no Being even remotely resembling the fabled Zeus, or Moloch, or Osiris, or Venus, or Huitzilpochtli. He is sure that these are only imaginary existences. Similarly, he begins in these days to be sure that the conception of Jahweh is as purely a dream as that of Bacchus—the mere projection of man's own image (however magnified or even idealised) on the background of nescience. Nay, the latter-day Theist begins to repudiate the conceptions of the "Deists" of last century: he will have no "Great Artificer," no "Overruling Providence." The latest treatises expressly reject the arguments of the earlier for proving the "existence of God." Thus the Theist himself "denies the existence" of a thousand Gods.^[72] The Atheist, as Mr Bradlaugh put it, merely denies a thousand and one.^[73] He argues that the most advanced Theism (as distinguished from mere Pantheism) is only a modified form of the oldest; merely a civilised fancy instead of an

uncivilised; it is always a male person in the image of man, with passions, emotions, limitations, qualities; loving, hating, planning, punishing, rewarding; always the "magnified non-natural man" of the primeval worshipper: a conception flatly and absurdly opposed to the first philosophic requirements of the very doctrine which embodies it. The God of Theism must always be the analogue of the Theist. Hume, passing out of Theism, concluded that the "Power" of the universe could only have a faint and remote analogy to human personality. Further reasoning forces the conclusion that it can have no conceivable analogy.

This very conclusion has actually been reached by many professed Theists and professed Christians. Professor Max Müller has collected instances in his lectures on "Anthropological Religion." But those thinkers, like Dr Müller himself, have always in practice relapsed into the personal conception which they philosophically affect to repudiate. As Dr Müller puts it, the abstract Theism which allows to Deity no human attributes whatever is too "cold" for popularity; and Dr Müller is not ashamed, after smoothing the way with a trivial fallacy, to recur to the doctrine and terminology of the multitude, giving the Deity male sex because "we" cannot think of "Him" otherwise than as male. The Atheist simply stands honestly to the conclusions which such Theists have avowedly come to and then feebly let go.

This is so obvious to steady-minded people that in all philosophic ages there have been some who, shunning the name rather than the reality of Atheism, have formulated the doctrine and name of Pantheism. Between *logical* Pantheism and Atheism, however, it cannot be too strongly affirmed, there is no difference save in name. An Atheist believes in a "going" and infinite universe, the totality of which he cannot pretend to understand; and which he flatly refuses to pretend to explain by the primitive hypothesis of a personal "Spirit." He calls the universe "infinite" by way of avowing that he cannot conceive of its coming to an end, in extension or in duration. This recognition of endlessness represents for him the limit of thought: and he declines to proceed to give further attributes to that, the very naming of which leads him to the verge of the capacities of rational speech. He declines to give to the going universe the name of "God," because that name has always been associated by nearly all men with the primitive conception of a Personal Being, and it is a mere verbal stratagem to make it identical

with Universe. So irresistible is the effect of the immemorial association of the name that it serves to carry nearly every professing Pantheist back chronically into mere Theism and Deism, even if he so formulates his Pantheism to begin with as to make it answer to the name. A logically consistent Pantheist, using the name, would be hard to find. Hence the necessity, on all grounds, of repudiating Pantheism as distinctly as Theism. The only consistent course is to use the privative "a," and stand to the term which means "without Theos, without God-idea."

§2.

This preamble, it is to be hoped, may make it easier to appreciate the technicalities of Bradlaugh's doctrine. He was not the untrained Atheist of the theistic imagination, who may be confounded with a quotation from Kant by one of the personages of Mrs Ward's religious vaudevilles. He knew that Kant, reduced to plain language, gives the whole answer to Kant. Beginning as a boy to defend his Theism in debate, he saw it demolished by one of those born debaters who are found every now and then among the working class, men far superior in native power and intellectual sincerity to those cultured acceptors of other men's obscurities who look down on them. ^[74] But he did not trust to "mother-wit," his own or another's. He read all the philosophic literature he could lay hands on; in particular he became a close student of Spinoza. A clergyman of my acquaintance maintains that to the end he was a Spinozist. It would be less misleading to say that he employed much of the method of Spinoza to establish the Atheism to which Spinoza's doctrine practically leads, ^[75] while always scrupulously recognising that Spinoza formulated Pantheism and professed only to modify the God-idea. Here are Bradlaugh's own words:—

"The logic of Spinoza was directed to the demonstration of one substance with infinite attributes, for which one substance with infinite attributes he had as equivalent the name of 'God.' Some who have since followed Spinoza, have agreed in his one substance, but have denied the possibility of infinite attributes. Attributes or qualities, they urge, are attributes of the finite or conditioned, and you cannot have attributes of substance except as attributes of its modes. You have in this distinction the division line between Spinozism and Atheism. Spinoza recognises infinite intelligence; but Atheism cannot conceive intelligence except in relation, as quality of the conditioned, and not as the essence of the absolute. Spinoza, however, denied the doctrine of freewill, as with him all phenomena are of God; so he rejects the ordinary notions of good and evil."^[76]

The position here taken up is frequently met by an outcry against the "denial of intelligence" to the highest power in the universe. The protest is pure irrelevance. Atheism "denies intelligence" to an infinite existence simply as it denies it whiskers and dyspepsia. The point is that intelligence cannot be conceived save as a finite attribute; every process of intelligence implying limitation and ignorance.^[77] Infinitude must transcend the state of "intelligence." The "intelligence" of "omniscience" is a chimæra. And when the Atheist is accused of making himself the highest thing in the universe, the plain answer is that it is precisely the Theist, and nobody else, who does so. That is to say, the Theist makes his own mind and personality the type and analogue of an Infinite and Eternal Power. The Atheist admits that he can form no conception whatever of Infinite and Eternal Power. The Theist rushes in where the Atheist declines to tread. And nothing is more remarkable in the modern history of religion than the retreat of all theistic argument to some form of the sub-rational position so laboriously formulated by Kant—that the God-idea is established, not by any form of reasonable inference from knowledge, but by the moral needs and constitution of human nature. That doctrine is not only the formal bankruptcy of all philosophy, logical and psychological, but is the stultification of every religious system which adopts it, inasmuch as it is equally valid for each against all the rest, besides being finally annihilated by the simple fact of persistent scientific Atheism, which proves that human nature does *not* need the sustenance of a God-idea, whether in ethics, in politics, or in natural science. The only resource of neo-Kantism against the Atheist is the *argumentum ad hominem* of imputing to him "atrophy" of the "spiritual" sense; an argument which—not to employ a simple *tu quoque*—may be sufficiently met either by the answer that the "spiritual sense" which maintains Theism is merely the carnal and self-excited appetite for mental

opium, and that the Hindu and the devout Catholic have it in a much higher degree than the mere Theist; or by the reminder that even if there were special intellectual defect behind Atheism, it is, on the Theistic hypothesis, a defect foreordained by Theos, and is as much part of human nature as the docility of the Theist.

All the psychological line of argument, as put by Kant and his adaptors, is fully and patiently met by Bradlaugh in his section of the "Freethinker's Text-Book," which deals in turn with all the main pleas of orthodoxy. At the close of the examination of Kant he writes, with great caution and moderation:—

"We do not feel sure that we have either fairly stated Kant's position or efficiently replied to as much as we have stated. In condensing within the limits of this Text-Book the views of a writer so involved in his expressions as is Immanuel Kant, we may have failed both in exposition and answer, but have the consolation that we at any rate place before our readers the sources of completer knowledge."

But the modest deprecation was unnecessary, the main theses of Kant having really been sufficiently stated and met; and the Text-Book goes on to cite and answer the arguments of an able neo-Kantian Theist, who had confessedly found Kant unsatisfying, but who offered in his turn only the vague emotional plea as against Kant's moral plea, backing it up with the old paralogism of the "spiritual sense." That is the best that modern Theism can say for itself; and the argument will never convince anybody who had needed convincing.^[78] It is further repudiated by the orthodox Theism which claims to stand on revelation, and which in turn is dismissed as ill-founded by more philosophic Theism.

The orthodox Theism is in this country represented by Professor Flint, who when challenged by Bradlaugh to defend his position philosophically, took the line of answering that, "for a person possessed of a typically English intellect, Mr Bradlaugh shows, in dealing with Theism, a curious predilection for metaphysical conundrums,"^[79] and proceeded to meet the said "conundrums" in the spirit of a joker dealing with a joke. The argument, "Unless it be nonsense to affirm infinity and Mr Bradlaugh added to it, why should it be nonsense to affirm infinity and the universe added to it?" is a sample of the reasoning with which Dr Flint satisfies the pious, in answer to the Atheistic doctrine that human beings are only forms of the infinite existence. Another of the Professor's expedients is to say that God has reason but does not reason. "No intelligent man thinks or speaks of God

as reasoning;" which is a severe attack, from a Scotch Professor of Divinity, on the author of Isaiah i. 18. But more than passing notice is here due to one of the Professor's remarks^[80]:—

"There is an impression in some quarters that Atheism is advocated in a weak and unskilful manner by the chiefs of Secularism. It is an impression which I do not share. Most of the writers who are striving to diffuse Atheism in literary circles are not to be compared in intellectual strength with either Mr Holyoake or Mr Bradlaugh."

Such a testimony, from such a source, counts for rather more than the arguments emanating thence.

As to the assertion, again, that Atheists say "there is no God"—an assertion made with surprising frequency by professed Agnostics—it was constantly met by Bradlaugh with the answer that the phrase has no meaning.

"The initial difficulty is in defining the word 'God.' It is equally impossible to intelligently affirm or deny any proposition unless there is at least an understanding, on the part of the affirmer or denier, of the meaning of every word used in the proposition. To me the word 'God' standing alone is a word without meaning."^[81]

It would have been more exact to say that it has too many meanings to stand for any one in particular. Once defined, the alleged existence can be rationally denied, as may the existence of a race of centaurs, half men half horses, or of dragons who breathe fire, or of a being answering to the description of Neptune, driving a chariot on the sea, or of Apollo, driving the sun. All definitions of God which affirm personality or human attributes are open to immediate stultification by argument. "I have never yet heard," wrote Bradlaugh, "a definition of God from any living man, nor have I read a definition by dead or living man, that was not self-contradictory.... But the moment you tell me you mean the God of the Bible, or the God of the Koran, or the God of any particular Church, I am prepared to tell you that I deny that God."^[82] The person who says we have no right to deny the existence of his imagined God until we have been all through the universe, has on his own showing no right to deny the existence of such Gods as are described in the stories of Saturn and Thor. The most paralytic Agnosticism, however, like the most devout Theism, seems content to be as sure that these are imaginary existences, as that Julius Cæsar was never in America.

The relation of Atheism to Agnosticism is thus wholly misconceived by most people who differentiate them. That is to say, the logical form of Agnosticism—by which is not meant the self-styled Agnosticism which

resorts to the use of the name "God"—comes to the same thing as Atheism, since it argues that the current God-idea is a mere reflex of humanity, like those which preceded it. Bradlaugh sometimes grew impatient (and small wonder) with people who wrote to him to point out that Atheism was wrong, and Agnosticism right. They never took the trouble to try to understand what he meant by Atheism; and it must with regret be said that more competent Agnostics often make the same omission. The simple-minded Agnostic who candidly remarks, "I do not say there is no God, but I haven't seen any evidence for one," is kept in countenance by the more learned Agnosticism which excludes from its learning the literature of modern Atheism. Bradlaugh had seen the new name readily adopted by men who not only shunned the old but helped to heap on it an ignorant odium. He had seen Atheism strangely misrepresented by Mr Spencer in "First Principles;"^[83] he pointed out that a mere avowal of ignorance is not worth making, and that Agnosticism is not a philosophy at all, unless it says, not merely, "I do not know of the thing you assert," but "you do not know either"—which are just the statements of Atheism. He might have added that while "Atheist," though a term much abused by Theists, is a good word, and a real doctrine-name, "Agnostic" is a bad word, and in itself no doctrine-name at all, since it says "Don't know," without hinting what it is that is not known. The present writer has heard a Christian Evidence lecturer, a Master of Arts, delight a Christian audience by saying that the nearest English equivalent to "Agnostic" is "Ignoramus." His strategy was characteristic of his cause, but he was dialectically within his rights.

The best argument for the use of the name Agnostic is simply that the word Atheist has been so long covered with all manner of ignorant calumny that it is expedient to use a new term which, though in some respects faulty, has a fair start, and will in time have a recognised meaning. The case, so stated, is reasonable; but there is the *per contra* that, whatever the motive with which the name is used, it is now tacked to half a dozen conflicting forms of doctrine, varying loosely between Theism and Pantheism. The name of Atheist escapes that drawback. Its unpopularity has saved it from half-hearted and half-minded patronage.

§3.

Another obstinate misunderstanding arises over the word "Materialism." Bradlaugh did not willingly or often resort to that name. He seems to have preferred the more philosophic term "Monist," or the useful word "Naturist," which latter, however, he did not seek to force into common use. ^[84] But he was of course a "Materialist" in the sense in which alone the word is used by those who so name themselves—a sense sufficiently different from those put upon it by most of the writers who assail them, rationalists and supernaturalists alike. The former assailants, of course, do the more harm. Philosophy has in England suffered peculiarly from the tendency of professed thinkers to dissociate themselves anxiously from certain doctrine-names that are ill spoken of, and to join in the vulgar outcry against them, rather than try judicially to estimate their significance and value. Of such bourgeois prudence we have examples in some of our leading modern philosophers. And there is the other trouble that some men with great powers of a certain sort lack the capacity to see or grasp all the parts of a broad problem at once or in relation, and must needs cramply lift and handle only one at a time. Rationalists of this kind do immense harm to the cause of rationalism, as pietists of the same stamp do to the cause of their creed, by elevating a small or verbal difference into a sectarian issue, and representing other rationalists as opposed to them when there is no fundamental difference in the case. When this want of sense of proportion in an able man goes with intellectual vacillation or discontinuity, it works the maximum of frustration. We have a prominent instance in Professor Huxley, who has given countenance to contradictory conclusions on half-a-dozen main questions. He has gratuitously encouraged the enforced use of the Bible in public schools, and he has wearied Freethinkers by tediously strategic combats on worn-out topics with those who hold the very beliefs that the Bible sets up in minds which reverence it. On the question of Materialism he has reinforced reaction by contemptuous language towards men whose teaching is identical with his own so far as that is sound; and on the other hand he has obstructed the spread of logical Materialism by stating crudely and without verbal circumspection a strictly materialistic doctrine. ^[85] What is worse, he has written on Materialism as did Lewes—without treating the term historically; and he has at times condemned Materialists in general without specifying any one man's teaching in detail. Another writer in the same category, of whom better things might be expected, is Professor Karl Pearson. That gentleman, after the fashion of

Professor Huxley, has at one time pooh-poohed the criticism of theology as an attack on a ruin, and at another has furiously cannonaded the bones of a dead theologian. And recently he has gone out of his way, in his "Grammar of Science" so-called, to asperse Materialism, while teaching practically nothing else of a positive nature. Mr Pearson's account of the Materialism of Büchner and Bradlaugh, superciliously given in a footnote, is in the circumstances the worst misrepresentation of the matter now before the public. He speaks of "the Materialist" and "modern Materialists" as substituting force for the will or spirit of the Spiritists as a "cause" of motion, and goes on to confuse the already much-confused question of "necessity" by playing the bull in that philosophic china-shop.

"The idea of enforcement," he writes, "of some necessity in the order of a sequence, remains deeply rooted in men's minds, as a fossil from the spiritualistic explanation of will as the cause of motion. This idea is preserved in association with the scientific description of motion; and in the Materialist's notion of force as that which *necessitates* certain changes or sequences of motion, we have the ghost of the old Spiritualism. The force of the Materialist is the will of the old Spiritualist separated from consciousness. Both carry us into the region beyond our sense-impressions; both are therefore *metaphysical*; but perhaps the inference of the old Spiritualist was, if illegitimate, less absurdly so than that of the modern Materialist, *for the Spiritualist did not infer will to exist beyond the sphere of consciousness with which he had always found will associated.*"

This passage, fallacious from its first clause—being but an empirical attack on empiricism—becomes in the last, with its "for," a mere misstatement. The Spiritualist did most emphatically infer will outside the sphere of consciousness with which he had always found will associated, since he expressly assumed a consciousness without organisation—a thing he never met with. It is further quite unjustifiable to assert that "modern Materialists" carry outside the sphere of consciousness ideas either of "will" or of "enforcement," which they have always found associated with consciousness. Professor Pearson is confused by words, which are apt to be even for wise men at times what Hobbes said they were for fools. The task of philosophy is a perpetual struggle with the mazes of language; and it is worse than idle to discuss such problems as Mr Pearson here gratuitously raises, without analysing the terms which commonly contain them. He uses the word "necessitates" as if there were no ambiguity or obscurity about its sense; just as he constantly speaks of our not knowing the "why" of things, without making a single philosophical attempt to analyse the psychological force of that profoundly important syllable. What do we mean by "why,"

apart from matters of volition? It is the old story of regarding the leaf as "a flat green object which we know all about already." Professor Pearson goes about to analyse the leaves of physics, but too often takes for granted the leaves of language. He has needlessly approached his task in such a fashion that it becomes much more a matter of psychology and logic than of physical science; yet his psychology is little better than a hand-to-mouth criticism, the mere business psychology of a physicist. His distinction between philosophical and physicist doctrine (pp. 93, 94), to the effect that one appeals to temperament but the other not, is a sample of amateur psychology grievous to consider. And while discrediting certain doctrines in physics, real or imaginary, on the bare ground that they are metaphysical, he yet rounds the whole of his own doctrine to an expressly metaphysical account of the nature of scientific knowledge. There is, of course, no real dividing-line between metaphysics and sense-knowledge; what the physicists rightly protest against is just bad metaphysic, spiritist metaphysic. But when a physicist himself plunges at every page of his book into more or less gratuitous metaphysic, and yet assumes to dispose of other men's doctrine (falsified at that) by calling it metaphysical, he goes beyond fallacy into what has been considerably described, in a factious politician, as "moral paradox."

As to the charge against the Materialists—whom Mr Pearson in another passage typifies by Büchner and Bradlaugh—it is practically untrue on one head, that of force being the "cause" of motion; and quite inconclusive on another, that of "enforcement" and "necessity." Mr Pearson is uncandid enough to cite no passage on either head, and I know not whether the latter is not as inaccurate as the other. Even if, however, a Materialist should talk of motion as a "necessity" of matter, it would amount to nothing to impugn him without showing what he conceives "necessity" to be. The word is a plexus of connotations; and to identify it out-of-hand with the conceptions of spiritists is a course more worthy of a theologian than of a man of science. Mr Pearson's way of talking of "enforcement," as if the word conveyed any fixed scientific sense whatever, is a commission of the very offence he unjustly charges on the school of Büchner. But as to the statement that Büchner and Bradlaugh are wont to speak of force as the "cause" of motion, it is really not true. Büchner in his typical work, "Force and Matter," does in one passage write somewhat unguardedly of the "force inherent in matter"—*i.e.* in the "something" empirically known "which we

call matter"—as being the cause (*Ursache*) of the activities which are the phenomena of the said matter;^[86] but this momentary verbal laxity is not at all the burden of his treatise. It is in any case much more pardonable than the gross contradictions which Mr Pearson quotes from the writings of Professors Thomson and Tait, collaborators in special physics; it is paralleled by phrases which he cites from Huxley, Nägeli, Spencer, and Weismann; and it is much less serious than the inconsistencies and fallacies into which Mr Pearson himself repeatedly falls. Even while repudiating the notion above cited as to "cause" (which he does without reference to the well-known discussions, from Hume onward, as to the force of the term), he writes (p. 352): "... We still shall not find in 'force,' *as* either the cause of motion, or the cause of change in motion, *anything more* than that routine of perceptions which ... is the scientific definition of causation." With this account of causation Büchner and Bradlaugh, and everybody else who has appreciated the effect of Hume's reasoning, would agree, save in so far as the phrasing falls into the very crudities of expression which mar Hume's pioneer argument. Mr Pearson writes that we "sadly need separate terms for the routine of sense-impressions," yet he never hesitates either to use a general term loosely or to disparage an unpopular man for doing the same thing. He says of material particles (p. 327): "All we can scientifically say is, that the *cause* of their motion is their relative position; but this is no explanation of why they move in that position." This use of "cause" is really looser than Büchner's, and is not "scientific" at all. The use of "why"—as if we had a clear conception of physical "why" as distinct from that of "cause"—is mere verbal bungling.

Again, in finally formulating the first general law of motion, Mr Pearson writes (p. 342): "Every corpuscle, whether of ether or gross 'matter,' *influences the motion* of the adjacent ether corpuscles." Here the word "influences" raises (as he elsewhere admits by implication) the same problem as the word "causes," so that his own most deliberate phraseology incurs the objection he makes to another man's incidental expression.

As to essentials, Mr Pearson says what Büchner does. He ostensibly regards matter as "*that which moves*," confusing the definition, however, by saying that we can conceive "forms of motion" as *also* moving. This is really going far to set up a dualistic notion analogous to that which he imputes to Materialists; and he will probably see on reflection that his idea needs

careful re-statement. The essential thing is that the scientific conception of matter excludes the idea of a primary dissociation between force (or life) and matter, and their union at a point of time by a "spiritual" Creator's volition. The old dualistic doctrine of *inertia*, which is so re-stated by Mr Pearson (p. 344) as to entirely alter its meaning, is still commonly cited as establishing the dualistic or spiritualistic position. The dualistic doctrine as to matter is put and maintained by the Rev. Mr Westerby in his debate with Bradlaugh (p. 27) thus: "*Force is always external to the matter that is moved.*" The effect of Mr Pearson's account of Materialism is to assert that that is virtually the teaching of Materialists so-called. But it certainly is not. The slipperiness and elasticity of language are such that a single word may set up a fallacious implication; and the word "cause" is as slippery and elastic as any. But the obvious and avowed purpose of Büchner's book is to repudiate and overthrow the dualistic notion of the universe. He expressly and repeatedly affirms that matter and motion, matter and force, are inseparable in thought. "The conception of dead matter," he writes, "is a mere abstraction." "The investigation of motion is the peculiar task of modern science, and her province embraces everything that can be traced back to motion. Matter in motion or capable of motion is or must be her first and last word."^[87] Further, Büchner neither prefers to call himself a Materialist nor represents science as propagandist. "Science," he writes, "is not idealistic, nor spiritualistic, nor materialistic, but simply natural."^[88] As to the term "Materialist," he remarks that "since the first publication of this book, the term has become to some extent current, and at every fitting and unfitting opportunity the designation has been dragged in neck and heels, *unsuited though it is to the defenders of a philosophy which regards matter, force, and mind, not as separate entities, but only as different sides or various phenomenal modes of the same primal or basic principle.*"^[89] Similarly Bradlaugh invariably spoke of "one existence, of which all phenomena are modes," expressly declaring that we can only know phenomena; which was his way of saying that we can never "know why" in the sense in which theologians claim to do so. At no time did he speak of "force" as a separate entity "causing motion."

After speaking of Materialists as habitually calling force the "cause of motion," Mr Pearson loosely represents Büchner and the followers of Bradlaugh as finding "mechanical *laws* inherent in the things themselves;" and he declares that this materialism "collapses under the slightest pressure

of logical criticism." He has in reality passed upon it no logical criticism whatever, his frequent lack of lucidity becoming at this place sheer darkness. What he has said on the point has been wholly metaphysical; but his metaphysic, ill done as it is, perfectly justifies the doctrine he finally and irrelevantly contemns. "In the necessarily limited verifiable correspondence of our perceptual experience with our conceptual model," he writes (p. 353), "lies the basis of our mechanical description of the universe." "A shorthand *résumé* of our conceptual experience" is repeatedly specified by him as the gist or purpose of science; but when he wants to discredit anybody else's doctrine, it suffices him to call it just such a shorthand *résumé* or dismiss it as metaphysical. And the arbitrariness of his verdicts becomes apparent once for all when he writes: "It is perhaps needless to add that the gifted lady who speaks of secularists as holding the 'creed of Clifford and Charles Bradlaugh' has failed to see the irreconcilable divergence between the inventor of 'mind-stuff' and the follower of Büchner." That is to say, Mr Pearson applauds or distinguishes Clifford for perhaps the loosest formula ever put forward in the name of Materialism, but still a formula not contradictory of Büchner's and Bradlaugh's monism, while disparaging Büchner and Bradlaugh for their Materialism. It will be clear to a logical reader that the conception of "mind-stuff" ("shorthand" with a vengeance!) is only a random materialistic suggestion—not an infrequent thing with Clifford—but still a suggestion quite reconcilable with materialistic monism. Büchner writes that "all yet future forms, including reasoning beings, potentially or in capacity, must have been contained in that primal world-mist out of which our solar system was gradually evolved."^[90] Bradlaugh always defined his "one existence" as including "all that is necessary for the happening of all phenomena." Mr Huxley—whom Mr Pearson does not asperse as a "Materialist"—has expressed himself in terms almost identical with Büchner's.^[91] To speak of "mind-stuff" as being part of the "primal world-mist" is merely to suggest a hopeless "conceptual mode" of thought over and above the most exact "shorthand" to which words can well reduce the inferences of science as to cosmic history. That Clifford would have approved of either the tone or the judgment of his successor in the matter one may take leave to doubt. His "temperament" was different from that of Mr Pearson, who supplies in his own person the disproof of his own primitive doctrine that scientific opinions have nothing to do with temperament.

The unpleasant fact is that personal interest and prejudice have been the main factors in establishing the ill-repute of the term "Materialist." It arose very much as the term "Freethinker" arose, by way of broadly marking off a new tendency in active thought. The Freethinkers, so-called, simply claimed to follow their reason freely, where religious people were tied down to their traditional creed. The Materialists simply emphasized the new and spreading conception—at once Pantheistic and Atheistic—that the laws of things were to be looked for in the constitution of things, and not in any "spiritual" volition of a superior being or beings. They opposed the notion of a primal distinction between matter and the energies and activities thereof. Spiritism was for them the sum-total of all the guesses and hallucinations of ignorance; and their contrasted Materialism was imputed to them as a vileness by the types of mind which found elevation in the doctrine of blood sacrifice and ritual theophagy. Scientific disinterestedness was bracketed with grossness of life, and this often by pietists as gross in life as in thought. Every Spiritist who went a certain way in Materialism was libelled in turn; but the semi-Materialist could always indemnify himself by libelling those who went further.^[92] Newton's theistic theory of matter is as absurd a one as any man of science ever framed; but he has earned by it the tenderness of later theists, while his fame secures the lenity of later physicists. Thus some guarded rationalists who pounce like weasels on every slip, real or fancied, of professed Freethinkers, honey their voices to speak of halfway thinkers whose slips are gross, open, palpable. They have their social reward. Bradlaugh and Büchner have taken a different course. Finding the term "Materialism" in itself unphilosophic, they have still looked to the essential point of its broad historic significance. It marks on the side of physical science, from La Mettrie onwards, the repudiation of theological methods; and though they would not have coined the name for themselves, they have not repudiated it, but have instead sought to free the doctrine behind it from the laxities and crudities which belong to all new departures of thought, and which abound in the writings alike of Idealists and of some critical pragmatists in a greater degree than in those of the pioneers they attack. Büchner and Bradlaugh knew that by accepting an unpopular name they incurred the hostility alike of blockheads, of zealots, and of the scientists who look anxiously to their status; but they took their risks. Bradlaugh had constantly to explain that by "matter"—if he used the term at all, which he preferred not to do—he meant simply total existence:

all that is necessary for the happening of all phenomena. Yet men still speak of him as saying that "dead matter" gives rise to life and mind. It will become clear to a thoughtful reader, after a little reflection, that under Bradlaugh's definition there is no assertion of the cosmic priority of any one mode of existence. He merely insisted that there should be an end of the fantasy of "mind" or "spirit" or "will", calling a tangible universe into existence—a fantasy into which anti-Materialists are always relapsing. Philosophically speaking, out-and-out Spiritism^[93] and strict Materialism come to exactly the same thing, since each predicates a going, infinite universe, with one pervading infinite energy; an energy which one side chooses to call by the primitive name of spirit. As Büchner writes: "The whole struggle yet proceeding between Materialism and Spiritualism, still more that between Materialism and Idealism, must appear futile and groundless to him who has once attained to the knowledge of the untenability of the *dualistic* theory which always underlies it." In the same way, as we have seen, strict Pantheism—which is the inevitable end of rational Theism—comes logically to the same thing as strict Atheism, the only difference being the verbal one set up by the Pantheist's adherence to the primitive name of Theos.

In this connection it is difficult to deal with the position taken up by Mrs Besant, the valued friend of Bradlaugh and of the present writer. Mrs Besant has greatly perplexed her old friends by professing to repudiate the Materialism she formerly taught, on the score that it gives "dead matter" as the source of life and mind. They can only conclude that she has undergone a psychological change which affects her knowledge of her former positions. We have seen that Bradlaugh's and Büchner's teaching was fundamentally different from what she represents materialism to be; and there is no other school of Materialism in question. The strange thing is that Mrs Besant herself translated from the German, carefully and well, Büchner's "Force and Matter" (as also his "Mind in Animals"), in which the doctrine is flatly contrary to her present account of it. Büchner even uses unguarded language—as it is very difficult to avoid doing—in insisting on the perpetual activity of matter. "Matter," he writes, "is not dead, inanimate, or lifeless, but is in motion everywhere, and is full of most active life." Bradlaugh more warily pointed to the danger of giving ambiguity to the term "life," which is properly the name for the broad classes of the phenomena of plants and animals. But he never taught or fancied that

certain of the mere forms of existence in themselves originated other forms of existence. By "matter" he did not mean to specialise rocks any more than protoplasm or ether.

A more defensible argument has been used by Mrs Besant and others against Materialism: the argument, namely, that it is impossible to think of a transition from physical action to the phenomenon of thought. A number of physicists—among them Tyndall—can be quoted as declaring that there is a "great gulf fixed" between molecular motion and the state of consciousness. Tyndall once laid it down that the demand for "logical continuity between molecular forces and the phenomena of consciousness" is "a rock on which Materialism must inevitably split whenever it pretends to be a complete philosophy of the human mind." But this loud-sounding affirmation on analysis resolves itself into the popular rhetoric to which Tyndall was too much given. What is meant by a "complete philosophy of the human mind"? If Materialism asserts that certain constant correlations remain nevertheless "mysterious," it does not thereby cease to be a complete philosophy of the human mind. The statement that our whole knowledge of causation is just a knowledge of correlation is *part* of the complete philosophy of the human mind—that is, of the systematic and exact statement of our tested knowledge. To say that human faculty is strictly limited is not an avowal of incompleteness in the philosophy which says it. And as a matter of fact, the statement as to the "discontinuity" between "molecular forces" and the "phenomena of consciousness" is a statement which, so far as it has any meaning, stands to be made of all other correlations of phenomena. When I strike a match on the box, I evoke the phenomena of light and heat. In scientific terms, I set up by friction a chemical action quite "discontinuous" with motion in mass, and this in turn sets up a wave-motion in the hypothetical ether (of which I can form no conception) representing light. Materialism no more "splits" on the one "rock" than on the other.^[94] The one special difficulty as to consciousness is a difficulty that affects all philosophies alike: the difficulty that it is consciousness that must analyse consciousness. Neither by predicating "mind-stuff" nor by alleging "soul" is that difficulty evaded. There still remains the admitted correlation between brain-and-nerve action and thought; and that correlation is on all-fours with those of physics so-called. As the case is put by Dr John Drysdale (after reasonings to an apparently different effect), "It may be held proved in physiology that for every

feeling, every thought, every volition, a correlative change takes place in the nerve matter;" and it is scientific to say with him that the phenomena of mind as a function "require no further explanation" than the conditions of those changes. When Dr Ferrier writes that "no purely physiological explanation can *explain* the phenomena of consciousness," unless he simply means that there a psychological or logical element (not Spiritism) must enter into the explanation, he is merely stumbling in the old way over the word "explain." What is "explanation"? As Professor Pearson laboriously shows, and as Hume showed long ago, all that takes place in our explanations of physical phenomena is recognition of a routine of sense experience. The theological habit has given men a pseudo-conception of "explanation;" and though they have learned to dispense with that process in physics, they still confusedly demand it in biology and psychology. But the very men who at one time talk of "mystery" and "gulf" between matter and mind, at other times recognise that the mystery is no more and no less in one correlation than in another. Thus Tyndall, who elsewhere verbalises against "Materialism," after describing the development of the human organism from the egg, writes: "Matter I define as that mysterious thing by which all that is accomplished." Well, that is "modern Materialism" or nothing; the Materialism of Büchner and of Bradlaugh. The mere doctrinal or pragmatic expressions of single physicists count for nothing. As Bradlaugh put it in his debate with the Rev. Mr Westerby, it is the cases of Ferrier that count, not his opinions. The best observer is not the best formulator or thinker; and the art or science of logical speech is not gratuitously thrown in with either mathematical or artistic faculty. To turn the data of science into philosophy is a specialist's work.

Any one who desires to obtain in a short time by dint of close attention a notion of the difficulty and complexity of the argument as between monism and dualism cannot do better than read the report of the debate between Bradlaugh and the Rev. Mr Westerby on the notion of Soul. Mr Westerby, though he wrote some of his papers in advance instead of meeting his opponent's case, was decidedly the ablest of the clerics with whom Bradlaugh debated; and in his hands the orthodox cause suffered as little as might be. The reader may or may not in the end decide to stand with Bradlaugh, but he will certainly have learned to see the folly of the cheap journalistic dismissal of an undefined "Materialism" as "exploded," and the error of the notion that Bradlaugh was unqualified to handle philosophic

and scientific issues, or that he was a mere public speaker, unskilled in dialectic.

Finally, as to the meaningless expression that "things happen by chance," he of course never used it. Of any person who puts this phrase in the mouths of Atheists, it may be said at once that he is unfit to discuss a philosophical question. He either does not understand what he discusses, or is wilfully untruthful. The phrase "happens by chance"—as was long ago recognised by Hume, after he had himself fallen into the ordinary meaningless use of the term—only means either "happens without our intending it," or "happens without our being able to trace the cause." It is significant only for everyday purposes, and in philosophy can only serve to set up a chimera. All events must be conceived as having a "cause," in the ordinary sense of the term. The Atheist certainly avows that he can only trace causation a small way in the universe; but he does not for a moment suppose that he would be giving an explanation of any event if he referred it to "Chance." His doctrine is that the universe and its total energy must be conceived as infinite and eternal; that in physics the question "Why?" resolves itself into the question "How?" and that the business of science is just to give the answer as fully as may be.

§4.

While Bradlaugh was thus an exact thinker and reasoner, he distinguished himself above all the rationalists of his time by the energy and persistence with which he sought to bring his philosophy home to the popular mind. He was fundamentally a reformer, and he could not consent, as so many do, to keep silence on errors of creed, so called, and resist merely errors of action. For him, creed was action, and action creed. He was so thoroughly a man of action that he must needs act on his conviction in matters of opinion, so called, as in anything else.

It was no doubt the record and the result of the French Revolution that moved the majority of political reformers for two generations to keep their own counsel on religious matters. Paine has been expressly charged with hindering the cause of democratic politics by identifying himself also with the cause of Freethinking. To a man like Bradlaugh such an objection counted for nothing. It was not merely that he saw how profoundly religion

reacts on life, how creed shapes conduct, and how the current religion must always tend to support old political doctrine as against new. He took his course instinctively as well as reasoningly. That a doctrine is false was to him a reason for exposing it as such; and though as a utilitarian he held that truth is the best policy, he did not wait for the demonstration before choosing his course. He had in fact that love of truth for its own sake which is the inspiration of all scientific progress; but he had it without restriction, or at least with as little restriction as can well be. No man can be equally interested in all inquiries; and none can help thinking some unprofitable; but Bradlaugh was limited only by his tastes, never by the common opinion that the spread of truth is inexpedient. He would give facilities for all conscientious truth-seeking whatever, barring only random disclosures of sensational facts with no better motive than sensation, or with no likelihood of edification to balance the likelihood of the reverse. As to the great themes of belief and discussion in all ages, he simply could not think that human welfare is promoted by maintaining beliefs known to be false. He was a democrat in religion as in politics. If truth was good for him, it must be equally good for the multitude, so far as it was possible to enlighten them. They must needs be enlightened by language within reach of their capacity; but while he would make matters plain for them, he would in no wise consent to garble and conceal what he held to be the truth. With the many people who either care nothing whether current beliefs are false or true, or think it desirable that they should be false, he had no sympathy. It seemed to him that if anything was worth investigating, the most serious beliefs of the mass of the human race must be; and the idea that the mass could be helped or raised by keeping them deluded was to him morally repugnant and sociologically false. "My object," he writes in his pamphlet on Heresy, "is to show that the civilisation of the mass is in proportion to the spread of heresy amongst them; that its effect is seen in an exhibition of manly dignity and self-reliant effort which is utterly unattainable amongst a superstitious people." And all acts of prayer and religious propitiation were to him survivals of superstition.

"My plea is," he went on, "that modern heresy, from Spinoza to Mill, has given brain-strength and dignity to every one it has permeated—that the popular propagandists of this heresy, from Bruno to Carlile, have been the true redeemers and saviours, the true educators of the people. The redemption is yet only at its commencement, the education only lately begun, but the change is traceable already; as witness the power

to speak and write, and the ability to listen and read, which have grown amongst the masses during the last hundred years."

Against the popular thesis that "Christianity" has achieved these things, he brought to bear in debate and journalism not only his knowledge of Christian and Church history in general, but his constant experience of the influence of orthodoxy in checking betterment in England. The State Church has been an invaluable object-lesson for Freethinkers. As regards the claim for Christian Nonconformity, the answer might run: If a mainly ecclesiastical or sectarian Dissent has had so much good political result, what political, social, and intellectual results might not come of a thoroughgoing rationalist Dissent? It would take too long to set forth even the gist of Bradlaugh's polemic against the Christian claim that the Christian creed has been a force for progress; but those who care to know his method and his case may find it tersely set forth in the latter sections of his "Notes on Christian Evidences" in criticism of "The Oxford House Papers," his pamphlet on "Humanity's Gain from Unbelief," and his debate with the Rev. Marsden Gibson on that thesis. These are late statements of the case he put forward during the whole of his public life; and it was on the strength of such arguments, and of his theoretic Atheism, that he was able to create in England an energetic and intelligent party, the active adherents of which were and are mostly working-men.

"Secularism" is the not inappropriate name, for general purposes, of the general doctrine of Bradlaugh and his adherents. That name, however, is attended by the drawback that the man who first employed it, Mr George Jacob Holyoake, is wont so to define it as to deprive it of specific meaning for the propagandists of Freethought, while showing no reason why it should be adopted by anybody else. Mr Holyoake—himself an Atheist—argues, in effect, that Secularism properly consists in simply attending to secular things; and that it is not committed to any hostile attitude towards theology. On that view, every political club is a secular organisation and an exponent of *Secularism*. Bradlaugh always argued, and nearly all Secularists have always held with him, that this use of the term reduces it to nullity, since it makes every Christian a Secularist in so far as he attends to secular affairs on "business principles." There is, of course, an important truth implied in this way of speaking; but it is a truth irrelevant to the issue. If we are merely to discuss secular things, there is no need for any "Secularist" organisation. Secularists commonly act freely—or as freely as

they are allowed to—with their religious neighbours in political and other public matters. But if a distinct doctrine of the uselessness of "sacred" machinery and theory is to be maintained; if it is to be shown that secular action is properly co-extensive with human affairs, then these views must be upheld by showing that all theology is delusive. A man who believes in the existence of a personal and governing God, broadly speaking, cannot be induced to keep theological procedure out of his life. There may be many Indifferentists who act as Secularists without caring at all to discuss the religious question; and there may even be a few of the "Lucretian Theists" assumed by Mr Holyoake; but none of the Indifferentists and not many of the Lucretian Theists will be induced to join in a Secularist propaganda, even on Mr Holyoake's lines. Bradlaugh fully recognised that the formulated principles of Secularism do not directly commit the subscriber to Atheism. "I think," he avowed, "that the consequence of Secularism is Atheism, and I have always said so"; but he added that "clearly all Secularists are not Atheists."^[95] The tendency has inevitably been, however, to identify Secularism with Atheism. And as Mr Holyoake has himself all along lectured on anti-theological lines, his definition has commonly seemed to Secularists to be wholly in the air, though his personal merits and practical services to Freethought are felt to outweigh minor infirmities of reasoning and judgment. Whether the name, thus capriciously defined by its framer, will continue to be employed by those who repudiate that definition, remains to be seen. It is not unlikely that new Freethought organisations, finding the word "Secularism" defined in cyclopædias on the authority and in the language of Mr Holyoake, will seek some other label. But the label in itself was a good one; and the propaganda of Bradlaugh recommended it to many thousands of his countrymen.

That his open adherents were chiefly working-men, was a result of the economic situation, which determines so many of the phases of culture-history. It is notorious that among the upper and middle classes there is a great amount of disbelief in the current religion; but among the upper and middle classes there is almost no organised effort to discredit the creed of the Churches. The small societies which muster under the banner of "Ethical Culture," little as they are given to speaking out on matters of creed, receive little support. It is often said, with idle malice, that Bradlaugh's adherents were mostly working-men because he was not qualified to appeal to educated people; but even if that were true, it would

not explain how it comes about that other and better-educated rationalists have not set up an organisation of middle-class and upper-class people. The explanation is mainly economic. As a matter of fact, Bradlaugh had hundreds of "educated" admirers among the middle and even some among the upper classes; and in France and elsewhere he was popular among the "classes," as at home among the masses. But the open avowal of "unbelief" in Great Britain has always meant, and will long mean, for one thing, a certainty of pecuniary loss, and a certain measure of ostracism to professional men and men of business. Let a merchant, or doctor, or shopkeeper, declare himself an active Atheist, and he will find it appreciably harder to get customers or clients. A man of established position and personal popularity may fairly hold his own while avowing scepticism in general intercourse; but even he will incur calumny and loss if he takes trouble to spread his opinions. Men in a small way of business are almost sure to suffer heavily; and it is still no uncommon thing for clerks and others to lose their situations on the simple ground of so-called "infidelity." In the more bigoted districts the risk is overwhelming. A shopkeeper in Belfast told the present writer that when he joined the Secularists there, his business, formerly brisk, fell off so rapidly and so ruinously that in a short time he had to give it up. Nothing, apparently, can make the majority of Christians, who claim that theirs is a "religion of love," realise that to seek to injure an Atheist for his opinions is an unworthy course. Mere Nonconformity has incurred, and still incurs, a certain measure of penalty. But Nonconformists seem none the less ready to inflict it in turn on others. Obviously, the number of middle-class people who can defy these risks is small. It is only among workmen, employed in large numbers by capitalists who do not take the trouble to inquire about their opinions, that the avowal of Secularism is safe. Even workmen, of course, are sometimes made to suffer in pocket, and often from slander in their own class; but they suffer less than the trading and professional classes. Hence it is that straightforwardness and sincerity abound more among them. It is not that "the poor" have from birth any occult virtues denied to the rich, but that the economic conditions make for sincerity and openness among wage-earners more than among earners of fees and profits. It is difficult to guess what John Mill meant when he said that the workers in this country, though they esteemed truthfulness, are not as a body truthful. If he meant that they are capable of garbling facts in their own

interest in matters of industry, he was only charging them with what may be charged equally against shopkeepers, stockbrokers, commission agents, traders, doctors, lawyers, politicians, and clergymen. It belongs to the nature of the case that in the important matter of loyalty to conviction, the workers are by reason of circumstances superior to the other classes. The upper classes, though, like each of the others, they include candid and sincere men and women, are as much coerced by social as are the middle classes by commercial considerations. The fear of being charged with "bad form," and of being cold-shouldered, does among the rich what fear of money loss and calumny does elsewhere. Idle men and women, whose main occupation is an artificial social intercourse, are little likely to battle for heretical opinions, even if they have been thoughtful enough to form any. Dissimulation and conformity are too much in the way of their daily life.

The business of systematic Freethought propaganda has thus been mainly left to the class with least leisure and least money; and the newspaper press naturally reflects the balance of property and status. Newspapers are produced in the way of business, and only "paying" doctrine is put forward by them. It is notorious that the majority of journalists are unbelievers; but capital buys pens as it buys hands and goods; and many pressmen have disparaged Bradlaugh's opinions as "peculiar," or worse, who themselves held these opinions, and privately regarded the current orthodoxy as folly. Secularism in general has thus been boycotted, and a common repute of vulgarity and illiteracy has been cast upon it, often by people who ostentatiously applaud the Salvation Army, with its incredible buffooneries and its reliance on the most abject ignorance.

Bradlaugh's artisan followers, as a matter of fact, have for the most part been the pick of their class for intelligence and energy. That their culture was not equal to their zeal and their sincerity was no reproach to them. They did their honest best; and from Bradlaugh they always had his. Himself a careful student of all the questions involved in the general issue between rationalism and orthodoxy, he constantly urged on his followers the necessity of keeping their minds open and their judgment active. Mrs Besant has told in her "Autobiography" how earnestly he impressed on her the need of the most thoroughgoing and ever-renewed preparation for the great work of instructing the people. But inasmuch as the people in the mass can only begin with the main or fundamental questions of religion—

those of "revelation" and "inspiration," "God," "Providence," "prayer," "miracles," "morality," "atonement," and "immortality"—his platform work as a Freethinker dealt mainly with these topics. And inasmuch as the mass of the people are at once more sincere and more logical in their relation of opinion to conduct than most of the specialists who occupy themselves with the literary analysis of the Old and New Testaments, Bradlaugh's work struck at the roots of orthodoxy wherever he went. He argued that if the Old Testament be demonstrably false in its history and barbarous in its morals, the idea of "inspiration" in the theological sense disappears, and the Hebrew books become mere ancient literature, forged or otherwise, and wholly disentitled to be made a textbook for mankind. Though a good Hebrew scholar, he did not profess to rest his case on the textual analysis of the "higher criticism." For him the "sacred book" was discredited as such by its own contents, however composed; and he made it his business to attack them as an imposition on human ignorance and credulity. His standpoint was thus put by himself:—

"There is no great honour or pleasure, although there is much wearisome toil, in gathering the materials for proving that Genesis nearly always blunders in its attempts at statements of fact; that it is repeatedly chronologically incorrect, and in the chronologies of its principal versions utterly irreconcilable; that copyists, through ignorance, carelessness, or design, have in many places incorrectly transcribed the text; that the translators, according to their respective creeds, vary in their interpretations of different momentous passages; that the Hebrew language itself has been altered by the addition of vowel points, by means of which a sense is often given entirely different from the original intention; and that the majority of the ancient versions contain different and contradictory readings of various important verses. But it is absolutely necessary to do all this in a form accessible to the general reader so long as the Church persists, under statutory sanction and indorsement, in its teaching to the people from their early childhood, that this Bible is God's Word, free from blemish. Genesis is forced upon the child's brain as God's Word by nurse and pedagogue, and the mode of thinking of the scholar is in consequence utterly warped in favour of the divinity of the book before his reason has opportunity to mature for its examination. If the book only had claimed for it that which may be claimed for all books—namely, in part or whole to represent the genius, education, and manners of the people and the times from whom and which it issued, then it might fairly be objected by supporters of the Bible that the tone of criticism here adopted is not of the highest order, and that the petty cavillings about misplaced names, misspelled words, incorrect dates and numbers, and geographical errors, etc., are hardly worthy the attention of a serious student. But as the Bible is declared to be the revelation and representative of perfect intelligence to the whole human family; as it is placed by the whole of its preachers immeasurably above all other books, with a claim to dominate, and if necessary to overturn, the teachings of all other books; as it is alleged that the Bible is free from the errors of thought and fact more or less found in every other book; and as it is by Act of Parliament declared to be a criminal offence in this

country for any person to deny this book to be God's Holy Word, it is not only a right, but it becomes an unavoidable duty on the part of a Freethinking critic to present as plainly as possible to the notice of the people every weakness of the text, however trivial, that may serve to show that the Bible, or any portion of it, is fallible, that it is imperfect, that so far from being above all books, it is often below them as a mere literary production."^[96]

To such a declaration as this all protests against "Bible-smashing" are irrelevant, by whomsoever made. Made by literary humanists, they ignore the practical situation. It is one thing to recognise that the Bible is a profoundly interesting body of ancient literature, illustrating for all time the manner of growth of a cult; it is another thing to deal with the pretensions of that cult to retain to-day the status secured for it by all manner of sinister means in bygone ages. Coming from clergymen, the protest is worse than irrelevant. The most advanced of them are still, from the rationalist point of view, in the position of using the Bible as a fetish; and men who as public teachers regularly resort to a primitive priestly literature for sanctions and cues to current conduct have no right whatever to protest against those who show the people what the sacrosanct literature really is. Bible-smashing is the necessary checkmate to Bible-worship. When the literary humanists get the clergy to stop cultivating and trading on Bibliolatry, it will be time for them to object to the exposure of the Bible. But by that time there will be no occasion for the objection. Bradlaugh did not go about lecturing against witch-burning or the Koran. He attacked an aggressive and endowed superstition; and to asperse him as being himself aggressive is about as idle as to charge Mr Gladstone with aggressiveness against Beaconsfield's foreign policy, or to denounce Home Rulers for being aggressive against the Union. It speaks volumes for the state of average English opinion that the adjective "aggressive" is still held to be a damaging epithet against Freethought; as if zeal were a good and great thing on one side of a dispute, but wrong and vulgar on the other. Churchmen whose bells set up pandemonium every Sunday count it an aggression to other people to meet by summons of a handbill to discuss whether church-going is reasonable. And they are kept in countenance, unluckily, by the mass of easy-going or timid unbelievers, who, not caring or daring to act on their own convictions, keep up their self-esteem by speaking ill of those who do so.

In the mouths of some people, of course, "aggressive" means "rude" or "offensive;" and it is still common to say that Bradlaugh was a coarse assailant of other men's convictions. The charge was early brought against

him. Lecturing on Malthusianism in 1862, after alluding to the abuse levelled at him in that connection by the Unitarian organ, he said:—

"I did not consider it necessary to make much justification when I was attacked some months ago by a person who is rather famous for the vehemence of his criticism than for the soundness of his logic; but ... it may be perhaps not out of place to notice the way in which that sort of criticism has been circulated throughout the country. I have taken up Irish journals; I have taken up Scotch journals; and I have found myself represented as the only advocate of this great party ... who uses in his oratory, who writes for his readers, disregarding all morality, coarse, brutal, and degrading phrases. Now I appeal to you who are here this morning, and there are some who have listened to me from my boyhood, whether in my attack on the theologies of the world I have permitted my tongue to utter any coarse phraseology, whether in attacking or destroying them? (Applause) ... I admit that I have been rough and rude in my attacks on what I consider to be wrong and injurious, but I have been always reverent and kindly to every one who has seemed to me to be striving for the benefit of humankind."

How true is this claim can be easily learned by reading his pamphlets, or his book on "Genesis." That volume may be objected to as a dry digest of much learning and discussion, but it certainly cannot be accused either of violence or of flippancy. Its history is worth noting here. In 1856 he issued a Freethinking commentary entitled, "The Bible, What it is," which went as far as Isaiah. This being sold out (it is now so scarce that the present writer has not been able to get a copy),^[97] he issued in 1865 a rewritten edition, covering only the Pentateuch, but larger than the first; and this in turn was sold out. In 1881-82, while fighting his great battle against Parliament, he set himself the drudgery and discipline of beginning again with Genesis, enlarging his commentary from his later reading to such an extent that this, the largest volume of the three, only covers the first eleven chapters of the first book of the Pentateuch. Some of his followers humorously speculated as to what amount of ground would be covered by a fourth revision, should he undertake it. Whatever may be thought of the method, it is very evidently not that of a man aiming at a popular success of ridicule or rhetoric. Compiled at a time when he was the target for all the bigotry of the nation, the book is eminently dispassionate and judicial. Where most men would have grown more vehement, he grew more calm.

As a lecturer, of course, he was vigorous to the highest degree. Many of those who have heard him at the height of his powers will agree to the verdict that he was by far the most powerful English orator of his time. There was something overwhelming in his force of speech when

impassioned; it lifted an audience from its feet like a storm, and raised their intellectual conviction to a white heat of enthusiasm for the truth it conveyed. Other speakers of his day may have been as thrillingly impressive at their best moments; but he had great passages in nearly every speech, and rarely faced an audience without electrifying it. The Rev. Mr Westerby, at the close of his debate with Bradlaugh, testified with some chagrin to the extraordinary effectiveness of his opponent's speaking, and this in a debate full of close and difficult argument, as the verbatim report shows. "I only wish," said the reverend gentleman, "that I, in power of speech, were as powerful as he. Then I might have done honour to my cause.... Only by the power of his speech, and by the marvellous energy with which he can endow it, can I understand the impression he has produced upon you." But the reader of the debate can understand it without hearing the delivery. At its highest stress the energy is controlled and intelligized; never is the argument confused or let slip; never does vigour lapse to coarseness. He was certainly not an abusive or even a harsh controversialist; he dealt much less in invective and imputation than most men in his place would have felt justified in doing. One of the strongest of his censures of antagonists in matters of argument is passed on the late Bishop of Peterborough, Dr Magee, who was a sufficiently reckless polemist. The passage occurs in the second of the three (unwritten) lectures he delivered in Norwich, in reply to three sermons by the Bishop:—

"I have now to complain of something still worse than that the Bishop should have forgotten his Bible, entirely ignored the Thirty-Nine Articles, and occasionally in the hurry of rapid speech contradicted his previous sentences. All these are matters at which, in even an extraordinary man burdened with a bishop's dignity, we need not wonder at all; but when we find him blundering in metaphysics, when we find him making mistakes which a man versed in the merest rudiments of Mill or the Scotch and German metaphysicians would not make—when we find the Bishop so blundering, either wilfully or ignorantly, it puts me in a position of extreme difficulty."

This on Butler is also, for Bradlaugh, exceptionally severe:—

"Bishop Butler's argument on the doctrine of necessity is that which one might expect from a hired *nisi prius* advocate, but which is read with regret coming from a gentleman who ought to be striving to convince his erring brethren by the words of truth alone."^[98]

A writer, in whose anti-religious polemic such perfectly justifiable severities are exceptional, is certainly not to be charged with violence of speech on such matters. To his courtesy in debate there are many

testimonies. In his controversy, *e.g.*, with the authors of the "Oxford House Papers," one of them, Dr Paget, writes:—"I trust that you will let me first acknowledge with gratitude and respect the temperate and courteous character of your criticism. Believe me, I sincerely appreciate it." It may not be out of place to remark that the "Oxford House Papers" were in the opinion of some readers inexpressibly poor stuff, respectful comment on which, in a busy world, was an excess of consideration. And this careful courtesy was not at all, as some have supposed, a late development in him. It is a complete error to suppose that he began by being violent, and only acquired suavity after much experience. It has been suggested on this head that he was softened by the generosity with which some Christians, such as Bright, latterly stood by him against the attacks of the bigots. But while it is quite true that he greatly appreciated this, and while it is further true that he found some of his very basest enemies in professed Freethinkers of the "Agnostic" variety, it is not the fact that he had required these experiences to make him a temperate and courteous controversialist. That he was at all times; and he had early cause to know that a Christian may be a gentleman and a Freethinker otherwise, as well as *vice versa*.

Even when of set purpose ridiculing Scripture narratives in his lighter lectures, Bradlaugh never descends from humour to coarseness; and his jests—in such tracts as the New Lives of Abraham, Jacob, Moses, David, and Jonah—are as perfectly within the limits of rational good taste as those of Mr Spencer, Mr Arnold, and Mr Huxley on more august themes; not to cite Voltaire. An old slander has lately been very carelessly revived by the late Mr C. H. Pearson, who in his book on "National Character" speaks of Bradlaugh as having likened the Trinity to a monkey with three tails. Bradlaugh never did any such thing. A more elaborated figure of that sort appeared in a condensed account once contributed to his journal of an old lecture by a deceased Freethinker, who had satirised human anthropomorphism by making a monkey theologise for monkeys, as Heine makes the bear do in "Atta Troll." In the context the figure was fitting enough; but in any case it was not Bradlaugh's. And in reply to those persons who affect to see vulgarity, or worse, in every jest at Christian beliefs, it may be said once for all that Christians have from the first century onwards put themselves out of court on this head by jealously ridiculing the beliefs of all other believers, as well as of rationalists; that they have not stopped at ridicule, but have in all ages freely resorted to gross calumny;

and that they in turn are not very badly used when their beliefs are merely subjected to the satire to which they are confessedly open. Even sheer coarseness is just as reprehensible, no more and no less, when directed against living persons, as when directed against dead or imaginary beings, or particular beliefs concerning them; but those who are readiest to impute the latter offence seem to make small account of the other, when the object of attack is an unbeliever. Bradlaugh was never coarse; yet he was abused with unspeakable scurrility by thousands of Christian people. And if coarseness ever arose in his movement, as it so easily may in a popular movement involving controversy, that movement was in any case a hundred times more sinned against than sinning. Mrs Humphrey Ward has been at pains in two of her novels to represent "crews" of Secularists as either resorting to physical violence against revivalists, or showing a disposition to resent angrily the appearance of a well-behaved clergyman at their meetings. Such slanders would call for very strong comment were they not so nakedly absurd. In no town in England would avowed Secularists dare as such to molest avowed pietists even if they were inclined to do so; and it has always been their express aim to encourage clerical opposition and debate in their meeting-places. This is a rule without exception. And Bradlaugh, in particular, at all times urged upon his followers—not to abstain from gratuitous violence towards revivalists or clergymen: he never needed to say anything on that head—but to be very careful to give opponents no reasonable pretext for making a disturbance against them. ^[99] He counselled not only orderliness but tact; and he sharply rebuked any of his followers who would not listen patiently to even a stupid opponent's speech. Mrs Ward's account of Secularist organisations is an unfortunate proof that the spirit of religiosity does not change with mere modifications of dogma. Even if it were really found that plain, unlettered men, facing a religion they feel to be absurd, spoke out their feeling without due courtesy or refinement, an instructed observer would see in their reaction the measure and correlative of the crudity of the doctrines assailed. But people of Mrs Ward's way of thinking look tenderly on the worst buffooneries of popular faith, and on the most brutal propaganda of hell and blood-redemption, while recoiling sentimentally from the perfectly sincere derision of these things by men on whom they are blatantly thrust. The right spirit, surely, is that which would enlighten the deluded as individuals, neither patronising them nor abusing them. That was the attitude of

Bradlaugh as a publicist and as a man. He never talked, in public or in private, with malice, and seldom even with disgust, of fanatics as such. He explained them, and respected their honesty. Of certain employees of the Christian Evidence Society he would on occasion speak publicly in the strongest terms, as "vile things who, in fields and open spaces, where we are not to answer for ourselves, stab our reputation and our children's." But towards honest bigots, however imbecile, he was incapable of feeling the virulent animosity which Mrs Ward seems to feel for the Secularists of her imagination. To speak of him, as some journalists have done, as accounting for all religion by "priestcraft" in the early eighteenth century manner, is to exhibit the ignorance the statement imputes. He carefully studied the anthropological origins of religion, lectured specially on anthropology, and always related his teaching to the anthropological view. Towards priests, as such, he felt no malevolence. In fine, from first to last, the essential manliness and geniality of his nature gave his followers a lead to humanity and chivalry in their warfare with bigotry. If any of them, seeing the kind of reward he received for his self-restraint, have taken satisfaction in barbing their arrows, and in humiliating as well as defeating the enemy, they cannot cite his example.

Once in a long while a gross circumstantial lie would move him to strike with the handle of the dog-whip, so to speak. A case of the kind is set forth in his tract entitled "Lying for the Glory of God: a Letter to the Rev. Canon Fergie, B.D., Vicar of Ince, near Wigan." This dealt with one of the idiotic anecdotes by which the truth of Christianity and the wickedness of Atheism are proved for so many people—anecdotes of which the absurdity and the untruth seem equally apparent, but which find instant credence with thousands of pious persons. Such an anecdote is the "watch story" in its complete form, in which the blasphemer is struck dead, a detail which has to be regretfully withheld from the narrative when it is applied to living sceptics. Such are the endless "infidel deathbed" stories, which still do duty in religious tracts, among them being statements concerning the deaths of Voltaire and Paine, which have been a hundred times circumstantially refuted. Such is the venerable anecdote of the nurse who would never again attend an infidel's deathbed—a story which is told with religious impartiality of Rousseau, Voltaire, Paine, and Hume, and will doubtless be told in due course of Bradlaugh. In recent Christian propaganda, the growing humanity of the age is seen in a disposition to convert the atheist

rather than to send him to hell shrieking. But all these anecdotes alike have one quality in common; they are rigorously untrue, though they are never told in the same way by two Christians running. One sample story of seventeen (more or less) "leading Secularists," of whom fourteen came to bad ends, after signing a blasphemous covenant with blood for ink, does not on investigation yield even a grain of fact. In another narrative, sixteen "leaders" are represented as having all re-embraced Christianity. Of the sixteen, over a dozen are unknown to Secularism, and one known convert had been reconverted to Freethought. It was partly the lawyer in Bradlaugh that made him treat these anecdotes with seriousness and severity, finding the lie circumstantial some degrees worse than the lie conventional or sophistical. He specially detested downright fabrication of facts. But he also had a chivalrous loathing of the tactic which stabbed a doctrine in the back instead of meeting it in face; and for his own part he never used the means he might to assail religion through the scandals of its daily record. He would not stoop to collect the stories of frightful "fidel" deathbeds, which surpass the contrary sort as much in force as in truth; and he never would collect in his journal the frequent stories of clerical misconduct which appear in the ordinary press, though all his life he was being libelled by clerics. He was indeed a dangerous enemy when provoked, but he had little vindictiveness. His interests were too broad, his relation to life too genial, to permit of his being satisfied with the triumphs of feud. He claimed for himself with perfect truth: "I have attacked the Bible, but never the letter alone; the Church, but never have I confined myself to a mere assault on its practices. I have deemed that I attacked theology best in asserting most the fulness of humanity. I have regarded iconoclasm as a means, not as an end. The work is weary, but the end is well." And this may serve as a compendious answer to the kind of criticism which disposes of Atheism by calling it "cold." It would be much nearer to the truth to say that many Atheists have recoiled from religion because of its very heartlessness and gloom; and because the "warmth" of those who find joy in the evangelical doctrine of salvation strikes a healthy mind as hardly less repulsive than the "warmth" of alcoholism. The assumption that a man who puts aside the doctrine of a future life is cold-hearted, was never more absurd than when applied to the case of Bradlaugh. But its full absurdity is perhaps made most clear by comparing the doctrine of Lessing and Kant as to the nullity of Judaism as a religion, in respect of its lack of an authoritative doctrine of

heaven, with the common run of rhetoric about the strength of the Semitic religious feeling.

§ 5.

It ought not to be necessary at this time of day to offer a justification for Bradlaugh's doctrine on the ethical side, his position being simply that of modern science. But just as the avowal of Atheism and Materialism gives rise to endless misrepresentation of those statements of opinion, so the avowal of Atheism and Utilitarianism in morals gives rise to all sorts of moral imputations. On the one hand there is the reasonable criticism which falls to be passed on imperfect or exaggerated expression of the utilitarian principle; on the other hand there are the imputations which ignorant, confused, and other persons cast on any statement of Utilitarianism whatever. Many orthodox people have in this matter the indestructible advantage of being unable to understand the rationalist argument—as may be very clearly seen in the debate between Mr Bradlaugh and the Rev. Dr M'Cann on the morality and philosophy of Secularism. Such opponents go on fervently affirming their consciousness of the obligation to do what they feel to be "right," "irrespective of consequences," and insisting that this is the negation of utilitarianism. It is of course no such thing. The real ground of strife between religious and rational morality lies, or lay, in the old doctrine that the *standard* of right is divinely "revealed," and that we do right in virtue of divine command. That doctrine once abandoned, supernaturalism in morals is a mere matter of words. To admit that we have no certain light or unvarying strength of feeling as to what is right in a given case, and merely to affirm that we have a "divine call" from conscience to do what we think right when our minds are made up, is to surrender the heart of the religious position. This is what was done by Dr M'Cann and the Rev. Mr Armstrong in their debates with Bradlaugh; both clergymen nevertheless supposing themselves to be rebutting utilitarianism. The utilitarian position is of course (1) that the instinct to do "what we feel to be right" is merely organic, and often goes with conduct that is on rational grounds demonstrably wrong; (2) that the business of ethics is to settle what conduct is reasonably to be held right or wrong; and (3) that though the sense of utility is not the primary or conscious motive of all actions, it is the test by which disputed action is to be controlled. Of course

it will at times be fallaciously applied, as regarded from the point of view of developed sympathy; but it can never be misapplied as grossly as the religious standard has been, and it remains the final standard of ethical appeal. Even the religionists who argue that utilitarianism is a "pernicious" doctrine virtually admit this in their very choice of epithet. The good of society is even for them the final criterion. They never hesitate, further, to seek to influence the minds of the young by the primitively utilitarian warning, "Be sure your sin will find you out." Yet they constantly denounce the Secularist doctrine as encouraging men to make primary self-interest the beginning and end of moral principle, when on the face of the case it subjects self-interest to public interest by its working formula of "the greatest good of the greatest number." The religious argument against that formula always ends in putting the fancy case of the starving man with a starving family, who steals a loaf of bread from somebody who does not miss it. The religious implication is that the whole family had better starve than commit such a theft—a doctrine which may be left to the decision of common-sense. It is only to be wished that Christian politics even remotely approached the scrupulosity paraded in this controversy.

As for the point of disinterestedness, the history of Freethought in general, and the life of Bradlaugh in particular, will serve to show whether or not the recognition of utility as the final test of the right or wrong of actions has led men to put the low utility above the high, the near above the far. To do the former would be to abandon the very avowal of the principle, since it always brings odium and injury on the avowers. The very persistence of an unpopular movement is the decisive proof that its promoters have sought higher ends than money gain. What the utilitarian principle has done for Bradlaugh and those like-minded is not to give them the primary impulse to fight for truth and right as they see them, but to give them an enduring support in the battle. The first impulse springs from veracity of character *plus* knowledge; but it is sure to be opposed by bitter criticism, imputing to the straightforward course all manner of evil results. When the reformer is convinced that not only truth and justice but the highest utility itself is on his side, he is thrice armed. And if with some unbelievers the rejection of transcendental moral principles has meant the return to a timid or a base conformity, they are at least no worse guided than before, and the blame of their dissimulation must lie with the religious system which not only counsels but enforces it, not with the doctrine which classes social

dissimulation as a vice. Certain it is that under the auspices of the Christian creed England has lived mainly for low and narrow utilities, and not for the high and broad; the transcendental creed availing only to worsen matters by adding to the forces of evil the element of persecuting bigotry. Rationalism once for all excludes the last factor; and if it ever lends itself to a popular disregard of the great utilities and a pursuit of the small, which are the undoing of the great, it will assuredly not be in virtue of following such a lead as Bradlaugh's.

Of his influence on his followers those can best speak who have mixed with them. Personal and magnetic as it was, it depended for its continuance on the unvarying nobility of his appeal to the best instincts—to courage, honour, justice, and the love of truth. Hundreds of men—men to whom the generality of pulpit sermons are either inane commonplaces or maudlin nonsense—can testify to the fashion in which he stirred them to high sympathies and generous determinations, making life for all of them, however narrow their sphere, a vista of worthy activities and abiding consolations.

It is part of the condemnation of modern orthodoxy that its warfare with Atheism has run mainly to libel—not merely libel on individual Atheists, but sweeping aspersion of the whole movement. The records are embarrassing in the sheer multitude of the samples; and one utterance may serve for a thousand. In the early part of Bradlaugh's Parliamentary struggle an orthodox periodical named *Social Notes*, of which the Marquis of Townshend was editorial director, made the typical assertion:—

"It is a well-known fact that there is no criminal so fearless in doing evil, so hopelessly bad and beyond chance of recovery, as the Atheist criminal is. Atheism and ignorance commonly create the first step to crime. As Atheism grows in the minds of the lower classes, so crime increases."

The statement can only have come from a writer of a partially criminal type, since it states not merely a gross untruth, but one for which the writer cannot possibly have believed he had any evidence. So far from the fact being as he says, it is perfectly well established that there are almost no Atheist criminals. Readers can satisfy themselves on this head by reading the chapter on "Atheism in Prison" in the "Jottings from Jail" of the Rev. J. W. Horsley,^[100] a writer not at all disposed to say any good of Atheism. But the folly of the statement cited will probably be recognised by most people

on simply reflecting that crime was most abundant in the ages when Atheism was practically unknown; that it is common now in countries where there is no anti-religious propaganda whatever among the common people; that the professional brigands of Greece and Italy are faithful children of the Church; and that nearly every murderer executed in this country avows beforehand a confident assurance of being welcomed in Paradise. Only one Secularist, so far as the present writer is aware, has ever been convicted of murder; and he was no typical criminal, but a man congenitally liable to delirious fits of passion. When he knew of their approach he warned the people about him not to thwart him; and only in one of these fits, on intense provocation from a man who had wronged him, did he strike a deadly blow with a chance weapon. He expressly forbade petitions for commutation of his sentence, deliberately preferring to end a marred and maimed life.

Those who really suppose Atheism tends to promote crime know as little of the nature of criminals as of the logic of Atheism. The immense majority of criminals are unintelligent, and as such are immeasurably more likely to be superstitious than to be atheistic. A man of bad character may indeed be an Atheist in virtue of his reasoning powers; but the same powers will tend to withhold him from breach of the criminal law. The recent insinuations of the present Bishop of Manchester as to the effects of secular education in the colony of Victoria will impress no one who is conversant with criminal statistics;^[101] and are repudiated by those qualified to speak in the colony itself. Of similar weight are the clerical assertions that the Anarchist mania in France is a result of the "godless" teaching of the public schools. It has been shown on the contrary that some of the most prominent Anarchist miscreants have had a careful clerical training; while the Anarchists themselves have never produced a criminal to compare with the priest Bruneau. The organised *Libres-Penseurs* of France have made a speciality of ethics, publishing more matter on that head than on any other.

It is not necessary to answer again, but it is edifying to cite, one of the many utterances in which Atheism has been held up to horror as tending to universal bloodshed. Such an utterance was this of Bishop Magee, delivered in his cathedral of Peterborough in June 1880, and thus specially made to bear on the claim of Bradlaugh to sit in Parliament:—

"A nation of Atheists must be a nation of revolutionists; their history must be a history of revolution marked by intervals of grinding, cruel, pitiless, and unreprieved slaughter, because for weakness there would be no appeal to the supreme power against present tyranny."

In the rhetoric of religion, folly and frenzy are thus sometimes so mingled that together they make censure shade into derision, and derision into melancholy. Neither reason nor experience can hinder some men from putting the wildest figments in place of the plainest teachings of history. Dr Magee had before him the history of his own faith, which began in bitter and sanguinary schism, and within a few hundred years had raised deadly civil war throughout the civilised world; which has made more pretexts for war throughout its era than could possibly have arisen without it; and which in our own country was the inspiration of some of the worst strifes in our annals. He had before him the judgment of Bacon, unwillingly following on an unreasoned criticism, that "Atheism did never perturb states ...; but superstition hath been the confusion of many states." And the Bishop's rant, despicable in itself, was used to excite new Christian malice against a man who had again and again met the verbal violence of pro-revolutionaries with the strongest protests against revolutionary methods; who loved peace and hated war; and who had time and again resisted and denounced the unjust English wars to which the Bishop's Church had given its blessing. Thus is Atheism impugned by piety. At the very time when Dr Magee's rhetoric was being used to keep Bradlaugh out of Parliament, the National Secular Society was on his prompting petitioning strongly against the war waged by the English Government on the Boers in South Africa.^[102]

The only form of the orthodox imputation which is even decently plausible is the suggestion that the loss of religious belief may leave some men more ready than before to venture on vice that is not legally punishable. This is no doubt theoretically possible; and in cases where boys have had such a religiously bad education that they know of no rational veto on misconduct, harm may sometimes arise on their finding that the religion taught them is incredible. But young men who reason so far are likely to reason further; and in any case a few plain considerations will serve to convince any candid mind that there is no causal connection between scepticism and vice; though it stands to reason that the habit of scepticism will promote the critical discussion on the institution of marriage. On the one hand, the sexual instinct has in all ages gone to the worst excess under the auspices of

religions which expressly glorified asceticism; and the facts of the life of the ages of faith in Europe make it clear that, even on the orthodox definition of vice, there cannot possibly be more of it in the future than there has been in the past. On the other hand, the utilitarian arguments against vice, properly so called, are much better fitted to impress than the religious; and they leave no such loophole as the others inevitably do in respect of the Christian doctrine of pardon for sin, to say nothing of the iniquity of the Christian ethic which holds one and the same act ruinous in a woman and venial in a man. Of course, if the celibate life, and marriage without possibility of divorce, be made the standard of virtue, rationalism is likely to give piety plenty of occasion for outcry in matters of morals, as in matters of opinion.

However that may be, it has to be noted that Bradlaugh was not at all "advanced," as things go, on the subject of the marriage institution. Constantly accused of endorsing "Free Love" doctrines, he as constantly repudiated the charge. In 1881 we find him indignantly protesting that not only bad men, but men of whose honesty in other things he was sure, "constantly repeated, as though they were his, views on Socialism which he did not hold, views on marriage which never had an equivalent in his feelings, and declarations on prostitution which were abhorrent to his thought."^[103] The "Free Love" charge was commonly founded on his alleged acceptance of the whole doctrine of the work entitled "The Elements of Social Science." No such acceptance ever occurred. He was the last man to vilify a benevolent and temperate writer for doctrines with which he could not agree; but in the reprint of his pamphlet on "Jesus, Shelley, and Malthus,"^[104] he explicitly wrote of the author in question: "His work well deserves careful study; there are in it many matters of physiology on which I am incompetent to express an opinion, and some points of ethics from which I expressly and strongly dissent." Not only did he thus reject the "advanced" doctrine of sexual freedom: he never committed himself to any such proposition as that of Mill, that the institution of the family needs "more fundamental alterations than remain to be made in any other great social institution," or that of James Mill, cited without disapproval by his son, as to the probable development of freedom in the sexual relation.^[105]

It was thus grossly unjust to cast upon the Secularist movement, as did Bishop Fraser of Manchester in the worst stress of Bradlaugh's

parliamentary struggle, the imputation of promoting positive cruelty on the part of men towards women. That episode was for many a melancholy proof of the perverting power of bigotry in a naturally conscientious man. The Bishop publicly put it as a natural deduction from Secularist teaching that a man might put away his wife when she grew old and ugly, or "sick, or otherwise disagreeable to him," simply because she thus ceased to please him; and when a Secularist wrote him to point out the injustice of this assertion, and the nature of the ordinary rationalist view of marriage, his Grace disingenuously quoted the statement that Secularists repudiated the "sacredness" of marriage, without adding the explanation which his correspondent had given as to the proper force of that term. The whole outburst was an angry and unscrupulous attempt to put upon Secularist teaching the vice which admittedly flourished in the Bishop's diocese among non-Secularists. All the while, the doctrine he had put upon Secularism lay in his own Bible, and nowhere else:—

"When a man taketh a wife, and marrieth her, then shall it be, if she find no favour in his eyes, because he hath found some unseemly thing in her, that he shall write her a bill of divorcement, and give it in her hand, and send her out of his house" (Deut. xxiv. 1).

These and other doctrines had been made by Bradlaugh part of his indictment of Bible morality. He saw that while women are dependent, power of self-divorce cannot justly be allowed to husbands. He was certainly in favour of greater facilities for divorce; but he took no part in the discussion as to whether marriage is a failure; and he always argued for a legal contract, in the interests of the woman and children, as against informal unions; though, of course, he passed no moral censure on women in a state of economic independence who chose the latter. His own sad experience never made him decry marriage; and he never would have subscribed to the doctrine of Professor Pearson, that "love should have the privilege of his wings," save in so far as he would give freedom of legal divorce. In short, he did not realise the fancy picture of "modern Materialism" painted by religious sentiment, any more than the fancy picture of the pragmatist. He was not even a lover of "realism" in fiction. Like Büchner (whose favourite author is Shakespeare), he could not enjoy Zola; and on Hugo's death he eulogised that poet in express contrast to the new school which had begun to write him down.

But he did not set up to be a literary critic, or an æsthetic person in any sense. His own art was oratory, and of that he was master by dint not of conscious study, but of sincerity, energy, and endless activity. He spoke to persuade, to convince, to crush; and he never spoke save on a conviction. It thus lay in his nature that he should be a politician as earnestly as he was a Freethinker. His Atheism, his logic, his utilitarianism, all combined to make him a strenuous reformer in the field of government, and a full half of his whole activity—more than half in the latter years—was turned to making life better and saner than it had been under the regimen of religion. The absurd pretence that Atheism makes men pessimistic and supine becomes peculiarly absurd when tested by his career. He was no optimist: he had no delusions about the speedy perfectibility of men, singly or in mass; but no man was less inclined to the new pessimism, which turns its philosophy to the account of commonplace conservatism all round. A clerical opponent, debating with him, protested that Atheists ought to be in a state of black despair at the evil of the world, which the reverend gentleman on his part viewed with serenity, holding that the God who wrought it must intend to put matters right hereafter. A lay study of the problem, however, reveals the fact that hopeful and despairing frames of mind are not as a rule determined by theoretic beliefs one way or the other. Bradlaugh had the good fortune to combine the keenest interest in ideas and the clearest insight into human character with a boundless enthusiasm for action; and he perfectly recognised that a similar temperament in the latter respect might go with what he held to be delusion in philosophy. It is the fashion of conformists without beliefs to speak of propagandist rationalism as "intolerant"—a use of the term which, though it may be at times permissible in common talk, is a complete perversion of its essential purport. Applied to action, the word has no proper force save as implying the wish or attempt to curtail freedom and inflict positive injury on the score of opinion. No such charge can justly be made against Freethinkers in general, or Bradlaugh in particular. The practice of boycotting for opinion's sake he detested and denounced, and never in any way resorted to. He even carried the spirit of "tolerance" to an extreme degree in his own affairs, being careful, as his daughter testifies, to avoid giving his children anything like specific anti-theological teaching, on the ground that the opinions of the young ought not to be stereotyped for them on points which they ought to reconsider for themselves when they grow up. In intercourse with those about him he was equally scrupulous;

and all the contributors to his journal can tell how complete was the freedom he gave them to express in its pages opinions from which he dissented. In this he was far superior to many who have aspersed him as overbearing. It was a point of honour with him to give a hearing in his columns to all manner of opposition to his own views; and no man was ever less apt to let his philosophical convictions bias him in his practical or political relations with people of another way of thinking. Hence he was able not only to follow, but to follow with a chivalrous devotion, such a political leader as Mr Gladstone, of whose latter writings on religious matters he found it difficult to speak without a sense of humorous humiliation.^[106] But his political teaching must be separately considered.

CHAPTER II.

POLITICAL DOCTRINE AND WORK.

§ 1.

In combining the propaganda of Freethought with that of Republican Radicalism, Bradlaugh was carrying on the work begun in England by Paine, and continued by Richard Carlile, men whose memory he honoured for those qualities of courage, sincerity, and constancy which were the pith of his own character. The bringing of reason to bear at once on the things of Church and of State, of creed and of conduct, was for him a matter of course, as it has been for the great majority of Atheists, from Holbach onwards, and he held firmly to the old conviction that for free and rational men the only right form of Government is a Republic. He had all Paine's energetic disdain of the monarchic principle in theory and in practice, and, coming to his work in the latter half of the century, he could stand up for Republicanism without incurring the extreme penalties which fell so heavily on the devoted head of Carlile that his hold of his rationalist doctrine gave way under the strain of his struggle, the mind seeking lethargic rest before the body found the final repose. Still the great reaction against the French Revolution, which had made the name of Paine a byword, and the life of Carlile a series of imprisonments, was still far too strong in the fifties and sixties to permit of an avowed Republican and Atheist being regarded without horror by the middle and upper classes. The more famous Carlyle, with all his loud esteem for sincerity and louder repudiation of cant, never dreamt of saying a plain word against the monarchy any more than against the current religion, though his political theories were at all times as far asunder from current monarchism as from democracy. He even went out of his way to speak smoothly of a royalty which did nothing. For a generation to which Carlyle figured as outspoken and veridical, therefore, anything so practical as Republicanism was wildly revolutionary, and so Bradlaugh figured from the first to the average imagination as a violent politician.

Strictly speaking, he was in a sense more violent in his politics than in his anti-theology, because political strife is necessarily more a matter of attack on living persons than is the doctrinal strife between Atheism and Theism. As a republican he could not avoid discussing the personalities of the Hanoverian dynasty, inasmuch as the practical strength of royalism lies in the hereditary self-abasement of men before the hereditary royal person as such, not in any common hold on a monarchic theory of Government. To people who gloried in living under the Guelphs, an exposure of the Guelphs was the only relevant or intelligible answer. We may indeed say generally of monarchy what Strauss said of dogma, that the true criticism of it is its history. But the practical sanity which in Bradlaugh balanced the fieriest zeal, showed him from the first that Republicanism could only advance by way of culture and reason, never by way of violence. He "spoke" bullets and bayonets, but he never for an instant countenanced their use in English politics; and he had always a mixture of wrath and contempt for those who blustered of carrying by force, or threats of force, any reform in the Constitution. Even while he was delivering in lectures his "Impeachment of the House of Brunswick," he constantly declared that the mass of the people were not yet qualified to constitute a republican state; and he declared as much when, in 1873, he spoke at the banquet given by the then Republican leaders at Madrid in his honour as delegate from the Republican Conference which had just been held at Birmingham.

The almost entire subsidence of Republican agitation in England within the last twenty years, after the considerable show of Republican feeling which followed on the fall of the Empire in France, is an interesting and instructive fact, worth a little explanation here. It does not mean that the nation is less ready for a Republic; the fact is quite the other way. Recent tests have shown that in the average working-class Liberal and Radical Club, when the question is plainly raised, there is virtually no feeling in favour of the retention of Monarchy. The old devotion to the monarch as such has almost completely passed away among the more intelligent workers, and now subsists only among their weaker brethren, and in the middle and upper classes. Political movements, however, are made and marred not by pure reasoning but by special stresses of feeling, and there has been little or nothing in the annals of the past twenty years to set up a new stress of feeling against the monarchy in England, while there has been much that has tended to put the republican ideal in the background. It is

hardly to the credit of the nation that it lays less store by a great principle or ideal than by concrete points of lower importance; but such is and must long be the fact. The movement which led to the Republican Conference in 1873, to begin with, suffered from the still vivid recollection of the horrors of the Commune. Next it was found that among its adherents were many who were less concerned to set up a British Republic than to further by that means the independence of Ireland. Thus the movement was in itself weakened by want of unity of motive and purpose, and could make little headway against the vast forces of habit and prejudice which buttress the Throne. Even what headway it did make was due largely to the then very common feeling of personal hostility to the Prince of Wales, whose reputed character offended many who would not of their own accord have been likely to raise the question of Monarchy *versus* Republic. Another ground for hostility to the Crown was and is the sufficiently solid one of its cost; but here again the spectacle of the financial corruption in leading Republics has tended to damp down anti-monarchic feeling. It is pretty clear that, barring any new and special cause for outcry against the Throne, its abolition in this country will only result from the slow accumulation of indifference and of educated aversion to the snobbery which cherishes and is cherished by it. This certainly cannot take place during the lifetime of the reigning sovereign, whose age and popularity alike go to silence serious agitation. It may or may not come about during the next generation.

Bradlaugh used to be quoted as saying that he intended that the heir apparent should never come to the Throne. He never said anything so idle, though in his youth he thought it possible that the Republic might be attained in his lifetime. As years went on, his insight into human nature led him to feel that agitation for an ideal form of Government was less directly fruitful than agitation against the abuses of class privilege; and in the last dozen years of his life, his political work went mainly to reforms within the lines of the Constitution. Apart from this partial change of tactic, his position underwent no change from first to last. His political doctrine may be broadly described as a demand for the fullest admission of the people to the rights of self-government, and further, the application of the powers thus acquired to the removal or reform of all laws framed in the interest of the upper few. This was the ideal he had formed for himself in his youth, and he declined to substitute for it the ideal of Socialism, which had begun to be vaguely popular towards the end of his life. The refusal rested on his

experience, and on his character. In his youth he had seen a great impression made by the teaching and the achievement of Robert Owen, whose propaganda came so closely in relation with that of Secularism that in several towns the old halls of the Owenites have been till recent years, or are still, carried on by the surviving followers of Owen, as Secularist meeting-places. For Owen, whom he had met in youth, Bradlaugh had much esteem. "No Socialist myself," he wrote in later life, "I yet cannot but concede that [Owen's] movement had enormous value, if only as a protest against that terrible and inhuman competitive struggle, in which the strong were rewarded for their strength, and no mercy was shown to the weakest."

^[107] But he was profoundly impressed by the extravagance of Owen's estimate of the present possibilities of human nature; and the later Socialism, like the earlier, represented for him the optimism of unpractical men, with the difference that the later agitators had at once much less gift for social organisation than Owen, and a far more difficult programme to realise. Thus, where Owen set himself to create a State within the State, Bradlaugh addressed himself to making the political State truly democratic—a course the wisdom of which is admitted by the action of the Socialists, who now adopt it. He was in a general sense the successor of the Chartists; and in that connection it is impossible not to feel that if such a one as he had been in the place of Fergus O'Connor, the political advance of the past half century would have been considerably quickened. As it was, his labours have probably counted more than those of any other single man in his day to rouse the workers in the towns to vigorous political action. Before they had the vote, he not only helped to lead the agitation for their enfranchisement, but appealed to them directly on the issues which he wanted their suffrage to settle. It is the fashion of the new Socialism to represent that the old Radicalism wrought for political enfranchisement without any notion of what use the vote was to be turned to. Common sense and common candour will put that account of things aside without much trouble. Bradlaugh for one had very definite notions of what he wanted the vote to do. His programme was both positive and negative. He strongly supported the Radical demand for retrenchment of an expenditure which was always tending to benefit, not the many, but the few; and he detested the policy of "safe" foreign aggression which, after being long associated with the name of Palmerston, came to be identified with that of Beaconsfield. The fact that this policy had the support of some who later

figured as Socialists, did not increase his esteem for their after-course. His sympathy with the small and weak nationalities whom England selected for attack was rooted in the intense sense of justice which inspired his whole life. After working for struggling Italy and Poland, he refused to stand by in silence while his own country unscrupulously made war on Afghans, on Zulus, and on Egyptians, on pretexts which all Englishmen would have execrated had they been put forward by Russians. And as he never made popularity his guiding principle, he as instantly and resolutely opposed the aggressions of Mr Gladstone's Government as those of the Tories. In none of the sins of modern Liberalism, whether in Africa or in Ireland, was he implicated. But he had a constructive as well as a liminary ideal, a home policy as well as a foreign; and whereas his course on the latter head will now be endorsed by most Liberals, his social doctrine is still in need of exposition and justification.

§ 2.

A notable fact in the history of popular Freethought in England has been its association with the social teaching of Malthus, which first came before the world only a few years after Paine's attack on orthodoxy. There is nothing to show that Paine ever realised what a blow was struck at his optimistic Theism, by the essay which his fellow-Theist Malthus wrote to rebut the optimist assumptions on the "Political Justice" of Godwin, a Freethinker who held by the revolutionary optimism in the sphere of politics, while tending away from Deistic optimism in philosophy. Paine, who was certainly as much bent on construction as on destruction, sketched a socio-political system which will be found by many readers as impressive to-day as it was found by Pitt. He proposed on the one hand a progressive income-tax, which should yield new revenue and break up large estates, and on the other hand a system of stipends to poor families; annuities to decayed tradesmen and others over fifty, increasing after sixty; provision for the education of the children of the poor; donations for births, marriages, and some funerals; and "employment at all times for the casual poor in the cities of London and Westminster." Save as regards the old age pensions, which represent a great improvement on pauper relief, and the education scheme, all of this plan comes under the destructive criticism of Malthus, inasmuch as it does not recognise the fatal tendency of an untaught population to

multiply in excess of the economic possibilities of maintenance. The plan of allowancing poor families at so much per head would have quickened immensely the progress towards national bankruptcy which was carried so far under the old Poor Law. It would have bred paupers by the thousand.

The demonstration of Malthus naturally was not relished by the Radicals, to whom it was first addressed; and Godwin in particular met it with indecent acrimony, as did Coleridge, the Conservative. But the next generation of Freethinkers assimilated the argument, and a certain propaganda for the restriction of families was carried on by Richard Carlile. It is a remarkable fact that two Christian priests have laid two corner-stones of the structure of Atheistic polity for modern England. Butler in confuting the Deists wrought as much for Atheism as for orthodoxy; Malthus, in meeting the remaining Deists on the ground of sociology, confuted their optimism on the practical side. Freethought finally accepted both services, rectifying Malthus as it rectified Butler; and under Bradlaugh it made for science all round. Malthusianism in its original form certainly lent itself to Toryism; and no amount of benevolence on the part of Malthus could make his doctrine acceptable to democracy so long as it was tied down to his Christian ethic. The step which reconciled the knowledge of the law of population with energetic Radicalism in politics was taken when rationalists laid it down that the prudential check need not mean prolonged celibacy. Teaching as he did the all-importance of checking the birth-rate, and knowing as he did the possibility of bringing about the restraint, Bradlaugh had no further cause for misgiving as to political progress than his recognition of the general capacity of human nature to blunder.

He took up the neo-Malthusian position emphatically in his early pamphlet on "Jesus, Shelley, and Malthus," published in 1861, a somewhat youthfully rhetorical, but still a very notable presentment of the three main influences successively brought to bear on the problem of poverty—the spirit of religious submission, the spirit of humanitarian revolt, and the spirit of science. He pleaded for the last. "An acquaintance with political economy," he there declares, "is as necessary to the working man as is a knowledge of navigation to the master of a ship. It is the science of social life, the social science." And he was able in those days of the "orthodox" economics to cite in support of his definition, from the high priest of orthodoxy, a deliverance

which may surprise readers whose knowledge of the old economics is not commensurate with their censure of it.

"The object of political economy," says Mr M'Culloch, "is to point out the means by which the industry of man may be rendered most productive of those necessities, comforts, and enjoyments which constitute wealth; to ascertain the circumstances most favourable for its accumulation, the proportion in which it is divided among the different classes of the community, and the mode in which it may be most advantageously consumed."

And in another early pamphlet on "Poverty and its Effect on the Political Condition of the People," first published in 1863, he put as one of his mottoes, after a more guarded sentence from John Mill, this from Sir James Steuart:—

"The object of political economy is to secure the means of subsistence to all the inhabitants, to obviate every circumstance which might render this precarious, to provide everything necessary for supplying the wants of society, and to employ the inhabitants so as to make their several interests accord with their supplying each other's wants."

But his application of the principle was democratic and Neo-Malthusian, not Collectivist. "Unless," he wrote, "the *necessity* of the preventative or positive checks to population be perceived; unless it be clearly seen that they must operate in one form if not in another, and that, *though individuals may escape them, the race cannot*, human society is a hopeless and insoluble riddle." And for years before this he had persistently pressed the point in his lectures, steadily defying the odium which his action brought upon him. As early as 1862 we find him temperately replying to denunciation on this head in a lecture on "Malthusianism and its connection with Civil and Religious Liberty," of which a partial report happened to be taken in shorthand. "It may almost seem unwise," he remarked, "to be continually putting this subject before you; but really I find myself so misrepresented, and so liable to be misunderstood, in quarters where one would expect better things, that you must not wonder if I seek to make it clear to you why I persist in this advocacy." He here pressed the law of population as a fundamental datum of political science.

"I shall urge upon you this morning that there can be no permanent civil and religious liberty, no permanent and enduring freedom for humankind, no permanent and enduring equality amongst men and women, no permanent and enduring fraternity, until the subject which Malthus wrote upon is thoroughly examined, and until the working men make that of which Malthus was so able an exponent the science of their everyday life; until, in fact, they grapple with it, and understand that the poverty

which they now have to contend against must always produce the present evils which oppress them."

Again:—

"Poverty, so long as it exists, is in fact the impassable barrier between man and civil and religious liberty. You can never have true liberty so long as men are steeped in poverty. So long as men do not comprehend what liberty, what freedom really is, they will be ignorant how to attain it. Ignorance is the necessary sequence of their poverty. Are the people poor? For the poor there are no museums, no pictures, no elevating spheres of life, no grand music, no ennobling poetry. All these phases are closed to them; and why? Because their life is a constant struggle to live.... What is the use of preaching to the masses if the masses do not understand the language in which you talk to them? What is the use of your phrases to them when their education compels them not to comprehend the words you say, nay, makes them misunderstand you—for unfortunately *poverty has its education*, and is in this case worse than mere ignorance. There is a miseducation in poverty, which distorts the human mind, destroys self-reliant energy, and is a most effectual barrier in the way of religious liberty. Liberty, equality, fraternity, are words used very often about the Republican institutions of the world; but you can never have liberty, equality, and fraternity as long as there is poverty dividing one class from another."

These words have been echoed since by Socialists and others who represent Bradlaugh as a "Manchester" politician; and who either evade the question of the birth-rate, or deny that it is of any account. Their argument takes two main forms: (1) That to urge prudence on the poor is useless, since they will not listen; while the better workers who do listen are "sterilised;" (2) that there would be no over-population if only wealth were properly distributed. Both arguments are fallacious; the first proceeding upon ignorance of the facts, and the desire to shirk a troublesome question; the second upon non-comprehension of the law of population. In the first case, the objector first implies that it *might* be good to limit families if only people could be got to do so, and then proceeds to say that the limiting of families is harmful when practised. Both of these conflicting views are erroneous in fact. It is *not* difficult to make the majority of poor men and women listen to reason on the subject; with those who say it is, the wish is father to the thought, in that they do not want to try to give the requisite knowledge. Thousands of poor women ignorantly use the most disastrous means to limit their fecundity; and extreme poverty often hampers them even where they have the knowledge. A little money spent by the charitable in helping the very poor in this way would obviate the need for endless alms to relieve the misery which ignorant instinct multiplies. Nor is there the least need to fear the "sterilising" of the more prudent, as the limitation of the family has been

unwarrantably termed. Small families do not necessarily mean lessened total population. A man who has only three children and rears them all healthfully, maintains the species more efficiently than a man who has eight, loses six, and perforce rears the two survivors badly, because what might have nourished two or three well was for years spent in merely keeping more alive. The extreme case of France, over which there has been so much superficial talk in France and elsewhere, is no such portent as it is made out, but is in part explicable by the stress of the influenza plague, which heavily affected even the English birth-rate, and is in part a useful reminder to French statesmen that they are pressing too heavily on their country's resources, and need to mend their methods. Withal, the misery in France is far less grinding and pervasive than the misery in England.

As to the argument that it is not over-breeding, but bad distribution that causes poverty, the answer is that both causes operate, but that over-breeding can work misery under any system of distribution whatever, and is a main support to bad distribution at present. Some Malthusians have supposed that with a proper proportionment of population to the resources of the time being, poverty would wholly disappear. This is over-sanguine; but the case of the United States in the first half of the century, when resources were still far ahead of labour supply, gives abundant support to a more moderate claim. On the other hand, unless the lesson of prudential restraint be learned, the most thorough socialistic system of distribution will simply incur the most complete ruin. People reason that if only the resources of the world were properly utilised, all could be fed and housed comfortably. That is quite true; but they forget that if there be no restraint, the population of the world, being better placed than ever, will double at least every twenty-five years, and will thus soon upset any possible system of housing and feeding, and reduce the general condition to toil and poverty all round. This is so obvious when put, that the optimists are fain to fall back on a theory that population slackens spontaneously under conditions of comfort. Mr George moves nimbly between this theory and one which absolutely negates it. But all such pleas resolve themselves into either an admission that the race *must and will learn to practise prudential restraint*, which is a surrender to Malthusianism, or an assumption of a pre-ordained beneficent harmony in Nature, the old optimism in a new dress, or rather an old dress "turned."

We come back to the common plea of all the antagonists of Neo-Malthusianism—that there is no need to check over-breeding *at present*—a position so crudely unreasonable, so irreconcilable with any knowledge of the great facts of the case, that it is a mystery how it can be taken up by candid and well-informed men. No amount of demonstration that the world *might* feed all its inhabitants can do away with the dreadful fact that myriads of babes *are* actually born into the world every year only to die of the troubles made by poverty; that these babes had much better not have been born; that their birth might have been prevented; and that the survivors suffered from their birth. That men can shut their eyes to these overwhelming facts, and go on arguing, on an "if," that there is no need to restrain the birth-rate "in the meantime," is one of the darkest anomalies of political science.

Between the obstinacy of the opposing fallacy and the brutality of the resistance of prejudice, many men who recognise the truth have yet been wearied into holding their peace, in a pessimistic conviction that mankind in the mass cannot be enlightened on the matter. Of that attitude Bradlaugh was to the last incapable, though he had more cause than most men to know how tremendous were the odds in the struggle. Later generations will find it hard to credit the facts. A policy which on the face of the case could only be motivated by public spirit and zeal for the truth was met by the vilest aspersions, the most malignant imputation of the most preposterously bad intentions. Personal vice was freely charged in explanation of an action which no vicious man would have had the self-denial to undertake. It is the bare truth to say that for many years a main part of the work of the Christian Evidence Society in England has been to employ hirelings to charge Secularism with the promotion of sexual vice—this on the strength partly of Bradlaugh's work for Neo-Malthusianism, and partly of the vogue of the anonymous work entitled "The Elements of Social Science," in which the arguments for family limitation are combined with a perfectly well-intentioned argument for sexual freedom as against celibacy and prostitution, the evils of which are not only exposed, but provided against in the book by careful medical instruction. Of this book, as we have seen, while honouring the moral courage and absolute benevolence of the anonymous writer, Bradlaugh expressly disclaimed the more advanced doctrines; but he has been saddled with them all the same, as if his burden of unpopularity were not already heavy enough.

He had fit though few compensations. He lived to see the rightness of his course more and more widely and openly admitted; and to see some Freethinkers and others who had unworthily attacked him for it come round and follow in his steps. And at his trial with Mrs Besant for selling the Knowlton pamphlet in 1877 he was able to tell the jury of higher sanctions than these. Mill in his "Autobiography," telling how he was attacked for subscribing to Bradlaugh's election fund in 1868, says of him:—

"He had the support of the working-classes; having heard him speak, I knew him to be a man of ability, and he had proved that he was the reverse of a demagogue, by placing himself in strong opposition to the prevailing opinion of the democratic party on two such important subjects as Malthusianism and Personal Representation. Men of this sort, who, while sharing the democratic feelings of the working classes, judged political questions for themselves, and had courage to assert their individual convictions against popular opposition, were needed, as it seemed to me, in Parliament."

It may here be added that Grote, who was a regular reader of the *National Reformer* and a Neo-Malthusian also, approved even more strongly. The further fact, now established, that Mill was in his youth actually prosecuted for distributing Neo-Malthusian literature, should serve to check the malice of those persons, clerical and other, who still divide Freethinkers into two classes—one of "irreproachable morals," following Mill, the other of "loose and dissolute character," following Bradlaugh.

Some Neo-Malthusians have been charged, despite their rejection of the *non-possumus* of Malthus, with excluding all other reforms in their advocacy of family limitation. If this charge was even valid, it certainly was not against Bradlaugh. He might much more reasonably be criticised for not keeping the population question to the front in every discussion of main reforms than for unduly obtruding it, or using it to discourage reforms made in disregard of it. After he had thoroughly forced it on the public attention, he trusted more to the quiet dissemination of educative literature on the subject, and the enlistment of individual self-interest in the reform, than to the political handling of it on the platform, where the insistence on it seems still to arouse the resentment of many Socialists and others, who can see no need for any reform save those they themselves propose, and are particularly wroth at the suggestion that working men can be in any degree accountable for their own troubles. The defence of the Knowlton pamphlet, as has been shown in the foregoing pages, was forced on Bradlaugh; and it was the more trying for him in that he was always personally averse to the

detailed discussion of sexual topics. At the same time, it was impossible for him to submit to the stupid suppression by the authorities of the only cheap literature that gave to the poor the necessary knowledge for the limitation of their families. He was bound to resist that by every principle he professed; by his doctrine of freedom for the press and his doctrine of prudence in the family. So resisting, he identified himself once for all with the Neo-Malthusian doctrine in politics, though the resulting special notoriety of the topic was thus the work of the prosecutors themselves, who probably did more by their hostile act for the spread of popular knowledge than Bradlaugh had before been able to do by his years of advocacy.

How important was his introduction of the principle into politics can only be realised by those who know how much the principle means; and it is still in the stage of being vilified by the pious and contemned by the superficial, in which latter class may be included a good many Socialists. The former heap upon avowed Neo-Malthusians an abuse which they withhold from eminent politicians who confess opinions that imply Neo-Malthusianism or nothing. Mr John Morley, for instance, has expressed his regret that "we,"—that is, the Liberal party in general—shirk the population question so much; and Mr Leonard Courtney has laid it down that we may as well build a house in disregard of the law of gravitation as hope to make a community prosper without regard to the law of population. The late Lord Derby spoke to similar effect. Either, then, such politicians mean to urge, with Malthus, that working-men shall postpone marriage until they have saved a good deal of money—that is, till middle or late life—or they approve of early marriage with conjugal prudence. That is the whole matter; for the nature of the prudence is a quite subsidiary question, on which no wise man or doctor will narrowly dogmatise. But nobody, not even the *Times*, denounces or insults Mr Courtney or Mr Morley or the late Lord Derby for saying what each of them has said. As usual, the man who says explicitly what other men say implicitly is singled out for attack, not on the score of taste, but on the score of the plain doctrine, however put.

On the whole, however, the tone of the discussion improves from year to year. In the "Knowlton" trial, the then Solicitor-General, Sir Hardinge Giffard (now Lord Halsbury), after hearing abundant evidence to show that the details made known in the pamphlet were just such as were made known in a number of other current works never prosecuted, though freely

circulated by prominent booksellers; and after himself expressly avowing that "the book, I think it may be said, is carefully guarded from any vulgarity of expression"—nevertheless persisted in coarsely describing it as "dirty and filthy." Yet he himself was so gratuitously indecent in his own language that in a number of passages it had to be paraphrased or expunged in the report. And though the puzzle-headed jury "entirely exonerated the defendants from any corrupt motives in publishing," they were "unanimously of opinion that the book in question is calculated to deprave public morals," and allowed their foreman to present a verdict of guilty under the indictment. Probably no metropolitan jury would now come "unanimously" to the degrading conclusion that to spread specific physiological knowledge is to deprave public morals, even if the members were the "average sensual men" who habitually circulate and gloat upon lewd anecdotes, to say nothing of their acts. It is true that the abominable imputations packed into the indictment of Bradlaugh and Mrs Besant were repeated in the miserable prosecution^[108] which took place at Newcastle in 1892; and that the Recorder who tried that case, Judge Digby Seymour, displayed gross prejudice at every stage of the trial, finally vilifying such a perfectly well-meant and well-done treatise as Dr Allbutt's "Wife's Handbook," and the old "Fruits of Philosophy," as "two of the filthiest works that could be circulated to debauch and demoralise the minds of the people." Odious aspersions of this kind represent merely the fanaticism of ignorant custom, and take no heed of the enormous harm which physiological ignorance breeds. The Solicitor-General in the Knowlton trial flatly refused to deal with any such considerations; and Judge Seymour similarly would listen to no rational argument. But a decisive current of public opinion now begins to set the other way. Even a number of clergymen now admit the frightful evils of over-breeding, and are thus at least in part disentitled to cry out against rational prudence. The Newcastle prosecution, moreover, was strongly condemned in the local press; the accused was liberated; and at a public indignation meeting one speaker declared, with applause, that "the verdict of Judge Digby Seymour was an insult and a libel upon their English manners." And though a Neo-Malthusian student was heavily fined^[109] in London in the previous year for circulating information in a slightly irregular manner, the language of the counsel for the Crown, who declared that "*the only check against immorality in this country is the fear of pregnancy*," excited general

indignation, as did the conduct of the magistrate in ruling that decent language was "obscene." This prosecution, too, was repented of; and the most direct journalistic challenge afterwards failed to bring on any prosecution of Neo-Malthusian doctrine as such.

Even the comparatively reasonable attitude of Sir Alexander Cockburn in the "Knowlton" trial would not now recommend itself at all points to educated people. In the hearing of the evidence he thought fit to suggest that only "strong-minded ladies" could acquire medical knowledge without becoming "less pure-minded." Nor would any thoughtful people now agree with him and the Solicitor-General that "no better tribunal can be found in the world to judge of such a question as this than the average sound sense and enlightened judgment which is to be found in English society." These flights of declamation on the Bench are part of the general cant of English society, which can decorously endorse the moral reflections of a judge whose own life is the subject of chronic and much-relished scandal. But Cockburn at least put a new obstacle in the way of legal molestation of honest propaganda by expressing his agreement with the Malthusian doctrine as to over-population; and the later judgment of Judge Windeyer in Victoria, vindicating Mrs Besant's "Law of Population" when it was prosecuted there, marks the turn of the legal tide.

§3.

The constructive policy which Bradlaugh joined with his Neo-Malthusian doctrine had for its main item the radical reform of the land laws. He was thus in practical harmony with those individualists who except the land from the operation of the individualist principle, though he did not declare like them for land nationalisation. Nationalisation he considered too vast and difficult a transaction in the present state of political evolution; but progressive interference with the land monopoly he held to be as practicable as it is necessary. Property in land, he held with Mill, "is only valid in so far as the proprietor of the land is its improver; when private property in land is not expedient it is unjust." And the control of the land, in his opinion, must become the subject of a great and decisive struggle between the people and the landowning class, who may or may not be aided by the rest of the capitalist class. On this subject he felt no less strongly, though he always

spoke with more restraint, than do Socialists with regard to capitalism pure and simple.

"It is for the use of air, moisture, and heat," he puts it, "for the varied natural forces, that the cultivator pays; and the receiver talks of the rights of property. We shall have for the future to talk in this country of the rights of life—rights which must be recognised, even if the recognition involves the utter abolition of the present landed aristocracy."^[110]

And he could say of the landed class, what can hardly be said of the labour-employing class in the main, that they had stood in the way of every reform:

"The great rent-takers have been the opponents of progress; they have hindered reform; they kept the taxes on knowledge; they passed combination laws; they enacted long Parliaments; they made the machinery of Parliamentary election costly and complicated, so as to bar out the people. They have prevented education, and then have sneered at the masses for their ignorance. All progress in the producing power of labour has added to the value of land; and yet the landowner, who has often stood worse than idly by while the land has increased in value, now talks of the labourer as of the lower herd which must be checked and restrained."

To carry out in legislation the principle of the common interest in the land was accordingly one of his main aims; and at the time when his illegal exclusion from Parliament forced him to concentrate all his energies in the struggle for bare political life, he had gone far to give effect to it. Early in 1880 he took the leading part in establishing the Land Law Reform League, of which the formulated objects were:—

"1. In case of intestacies, the same law to govern the distribution of real and personal property. This would destroy primogeniture, but to be useful would need to be followed by some limitation of the power of devise, say as in France.

"2. Abolition of the right to settle or entail for non-existing lives. It would be far better to abolish, all life estates ...

"3. Transfer of land to be made as cheap and easy as the transfer of a ship. Security to be ensured by compulsory registration of all dealings with land ...

"4. Abolition of all preferential rights of landlords over other creditors....

"5. Abolition of the Game Laws.

"6. Compulsory cultivation of all lands now uncultivated, and not devoted to public purposes, which are cultivable with profit. That is, make it a misdemeanour to hold cultivable lands in an uncultivated state. The penalty on conviction to be dispossession, but with payment to dispossessed landowners of say twenty years' purchase of the average annual value of the land for the seven years prior to the prosecution. The payment to be by bonds of the State bearing the same interest as the Consolidated Debt, and payable to bearer. The land to be State property, and to be let to actual tenant cultivators on terms of tenancy ... longer or shorter according to the improvement made in the estate. The amount paid as rent to the State to be applied to the payment of the interest and to form a sinking fund for the liquidation of the principal.

"7. Security to the tenant-cultivator for improvements.

"8. Re-valuation of lands for the more equitable imposition of the land-tax.

"9. Land-tax to be levied on a scale so graduated as to press most heavily on excessively large holdings.

"10. One and the same land law for Great Britain and Ireland."

Within a few months this League, numbering among its Vice-Presidents four clergymen, two of them belonging to the State Church, had established a number of strong branches, enrolled members, and affiliated societies representing many thousands more, thus attracting an amount of notice in the press which promised important results. An illustration of the effect produced may be seen in a letter which Mr Ruskin thought worthy of insertion in *Fors Clavigera*:—

"May I take an advantage of this note, and call your attention to a fact of much importance to Englishmen? and it is this. On reference to some Freethought papers—notably the *National Reformer*—I find a movement on foot amongst the Atheists, vigorous and full of life, for the alteration of the Land Laws in our much-loved country. It is a movement of much moment, and likely to lead to great results. The first great move on the part of Charles Bradlaugh, the premier in the matter, is the calling of a conference to discuss the whole question. The meeting is to be attended by all the National Secular Society's branches throughout the empire; representatives of nearly every Reform Association in England, Scotland, and Ireland; deputations from banded bodies of workmen, colliers, etc.—such as the important band of

Durham miners—Trade Unionists, and, in fact, a most mighty representative conference will be gathered together. I am, for many reasons, grieved and shocked to find the cry for Reform coming with *such a heading* to the front. Where are our statesmen—*our clergy*? The terrible crying evils of our land system are coming to the front in our politics without the help of the so-called upper classes; nay, with a deadly hatred of any disturbance in that direction, our very clergy are taking up arms against the popular cry.

"Only a week ago I was spending a few days with a farmer near Chester, and learned to my sorrow and dismay that the Dean and Chapter of that city, who own most of the farms, etc., in the district where my friend resides, refuse now—and only *now*—to accept other than *yearly* tenants for these farms; have raised all the rents to an exorbitant pitch, and only allow the land to be sown with wheat, oats, or whatever else in seed, etc., on a personal inspection by their agent. The consequences of all this is that poverty is prevailing to an alarming extent; the workers all the bitter, hard toil; the clergy, one may say, *all* the profits. It is terrible, heart-breaking; I never longed so much for heart-searching, vivid eloquence, so that I might move men with an irresistible tongue to do the right."

It is vain now to guess what the movement might have done if Bradlaugh, who was its main force, had been left free to carry it on continuously. But, on the one hand, his overwhelming contest with the House of Commons forced him to put aside an undertaking which depended so much on a seat in that House; and on the other hand, to say nothing of the precedence inevitably given to the Irish land question in Parliament, it cannot be questioned that the fall in agricultural land values took much of the wind out of the sails of English land reformers. The phenomenon of land going out of cultivation put a new face on the dispute. When Bradlaugh at length got his seat, he at once showed his continued grasp of the problem by introducing a Bill for the Compulsory Cultivation of Waste Land, the principle of which was, that wherever land of more than one hundred acres lay uncultivated, and not used for public pleasure,^[111] while cultivable with profit by a cultivator paying no rent, or a smaller rent than the landlord held necessary to make it worth his while to lease, the Commissioners of Woods and Forests should be empowered to take possession of such land and offer it for tenancy. The keeping of the land uncultivated was to be a misdemeanour; but the dispossessed owner was to receive in compensation an annual payment for twenty-five years of a sum representing the average annual value of the land during the fourteen years prior to his dispossession, whatever that might be. The justification given by Bradlaugh for making it a misdemeanour to hold land idle was that already it was a misdemeanour for a labourer to live as an idle vagrant, and that the law insisted on his utilising his labour power. If labour, then *a fortiori* land. In introducing this

measure Bradlaugh emphatically maintained that if the land would not yield the "three profits" of Lord Beaconsfield's formula, it ought not to be allowed to be kept idle and useless by the landlord. So long as a cultivator could make *his* profit, the State was bound to give him the opportunity. Needless to say, the Bill was violently denounced by the Conservative press. The *Times* talked of "downright plunder." The *Spectator* was especially indignant on the score that "great properties in the home counties, *kept waste in the hope that London will build on them*, would be confiscated"; and that and other journals held it a sufficient objection that in cases where land had been worth nothing the landlord would get nothing. Many Liberal members further objected that a Bill of such importance ought not to be introduced by a private member; and generally there was more hostility than help. On its discussion in the House (April 1886) Bradlaugh agreed to withdraw the Bill on the ground that its machinery was insufficient, he having come to the opinion that provision should be made for the lending of money to moneyless men to enable them to cultivate on their own behalf. In 1887, still seeing no hope of carrying a Bill, he took the course of moving a resolution on the motion for going into Committee of Supply, reaffirming the principle that "the right of ownership carries with it the duty of cultivation," and proposing to empower the "local authorities" to act as in the Bill of 1886 he had proposed to make the Commissioners of Woods and Forests act. This time he had considerable support, his resolution getting 101 votes, to 175 against. Not one of the front bench Liberals voted; but the Irish Home Rulers did so in considerable force, making some amends for old hostility.^[112] Again, in 1888, he moved a modified resolution, proposing to empower local authorities to purchase compulsorily waste lands at the "capital agricultural value." This time, some hours having been lost by a Scotch motion for the adjournment of the House on a point affecting crofters, the discussion came to nothing, the House being counted out while it was in process. Those who were behind the scenes may be able to give the explanation of the apathy of the Liberal and Radical members generally. The passing of an Allotments Act by the Conservative Government may have had something to do with it. Be that as it may, Bradlaugh again in March 1889 gave notice of a resolution on the subject, this time proposing to give local authorities power to levy a "waste and vacant land rate," or in the alternative, to acquire the land by payment either "for a limited term of an annual sum not exceeding the then average

net annual actual produce," or of a sum representing the capital agricultural value. This resolution, however, never came to discussion. He again put it down in 1890, immediately after his return from India, but again it failed to reach discussion. In 1891 his work was over.

It will be seen that his land policy was more advanced than any that has yet been put in force by the Liberal party, though the legislation of 1894 has advanced considerably towards the adoption of his principle of compulsion. To that principle later legislators must inevitably come; and as regards land not utilised it has irresistible force. The proper answer to the demands of landlords for protection against the import of cheap corn from land paying no rent in America, is that when land goes out of cultivation here owing to such competition making it fail to yield its old rent, or three profits, the opportunity of cultivating it should pass to the State, which may fitly try the experiment of placing on such land the labourers who are driven to swell the crowd of unemployed in the towns. But this answer has never yet been effectively made in politics.^[113] The doctrine of the nation's ownership of its land needs apparently to be asserted to-day more emphatically than ever.

Asserting it as he did, Bradlaugh represented a midway position between out-and-out Socialism and out-and-out Individualism. Time will show whether it was on the line to be taken by progressive reform. What is clear is that if energetically adopted it may soon lead to the complete overthrow of that land system which is the foundation of the reactionary party politics of this country. In his pamphlet on "The Land, the People, and the Coming Struggle," Bradlaugh put very clearly the social ideal he had in view. "The enormous estates of the few landed proprietors," he declared, "must not only be prevented from growing larger, they must be broken up. At their own instance, and gradually, if they will meet us with even a semblance of fairness, for the poor and hungry cannot well afford to fight; but at our instance, and rapidly, if they obstinately refuse all legislation." To this end he proposed, as we have seen, re-valuation of all lands, and a graduated land-tax, to press most heavily on the largest holdings. The Budget of 1894, although stopping short of graduation of the annual taxes, has made the first step towards them by graduating the death duties; and the further steps are probably not far off. The broad political problem of the future is the control of wealth distribution, to the end of making the rendering of services a condition of the enjoyment of services for all able-bodied persons; and it

seems fairly clear that the easiest of the various possible main steps towards that consummation are the restriction of private property in land and the indirect or direct absorption of "economic rent" by the State, such adaptations being to the socialisation of other means of wealth production as the simple to the complex. And while Bradlaugh, as has been said, stipulated for gradual action even in the regulation of the land, he never refused to contemplate the nationalisation of its rent as an ultimate ideal.

§ 4.

It may now be easily inferred how Bradlaugh came to feel for the popular Socialism of the day a mixture of distrust and aversion. It was for him a flying off at a tangent from the right spiral line of progress. He had counted on seeing the slowly-won political power of the mass of the people turned to the enforcement of fundamental reforms in taxation and land-tenure, so as to better the life-conditions of the people in the mass; and he had trusted to a gradual learning of the lesson of family prudence, with the result of an immense saving of friction, waste, and misery. When he had got to the front of the political struggle, the needed reforms were still nearly all to make; and the great lesson of conjugal prudence was only beginning to be learned on a large scale. What was wanted, to his mind, was a combination of energy with patience. He had no belief in the possibility of raising the lot of vast masses of people to a high level suddenly by violent legislation for the direct transfer of all property from the "haves" to the "have-nots": he knew how enormously difficult it was to effect even the modifying measures for which he was working. But he believed that with persistent toil and good sense it might so be carried out that the life of the people should in the next generation be greatly improved, and the stress of their life materially lessened. Just at this stage, however, he saw the struggling people suddenly and vociferously appealed to by teachers who taught the uselessness of all gradual action; the futility of all preceding parliamentary effort; the impossibility of any improvement so long as private property in any of the means of production subsisted; the limitation of the alternatives to the whole loaf or no bread; the necessity of subjecting all industrial action whatever to collective control at one sweep; in a word, the absolute necessity of effecting at a stroke, by violence if need be, such a social and moral revolution as the world had never yet seen. Already the folly of all

this is recognised by many even of those who resent Bradlaugh's popular exposure of it. Within ten years there has been developed in England a progressive Socialism which repudiates violence, substitutes evolution for revolution, proposes to utilise all the existing political machinery, is glad of gradual advance, is content to urge forward Radicalism, and modifies mathematical politics by biological conceptions. But Bradlaugh had to bear the brunt of the anger not only of the heated crowd who had shouted for the impossible, but of the new sentimental journalists who had patronised them.

First he had been constantly and violently abused, in the early days of his Parliamentary struggle, as being himself a Socialist, by people who knew nothing whatever about his life and doctrine; and his alleged Socialism was one of the pretexts on which some opposed his entry into the House of Commons. The nobleman who then represented the historic name of Percy took that line. A fair sample of the current tone on the subject among the ignorant rich is supplied by their votes *vates sanctissima*, the lady novelist "Ouida," in a letter to the *Fortnightly Review*,^[114] in which she discussed the class politics of Italy. "It is the towns," she explained, "which are the centres of eagerness for unconsidered war, and the foolish credulity of bombastic Radicalism;" and she went on in her best-informed manner to particularise "the 'educated' cad of the Turin or Florence streets, who has heard just enough of Fourier and Bradlaugh to think that society ought to maintain at ease his ugly idleness." The idleness which felt sure of its beauty was naturally resentful. All the while, Bradlaugh was at sharp strife with the Socialists of the moment; and he soon came to be applauded for his course in this matter by the same precious upper-class opinion which had just imputed to him the views he assailed, while new assailants vituperated him as a traitor to principles he had never accepted. It is largely to his destructive criticism that the undefined fashionable Socialism of the present hour owes its comparative rationality;^[115] but there is small thought of acknowledging the service.

Certainly he had struck hard, and this not merely because he was iniquitously and ferociously attacked by Socialists generally.^[116] He saw the new doctrine appealing to and applauded by, not the clear-headed and self-controlled workers, but the neurotic, the noisy, the passionate, the riotous. Instead of meetings of men at once earnest and orderly, such as he had gathered and addressed for so many years, meetings at which debate could

go on without disorder, he saw gatherings of wildly excited men, who could not listen to opposition, who could not sit still in their seats when their view were countered, and who turned a public debate into a public disturbance. Significantly enough, the one town in which the Socialist party, even when pretty numerous, can be trusted to give an opponent a fair hearing, is Northampton, where for so many years he disciplined the workers to orderly activity, and to self-control under extreme provocation. No cause ever needed such discipline more than that of Socialism. It is quite reasonable to plead for consideration for men whose life is hard, and who see idlers at their ease; but extenuating circumstances do not affect the stream of tendency; and no amount of sympathy with the luckless can make up for want of judgment in those who undertake to lead them. And to talk, as so many of the Socialist talkers did a dozen or less years ago, of resorting to physical force, to revolutionise society, was only to expose the luckless to new disaster.

Whether all Bradlaugh's argumentation against Socialist theory will hold good is another question. It is probable that the extreme statements of Socialist doctrine with which he had to deal led him latterly to define his Individualism at times more sharply than before. Not many years before his death he declined to dub himself either Individualist or Socialist. He sought to legislate for an evolving society, conditioned by all sorts of anomalous survivals; and he must prescribe for each juncture or trouble in view of all the facts of the case. As he put it in his pamphlet on "Parliament and the Poor":—

"All progressive legislation in this country is necessarily compromise. It is not possible to legislate on hard and fast lines of principle alone. A state of things has grown up through generations which can only be gradually changed. The expedient has to be considered in all lawmaking. Legal interpretations of right have received judicial sanction, which have become so much part of our general political and social system that sudden reversal would be attended often with the gravest mischief. Temporary concessions have usually to be made on the one side, to win consent from the other, to a sure step in advance; but no compromise is final."

But the affirmation by Socialists of principles which seemed to make an end of self-reliance and self-determination led him to offer definitions of the sphere of Government; and while his concrete decisions—as in the case of the Eight Hours movement—will probably be found to be in all cases sagacious, it may be that political science will yet endorse action which he declined to contemplate. His practical justification is that his Socialist

adversaries always argued the case *in vacuo*, and demanded the nationalisation of all the means of production, and, by consequence, the State determination of all destinies, at a time when not only is the public in the terms of the case still largely predatory and anti-social in instinct, but the Socialists themselves are divided by incurable animosities. Mr Hyndman chose to debate with him on the issue, "Will Socialism benefit the English People?"—"if resorted to here and now" being implied. Only when it is asked, "Can we evolve up to Socialism?" will Bradlaugh's rebuttal be got rid of.

What may perhaps be urged against him, as against land nationalisers from Mill onwards, is that the theory which makes land the main matter is partly undermined by the economic evolution in which agricultural land values in this country have receded, the food supply being more and more derived from abroad, in return for exported goods. On this head, however, it may here suffice to answer that that is in all likelihood a temporary phase; that in any case, English industry rests on the coal supply, which is a matter of land in the economic sense; and that a Socialism which thinks to maintain a forever increasing population, on the basis of a mere national workshop system, is much more short-sighted than the doctrine which makes the land the fulcrum of all industrial movement.

There is just one criticism of Bradlaugh's politics which the present writer will not undertake to meet, since it raises a point on which he was driven to differ from him. It is the objection to the optimistic assumption that the mass of the people can surmount the trouble of chronic trade-depression by means of thrift. This was perhaps the one touch of uncritical optimism in Bradlaugh's political system. He argued that the workers could acquire all necessary capital for themselves by simple saving. "You can earn it," he tells them, at the close of his lecture on "Capital and Labour,"—"the Rothschilds' wealth, the Overstones' wealth, the Barings' wealth—you, the millions, if you are only loyal to yourselves and to one another, may put all this into your own Savings Banks, and your own friendly societies, and your own trades unions, within a dozen years. You accumulate it for others: you can do it for yourselves." The answer to this is that the capital in question depends for its continuance on the continuance of industrial production, and of the demand for the product; whereas, if the workers were to stint their consumption to the extent of saving great masses of capital

from wages, they would to that extent check their total production, unless, that is, the other classes increase their consumption to a balancing extent; which, however, they could not conceivably do. Even if the birth-rate be so checked as to lessen the nett population, the increasing power of machinery would so far balance the lessened supply of labour that the tactic of parsimony on a large scale would defeat itself. At present the successful savers are so in virtue of the ill-luck of other investors and the non-saving of the mass. Saving all round would neutralise itself, since the saving could only be profitably invested in production to meet increasing demand, whereas in the terms of the case there would be decreasing demand. It is spending that keeps the machine going, not saving.

But supposing this criticism to be valid—and there are still but few who will endorse it—the final estimate of Bradlaugh, as of any politician, must be in terms of comparison; and if he has erred on the theory of thrift, so have all the statesmen of his time; while on other great issues on which they were backward, he was alert and enlightened. Even the Socialists who oppose him, and throw at him the ancient epithet of "Manchester," have in many cases committed themselves to the Manchester school's doctrine of saving, deriding those who contravene it. And on the concrete issues on which they were opposed to him, it is not difficult to show that Manchesterism had the right end of the stick. On the Eight Hours' question, in particular, the Socialist attack on him is not only subversive of other Socialist doctrine, but is a *reductio ad absurdum*. He is accused of inconsistency, because he wrought for State interference with the relations of labour and capital in his Truck Act, but opposed State regulation of working hours. But, on the one hand, the two cases are fundamentally different, since working hours depend on the whole economic situation, while Truck is an arbitrary arrangement of the masters, only possible in peculiar local circumstances; and on the other hand, if the Truck Act logically commits us to interference with working time, then a time law will logically commit us to a wages law, which even the Socialist critic admits to be folly.

That Bradlaugh was no pedantic individualist is shown, not only by his Truck Act, but by his agitation for a Labour Bureau, which was the origin of that institution, though the official Liberal press usually gives all the credit to Mr Mundella, who merely acted on Bradlaugh's urging. And while the

latter held that the action of the trade unions was in some cases mistaken, he never ceased to urge their attention to political affairs all round.

"Many of the great trades organisations and friendly societies," he wrote in 1889, "have until recently prided themselves on being non-political. Some of the trades societies and nearly all the friendly societies still so pride themselves. This has been a serious blunder, especially in a country where much legislation has been the work of a very limited class for the conservation of their own privileges."^[117]

His liminary principle was one of sound common-sense, whether or not he recognised the full force of the economic indictment of competitive individualism.

"A good working doctrine for legislatures should be to mould conduct rather by the development of sound public opinion than by the operation of penal laws. Especially should the legislature be careful not to profess to do that for the worker, which it is reasonably possible for him to do for himself without the aid of the law. A duty enforced by others is seldom so well performed as a duty affirmed by the doer."

And these principles, which perhaps serve even some professed Liberals mainly as a ground for doing nothing, were with him a ground for insisting on an act of justice and expediency which such Liberals have been very loth to accede to. Bradlaugh's action in the great test case of recent English politics is a decisive proof of his foresight.

§ 5.

As the story of his life has shown, Bradlaugh had had special opportunities of studying the Irish question from the inside; and from the day when his young blood boiled at the murderous cruelty of an Irish eviction, he steadfastly supported the cause of the misruled Irish people. He never ceased to love England with that touch of pride and faith which is the whole stock-in-trade of the average patriot; but, combining it as he did with an intense sense of justice, he could never let that devotion blind him to the wrongs of other peoples at England's hands. And in the first years of his political activity, when he was pleading for rebel Poles and rebel Italians, he seems to have so far recognised the right of Irishmen to use force against the force of England, that he assisted the Fenian conspirators of 1867 to draw up their Republican proclamation, so revising it as to exclude every expression of race hatred and every appeal to religious feeling; "the complete separation of Church and State" being one of its stipulations. The full details of that connection will probably never now be known; but what

is quite clear is that Bradlaugh was not only then opposed to the idea of an Irish Republic, but soon ceased to have the least faith in the possibility of a successful or even a well-planned Irish rising; while his invariable opposition to useless violence was emphatic in the case of the Clerkenwell and other outrages. All the more earnestly did he continue his propaganda for Irish reform. Holding as he did that the land question was fundamental in English politics, he could not but see that it was the very heart of the Irish trouble; and to the agitation for Irish land law reform he gave energetic support. But he was always far ahead of the slow movement of average English opinion; and while English Liberals were hoping that the concessions carried out by Gladstone would make Ireland a contented partner in the Union, Bradlaugh had already given his assent to the claim for Home Rule; always, however, flatly opposing the doctrine of separation. On this he was explicit when, speaking in New York in 1873, he found otherwise friendly Irish auditors disposed to be satisfied with nothing short of absolute severance from England. Home Rule, however, he all along considered to be not only just but inevitable. While those of us who hoped for a real Union (with Irishmen admitted to perfect equality in the Executive system) were urging that as a solution which escaped the proved dangers of Federalism, he had made up his mind that Englishmen could not and would not ever deal with Ireland as an integral part of the State; and he had declared himself a Home Ruler long before Mr Gladstone, who had frustrated the hope for a true Union by consistently keeping Irishmen out of his cabinets. That, helping as he thus did the Home Rule movement, he should yet have been treated with bigoted hostility and injustice by the bulk of the Irish Nationalists in his Parliamentary struggle, was so remarkable that explanations were demanded; and the Nationalists offered several, to the effect that Bradlaugh had turned against them. It is necessary to go into some detail to show that this is untrue.

At the outset of his Parliamentary struggle Bradlaugh was not only not regarded as an opponent by the Nationalists as a political party, but was even defended by Parnell, although against the wish of most of that leader's Catholic followers; and despite the quickly shown ill-will of these, Bradlaugh continued to support their cause in the House during the nine months of his conditional tenure of his seat, 1880-81. But as he never hesitated to counter what he held to be wrong policy among English democrats, so he condemned, albeit reluctantly, what he held to be

unjustifiable courses on the part of the Parnellites. This appears in his "Parliamentary Jottings" in his journal under date 5th September 1880, where he says he "much regretted, during the long conflict of Thursday-Friday, to find himself brought into collision with the Irish members." Nineteen Irish members had spoken, with his entire sympathy, against the Constabulary Vote; and after midnight they sought to postpone the discussion, on the ground that "more Irish members wished to speak," though not a penny of the estimates had been voted. There were only twelve more Home Rulers present, and they could all have spoken had they wished. They, however, appealed to the Radicals to help them to delay business, on the score that the Constabulary Vote was a "life and death question." As obstruction could only delay and not stop the vote, Bradlaugh objected, and made a speech to that effect, which was warmly cheered by the Liberals, and as warmly condemned by Home Rulers; though, when it came to voting, only 27 of the 61 Home Rulers went into the lobby. Obstruction he always condemned. This was a pretext for Irish hostility, though there had been abundance of that already. Some weeks later he writes:—

"My personal position as to Ireland is by no means an easy one. I find English Radicals in general, and myself in particular the subject of constant abuse in Irish journals. I read words attributed to Irish members of the House of Commons full of the most intense hostility to everything English, and find speakers in their presence declaring that the land movement is only the cover for the disruption of the two countries."

And after quoting some of the frenzied sayings of Irish Americans, he appeals to "Mr Parnell and his co-traversers," and other responsible Nationalists, "not to check our desire to co-operate with them by their open declarations of hostility to our race;" and "in the name of humanity ... to check the tendency of the people whom they lead to waste their energies in worse than useless force." At the same time, he protested against the prosecution of Mr Parnell and his colleagues by the Liberal Government, supported the fund for their defence, and incurred new hostility in England in consequence. Correspondents wrote him on both sides, and he answered:

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"We must ask both sides to be a little patient. The agrarian crimes cannot be justified, nor does our contributing to the Parnell Defence justify these. We subscribe in order that he and others may have fair play: it is never easy to be defendant.... Some remind us that three-fourths of the Irish M.P.'s voted against us, and nearly every Irish paper attacks us. That is so, but it does not alter our duty. Our duty is to

work honestly for redress of Irish grievances, although even every Irishman should be personally unjust to us."

One form of the injustice is seen in an editorial sentence from the Dublin *Freeman* about the same time, *àpropos* of the argument of the Tory *St James's Gazette*^[119] to the effect that over-population was the cause of Irish distress. "Does the *St James's* propose," asked the *Freeman*, "the introduction of Bradlaughism into Ireland, when it says that the 'rapid growth of population, which is checked in some countries,' must be fatal to the prosperity of cotter families across the Channel?" The Tory argument was really a sample of the method of utilising the principle of population solely as a reason for not doing justice, while vilifying those who not only see the trouble but point out the remedy. Not a word of support did Bradlaugh ever get from a Tory organ in his attempt to avert the evil of over-population. But as regards Ireland, he not only recognised that over-population there was positively fostered by the unjust land system, but he again and again in the House denied that even wholesale emigration, if practicable, would cure the evil while that system endured. In July 1880 he writes:—

"I had to listen to the Hon. B. Fitzpatrick, sent by 118 votes for the borough of Portarlinton, who, in the course of a wild display of imbecility, had the audacity to declare that wholesale emigration of the natives of Ireland was the 'only remedy' for Irish distress; and this was said by an Irishman."

On the 15th of the same month, in the debate on the second reading of the Irish Tenants' Compensation Bill, he protested against the irrelevance of the Tory opposition to the Bill.

"There had been renewed the argument that Ireland was over-populated, and that the tenants who were distressed ought to find in some other country the relief they could not find in Ireland. Now, there was no colony in England, and there was no part of the United States of America, to which any poor man without means could go, hoping to benefit himself at the present time. Therefore, those who recommended emigration had either never taken the trouble to investigate the matter, or were simply talking against time to delay the measure going into committee."

Again, though in January 1881 he found himself "driven into the lobby, for the first time this Session, against the Irish members, only to vote that the business of the House was not to be absolutely stopped by an utterly irregular discussion," he took a most active part in opposing the Government's coercive measures. In the debate on the address he "made one of eight English Radicals who alone had been found to record their votes in

favour of Mr Parnell's amendment," though feeling that the Irish methods of hindering business had kept many English members out of the Nationalist lobby; and when Mr Forster made his appeal for special powers, Bradlaugh made a strong speech in support of one of the Irish amendments.^[120] Yet again he felt bound to vote for the suspension of Mr Biggar, doing it "with very heavy heart," and grieving "that Irish members should so play into the hands of their enemies, and so totally damage the cause of their country." Of the later suspensions of Mr Dillon and the O'Gorman Mahon, he wrote with much regret; but for others who had, outside, "boasted that they wished to degrade Parliament," he confessed he had "little pity." None the less, he moved the rejection of the Coercion Bill on the second reading, in the never-explained absence of Mr Parnell, who had suddenly gone to Paris. The Irish Anti-Coercion Committee, who had just denounced him in one of their leaflets for his votes against obstruction, felt constrained about this stage to send him a vote of thanks. All the while, his journal had published numerous articles sharply attacking the Government's coercion policy.

A vote on the Arms Bill was the last act by which Bradlaugh ministered to the wish of the Nationalists to have a case against him. He had repeatedly protested against the advice given by Mr Dillon and others to Irish peasants to buy rifles; and he held that the case of Ireland was bad enough without adding to wrong and misery the freedom to seek amends in murder. His vote on this point, like his votes against obstruction, were held by the Parnellites to outweigh all his protests against coercion and all his appeals for land law reform; his exclusion from Parliament after the decision in the Law Courts in the spring of 1881 was hailed by most of them with delight; and during his long battle outside, they were among his worst enemies, the Irish press and people fully abetting them. Still he never relaxed his advocacy of the cause of the Irish peasantry, pleading for a merciful and conciliatory treatment of them when they were hooting his name; and when he at length obtained his seat in 1886 he gave his unhesitating support to the Home Rule policy of Mr Gladstone. It was in that year that a leading Irish Nationalist went up to him in the House with the greeting, "Mr Bradlaugh, you have been the best Christian of us all." Considering that only the influence of the Catholic priesthood could account for the course taken by the Parnellite party, the acknowledgment—in spirit if not in form—was suggestive of some moral progress on the Christian side.

It may be questioned whether many Liberals could have thus borne the test undergone by Bradlaugh on the Irish question. It is certain that Bright, with all his chivalry and rectitude, was somewhat influenced in his latter attitude on that question by the evil return which Irishmen had made to him for all his efforts on their behalf. Bradlaugh suffered far worse treatment at their hands, but was in no way turned by it from his conviction of what was just. He was content to recognise that the people were swayed by the priests, and that in any case it is vain to look for the moral fruits of equality from a people to whom equality has been for ages denied. He had been treated by Irish Nationalists as he had been by English Conservatives; and though he felt the ingratitude of the former, he would not admit that they had shown any grosser unscrupulousness than the latter, who had denied justice to an Englishman on motives of party strategy, reinforced by religious malice. If there was any difference, it was that the Irishmen had been more moved by religious malice and less by party strategy; and it is usual to rate the latter motive the lower of the two.

Bradlaugh himself would never have claimed that he had shown any special magnanimity in the case; but those who know how much personal interest or pique counts for in political action will recognise the singularity of his course. It belonged to his character, equally with his avowal and advocacy of unpopular opinions. Later, when the question of Woman Suffrage was being pressed on his constituency, he was told by Mr Labouchere, as he had been told by others before, that if the women of Northampton had a vote he would not be returned. His public answer was:—

"If I knew this to be true, it would not hinder me from casting my vote in favour of woman suffrage, even if my vote alone should be required to pass the Bill. I deeply value the representation of Northampton, but the grant of the right of woman to the suffrage cannot be determined by the fact that, if legalised, her exercise of that right according to her conscience would be personally hostile to myself."

It may be doubted whether Mr Labouchere gauged the situation aright. When Bradlaugh stood for Northampton in 1868 and was beaten, the wives and women-folk of his supporters subscribed their scanty pence, and bought him a gold pencil-case. If after hearing the utterance above cited the Northampton women of to-day were capable of voting in the mass against a man so declaring himself, they would indeed give Mr Labouchere a better case against their enfranchisement than he has yet been able to make out. But would they?

§ 6.

In virtue of the qualities which made him a warm friend of Ireland, Bradlaugh was all his life, and in his latter years still more warmly, the friend of India. All his instincts of justice and sympathy were moved by the spectacle of that vast congeries of immemorably immature races, ruled by a bureaucracy of Englishmen, none of whom would for a moment be trusted to exercise similar power over their fellow-countrymen, but all of whom collectively are assumed by their countrymen to need next to no supervision when ruling a "lower" race. Again and again Bradlaugh protested, as other Englishmen had protested before him, against the inveterate apathy with which the House of Commons regards Indian questions, as shown by the scanty handful of members who attend to hear them discussed once a year. The death of Professor Fawcett, "the member for India," left Indian interests ill cared for indeed, and immediately on gaining his seat Bradlaugh stepped into the vacant place, although it was by itself work enough for one man, and he had three men's work on hand besides.

His speech on India in 1883 to his constituents shows the broad and systematic way in which he approached the problem. He studied it with the minute care he bestowed on every subject he handled; and in a few years he acquired by his work an amount of popularity among natives such as had never before been earned by an Englishman outside India, and by few Anglo-Indians. As this work was mostly done after his Parliamentary struggle was over, the record of it belongs to the story of his closing years; but it was only the consistent sequel to his previous political life. He took up the cause of India as he had done those of Italy, Poland, Ireland, of Boers, Zulus, and Egyptians, with no thought or prospect of personal gain, out of sheer zeal for justice and hatred of oppression. And inasmuch as Anglo-Indians of the school of Mr Rudyard Kipling have consistently derided and denounced his Indian policy, it may be fitting to note at this point the advantage that policy has over such opposition in respect of its relation to universal political principles. The doctrine of Mr Kipling's school—who may be defined as barbaric sentimentalists—is that Asia in general, and India in particular, are absolute exceptions to all the principles of European politics. The East, they say, is unprogressive, unchangeable, unimprovable. The most direct confutation of that doctrine is supplied by the simple fact of the persistence of the Congress movement, which at its

outset the sentimentalists scouted as a chimera. Whatever may be its outcome, they are for ever discredited, in that they declared the thing itself, when broached, to be impossible. And those whose sociology goes deeper and wider than a rule-of-thumb acquaintance with part of the actual life of a race or a region are aware that India can no more than any other land resist the laws of social transmutation, given the transmuting forces and conditions. It is extremely unfortunate that many Englishmen are ready to accept as final the sweeping sociological dicta of Mr Kipling, on the score merely of his first-hand knowledge of Indian life and his literary genius. Foolish generalisations on social possibilities have been made in every country in every age by men with first-hand knowledge of their theme; and it must be regretfully said that foolish men of genius are among the most eminent darkeners of counsel on such matters. When Mr Kipling gives a particular account of a particular phase of Indian life, Englishmen who in the terms of the case have no knowledge of that life accept the account as a "revelation," when obviously their estimate of it in that light has no critical value whatever. Strong in the suffrages of such judges, Mr Kipling has been pleased to speak of Bradlaugh as being prepared by defective education to take that mistaken view of Indian life which Mr Kipling inexpensively imputes to all inquiring Englishmen at home. The sufficient answer to that criticism is that there are many kinds of defective education, and that nobody can well be further wrong about India than Mr Kipling, inasmuch as he has himself contradicted every one of his own numerous generalisations by others. He first came forward with pictures of the Indian Civil and Military Services, in which they appeared nearly as corrupt as those of Russia are said to be: husbands getting promotion on the score of their wives' adultery, and so forth. Later he saw fit to represent the Indian Civil Service as embodying every virtue a Civil Service can have. As a rule, he pictures the English in India as the "Dominant Race," with impressive capitals, and the natives as being universally cowards. When, however, a native officer can "play like a lambent flame" on the polo-field, and can transgress every law of hospitality by thrasonically declaring defiance to Russia in the person of a Russian officer at a British mess-table, that native becomes even as an Englishman in Mr Kipling's eyes. The simple canon of Mr Kipling is the feeling that any race which thwarts his own must be base. Thus every indiscreet Russian officer must needs be a blackguard, and every disaffected Irishman a ruffian and a sneak; the evil principle being so

deep rooted that the Asiatic children of an Irishman spontaneously take to cutting off cows' tails; though at the same time the Irish soldier is a hero of heroes, if only he is duly devoted to "the Queen, God bless her." It will be a bad business for English rule in India when minds which sociologise in this fashion come to be the guides of the British people in their political relations with their dependency.

Bradlaugh, it may suffice to say, was under no delusions as to the present political capacity of the Indian races. He perfectly recognised their bias to rhetoric and their immaturity of character, as well as the enormous difficulties in the way of their political amalgamation. Hence his programme for them was an extremely gradual introduction of the principle of self-rule. Nothing could be more judicious and restrained than his brief address to the Congress on his brief visit to India after his dangerous illness of 1889, within about a year of his death. And the chances are that before a generation is over his view of the case will be the accepted commonplace of Liberal politics; while the notion of a perpetual domination of Englishmen in a country where they cannot rear healthy children will be regarded as a crowning flight of unscientific political sentiment. In any case, it implies no great rashness to predict that an England which ignores the affairs of its subjects as much as possible in Parliament will not long be able to maintain a despotic rule over a people accessible to Western ideas. The Home Rule principle, which was for Bradlaugh a principle of universal virtue, however different the degree of its application to a given case at a given moment, must in time be wrought out in India as elsewhere, if only it goes forward in the West, and the West keeps up its growing intercourse with the East. And it was one of his many political merits to have been one of the first to see this not only abstractly but in the concrete.

Enough has now been said to convey a broad idea of the manner and matter of Bradlaugh's philosophy of life, cosmical and political, as it was developed and acted on by him at the time of his most memorable appearance on the arena of British public life. At that time much work, though not many years of life, remained to him, so that some who then opposed him claimed afterwards that they could not have known his capacities for good, as exhibited in his extraordinary Parliamentary labours. But the foregoing account of his teaching and action will probably suffice to show that his political career was all of a piece, and that at the time of his

ostracism he had given proof of all the powers and opinions which were later admitted to do him honour. Neither, as we shall see, did he in later life surrender any one of the teachings of his earlier years. He laid more stress on some and less on others; but he unsaid nothing, and for the most part he did but carry on his youthful programme. Before 1880 he had been the ardent and yet sagacious friend of oppressed nationalities, the advocate of Radical land law reform, the defender of liberty of conscience, the exponent of the claims of the poor against the rich, the preacher of unpopular but all-important doctrines on personal conduct. In the brief period of his first tenure of his seat he wrought vigorously against the abuse of Perpetual Pensions, which he was later the means of removing, though not in a fashion fully satisfying to himself. In the same period he exhibited a constant concern for the remedying of all manner of grievances. As early as 1863, too, he had taken what Mill rightly calls the extremely undemagoguelike line of publishing a pamphlet in favour of Proportional Representation, on the lines of Hare's scheme—a "counsel of perfection" still too high for most democrats.

As for his general tone of feeling on the questions which turn in an equal degree on feeling and judgment, it is well illustrated by the last non-personal speech he made in the House in the period of his conditional tenure of his seat. It was delivered on 28th March, and was on the subject of flogging in the army:—

"Mr Bradlaugh said he wished to say a few words on this matter from a different point of view than other members who had spoken. He had been a private in the army during the time that flogging was permitted for offences now described as trivial, and he heard the same argument used, that it would cause a relaxation of discipline if flogging were abolished. If hon. members opposite knew the feeling of the soldiers at that time it would have much modified some of the speeches delivered to-day (hear, hear); and the hon. member for Sunderland (Sir H. Havelock-Allan) would be surprised to hear the number of letters he had received from private soldiers, asking him to speak on this subject to-day. There was a feeling of utter detestation against the punishment, not simply on the part of the men who were likely to suffer from it, but on the part of every one else. Private soldiers in England occupied a position which no other private soldier in the whole of Europe occupied, and he did not know any other country in the

whole world where it was a disgrace to wear the uniform of your country. He remembered upon one occasion he went into an hotel in a great city and ordered a cup of coffee, and was told that he could not be served because he wore the uniform of his country. All punishments which made soldiers seem less reputable than their fellow-citizens ought to be abolished. He asked the Government to allow nothing whatever to influence them in favour of this most degrading punishment. The men who once felt the lash were not loyal to any command, and they felt a bitterness and an abhorrence of every one connected with the ordering of the punishment. If they flogged a man engaged on active service, he was either a good man or a bad man, a man of some spirit or none at all. If he were a man of any spirit, there were weapons in his hands, and he might use them for purposes of revenge. The hon. and gallant member for Wigton Burghs talked of men who preferred the lash. The army would be far better without such men. (Mr Childers: Hear, hear.) He had seen the lash applied, the man tied up, and stripped in the sight of his comrades; he had seen the body blacken and the skin break; he had heard the dull thud of the lash as it fell on the blood-soddened flesh, and he was glad of having the opportunity of making his voice heard against it to-day, and trusted that nothing would induce the Government to retain under any conditions such a brutal punishment. (Cheers.)"

And it was with these matters in their knowledge that a majority of the House of Commons subjected him for five years to an extremity of wanton injustice of which it is still difficult to think without burning anger. The story of that injustice must now be separately told.

CHAPTER III.

THE PARLIAMENTARY STRUGGLE.

Chronological Summary.

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| 1880 April | 2. Bradlaugh elected (with Mr Labouchere) for Northampton. |
| May | 3. Asked to be allowed to make affirmation of allegiance. A Select Committee agreed to be appointed to consider his claim.
12. Committee of 17 appointed.
20. Committee reported, by casting vote of Chairman, against the claim to affirm.
Bradlaugh announces his intention to take the oath.
21. Presented himself at the table of the House to do so. Motion made that he be not permitted. Amendment moved by Mr Gladstone, that the claim to take the oath be referred to a Select Committee, carried by 289 votes to 214.
28. Committee of 23 appointed. |
| June | 2. Bradlaugh examined by Committee.
16. Committee reported that Bradlaugh could not properly take the oath, and recommended that he be allowed to affirm at his legal peril.
21. Committee reported that Bradlaugh could not properly take the oath, and recommended that he be allowed to affirm at his legal peril.
22. Motion defeated by 275 votes to 230.
23. Bradlaugh again presented himself, claiming to be sworn. Made his <i>First Speech at the Bar</i> . Refusing to withdraw, was finally taken into custody on motion of Sir Stafford Northcote. |

- 1. Bradlaugh unconditionally released from custody.
- July 1. Mr Gladstone moved as a Standing Order that members-elect be allowed at their choice to affirm, at their legal peril. Motion carried by 303 votes to 249.
- 2. Bradlaugh made affirmation of allegiance and took his seat. On giving his first vote, was served with a writ suing for penalty.
- 14. Tory Bill introduced to incapacitate all Atheists for membership (fell through).
- 31. Judgment given against him on appeal. Seat thus vacated.
- April 9. Bradlaugh re-elected for Northampton, by 3437 votes to 3305.
- 26. Presented himself to be sworn. Made his *Second Speech at the Bar*. Motion made that he be not allowed to take the oath, carried by 208 votes to 175, many Liberals and Home Rulers abstaining. Bradlaugh again presented himself to be sworn, and refused to withdraw. House.
- 27. Bradlaugh presented himself as before, and refused to withdraw. After debate, withdrew on informal understanding that Government should attempt to introduce an Affirmation Bill.
- 29. Government announced this intention.
- May 2. Attorney-General in Commons moved for leave to introduce Bill. Debate adjourned.
Lords Justices of Appeal decided against Bradlaugh on the separate issue of his affirmation being a sufficient answer to the claim that he was liable in a penalty for voting without being sworn.
- May 2. Attorney-General in Commons moved for leave to introduce Bill. Debate adjourned.
Lords Justices of Appeal decided against Bradlaugh on the separate issue of his affirmation being a sufficient answer to the claim that he was liable in a penalty for voting without being sworn.

6. Debate in Commons again adjourned owing to Tory obstruction.
10. Government, owing to continued obstruction, postponed the Bill. Resolution carried, on motion of Tory leader, that Bradlaugh be prevented entering House.
- 16- Clarke's counsel moved before Lord Coleridge and Mr
17. Bowen for judgment. Bradlaugh moved to be heard afresh on the point of the validity of the writ, the issue of which he contended had been too soon for legality.
25. Bill of indemnity to Bradlaugh, introduced by Mr Labouchere, blocked by Mr Newdegate, who had been the private maintainer of the action for penalties.
- June 20- Plaintiff having amended statement as to date of voting,
21. and Bradlaugh demurring that writ was void as being dated on the day of the voting sued upon, Justices Denman and Watkin Williams decided against him on the legal point. Bradlaugh appealed.
- July 19, The question of fact as to the actual hour of issue of the
- 20, writ came before Justice Grove and a special jury. The
22. jury, after declaring themselves unlikely to agree, gave a majority verdict in favour of Clarke.
27. Police summonses obtained on Bradlaugh's behalf against Mr Newdegate and his solicitor for the criminal offence of maintenance.
- 28, and Bradlaugh moved before Justices Grove and Lindley for a
- Aug. 1. new trial on the point of time of issue of Clarke's writ, and argued the point. Decision delayed.
- Aug. 3. Bradlaugh, on trying to enter the House, was seized by officials; and he resisting, was forcibly ejected after a struggle by four messengers and ten policemen. Immediately afterwards he was formally resisted in a formal attempt by Inspector Denning.
5. Application by Bradlaugh for a summons against Inspector Denning refused by Mr D'Eyncourt, police magistrate.

8. Application by Bradlaugh for a summons against Inspector Denning refused by Mr D'Eyncourt, police magistrate.
- Sept. 20. The summonses against Newdegate and his solicitor dismissed by Mr Vaughan, magistrate.
- Nov. 12, Bradlaugh's appeal from the decision of Justices Denman
14. and Watkin Williams (as to validity of writ dated on day of ground of action) heard by Lord Coleridge and Lord Justices Baggallay and Brett. Decision again against Bradlaugh.
- Dec. 2 Pleadings heard on the rule *nisi* for a new trial on the and question of fact as to the hour of issue of the writ. Rule 3. made absolute in Bradlaugh's favour.
- 1882 Feb. 7. On the reassembling of Parliament, Bradlaugh again presented himself, the excluding order having expired with the Session in which it was passed. Northcote moved that he be not allowed to swear. Government moved the previous question. Bradlaugh *heard at Bar for the Third Time*. Northcote's motion carried by 286 votes to 228. Bradlaugh again presented himself, but being ordered to withdraw below the bar, did so.
10. Mr Labouchere moved for a new writ for Northampton. This refused by 307 votes to 18. Bradlaugh then advanced to the table, administered the oath to himself, withdrew below the bar on the Speaker's order, but returned and took his seat. Churchill moved that the seat be declared vacant. Debate adjourned.
21. Northcote moved an amendment to exclude Bradlaugh from the precincts of the House. On its being noticed that Bradlaugh had again seated himself within the House (he proposing to speak), the Speaker ordered him to withdraw, and Northcote moved his complete expulsion. This carried by 297 votes to 80, and a new writ was agreed to.
21. Judgment given against Bradlaugh in Clarke's appeal against rule for a new trial.

- Mar. 2. Bradlaugh once more elected for Northampton by 3796 votes to 3688.
6. Northcote again moved that Bradlaugh be not allowed to take the oath should he again present himself. Mr Marjoribanks moved amendment that it was desirable to amend the law, making affirmation optional. Northcote's motion carried by 259 votes to 244.
- Mar. 29. "Judgment" given against Bradlaugh for £500 penalty. Costs reserved.
- April Action brought by Bradlaugh against Mr Erskine, Deputy Sergeant-at-Arms, for assault of 3rd August 1881.
- May 9. Bradlaugh moved before Lord Justices Brett and Cotton for leave to appeal in Clarke case on point of costs. Appeal dismissed: matter left to the House of Lords with the main appeal.
15. Justices Manisty and Watkin Williams declined to hear friendly action by Gurney against Bradlaugh for not taking his seat. Pleadings to be readjusted.
- July Affirmation Bill, introduced by Duke of Argyll in House of Lords, defeated.
11. Prosecution begun against Bradlaugh, Foote, and Ramsey by Sir Henry Tyler, before Lord Mayor, for "publication of blasphemous libels" in the *Freethinker*.
21. Bradlaugh "committed for trial." Bail accepted.
- 1883 Feb. 2. Second *Freethinker* prosecution begun, Bradlaugh not being included.
20. Government moved for leave to introduce an Affirmation Bill: motion carried by 184 votes to 53.
- Mar. 5, 6. Bradlaugh's appeal in the Clarke suit heard by the House of Lords, he pleading in person.
6. Foote, Ramsey, and Kemp sentenced to terms of imprisonment in *Freethinker* prosecution.
9. Bradlaugh's action against Newdegate for "maintenance"
17. heard by Lord Coleridge, Bradlaugh appearing by counsel.

- 6. Foote, Ramsey, and Kemp sentenced to terms of imprisonment in *Freethinker* prosecution.
- 9, Bradlaugh's action against Newdegate for "maintenance"
- 17. heard by Lord Coleridge, Bradlaugh appearing by counsel.
- April 9. House of Lords gave judgment for Bradlaugh in his appeal, with costs.
- 10. Bradlaugh separately tried on the first *Freethinker* indictment before Lord Coleridge and a jury. Verdict of acquittal.
- April 24, Foote and Ramsey (now prisoners on conviction in 25. second prosecution) tried before Lord Coleridge and a jury on the original indictment. After the judge's summing up, the jury disagreeing, the Crown decided to abandon this prosecution (prisoners already very heavily sentenced).
- May 3. Debate on second reading of Affirmation Bill. Bill rejected by a majority of 3—292 against and 289 for.
- May 4. Bradlaugh again presented himself to be sworn. Northcote moved that he be not allowed to take the oath. Being allowed to speak, Bradlaugh made his *Fourth Speech at the Bar*. Mr Labouchere moved the "previous question," and was defeated by 271 votes to 165.
- July 9. Bradlaugh having notified his intention again to present himself (by way of raising a testing action at law) Northcote moved his exclusion. Carried by 232 votes to 65.
- 19. Bradlaugh began test action against the Sergeant-at-Arms for resisting his entrance to the House.
- Dec. 7. Bradlaugh v. Gossett heard before Lord Coleridge and Justices Stephen and Mathew.
- 1884 Feb. 9. Judgment given against Bradlaugh.
- 11. Bradlaugh once more presented himself at the table of the House, and administered the oath to himself. Motion by Northcote that he had not really sworn, and that he be not

- allowed to swear, carried by 258 votes to 161. Motion by Northcote of complete exclusion, carried by 228 to 120.
12. New writ allowed for Northampton after Tory resistance.
 19. Bradlaugh re-elected for Northampton by 4032 votes, to 3664 for Richards.
 21. Though Bradlaugh undertook not to present himself till the decision were given in the action to be brought against him by the Government for his last oath-taking, Northcote moved afresh his complete exclusion from the precincts of the House. Carried by 226 to 173.
- June 13. Government's action against Bradlaugh for illegally taking the oath, heard before Lord Coleridge, Mr Baron Huddleston, and Mr Justice Grove, "sitting at bar," and a jury, five counsel acting for the Crown, Bradlaugh pleading his own cause.
30. Lord Coleridge summed up. Jury gave answers for the Crown. Bradlaugh asked for a stay to move for a new trial.
- Dec. 6. Motion for new trial heard by the same judges sitting "*in banc*". Rule refused. Bradlaugh appealed.
15. Appeal heard by Lords Justices Brett, Cotton, and Lindley.
 18. Judges of appeal gave rule *nisi* on points of law only, the appeal in arrest of judgment to be argued at the same time.
- 1885 Jan. 26. Arguments heard on whole case.
26. Judgment given against Bradlaugh as incapable of taking an oath in law. Notice of appeal given.
- July 6. On the new (Conservative) ministry taking office, Bradlaugh again presented himself to be sworn. Motion of exclusion by Sir M. Hicks-Beach. Amendment moved by Mr Hopwood (who had introduced an Affirmation Bill) declaring that legislation was necessary, lost by 219 votes to 263.

- Nov. 25. Bradlaugh again carried for Northampton at the general election, the figures being—Labouchere 4845; Bradlaugh 4315; Richards 3890.
- 1886 Jan. 13. The new Speaker (Mr Peel) permitted Bradlaugh to take the oath, refusing to allow any interference. Affirmation Bill introduced by Mr Sergeant Simon, but never brought to a second reading.
- 1888 Aug. 9. Bradlaugh carried a general Affirmation Bill, which passed the House of Lords and became law.
- 1891 Jan. 279. While Bradlaugh lay dying, the House of Commons passed a resolution, moved by Mr W. A. Hunter, expunging from the Journals of the House the resolutions excluding him in former years.

§ 1.

In the general election of 1880 Bradlaugh was at length elected member for Northampton. He had fought the constituency for twelve years, and had been defeated at three elections, at one of which he was not present. As has been made plain from the story of his life thus far, it was his way to carry out to the end any undertaking on which he entered, unless he found it to be wholly impracticable; and he was very slow to feel that an aim was impracticable because it took long-continued effort to realise it. He seems first to have thought of standing for Northampton about 1866. At that time Northampton was already reckoned a likely Radical constituency, not so much on account of its Parliamentary record as on the strength of the Radical element in its population. The trouble was that for long the bulk of the workers were not electors. His eloquence could win him a splendid show of hands in the market-place, but the polls told a different tale. The Whiggish middle classes were in the main intensely hostile to him, on political as well as on religious grounds; and the influence of pastors and masters alike was zealously used against him. After the passing of the Household Suffrage Act of 1868, however, the constituency became every year more democratic. The Freehold Land Society, some of whose founders and leading members were among his most devoted and capable followers, created year after year scores of freeholds, the property of workers, in a

fashion that has finally made Northampton almost unique among our manufacturing towns. The electorate, which in 1874 had stood at 6829, had in 1880 risen to 8189; and of these it was estimated that 2,500 had never before voted. Of the new voters, the majority were pretty sure to be Radicals, and as Bradlaugh's hold on the constituency had grown stronger with every struggle, it began to be apparent to many of the "moderate Liberals" that a union between their party and his must be accepted if the two seats were not to remain in Tory hands. In the early spring, however, the confusion of candidatures seemed hopeless. Mr (now Sir) Thomas Wright of Leicester stood as a Liberal candidate at the request of a large body of the electors, and though not combining with Bradlaugh, deprecated the running of a second and hostile Liberal candidate. Other Liberals, however, brought forward in succession three candidates, of whom the once well-known Mr Ayrton was the most important. He, however, failed to gain ground, partly by reason of the qualities which had made him a disastrous colleague to Mr Gladstone's ministry, partly by reason of coming to grief in a controversy with Bradlaugh as to the facts of the agitation for a free press, and free right of meeting in Hyde Park, in regard to which Mr Ayrton claimed official credit. His candidature finally fell through when he met with an accident. A Mr Hughes was brought forward, only to be removed from the contest by an attack of illness. Mr Jabez Spencer Balfour, of recent notoriety, made a very favourable impression, but could not persuade "moderates" enough that the Liberals ought to unite with the Radicals. A little later Mr Labouchere was introduced, and giving his voice at once for union, found so much support that Mr Wright, with great generosity and public spirit, shortly withdrew, giving his support to the joint candidature of Bradlaugh and Labouchere, who stood pretty much alike in their Radicalism, though the latter was described in the local Liberal press as the "nominee of the moderate Liberals." As he explained in his own journal, a man who was a moderate Liberal in Northampton would rank as a Radical anywhere else. The joint candidature once agreed upon, victory was secure.

The Tory candidates were the former sitting members, Mr Phipps, the leading local brewer, and Mr Merewether, a lawyer. Their platform opposition was not formidable, and the greatest play on their side was made by the clergy and the press, who sought to make the contest turn as far as possible on Bradlaugh's atheism and on his Neo-Malthusianism. Nearly all the Established Church clergy, and some of the Nonconformists preached

fervently against the "infidel." On the Sunday before the election the vicar of St Giles' intimated that "to those noble men who loved Christ more than party, Jesus would say, 'Well done!'" and on the day before the poll many thousands of theological circulars were showered upon the constituency. On the other hand, the deep resentment of Lord Beaconsfield's foreign policy felt by a great part of the nation led to unheard-of concessions on the part of the Nonconformists. The late Mr Samuel Morley, a representative Dissenter, wealthy and pious, being appealed to for an expression of opinion on the Northampton situation, sent to Mr Labouchere a telegram—soon repented of—"strongly urging necessity of united effort in all sections of the Liberal party, and the sinking of minor and personal questions, with many of which I deeply sympathise, in order to prevent the return, in so pronounced a constituency as Northampton, of even one Conservative." At the same time Mr Spurgeon was without the slightest foundation described in the Tory press as having said, with regard to the fight at Northampton, that "if the devil himself were a Liberal candidate, he would vote for him;" and it was supposed that the anecdote affected some votes.

But before any of these episodes had occurred, Bradlaugh was tolerably well assured of victory. His organisation, then controlled by his staunch supporter Councillor Thomas Adams, who lived to be Mayor of Northampton, was perfect; and he knew his strength as nearly as a candidate ever can who has not already been elected. The combination of his forces with those of Mr Labouchere of course strengthened him; yet such was still the strength of religious animosity that though the joint candidature stood on the footing of a strict division of votes, every elector having two, for the two seats, the Liberal press still encouraged "plumping," and many then, as later, voted for Mr Labouchere who would not vote for Bradlaugh, thus provoking a smaller number of the latter's supporters to "plump" for their man in turn. The result was that the election figures stood:—Labouchere (L.) 4518; Bradlaugh (R.) 3827; Phipps (C.) 3152; Merewether (C.) 2826.

No sooner were the results known throughout the country than the Northampton election became a theme of special comment, and of course of special outcry from the defeated party. One journal, the *Sheffield Telegraph*, which about the same time described the Scriptural phrase about the dog and his vomit as a "popular, though somewhat coarse saying," designated

Bradlaugh as "the bellowing blasphemer of Northampton." Mr Samuel Morley was hotly assailed, and promptly wrote to the *Record* a pitiful letter of recantation, which ended:—

"No feeling of pride prevents my saying that I deeply regret the step I took, which was really the work of a moment; and I feel assured that no one who knows me will doubt that I view with intense repugnance the opinions which are held by Mr Bradlaugh on religious and social questions."

To which Mr Bradlaugh in his own journal replied that he had had no part whatever in the appeal to Mr Samuel Morley, and that he would have been elected all the same if Mr Morley had done nothing, adding the following:

"We have no knowledge of the opinions of Mr Morley except that he is reputedly very rich, and therefore exceedingly good; but we must express in turn our intense repugnance to the conduct of Mr Morley, who having accidentally been betrayed into an act of kindness to a fellow-creature, regrets the act when pressure is brought to bear upon him by a pack of cowardly and anonymous bigots, and couples the public expression of his regret with a voluntary insult to one for whom Mr Morley publicly expressed great respect on the only occasion on which the two have yet come publicly in contact."

Mr Spurgeon, who had been quite falsely accused of avowing readiness to welcome the devil as a Liberal candidate, had the manliness to declare, while indignantly repudiating that latitudinarian doctrine, that Mr Bradlaugh's claims to be returned to Parliament were not to be measured by his piety or orthodoxy.

§ 2.

But the question was soon carried into a greater arena. The elections were over in April; on 3rd May Parliament assembled, and Bradlaugh's first problem was to choose his course in the matter of the oath of allegiance, the taking of which by members of Parliament is still made a condition of their taking their seats. It has long been felt by the thoughtful few, even including Theists, that oath-taking, a barbaric and primevally superstitious act under all circumstances, is gratuitously absurd in the case of admission to Parliament, where it serves to bring about the maximum of religious indecorum without in any way affecting the action of anybody. Originally set up in the reign of Elizabeth, the Parliamentary oath was maintained in the interest of disputed dynasties, though it was notoriously taken by hundreds of men who were perfectly ready to overthrow, if they could, the

dynasty to which they swore allegiance. Now that there is no longer any question of rival dynasties, and that no instructed person disputes the power of Parliament to abolish the Monarchy, the oath of allegiance is maintained by the stolid unreason which supports the monarchic tradition all round. State after State has abandoned the practice as absurd; but Britain clings to it with hardly even a demur, save from men of the chair. France since 1870 has had neither oath nor affirmation, though, if oaths could be supposed to count for anything, the Republic might fitly have exacted them. Since 1868 affirmation has been substituted for the Parliamentary oath in Austria; and congressmen and senators in the United States have their choice between swearing and affirming. Neither oath nor affirmation is exacted in the German Reichstag, though the members of the Prussian Diet, like those of the States General of Holland, still swear. In Italy, the performance is attenuated to the utterance of the one word "Giuro," "I swear." In Spain, where it has never deterred rebellion, the oath, as might be expected, remains mediævally elaborate.

Before Bradlaugh's time the oath in England had been adapted to the requirements of Catholics, Quakers, and Jews successively, the resistance increasing considerably in the last case. O'Connell's refusal to take the Protestant oath of supremacy in 1829, when there were three separate oaths—one of allegiance, one of supremacy, and one of adjuration—led to the passing of an Act permitting Catholic members to take the Catholic oath, already provided under the Catholic Relief Act for use in Ireland. Protestant public opinion avowedly regarded all Irish Catholics with distrust as being disaffected, but the Tory leaders being committed to Catholic Emancipation, the resistance was overpowered. The next extension took place under Whig auspices.

In 1833 the Quakers, who in the case of Archdale in 1699 had been held incapable of sitting in Parliament by reason of their refusal to swear, were allowed to affirm, first by resolution of the House, later by Act. This was done at the instance of a Quaker member, Sir Joseph Pease, who besides being rich enjoyed personally the respect latterly accorded to his sect by those which formerly persecuted it.

Then came the case of the Jews, first raised in the person of Baron Lionel Nathan de Rothschild, in 1850. There was now a triple Protestant oath, and an alternative Catholic oath, the theoretically dangerous church being

allowed to swear in its own way; but for the small community of Jews there was no formula, and the Jewish banker had to choose between exclusion and swearing "on the true faith of a Christian." He omitted these words from his oath, and was accordingly declared disentitled to sit, the House at the same time formally resolving to take Jewish disabilities into its consideration at the earliest opportunity in the next Session. In 1851, another Jew, David Salomons, returned for Greenwich, refused to take the oath in the Christian form, formally resisted the Speaker's ruling against him, was formally removed, and was excluded from his seat. Not till 1858 was the relief given. In that year a single (Christian) oath was substituted for the triple asseveration of the past, and on the re-elected Baron Lionel again refusing it, he was allowed, by resolution of the House, to swear without the Christian formula. In 1859 he, with Baron Mayer Amschel de Rothschild and Salomons, was again sworn theistically. Finally, in 1866, by the Parliamentary Oaths Act, the oath was made simply theistic for all, the familiar expletive "So help me God" being held sufficient to associate the First Cause ethically with the proceeding in hand.

This movement was doubtless due to a certain semi-rational perception of the futility of oaths in general, as being a vain formality to honest men, and a vain barrier to others. Sir William Hamilton, a thinker so fervent in his instinctive Theism that he undid his philosophy to accommodate it, had in his day created a strong impression by his essays (1834-5), on the right of Dissenters to be admitted into the English universities, in which he emphatically reiterated the declaration of Bishop Berkeley—made when the oath test was in fullest use—that there is "no nation under the sun where solemn perjury is so common as in England." "If the perjury of England stand pre-eminent in the world," said Hamilton, "the perjury of the English Universities, and of Oxford in particular, stands pre-eminent in England." Doctrine like this had made for an abolition of oaths which could easily be classified as "unnecessary," and for the simplification of those retained; but though the very step of reducing the act of imprecation to a curt conventional form meant, if anything, the belittling of the act of imprecation as such, the Parliamentary formula had for half a generation remained unchallenged. John Mill had in 1865 sworn "on the true faith of a Christian," and a good many Agnostics and Positivists have since unmurmuringly invoked the unknown God. It was left for Bradlaugh to attempt a departure from the course of dissembling conformity. When he

stood for Northampton in 1868 (as he stated in answer to Mr Bright on the second select committee of 1880), he had gravely considered the question of oath-taking, there being then no possibility of affirmation. Believing now that he had the right to affirm under the Act which permitted affirmation to witnesses, he felt bound to exercise it.

As every step in his action has been and still is a subject of obstinate misconception and wilful falsehood, the story must be here told with some minuteness. The usual statement is that he "refused" to take the oath of allegiance. He did no such thing. A professed Atheist, he had been the means of bringing about the legal reform which enabled unbelievers to give evidence on affirmation, albeit the form of enactment was, to say the least, invidious. A great difficulty is felt by many Christians in regard to the abolition of the oath, in that they fear to open the way for false testimony by witnesses who would fear to swear to a lie, but do not scruple to lie on mere affirmation. It is for Christians to take the onus of asserting that there are such people among their co-religionists; and they have always asserted it in the House of Commons when there is any question of dispensing with oaths. And it was on this plea that the first Act framed to allow unbelievers to give evidence on affirmation was made to provide that the judge should in each case satisfy himself that a witness claiming to affirm was not a person on whom an oath would have a binding effect. That is to say, he was to make sure that the witness was not a knavish religionist trying to dodge the oath, in order to lie with an easy mind. It was the duplicity of certain believers, and not the duplicity of unbelievers, that was to be guarded against, though, of course, the only security against the lying of believers in answer to the judge was that a known conformist would be afraid publicly to pretend that he had scruples against the oath. But the main effect of the clause, framed to guard against pious knavery, was to stigmatise unbelievers as persons on whom an oath would have "no binding effect." An ill-conditioned judge was thus free to insult Freethinking witnesses, and even a just judge was free to embarrass them by an invidious question, since the bare wording of the Act enabled and even encouraged the judge to ask them—not, as he ought to have done, whether the oath was to them unmeaning in respect of the words of adjuration, but—whether the oath as a whole would be "binding on their conscience."^[121] While recognising the invidiousness of such a question, Bradlaugh always claimed to affirm in courts of law, though to him, as to most professed rationalists, the repetition

of an idle expletive was only a vexation, and in no way an act of deception, when made the inevitable preliminary to the fulfilment of any civic duty. He had openly avowed his opinions, and if the oath was still exacted, the responsibility lay with those who insisted on it. On his return to Parliament he felt that not only would it be inconsistent for him to take the oath if he could avoid it, but it would be gratuitously indecorous, from the point of view of the believing Christian majority. Sitting in the house before the "swearing-in," he remarked to Mr Labouchere that he felt it would be unseemly for him to go through that form when he believed he was legally entitled to affirm. And in this belief, it must always be remembered, he had the support of the former Liberal law officers of the Crown, who had privately given it as their opinion^[122] that he was empowered to affirm his allegiance under the law relating to the affirmation of unbelievers. With that opinion behind him, he was in the fullest degree entitled—nay, he was morally bound as a conscientious rationalist—to take the course he did. Other rationalists, real or reputed, were returned to the same Parliament. Professor Bryce, as candidate for the Tower Hamlets, had been assailed as an Atheist, and was yet returned at the head of the poll. Mr Firth had been similarly attacked, but was nevertheless carried in Chelsea. Neither of these gentlemen, however, made any public avowal, direct or indirect, of heresy. Mr John Morley, who was justifiably regarded as a Positivist or Agnostic on the strength of his writings, when elected later made no demur to the oath; and Mr Ashton Dilke, who afterwards avowed his heterodoxy in the House of Commons,^[123] also took it without comment. It was left to Bradlaugh to fight the battle of common sense—I might say of common honesty, were it not that long usage has in these matters wholly vitiated the moral standards of the community, and honourable men are free to do, and do habitually, things which, abstractly considered, are acts of dissimulation.

§ 3.

Bradlaugh's first formal step after obtaining the opinion of the last Liberal law officers and privately consulting the officials of the House, was to hand to the Clerk of the House of Commons, Sir Thomas Erskine May, on May 3rd, a written paper in the following terms:—

"To the Right Honourable the Speaker of the House of Commons.

"I, the undersigned Charles Bradlaugh, beg respectfully to claim to be allowed to affirm as a person for the time being by law permitted to make a solemn affirmation or declaration, instead of taking an oath."

He had already explained, in answer to the questions of the Clerk, that he made his claim in virtue of the Parliamentary Oaths Act, 1866, the Evidence Amendment Act, 1869, and the Evidence Amendment Act, 1870, which "explains and amends" the Act of 1869. The Clerk formally communicated these matters to the Speaker (Sir Henry Brand), who then invited Bradlaugh to make a statement to the House with regard to his claim. Bradlaugh replied:

"Mr Speaker,—I have only now to submit that the Parliamentary Oaths Act, 1866, gives the right to affirm to every person for the time being permitted by law to make affirmation. I am such a person; and under the Evidence Amendment Act, 1869, and the Evidence Amendment Act 1870, I have repeatedly for nine years past affirmed in the highest Courts of Jurisdiction in this realm. I am ready to make the declaration or affirmation of allegiance."

The Speaker thereupon requested him to withdraw, and formally restated the claim to the House, remarking that he had "grave doubts" on the matter, and desired to refer it to the House's judgment. On behalf of the Treasury bench, Lord Frederick Cavendish, remarking that the advice of the new law officers of the Crown was not yet available, moved that the point be referred to a Select Committee. Sir Stafford Northcote, the Tory leader in the Commons, was at this stage not actively hostile. A man of well-meaning and temperate though meagre quality, made up of small doses of virtues and capacities, well fitted to be a country gentleman, but of too thin stuff and too narrow calibre to be either a very good or a very bad statesman, he was a Conservative by force of tradition and mental limitation, and a partisan leader in respect of his pliability to his associates. As his biographer puts it, he was "not recalcitrant to compromise" in matters of party strategy and leadership. Being personally willing to substitute affirmation for oath,^[124] he seconded the Liberal motion without any show of animus, and only some of his minor followers, as Earl Percy and Mr Daniel Onslow, sought to effect the adjournment of the debate. This attempt, however, was not pressed to a division, and the Select Committee was agreed to.

Only a few of the speeches in the House thus far had indicated a desire among the Tory party to make Bradlaugh the victim of their feud with the Liberals. But outside the House, Sir Henry Drummond Wolff, member for Portsmouth, speaking at Christchurch, had already publicly declared his

intention to oppose Bradlaugh's entry: the broaching of the oath question in legal and other journals before the assembling of Parliament having given to such politicians their cue. Over and above the purely factious motive of such men, and of the mass of the Tories, there was the motive of genuine religious malice; and the two instincts in combination wrought memorable results.

On 10th May Lord Richard Grosvenor, the Liberal Whip, announced to the House the names of the proposed members of the Select Committee whose appointment he should move next day:—Mr Whitbread, Sir J. Holker, Mr John Bright, Lord Henry Lennox, Mr W. N. Massey, Mr Staveley Hill, Sir Henry Jackson, the Attorney-General (Sir Henry James), the Solicitor-General (Mr Farrer Herschell), Sir G. Goldney, Mr Grantham, Mr Pemberton, Mr Watkin Williams, Mr Spencer H. Walpole, Mr Hopwood, Mr Beresford Hope, Major Nolan, Mr Chaplin, and Mr Serjeant Simon. Although the motion was not to come on till next day, Sir Henry Drummond Wolff sought, in despite of the Speaker's opposition, to raise at once a debate on the legitimacy of the Committee; and on the following day he was able to do so. He moved "the previous question," and pronounced the course taken "inconvenient, unprecedented, and irregular," although it had been agreed to by his nominal leader; thus beginning the tactic of independent action which served to mark him off with three colleagues,^[125] as constituting a "fourth party" in the House, the other three being the main bodies of Liberals and Tories, and the Irish Home Rulers. The debate, once begun, was carried on with great violence and recklessness, Mr Stanley Leighton alleging that Bradlaugh had been pressed on the Northampton constituency by the Liberal "whip," prompted by Mr Gladstone; and Sir R. Knightley affirming that the election had been determined by the interference of Mr Samuel Morley. A member known as F. H. O'Donnel, but originally named Macdonald, an Irish Catholic, asserted that Bradlaugh had "explained religion as a disease of the brain, and conscience as a nervous contraction of the diaphragm." After more random discussion the House divided, when there voted for the appointment of the Committee 171, against it, 74, giving a majority of 97 to the Government. Most of the Conservative leaders walked out of the House before the division, thus already showing a disposition to surrender to the irresponsibles on their side.^[126]

Already, too, there began to be apparent what can now no longer be disputed—the mismanagement of the Speaker. Only bad judgment or partiality could account for his permission of such gross irrelevance as filled the speeches of Mr Leighton and Mr F. H. O'Donnel, *alias* Macdonald. On the language of the latter now forgotten personage Mr Bradlaugh thus commented in the *National Reformer*:—

"I remember, fourteen or fifteen years ago, when the countrymen of that member's constituents came to me for help and counsel. The honourable member professes to now represent those Irishmen who then sought and had my aid; and on Tuesday he in effect told the House that it ought to exclude from it one who did not believe in God, and had no standard of morality. But I see from the division list that the 'third party,' of which he pretended to be the spokesman at the election of the Speaker, went into the lobby opposed to that into which their leader went, so that the really Irish members did not forget old ties."

Unfortunately the latter tribute was not long to be deserved.

On 20th May the Select Committee presented its report. There had been eight members in favour of the view that Bradlaugh was legally entitled to affirm, and eight against; and the casting vote of the chairman, Mr Spencer H. Walpole, was given for the Noes. It was said, and it was believed by Mr Bradlaugh, that Sir John Holker had avowed a belief that his claim was valid, but Sir John Holker on the Committee voted with his party. Save for the fact that the Noes included Mr Hopwood, the vote would stand as a purely party one, the rest of the Noes being Conservatives, while the rest of the Liberals took the affirmative side. And so general was the attitude of reckless prejudice that we still find the Chairman's son giving a flatly misleading account of the situation. Mr Spencer Walpole, in his work on "The Electorate and the Legislature"^[127] published in 1881, and re-issued in 1892, has made (p. 75) this statement (*italics ours*):—

"In 1880 ... the legislature was suddenly confronted with a new dilemma. The borough of Northampton sent a representative to Parliament who *refused to take an oath*—not because he had any conscientious objection to be sworn, but because an appeal to a God—in whom he had no belief—seemed to him an idle formula which was not binding on his conscience."

Since Mr Walpole has chosen to print and reprint this maliciously untrue statement, and takes no notice whatever of published protests against it, I am obliged to say in so many words that he, a professed historian, is here grossly perverting history. Much might indeed be set down to his carelessness. Issuing in 1892 the second edition of what should be an

authoritative treatise, Mr Walpole inserts (p. 77) a passage as to Parliamentary affirmation which is completely quashed by the passing of Mr Bradlaugh's Affirmation Act of 1888. Of this Act, in 1892, Mr Walpole does not seem to have any knowledge; but however he may contrive to overlook such a fact as this, he cannot have been unaware in 1880 that Mr Bradlaugh did *not* refuse to take the oath, and that he repudiated the expression that the oath would not be binding on his conscience,^[128] repeatedly declaring that any promise he made would as such be binding on his conscience, whether or not an idle formula should be appended to it. Bradlaugh's position on this point was always explicit; for him a promise, however embellished, was a promise which as an honourable man he was bound to keep. By the majority of the British House of Commons it is still implicitly ruled that a certain promise would not necessarily be binding on the consciences of Christian members unless accompanied by the popular imprecation "So help me God."

The decision of the first Select Committee, on the casting vote of the chairman, at once carried the question to a new phase. Bradlaugh immediately published a statement^[129] of his position as to the oath, the taking of which he now held to be forced upon him by the refusal of the right to affirm.

It ran:—

"When elected as one of the Burgesses to represent Northampton in the House of Commons, I believed that I had the legal right to make affirmation of allegiance in lieu of taking the oath, as provided by sec. 4 of the Parliamentary Oaths Act, 1866. While I considered that I had this legal right, it was then clearly my moral duty to make the affirmation. The oath, although to me including words of idle and meaningless character, was and is regarded by a large number of my fellow-countrymen as an appeal to Deity to take cognizance of their swearing. It would have been an act of hypocrisy to voluntarily take this form if any other had been open to me, or to take it without protest, as though it meant in my mouth any such appeal. I therefore quietly and privately notified the Clerk of the House of my desire to affirm. His view of the law and practice differing from my own, and no similar case having theretofore arisen, it became necessary that I should tender myself to affirm in a more formal manner, and this I did at a season deemed convenient by those in charge of the business of the House. In tendering my affirmation I was careful, when called on by the Speaker to state my objection, to do nothing more than put, in the fewest possible words, my contention that the Parliamentary Oaths Act, 1866, gave the right to affirm in Parliament to every person for the time being by law permitted to make an affirmation in lieu of taking an oath, and that I was such a person, and therefore claimed to affirm. The Speaker, neither refusing nor accepting my affirmation, referred the matter to the House, which appointed a Select Committee to report

whether persons entitled to affirm under the Evidence Amendment Acts, 1869 and 1870, were under sec. 4 of the Parliamentary Oaths Act, 1866, also entitled to affirm as Members of Parliament. This Committee, by the casting vote of its Chairman, has decided that I am not entitled to affirm. Two courses are open to me—one, of appeal to the House against the decision of the Committee; the other, of present compliance with the ceremony, while doing my best to prevent the further maintenance of a form which many other members of the House think as objectionable as I do, but which habit and the fear of exciting prejudice has induced them to submit to. To appeal to the House against the decision of the Committee would be ungracious, and would certainly involve great delay of public business. I was present at the deliberations of the Committee, and while, naturally, I cannot be expected to bow submissively to the statements and arguments of my opponents, I am bound to say that they were calmly and fairly urged. I think them unreasonable, but the fact that they included a legal argument from an earnest Liberal deprives them even of a purely party character. If I appealed to the House against the Committee, I, of course, might rely on the fact that the Attorney-General, the Solicitor-General, Sir Henry Jackson, Q.C., Mr Watkin Williams, Q.C., and Mr Sergeant Simon, are reported in the *Times* to have interpreted the law as I do; and I might add that the Right Honourable John Bright and Mr Whitbread are in the same journal arrayed in favour of allowing me to affirm. But even then the decision of the House may endorse that of the Committee, and should it be in my favour, it could only—judging from what has already taken place—be after a bitter party debate, in which the Government specially, and the Liberals generally, would be sought to be burdened with my anti-theological views, and with promoting my return to Parliament. As a matter of fact, the Liberals of England have never in any way promoted my return to Parliament. The much-attacked action of Mr Adam had relation only to the second seat, and in no way related to the one for which I was fighting. In 1868 the only action of Mr Gladstone and of Mr Bright was to write letters in favour of my competitors, and since 1868 I do not believe that either of these gentlemen has directly or indirectly interfered in any way in connection with my parliamentary candidature. The majority of the electors of Northampton had determined to return me before the recent union in that borough, and while pleased to aid their fellow-Liberals in winning the two seats, my constituents would have at any rate returned me had no union taken place. My duty to my constituents is to fulfil the mandate they have given me, and if to do this I have to submit to a form less solemn to me than the affirmation I would have reverently made, so much the worse for those who force me to repeat words which I have scores of times declared are to me sounds conveying no clear and definite meaning. I am sorry for the earnest believers who see words sacred to them used as a meaningless addendum to a promise, but I cannot permit their less sincere co-religionists to use an idle form, in order to prevent me from doing my duty to those who have chosen me to speak for them in Parliament. I shall, taking the oath, regard myself as bound not by the letter of its words, but by the spirit which the affirmation would have conveyed had I been permitted to use it. So soon as I am able I shall take such steps as may be consistent with parliamentary business to put an end to the present doubtful and unfortunate state of the law and practice on oaths and affirmations. Only four cases have arisen of refusal to take the oath, except, of course, those cases purely political in their character. Two of those cases are those of the Quakers John Archdale and Joseph Pease. The religion of these men forbade them to swear at all, and they nobly refused. The sect to which they belonged was outlawed, insulted, and imprisoned. They were firm, and one of that sect sat on the very Committee, a member of Her Majesty's Privy Council and a

member of the actual Cabinet. I thank him gratefully that, valuing right so highly, he cast his vote so nobly for one for whom I am afraid he has but scant sympathy. No such religious scruple prevents me from taking the oath as prevented John Archdale and Joseph Pease. In the cases of the Baron Rothschild and Alderman Salomons the words 'upon the true faith of Christian' were the obstacle. To-day the oath contains no such words. The Committee report that I may not affirm, and, protesting against a decision which seems to me alike against the letter of the law and the spirit of modern legislation, I comply with the forms of the House."

As might have been expected, this decision to take the oath evoked fresh outcry, and this time some Freethinkers joined. The most injurious attack of this kind came from Mr George Jacob Holyoake, who had long been on strained terms with Bradlaugh, and avowedly regarded him with disfavour as a too militant Atheist. Before the assembling of Parliament Mr Holyoake, in answer to a correspondent who asked him whether Mr Bradlaugh would take the oath, had written to the effect that Mr Bradlaugh had taken the oath scores of times before, and would doubtless do so now. This remark had reference to a long-standing dispute as to the propriety of oath-taking by a Freethinker under any circumstances. Before the reform of the law which permitted unbelievers to affirm, Mr Bradlaugh had without hesitation taken the oath in courts of law, holding the forced formality a much smaller matter than the evil of a miscarriage of justice. Mr Holyoake condemned all such oath-taking; but it was pointed out that while he was in business partnership with his brother Austin, the latter, a highly esteemed Freethinker, had taken the oath wherever it was necessary for the purposes of the business. This, of course, would not altogether set aside Mr G. J. Holyoake's argument, if put forward only as a statement of his own position; but he was not content with that. After avowing his expectation that Bradlaugh would take the oath, he expressed surprise and reprobation when Bradlaugh proposed to do so. Needless to say, such a deliverance was eagerly welcomed by Bradlaugh's enemies, and zealously used against him; as it was when repeated by Mr Holyoake in the following year, with expressions about Freethinkers being made to hang their heads for shame by the action of their nominal leader. Were there not reason to presume that Mr Holyoake would not now repeat or defend his former language, it might be fitting to endorse here some of the very emphatic comments made on it at the time by Mrs Besant and others. It may suffice to say, however, that Mr Holyoake had never before taken such an attitude against Freethinkers who took the oath; that he had once himself expressed readiness to take it in court if it were regarded as a civil act, and not as a confession of faith

(exactly Bradlaugh's case); and that he later seemed to other Freethinkers to quash once for all his own case by justifying quite gratuitous acts of conformity and co-operation with churches whose teaching he held to be false. The common sense of nine hundred and ninety-nine out of every thousand Freethinkers, including attached friends of Mr Holyoake, decided that such an act of enforced ceremonial as official oath-taking by an avowed Atheist surrenders no jot of principle or self-respect, particularly when the Atheist is openly striving for the abolition of all such compulsions. Of all Freethinkers who have taken oaths in England, Bradlaugh was the very least open to the charge of temporising; and the expressions used by Mr Holyoake at different times in this connection as to "apostolic" conduct have been, to say the least, unfortunate as coming from a professed Freethinker, not usually acquiescent in orthodox phraseology.

§ 4.

The document above quoted, announcing Bradlaugh's intentions, was dated 20th May, the date of the Committee's report. On the following day Bradlaugh went to the House to take the oath and his seat. Immediately on his presenting himself, Sir Henry Drummond Wolff rose and objected to the oath being administered, whereupon Mr Dillwyn protested against the interruption. The Speaker now made the fatal mistake of allowing the interruption to be carried out. It is established by the highest possible authority—that of the present Speaker—that the holder of the Chair as such had and has no right to permit any such intervention between an elected member and the statutory oath. Sir Henry Brand, intimidated by the action of men like Wolff, weakly stated that he "was bound to say he knew of no instance" in which such an intervention had taken place; but "at the same time" he would allow Wolff so to intervene. That personage then made a speech, resting on the two arguments that Atheists who had made affirmation in the law courts thereby admitted that an oath "would not be binding on their conscience," and that Bradlaugh had further, in his "Impeachment of the House of Brunswick," affirmed that Parliament "has the undoubted right to withhold the Crown from Albert Edward Prince of Wales." The hon. baronet "could not see how a gentleman professing the views set forth in that work could take the oath of allegiance." It was in the course of this speech that the hon. baronet was understood by all his

auditors to say, of the sects permitted by law to affirm, that they "had a common standard of morality, a conscience, and a general belief in some divinity or other."^[130]

The Tory case against Bradlaugh's admission to Parliament was thus at the outset a combination of a moral subterfuge and a notorious political fallacy. All concerned knew perfectly well that the oath was habitually taken by men to whom the adjuration was an idle form, and that their consciences could only be "bound" by the simple promise. It had further been ruled by the highest judicial authority, in the cases of *Miller v. Salomons*, and the *Lancaster and Carlisle Railway Company v. Heaton*, that the essence of the oath consisted in the promise, and not in the words of imprecation. Yet further, Wolff had before him, and in his speech quoted from, the statement above cited, in which Bradlaugh expressly declared that he held himself bound, in taking the oath, "not by the letter of its words, but by the spirit which the affirmation would have conveyed had I been permitted to use it." These words he suppressed. On the other hand, as regards the point of allegiance, he was negating the whole established doctrine of the British constitution. It is a commonplace of that doctrine that Parliament can repeal, as Parliament passed, the Act of Settlement. The contrary is now maintained by nobody, and was not really maintained even by Burke, in his furious feint of disputing the constitutional principle in his "Reflections." As the law stands, any member of Parliament is entitled to move constitutionally for the abolition of the Monarchy. The oath, framed though it be for the dynasty, and not for the State, promises allegiance to the sovereign as by the law established. If the law in future quashes sovereignty, there will be no sovereign to whom to bear legal allegiance.^[131]

But such protests as those of Wolff were perfectly fitted to serve the turn of the Tory party in a campaign of faction. The cue of shocked piety and the cue of "loyalty" came alike easily to the representatives of the feudal and the capitalistic interests; and the "bag-baron" and the "crag-baron" vied with each other in the display of sham godliness and sincere zeal for the Throne. Never was there such a reek of cant in St. Stephen's before. All the English gift for hypocrisy, unrivalled in Europe, was brought to bear on the task. Alderman Fowler, a fitting exponent of the cult of Mammon in His sacred city, followed up Wolff with a petition emanating from bankers and merchants, all praying with one consent that an unbeliever in their gods

should not be allowed to sit at Westminster. The honour of God was avowedly the one concern of the Alderman and of the men, so many of them gross with fortuitous gain, who made him their mouthpiece. And those strategists who knew the imperfect efficacy of bogus religion as a means of keeping an Atheist member out of his seat, took care to supply the additional weapons needed.

Mr Gladstone met Sir Henry Wolff's motion with a counter motion for the appointment of a fresh select committee to consider Bradlaugh's competence to take the oath—a sufficiently unwise course, in view of the action of the previous committee. At once, however, the official Tories gave their full support to Wolff's motion, declaring that the matter should not even go to a committee. Mr Gibson, formerly Attorney-General for Ireland, argued that Bradlaugh had deserved all that befell him for raising the question. "The hon. member might have taken his seat without opposition, but he had chosen to obtrude himself on the House and the country. He must therefore accept the grave responsibility of thus thrusting his opinions on the House." Observe the situation. Bradlaugh had acted not only as a scrupulous man in his place was bound to do, but as a man careful of other men's susceptibilities would do. Had he simply taken the oath, he would certainly have been yelled at as a hypocrite, and further as a blasphemer. The point had been publicly discussed in the press beforehand, and his enemies were prepared. Trying to avoid at once inconsistency and scandal, he quietly and circumspectly sought to make affirmation. The right to affirm was denied him in committee by the champions of the oath, joined by one conscientious Liberal. When he then came to take the compelled oath, these men and their fellows assailed him as one who "obtruded his opinions"; and Mr Gibson, their spokesman, proceeded to allege in so many words that the member for Northampton had "walked up the floor of the House with that oath and Book before him and declined to take the oath." It was a falsehood; and Mr Gibson himself had just before, in the same speech, admitted that Bradlaugh had "claimed for himself, in careful and guarded language, the right to make an affirmation."

There are many points in the story of this struggle at which it is hardly possible to abstain from imputing wilful falsehood to some of the actors. But on this point it seems right to conclude that one or other form of prejudice or passion made men all round incapable of realising when and

how they grossly perverted a simple fact. It was not merely the factious Tories who repeated the mis-statement, though they naturally used it most industriously. Mr Chaplin, M.P., was reported in two newspapers as having asserted that at a public meeting on 1st June "Mr Bradlaugh announced his intention of refusing the oath, and asked that he might affirm instead." Mr Chaplin, at the time of speaking, was a member of the second select committee appointed to sit on the oath question, and Bradlaugh indignantly protested to the Chairman, who was again Mr Spencer Walpole. Mr Chaplin, after some fencing, declared that the report was inaccurate. Baron Henry de Worms, another of the champions of Omnipotence, publicly averred^[132] that "he was in the House when Mr Bradlaugh came to the Speaker and said he could not and would not take an oath which in no way bound him, as he did not acknowledge any God." Challenged as to this statement, Baron Henry de Worms avowed that the words from "which" onwards were his own comment, but could not see anything unwarrantable in the previous statement as to the facts. Such were the notions of truth and honour among English—and other—oath-taking gentlemen and noblemen with which Bradlaugh had to contend. And he was only in part supported by the remarks of Mr John Morley in the *Fortnightly Review* for July 1880:—

"There is no precedent for Mr Bradlaugh's case, for the simple reason that there is no precedent for the frank courage with which he has considered it desirable to publish his views as to the nature of an oath. That the oath is just as meaningless, so far as its divine appeal is concerned, to many past and present members of the House of Commons as Mr Bradlaugh protested it would be to him, no one doubts. Whether and how far he was justified in asking to be sworn, *after he had declined to be sworn*, is a different question. Whatever the answer to that may be, it cannot at least be said that the course adopted by Mr Bradlaugh involved the surrender of any principle."

The last clause is so candid that it is a pity Mr Morley should have "considered it desirable" to fortify his own position by penning that above italicised. He had previously spoken of Bradlaugh's "pertinacity" in "parading" his views—a statement which obtrudes its inspiration. When a leading Liberal publicist wrote so, the godly multitude naturally asserted in chorus that Bradlaugh had first ostentatiously refused to take the oath, and then insisted on taking it. Dean Boyd, of Exeter, capped the record by asserting that when Bradlaugh first "advanced to the table of the House," he "openly, boldly, and defiantly affirmed that he believed there was no such being as a Deity."

In the frame of mind represented by a variety of such utterances as these, the House of Commons deliberated on Mr Gladstone's motion that the question of Bradlaugh's competence to swear should be referred to a second special committee. On the second day of the debate, Sir Stafford Northcote, the nominal leader of the Conservative party in the House, accepted the position into which he had been ignominiously forced by irresponsible and even semi-defiant adherents, and opposed the appointment of the Committee. He is reported as saying:—

"Without raising any question as to whether there is anything irreverent in the course which the hon. member proposes to take, it seems to me that we, in allowing him to take it, should be incurring a responsibility from which our better judgment ought to make us shrink"

—a fair sample of the hon. baronet's forcible-feeble oratory. Some Tory speakers, as Earl Percy, admitted that "the hon. member, to do him justice, had sought to avoid taking an oath to which he attached no sacred character"; but these ingenuous combatants were concerned only to prevent the House from "incurring the guilt of an act of hypocrisy," and had no anxiety about avoiding an act of iniquity. When John Bright met the subterfuges of the Opposition with the retaliatory criticism of which he was a master, the temperature naturally rose. If, he asked, they set up the principle of a creed test, where were they going to end? Would they next question members known to be unbelievers, though not publicly professed ones? As certain Conservative members were actually known by their comrades to be Gallios in these matters, Bright's challenge created the appropriate resentment, as did his emphatic avowal, "One thing I believe most profoundly, that there is nothing amongst mankind that has done more to destroy truthfulness than the forcing of men to take an oath." But the memorable part of his speech was this:—

"I have no right to speak of the member for Northampton. I think it never happened to me more than once to address to him a single sentence, or to hear any expression from him. I never saw him to my knowledge but once, before he appeared in this House; but he is returned here by a large constituency, to whom his religious opinions were as well known as they are now to us.... Now, I have no doubt whatever, though I have no authority to say so, that the oath as it stands is binding on the conscience of the member for Northampton, in the sense that an affirmation would be binding on his conscience—that the words of the oath, so far as they are a promise, are words which would be binding upon him, but that their binding character is not increased by the reference to the Supreme Being, of whose existence, unhappily as we all think—such is the constitution of his mind, and such has been the constitution of many eminent minds of whom we have all heard—he is not able to form that distinct opinion and

belief which we, who I think are more happy, have been able to do. Therefore if he were to come to the table and to take the oath as it is, and as he proposes to take it, I have no doubt that it would be binding on his conscience as my simple affirmation is binding on mine; because in my affirmation there is no reference to the Deity. I make a promise. My word is as good, and is taken to be as good, as your oath. (Loud Ministerial cheers.) And that is declared by an irrevocable Act of Parliament. And if Mr Bradlaugh takes this oath, as he proposes to take it, I have no doubt that, though the last words of the oath have no binding effect upon him, yet his sense of honour and his conscience—(Opposition laughter, and cries of 'Hear, hear' from some Ministerialists)—his sense of honour and his conscience would make that declaration as binding on him as my affirmation is on me, and as your oath is on you."

Among those who joined in the brutal laughter of the gentlemen of the Conservative party at these passages were men who had committed bribery, unscrupulous stock-jobbers and company promoters, men about town, toppers, libellers, and liars. But some who thought it fitting to laugh with these would be normally classed as chivalrous and well-bred gentlemen.

The debate remained picturesque to the close. Lord Randolph Churchill, who has within the present year proved afresh his capacity to create a Parliamentary sensation, protested that "if the words 'so help me God' were held to be a mere superstitious invocation, the idea or the faith which had for centuries animated the House of Commons that its proceedings were under the guidance of Providence would lose its force, and would very soon have to be abandoned altogether." The better to exemplify the energy of the divine supervision, the noble lord, after quoting a somewhat strong passage from Bradlaugh's "Impeachment of the House of Brunswick," threw the pamphlet violently on the floor of the House, in parody of Burke's performance with the daggers. Baron de Worms hazarded the proposition that "this was an irreligious, not a religious question." The late Mr Thorold Rogers, an economist whose incapacity for logical thought led to his not unsuccessful cultivation of the department of historical detail, made a foolish and offensive speech on the Liberal side, setting out with a statement of his sense of intellectual superiority to Bradlaugh. "In his opinion, a person who recognised no law beyond that of his own mind, and such scanty rules as he thought fit to lay for his own guidance, very much weakened his own character and lessened the value of his own life and acts." Further, Mr Rogers had over and over again found "in the course of the study of history" that Atheists were Conservatives; and he cited in proof the names of Hobbes, a Theist; Hume, who till the latter part of his life was an emphatic Deist; and Gibbon, who was one till his death. "He knew

something of the political views of educated sceptics; and when this unhappy gentleman became a little better educated it would undoubtedly be found that he was migrating towards the opposite benches." After other remarks to similar effect, Mr Rogers provoked even the protest of the much-tolerating Speaker by charging the Tories with being indisposed to "act as generously as they did in their sports, and to give a little law even to vermin." For this felicitous figure Mr Rogers made a stumbling apology. On this being privately repeated, Bradlaugh, with his usual magnanimity, later forgave the speech as a whole.

Where a professed Radical could be thus insolent, on the score of his sense of superiority to opinions which he was incapable of discussing, the language of the customary Tory may readily be imagined. The revelations of ardent piety made by some eminent capitalists and company-promoters were unexpectedly gratifying to the religious feelings of the nation; and the unrelieved malignity of the personal allusions of these and other Christians to a man precluded from turning unto them there and then the other cheek, proved the injustice of the charge that this is an age of lukewarm religious convictions.

After two days of largely irrelevant debate, Wolff's motion was rejected by 289 votes to 214—a result not ungratifying to the Tories, as showing that already certain Liberals had taken their side. A select committee of twenty-three was duly appointed, the Tories being defeated in an attempt to strengthen their representation on it. The members were:—The Attorney-General and the Solicitor-General, Messrs Bright, Chaplin, Childers, Sir Richard Cross, Mr Gibson, Sir Gabriel Goldney, Mr Grantham, Mr Staveley Hill, Sir John Holker, Mr Beresford Hope, Mr Hopwood, Sir Henry Jackson, Lord Henry Lennox, Mr Massey, Major Nolan, Messrs Pemberton, Simon, Trevelyan, Walpole, Whitbread, and Watkin Williams. The Committee began by examining Sir Thomas Erskine May as to precedents; and Mr Bradlaugh was allowed to put questions to him likewise, bringing forward precedents Sir Thomas had not noted, among them the important case of Sir Francis Bacon, who, as Attorney-General, was challenged for breaking the law in making oath that he was duly qualified to sit, when, as a practising barrister, he was legally disqualified under an Act of Edward III. (It was in this case that the House ruled: "Their oath their own consciences to look unto, not we to examine it.") After Sir Thomas May, Bradlaugh was

himself examined, and conducted his case with the lawyer-like exactitude and the more than lawyer-like concision and cogency which even his enemies admitted to belong to all his legal pleadings.^[133] He pointed out that if it were competent to the House to interfere between a member and the oath, the first forty members sworn in a Parliament might prevent the sitting of any of the rest; and that if he were held legally incompetent to make affirmation of allegiance, he stood legally bound, as an elected member, to take the oath, no matter what his opinions were. He formally stated—

"That there is nothing in what I did when asking to affirm which in any way disqualifies me from taking the oath.

"That all I did was—believing, as I then did, that I had the right to affirm—to claim to affirm, and that I was then absolutely silent as to the oath.

"That I did not refuse to take it; nor have then or since expressed any mental reservation or stated that the appointed oath of allegiance would not be binding upon me.

"That, on the contrary, I say and have said that the essential part of the oath is in the fullest and most complete degree binding upon my honour and conscience, and that the repeating the words of asseveration does not in the slightest degree weaken the binding effect of the oath of allegiance upon me."

These explicit statements he repeated again and again in answer to questions, saying once:—

"Any form that I went through, any oath that I took, I should regard as binding upon my conscience in the fullest degree. I would go through no form, I would take no oath, unless I meant it to be so binding."

This emphatic explanation was given in reply to a question on what is, to my mind, the only obscure point in his examination. Asked: "Do you draw any distinction between the binding effect upon your conscience of the assertory oath, as it is called, and the promissory oath?" he answered—

"Most certainly I do. The testimony oath is not binding upon my conscience, because there is another form which the law has provided which I may take, which is more consonant with my feelings. The promissory oath is and will be binding upon my conscience if I take it, because the law, as interpreted by your Committee, says that it is the form which I am to take, and the statute requires me to take it."

There is here, I think, a momentary confusion among the terms "assertory," "promissory," and "testimony"; and the phrase "not binding on my conscience" is also used in a sense probably not intended by the questioner, and not that intended by Bradlaugh in his next answer, above quoted. The "because" is inconsequent. What he meant to convey was simply that he

expressly rejected the testimony oath because in giving evidence he was free to affirm; whereas he was compelled to take the oath of allegiance, there being no legal alternative in the opinion of a Committee of the House. He had been forced to submit in the law courts to the invidious formula that the oath was not binding on his conscience, because it had been expressly ruled in law^[134] that if a witness simply said "I am an Atheist," the judge was bound to infer that an oath did not "bind" him. But Bradlaugh's answers to the Select Committee, taken together, made it superfluously clear that in the natural sense of the words he held any formula of promise he took to be binding on him, whether with or without an imprecatory tag. And inasmuch as members of the Committee nevertheless thought fit afterwards to allege that he had all along declared the contrary with regard to the oath, we are driven to one of two conclusions. Either (a) these gentlemen hold that a formal public promise is not fully binding on *their* consciences unless they add "so help me God," or something of the sort, and that an Atheist cannot be more conscientious than they; or (b) they deliberately chose to bear false witness for party purposes. And it finally matters little which conclusion we draw; for the acceptance of the first leaves open the chance of the second being true also.

The Committee, after a variety of votes, finally reported to the effect that Bradlaugh, by simply stating [though in answer to official question] that he had repeatedly affirmed under certain Acts in courts of law, had brought it to the notice of the House that he was a person as to whom judges had satisfied themselves that an oath was "not binding on his conscience"; that, under the circumstances, an oath taken by him would not be an oath "within the true meaning of the statutes"; and that the House therefore could and ought to prevent him from going through the form. They further suggested that he should be allowed to affirm with a view to his right to do so being tested by legal action, pointing to the nearly equal balance of votes in the former committee as a reason for desiring a decisive legal solution.

For this report of course only those members are responsible who voted for its main clauses. Under this reservation it falls to be said that the use made of the mean technicality of an oath being held not "binding on the conscience" of an Atheist was in itself profoundly unconscientious. That formality was, to begin with, expressly intended to prevent the evasion of the oath by religious knaves, and not at all to imply that an Atheist who

took the oath could not be believed. What was more, Bradlaugh had only specified the Evidence Amendment Acts in reply to the express challenge of the Clerk of the House of Commons. To turn an accidental ambiguity to the account of an iniquity, to decide that a man was untrustworthy under the pretext of a legal subterfuge, was merely to show that the oath is less than no security for right action, and that under its cover men can far outgo the lengths of injustice that they are likely to venture on in the name of simple law. In the words of Bright, who opposed the conclusion come to as "absolutely untenable," "the course taken was one involving a mean advantage over Mr Bradlaugh." What the proceeding proved against Bradlaugh was simply this: that he had done wrong in ever accepting, even as a technical phrase, the juridical formula that an oath as a whole is not "binding on the conscience" of one to whom an imprecation is an idle barbarism. He ought in the law courts to have repudiated even the technical shadow of an implication that a rationalist's word is worth less than a religionist's oath. Nothing but persistent resistance will ever make tyrannous religion give way to justice; and he, who was habitually accused of gratuitously defying religion, had simply not defied it enough. And the lesson taught to other rationalists by his struggle is this, that oath-taking must in future be stigmatised and warred against as implying not a higher but a lower moral standard than that of rational ethics. Men who must swear to be believed are not to be believed.

§ 5.

On 21st June, a few days after the presentation of the Committee's report to the House, Mr Labouchere moved a resolution to the effect that Bradlaugh be allowed to make affirmation instead of taking the oath—the course the Committee had recommended. He had previously given notice of a general Affirmation Bill, but had postponed the discussion of it, pending the report. He now moved his resolution, after presenting a petition in support of Bradlaugh from some thousands of the people of Northampton, on the heels of a large Tory petition, also from Northampton, praying that Bradlaugh "might not be permitted to take the holy name of God in vain." Mr Labouchere in an extremely able and persuasive speech dwelt on the prime fact that the Parliamentary Oaths Act of 1866 gave to all persons legally qualified to affirm in courts of law the right to affirm in Parliament, and that

by later Acts Bradlaugh was entitled to affirm in courts of law. [The opposition view presumably was that the Act of 1866 could only refer to persons *then* entitled to affirm; but no argument to that effect appears on the reports consulted by the present writer.] He further warned the enemy that if they carried their hostility to the point of unseating Bradlaugh, he would simply be re-elected—a statement which evoked confident "No's" from members whose faith in Deity was more deep than philosophical; and remarked what was perfectly true—that there were "exceedingly few persons in Northampton of Mr Bradlaugh's views" on religious matters. Sir Hardinge Giffard (now Lord Halsbury) rang the changes on the argument about obtrusion of views; and pietists like Alderman Fowler and Mr Warton expressed afresh their corpulent horror of Atheism. One Irish member, Mr Arthur O'Connor, took occasion to protest—in a debate on a proposal to permit an affirmation—against letting Bradlaugh take the oath; and the Speaker seems to have made no objection. On the other side, Mr Hopwood, whose vote in the first committee had possibly permitted all the trouble, made a powerful speech against the "obtrusion" argument, which, as he justly said, amounted to telling Bradlaugh, "If you had come to the table with a lie on your lips, we would have allowed you to be sworn." But again the great speech in the debate was Bright's. The remark, "There are many members of this House who take the oath and greatly dislike it," was his first home-thrust; and soon, after a temperate and weighty argument, he nobly repeated his declaration of belief in the honour of the Atheist, whose opinions were probably as repugnant to Bright as to any other man in the House. "I pretend," he said—and his voice rose with his theme,—"*I pretend to have no conscience and honour superior to the conscience of Mr Bradlaugh.* (Ironical cheers from the Opposition.) It is no business of mine to set myself up—perhaps it is no business of yours to set yourselves up—(cheers)—as having conscience and honour superior to that which actuates Mr Bradlaugh." He went on to protest that the course taken by the majority of the committee was "one involving a mean advantage over Mr Bradlaugh." The speech, however, mainly ran to perfectly judicial argument; and it was the obvious determination of the Tories to give no ear to argument that evoked the flashes of feeling which lit it up. Bright having said that the oath was now made a theistic test, where before it had been a Protestant and a Christian test, a "No," came from Mr Spencer Walpole, the Chairman of the Committee. "Why," retorted Bright, "the right hon.

gentleman must have forgotten everything in the committee; he cannot have been conscious of his own opinions. Why, surely the object of this motion is to establish the test of theism." There were again "No's" from the party which denies; and Bright, after establishing his point, thrust afresh. "The theistic test," he repeated, "is proposed by the member for Portsmouth—the front bench opposite appears to have abdicated entirely—there is now only an abject, a remarkable submission to gentlemen who sit in the lower part of the House." A plain statement of the obvious fact that Wolff was establishing a precedent for intervention elicited more blatant "No's," and Bright began to warm up to his peroration. He reminded the House that a Positivist or Comtist who had been concerned in the issue of an anti-theistic pamphlet might quite as plausibly be challenged as Mr Bradlaugh; going on to speak of certain Positivists as "some men for whom I have the utmost respect in regard to everything but their opinions on the question of religion, which I deplore, and in connection with which I can only commiserate them. But," he went on, correcting the touch of superciliousness,—

"I know that many people have much greater power of belief than others have; and I am not one of those—having myself passed through many doubts—to condemn, without sympathy at any rate, those who are not able to adopt the views which I myself hold. (Hear, hear.) Now, sir, only one word more. There are members of this House of different Churches, but generally all, I trust, of one religion—of the religion which inculcates charity, and forbearance, and justice, and even generosity. There are those who belong to the Roman Catholic Church. I need not remind them of what they and their ancestors have gone through in Ireland—(hear)—for the last 200 or 300 years or more, or of how long a time they were kept out of this House, and by the very same class of arguments which the honourable and learned member for Surrey used. (Cheers.) He tells us that for a very long time past there has been a gradual relaxation. Yes, no doubt. Did he ever sit among those who have promoted those relaxations? I have been here for thirty-seven years, and I have heard these questions discussed over and over again; but I never found that the time had come when the party opposite, represented by gentlemen who now sit there, were willing to make these relaxations. They submitted not to argument, not to sentiments of generosity or of justice; they submitted only to a majority which sat on this side of the House. (Cheers.) Then there are the Nonconformists. I am told that there are some Nonconformists even—but I think it is rather in the nature of a mistake or a slander—who have great doubts as to how they should vote on this occasion. It is occasions like this that try men and try principles. (Hear, hear.) Do you suppose that in times past the Founder of Christianity has required an oath in this House to defend the religion which He founded? Or do you suppose now that the supreme Ruler of the world can be interested in the fact that one man comes to this table and takes His name—it may be often in vain—(murmurs)—and another is permitted to make an affirmation, reverently and honestly, in which His name is not included? But one thing is essential for us, the House of Commons representing the English people, which is, to maintain as far as we can the great principles of freedom—freedom of political action and freedom of conscience."

An allusion to the remark of Mr Labouchere that the Northampton constituency in the mass had no sympathy with Bradlaugh's theological opinions evoked another Conservative laugh, and Bright continued:—

"Well, hon. gentlemen who know nothing about it laugh at that. I think it very possible that, finding that Mr Bradlaugh in his political opinions was in sympathy with them, those electors so little liked the political opinions of hon. gentlemen opposite that they preferred Mr Bradlaugh, with his political opinions, to some opposing candidates who have represented them, and whose religious views might have been entirely orthodox. (Hear, hear.) ... *To a large extent the working people of this country do not care any more for the dogmas of Christianity than the upper classes care for the practice of that religion.* (Cheers, and loud cries of 'Oh,' and 'Withdraw.') I wish from my heart that it were otherwise. (Cheers, and renewed cries of 'Withdraw.')

Despite the Tory wrath, there was no withdrawal.

This great speech was followed, after the adjournment, by one from Gladstone, less powerful because less fired with moral feeling, but eloquent, cogent, and unanswerable, save for the slip of the statement that

Bolingbroke, the Theist, was "without any religious belief at all."^[135] Yet the end of the debate—after a series of speeches, including one by Sir Henry Tyler in which he brutally dragged the name of Mrs Besant into his attack on Bradlaugh—was that only 230 voted for Mr Labouchere's motion, and 275 against. This was on 22nd June. What Bright had thought could not be had taken place, though the Nonconformists were not the bulk of the Liberals who enabled the Tories to trample underfoot the first principles of Liberalism. Thirty-six Liberals and thirty-one Home Rulers voted in the majority, and doubtless joined in its exultant cheers.

A number of Liberals, further, were absent without pairs. There were found among the allies of tyranny representatives of nearly all of the sects which had themselves suffered persecution, Catholics, Wesleyans, Presbyterians, Jews, as well as members of the Established Church. When, therefore, Mr John Tenniel in *Punch* caused his weekly contribution to the gaiety of his nation to take the shape of a cartoon joyfully representing Bradlaugh as "kicked out," with a crumpled paper in his hand bearing the legend "Atheism," he was more than usually in touch with the social sentiment of which he is the leading artistic exponent. Our "English love of fair play" was never more neatly illustrated, even by that "primitive pencil."^[136]

The action of the Home Rulers is perhaps specially notable. Some of them later pretended that their hostility to Mr Bradlaugh was due to a single vote he gave on the Arms Bill. It will be seen that they opposed him in great force before he had ever had a chance to vote at all, and this on a simple claim that he should be allowed to make affirmation. Mr Justin M'Carthy, in keeping with his general attitude on religious questions, sought from the first to exclude the Atheist from Parliament. The only other plea open to the majority was that Bradlaugh had "forced his Atheism on the House." This was the line taken, for instance, not only by Sir Hardinge Giffard, but by Sir Walter Barttelot, a typical Tory squire and "English gentleman," who just before Bradlaugh's death in 1891 won for himself some credit by a frank tribute to his honesty of character. Were it not for the countenance given by Mr John Morley at the time to a patently unjust account of Bradlaugh's action—an account which Gladstone as well as Bright then explicitly contradicted—one would be disposed to point to the general repetition of the untruth by the Tory press and party as proving how worthless a thing the "honour and conscience" of English gentlemen is in matters of public

action. It is a matter of simple fact that Bradlaugh all along anxiously sought to keep his Atheism out of cognisance of the susceptibilities of the House;^[137] and it is perfectly certain that had he come forward to take the oath at the outset, he would not only have been afterwards vilified by the Opposition as a blasphemous hypocrite, but would have been challenged all the same by Wolff and the rest. The matter had been openly discussed beforehand. There is thus no conclusion open save that the majority in the vote on the affirmation motion did a gross injustice; and though the really religious men in the House, as Gladstone and Bright, were mostly on the other side, and the religiosity of the aggressors was in many cases a nauseous farce, it must be assumed that religion counted for much^[138] in the matter. Parnell in the next stage of the question avowed that he had been on Bradlaugh's side from the first, but had found himself opposed on the point by "the great majority of the Irish members." There would seem to be no doubt that the Catholic priesthood—actively represented by Cardinal Manning—determined the action of Parnell's followers, and later his own. It is perhaps not unprofitable to reflect that most of the "Liberal" wrongdoers have since paid some penalties. Some dozen lost their seats at next election on the Bradlaugh issue. The Home Rulers have felt to the full the power of fanaticism against themselves; and Parnell, who later yielded to the bigotry of his party, lived to know all the bitterness of religious injustice. A minor Scotch Liberal then on the wrong side, Mr MacLagan, has lately been unseated by clerical effort; and doubtless others could testify that they who draw the sword of bigotry tend to perish by it. It would doubtless be giving an undue air of moral regularity to the business to lay any stress on the final political fate of Northcote, who in the Bradlaugh struggle made himself the catspaw of the worst section of his followers. He certainly had his due reward.

§ 6.

Being thus expressly denied the right to affirm by a vote of the whole House, Bradlaugh promptly reverted to his position that if he could not affirm, he was legally bound to take the oath and his seat. A committee had declared by a casting vote that he could not affirm, and left him to swear. The House referred the point of his swearing to a larger committee, which decided by a majority that he could not swear, but recommended that after

all he be allowed to affirm. The House stood by the finding of both committees in so far as it was hostile, and overruled that of the second in so far as it was favourable. It remained to fight the whole House on the point of the oath.

On 23rd June, after the "prayers," which remain one of the institutions of the House, Bradlaugh walked to the table amid some cries of "Order," and spoke to the Clerk. The Speaker then formally intimated to him the decision of the House, and called upon him to withdraw. Amid roars of "Withdraw" from the furious mob of Tory members, Bradlaugh contrived to let the Speaker understand that he claimed to be heard. He had to withdraw while the question was discussed, and when Mr Labouchere sought to move that he be heard, the Speaker had to rise to secure order. On grounds not easily inferred, the House, suddenly changing its temper, with very little dissent agreed to let Bradlaugh be heard at the "Bar," which was at once drawn across the bottom of the House, and at which he proceeded to speak, as represented in the admirable portrait done after his death by Mr Walter Sickert. This, his first speech at the Bar of the House,^[139] I have heard described as perfect by some Liberals who thought less highly of the three others it was his lot to make from the same place. It is perhaps the most vividly impressive, but only, I think, because it was the first. Certainly it is the most memorable address of challenge ever made to the House, though it has all the straightforward, terse simplicity of Bradlaugh's general speaking, which was never rehearsed. It was measured and controlled throughout. The mean insult of a "Hear, hear" when he asked, "Do you tell me I am unfit to sit amongst you?" did not discompose him. "The more reason, then," he went on, "that this House should show the generosity which judges show to a criminal, and allow every word he has to say to be heard." Even in rebuking the most dastardly attack made upon him in the House he was gravely dignified.

"I have to ask indulgence lest the memory of some hard words which have been spoken in my absence should seem to give to what I say a tone of defiance, which it is far from my wish should be there at all; and I am the more eased because although there were words spoken which I had always been taught English gentlemen never said in the absence of an antagonist without notice to him, yet there were also generous and brave words said for one who is at present, I am afraid, a source of trouble and discomfort and hindrance to business. I measure the generous words against the others, and I will only make one appeal through you, sir, which is, that if the reports be correct that the introduction of other names came with mine in the heat of passion and the warmth of debate, the gentleman^[140] who used those words, if

such there were, will remember that he was wanting in chivalry, because, while I can answer for myself, and am able to answer for myself, nothing justified the introduction of any other name beside my own to make a prejudice against me. (Cheers, 'Question,' and cries of 'Order.')

He went on to deal with the common objection to his action:—

"It is said, 'You might have taken the oath as other members did.' I could not help, when I read that, sir, trying to put myself in the place of each member who said it. I imagined a member of some form of faith who found in the oath words which seemed to him to clash with his faith, but still words which he thought he might utter, but which he would prefer not to utter if there were any other form which the law provided him; and I asked myself whether each of those members would not then have taken the form which was most consonant with his honour and conscience. If I have not misread, some hon. members seem to think that I have neither honour nor conscience. Is there not some proof to the contrary in the fact that I did not go through the form, believing that there was another right open to me? ('Hear, hear' and 'Order.')

Is that not some proof that I have honour and conscience?"

The most searching thrusts were delivered with entire amenity.

"It is said that you may deal with me because I am isolated. I could not help hearing the ring of that word in the lobby as I sat outside last night. But is that a reason—that because I stand alone, the House are to do against me what they would not do if I had 100,000 men at my back? That is a bad argument, which provokes a reply inconsistent with the dignity of this House, and which I should be sorry to give."

And no less measured was the warning that the struggle would not end with his exclusion:—

"Do you mean that I am to go back to Northampton as to a court, to appeal against you? that I am to ask the constituency to array themselves against this House? I hope not. If it is to be, it must be. If this House arrays itself against an isolated man—its huge power against one citizen—if it must be, then the battle must be too. But it is not with the constituency of Northampton alone..."

The peroration was as austere as the rest of the speech:—

"I beg your pardon, sir, and that of the House too, if in this warmth there seems to lack respect for its dignity; and as I shall have, if your decision be against me, to come to that table when your decision is given, I beg you, before the step is taken in which we may both lose our dignity—mine is not much, but yours is that of the Commons of England—I beg you before the gauntlet is fatally thrown down—I beg you, not in any sort of menace, not in any sort of boast, but as one man against six hundred, to give me that justice which on the other side of this wall the judges would give me were I pleading before them."

Then ensued a fresh debate. Northcote at some length expressed himself to the effect that there was nothing to be said. Gladstone at similar length agreed. The Speaker asked whether Bradlaugh should be called in, and after some confused discussion Mr Labouchere was allowed to move that

yesterday's resolution be rescinded. Mr Gorst moved the adjournment of the debate; but on an appeal from Gladstone, Mr Labouchere withdrew his motion. The Speaker then recalled Bradlaugh to the table, and informed him that the House had nothing to say beyond calling upon him once more to withdraw. Bradlaugh replied: "I beg respectfully to insist upon my right as a duly elected member for Northampton. I ask you to have the oath administered to me, in order that I may take my seat, and I respectfully refuse to withdraw." The helpless Speaker "thought it right to point out to the hon. gentleman" what he had pointed out before. Again Bradlaugh replied: "With respect, I do refuse to obey the orders of the House, which are against the law;" and the Speaker had to appeal to the House "to give authority to the Chair to compel execution of its orders." Gladstone remained silent, despite calls for him, and Northcote in his flabbiest manner proceeded to move, "though I am not quite sure what the terms of the motion should be, that Mr Speaker do take the necessary steps for requiring and enforcing the withdrawal of the hon. member for Northampton." The Speaker confusedly explained, to the perplexity of the House, that according to "former precedents" the motion should simply be "that the hon. member do now withdraw"—precisely what he had already declared to be the resolution and order of the House. The motion being challenged, there voted for it 326, and only 38 against, the Government having chosen to give effect to the vote of the majority of the day before. The scene now became still more exciting. On the Speaker's again calling on Bradlaugh to withdraw, he answered: "With submission to you, sir, the order of the House is against the law, and I respectfully refuse to obey it." The Speaker then called on the Sergeant-at-Arms to remove him, and that officer, coming up, touched him on the shoulder and requested him to withdraw. He said, "I shall submit to the Sergeant-at-Arms removing me below the bar, but I shall immediately return to the table," and he did so, saying on his way back towards the table, "I claim my right as a member of the House." Again led back to the bar by the officer, he again walked up the floor of the now tempestuous House, saying "in a voice rising high above the din" (says a contemporary report), "I claim my right as a member of this House. I admit the right of the House to imprison me, but I admit no right on the part of the House to exclude me, and I refuse to be excluded." Again led to the bar by the Sergeant-at-Arms, he awaited the action of the House.

His action had been taken with a forethought. He was determined to force the House to further steps, and to make its path a *cul de sac*. The Speaker again appealed to the House for orders, and Northcote, making an effort to get up a state of vigorous purpose in himself, conscious the while that the moral right was all on the other side, once more took action. He somewhat disappointed the followers who had led him by remarking: "I am quite sure that none of us are disposed to make any personal complaint of the conduct of the hon. member. We know that he is in a position which calls for our consideration, and that we must make all proper allowance for the course which he may think it right to take." Complaining that the duty ought to have been taken up by the leader of the House, Northcote proceeded to move that Bradlaugh, having defied the House, be taken into the custody of the Sergeant-at-Arms. Gladstone once more explained that he thought those who had got the House into the trouble should get it out, and wordily went on to indicate that he thought the Opposition were taking a consistent course. But again a discussion arose. Mr Labouchere began by remarking on the position of a citizen sent to prison for doing what some high legal authorities thought he had a perfect right to do. Mr Courtney suggested that the arrest be formally carried through to permit of the legality of the House's course being tested on a writ of habeas corpus. The appearance of a shorthand writer at the bar taking notes led to a question of order; and the Speaker explained that he was there by authority, reporting the proceedings, "not the debate, which would clearly be out of order." A friendly motion for the adjournment of the debate was made, discussed, and withdrawn. Another was made by Mr Finigan, a friendly Irish member, and seconded by Mr Biggar; but only five voted for it and 342 against. Mr Parnell then made the very creditable speech in which he avowed his dissent from the majority of the Home Rulers; and some of these in turn expressed their dissent from him. At length Northcote's motion was carried by 274 votes to 7. The result was received "without any manifestation of feeling," and members laughed when the Speaker announced the resumption of "the private business." Already the majority had begun to feel that its triumph was a fiasco. In an hour the Sergeant-at-Arms, called upon by the Speaker to report, announced to the House that "in pursuance of their order and Mr Speaker's warrant, I have taken Mr Bradlaugh, the member for Northampton, into custody."

He was in the "Clock Tower"—in a room, that is, on the second story of that part of the House—whither he had gone with the slight requisite show of formal resistance, passing first a short time in the Sergeant's private room. There he was visited by Parnell, Mr O'Kelly, Mr O'Connor Power, Mr Finigan, and Dr Commins, all of whom expressed their cordial sympathy. The imprisonment was a farcical form. A constant stream of friends visited him; and he went about the business of fighting his battle in the country as he would do in his own rooms. On the very evening of his arrest a Committee was formed to secure his liberation, and an appeal drawn up in its name by Mrs Besant. This was distributed by thousands next day; and a fresh petition for signature was likewise framed and sent out broadcast at once. But the democracy did not wait for petitions. The moment the news of the House's action reached the public, a cry of indignation arose, loud enough to alarm Beaconsfield,^[141] on whose urgent advice (so it was said at the time) Northcote on the next day moved for Bradlaugh's unconditional release, which was hurriedly agreed to. The stultification of the majority was now complete; and the course taken by Northcote thus far may stand as a fair sample of modern Conservative statesmanship—the policy of irrational resistance, on no better principle than that of partisan habit, ending in ignominious collapse. Still the cry of protest swelled in volume. In less than a week two hundred meetings were held throughout the country to pass resolutions in Bradlaugh's favour; Radical and Liberal clubs and societies of all kinds sent their messages of protest and appeal; and Liberal members who had voted on the Tory side were sharply called to account. Even before matters had come to a crisis, abundant proof was given that a large and earnest minority were dead against the policy of intolerance. In May Mr Labouchere had given notice of a Bill to permit affirmation by any member in place of the oath of allegiance; and by 6th July there had been presented 462 petitions in favour of that measure, with 40,434 signatures, largely obtained through the organisation of the National Secular Society. The effect of these and other displays of popular feeling began to be seen in the House. Liberal members who had voted on the Tory side out of fear of the bigots in their constituencies began to hesitate. On 28th June leave was given to Mr Labouchere to introduce his Affirmation Bill, which was read a first time. The Government, however, took the view that Bradlaugh's rights ought to be legally determined in respect of the state of the law at the time of his election; and instead of supporting or giving facilities for Mr

Labouchere's Bill, they proposed the compromise of moving that the excluded member be allowed to affirm pending the legal settlement of his position. This was accepted; and, on 1st July, Mr Gladstone moved as a standing order that members-elect be allowed, subject to any liability by statute, to affirm at their choice.

This was of course the signal for a fresh storm. On Mr Gladstone's preliminary motion that the Orders of the Day be postponed, Mr Gorst pronounced the motion disorderly, and opposed the proposal in advance as being to the effect that "the House should break the law, in order to smuggle Mr Bradlaugh into the House." Gladstone, in moving his order, was studiously moderate, giving as a reason for the Government's not introducing a Bill the impossibility of having the question calmly discussed in the then state of feeling, while urging the necessity of preserving the dignity and decency of the House as a reason for doing something. He went on to defend Bradlaugh fully and forcibly against the charge of having "obtruded his Atheism" on the House, and wound up with a calm contention that it was the duty of the House to further the claim of any member to take his seat under a given law, leaving it to be settled in the law courts whether his claim was valid. Northcote opposed, arguing that there was no fear of a repetition of the scene of last week, since the Speaker could give instructions that Mr Bradlaugh be not allowed to enter the precincts. To accept the motion "would be to some extent humiliating to the House."^[142] No question of justice or righteousness was raised by the Tory leader. One of his followers, Lord Henry Scott, advanced the pious proposition that "the mere affirmation of a person who did not believe in a Supreme Being could not be regarded as a binding engagement upon him." Another ignoramus named Smyth explained that the "test of Theism" "pervaded the whole body of the Constitution, of which, like the soul of man, it was the animating principle." "Let Atheists be admitted within its walls, and there would be Atheistical legislation.... Such teaching it was that led to the outbreak of the French Revolution." Thus were old lies made to support new. An Irish Catholic named Corbet spoke of "Mr Bradlaugh's Byzantine doctrines of morality," either forgetting that Byzantium was the typical Christian State for a thousand years, or desiring to asperse the Christian Church which had all along been the great rival of his own. Mr A. M. Sullivan, another Catholic, made a rabid speech, supporting the cause of religion with the plea, "Where was the class that was oppressed now? It was nothing but an

individual." He went on to avow that he sought to keep Mr Bradlaugh out of Parliament on the score that his Malthusianism, "taken in conjunction with his Atheistic opinions, struck fatally at the foundation of civil society." The Church of the confessional is naturally zealous for the sacredness of the family; and the Church of the Inquisition for the "foundations of civil society." Men who regard the hamstringing of cattle as at most a pity are naturally warm on the subject of rational control of human procreation. On the other hand, Parnell "wished, as an Irish Protestant, with the utmost diffidence, to say a few words in explanation of the vote he would give to-night." Already he seemed shaken by the resistance of his followers; and he was at pains to say "he regarded the religious tenets of Mr Bradlaugh and his doctrines with reference to over-population as abominable"—a deliverance which reads dramatically in connection with the close of his own career, when an only less insensate and irrational ethic than his own gave the sanction for similar vilification of himself. There was finally a ring of anxious bravado in his avowal that "it was personally an odious task for him to take the course he should on this occasion"—(this after he had voluntarily gone to shake hands with Bradlaugh after the arrest)—"but if he had to walk through the lobby alone, he should deem himself a coward if he did not act up to his conviction."

Less self-regarding, and much more helpful, was the speech of Mr Richard, the most impressive in the debate. Mr Richard was one of the extremely few Christians who keep one set of gospel passages so constantly in view as never to be led into imitating the rest. He never echoed their words of execration. His very rebukes to his fellow-Christians for their pious scurrility were gentle; and he must have caused some searchings of heart when he observed that "no man who watched what went on, on the first day of the present Parliament, when hon. members were squeezing round the table, and scrambling for the New Testaments amid laughter—('No, no,' and Ministerial cheers)—no man could have watched that scene, and believed that the act had any of the solemnity of a religious act about it." When the otherwise pious Wolff followed, the altered balance of feeling was shown by impatient interruption of his remarks. An exceptionally offensive Catholic, named M'Coan, was called to order by the Speaker for the remark that "a more offensive representative of Atheism never was seen" than Bradlaugh. Finally, after General Burnaby had mentioned that "the Chief Rabbi, although refusing to interfere with political questions, felt very

deeply on this subject," the vote was taken, and by 303 votes to 249 Gladstone's motion was carried.

Bradlaugh was now free to make affirmation, and did so next day. Almost immediately on taking his seat he had occasion to vote, and immediately thereafter he was served with a writ to recover a penalty of £500 for illegal voting. The writ had apparently been prepared beforehand. The suitor was one Henry Lewis Clarke, the tool of Mr Newdegate, M.P.,—the latter, a man of the most restricted understanding, notorious as an old opponent of the admission of Jews to Parliament and a rabid assailant of Catholicism, but now eager to combine with Jews and Catholics against the Atheist. A few days afterwards a similar writ was served at the instance of one Cecil Barbour, of Nightingale Lane, Clapham; and yet a third was given notice of; but the work was left to Mr Newdegate's employee.^[143] A new stage in the struggle had now been reached.

§ 7.

For nine months—that is, while Parliament sat in the period July-March 1880-81^[144]—Bradlaugh now sat in the House, doing his work with intense and continuous application, though all the while there hung over him the shadow of a ruinous litigation. He had taken the risk. On 8th July the Government were asked by Mr Norwood, a hostile Liberal, whether they would instruct the law officers of the Crown to undertake his defence in any suit brought against him; but the answer was, of course, in the negative; and Bradlaugh rose to explain that he had had no communication with either Mr Norwood or the Government on the subject. A fortnight later a Bill was zealously forced through both the Houses to indemnify Lord Byron, who had sat and voted without being sworn, against any action for penalties. Bradlaugh had the experience of helping to safeguard the peer from the prosecution laid against himself.

His Parliamentary activity was many-sided, including as it did the charge of the interests of endless correspondents in all parts of the world who had grievances to redress and claims to put. But above all he devoted himself to the interests of Ireland and of India, the one still suffering from an imperfect realisation of her needs by English Liberals; the other from the general neglect of Liberals and Tories alike. The gratitude of the people of India has

been freely given for his service; that of the majority of the Irish members was naturally not prompt. They had wronged him, and so could hardly forgive.

Such a frenzy of malevolence, further, as had been aroused among bigots of all Churches by Bradlaugh's entrance into the House, was slow to decline. Whether outside the House or inside, he was furiously aspersed. A Bill to exclude Atheists was early introduced by Sir J. Eardley Wilmot,^[145] and petitions in support of this were largely signed, though wholesale subscription by the children of Sunday Schools was in many cases found to be necessary to fill the sheets. But petitions for his exclusion were a small part of the storm of malice that assailed him. It would fill a volume to recite or even cite the hundreds of denunciations—often vile and grossly libellous, and nearly all implying a religious motive—which were poured forth against him week by week. Clergymen naturally formed the bulk of the assailants; and of these the State Church furnished the largest contingent, all grades of the hierarchy being represented; but the President of the Wesleyan Conference, on behalf of the Conference Committee, presented a hostile petition to Parliament; and the secretary to the same Conference issued a circular calling upon the various Wesleyan bodies to join in the general movement against the Atheist. Protestants vied with Catholics in the foulness of their abuse, the ferocity of their enmity.

On the other hand, it must be put on record that in every church, in varying numbers, there seem to have been lovers of freedom as well as persecutors. Some of the most forcible and earnest letters sent to the newspapers on Bradlaugh's behalf were written by clergymen of the Church of England; and many Nonconformist clergymen spoke out on his side ably and warmly. At a Church Conference, more than one priest of the Establishment defended him bravely and well. Even from within the pale of the Church of Rome there came voices of protest against the intolerance of the majority. On 27th June 1880 the "Home Government Association" of Glasgow sent to Bradlaugh a resolution of the majority of its members to the effect "that this meeting of Irish Roman Catholics ... most emphatically condemns the spirit of domination and intolerance arrayed against you, and views with astonishment and indignation the cowardly acquiescence, and in a few instances active support, on the part of a large majority of the Irish Home Rule members to the policy of oppression exercised against you."

Bradlaugh was peculiarly quick to appreciate such messages of sympathy and fairness from religious opponents. The words of Bright on his behalf in the House brought tears to his eyes; and he never forgot to be grateful for them. In his own journal, immediately after his entrance to the House on tentative affirmation, he printed the following appeal:—

"Now that the fierce struggle is over, and that I am really in full enjoyment of the right and privilege which the people of Northampton gave me on the day of the poll, I beg my friends not to mar this triumph by any undue words of exultation or ungenerous boast. If bitter bigotry and Tory malice have been active against me personally, there has been also honest, earnest piety, in despite of the foulest and most persistent misrepresentations, enlisted in the grand array on behalf of right. If some clergymen have been cruel and unjust in language and conduct, there have also been preachers who have been most generous and kindly. Do not let our Freethinking friends remember so much what we as a party have done towards the result, as what has been done for us by religious men, notwithstanding the cry of heresy. If the heart of the great Nonconformist party had not been brave and just, the fight, instead of being so far over, would yet have to be fought. The speeches of religious men like William Ewart Gladstone, John Bright, Henry Richard, and Charles Stewart Parnell—each representing a varying shade of Christian belief, and each a most earnestly religious man—must more than outweigh, and cause our friends to pass by, the rabid, raving, fanatical outpourings and deliberate misrepresentations which have disfigured the Parliamentary discussions on this subject. When the reader remembers that the very vilest mis-statements and coarsest caricatures of my language and conduct have been circulated to every member of Parliament, ... it makes worthy of the strongest praise the high-minded conduct of those Nonconformists in the House of Commons who have declared for justice despite all."

But no good-feeling on his part or on that of the tolerant religious minority could stay the torrent of libel and vituperation; and a paragraph penned a month later shows how the majority bore themselves:—

"Many of my good friends have—during the progress of the bye-elections which have taken place at Oxford, Scarborough, Berwick, Wigton, and other boroughs—written indignantly as to the exceedingly wanton and coarse personal slanders which, chiefly for electioneering purposes, have been circulated against me by the Conservatives in order to induce votes against supporters of the Government. It is a little difficult to know how properly to deal with these most indefensible and cowardly attacks. By the law as it stands no action can be maintained for any spoken words unless an indictable offence is charged in the slander, or unless actual special pecuniary damage can be shown to have resulted, which latter is of course not in question.... Thus, Sir John D. Hay—who in the Wigton election has descended to a lower depth of coarseness and falsehood than any other Parliamentary candidate^[146]—could not be sued for damages.... The journals may of course be sued; but even if this is a wise course, the case is not easy. I am now proceeding against the *Yorkshire Post* for one very gross libel, and in the proceedings, which will be very costly, am actually required to answer voluminous interrogatories, not only as to all the doctrines I have taught and works I have published or written during the whole of my life, but also to works I happen to have referred to.... In the indictment against the editor of the *British*

Empire^[147] I shall probably have to bring a large number of witnesses from various parts of England to speak as to what has happened at lectures as far back as 1860. The fearful cost in this case (in which, being a criminal procedure, counsel must be employed) can only be fairly estimated by professional men.... I refrain from commenting on the infamous, most cowardly, and utterly uncalled-for attacks made on Mrs Besant by Sir John Hay and the *Glasgow News*, as these will in all probability be submitted to another tribunal."

Some of these proceedings had to be abandoned, so enormous was the burden.

A leading part had been early taken in the outcry against the Atheist by the leading representative in England of the Church of Rome, Cardinal Manning. In a highly declamatory and malevolent article contributed to the *Nineteenth Century*, that ecclesiastic took the line of appealing to the spirit of traditional national religiosity, grounding his case not on any tolerable form of Christian doctrine, but on the ignorant instinct that he knew to underlie the orthodoxy of the Protestant Churches, as of his own. He lauded the English people, regardless of its attitude to his own Church:—

"It knows nothing," he declared, "of a race of sophists who, professing to know nothing about God, and law, and right and wrong, and conscience, and judgment to come, are incapable of giving to Christian or to reasonable men the pledges which bind their moral nature with the obligations necessary for the command of fleets and armies, and legislatures and commonwealths."

Of the historic fact that the English people had once brutally persecuted the Quakers, but had latterly allowed them to dispense with oath-taking, he disposed by saying that they were allowed to affirm because they were known to be deeply religious, and therefore trustworthy:—

"But let no man tell me that this respectful confidence is to be claimed by our Agnostics; much less by those, if such there be, who, sinking by the inevitable law of the human mind below the shallowness and timidity of Agnosticism, plunge into the great deep of human pride, where the light of reason goes out, and the outer darkness hides God, His perfection, and His laws....

"There still stands on our Statute book a law which says that to undermine the principles of moral obligation is punishable by forfeiture of all places of trust (9 and 10 Will. c. 32, Kerr's *Blackstone*, iv. 34, 35, note), but there is no law which says that a man who publicly denies the existence of God is a fit and proper person to sit in Parliament, or a man who denies the first laws of morals is eligible to make laws for the homes and domestic life of England, Scotland, and Ireland."

The whole article was in this strain, as far removed from political science as from the charity which is conventionally associated with the Christian name. And though all the while it was notorious that the ignorant and

superstitious of the Cardinal's own Church are the least to be believed, whether on oath or without oath, of all *quasi*-civilised men, the rancorous rhetoric of the Romish priest counted for something with the class of Protestant bigots who, hating Rome, hate reason so much more as to be ready to work with even Rome against it. And yet Manning, in his work on "The Present Crisis of the Holy See," had declared that "England has the melancholy and bad pre-eminence of being the most anti-Catholic, *and therefore the most anti-Christian*, power of the world." Thus can fanatics manœuvre.

Among other libels, the ancient fable of the watch, the story of which has been told in an earlier chapter, was at this time made to do special duty, the flight of Edgcumbe being insufficient to set up hesitation on the subject among the mass of the orthodox. Some assailants, however, showed much discretion when challenged. Thus one J. F. Duncan, a Wesleyan minister of Nottingham, who in his pulpit described "that man from Northampton" as a "blot on the British escutcheon," and as a "wretch" who gave his Maker five minutes to strike him dead, was told that unless he apologised at once, criminal proceedings would be taken against him. He instantly replied: "I am this morning honoured with your communication, and have to say in reply that I know nothing of newspaper reports of my sermons, but if any remarks of mine have been offensive to you, you have my retraction and apology *at once*." A line in the *Reformer* tells how "J. H. Martin Hastings, a professedly religious person, having grossly libelled Mr Bradlaugh, now, under threat of criminal proceedings, sends us his retraction and sincere apology."

Some persons, offered an opportunity for a much-needed apology, did not avail themselves of it, the risk of criminal proceedings being absent. The following correspondence sets forth one such case:—

"To the Lord Norton,

June 25th, 1880.

"MY LORD,—In the lobby of the House of Commons this afternoon your lordship said in my hearing, 'Mr Bradlaugh ought to be flogged in Trafalgar Square,' to which I at once replied to you that it was ungentlemanly and impertinent to offer me an insult at a moment when I could not return it.

"I now beg to ask your lordship for some explanation, at the same time informing you that several members of the House of Commons whom I have consulted on the subject advise me that your lordship's carefulness in being ill-mannered and insulting

three feet outside the House of Commons precludes me from submitting the matter to the Speaker, and I can therefore only place this letter before the public with such answer as your lordship may be pleased to send me.—I have the honour to be your lordship's obedient servant,

CHARLES BRADLAUGH."

"35 Eaton Place, June 26th, 1880.

"SIR,—In reference to your letter just received, the facts are these:

"I was yesterday in a crowd at the door of the House of Commons, waiting to get into the gallery for the Irish Compensation debate. You came out and passed into the lobby. Some one pointed you out to me. The observation was made, how much trouble one man's desire for notoriety could give. I added that a desire for notoriety might be gratified by a public flogging in Trafalgar Square. You seem to have imperfectly overheard the last words on returning to the House, and connected your name with them. I certainly had no idea of suggesting a mode and place of treatment for any particular case. You came up to me and said, 'You should not insult a man in his presence.' I replied that I had said nothing to you.—Obediently,

"NORTON."

Bradlaugh's fingers must have itched to apply to Lord Norton's person the chastisement which his lordship had prescribed for him. Less well-bred people than his lordship expressed their sentiments to Bradlaugh by letter, being denied the opportunity of insulting him in his hearing. In the *Reformer* of 12th September he writes:—

"I was sorry that Mr Dillon thought it necessary to call the attention of the House to the threatening letters which had been sent to him. When I was fighting for my seat in the House, I received at least threescore letters threatening my life. I put them all in the waste-paper basket, although one or two of the communications were works of art, and decorated with skulls, cross-bones, bleeding hearts, and daggers. There is always a fair proportion of lunatics who in times of excitement write strange letters to public men."

His laugh over these things was entirely genial. At no period of his struggle, and on no provocation, did he ever show a touch of that general embitterment which so many men feel towards society on the strength of an ill-usage either imaginary or trifling in comparison with what he underwent. But the wrongers, as always, could not forgive. There was no slackening in the output of Conservative defamation, the device of saddling Bradlaugh's Atheism on the Gladstone Government being too congenial to be abandoned. As Lord Henry Lennox had put it in an inspired but unguarded moment, it was felt to be good Tory policy to "put that damned Bradlaugh on them." Sir Hardinge Giffard (now Lord Halsbury) publicly and falsely asserted in November that before the election the Liberal whip, Mr Adam,

had written to the Northampton electors, asking them to return Bradlaugh; going on to add that this step "had never been disavowed or disapproved by the Liberal leaders"—an extremity of false witness memorable as coming from a man who was soon to be made Lord Chancellor. Such a lead was of course zealously followed. And the average upper-class Liberal, while reluctantly voting with the Government in the matter, indemnified himself by insolence to the man over whom the trouble had arisen. There are always in the Liberal party men loyal to it as a faction, while caring little for its principles in themselves, and bearing small goodwill to those more advanced adherents who give pause to the weaker brethren. This state of mind may account for the gratuitous offensiveness, though hardly for the inaccuracy, of one utterance by Mr Marjoribanks (now Lord Tweedmouth) in an address to his constituents at Duns in November 1880:—

"It was in his opinion a great pity that the electors of Northampton should have elected a man to be their representative whose views, moral, religious, and social, were such as were Mr Bradlaugh's specialty, and not only his specialty, but his means of subsisting. (Applause.) It was a pity, too, that when Mr Bradlaugh had been elected he had not followed the example of far greater men, such as Mill and Hume, who were to some extent sharers in his beliefs, or rather his disbeliefs, but who had quietly gone to the table and taken the oath, and said no more about it. Then, again, it was a pity that when Mr Bradlaugh claimed to affirm, he was not at once allowed to do so at his own risk. Of one thing, however, he was perfectly sure, and that was, that the House of Commons was perfectly right in the distinct and peremptory refusal which Mr Bradlaugh's demand to take the oath met when it was ultimately made."

It is not necessary here to go into Mr Marjoribanks' estimate of the relative greatness of Bradlaugh and Joseph Hume, or of the merits of Bradlaugh's views. It is not such judgments as his that determine a man's standing with his generation, or with posterity. The remark as to "means of subsisting," also, may be left to supply its own commentary. More recently the same speaker has emphasized his objection to some action of some journalists by remarking that it was done for a livelihood; a judgment which strikes at the whole mass of the Christian clergy, and which would seem to imply that a rich man is to be pardoned for saying a false or a base thing where a hireling is to be doubly denounced. A man who has never had occasion to do anything for a livelihood presumably sees such things in a different light from those who lack his pecuniary advantages; and though a professing Christian is supposed to hold that the labourer is worthy of his hire, Lord Tweedmouth doubtless remains satisfied with the ethics of his youth. Mr Chamberlain has indicated similar views. Suffice it here to point to

Bradlaugh's whole career for the proof of the utter sincerity of his propaganda. But to praise Mill and Joseph Hume for taking an oath "on the true faith of a Christian," and to blame Bradlaugh for choosing rather to affirm when he believed an affirmation was open to him, is to set up an ethic which one would hardly expect any professed Liberal to avow. As for the "distinct and peremptory refusal," no such thing had taken place. What the House had distinctly refused was to allow the affirmation; and in the division on that point Mr Marjoribanks *had not voted for Mr Labouchere's motion*; whereas he had voted for Mr Gladstone's motion referring the oath question to a select committee. When a politician can thus deal with simple historical facts, his opinion on weightier issues is apt to lose even the significance it would normally have. Other Liberals added their quota. Lord Sherbrooke, writing in the *Nineteenth Century*, spoke of the oath which Mr Bradlaugh "at first refused and afterwards was ready to take." His Lordship had once spoken of Disraeli as possessing a "slatternly and inaccurate mind." No milder epithets could well be applied to himself in the present case. But for all these endless insults and wanton slanders Bradlaugh had seldom anything save a restrained and dignified rebuke. When Mr Grantham, Q.C., M.P. (now Mr Justice Grantham), spoke of him as gaining his livelihood "by the circulation of obscene literature," he remarked in his journal that there was one homely Saxon word that would meet the case. He might reasonably have said that there were several, of varying length.

It was noticeable that all of these insults were uttered in Bradlaugh's absence, or in periodicals where he was allowed no reply. From the first he had been refused the right of reply in the *Nineteenth Century*. Men did not now venture to attack him in the House; but they were bold when among their constituents, especially in the rural districts. On his own part he was scrupulous to give no just cause for offence. One journalist recklessly represented him as having once obtruded himself on the ceremony of prayers in the House, when in point of fact he had been accidentally shut in, and had remained motionless where he stood. We have seen how he besought all of his freethinking followers to beware of seeming to presume on the vote in his favour. During the autumn of 1880 there was much discussion of the question of the Burials Bill, a test which served to show the amount of good-will subsisting between bodies of citizens professing belief in the same God and the same sacred books. Dissenters were fit to swear and sit in the House of Commons, but from the Church point of view

were not fit to be buried "on their own recognisances," so to speak, in the public churchyard. The Tories in their traditional fashion opposed all concession, arguing that if dissenters were allowed to hold their own services, Atheists and heathens would follow. One Conservative member, named St Aubyn, pictured Atheists holding "indecent orgies over the bodies of the dead." Considering that drunkenness at funerals had been a reproach to Christendom for centuries; that it was common in Presbyterian Scotland within the century; and that Irish wakes are still customary, the suggestion may serve to measure the "honour and conscience" of the speaker, who further signalled himself by admitting, as a lawyer, that Bradlaugh had a legal right to sit in the House, while he confessedly opposed his taking his seat. In view of the general state of the Christian mind, Bradlaugh abstained from speaking on the subject in the House, and the National Secular Society decided to present no petitions in support of the Bill, lest they should thereby injure its chances. They had their thanks in a speech from Mr Osborne Morgan, who asked in Wales whether it was "reasonable to keep four millions of Nonconformists knocking at the churchyard gate for years because a handful of Secularists wanted to enter with them?" Any suggestion, however indirect and unobtrusive, that Secularists were entitled to the rights of other citizens, was sure in those days to elicit some display of animosity from the majority of those who call their creed a religion of love. Upright and scrupulous Nonconformists there were in the House, such men as Richards and Illingworth, who were faithful to the principle of equal liberty, and sought to carry it out; but the feeling that Secularists were as much of a nuisance dead as alive was the prevailing one.

Among the Irish members, finally, the full power of the Catholic priesthood was exerted to the utmost. Bradlaugh did the Home Rulers careful and continuous service in the House, besides publishing in his journal many articles and paragraphs in support of the Parnell movement. When the Chief-Justice of Ireland made a scandalous exhibition of judicial prejudice in regard to the Parnell trial before the case was heard, Bradlaugh denounced it as an "impudent manifesto." At the same time, nothing would induce him to cater for Irish or any other support at the expense of truth and fair play, and he protested against Irish wrongdoing no less promptly, though more gently, than against the wronging of Ireland. Any such display of impartiality served the majority of the Catholic Home Rulers as a political pretext for an antagonism motivated either by religion or fear of

priestly influence; and when Bradlaugh protested against the Irish tactics of obstruction and scurrility—tactics which he always refused to employ—they deliberately represented him as supporting coercion, though he not only spoke repeatedly against the Coercion Bill and published in his journal a number of articles emphatically condemning it,^[148] but actually moved the rejection of the Bill on the second reading, when Parnell had taken flight to avoid arrest. By this time Parnell had given way to the pressure put upon him by his followers, by the priests, and by the Irish press, and had joined them in aspersing Bradlaugh as the enemy of Ireland. None the less did he continue his Parliamentary labours in the Irish as in other causes. A reference to Hansard shows that in the months July-March 1880-1 (in only five of which, however, did Parliament sit) he was one of the most usefully industrious members in the House; and so much was abundantly admitted by his fellow-members, including even some opponents. Running over the scanty reports of his work, we find him pleading for Maories and Hindus, urging reform of the Criminal Code, asking the House to reject the Lords' amendments on the Ground Game Bill, moving for a select committee on perpetual pensions, challenging Indian finance, resisting the prohibition of Sunday funerals, calling for returns of national revenue and expenditure, working hard on the Employers' Liability Bill of 1880, protesting against the plank bed for prisoners, protesting against the flogging of soldiers,^[149] besides putting questions on behalf of aggrieved correspondents everywhere.

It was within this period that he came before the public in a new light, through having been challenged to fight a duel by a wild French *député*, M. Laisant, who declared in the Chamber, 27th December 1880, that he had precise information proving Bradlaugh to be a Prussian spy. Declining to go through the ceremony of the duel, Bradlaugh invited M. Laisant to lay the matter before a jury of honour of six—three to be English M.P.'s of whom M. Laisant should name one, and three French Deputies of whom Bradlaugh should name one. The matter, like the regulation French duel, came to nothing. But Bradlaugh had a very real fight before him at home.

§8.

Meanwhile the litigation forced upon Bradlaugh by the policy of the Government was proceeding, heaping up debt and preparing disaster. After

some distant skirmishing on points of form, the action of Clarke came on in the Court of Queen's Bench on 7th March 1881, before Mr Justice Mathew (a Roman Catholic) who, being newly appointed, was only that morning "sworn in." When the case was called, the junior counsel for the prosecution applied for an adjournment on the score that his leader, Sir Hardinge Giffard, was absent, and he, the junior, did not feel able to argue the case. Bradlaugh curtly explained that "Sir Hardinge Giffard has on more than one occasion refused to consult my convenience," and declined to agree to the adjournment. Giffard then appeared. Stripped of minutiae as to demurrers and cross-demurrers, the arguments were:—

For the plaintiff: That the defendant was not in law entitled to make affirmation of allegiance as he had done, the laws permitting such affirmation having been "intended" to cover only persons holding religious beliefs—*i.e.* beliefs as to a Deity and a future state.

For the defendant: That the Parliamentary Oaths Act of 1866 expressly provided that every person "for the time being by law permitted to make a solemn affirmation or declaration instead of taking an oath," should be entitled to make affirmation in Parliamentary matters; that the Evidence Amendment Act of 1869 enabled any unbeliever to give evidence in any court of justice on the presiding judge being satisfied that an oath would not be binding on his conscience; that the further amending Act of 1870 defined the term "judge" as covering any persons legally authorised to administer oaths for the taking of evidence; and that the Speaker was so authorised. Therefore defendant was entitled to affirm allegiance. "I contend," said Bradlaugh, "that all enabling clauses in statutes must be interpreted liberally, not restrictively, in favour of the person claiming the benefit, and not harshly against him."

The one technical weakness of the case was that nowhere had the legislature explicitly said that persons with no religious belief should be free to make affirmation of allegiance; though to found on this omission would be to assume that the legislature, while thinking the oath could advantageously (for that was avowed in the preambles) be dispensed with in the taking of evidence, thought it could not be dispensed with in the formality preceding entrance into Parliament.

On that point, however, Mr Justice Mathew founded his judgement, which was delivered on 11th March. The Evidence Acts, he decided, were clearly "intended to remove restrictions upon the admissibility of witnesses with a view of promoting the discovery of the truth," and "had no other object." The Acts of 1866 and 1869-70 must not be read together, because the legislature could not be supposed to have "intended" them to be so read. To this argument—one of the two mutually exclusive methods of interpretation of law which judges employ at their choice—Mr Justice Mathew added a pointed comment on one of the defendant's arguments. Bradlaugh, he said, had "attempted to show that the privilege of sitting in either House of Parliament was analogous to the 'privilege' of giving evidence in a court of justice." On which his lordship absurdly remarked that "no one who was free to choose his words and had a preference for accuracy of expression would speak of the discharge of the all-important and anxious duty of a witness as a privilege." It plainly follows on this, either that the work of a member of Parliament is *not* an "all-important and anxious duty," or that it is not a privilege. The first alternative is absurd; the other quashes the judge's argument. Further, it is the historical fact that Bradlaugh and other Freethinkers *had* regarded the power of giving evidence in court as a privilege, and had so described it. It may suffice to give these grounds, for the view of many of us is that the decision was unjust. But neither at this nor at any other time was Bradlaugh known even in private to question a judge's fairness. His loyalty to the established system of "justice" was absolute.

Judgment being given for Clarke, Bradlaugh applied for a stay of execution (as to the costs), with a view to an appeal; and the judge assented. On 14th March, when Bradlaugh was rising in the House to present a petition, Mr Gorst interposed with the objection that his seat was now vacant, and took occasion to assert that to his knowledge no notice of appeal had been given in the case. A discussion ensued, in which Mr Labouchere read a letter from Mr Bradlaugh to him, telling that he had instructed his solicitor to give the formal notice of appeal, and would prosecute it without delay, and offering to vacate his seat, if thought fit, to save time. Lord Randolph Churchill suggested that they had "no security" that the appeal would be made till nearly the end of the statutory twelve months. The point being dropped, Bradlaugh on 23rd March moved the Court of Appeal to expedite the hearing. As the appeal was "from an interlocutory order, and not from a

final decision,"^[150] it could be taken promptly, and on 30th March it was heard before Lords Justices Bramwell, Baggallay, and Lush. Bradlaugh began by arguing that Clarke was not legally entitled to sue, the Act founded on by him having been repealed by another which did not re-enact permission to anybody to sue. Going over the other ground afresh, he argued that the Act of 1866 made no exclusion of any class of persons whatever; and that the legislature ought therefore to be held as having desired to enable every class of citizens—an argument much more cogent, to the lay sense, than the contrary inference drawn by Justice Mathew. The arguments were long and intricate on both sides; and one of Bradlaugh's remarks in his closing address shows to what length of speculativeness they sometimes went: "The learned counsel said the word 'solemnly' could not mean 'sincerely,' because there was already the word 'sincerely' in the declaration. By the same process of reasoning the word 'sincerely' cannot be construed to mean 'truly' because there is also the word 'truly' in the affirmation. I think it is better to confine ourselves to law, and not go into philology." Towards the close, on a question as to whether their lordships' judgment was to be judicial or extra-judicial on both points raised, Bradlaugh remarked, "The House of Commons has been very generous in its treatment of me, and I am anxious to reciprocate that generosity," adding a hope that their lordships would not think he was pressing his point unduly. "If you will allow me to say so," replied Lord Justice Lush, "you have argued the case with great propriety as well as great force." But the judgment (delivered on 31st March) was again hostile, being to the effect that Clarke was entitled to sue, and that Bradlaugh was not entitled to make the Parliamentary affirmation. The reason given by Lord Bramwell, the presiding judge, was that the Parliamentary Oaths Act of 1866 would only permit affirmation to persons *already entitled*, like the Quakers, to make affirmation "not on particular occasions but on *all* occasions when they would otherwise have to take an oath." Unbelievers not being thus already entitled (having only the right to affirm as witnesses), Bradlaugh was not entitled to affirm by the Act of 1866, read in connection with others which did not give a complete qualification. That is to say, as I understand him, Lord Bramwell argued that the Act of 1866 was meant to give the right of affirmation in a particular case to persons who already had it in all possible cases. It sounds sufficiently absurd, and I may have failed to follow the reasoning; but I can arrive at no other interpretation of his words as

published. Lords Justices Baggallay and Lush concurred. The latter put it that the "every other person" in the Act of 1866 "must mean every other person in a like position with Quakers," that is, persons having "a perfect immunity from taking the oath in all places and on all occasions." "Therefore I feel no doubt whatever that the true construction of this sentence is that Parliament never intended to allow every person whomsoever when elected to appear before the House of Commons, and on stating that he had a conscientious objection to the oath, being permitted to make affirmation." Nobody, as it happened, had ever said so. But Lord Justice Lush's confident conclusion as to the intentions of Parliament involves this: That Parliament, knowing there were Atheist members, *deliberately chose to have them take the oath, rather than let them make affirmation.* To this outrageous conclusion all these judges are shut up; for there is not a word in any of the Acts about excluding Atheists; and if the "intentions" of the legislature are to be looked for—thus argued Sir Hardinge Giffard in this very case—"the language must be clear and unequivocal." So say we all. But the judges expressly inferred exclusive intentions from the mere absence of special detail in the inclusive language. They would not infer friendly intention from friendly language; but they would infer hostile intention from no language at all.

Bradlaugh's seat was now vacant in law; and he at once stood for re-election. All along the great majority of his constituents had stood by him cordially and courageously. A series of crowded public meetings, some addressed by himself and Mr Labouchere, some by leading local politicians, protested against the injustice done to member and constituency at each new stage of the process of exclusion, and now that the constituency was called upon to express its feeling at the polls it effectively responded. A certain number, of course, were detached from Bradlaugh by the storm of obloquy which beat upon him, and this the more readily because they had accepted the joint candidature with reluctance; but the great majority stood staunch, despite desperate efforts to turn them. As Bradlaugh told at the time, the constituency was flooded with pamphlets containing

"not only what I have said and what I have written, taken out of its context and distorted, but containing things I have never said and have never written, and never dreamt of saying or writing. Books that I have neither written nor published, but which were supposed to be obnoxious, have had extracts taken out from their medical parts and circulated, and the physiological part of the Knowlton pamphlet, for which I was indicted, was taken separately and sent by post to each of the electors. The vilest

things have been said. Some of my foes have been more foul than even I had thought possible."

The dirty work was largely done by a person named Varley, known as "a tradesman of Notting Hill." Further, a notice was served on the electors assuring them that Bradlaugh had vacated his seat "as if he were dead"; and on the comedy side of the contest the Conservative candidate, whose name figured on his bills in the alliteration "Corbett and Christianity," fortified his position in his electoral address by the appeal: "I am intimately connected with a family in your own county (that of Sir Charles Isham), which is well known to you, and members of which have at former periods had the honour of representing their native county in Parliament."

On the other side, a considerable amount of goodwill to Bradlaugh was shown in the Liberal press. The *Christian Globe*, declaring "unhesitatingly that the member for Northampton should be allowed to affirm, if he desires it," remarked that "Mr Bradlaugh has his faults, but he is a man of cleanly, decent, orderly life—a man of brains and ability, and of sterling courage as well." The *Daily Chronicle* testified that he had "made a decided and creditable mark in the House of Commons by his ability, his moderation, and his general deportment." Even the *Times* bore witness:—"Mr Bradlaugh has his compensations. It is something to have displayed forensic ability so conspicuous. It is only fair to him to allow that many, whom the choice of Northampton naturally did not content, have been conciliated by Mr Bradlaugh's manly and moderate attitude." The more Radical *Weekly Dispatch* declared that "no other new member of this new House of Commons has so much distinguished himself for political integrity and shrewdness, or given such evidence of statesmanlike qualities." Even in the House itself, Sir John Holker had observed that Bradlaugh had shown himself "a skillful debater, an eloquent man," whose "voice and tongue had an influence on the debates." More solid than these testimonies were the thousands of subscriptions, mostly small, but ranging from twopence to £5, sent in to meet the election expenses. This help from the workers was the kind of sympathy that always touched Bradlaugh to the quick.

The upshot of the fight (9th April 1881) was that Bradlaugh received 3437 votes, being 390 less than at the general election, while the Conservative candidate got 3305, being 153 more than the former Tory vote. Some 150 electors had turned round, while some 240 nominal Liberals had abstained

—not a very bad result under the circumstances. The narrow majority of 132, however, gave sufficient encouragement to the Tories in the House to stick to their policy of exclusion; and anger at defeat did the rest. One journal, whose name it will be charitable to suppress, deplored that the reluctance to fight a seat against "a Yahoo like Bradlaugh," with whom even that "association" would be "pollution," had prevented the advent of a better Tory candidate than Mr Corbett.

§ 9.

Parliament being in recess, it was only on 26th April that Bradlaugh was able to present himself once more on the field of battle. Sir Stafford Northcote, courteously enough, as Bradlaugh acknowledged, wrote him beforehand, intimating that he felt himself bound to object as before to the oath-taking. This he did as Bradlaugh was about to be sworn. The Speaker confessed that "undoubtedly a proceeding so regular and formal" as the oath-taking "ought under ordinary circumstances to be continued without interruption," but in view of the former resolution of the House he felt bound to allow the intervention. Bradlaugh interposed a request that he should be heard before the House came to a decision; but it needed the special interposition of the Speaker to get him a hearing for the bare request from the shouting Tories. Northcote spoke on the customary lines. Bradlaugh had been legally declared unentitled to affirm; but on the other hand, it would be "profanation" for him to take the oath—albeit everybody knew it had been taken by dozens of Atheists. And the old dishonourable equivoque once more did duty: "it had been clearly shown that Mr Bradlaugh did not regard the oath as having any binding effect on his conscience." The mover of the amendment in Bradlaugh's favour, Mr Davey, was much interrupted, as was Bright when he proceeded to support it. Interrupting Bright was never profitable. His first allusion to religious disability evoked the customary imbecile correction, "irreligious disability." The answer was prompt:—

"Hon. members say 'irreligious disability.' Well, you have objected before to the admission of the Roman Catholics. ('Hear, hear.') You objected to them because of their religion, which you deemed to be false—(loud cries of 'No' and 'Yes')—and the religion you deemed to be false you would now seem to consider much better than no religion at all. On the same ground you refused for many years the claims of the Jews to be admitted to this House, and you have now raised exactly the same question—

('No' and 'Hear')—but in a more offensive form—('Oh' and cheers)—because you aim your shafts at a particular individual, who cannot be said to represent a class."

Once more Bright defended Bradlaugh from the impudent charge that he had "obtruded his opinions on the House." His declaration that Bradlaugh's ground for proposing to affirm "was a ground honourable to himself—it was in point of fact a tenderness of conscience, as I should call it," drew "loud laughter" from the conscientious gentlemen of the Opposition. Bright pressed his point all the harder:

"I think it a gross unfairness—it was then and is now—to bring forward the fact that he himself preferred to affirm rather than take the oath, and then upon that to assume that the oath would not be binding upon his conscience.... He states in the most distinct manner that the words of the oath are binding upon his conscience—binding upon his honour and conscience. If that be so, you have no right to assume that the oath is not binding upon his conscience. You might as well tell me that the oath is not binding upon my conscience."

Later in the speech came a shrewd thrust:—

"If it be permitted to make these assumptions with regard to the hon. member for Northampton, why is it not equally right to make them with regard to other persons—I will mention no names—in this House or outside this House, who either publicly or privately have expressed the same opinions as are assumed to be held by Mr Bradlaugh? But nobody proposes to put any questions to them. (Cries of 'Name.') It is admitted now that if Mr Bradlaugh had come to the table and said nothing about the affirmation—I do not hesitate to say that it is to his credit that he did not take that course—and had offered to take the oath, no question would have been asked, but he would have been allowed to take the oath just as other members of the House."

Another reference to Bradlaugh's conscience brought out the cry, "What is its value?" from a Conservative member, and Bright commented mildly enough:—

"I must express my regret at what I must call the almost violent temper with which some hon. gentlemen come to the consideration of this question. I can feel the greatest charity for a member of this House who in my opinion holds views on religious matters which appear to me so extraordinary and so unfortunate.... There has been no member of this House who has conducted himself with greater propriety and decorum—(cheers)—and he has brought to our discussions at least an average—perhaps more than an average—ability; and there is not a single word he has uttered, not a single act he has committed, which in the slightest degree ought to bar him from taking his place in this assembly of gentlemen. (Cheers.) I would ask hon. members to think for a moment whether it is in accordance with that Christianity which they presume so much to defend that they should now at this time, after many years, almost centuries, of discussion of questions of this nature, determine to raise up another barrier against the civil freedom which our constituencies believe they enjoy."

The use of the quotation:

"Bigotry may swell
The sail he sets for Heaven with blasts from Hell"

was perhaps the most resented item in the speech; and Mr Gorst, who followed, thought it judicious to assert that on his side of the House "there was no disposition to treat this question in the spirit of intolerance and bigotry which the right hon. gentleman had done his very best to stir up.... It ought to be treated purely as a question of legality." But in a few minutes Mr Gorst arrived at the further conclusion that "to say that this was a question for the courts of law was absurd."

Bradlaugh then made his "Second Speech at the Bar." He first reminded Mr Gorst, who had argued from his old answer to the Committee on the point of the oath, that that answer was given unwillingly and after objection to its being put. In another preliminary paragraph he remarked: "My return is untainted. There is no charge of bribery, no charge of corruption, nor of inducing men to come drunken to the polling-booth." ("Hon." members who had done these things had had no scruple about taking the oath, nor had the House ever shown much resentment at contact with them.) Mr (now Sir) Edward Clarke had during the debate spoken of Bradlaugh's "making an avowal of opinions to the House" on a former occasion, and had contended that the dignity of the House was now involved.

"I have never," said Bradlaugh, "directly or indirectly, said one word about my opinions, and this House has no right to inquire what opinions I may hold outside its walls. The only right is that which the statute gives you; my opinions there is no right to inquire into. I shelter myself under the laws of my country. This is a political assembly, met to decide on the policy of the nation, and not on the religious opinions of the citizens."

He was accordingly meeting the Conservatives, as represented by Mr Gorst, on their own ground. On the question of dignity, raised by Mr Clarke, he asked:

"Do you mean that I can injure the dignity of this House? this House which has stood unrivalled for centuries? this House, supreme among the assemblies of the world? this House, which represents the traditions of liberty? I should not have so libelled you."

The most direct thrust in the speech is perhaps the following:—

"What will you inquire into? The right hon. baronet would inquire into my opinions. Will you inquire into my conduct, or is it only my opinions you will try here? The hon. member for Plymouth [Mr E. Clarke] frankly puts it—opinions. If opinions, why not conduct? Why not examine into members' conduct when they come to the table,

and see if there be no members in whose way you can put a barrier? ('Hear, hear.') Are members, whose conduct may be obnoxious, to vote my exclusion because to them my opinions are obnoxious?"

Here again the tone is not deprecatory:—

"The right hon. baronet has said there has been no word of recantation. You have no right to ask me for any recantation. Since the 9th April you have no right to ask me for anything. If you have a legal disqualification, petition, lay it before the judges. When you ask me to make a statement, you are guilty of impertinence to me, of treason to the traditions of this House, and of impeachment of the liberties of the people."

And the close—it cannot be called a peroration—makes no abatement of emphasis:—

"I ask you now, do not plunge me into a struggle I would shun. The law gives me no remedy if the House decides against me. Do not mock at the constituencies. If you place yourselves above the law, you leave me no course save lawless agitation, instead of reasonable pleading. It is easy to begin such a strife, but none knows how it would end.... You think I am an obnoxious man, and that I have no one on my side. If that be so, then the more reason that this House, grand in the strength of its centuries of liberty, should have now that generosity in dealing with one who to-morrow may be forced into a struggle for public opinion against it."

Mr Gladstone followed with a carefully subdued speech, in which, however, he remarked: "Mr Bradlaugh is upon his trial before the House; but the House also, permit me to say it with great respect, is upon its trial," and he proceeded to cite against the opposition the authority of

"Sir George Grey, who was an ornament of the House for fully forty years, and who has not ceased to take a lively interest in its proceedings. I hold in my hand his written opinion, expressed in the most decisive terms, and he has the fullest conviction that the opposition to the taking of the oath by Mr Bradlaugh ought not to be permitted by the Chair."

He further bore laudatory witness to Bradlaugh's behaviour in the House:—

"Every man must in common fairness admit that Mr Bradlaugh is to be credited with the best and highest motives. He is under a *primâ facie* and presumptive obligation and duty, having been elected by a constituency to present himself at the table as the only means of fulfilling his duty to them. On the other hand, I need not animadvert upon his conduct. It is generally admitted that his conduct while he sat on those benches was the conduct of a man of great ability, integrity, and honour."

Incidentally, the Premier mentioned that the authority of Sir John Holker was with those who held that the House had no right to interfere; and he put to the Opposition, at some length, the plain logical outcome of their action, namely, that they were bound, in every case in which a member's opinions were known from any source to be irreligious, to refuse that member the

oath. The argument was unanswerable; but it was not argument that was to be met. After a long debate the House divided, when 208 members voted for Northcote's motion, and only 175 against.

Then came another "scene." Bradlaugh came to the table and made his old protest: "The resolution of the House is against the law, and I respectfully refuse to withdraw." The Speaker, as before, asked for "instructions." Northcote asked Gladstone to propose something. Gladstone "left it to the majority to carry out their own vote." Northcote, after lecturing the Premier for dereliction of duty, moved "that Mr Bradlaugh be ordered to withdraw." Gladstone warmly demanded to know on what grounds he was lectured. Mr Labouchere interposed with a warning, and proposed to divide, but at the request of Mr Bright withdrew the motion. The Speaker again asked Bradlaugh to withdraw, and Bradlaugh again refused. The Sergeant-at-Arms was then called on to remove him, and did so in the former fashion, Bradlaugh returning from the bar to the table as before, protesting against physical force, and asking the House "not to put me to the indignity of a physical struggle." Again the Speaker "threw himself upon the House for instructions," and the House called for "Northcote" and "Gladstone"; but neither leader responded. A member asked whether Mr Bradlaugh had not already been ordered out. The Speaker helplessly explained that the order "only extended to the bar of the House and no further," on which Bradlaugh moved back to the bar and stood there. Northcote rose and feebly protested that he "was only prevented from moving that Mr Bradlaugh should be committed by the feeling that Mr Bradlaugh was encouraged by the Government in his resistance." Gladstone "entirely repudiated and repelled the statement," considered the accusation groundless and wanton, and called upon his right hon. antagonist to "point to the facts on which he has made so grave a charge to the House." Northcote suitably replied, and Gladstone again repudiated, intimating that he "should not take any steps in this matter until the time came when it appeared to him he could do it with advantage to the House." Thereupon Mr Cowen moved the adjournment of the House, which was eagerly agreed to. Only in that fashion was the House able for the time to get out of the ignoble dilemma in which it had been landed by a cowardly cabal of bigots and faction-fighters. Northcote did not dare again to move Bradlaugh's committal, but did not dare to confess it; and there was nothing to do but run away.

Next day, however, the trouble began afresh. Bradlaugh again presented himself, and was once more removed to the bar, where he stood as before. Mr Labouchere now asked whether the Government would give facilities for the Affirmation Bill he had introduced last session; and Gladstone in his lengthiest manner evolved the answer that it would depend on whether the Bill was to be opposed. Mr Labouchere and others passed on the appeal to Northcote as directly as the forms of the House permitted; and Northcote, as lengthily as Gladstone, made answer to the effect that "a measure of the kind" would have his "careful consideration," but he could agree to nothing "in the nature of a bargain." The truth was, of course, that Northcote could not answer for his more unscrupulous followers, but dared not admit as much; so the debate went on in the diffusest House-of-Commons manner. After a long speech from Bright, Mr Hubbard, losing patience, and having no judgment to lose, asked "What use were the police, or officers of the House, if they could not protect the House from the intrusion of people who had no business there?" No answer being vouchsafed from the deaf heavens, Mr Walter pompously explained that in his opinion Mr Bradlaugh ought to be allowed to affirm, but that no unbeliever ought ever to be allowed to take the oath. "It was idle to say the House had not official cognisance of the fact that the hon. gentleman belonged to a sect which did not believe in the existence of God." Another long speech from Gladstone left the situation unchanged. Mr Newdegate intimated that if neither leader moved the arrest of Mr Bradlaugh, he would, if necessary, do it himself. Still the debate rolled on. Mr Chaplin admitted that Bradlaugh while in the House "had acted with great ability and great moderation," but then he had "openly avowed," etc., so they could not stand by, etc. They commenced their proceedings with prayer, and invoked the aid of the Supreme Being to guide them in their labours. On the obvious efficacy of the appeal, Mr Chaplin did not dwell. A dozen more speakers followed, some of them—as Alderman Fowler and Mr Warton—declaring that they would oppose any bill; while one Maciver intimated that he "intended on Thursday to ask the Prime Minister whether he would introduce a short measure for the partial disfranchisement of Northampton." At length, on no assurance from Northcote, but simply on a favourable expression of feeling from Sir Walter Barttelot, Mr Labouchere's motion for the adjournment of the House, under cover of which the whole long-drawn discussion had taken place, was by

leave withdrawn; and Bradlaugh withdrew to await the action of the Government.

On the 29th April Gladstone did announce the intention of the Ministry to introduce an Affirmation Bill, whereupon Lord Randolph Churchill announced his intention to oppose it; and the early stages of the measure were systematically hampered. Bradlaugh published in his journal an "Appeal to the People," in which he asked them to "speak out clearly, distinctly, thoroughly, and at once on this issue;" and he again held a great town's meeting at Northampton. After a long and brilliant speech, ending with the words, "In this struggle some one must recede, some one must bend, some one must break. This I do pledge myself, that if health do keep, and life do hold, I will never give way," there was a loud tempest of applause, at the close of which he rose again and asked the audience, "Have you still confidence in me?" and "Will you stand by me in this fight?" Every hand went up to both questions with fresh storms of cheering, and Bradlaugh answered "Then on my honour, if I live, we will win."

The House, however, did not mend its ways. On 2nd May Gladstone moved that the other Orders of the Day be postponed for the Oaths Bill, and Churchill opened the debate with a vulgar and violent harangue, which ended with a hope that the Tories would "give no facilities for placing in that House brazen Atheism and rampant disloyalty." Several followed suit; and Northcote, seeing his followers leading him as usual, made one of his flabby speeches in deprecation of anything like speedy action in the matter. The measure must be discussed "upon its own merits, and not with reference to the circumstances and position of any given individual;" and there must be no "semblance of hurry for the purpose of avoiding a scandalous scene." In fine, there should be no alacrity. Gladstone extensively assented, agreeing to allow an interval after the introduction of the Bill; but a number of Tories threw over their leader, and one Lewis moved the adjournment of the debate. This failing, the Home Rulers raised a dispute on procedure, whereafter the Attorney-General, Sir Henry James, introduced the Bill. In the course of his speech Sir Henry cited the admission of Northcote to the effect that he did not object to Bradlaugh sitting in the House, but to his taking the oath. The unhappy Northcote, pressed on all sides, made the pitiful explanation that when he said so he

only wanted to raise the point of the oath; but he did not now wish to be understood as having no objection to Bradlaugh's presence in the House.

Adjourned till Friday the 6th May, the debate was then proposed to be postponed till the 10th, whereupon Mr A. J. Balfour—who now for the first time interposed in the controversy within the House—objected to the Government's course as being taken "not to give relief to any large class of Her Majesty's subjects, but to deal with an individual." Sir Richard Cross, who was reminded that he had admitted there was no way out of the difficulty save by legislation, granted that he was of that opinion, but avowed that he would all the same oppose any attempt to give facilities for Bradlaugh's admission. On a division on the amendment the Government had only a majority of 6 votes—128 to 122. On their motion being put substantively, a new discussion arose, the Tories moving the adjournment of the debate. Bright made an impressive speech, in which he "ventured to say that if the Bill were passed there were scores of members who would prefer to make an affirmation," but obstructive speaking went on, Mr T. P. O'Connor, among others, ridiculing Bright's speech, and charging him with having "insulted the religious feeling of the Irish people" earlier in the evening. After hours of time had been spent, the Government, at three o'clock in the morning, agreed to the adjournment; but on Tuesday morning, when the question was raised after one A.M., the obstruction was continued on precisely the same lines, and the ministry gave up their plan of a "morning" (*i.e.* afternoon) sitting. Lord Henry Lennox's principle of "putting that damned Bradlaugh on them" was now felt by his party to be an inspiration worthy of the common cause. Bradlaugh's admission stood indefinitely adjourned, so far as the Government were concerned. But they had still to reckon with Bradlaugh himself.

Giving due notice, he presented himself at the House next day, and the now customary scene was enacted. The Speaker made his usual appeal, and Sir Stafford Northcote moved "that the Sergeant-at-Arms do remove Mr Bradlaugh from the House until he shall engage not to further disturb the proceedings of the House." On challenge, he explained that by this he meant that Bradlaugh should "not come within the door kept by the doorkeepers." To this motion Gladstone agreed, asking his followers to do likewise. It "relieved the Government," as the journals noted at the time, "of the necessity for pushing on the Parliamentary Oaths Bill."

Bradlaugh for his part decided not to renew his attempt until the Irish Land Bill had got through the House. So much consideration he thought the Government were entitled to, and no amount of injustice from Irishmen could induce him to put in jeopardy a measure of justice to Ireland. On this decision he promised the Sergeant-at-Arms not to attempt any forcible entry of the House without giving him full notice.

§ 10.

Meanwhile the battle of opinion went on outside the House. It was noticed at the time, as a significant fact, that in the newspaper war on the subject nearly every attack on Bradlaugh was anonymous, or signed with initials, while nearly every defence of him was signed. His friends fought for him with his own spirit. A "League for the Defence of Constitutional Rights" was founded in his support; and an "anti-Atheistic Committee" was formed on the other side, with an office in the Strand, and with the name of Sir Bartle Frere figuring in its propaganda. On this Bradlaugh struck out as he seldom did. "At least very shame," he said, "should have made Sir Bartle Frere hesitate before he paraded his blood-and-shame-stained name in a crusade against me." The "anti" Committee held a ticket meeting in Exeter Hall, at which a Secularist who had a platform ticket learned from a member of the Committee, a magistrate, that the Committee had engaged for the evening six prize-fighters, with instructions to "stop the mouths of Mr Bradlaugh's friends with their fists." The meeting was presided over by Earl Percy, and among the speakers was the Varley before mentioned. "Bradlaugh's friends" filled the street outside and carried counter resolutions. Indoors the promoters had the services of the police in tearing up the tickets of any comers who were pointed out to them as Freethinkers, and in ejecting the presenters; while disorder was created by the further ejection from the platform of a number of Freethinkers who had gone thither with proper tickets.^[151] No less than two hundred policemen had been supplied by the Home Office. After this naturally there was some disturbance. According to Canon Taylor, one of the speakers, "for an hour and a half it was scarcely possible for the different speakers to get a hearing, except a few sentences at a time; and when 'God save the Queen' was sung the Atheists in every possible way showed their disloyalty." The resolution of the promoters was declared carried; but the Rev. Canon "was

alarmed to see such a large minority, extending from beneath the platform to the other end of that large hall, composed of men and, he was grieved to say, women." (The boys present, it may be inferred, belonged to the Young Men's Christian Association.) And this alarmingly large minority, when the "contrary" vote was taken, "rose with the greatest possible manifestations of dissent, and with the waving of handkerchiefs." Quite a number of similar meetings in the provinces failed more or less badly. On the other hand, Bradlaugh in person held crowded meetings, free to all, in many towns, getting an ovation everywhere, in addition to which scores of resolutions and petitions in his favour were sent to the House by Liberal and Radical clubs. A mass meeting held at St James's Hall under the auspices of the Constitutional Rights League, finally, was packed to the door. Among the speakers were three clergymen, one belonging to the Church of England, Admiral Maxse, and Mr Labouchere; and no dissentient vote was given on the resolutions in Bradlaugh's favour. One of the Nonconformist ministers who spoke, the Rev. Mr Sharman, told how Plymouth Liberals had sent to Northcote the telegram: "We protest against your effort to deprive Northampton of one-half of its representation as being revolution in the name of Conservatism and robbery in the name of religion." The Rev. Stewart Headlam said of Bradlaugh:—

"I know the great work he has done in the east of London for the moral condition of the people. I know how he has got hold of hundreds of people whom we clergy have been utterly unable to reach; and ... I am certain that the work he has done in the east of London has been of the greatest moral use for the elevation of the people."

Bradlaugh, on his own part, paid one of his many tributes to Gladstone.

Of this meeting no report appeared in the leading Liberal paper, the *Daily News*, then understood to be mainly owned by Mr Samuel Morley, before mentioned. This was unhappily not the only instance of a Liberal journal perverted by private motives to the side of bigotry in Bradlaugh's case. Mr Joseph Cowen, M.P., owner of the *Newcastle Daily Chronicle*, who had long been on friendly terms with him, and who had volunteered the expression of approval of Bradlaugh's action when he was imprisoned in the Clock Tower, now took the line of charging him with inconsistency in proposing to take the oath, though it was for trying to take the oath in the previous session that he had been imprisoned. And Mr John Morley, then editing the *Pall Mall Gazette*, not only gave prominence in that journal to utterances hostile to Bradlaugh, such as that of Mr Holyoake, but

suppressed letters in his favour, even when sent by a literary man of good standing like Mr Moncure Conway. Mr Morley, while of course condemning the Tory tactics, now blamed Bradlaugh for proposing to take the oath at all, though he had before spoken of him as "parading his views," and though, when he previously accused him of first "declining" the oath and then asking to take it, he had *not* condemned oath-taking by an unbeliever. Bradlaugh pointed out that voluntary abstention from taking the oath would have made his seat void in law, to which the *Gazette* editorially answered by expressing its confidence that if Bradlaugh had simply refused to take the oath, the House would not have dreamt of unseating him on that score. On the strength of that conviction the *Gazette* editor wrote:^[152]—

"We have not concealed our opinion that Mr Bradlaugh would have consulted his own dignity by refusing to take the oath, and fighting out an issue which could only have one end." And again:^[153] "The national belief in the existence of a Deity will not be lessened by the fact that Mr Bradlaugh and men like him are no longer called upon to use a form which in their lips is an indecent piece of mockery."

When later elected himself, Mr Morley made no attempt to act on the rule he had thus laid down or caused to be laid down for another man.

It is a curious and a melancholy illustration of the instability of human character that while Mr Morley was partly playing into the hands of the spirit of injustice, Mr Goldwin Smith, who now wears its livery, was emphatic on the other side. He thus wrote in his Toronto journal, the *Bystander*, in April 1881:—

"To the shame of British civilisation and religion, the attack upon Mr Bradlaugh and upon the civil rights of his constituents goes on, and has been technically successful in a court of law. *The ringleaders are scamps*, putting forward religion as a pretext for political persecution. It is Sandwich over again denouncing Wilkes for impiety. Set a coronet on Mr Bradlaugh's head, give him a large fortune, make him a Tory in politics, and though he were the most offensive of Atheists, and the most profligate of debauchees to boot, he would have these crusaders at his feet.... If Parliament allows a fine to be levied on Mr Bradlaugh for taking the seat to which he had been duly elected it will undergo a far greater disgrace than any that can be inflicted upon it by obstruction."

Doubtless Mr Goldwin Smith, writing in Canada, did not feel the burden which weighed on Liberal respectability at home, the more so as he had never professed himself a rationalist.

§ 11.

The lawsuit raised by Clarke on behalf of Mr Newdegate still went on its difficult way, Bradlaugh fighting it inch by inch and point by point. On 2nd May 1881 he argued before the Lords Justices of Appeal a point on which he had previously been stopped, and on which no judgment had been given. This was as to the validity of the "replication," in which Bradlaugh argued that, as he had actually made affirmation, he could not properly be sued (as he had been) for sitting and voting without taking the oath. The judges ruled that as he was not in their opinion entitled to affirm, the fact of his affirming was not a valid answer. Defeated here, Bradlaugh decided next to endeavour to overthrow the action on what he described as a pure technicality, the argument that, as the writ was dated 2nd July 1880, and the vote sued on had been given on that day, the action had been brought too early, "for that the writ must be held to have been tested at the earliest possible moment of the 2nd of July, and therefore prior to the sitting and voting for which the penalty is claimed." This point was raised on 16th and 17th May before Lord Chief Justice Coleridge and Mr Bowen, on Clarke's counsel moving for judgment, and Bradlaugh advanced a long and learned argument on the point. Judgment was delayed, and the legal point was tried on 20th and 21st June, before Justice Denman and Watkin Williams, on the plaintiff's amended statement, Bradlaugh demurring. His demurrer was overruled, Justice Denman admitting that the point raised was "true as a general rule of law," but not applicable to this case; and his lordship gave this singular reason: "For a legal fiction is for the purpose of doing justice, not for defeating it." It was not suggested that justice was being done in the case in hand; but if Bradlaugh's argument were to hold good, it might be defeated in somebody else's case. "No rule of law," said Justice Watkin Williams concurring, "compels us so to violate common sense and plain understanding," another decision worth remembering in the present connection. Bradlaugh drily wrote in his journal: "I think the decision of Justices Denman and Watkin Williams is in accordance with common sense, but I do not think it is consonant with common law." He added: "I shall, of course, appeal against the decision. The next step will probably be the trial at *Nisi Prius*"—that was, the trial of the matter of fact as to the exact hour of issuing the writ, which had still to be proved by oral evidence before a jury.

That trial took place before Mr Justice Grove and a special jury, in the Queen's Bench Division, on 19th, 20th, and 22nd July; and the cross-

examination of witnesses by Bradlaugh elicited, for one thing, that Newdegate was the financial backer of Clarke's action, and, for the rest, that the evidence of Newdegate and his principal witnesses on the question of the time of issue of the writ was rather worse than worthless. Newdegate had a very bad time of it in the witness-box, and the verbatim report of his cross-examination^[154] may be recommended to legal students as illustrating the value of the testimony of an English gentleman and magistrate who believes devoutly in God, and holds that no unbeliever can be believed. A worse appearance has seldom been made in the witness-box by a man of standing; and in the case in question it was only surpassed in importance by the exhibition made by Newdegate's principal legal witness—a gentleman who was proved to have expressed his surprise that another legal gentleman should consent to give evidence for "a man like Bradlaugh." The whole report is a singularly dramatic comment on the proposition that oaths secure truthful evidence. Probably no competent and unbiassed person who now reads it will have any difficulty in concluding that the writ had actually been taken out at least an hour before Bradlaugh had given the vote on which it proceeded, and that at least three witnesses swore to falsehoods. Bradlaugh categorically asserted in Court that Newdegate had lied; and Newdegate's evidence was hardly the worst.

The facts of the case may now be historically stated with tolerable confidence. Newdegate had been afraid that a friendly action would be brought against Bradlaugh, in which case Bradlaugh would not have to meet the £500 penalty. Newdegate desired that Bradlaugh should be mulcted; and he had actually been indecent enough to block the Bill of Indemnity introduced on Bradlaugh's behalf by Mr Labouchere. Nay more, in opposing the motion that Bradlaugh be permitted to sit on affirmation, he had argued that it was beneath the dignity of the House to lay a trap for a man and leave him to be caught in it by any one who cared to prosecute. Yet after saying this, he gave a bond of indemnity to Clarke, the common informer, for suing Bradlaugh; and he had apparently selected Clarke—a nondescript person, sometimes called a surveyor, sometimes an accountant, but professionally neither—because, having little or no means, he could not be made to pay costs in case of Bradlaugh winning the action.^[155] Such a litigant would not stick at trifles. In concert with his legal advisers, Newdegate, to forestall the friendly action, had the writ ready for serving before Bradlaugh had voted. This, at least, seems to be pretty clearly

revealed by the extraordinary prevarications of Newdegate and his witnesses.

The case ended oddly. The jury, after being locked up for nearly an hour, intimated that they were not likely to agree; and the judge asked whether a majority verdict would be accepted. Bradlaugh offered to do so, but Newdegate's counsel declined. After nearly an hour more, however, the jury agreed on their verdict; and it was for the plaintiff, Clarke. It was understood that they had agreed to give their verdict by majority. Bradlaugh tersely remarked in his journal: "The ultimate verdict a little disappointed me: I had thought that I had won." Certainly the judge's summing-up had seemed to be in his favour.

As usual, he appealed. Like Ben Bolt in the novel, he was "bad to beat." He appealed for a new trial, on the ground that the verdict was "against the weight of the evidence." But that was not all. Newdegate, having confessed giving a bond of indemnity to Clarke, had laid himself open to a return action, under a form of law, for the offence of "maintenance;" so on 27th July Bradlaugh accompanied Mr (now Sir) George Lewis, the famous solicitor, to Bow Street Police Court, where Mr Lewis moved for a summons against Newdegate, and another against his solicitor as accessory. The magistrate, Mr Flowers, was somewhat taken aback. "Is it not rather ——" he began. "Yes," said Mr Lewis promptly; "and so is the action against Mr Bradlaugh. Mr Newdegate asks for strict law against Mr Bradlaugh, who now asks in return that strict law may also be enforced against Mr Newdegate." The summonses were granted.

Next day, 28th July, and on 1st August, Bradlaugh argued before Justices Grove and Lindley his motion for a new trial on the question of time in the Clarke case. Finally (8th August), after a request from the Court for affidavits had been followed by an extremely improper step on the part of Newdegate's solicitor, who actually sent some affidavits privately to Mr Justice Grove's house, the Judges gave a rule *nisi* for a new trial on the ground urged. This rule could not be argued till November, and if it were then made absolute the new trial could not take place till after Christmas, so that Newdegate was once more intercepted. The criminal summonses, on the other hand, did not come on till 20th September, for reasons which will appear in the next section, and when heard were dismissed by the magistrate, Mr Vaughan.

"He was of opinion that complainant had not shown that the maintenance of which he complained came within the meaning of the statute. Though the statutes of Richard II. and Henry VIII. did undoubtedly refer to crimes and imprisonment for maintenance, still it was most singular that no indictment could be found for violation of these statutes. It seemed to him that the proceeding was an obsolete one, and that the criminal law ought not to have been invoked for a purpose of this description, when it was open to Mr Bradlaugh ... to apply to the common law courts.... Old statutes had been searched out in order that proceedings—which he could not help thinking had been taken to gratify a very unfriendly feeling on Mr Bradlaugh's part—might be instituted in the hope that Mr Newdegate would be committed for trial."

The licence of general criticism taken by our magistrates has seldom been more strikingly exemplified; and no one but a prejudiced magistrate, probably, would have had the assurance to condemn a litigant for "unfriendly feeling" towards a declared enemy who had wantonly and zealously sought to ruin him.^[156] The deliberate setting aside of the statutes as obsolete, too, while a civil action was admitted to lie, was an act of lenity to Mr Newdegate, contrasting favourably with the attitude of other judges towards Bradlaugh. But the fact that a civil action remained open was sufficient for Bradlaugh's purposes; and already Newdegate had begun to repent somewhat of his zeal. His costs were accumulating, and still the hoped-for prey was out of his reach. A circular was accordingly issued on his behalf by Captain Bedford Pim, who felt "strongly that Mr Newdegate, M.P., should not be allowed to suffer for his spirited and patriotic action against Atheism, and that some steps should be taken to bear him harmless in the struggle upon which he has so nobly entered."

§ 12

In the interval between the issuing and the hearing of the summonses for maintenance, something more serious had occurred. When the Government had in May decided to postpone their Oaths Bill, Bradlaugh, while acquiescing perforce in the delay, had renewed his platform agitation with redoubled energy, preparatory to forcing a fresh contest on the House if need were. The situation grew worse instead of better. Between 20th June and 4th July he had had a formal correspondence with Mr Gladstone on the subject. "You are aware," wrote Mr Gladstone, declining the request for an interview, "to how considerable an extent Liberal and public interests have been brought into prejudice by untrue suppositions as to communication between you and the Government." Bradlaugh answered by a detailed

statement of his action, which had been guided by a desire to avoid embarrassing the Ministry; and Gladstone in reply acknowledged this; but later (28th June) intimated that they proposed to try to close the Session early in August, and they could not hope to carry any strongly controversial measure after the Land Bill. This intimation was made definite in a letter of 2nd July, and Bradlaugh was once more left to his own devices. He chose his course at once. First he addressed to the Speaker, under date 4th July, a formal letter, setting forth his contention as to the illegality of the House's action on 10th May. He was advised, among other things, that the excluding order of that date did not authorise the Sergeant-at-Arms to use force, and that the use of force to prevent his re-entry would be illegal.

"I beg therefore, sir," he went on, "most respectfully to give notice that I claim to disregard the order of the House, ... and to treat the same as not requiring obedience from me, on the ground that such order is absolutely illegal.... In the name of the law, sir, and of my constituents, I also most respectfully give notice that I shall, in the manner and at the time provided by the standing orders of the House, again present myself at the table of the House, to complete the fulfilment of the duty imposed on me by law."

On this declaration he set about acting. He had had no encouragement whatever to hope for justice save under pressure. Northcote, who had no moral motive for his action, was open to no moral appeal. To him Bradlaugh addressed a public letter (1st July 1881), which to-day needs neither adding to nor taking from. After a recital of the facts, it ran:—

"At first, though I disagreed with you, I thought you honest, for you had the repute of an honourable man, and you said that it was not from any desire to prevent my taking my seat, but from a desire to prevent the profanation of the oath, that you were prompted to act as you did. You had been present in the House when John Stuart Mill took the oath, and you raised no objection. You have been present in the House when other members, whose heresy is matter of common repute, took the oath, and you have rested silent. Yet I counted you a fair English gentleman, and I believed your word in any case. But now, from your speeches outside the House, I find that you claim to hinder me from sitting in Parliament, whether by complying with the law as it now stands, or by means of any change which may be proposed to meet your objection. At Manchester you justified your action on the ground that there was a general feeling in the country against me personally^[157]—a dangerous argument, even if it were well vouched. But how is this feeling to be tested? Nearly all the meetings called against me have been lamentable failures, despite the most ridiculous precautions. Almost every meeting called in my favour, and this whether or not I have been personally present, has been an enthusiastic success.

"And yet the very vilest means have been resorted to to damage me in the public mind. In your presence at Manchester, and without one word of rebuke from you, one distinguished and noble member of your party repeated against me some of the utter

falsehoods of the Varley pamphlet, although I had given you in writing my distinct assurance of the untruthfulness of much of that pamphlet.... To make a show against me, petitions have been sent round the country to hundreds of Sunday Schools, and little children by the score have been compelled to affix their signatures. Two petitions presented by yourself from Glasgow and York contain hundreds of signatures of lads and girls under twelve years of age. Orange Lodges, Roman Catholic organisations, and the machinery of the English Church Associations have been utilised to procure signatures."

Northcote replied:—

"I cannot admit that there is any foundation for the charge of illegality which you make against the House of Commons. But I must decline to enter into controversy with you upon the general subject of your case. I can only say that I have acted from a sense of public duty, and from no personal motives; and that I see no reason for doubting the propriety of the course which I have pursued."

But even those Liberal members who had voted on his side were for the most part quietly acquiescent in the injustice done, regarding a wrong to one "unpopular" man as a small matter. The only member who persistently protested was Mr Labouchere, for whose courage and constancy throughout the whole struggle no words of praise could be too high. In the circumstances there was nothing for it but to rouse the country, and this Bradlaugh did as only he could. It is difficult now to realise the enormous amount of energy he had to spend. While his cases were pending in the higher courts, he was doing three men's work outside. Thus in the week 18th to 24th July we find him spending three days fighting his case in the hot and crowded Court; holding three night meetings in London; attending a Freethinker's funeral (where the sight of the grief of the widow and children made him quite break down); speaking at a great demonstration of miners in the north; giving three lectures in South Shields; and holding a huge gathering in the Free Trade Hall in Manchester. He knew he was drawing terribly on a constitution which, though of a giant's strength, had for many years been doing giant's work; but he never flinched in a battle while he had any strength left. His plan was to evoke a clear expression of feeling on behalf of his claim in all the large towns, to hold a mass meeting in Trafalgar Square, and then again to present himself at the House; and if the House had been capable of looking at the issue half as reasonably as the constituencies did, it would have been promptly settled. Wherever Bradlaugh went, he got unanimous votes in his favour. At one stage he reckoned that out of a series of audiences amounting in numbers to 75,000, only two hands had been held up against his claim. It was wonderful to see

how he swayed audiences against their own prejudices. He must have been listened to by thousands of men who disliked him and his opinions equally; but they simply could not resist the appeal for a just judgment. I well remember how, when he spoke in Edinburgh in 1881, he extorted a vote from a general audience there. The body of the hall was filled with middle-class citizens, few of whom had any sympathy with his propaganda, and many of whom must have strongly resented his "notoriety;" in the gallery were a number of Tory students, with the manners of their kind; and post-cards had been freely circulated with a view to an organised opposition. At the outset the students did their best, but Bradlaugh's voice rose easily above their din; a quick repartee or two to their interruptions turned the laugh against them, and soon he was quietly listened to.^[158] At the close he made the usual call for a show of hands on his claim. As one of the promoters of the meeting, I was interested in watching the manner of the response; and I can still see the respectable church-going shopkeepers slowly and as it were compulsorily raising their right hands at the call of the Atheist and Republican. Only some dozen, as far as I remember, voted "on the contrary." This was in an audience mainly unsympathetic. At Trafalgar Square, of course, he was in a dense army of enthusiastic supporters, including many delegates from provincial towns. The *Dublin Freeman* then, owned by Mr E. D. Gray, and the organ of Mr Parnell's party, intimated beforehand that "no large assembly can take place within a mile of Westminster Palace and the police will very summarily dispose of Mr Bradlaugh's ragged followers." The police made no such attempt; and it was well they did not, for the followers were neither ragged nor timorous, and their blood was not just then very cool.

This was on 2nd August; it was on the next day that Bradlaugh again presented himself at the House; and then occurred the crowning episode in the struggle—crowning alike in point of the dastardliness of the tactic employed against him and the desperation to which it momentarily moved him.

His unanswerable contention was that the House was bound to do something to settle the case. It ought either to declare his seat vacant or take some course to permit of his sitting. To keep an elected member out of his seat without disputing the validity of his election was a course which only a majority of professed lawbreakers could consistently take; and the

resolution excluding him from the House was merely a puerile evasion by the majority of the legislative problem they had raised. When, however, Bradlaugh presented himself afresh, that puerile policy was adhered to, only in a fashion that developed puerility into brutality. The Liberal Government acquiescing in the vote of the majority, the matter was left to the police, who treated it as a police question, some of them behaving with that exuberance of insolence and ruffianism which they so often and so naturally bring to their task. Their way of seizing him angered him in a way in which he had never been angered before. A few extracts from the newspaper accounts of the time will suffice to tell what happened:—

"Mr Bradlaugh, after having waited till the Speaker had taken the chair, claimed admission to the House. He was in the first place opposed by the regular officials. 'I am here,' he said, 'in accordance with the orders of my constituents, the electors of Northampton; and any person who lays hands on me will do so at his peril!'" Attempting to enter the House, he was seized by the messengers, but their resistance being insufficient to overcome the force they roused him to use, the police were called upon. "It was said by Inspector Denning that four ordinary men certainly could not have expelled Mr Bradlaugh, and that the ten constables, all remarkable for strength and activity, who were engaged in forcing him down the lobby stairs, found their task far more arduous than they had expected." They had him by the throat, arms, and collar, and he had some of them in the same hold. "The strong, broad, heavy, powerful frame was hard to move, with its every nerve and muscle strained to resist.... The sight, little of it as was seen from the outside, soon became sickening.... An almost deathlike pallor had spread over Mr Bradlaugh's sternly-set features; he was gasping for breath, his body was bent, and he was in a state of exhaustion painful to see. His black frockcoat was much torn, his collar and shirt disarranged, and he himself in a condition of intense mental excitement and bodily prostration.... The Trafalgar Square phrase that this man might be broken but not bent occurred to minds apprehensive at the present appearance of him.... His face was deathly white, and there was about the mouth an expression of determination, which those who witnessed it cannot readily forget. Overborne by the desperate struggle, he fainted, but soon recovered when water was brought to him."

When Bradlaugh appeared at the door in the grasp of the police there was a cry of wrath from the assembled crowd, which told of a source of "force" that might conceivably be tapped. At another door Mrs Besant stood, at the head of a mass of followers, who, hearing vaguely of what was happening, were urgent in their demand to be let take the law in their own hands. A word from her, a word from him, would have sent the multitude headlong into the House. They were not a chance London mob: they included thousands of staunch working men from all parts of the country, who had attended the demonstration the day before. They were wroth with the callous iniquity that had been and was being worked by the majority inside.

And Bradlaugh, standing bruised and shaken and insulted on the steps, hardly able to breathe, but with the fury of physical struggle still upon him, had a supreme temptation. In his first anger, alluding to the brute force used against him, he had said to Inspector Denning, "I shall come again with force enough to overcome it;" but he did not carry out his threat, though he might have done it on the instant. Had he but lifted his hand to beckon, the ten policemen would have been tossed aside like chaff by the host of his infuriated friends; the House could have been stormed, and his enemies could have been kicked wholesale into the river. With a supreme effort, he controlled himself, and forbade all outbreak; proceeding further to go through the form of trying again to enter the House, so that Inspector Denning should have to make a form of resistance, on which he might found an action. It was well. But it is believed that there are still some who, perfectly recognising the superiority of the course actually taken, can never wholly stifle, on retrospect, an obscure and unreasoned but haunting wish that the multitude had taken its own way, sacked the House, and thrown, if not the Speaker and his wig, at least Lord Randolph Churchill, and Sir Stafford Northcote, and Sir Henry Wolff, comrades three, into the Thames, that ancient river and unclean.

The picture as it stands is memorable enough. I have been told that James Thomson the poet, the estranged friend of Bradlaugh's youth, was among those at the gates; that he turned pale at the sight of the struggling group; and that his companions could hardly withhold him by force from rushing to his old comrade's help.

English gentlemen in general, of course, did not feel about the matter in that way. Bradlaugh told:—

"On Wednesday last I saw more than 150 members of the House of Commons gathered to witness, for the first time in English history, the cowardly and shameful use of overwhelming brute force in order to prevent a duly-elected member of that House from complying with the law. Most of these members seemed to enjoy the scene; one, Montague Scott, climbed to the top of a pillar, so that he might have a good (and safe) view; another, Alderman Fowler, actually followed to the very bottom of the stairs, encouraging with voice and gesture those who were using force against law. A few, a very few members, protested against this conduct towards one of their fellow-members."

Fowler had shouted "Kick him out." He afterwards denied doing so. Bradlaugh on this wrote:—

"I see that Alderman Fowler in his place in the House of Commons denies my statement. I can only say that it is quite impossible I can be mistaken, for I saw Alderman Fowler stand, occasionally making jeering gestures, for nearly ten minutes after this, within four or five feet from me while I was recovering from the exhausting effects of the struggle."

Others saw the same. Concerning Fowler it is not necessary to investigate: his denial may stand for what it is worth; but it is quite certain that scores of members had looked on gleefully. Such creatures can our "English gentlemen" become, under the inspiration of their religion and their politics.

Inside the House the matter was at once raised by Mr Labouchere, who moved as a matter of privilege that the resolution of 10th May only excluded Bradlaugh from the outer doors of the Chamber, and not from the lobbies, and that the officers of the House, in excluding him completely, had acted without authority. The Speaker stated that the officers had acted under his directions. Mr Gladstone lengthily argued that there were "three distinct grounds" on which it was to him "quite plain that the motion could not be sustained." Northcote naturally approved altogether of the Speaker's action. Sir Wilfred Lawson contrived, despite interruptions, to make a good fighting speech on the main question, under cover of a proposed amendment, which turned out to be a motion for the rescinding of the resolutions of 26th April and 10th May. Mr Cowen invited the Government to say whether they would reintroduce their Oaths Bill next session, but no response was given; and the discussion drifted on in the usual wasteful way. Mr Biggar observed that on personal grounds he was indisposed to vote on Bradlaugh's side in the matter, because Bradlaugh had voted for the expulsion of Irish members earlier in the year, but he would vote against it as a bad precedent. The level of the debate was raised by a dignified speech from Bright, who irregularly appealed to the Opposition to think of what they were doing; whereupon Lord John Manners' made the pragmatic reply that might have been expected from that feudal personage. On the moving of an amendment approving what had been done, Gladstone diffusely intimated that it would be out of order for him to answer Mr Cowen's appeal. After much talk a vote was taken, when 7 voted for Mr Labouchere's motion and 191 for the amendment, a number of Radicals walking out to avoid voting. To the amendment, put as a substantive resolution, Mr Ashton Dilke moved a fresh amendment asserting the need for legislation, but this was disallowed as irrelevant. Sir Wilfred Lawson

tried another, which fared no better. Mr Callan rose to explain that whereas Mr Bright had described Bradlaugh as being reduced to a fainting condition, he had put one of the officers in a far worse condition by his grip of that officer's throat—a statement which, despite its source, was not wholly untrue. Finally the resolution approving the course taken was allowed to pass, whereupon Mr Labouchere gave notice that he would again raise the main question on going into Committee of Supply.

§ 13.

Thus once more was the day of reckoning put off, the more decisively because an early result of the scuffle for Bradlaugh was a dangerous attack of erysipelas in the arm—the same arm which had suffered from the Tory bludgeons in 1878. He was able, indeed, though sorely shaken, to speak at the Hall of Science in the evening, when he appealed to his followers to avoid all violence. He was able to attend the law courts at Westminster on the 5th, when a House of Commons policeman, seeing him, fled indoors to give warning. On the same day Bradlaugh attended at the Westminster Police Court to apply to the magistrate, Mr D'Eyncourt, for a summons against Inspector Denning for the assault of the 3rd—not the ejection by the police, but the later formal resistance to Bradlaugh's entrance. This was a purely formal action, Bradlaugh having testified in his speech at the Hall of Science that Mr Denning personally had managed his unpleasant task with all possible consideration. The magistrate, laying significant stress on the action of the Speaker and of the House, declined even to grant the summons. One of his explanations was that "society has a right to protect itself against intrusion," and his tone throughout showed sufficient animus.

Having thus done what he could, Bradlaugh had to own himself disabled, and go to the seaside under medical treatment. On his arrival at Worthing, when he had wearily taken his place in the fly, a clergyman walked up, stared hard at him, and then said in a loud voice: "There's Bradlaugh; I hope they'll make it warm for him yet." The enemy in general behaved with their accustomed generosity. The *Irish Times* led the way with an intimation that he was malingering, stating further that the Irish members had opposed him because he "supported the Coercion Bill." The *North Star* repeated the charge of malingering with exuberant brutality. The *St James's Gazette* spoke of Bradlaugh as having behaved "like a drunken rough," further

repeating the lie that he had "originally refused" to take the oath. Others rated him for his constant appearances in the law courts. The *Standard*, on being courteously asked to insert a letter correcting a misrepresentation, suppressed it. Liberals, professing to deprecate the course taken, yet palliated it; and Professor Thorold Rogers, among others, declared that nothing the House of Commons could do was illegal. The ministerial journals, of course, condemned him, telling him he had "lost friends" by his attempt. He was to sit still and wait till the Ministry should have the courage to make an Affirmation Bill a Cabinet question—a course which they refused from first to last to take, though it would at once have compelled their deserters to return to their allegiance. On this it may here suffice to say, once for all, that the justification given for Gladstone's course in the matter simply serves to show how low are the standards of our "Christian" statesmanship down to the present day. The justification is that Gladstone was bound to refrain from "compromising" his party by making the admission of the Atheist a Cabinet question. The good of the party must override the claims of justice. Mr Gladstone's memory is welcome to all the credit which such an argument will gain him from a posterity probably devoid of his sense of religious enlightenment. It will be a doubtful certificate of the foundations he claims for his morality, that while conscious of "bloodguiltiness" in the matter of the Transvaal, he declined to incur for conscience' sake the trivial and transient odium of having made justice to an Atheist a decisive demand as between him and certain of his followers. I am not here putting the opinion of Bradlaugh—whose chivalrous respect for Gladstone prevented him from passing any such criticism, whatever he may have thought in his heart—but laying down what seems to me the only doctrine worthy of conscientious democrats.

It is satisfactory to be able to record that whilst the worst of the Tory and clerical party exulted in Bradlaugh's physical ejection, many religious men were moved by it to new sympathy with him. One esteemed Churchman wrote as follows:—

"After reading of the violence unjustly perpetrated on you yesterday by the order (or, at least, with the sanction) of a so-called Liberal majority, I desire, though an entire stranger to you, to offer you my sympathy. I never read anything which warmed me more than this account. If the present Cabinet does not secure your admission to the House in some way or other, I can only wish they may be turned out of office. The name of 'Christian' and the religion of 'Christ,' which *I* venerate, they make odious. As if Christianity could ever be *less* than common justice! I don't know what more I can

do than say, 'Go on!' and 'Go in!' And if others feel as I do, you will be pushed into your place by a whole nation, with a much more irresistible force than has been used by a contemptible clique to keep you out.—I am, very respectfully and heartily, your well-wisher,

"E. D. GIRDLESTONE."

Needless to say, a number of Liberal journals, though less emphatically, protested likewise. All along, indeed, there were more voices for justice in the Liberal press than in the House, despite the common sense of a need to disclaim sympathy with the wronged man's "opinions." On the other hand, a number of pious persons, none giving their names, but all stating that they were Christians, wrote to assure the disabled man that he was going to hell. One promised to help him thither by shooting him if he again tried to take his seat. Two wrote that they prayed he might not recover, and many imbeciles sent tracts and religious books.

Of another order was the enmity of Sir Henry Tyler, who, feeling now safe in Bradlaugh's enforced absence, made an attack in the House of Commons on the Hall of Science science-classes and their teachers—an attack which he might have made while Bradlaugh sat, but did not. The argument was that science classes taught by atheists should be excluded from the South Kensington system. Of the teachers, three were women, viz. Mrs Besant and the Misses Bradlaugh; and as even the pious majority did not care to back up such an outrageous attack, it came to nothing. Mr Mundella, the Minister concerned, even went out of his way to vindicate the classes; and the press mostly supported him. As a matter of course, the classes had been taught on strictly scientific lines.

In a few weeks from the date of his injury Bradlaugh was about again, lecturing, and speaking at demonstrations. His doctor advised him to go abroad, but he had his law cases before him, and felt he must buckle to work. At the beginning of September he published a fresh appeal "to the people," and on the 5th of that month he spoke at a potters' demonstration at Hanley, despite continued suffering in the arms. In his own journal, too, he once more took up the cause of Ireland—which indeed had all along been advocated in its columns—disregarding entirely the treatment he had had at the Irish members' hands. But stiffer work was before him, in the trial of his appeal against the decision of Justices Denman and Watkin Williams, on the legal or technical point, as to the validity of a writ dated on the day of the ground of action. This appeal was argued before Lord Coleridge and Lords

Justices Baggallay and Brett, on 12th and 14th November, partly on different lines from those gone upon in the first instance. Bradlaugh was complimented by the judges on his "able and ingenious argument;" and the discussion between him and them is indeed a very pretty piece of high-class legal fencing. Sir Hardinge Giffard, who throughout these cases makes no great show as a pleader, did not attempt to deal with the most difficult point at all, and his junior did still worse; but their lordships dealt with it fully and carefully; and Bradlaugh handsomely acknowledged their rectitude, though they decided against him. His first care was to make sure that the plaintiff should not be allowed to tax his costs until final judgment on the other appeals to the House of Lords; and this was granted. The wolves were thus still kept at bay.

Next came on the pleading on the rule *nisi* for a new trial on the point of fact as to whether Clarke's writ (which specified no act of voting) had not been issued before the act of voting on which it was afterwards formally founded. This was heard on 2nd and 3rd December by Justices Denman and Hawkins, who went into the details with minute circumspection. Bradlaugh explained that his argument involved a charge of wilful perjury against James Stuart, the clerk employed by Newdegate's solicitor, who had been a principal witness in the previous trial. He further pointed out that Newdegate's secretary, Hobley, had given a hopeless set of contradictions in cross-examination; and after the notes of that evidence had been read, Mr Justice Denman observed: "I am bound to say that after the searching cross-examination, which no counsel could have conducted more ably, it is hardly wonderful that Mr Hobley was very confused." It required no more than the reading of the rest of the evidence to satisfy the judges that the case for a new trial was fully made out; and they stopped Bradlaugh in his argument to say so. In regard to the special point of the time of the division in which he voted, the actual evidence of reporters was against Bradlaugh, making it earlier than he did; but when the judges checked his calculations they could find nothing wrong with them; and the evidence discrediting that of Stuart was too strong to be dismissed. After a good deal of vacillation, Clarke and Newdegate decided to appeal against the decision allowing a new trial, Newdegate in particular having reason to avoid one if possible.

Northcote's excluding resolution of 10th May being only valid for the session in which it was passed, Bradlaugh was free to enter the House as before, on the first day of the new session. He announced his intention to do so; and on the day of reassembling he kept his word. In the interim an incessant discussion on the case had been going on in the press and on the platform. Tory speakers, as a rule, alluded to him with insult, sometimes of the basest description. One, Lord Ebrington, described him as a person who, but for a legal quibble, "would be in jail at this moment for publishing an obscene, indecent book." Another, Mr Orr-Ewing, spoke of Bradlaugh as circulating "filthy books, calculated to ... drag hundreds down as low as the brute beasts that perish." Most of the Tory speakers dwelt either on his having "first refused to take the oath" or "obtruded his views on the House," or "declared the oath would not bind his conscience;" and scarcely one omitted to add untruth to insult. The "profanation of the oath" was never alluded to without a shudder. On the Liberal side some members altruistically urged upon Bradlaugh to stand aside "for a few years" to let opinion ripen; and of the many who spoke in favour of his admission nearly all thought it necessary to disclaim with "pity" or "abhorrence" all sympathy with his opinions. Of all these disclamatory gentlemen, there was not one whose name had then, or has now, the slightest philosophic authority; but though one or two admitted that they did not know the nature of the opinions which they all the same disclaimed, none seems to have been moved to avow that the subject was beyond his capacity.

Throughout the country, as all along, Liberal opinion was in advance of the action of the majority in the House; but the *Times* carefully suppressed the reports of meetings held in Bradlaugh's favour, and even of friendly allusions in members' speeches, and the *Daily News* at times exhibited equivalent traces of the ownership of Mr Samuel Morley. On the other hand, the cause of justice had some unexpected adherents. Lord Derby, speaking at the Liverpool Reform Club, frankly avowed that he "utterly disbelieved in the value of political oaths," and expressed a hope that no further attempt would be made to prevent Bradlaugh from taking the oath if he wanted to. Some groups of dissenting clergy, too—in particular the Unitarians—petitioned for the abolition of the oath or the permission of affirmation. But as against the possible gain from such declarations there was to be set the systematic and energetic hostile action of the Church of England. One Diocesan Conference passed a resolution calling on

Churchmen in both Houses of Parliament to resist any measure which would admit "professed infidels" into Parliament. There was no objection to the admission of infidels who were not "professed." Another interesting exhibition of Conservative ethics came from Mr Gorst, Q.C., who, at a banquet at Chichester, in presence of the Dean, avowed that "he was not a person who pretended to have any great horror of the offence of bribery." Bradlaugh, who took a different view, had earlier taken occasion to speak of another of his assailants as a political scoundrel, in respect of being a convicted briber.

On the 7th of February 1882, when Bradlaugh as before presented himself at the table of the House, he was as before interrupted by Sir Stafford Northcote, who made his customary motion. This time, however, it was rested on the ground that Bradlaugh had admitted himself to be a person of a class on whom the law declared an oath had "no binding effect." Thus the Opposition stood explicitly on the nefarious application of an ambiguous legal formula, which, as has been above shown, was not at all framed to carry the meaning thus put upon it. On this occasion nothing seems to have been said by the Tory leader in his opening speech about "profanation."

Bradlaugh withdrew to the bar pending the discussion, and Sir William Harcourt, in Gladstone's absence, briefly moved the previous question. Newdegate followed with an imbecile speech, which supplied a useful measure of the minds of those who had supported him throughout the country. He pointed to the history of France, protested against the proposed Channel Tunnel, and argued that to admit Bradlaugh would be "to destroy the distinctions between the basis of government in the two countries." Further,

"let them compare the condition of the two countries. While the wealth and the population of France were stationary, and the prestige of her arms was gone, England's wealth had increased and her kingdom expanded into empire. The fundamental difference between the two countries was this—that in the coronation oath taken by the Sovereign, and in the oath taken by members of both Houses of Parliament, a Deity was recognised, and the people venerated the obligation. There was but one other country in the world besides England that had not been conquered or had not suffered from revolution, and that was Russia.... Both countries based the claim of their Government to the respect of their subjects upon the Word of God. The United States had not adopted that system, and they had seen a civil war and two Presidents murdered there."

Bradlaugh was then allowed to make his Third Speech at the Bar. He struck briefly but sufficiently at the speech of Newdegate; and once more nailed down the eternal misrepresentation as to his having "paraded his opinions." When he reminded the House that his letter of 20th May was outside the House, and that he had objected to the Committee taking cognisance of it, the Opposition laughed. He reminded them that judges give a silent hearing to a man pleading his case. "If you are unfit to be judges, then do not judge." Again he put the plain dilemma: "If what I did entitles the House not to receive me, why has not the House had the courage of its opinions and vacated the seat?" Then came a graver challenge:—

"I have read within the last few days words spoken, not by members of no consequence, but by members occupying high positions in this House, which made me wonder if this is the House of Commons to which I aspired so much. I have read that one right hon. member, the member for Whitehaven^[159]—(laughter from the Ministerial side)—was prompted to say to his constituents that I was kicked downstairs last session, and that he hoped I should be again. If it were true that I was kicked downstairs, I would ask the members of the House of Commons on whom the shame, on whom the disgrace, on whom the stigma? I dare not apply this, but history will when I have mouldered, and you too, and our passions are quite gone. But it is not quite true that I was kicked downstairs, and it is a dangerous thing to say that I was, for it means that hon. members who should rely on law rely on force. It is a dangerous provocation to conflict to throw to the people. If I had been as wicked in my thought as some members are reported to have been in their speech, this quarrel, not of my provoking, would assume a future to make us all ashamed."

As the speech went on, he came into more and more sharp conflict with his antagonists.

"Does the House," he asked, "mean that it is a party to each oath taken? ('Hear.') There was a time when most clearly it was not so a party. There was a time when the oath was not even taken in the presence of members at all. But does the House mean it is a party now? Was it a party the session before last? Was it a party when Mr Hall^[160] walked up to that table, cheered by members on the other side who knew his seat was won by deliberate bribery?—(loud Opposition cries of 'Order')—bribery sought to be

concealed by the most corrupt perjury. Did the House join in it? (Renewed cries of 'Order.') If the House did not join in it, why did you cheer so that the words of the oath were drowned? Was the House a party when John Stuart Mill sat in this House?"

After repeating his former explicit declaration that the words of adjuration would in no way weaken the binding effect of the promise on his honour and conscience, he was met by jeers, and he began: "Members of the House who are ignorant of what is honour and conscience," meaning to add "in the case of a non-religionist" or words to that effect. He was again interrupted by loud cries of "Order" and "Withdraw" from the men who had just been insulting him *en masse*. He asked to be allowed to finish his sentence, but was still interrupted by the mob of hon. gentlemen on the Opposition benches. "These," he cried, pointing at the rowdies, "these are my judges." There was a silence, and he went on. His blood was up, and he spoke at greater length than before, dwelling among other things on the scene of August, and indignantly rebuking those who had exulted in it. In conclusion, he offered to stand aside for four or five weeks if the House would in that time discuss an Affirmation Bill. Nay, if they feared to make it a Bradlaugh Relief Bill, he would resign his seat and stand for re-election. The Liberals cheered at this, and he ended: "I have no fear. If I am not fit for my constituents, they shall dismiss me, but you never shall. The grave alone shall make me yield."

Mr Labouchere, speaking next, stated that he had had sent him over 750 fresh petitions, signed by about 170,000, in favour of Bradlaugh being allowed to take his seat, and that other Liberal members had received petitions signed by about 100,000 more. He proceeded to challenge Northcote to abide by his own declaration of the previous year, that the question should be legislated on by the Government; and Northcote rose to make a second speech. He too, he averred, had received many petitions, and among others one from Northampton, "signed by 10,300 persons, giving their occupations and addresses"—a manifest prevarication, inasmuch as many of the 10,000 must have been the wives and children of the Tory electors.^[161] On the Government amendment he objected to "profanation of the oath;" and as to the obstruction of the Oaths Bill last session, he reminded the Government that though they had certainly been somewhat obstructed, they might at any later time have put the Bill first on a Government night. As before, however, the Tory leader declined to make any "bargain." Gladstone replied, pointing out that it had been quite

impossible for the Ministry to push the Oaths Bill as suggested, and declining to promise that the Government would give precedence to an Oaths Bill. They should let Bradlaugh swear, and take his chances in the law courts as before. On this theme he rang the changes, without much energy. After a number of minor speeches the House divided, when there voted for Northcote's resolution 286, and for the previous question only 228. Such a vote served to dispose of the view which had been advanced by some Liberals, that the minority of 26th April 1881 was due to the absence of many of their party who were prolonging their holiday, while all the Tories were in town for Beaconsfield's funeral. Some seventy "Liberals" had now deliberately stayed away (among them being Mr Goschen, Sir John Lubbock, Sir E. Reed, and Sir A. Gordon), while the whole Parnellite members present voted with the Tories. Five Scotch, eight Irish, and fifteen English Liberals did the same, among the latter being Mr Samuel Morley and Sir Edward Watkin.

Immediately on the vote being announced, and the question being put, Bradlaugh presented himself afresh, refusing as formerly to obey the resolution. The usual appeal from the Speaker elicited the usual motion from Northcote, which being carried, Bradlaugh said: "It would be undignified in me to indulge in any other kind of contest on the floor. I respectfully obey the House, and withdraw below the bar." The struggle was now apparently reduced to something like a recognised set of moves, all of which had been made and might be in due course made again; and Bradlaugh for the present was left to attend every meeting of the House, sitting beyond the bar, but without the power of voting or speaking.

Bradlaugh at once appealed to his constituents to choose whether or not he should resign; and they promptly decided that he should not; while some thirty indignation meetings were held throughout the country within a week, all condemning the action of the House of Commons. The law advisers of the Crown further formally declared on challenge that the seat was not vacant; and Bradlaugh wrote Gladstone, formally asking whether he was prepared to do anything. Gladstone on 18th February formally replied that he was not. Bradlaugh then took a new step, forcing the question on the House more determinedly than ever.

On Monday, 20th February, Mr Labouchere formally moved in the House that a new writ be issued for Northampton, seeing that Bradlaugh had been

prevented from taking the oath and his seat. Churchill moved to amend the motion by substituting a description of Bradlaugh as "disqualified." The Attorney-General formally opposed, and the perplexed Northcote did likewise, being guided by the sole fact that the motion was proposed by Bradlaugh's friendly colleague. After a debate, in which Northcote was dishonest enough to assert once more that Bradlaugh had "claimed" to be "a person on whose conscience the oath was not binding," the amendment was negatived, as was the proposition that the words proposed to be left out should be left in. The resolution was thus left at a stand at the word "who;" and on the unfinished sentence the House proceeded to divide. When it seemed as if the "Noes" would "have it" without a division, Bradlaugh moved from his seat and stood at the bar; but on Mr Labouchere's challenging a division he returned. On the vote being taken there were 307 "Noes" to 18 "Ayes." The House thus explicitly refused to decide that the seat should be vacated, though they were all the while preventing it from being taken.

Bradlaugh was once more at the bar when the tellers announced the figures. Immediately he walked up the floor to the table, members looking on without excitement, counting on a repetition of the old scene. But this time "the scene was changed." While members waited for the usual action of the Speaker, it suddenly dawned on them that Bradlaugh had a book in his hand—it was the regulation "New Testament"—and was taking the oath of his own accord! He had gone through the whole mummary before the excited House could collect its faculties, and he duly finished by subscribing a written oath on a sheet of paper with a pocket pen. The Speaker was on his feet; the Clerk had come half-way to meet Bradlaugh; and Northcote had risen to speak, and sat down again, speechless. The Speaker mechanically called on Bradlaugh, as usual, to withdraw below the bar. He did so, but in doing it announced that he should return and take his seat, which he did, seating himself on a back bench. The Speaker solemnly charged him with disobedience, to which Bradlaugh blandly responded that he had obeyed them, and had taken his seat in addition, having first taken the oath. On the Speaker insisting, however, he once more withdrew beyond the bar, sitting under the gallery as before. Churchill, collecting himself more promptly than his leader, argued that Bradlaugh, having taken his seat "without taking the oath," "was as dead," and moved that the seat be declared vacant. The Attorney-General professionally pointed out that to vacate the seat under

the statute the offending member must vote or sit during a debate. He suggested that the House had better adjourn the discussion, which it did after much further speech-making, in the course of which Churchill declared that Bradlaugh had "deliberately insulted the House," not for the first time; other members of similar dignity speaking to similar effect.

Next day the debate was resumed. Gladstone made a long and scrupulously bland speech, in the course of which he endured much contradiction of those who thought him insufficiently zealous for the honour of Omnipotence, concluding by saying that he left it to the majority to act for themselves. Northcote was laboriously indignant, and lengthily led up to a motion "that the Sergeant-at-Arms be instructed to prevent Bradlaugh from entering the precincts of the House," which motion, on the correction of the Speaker, he converted into an amendment to that of Churchill. A dispute arose on behalf of Dr Lyons, who had on the previous night given notice of a more drastic motion, but had not "caught the Speaker's eye" when he rose before Northcote. Then the debate drifted on; some members drivelling, some ranting, some platitudinising. At length Churchill's motion was negatived, whereupon Dr Lyons proposed his declaring Bradlaugh incapable of sitting, as an amendment to Northcote's. The pious Lyons was of opinion that "behind the particular issue there lay a great moral question," which, however, he did not specify. Again the debate rolled on. At length it was noticed that Bradlaugh had once more taken his seat within the House. The Speaker challenged him, and Bradlaugh began to explain that he proposed to "ask the indulgence of the House," when his voice was drowned in yells of "Order." The Speaker then solemnly charged him afresh with disobedience, and called "the attention of the House to that circumstance." Gladstone rose in response to calls; but the Speaker hastily interposed to call upon Bradlaugh to withdraw beyond the bar, which he did, formally protesting. Gladstone blandly observed that there was now no disobedience to deal with, and that it was not incumbent on him to do anything. Northcote arose in a state of ostensible but flabby indignation, and declared that "he must say there was a limit" to his "very moderate line." He now proposed to withdraw his amendment and substitute a motion of expulsion. Gladstone suavely intimated that he should not object to the withdrawal of the amendment, and Dr Lyons was induced to withdraw his likewise. The motion for expulsion, on the ground that Bradlaugh had, "in contempt of the authority of the House, irregularly and contumaciously

pretended to take the oath," was then put, and Gladstone intimated in a period that he would not oppose. Mr Labouchere dropped the very apt remark that "he had always found that when the House was exercising judicial functions it got into an unjudicial frame of mind," and pointed out that Bradlaugh's action had been taken to obtain a case for legal judgment, and could not reasonably be termed "insulting." On a division, 291 voted for the amendment proposing expulsion and 83 against; some Liberals salving their consciences with the formula that "the House must maintain the authority of the chair."

A new point was raised by the intimation of one of the tellers that Bradlaugh had voted in the division. He had thereby completed the legal circumstances for a test case. The Speaker again asked for instructions, but Northcote, rather than begin a fresh debate, let the matter pass. Then arose the question, energetically put by Mr Storey, whether Bradlaugh should not be heard afresh in his defence; but this too had to be dropped. On the substantive motion being put, 297 voted with Northcote, and 80 against; and a motion for a new writ was at once agreed to by Mr Labouchere.

§ 15.

Not only his constituents, but the people generally, gave Bradlaugh their instant and warm support. At a great Sunday meeting at Manchester, to which hundreds of men had trudged many miles through the rain in the early morning, over hills and moors, from the country round, some of them only to find the hall full to the door, he had a reception which brought tears to his eyes. At Northampton, of course, the struggle was desperate. Mr Samuel Morley, bent on making reparation to his Deity for his one act of rational tolerance, followed up his many Tory votes by a letter to the Northampton Nonconformists, asking them to vote for the Tory candidate as an "act of allegiance to God;" but, on the other hand, the Radical Association of Bristol (the town for which he sat), who had by this time, after twice hearing Bradlaugh, determined to unseat their member, sent 3000 copies of an address begging the Northampton electors to return Bradlaugh by an overwhelming majority of votes. A meeting of delegates from some scores of workmen's clubs in London sent down 10,000 copies of a similar appeal. When Bradlaugh went down, thousands of people lined the streets to see him pass to say a few words in the Market Square.

Radicals came from other towns to help in the canvassing, and Mr Labouchere gave his powerful aid. The Tories, on their part, did their utmost, using, if possible, viler weapons than before; and meantime they had been adding every possible vote to the register. The insolence of the Tory candidate to the workers was such that several of his meetings were broken up. The outcome of desperate efforts was that Corbett, the Tory, received rather more of the new votes than Bradlaugh, the figures being 3796 to 3688, a majority for Bradlaugh of 108 (2nd March 1882). In the fury of despair, the Tories had demanded a re-count of the votes, but this had only altered the majority by three. The betting fraternity, who had mostly laid their money on the side of "religion," were naturally enraged; and Corbett was reported to say on leaving, "I shan't come back to your dirty town any more." When the news spread, the fury did. One academic ruffian wrote in the *Saturday Review*:—

"The average Northampton elector and the rascal who shot at the Queen, while the average Northampton elector was voting for Mr Bradlaugh, probably acted from motives not dissimilar in kind, though the acts to which those motives led differed in degree of heinousness."

Journals which had predicted that Bradlaugh would be defeated, now propagated the lie that he had been carried by terrorism—their own terrorism having failed. By the workers in general the news was received with delight; in most towns it was waited for on the evening of the election with intense excitement, and acclaimed with unbounded enthusiasm. The House of Commons, however, was not to be turned from its evil courses.

On 4th March Northcote notified Bradlaugh of his intention to take the same course as formerly if he presented himself, and to make a motion on the writ if he did not. Bradlaugh replied, saying he presumed the motion would be one to promote the legislation which Northcote had often said ought to take place. "I congratulate you," he concluded, "on the return of at least yourself to some respect for the law, and beg to assure you that I shall in such case do my best to help you to avoid further embittering a conflict of which I am sure you must feel heartily ashamed." On Monday, 6th March, Northcote asked the Speaker whether the resolution of 7th February was still in force, and was answered in the negative. He was proceeding to say he would make a motion, when successive protests against the interruption were made by Mr Labouchere and Mr Dillwyn. The Speaker overruled both, and Northcote moved that Bradlaugh, should he present

himself, be not allowed to take the oath. On the Liberal side, Mr E. Marjoribanks (now Lord Tweedmouth) moved as an amendment a resolution that it was desirable so to alter the law as to permit any elected member to take the oath or make affirmation, at his choice. With the worst of bad taste, Mr Marjoribanks, who had before declared his preference for decorous hypocrisy, went on to explain that he was "one of the very large section of that House who regarded Mr Bradlaugh's conduct both within and without that House with something very like disgust and indignation," and to describe the recent oath-taking as an "unworthy manœuvre"—a display of class hatred which may serve to suggest the nature of the feeling on the Tory side. Mr Labouchere, after defending his colleague, undertook for him that if the amendment were carried he would not present himself until a decision was come to. Gladstone formally approved of the amendment; but after a long debate of the usual kind, it received only 244 votes against 259, to the wild delight of the Opposition. Twelve Liberals, including Mr S. Morley, Mr Torrens, and Mr Walter; and twenty-six Home Rulers, including Mr McCarthy and Mr Sexton, had voted with Northcote.

The Liberal press was now nearly unanimous for legislation and even the *Pall Mall Gazette* went so far as to say: "All that is wanted is that the Government should pluck up a little more moral courage, and recognise that even in practice honesty is the best policy." In the foreign press, the general judgment was that the House of Commons was systematically disgracing itself. The Government, however, proposed nothing, leaving the Oaths Bill in the hands of the "disgusted" Mr Marjoribanks; while in the Upper House Lord Redesdale had on 7th March introduced a Bill providing that a declaration of Theism should be compulsory on all members of Parliament and peers. This measure, he explained, he introduced "from a deep sense of what was due to Almighty God." A little later, on its discussion, his lordship withdrew it "in deference to Lord Salisbury."

Bradlaugh, on his part, after consultation with his committee in Northampton, and after publishing a telling "Address to the Majority" for general circulation, decided that his future course must be one of systematic agitation in the constituencies. The Constitutional Rights League was reconstituted; an election fund was begun for the purpose of contesting certain seats held by renegade Liberals; and in these constituencies the Radicals quietly went about the work of making them untenable. Already a

Liberal candidate had been defeated on the score of the insolence of his language towards Bradlaugh's supporters, Mr Samuel Morley had been called upon by the Bristol Radical Association to resign; other members had been sharply censured in their constituencies; and it was plain that it only needed time to ensure the unseating of most of the renegades. For the present nothing was to be hoped for from the Government; and a fresh notice by Mr Labouchere of a motion for leave to introduce an Affirmation Bill was blocked by Earl Percy. Thus the men who shrieked against "profanation" resisted all the while every attempt to make oath-taking by unbelievers unnecessary. Finally, a petition by the Northampton electors to be heard at the bar of the House was dismissed by the Speaker as unentitled to a hearing; and a notice of motion on the subject by Mr Firth never got to a hearing. There was clearly nothing for it but to carry war into the renegades' country. On the subject of the Speaker's action generally, Bradlaugh contented himself with penning a very temperate but very weighty paragraph:^[162]—

"I am just a little troubled how to decide one or two points. The Speaker of the House of Commons is the first commoner in England, and his judgment on the various points from time to time submitted to him is practically without appeal. It is impossible to suspect him of intentional unfairness; he is a clear-sighted and courteous gentleman. Yet some of his decisions seem so conflicting that I fail in understanding how he reconciles them to himself. On the 21st February he held that Mr Labouchere was entitled, under the then circumstances, as of privilege, to move for a new writ for Northampton. On the 24th March, under precisely similar circumstances, Mr Speaker ruled that such a motion could not be made as one of privilege. On the 6th March, without any reason given whatever, except that I might come some time or other, the Speaker allowed Sir S. Northcote to raise the question of my right to my seat as one of privilege; but the Speaker now refuses to allow Mr Labouchere to raise as one of privilege the fact that one of the seats for Northampton is now in fact unfilled. On the 15th February the Speaker held that the resolution of the 7th February, which is directly in the teeth of the Standing Order of 30th April 1866, does not conflict with that order. On the 9th day of March he held that the resolution of the 6th March, which does not say one word about my coming to the table to take my seat, does so prevent my coming to the table, and that the same resolution, which does not mention my introducers or in any way forbid them introducing me, does in point of fact so act as a prohibition that he will hold any attempt to introduce me as disorderly and irregular. When my constituents wrote him, the Speaker answered that they must approach the House by petition. When they do approach by petition, he rules that their application has no privilege."

The dilemma, as between imputing to Sir Henry Brand unfairness, and pronouncing him to have failed in his duty, must be left here as Bradlaugh left it.

§ 16.

All the while the manifold litigation set up by the action of the House was moving on its slow way. The appeal of Clarke against the judgment of Justices Denman and Hawkins allowing a new trial had been heard on 21st February by Lords Justices Brett, Cotton, and Holker (the latter newly appointed), and these judges ruled that no new trial could take place, thus reversing the decision appealed against.

An independent comment on this judgment, which appeared in the *Pall Mall Gazette* at the time, may be here cited:—

"The Court of Appeal holds that they [the Judges of the Queen's Bench Division] ought to have closed their eyes to everything but the partial evidence given at the trial, some of which at all events both the Court of Appeal and the Court below pronounced to be unsatisfactory. Nor does it seem perfectly fair to make so much as Lord Justice Brett does of the imputation of perjury to one of Mr Newdegate's witnesses. The Lord Justice himself admits that there were blemishes in his testimony, and that he 'somewhat prevaricated and coloured his evidence, etc.' We fail to see 'the enormous difference' between evidence of this character and perjury, at least for the purpose of such an action. If a man is to be condemned in a penal action he has a right to insist that it shall be on perfectly honest and straightforward evidence only."

The curious reader who cares to form his own opinion on the subject of the evidence referred to will do well to turn to the verbatim report preserved in the *National Reformer*.

The Clarke-Newdegate combination seemed now to see their way partly clear to their great end of making Bradlaugh bankrupt. On 29th March they moved before Justice Grove and Baron Huddleston for judgment—that is, for power to compel Bradlaugh to pay the penalty sued for and the costs. Bradlaugh admitted that at that stage he could not resist a judgment for the penalty, but resisted the motion so far as it claimed costs. To this the judges agreed; and on 30th March they gave judgment for the penalty, but reserved the costs pending the appeal to the House of Lords. Bradlaugh had thus to pay £500 into Court within fourteen days. Already, too, he had had to give securities for £500 on the appeal to the House of Lords, in addition to the £200 he had paid down according to rule. For these heavy payments he had to go into debt, his normal means of earning his livelihood being in part suspended by the very lawsuits themselves.

In course of the arguments on the plaintiff's appeal it was noticeable that Justice Grove pointed to the possibility of an action against Newdegate for

maintenance, and, on Bradlaugh mentioning that the magistrate had dismissed the summonses against Newdegate and his solicitor on the ground that the law was obsolete, observed, "But it is by no means obsolete. I set aside an agreement for maintenance only a little while ago."

Another item was added to the imbroglio of litigation by the friendly action of Alderman Gurney of Northampton, on behalf of the Liberal and Radical Union there, against Bradlaugh for not taking his seat—a step taken by way of getting a legal deliverance. Bradlaugh formally demurred that he had been illegally hindered by the House of Commons. When the case came on before Justices Manisty and Watkin Williams on 15th May 1882, the judges warily declined to give any judgment, on the score that the action was friendly, that the pleadings had been drawn so as to compel a decision in Bradlaugh's favour, and did not disclose all the facts of the case. Yet they excluded no material fact; and a friendly action for a precisely similar penalty had been heard and decided before in the historic case of *Miller v. Salomons*, while, as a solicitor wrote to Bradlaugh, "it is a matter of everyday occurrence in the Chancery Division for friendly actions to be brought to get a judicial decision on questions arising out of settlements, etc." In the present case it seemed pretty clear that the judges were simply very much concerned not to come in conflict with the legislature. The pleadings were however readjusted, and the case stood for re-hearing before a jury.

Still another complication was perforce set up by an action brought by Bradlaugh in April against Mr Erskine, the Deputy Sergeant-at-Arms of the House of Commons, for the assault of 3rd August—a step made necessary by the police magistrate's refusal of a summons against Inspector Denning for his formal assault; and by the risk, which was soon realised, that the Gurney action would be denied a hearing. The matter being brought before the House on 8th and 9th May, the Attorney-General was directed to defend Mr Erskine, Sir Hardinge Giffard suggesting that those who assisted in bringing such an action should be prosecuted according to old precedents for breach of privilege. Such a prosecution, if laid, would have struck at Messrs Lewis & Lewis, Bradlaugh's solicitors in the matter, and at the committee of the Constitutional Rights League, who had also instructed them.

And yet one more step in this bewildering litigation was taken on 9th May, when Bradlaugh moved before Lords Justices Brett and Cotton for leave to appeal against so much of the three orders of the Court of Appeal, dated 31st March 1881, 14th November 1881, and 23rd February 1882, as awarded costs. The application was of a highly technical character, and was dismissed, everything being now left to the House of Lords when it should hear the appeal.

§17.

The agitation in the constituencies was carried on throughout the spring and summer with an energy worthy of the cause. In addition to the crowded meetings which he held in dozens of the larger provincial towns, the Constitutional Rights League arranged for three more great demonstrations in London—two on 10th May, and one on Sunday, 14th May. On the 10th was held, first, an immense mass meeting in Trafalgar Square, attended by delegates from over a hundred towns, and addressed by, among other speakers, the Rev. Mr Freeston of Stalybridge, Mr Ashton Dilke, Mr Labouchere, and Mr Broadhurst; and in the evening a second audience packed St James's Hall to the doors. On the Sunday an enormous mass meeting took place in Hyde Park, the attendance being estimated at 70,000 or 80,000. At all of these meetings Bradlaugh's claim was affirmed with the greatest enthusiasm. The attitude of the Tory press may be gathered from a reference in the *Evening Standard* to

"that section of the people which holds Mr Bradlaugh's coat-tails in veneration. They would get to Westminster, see the fun, shout out encouragement, and possibly pick up something to pay the expenses of the expedition."

An earlier demonstration, held in the Shoreditch Town Hall on 8th May, presided over by Mr Broadhurst and addressed by Bradlaugh and Labouchere, received no notice in the leading morning papers, though the crowd which sought admittance would have sufficed to fill the hall thrice over. It was necessary for such journals to ignore such matters as much as possible, since the main plea on the Tory side had now come to be that the public feeling was "universally" against Bradlaugh. To suppress the facts, and then to deny that the facts existed, was a natural tactic.

Naturally the Tories on their own part were not idle, either in the House or out of it. In the House they were safe from answer by Bradlaugh; and

accordingly Sir Henry Tyler, who had already distinguished himself by a dastardly attack on the ladies of "the Bradlaugh family" and Mrs Besant as being unfit teachers of Science,^[163] was foolish enough to call upon the Home Secretary, during May, to prosecute the *National Reformer* for blasphemy, on the score, not of any editorial utterances, but of certain articles by an outside contributor, controverting, as too favourable, an estimate of the Gospel Jesus by a member of the staff. Sir Henry was no less zealous for Jesus than he had been for "God;" and he was backed by Mr Healy, who asked whether the paper could not be seized. The Home Secretary deprecated the attempt in the name of the interests of orthodoxy, as he had previously done an attempt to secure a prosecution of the *Freethinker*. But Tyler and those of his kidney, baffled here, only looked about for another means of gaining their point.

Among the most prominent of the attacks made on Bradlaugh about this time were the (second and third) articles contributed by Cardinal Manning to the *Nineteenth Century*, one under the title "An Englishman's Protest." The second was in time for the election in March, and much was hoped from it. Later, after illegally visiting Northampton in prelate state, to turn the Irish voters against the Atheist, he contributed yet a third article to the *Nineteenth Century* of September 1882; and still the editor denied Bradlaugh all right of reply. It is probable that at no time in the long strife were Freethinkers more roused to wrath, more moved to smite arrogant insolence upon its blatant mouth, than by this manifesto from a prince of the Church of Rome, the murderous organism which had eaten out the mind of Spain and barely missed destroying Italy. Certain it is that from these malevolent outbreaks of the unsleeping Romish spirit of persecution may be dated a new birth of enmity towards Rome on the part of English rationalists, who had before been disposed to class the bloody-mindedness of Catholicism with the kindred rancours of Protestantism. It was left to Manning to put his Church in the worst light of all; to show once for all that the fundamental mission of priestly Rome is not *parcere subjectis et debellare superbos*, but to fight the ignoble battle of the million against one. And it is to his action that his co-religionists owe most of the measure of acceptance found among Freethinkers by the fierce verse in which Mr Swinburne has named the Church of Rome "Grey spouse of Satan, church of name abhorred," and taunted the "withered harlot" with the shame of her defeat on the Field of Flowers.

But Bradlaugh met the priest's attack with a prose that suffered no weakening from hysteria. In his journal it met a detailed and judicial criticism: he himself, roused as he had never been roused before, published his tract, "A Cardinal's Broken Oath," one of the hardest blows ever struck in written controversy.

"Three times," it begins, "your Eminence has—through the pages of the *Nineteenth Century*—personally and publicly interfered and used the weight of your ecclesiastical position against me in the Parliamentary struggle in which I am engaged, although you are neither voter in the borough for which I am returned to sit, nor even co-citizen in the State to which I belong. Your personal position is that of a law-breaker, one who has deserted his sworn allegiance and thus forfeited his citizenship, one who is tolerated by English forbearance, but is liable to indictment for misdemeanour as 'member of a society of the Church of Rome.' More than once when the question of my admission to the House of Commons has been under discussion in that House, have I seen you busy in the lobby, closely attended by the devout and sober Philip Callan, or some other equally appropriate Parliamentary henchman."

After telling the Cardinal how he had "blundered alike in his law and his history," making absurd mis-statements concerning the French Revolution and the case of Horne Tooke, the pamphlet takes up the point of persecution, in regard to Manning's advice that Bradlaugh should be indicted for blasphemy:—

"When I was in Paris some time since, and was challenged to express an opinion as to the enforcement of the law against the religious orders of France, I, not to the pleasure of many of my friends, spoke out very freely that in matters of religion I would use the law against none; but your persecuting spirit may provoke intemperate men even farther than you dream. In this country, by the 10th George IV., cap. 7, secs. 28 and 29, 31, 32, and 34, you are criminally indictable, Cardinal Archbishop of Westminster. You only reside here without police challenge by the merciful forbearance of the community. And yet you parade in political contest your illegal position as 'a member of a religious order of the Church of Rome,' and have the audacity to invoke outlawry and legal penalty against me."

And then came a hail of blows at the Cardinal Archbishop's own personality, so rashly put in the way of retaliation:—

"In the current number of the *Nineteenth Century* you fire your last shot, and are coarse in Latin as well as in the vulgar tongue. Perhaps the frequenting Philip Callan has spoiled your manners. It also seems impossible that one who was once a cultured scholar and a refined gentleman could confuse with legitimate argument the abuse of his opponents as 'cattle.' But who are you, Henry Edward Manning, that you should throw stones at me, and should so parade your desire to protect the House of Commons from contamination? At least, first take out of it the drunkard and the dissolute of your own Church. You know them well enough. Is it the oath alone which stirs you? Your tenderness on swearing comes very late in life. When you took orders as a deacon of the English Church, in presence of your bishop, you swore 'so help me

God,' that you did from your 'heart abhor, detest, and abjure,' and with your hand on the 'Holy Gospels' you declared 'that no foreign prince, person, prelate, state, or potentate hath, or ought to have, any jurisdiction, power, superiority, pre-eminence, or authority, ecclesiastical or spiritual, within this realm.' You may now well write of men 'whom no oath can bind.' The oath you took you have broken; and yet it was because you had, in the very church itself, taken this oath, that you for many years held more than one profitable preferment in the Established Church of England. You indulge in innuendoes against my character in order to do me mischief, and viciously insinuate as though my life had in it justification for good men's abhorrence. In this you are very cowardly as well as very false. Then, to move the timid, you suggest 'the fear of eternal punishment' as associated with a broken oath. Have you any such fear? or have you been personally conveniently absolved from the 'eternal' consequences of your perjury? Have you since sworn another oath before another bishop of another church, or made some solemn vow to Rome, in lieu of, and in contradiction to, the one you so took in presence of your bishop, when, 'in the name of the Father, Son, and Holy Ghost,' that bishop of the Church by law established in this country accepted your oath, and gave you authority as a deacon in the Church you have since forsaken. I do not blame you so much that you are forsworn; there are, as you truly say, 'some men whom no oath can bind;' and it has often been the habit of the cardinals of your Church to take an oath and break it when profit came with the breach; but your remembrance of your own perjury might at least keep you reticent in very shame. Instead of this, you thrust yourself impudently into a purely political contest, and shout as if the oath were to you the most sacred institution possible. You say 'there are happily some men who believe in God and fear Him.' Do you do either? You, who declared, 'so help me God,' that no foreign 'prelate ... ought to have any jurisdiction or authority ecclesiastical or spiritual within this realm'? And you who, in spite of your declaration on oath, have courted and won, intrigued for and obtained, the archbishop's authority and the cardinal's hat from the Pope of Rome—you rebuke Lord Sherbrooke for using the words 'sin and shame' in connection with oath-taking: do you hold now that there was no sin and no shame in your broken oath? None in the rash taking or the wilful breaking? Have you no personal shame that you have broken your oath? Or do the pride and pomp of your ecclesiastical position outbribe your conscience? You talk of the people understanding the words 'so help me God.' How do you understand them of your broken oath? Do they mean to you: 'May God desert and forsake me as I deserted and forsook the Queen's supremacy, to which I so solemnly swore allegiance'? You speak of men being kept to their allegiance by the oath 'which binds them to their sovereign.' You say such men may be tempted by ambition or covetousness unless they are bound by 'the higher and more sacred responsibility' involved in the 'recognition of the law-giver in the oath.' Was the Rector of Lavington and Graffham covetous of an archbishopric that he broke his oath? Was the Archdeacon of Chichester ambitious of the Cardinal's hat that he became so readily forsworn?"

The eight small but pregnant pages of this concentrated diatribe were carefully translated into Italian by or for a certain Monsignor, once resident in England, who was understood to owe no goodwill to Manning; the translation was no less carefully circulated among the higher Roman clergy; and if anything had been needed to thwart Manning's ambition of becoming Pope, this little tractate, it was believed, would have served not a little to

that end. At all events, Manning never again ventured to attack Bradlaugh publicly. He had had enough. And not only had he failed to destroy Bradlaugh, he had evoked furious Protestant protests against his action at Northampton, and this even from journals like the *Rock*, which hated Bradlaugh as much as he did. His alliance was rejected with insult. And even in his own Church the far more highly esteemed Newman, answering a correspondent on the subject of the Affirmation Bill of 1883, expressly declared that he thought "nothing would be lost to religion by its passing and nothing gained by its being rejected."^[164]

It would be superfluous to load this already over-burdened narrative with any detailed account of the stream of insults, imbecilities, brutalities, and falsehoods which was cast forth continuously at this period against Bradlaugh in the press and on the platform. From the fatuity of Viscount Folkestone—who argued that an Atheist, being guilty of treason to God, who gave the Queen her power, should be treated like one guilty of treason to the Queen—to the brutish licence of the Tory journals who likened Bradlaugh's sympathisers to thieves and assassins, there was, as Mr Moncure Conway wrote at the time, "no circumstance of heartlessness, injustice, hypocrisy, and falsehood^[165] wanting to this last carnival of theological^[166] hatred and ferocity." It was not, of course, theological hate alone. Bradlaugh had just been leading a popular movement for land law reform; and he had set in motion a second movement for the abolition of perpetual pensions, which went on wheels, and the petitions in support of which were signed by the hundred thousand.^[167] There are few resentments more bitter than that of a menaced interest. But malice once aroused in men of a low type stops at nothing; and as we have seen, everybody associated with Bradlaugh was included in the hatred bestowed on him. One Tory journal, the *Manchester Courier*, went the length of saying that Bradlaugh's success in Northampton was due to an exceptionally bad state of education there; the pretext being that one Northamptonshire village was in such a state. The Government inspector testified that as regarded the town he had often paid tribute to the heartiness of the people of Northampton, and especially of the working-classes, in carrying out the Education Act, and that it would be hard to find anywhere a more active School Board, a higher average of regular attendance, or a higher general standard of proficiency.

Of course such a testimony did little to check the scurrility of Tory tongues. At a meeting of the Bible Society at Exeter Hall, in May 1882, with Mr Samuel Morley in the chair, a Herefordshire vicar, the Rev. H. W. Webb Peploe, alleged that to his knowledge "the first condition imposed upon one whom he knew when he had joined an association under the leadership of a notorious infidel was that he should burn his Bible;" and that he had further "been told that two nights ago, at a meeting of a notorious infidel, the things said were so grossly immodest that a member of the press had said that they did not dare to report what had been spoken, however, in the presence of young women." On being challenged, the rev. gentleman declined to attempt any substantiation of his statements, only pleading that he had not meant to specify Bradlaugh. Of these cretinous calumnies, there were hundreds afloat for years on end. It is a comfort to be able to say that some score or more of single clergymen in different places, of different sects, spoke out bravely and generously from time to time in repudiation of the whole policy of persecution and slander. But a few voices, of course, could not avail to hinder that for thoughtful men the effect of the persecution was to identify religion with injustice. Freethinkers reasoned that the Christians who stood for justice and tolerance did but do what Freethinkers themselves did, without accepting the Christian creed; while the army of bigots did their evil deeds in virtue of a religious motive. And the effect of it all was to multiply Freethought as it had never been multiplied before. A barrister, who had no personal sympathy with Bradlaugh, wrote that "One consequence has been that the cause of Freethought has made surprising progress.... I do not think that at any time Freethought literature has been so widely read, and the Freethought propaganda so actively and intelligently carried on." Active members of the Secular Society were enrolled by hundreds; and the sale of Bradlaugh's journal rose to its highest figure. Men who had before been unquestioningly orthodox became newly critical. One wrote to an editor:—

"That 'Mr Bradlaugh had brought his troubles on himself' I fully admit. So did Jesus Christ. In the latter case the ultimate result was a judicial execution as a blasphemer. But I am not aware that he is any the worse thought of by his followers on that account."

Even among Conservatives there were searchings of heart. One wrote a pamphlet in his favour. Another sent an open letter of merciless criticism to Sir Stafford Northcote, saying, "I am a Conservative, and my father before

me. But there is something I put before party. That is self-respect." The letter concluded:—

"If you wish an outlet for your zeal against 'profanation,' why do you ignore in the Church the presence of numerous Broad Churchmen, including the father-in-law of your own son, Canon Farrar, who swear loyalty to the Thirty-Nine Articles, and follow the late Dean Stanley in rejecting many of them? Why should you have reserved your fervent indignation against apparent insincerity in sacred things to be expended upon a man whose admission to the House as silently as possible, so as not to promote his notoriety, justice and expediency would alike have suggested: the whole stupidity, duplicity, and inhumanity of Conservative tactics in this matter are patent to all straightforward minds. You are responsible for giving Mr Bradlaugh a name and a place in the history of this country which will survive long after those of the present Conservative leaders are consigned to oblivion."

The harvest was not immediate; but the seed was abundantly sown, and inevitably bore its due fruit. That this was not unrecognised in high places was sufficiently proved by the introduction of an Affirmation Bill in the House of Lords by the Duke of Argyll, then already sundered from official Liberalism. The Duke, on moving the second reading of his Bill, took occasion to scold Bradlaugh after his manner for "violence and scurrility," denying by implication that the violence and scurrility were on the other side. But this prudent tactic did not avail. The Earl of Carnarvon told the usual untruth about the "binding effect" of the oath on Bradlaugh, by way of showing that he deserved no relief; and the Archbishop of Canterbury opposed the Bill in the name not only of the English Church, but of the Romish, the Wesleyan, and the Scotch Presbyterian. It was accordingly rejected (July) by 138 votes to 62.

§ 18.

On 11th July 1882 a new Tory battery was opened. The *Freethinker*, a penny weekly journal of a more popular character than the *National Reformer*, edited by Mr G. W. Foote and then owned by Mr W. J. Ramsey, was sold at the shop of the Freethought Publishing Company, 28 Stonecutter Street, of which Mr Bradlaugh and Mrs Besant, the partners of the Company, were the lessees. For a short time after its first issue it had been published by them, but soon they decided not to take that responsibility; and thenceforward it had been sold independently by Mr Ramsey, their manager, who, in the terms of his engagement with them, was free to do other trading on his own account. Sir Henry Tyler, supposing

Bradlaugh to be the publisher all along, had bethought himself of prosecuting the *Freethinker* for blasphemy, and so striking a possibly decisive political blow at Bradlaugh—a course which he was enabled to take by a readily granted "fiat" from the Director of Public Prosecutions. It had been made clear by his references to the *National Reformer* in the House of Commons that he had hoped to convict Bradlaugh of blasphemy on something he had either written or published; but that hope he had had to abandon. There remained the hope of connecting Bradlaugh with the *Freethinker*; and Tyler's solicitors coolly wrote Bradlaugh on 8th July, asking whether he would personally sell the paper, so as to prevent the prosecution either of a subordinate of his, or of the editor and printer. He replied by sending the printed catalogue of all the things he published, and offering personally to sell any of these. As it did not include the *Freethinker*, the prosecution was begun against Messrs Foote and Ramsey and their printer, Mr Whittle, on 11th July, before the Lord Mayor (Sir John Whittaker Ellis), at the Mansion House; and after evidence had been led, the prosecutor's counsel applied to have Bradlaugh's name added as a defendant. The case was then adjourned, the Lord Mayor stating that he would hear the application against Bradlaugh in private—a proceeding for which the reasons will afterwards appear. It having appeared that the selling of the *Free-thinker* in the Freethought Publishing Company's shop tended to implicate the partners of that company, Mr Ramsey at once decided to suspend its sale for some weeks till he could arrange for its publication in a distinct office, thus partly safeguarding Bradlaugh from the attempt to identify him with it. The danger was serious; for if Bradlaugh were convicted of blasphemy under the statute, he would become legally incapable of further defending himself in Clarke's or any other suit for Parliamentary penalties. This was fully recognised on the Tory side, and the *Whitehall Review*, in an indecent article, pressed the point. Tyler's move was, in fact, a new attempt to cause the ruin aimed at by Newdegate, and hitherto warded off; and Newdegate's junior counsel (and private friend) duly attended the prosecution at the Mansion House. At the same time, Bradlaugh was defending a Freethinker prosecuted for blasphemy at the Maidstone Assizes, and after attending the adjourned hearing before the Lord Mayor on Monday, 17th July, he had to travel to Maidstone on the following day.

Before the Lord Mayor Bradlaugh led the prosecutor's counsel a grievous dance. He appealed to have the cases taken separately, and counsel was confused enough to say that this was "a most unusual and unheard-of application," which drew from Bradlaugh the comment, "There are several decided cases upon it, although it may be unheard of and unusual in your experience, Mr Moloney." Then ensued hours of fencing as to whether the case was or should be under common law or statute, and what the Lord Mayor ought to do. His lordship was at times somewhat rashly dogmatic on points of law and procedure, and had to be corrected. He finally decided to refuse to ask the prosecutor to choose whether he would proceed under common law or statute; and Bradlaugh then demanded that the case should begin *de novo*, putting every possible technical obstacle in the way of his cowardly enemies. Their evil way, he determined, should be made hard for them; and it was. As the proceedings went on, and the prosecution, who had previously succeeded in obtaining from the Lord Mayor a warrant to inspect Bradlaugh's banking account, took the dishonourable course of producing on subpœna the manager of the bank used by Bradlaugh, and his very passbook, his indignation mounted. What was intended was evidently a fishing investigation into his financial affairs, for the production of cheques at that stage was wholly irrelevant to the points proposed to be made out in evidence, and needing to be so proved. Fighting the case with all his force and acuteness, point by point, and with no mincing of matters, Bradlaugh commented on Tyler's tactics in language of which the libel law prevented the republication. Tyler's counsel protested that he "did not quite see what these observations were intended for." "They are intended," replied Bradlaugh, "to do the same mischief to your client that he is trying to do to me;" and counsel said no more on that head, though he tried unsuccessfully to retaliate on others.

The case was adjourned to the 21st; and though the passbook was left in the Lord Mayor's hands for inspection, the prosecuting counsel so mismanaged matters that he closed his case without having applied to see it. Bradlaugh's account, however, had been personally ransacked on Tyler's behalf, in gross abuse of the order of the Court. The Lord Mayor finally committed Bradlaugh for trial on the singularly scanty evidence offered as to his connection with the prosecuted paper, the incriminated numbers of which were all dated after the time when Bradlaugh ceased to be concerned in publishing it; and in committing Messrs Foote and Ramsey (the charge

against the printer had been withdrawn), his lordship refused to allow Mr Foote to make a statement in his defence, though the law clearly gave the defendant that right. His lordship repeatedly gave the extraordinary ruling that "the charge" against Mr Foote was "that he was the editor of the *Freethinker*"—as if that could possibly be a "charge"—and on this pretext declined to hear anything on the actual charge, which was one of "blasphemous libel." He similarly tried to prevent Bradlaugh from reading a formal statement, but after disallowing it he gave way on consultation with the Clerk of Court. The statement was a terse and telling account of Tyler's tactics from the time of Bradlaugh's election.

In the press the prosecution was sharply condemned, even the *Times* censuring it; and one journal took occasion to point out that Tyler represented "one of the smallest and most corrupt constituencies in England."^[168] Bradlaugh, being "committed" for blasphemy, at once put himself in the hands of his constituents, who unanimously voted their unabated confidence in him. He immediately (27th July) applied to a judge (Justice Stephen) in chambers for leave to issue a summons calling on Tyler to show cause why a writ of *certiorari* should not issue to remove the proceedings to the Queen's Bench division; and on the 29th the *certiorari* itself was directed to issue by the judge. Tyler's counsel at this stage insisted on Bradlaugh's giving two sureties for £300 in addition to his own recognisances of £300 ordered by the Lord Mayor. They also asked for an order to expedite the trial, but the judge curtly refused. Another typical detail was the charging of the grand jury on the point of "returning a true bill" on the indictment. The Recorder for the City, Sir Thomas Chambers, was one of Bradlaugh's bitterest enemies in Parliament, and he gave his direction to the grand jury to return a true bill, not only without putting it to them to decide whether they were satisfied with the evidence against Bradlaugh, but with expressions of gross prejudice, appealing to their feelings as "Christian men."

Not content with his prosecution of Bradlaugh, Tyler in the House of Commons (10th August) at length brought forward an express motion which he had had on the paper for twelve months, to the effect that the Hall of Science was not a proper place, and the teachers not proper persons, to teach science in connection with the Science and Art Department. The argument was that persons who had expressed themselves in print to the

effect that science undermined religion should be held to have taught the same thing in their science classes. Mr Mundella in reply pointed out that no fewer than thirty-five clergymen of all denominations were science teachers under the department; and that the reports on the teaching given in the Hall of Science classes, even by a religious visitor who made surprise visits, were highly satisfactory. He concluded by sharply censuring Tyler, as Mr Labouchere had already done, for his malice; and, the Tory members having all left the House, the matter was ignominiously dropped. Even the editor of the *St James's Gazette* snubbed Tyler, while himself proceeding to repeat Tyler's contention in a gratuitously insulting statement as to the teaching of the Misses Bradlaugh. In the outside public one immediate effect of Tyler's malicious action was to set on foot a movement and an association for the repeal of the blasphemy laws, the lead being ably taken by the Rev. Mr Sharman (Unitarian) of Plymouth, who had already done admirable service in the constitutional struggle.

The blasphemy prosecution not being "expedited," went on slowly enough. Intermediate technical proceedings arose, partly out of irregularities on the part of the prosecution; and in one of Bradlaugh's visits to the Courts with his sureties, the driver of a four-wheeler who conveyed the party declined to accept any fare, declaring that it should be his contribution towards fighting Tyler. At length, on 6th November, Bradlaugh made an *ex parte* motion before Justices Field and Stephen, to have the indictment against him quashed, mainly on the score that he ought to have been definitely sued under the statute 9 and 10 William III., and that the provisions of that statute had not been observed in the indictment. The pleadings were extremely interesting as a matter of pure law, the judges debating the points courteously but closely all along, and both commenting finally on the "candour" and "propriety" with which he had argued his case. Their decision was for the most part hostile; and this was one of his very few cases in which there can be little difficulty in taking the judge's view against him. The main point decided was that the statute had not abrogated the common law in the case in hand. They gave him a rule *nisi* on only two counts in the indictment, on the ground of irregular procedure on the part of the prosecution; but Justice Stephen's judgment supplied a very useful conspectus of the history of the blasphemy laws, and incidentally declared that the statutory penalties could not be inflicted under a verdict on the indictment laid.

Very different must be the comments passed on the treatment of the friendly action, *Gurney v. Bradlaugh*, which came on afresh before Mr Justice Mathew and a common jury on 10th November. Everything had been done that could be done to meet the criticisms formerly passed by Justices Manisty and Watkin Williams; and indeed the whole pleadings had from the first been drawn from the journals of the House of Commons, which were put in evidence. But Justice Mathew summarily decided not to hear the case, and discharged the jury, on the old ground that the action was collusive. Now Bradlaugh, in swearing himself in, had in law done exactly what Alderman Salomons did in 1851; and the action of *Miller v. Salomons* was notoriously collusive, yet it was fully heard and carefully decided. We can only do now what Bradlaugh did then—leave the judge's action to the judgment of the instructed public. The *Law Times* of that time (November 1882) took the unusual step of declaring:—

"It is plain that it should be possible to try a friendly action to establish a constitutional right; and we regard the action of the judge as very questionable on constitutional grounds, and as being an arbitrary interference with a suitor's right to the verdict of a jury."

What a law journal thus describes, plain men may well call by a plainer name.

One of Bradlaugh's five contemporary lawsuits was thus quashed, but the remaining four kept his hands sufficiently full. The civil suit against Newdegate for maintenance came on before Justice Field on 2nd December, on a preliminary "demurrer," when, on the advice of the judge, both aides agreed to let the demurrer stand over till after the trial. A day or two afterwards Newdegate, speaking at the London Sheriffs' banquet, at which six judges were guests, had the indecency to comment before them on the maintenance case, and to denounce Bradlaugh. On the 5th the action against Mr Erskine, the Deputy Sergeant-at-Arms, came on before Justice Field. It was a long pleading on both sides; the case was adjourned till the 18th; and after the Attorney-General had spoken two hours and a half, and Bradlaugh had replied for an hour and a quarter, the judge reserved his decision. He finally gave it (15th January) against Bradlaugh, on the general ground that the House of Commons was the judge as to how it might exercise its privileges, of which the power to expel a member was one. On the point of legality he ruled that "it is not to be presumed that any Court, whether it be the High Court of Judicature or this Court, will do that which in itself is

flagrantly wrong." The decision was one which might very reasonably have been appealed against. As the *Legal Advertiser Supplement* remarked at the time, Justice Field's ruling would cover a case in which the House of Commons might, say, confiscate the goods and chattels of a member expelled or suspended for obstruction. Bradlaugh, however, decided not to appeal. He had only commenced the action reluctantly because of the likelihood that the Gurney suit would be denied a hearing; and the judge had in this case at least listened to his arguments. He contented himself with a letter to the *Times*, pointing out the constitutional effect of the decision.

Thus far he had endured defeat after defeat in the law courts as in Parliament; and it may be that discouragement and debt counted for something in his surrender of the suit against the Deputy Sergeant-at-Arms. But he was now within a short distance of three signal successes which more than counterbalanced all his previous legal defeats. On 9th and 17th March his action against Newdegate for maintenance was argued for him before Lord Coleridge^[169] by Mr Crump and Mr W. A. Hunter, he himself giving evidence on his own behalf. The broad ground of action was that Newdegate had maliciously "maintained" Clarke, having himself no interest in the ground of action, which was the penalty sued for, and being desirous only to make Bradlaugh bankrupt. There was no question of principle, as Bradlaugh was already unseated, and was held disentitled to sit either on oath or on affirmation. Bradlaugh incidentally gave testimony that already he had had to spend on the action two legacies, and in addition £1100 he had borrowed; while Clarke testified that the total costs on his side were estimated at about £2000.

Lord Coleridge reserved his decision; and before he gave it, the appeal by Bradlaugh against Clarke's action had been heard and decided in the House of Lords. It was argued on 5th and 6th March, before the Lord Chancellor (Selborne), and Lords Blackburn, Watson, and Fitzgerald—Bradlaugh, as usual, pleading his own cause. His main argument was, as before, that only the Crown could recover penalties against him when the statute did not specify that some or any one else could; and the discussion turned on this point, on which Lord Justice Bramwell, the senior judge in the Court of Appeal, had expressed some doubt. Bradlaugh, however, cited on the disputed point as to the Crown's prerogative two fresh cases—the *King v. Hymen*^[170] and the *King v. Clarke*; and a good deal of argument turned on

the point as to whether a common informer could ever have costs allowed him. As for the case of the respondent, Bradlaugh pointed out that Sir Hardinge Giffard's argument was now directed against the very reasons on which the intermediate court had based its judgment in his favour, thus asking their lordships to support the judgment of the Court of Appeal for new and contrary reasons.

On 9th April their lordships delivered judgment. The Lord Chancellor in an elaborate and lucid judgment showed that the penalty really was suable for by action of the Crown in any of the superior courts, and that, as no permission had been given by the statute to the common informer to sue, he was not entitled to do so. Lord Blackburn dissented, but not strongly, arguing very judicially that there were good and mutually neutralising arguments on both sides, and pronouncing himself only "on the whole" in favour of the view that the common informer could sue under the statute. Lords Watson and Fitzgerald, however, agreed with the Lord Chancellor. The eccentric Lord Denman, who was not a law lord, chose to take part in the proceedings (the first time a lay peer had done so, it is said, since the decision of the writ of error in Daniel O'Connell's case), and declared himself in agreement with Lord Blackburn. Even if he were counted, however, the majority was for the appellant, who accordingly won the appeal with costs.

This judgment, of course, would have affected the suit for maintenance, had that been brought later. Giving judgment on 23rd April, Lord Coleridge remarked that as the House of Lords had decided that Clarke had no right to sue, it "seemed to follow" that Newdegate had no right to do so either. But he went on to decide in the appellant's favour on the merits of the case, giving a long and interesting judgment. Unless maintenance were to be struck out of the law-books, said the Lord Chief Justice, Newdegate's procedure must be called maintenance; and if maintenance were to be struck out of the books, he added, "it must be done by some higher authority, and I have not the power to do it, nor, if I had the power, have I the wish to abolish an action which may in some cases be the only remedy for a very cruel wrong." Delivering himself later on the moral or political merits of the case, he said:—

"It may be my ill fortune to have to support such an action in a case in which the defendant is a man whose character is entitled to every respect, and the plaintiff is a man with whose views, openly avowed, I have no sort of sympathy. But I will not call

it my 'ill fortune,' for many of the most precious judgments given by the Courts in Westminster Hall were given in favour of men who, if English justice could ever be warped by personal feeling, would certainly have failed. It is indeed an ill fortune of the case that in the minds of many the cause of religion should seem to be connected with the success or failure of a particular person, whose defeat or success is really to the cause of religion a matter of supreme indifference, but as to whom (speaking only of what has been proved before me), a course has been taken and proceedings have been pressed which, in the case of any other, would be strongly and universally condemned, and by which certainly the cause of religion has not been advanced. But my duty is simply to decide the cause according to the best opinion I can form of the law—a duty which the rules of Christian teaching make quite clear."

As to costs, Lord Coleridge remarked that the decision of the House of Lords, though giving costs on the appeal, left Bradlaugh mulcted in a considerable sum of costs which were not recoverable from Clarke. For the recoverable costs he assumed Newdegate would now hold himself responsible; but further,

"for the residue of the costs and the expenses which Mr Bradlaugh has been put to as between attorney and client, and the various expenses he has had to bear—for all these Mr Newdegate is responsible in damages. I think that Mr Bradlaugh is entitled to an indemnity for every loss which Mr Newdegate's maintenance has caused him, and if this cannot be agreed on between the parties it must go to the official referee to ascertain the amount, and when he has reported to me I will give judgment for the amount he finds to be due, applying the principles I have thus laid down."

Newdegate's counsel gave notice of an appeal, but after six months' delay abandoned it. Thus by two concurrent successes Bradlaugh inflicted a crushing and final defeat on one of the men who had sought to ruin his political career out of hate for his opinions. He could not have, in addition to the solace of triumph, the "stern joy which warriors feel in foemen worthy of their steel;" but he had the satisfaction, such as it was, of knowing that his victory was a source of intense chagrin to thousands of bigots who had reckoned on, betted on, and generally predicted his defeat and bankruptcy.

And his victory on the points of civil law was effectually secured by his acquittal in the action for blasphemy. A new excitement had been added to that issue by the commencement, on 2nd February, of a new prosecution of Mr Foote (now owner as well as editor) and Mr Ramsey (now publisher only), with Ramsey's shopman, Henry Arthur Kemp, for the publication of a special "Christmas number" of the *Freethinker*, in which there occurred certain woodcuts, ridiculing the Hebrew Deity and the Jesus of the Gospels. In this case there could be no pretence of implicating Bradlaugh, as the

incriminated number had not even been sold on the Freethought Publishing Company's premises. Whether Tyler saw the necessity of putting a better colour of religious zeal on his ill-conditioned action against Bradlaugh, or whether the recent strife had stirred up smouldering bigotry independently of personal animus against Bradlaugh, this prosecution was undertaken by "the City of London." The new trial, which took place at the Central Criminal Court on 1st March 1883, before Mr Justice North and a jury, is likely to be long remembered in respect of the extraordinary display of mediæval prejudice by the judge. He repeatedly and angrily interrupted Mr Foote in his defence, declining to allow him to quote current printed matter which would show at once how much "permitted blasphemy" went on among Salvationists, and how perfectly in keeping was his freethinking blasphemy with the popular religion which it attacked. The jury, after two hours' discussion, could not agree, and the judge discharged them, arranging for a fresh trial on the 6th with a fresh jury, and refusing in the harshest and most peremptory manner to let the prisoners out on bail, though in law they were perfectly entitled to it. Applications made next day to other judges fell through on the score, not of being wrong in law, but of "want of jurisdiction" on the part of the judges applied to. The second trial was even more disgraceful to the judge than the first. At the outset, Mr Foote objected to one of the jurors as having expressed animus, and the judge, in suggesting the juryman's withdrawal, declared that "he should be sorry to have a gentleman upon the jury who had expressed himself as prejudiced." His own summing-up to the jury, however, was again scandalously prejudiced; and when the jury promptly returned a verdict of guilty, he addressed Mr Foote as follows:—

"You have been found guilty by the jury of publishing these blasphemous libels. This trial has been to me a very painful one, as I regard it as extremely sad to find that a person to whom God has given such evident intelligence and ability should have chosen to prostitute his talents to the work of the devil in the way it has been done (*sic*) under your auspices."

The sentence was a year's imprisonment. The announcement called forth a display of indignation among the audience such as has perhaps never been seen in modern times; and the judge had to sit for some minutes in a storm of hisses and outcries, the epithets "Jeffries" and "Scroggs" expressing the prevailing sentiment. Mr Foote's words: "My lord, I thank you: it is worthy of your creed," were followed by a renewal of the tumult, and it was with difficulty that the Court was cleared. Then the judge sentenced Ramsey and

Kemp to nine and three months' imprisonment respectively. The same judge, it is recorded, had let off with three months' imprisonment a ruffian who had killed a coffee-stall keeper with a kick on the face when he was refused a second cup of coffee till the first had been paid for.

The impression made among thoughtful people by the judge's action was one of general displeasure. Canon Shuttleworth pronounced the sentence "a calamity." Mr Foote's methods had been widely and strongly disapproved of among cultured Freethinkers, including Bradlaugh; and Mr John Morley, in the *Pall Mall Gazette*, had gone to the indefensible length of justifying the prosecution, on the very inadequate ground that the *Freethinker* had been "thrust on" the public, it having been exhibited in the publisher's window in a side street. But the infamous sentence at once turned feeling the other way, though protests like Canon Shuttleworth's were needed to teach Mr Morley and other Liberal journalists that renunciation of Liberal principles is not really necessary, even in cases of persecution, to propitiate the public. Bradlaugh, on his part, took the—for him—unprecedented course of addressing a public letter to the judge, reprobating his conduct. "My lord," he wrote,

"I pen this public letter with considerable regret and much pain. I have always in my public utterances tried to teach respect for the judicial bench. I have never, I hope, allowed hostile decisions against myself personally to tempt me to undue language when exercising my journalistic right to criticise judgments delivered. My own experience of the judges of our land has, with slight exception, been that they always listened with great patience, and when disagreeing, have expressed their disagreement in a dignified manner. When I read the report of the first trial of Messrs Foote, Ramsey, and Kemp, I was inexpressibly shocked. The character of some of the evidence you admitted alarmed me, and your refusal to reserve the objection taken to the admissibility of such evidence for the consideration of the Court of Crown Cases Reserved seemed to me so extraordinary that I even now hardly dare trust myself to characterise it.... But the point that most afflicts me is the fashion in which you over and over again interrupted the defendant Foote in his defence.... There are plenty of precedents showing that prisoners have been permitted in defence the indulgence so peremptorily denied by your lordship to Mr Foote.... That you should have held the defendants in custody after the jury had disagreed, and when you had determined to again try them four days later, was mischievously and wantonly cruel. They had duly surrendered to their bail, which had been small in amount. There was no suggestion or supposition that they would try to avoid justice, nor did the prosecution ask for their detention. I am afraid, my lord, that you sent them to Newgate because they had been over-bold in their defence.... If you had meant the three defendants to have no chance of escape, if you had been prosecutor instead of impartial judge, you could hardly have done more to embarrass their defence than by sending them to this sudden and unexpected close confinement."

The letter concluded:

"When you sat as judge in these blasphemy trials your lordship was practically omnipotent. There is yet no court of criminal appeal.... The very knowledge of your uncontrollable authority in the conduct of the trial ... should have prompted your lordship to hold the judicial balance with a steady hand, its inclining, if at all, being to the side of mercy. But your lordship, in the spirit of the old inquisitor, threw into the scale your own prejudices against the heresy for which the defendants were reputed, your own dislike of the manner in which they had made their heresies known.... I ask your lordship what would be the outcry through the civilised world if, either in Switzerland or in Hindostan, those Salvation Army propagandists who thrust their blasphemies furiously in all men's faces were so hardly dealt with as you have dealt with George William Foote, William James Ramsey, and Henry Kemp?"

Presumably the scandal caused by Justice North tended to procure a fairer hearing for the original action, still unheard, in which Bradlaugh was indicted. It came on before the Lord Chief Justice and a jury on 10th April—Bradlaugh, as usual, defending himself, while Messrs Foote and Ramsey were represented by counsel. Bradlaugh was permitted by Lord Coleridge, in spite of the opposition of the prosecuting counsel (Giffard), to have the charge against him tried separately from that of his co-defendants, whose testimony might be important to him; and he was thus enabled to put his defence solely on the question of his responsibility, saying nothing as to the papers prosecuted being blasphemous or otherwise. His case was a clear and detailed proof, made good at every point, that he had ceased to be in any way concerned even in the selling of the *Freethinker* before the issue of any of the incriminated numbers, he and Mrs Besant having decided to drop the publication on account of a change early made in the character of the paper;^[171] and that this abandonment of the publication—which was the only sort of connection he had ever had with the paper at all—was made independently of any outside pressure or threat. For the rest, the malevolent tactics of Sir Henry Tyler were once more made the subject of a stinging invective; and the procedure of the prosecution in regard to the bank account came in for very severe handling. This was one of the most striking details in the trial. It came out, to the amazement of the legal part of the audience, that not only had Bradlaugh's banking account been ransacked and his cheques gone over to see if any had been dishonoured, but the junior counsel for Tyler, Mr Moloney, had actually attended the inquisition in person. Bradlaugh naturally did not spare him, declaring that he had "done work generally left to some private detective or inquiry agent, and never done by any one having the dignity of the bar to guard." And all the

while, the search had been made in a bank branch in St John's Wood, N.W., in the county of Middlesex, on a warrant from the Lord Mayor, whose jurisdiction was limited to the City. On this head the Lord Chief Justice indicated a very strong feeling that the Lord Mayor's warrant for such a purpose ought not to be valid anywhere. "Vile in its inception and dishonourable in its conduct," was Bradlaugh's account of the prosecution generally, and he even had a suspicion, based on an awkward statement by one of the legal witnesses, that the examination of the bank account had been made some days before the summons against him was issued.

Sir Hardinge Giffard, now prosecuting for the Crown, fought the case as he might have done it for Tyler, declaring in his opening speech that he would call witnesses to prove certain things, and afterwards carefully omitting to call them, seeing that that course would help Bradlaugh to clear himself. In replying, he did not attempt to rebut the criticisms passed on his client and on his conduct of the case, professing to take the attitude of dignified disregard. His main line of argument was that one or two isolated woodcuts had been published in the *Freethinker* during the few months in which the Freethought Company published it, that Bradlaugh was an original promoter, and that the change made in the registration was only a stratagem, Bradlaugh remaining the real publisher. As regarded the blasphemy charged, Sir Hardinge did not take the customary line of distinguishing between vulgar and refined blasphemy, describing the contents of the *Freethinker* as deadly "poison to men's soul"—an expression which could not be supposed to apply to the mere element of vulgarity. He spoke with horror of a cartoon which exhibited Ignorance, Money, and Fear as "the true Trinity," and would doubtless have spoken similarly of the account of the Trinity as "three Lord Shaftesburys," given by Lord Coleridge's esteemed personal friend, Mr Matthew Arnold. The blasphemous matter on which the learned counsel expressed himself most strongly in detail, however, was a vulgar travesty of the extremely silly and artistically worthless religious picture known as "The Calling of Samuel." "You have that picture," he told the jury, "represented as a startled child, roused from his slumber by two cats on the tiles. And this is the sort of thing which is to be scattered broadcast over the land—!"

Lord Coleridge, on his part, summed up with great literary skill and dignity, carefully guarding against theological prejudice on the part of the jury by

the avowal that he himself, despite his years and comparative detachment from the world, found it difficult to clear his mind of it. Incidentally he remarked that it was to Bradlaugh's credit that he did not disavow a general sympathy with the opinions of his co-defendants, while clearing himself of all complicity in the publications indicted. But on the point of the blasphemy charge he also incidentally expressed an opinion, which is worth citing as showing how little even an exceptionally considerate judge with strong religious feelings can get rid of the vulgar notion that irreverence to his—the popular—religious opinions is immeasurably more reprehensible than irreverence towards other less popular opinions, or vilification of unpopular men's characters. His objection to blasphemy prosecutions was mainly that they injured the cause of religion:—

"I say not how far the institution of a prosecution of this kind wounds the most sacred feelings and does injury to the holiest convictions. Some persons may think that this is not so; some may think that by such prosecutions the most sacred truths are pierced through the sides of those who are their enemies. With all that we have nothing to do. We may dislike, we may—I do not hesitate to say, we may loathe—the expressions made use of in these libels. We may think the persons who can speak in this way of things which they themselves may disapprove of and disbelieve, which they themselves may possibly think superstitious and mischievous, but which they must know have been the life and the soul of the virtue, the morality, the self-denial, the civilisation of hundreds, and thousands, and millions of people in all ages, are persons who forget—I will not say what is due to God, for they do not believe in Him, but to man, for they are men—what is due to themselves, and to the community of which they form a part, and for whom they ought to have some consideration. All that may be perfectly true, but it has nothing to do with the question."

Here the judge assumes that there is no dispute whatever as to the claim that the Christian religion is the essence of morality and modern civilisation, and proceeds to express disgust for a line of polemic which was zealously followed by the early Christians for centuries, which is invariably followed in the Old Testament when there is any question of alien religions, which is endorsed by Paul, which is commonly followed by Christian missionaries and by Protestant assailants of Catholicism, and which was even then being followed by the Christian multitude in the very case of Bradlaugh. The Christian position is that it is right to ridicule and asperse Freethinkers, materialists, and polytheists; and the Protestant position is that it is right to deride the Catholic worship of saints, images, and relics; but Christians in the mass hold it abominable for unbelievers and "heathen" in turn to deride *their* opinions, these being "holy" and "dear." And all the while, in the case under notice, the people who thus felt the most intense animal resentment

towards a handful of men for speaking irreverently of a supposed Infinite, which by no possibility could human folly or contumely disturb or hurt, were as often as not zealous accomplices in casting the vilest personal insults against a representative Atheist who confessedly could not be shown to have attacked their opinions in such a way as to lay him open to a successful prosecution for blasphemy. The Christian plea is that unbelievers should not be free to cause Christians pain. Yet the whole of Bradlaugh's life was and is in evidence to show that the first instinct of the average Christian is to cause not merely endless mental pain but material ruin to every man who ventures, however decorously, to pronounce the Christian creed untrue. Perhaps the profoundest impeachment of the religious instinct in general is this very fact that the express conviction of the absolute supremacy of a personal power over all things human never by any chance enables the believer to regard with serenity and compassion the human denials which that power in the terms of the case is alleged to permit.

Some approach to the recognition of all this must have taken place in connection with the trial of Bradlaugh on the score of the *Freethinker*, although of course it was on the point of non-complicity that the jury gave their verdict of acquittal. They deliberated for an hour and ten minutes, calling for several of the documents in the case. The foreman's pronouncement of "Not Guilty" was received with loud cheers, which the judge indignantly rebuked, with the customary remark that "this is not a place of entertainment;" but a Conservative journal, endowed with the regulation horror of Atheism, commented that the cheer expressed a sentiment not at all confined to Atheists. In general, the press rejoiced with the acquitted man, who had now won in rapid succession three decisive successes in his long battle. It was noted, too, that he had won them against one leading counsel, Sir Hardinge Giffard. Asked later how it was that he had so often and so signally defeated this counsel, Bradlaugh remarked that he believed it was because Giffard despised him as an antagonist, and neglected precautions against him, while he, Bradlaugh, was careful at all times to do his utmost, and never to undervalue the enemy's strength. The moral is an old one.

In addition to the discredit put upon the prosecution in Court, it happened that Sir Henry Tyler about this time figured rather dubiously before the public in his capacity of company-promoter. His treatment of the financial

affairs of the Anglo-American Brush Electric Light Corporation, in which he was deeply concerned, gave such dissatisfaction to most of the shareholders that they took the unusual course of presenting a memorial insisting on his resignation, after he had been hissed and hooted at a shareholders meeting.^[172] It may have been a sense of the unfitness of such a personage to represent the cause of religion that led to the foundation of a "Society for the Suppression of Blasphemous Literature," the secretary of which wrote to the newspapers^[173] as follows:—

"We propose to get up cases, as our funds will allow, against Professor Huxley, Dr Tyndall, Herbert Spencer, Swinburne, the author of 'Supernatural Religion,' the publishers of Mill's works, the publishers of Strauss's works, Leslie Stephen, John Morley, the editor of the *Jewish World*, Dr Martineau, and others, who by their writings have sown widespread unbelief, and in some cases rank Atheism, in cultivated families."

That goodly project, however, came to nothing, though in the view of Justice Stephen most if not all of the writers and publishers named were certainly open to conviction for blasphemy under the existing law. It would appear that the spiritual interests of "cultivated families" arouse less solicitude than do those of the poor, in matters religious as well as Malthusian. Above all, none of the writers threatened, save Mr John Morley, was likely to give the Tory party any chance of turning his heresy to political advantage, and Mr Morley was already safe in his seat, having taken the oath without demur and without opposition, after editorially criticising Mr Bradlaugh for his willingness to take it. Mr Morley had perhaps put himself right with the religious party by applauding the prosecution of Foote and Ramsey—he who had expressly justified the polemic of Voltaire.^[174] A clergyman of the Church of England, the Rev. Stewart Headlam, whose championship of the principle of religious equality has all along been above all praise, wrote to Mr Morley in his editorial capacity, protesting "as a Christian priest" against a policy which made it "almost impossible for Christians to meet Atheists on equal terms." "It seems," Mr Headlam began, "as though you were one of those who say, 'There is no God, but it's a family secret.'" The letter was suppressed. It is bare justice to cite it here^[175] as being perhaps the most telling protest made against the blasphemy prosecutions, albeit written by a sincerely orthodox clergyman.

The original case against Bradlaugh's co-defendants, Messrs Foote and Ramsey, who had been already sentenced to imprisonment on the second prosecution by Mr Justice North, came on before Lord Coleridge and a special jury on 24th April. The judge treated the prisoners with signal consideration and courtesy; and when the prosecuting counsel, Mr Moloney, persisted in putting a question to which Lord Coleridge had objected, his lordship indignantly asked, "Why cannot this case be conducted like any other case? It seems all of a piece with the learned counsel inspecting a man's bank-book." The accused defended themselves, Mr Foote making a particularly able speech, on which the judge, in his summing-up, repeatedly complimented him. That summing-up (delivered on the 25th) was in its way a masterly performance, marking the judge as the most admirably persuasive of pleaders. Deeply averse to all punishment of opinion, he showed the jury that the blasphemy law, as interpreted by past judges, was not nearly so outrageous as had been supposed; and the definition of "the late Mr Starkie," of which a scanty quotation had been given by the prosecution, he showed to be much less illiberal than it had been understood to be, though nothing could make it out to be a precise or practical formulation of law. As in the previous trial, he demolished the absurd plea that "Christianity is part of the law of the land," by the *reductio ad absurdum* that the marriage law and the monarchy are part of the law of the land, but are yet open to being argued against—at least in all modern opinion. As, however, no interpretation could do away with the hard facts of the blasphemy laws, and the accused had unfortunately put their heresy at times with extreme pictorial crudeness, his lordship could not definitely charge the jury that no blasphemy had been committed in law. He admitted that the objection against their practice on the score of violence would apply to some passages read by Mr Foote from prominent modern writers, which were new to him; but while the law stood as it was, that was no defence for Mr Foote, as the writers in question would be equally open to indictment. The jury, thus unavoidably left in doubt, disagreed. The prosecution, acting judiciously for the first time, took the course of entering a *nolle prosequi*, and the case dropped, but not without the Lord Chief Justice having to point out that the petition grossly misrepresented him as having pronounced the prosecution "unadvisable," which he had carefully abstained from doing. Unluckily, the dropping of this case did not affect the sentence passed by Justice North, and the then Home Secretary, Sir William

Harcourt, declined to mitigate the punishment, on the score of the offensiveness of one of the incriminated woodcuts, which he called "an obscene libel," though the charge was one of blasphemy. Some Liberal journals indignantly protested; but the Liberal leaders felt they must show no consideration to blasphemy, though even the *Spectator* censured them for their timidity.

§19.

While the decisive trials were yet in the future, Bradlaugh had never slackened his energetic action on the political side of the fight. The last move in the House had been taken on 18th July 1882, when Mr Labouchere moved that Bradlaugh be appointed a member of the Committee to consider the Agricultural Tenants' Compensation Bills. The right of a member in Bradlaugh's position to serve on committees had been established by the precedents of Alderman Salomons and Baron Rothschild. The point was a curious one, and could not be got over argumentatively, but of course the House could outvote the motion, which it did by 120 to 35. Not till the next year was the campaign indoors reopened.

On 15th February 1883, the day of the reassembling of Parliament, a great demonstration was held in Trafalgar Square in support of Bradlaugh's and Northampton's claim, about a thousand delegates attending from some four hundred Radical associations of provincial towns. At first some of the railway companies were understood to be willing to run cheap excursion trains, but that concession was of course violently opposed, and at a meeting of representatives of the companies held in the Railway Clearing House on 29th January a resolution was carried by a majority of votes, binding all the companies to give no special facilities whatever. An attempt to get the use of the Floral Hall, Covent Garden, for the meeting was defeated by the veto of the Duke of Bedford's agent, though the Directors were willing to grant it; and no other sufficiently large hall was available for the date. The meeting, which would have been several times larger had the railway companies given the desired special trains, was nevertheless a great success, the square being densely packed, despite bad weather; and despite some attempts at rioting by hired roughs, there was almost perfect order throughout. The *Pall Mall Gazette* had deprecated the meeting as held in an illegal place, though for a perfectly legal purpose. This was a

misconstruction of the Act 57th Geo. III. cap. 19, sec. 23, which prohibited meetings within a mile of Parliament House for the purpose of petitioning the Crown or Parliament "for alteration of matters in Church or State." As there was no petition under consideration, the meeting was perfectly legal. Other papers went further, the *Daily Telegraph* applauding the railway companies for refusing to "start trains in order to bring up country roughs;" and generally it must be recorded that some of the leading Liberal journals discouraged the whole procedure. The *Daily News* and *Daily Chronicle* even suppressed resolutions sent them in support of Bradlaugh's claim from provincial clubs before the demonstration—such resolutions being part of the manifold machinery of preparation for a great public demonstration; and the Tory papers as a rule suppressed all reports tending to show the support given to Bradlaugh in the country. Other forms of boycotting were freely employed. In the cathedral town of Peterborough a debating society set up by the local Young Men's Christian Association was deprived of the use of the Association's rooms because it carried a motion in favour of Bradlaugh's right to sit and vote. This episode typified hundreds. The most skilful device employed, perhaps, was the issue of a forged circular, purporting to come from Bradlaugh, calling on "all Atheists, as well as Socialists," to "assemble in their thousands round the House of Commons," and show that "the Atheists of this country have a right to be represented" in Parliament.^[176] Newspapers which had no space for genuine news about Bradlaugh gave prominence to this.

As the meeting of Parliament drew near, expectation naturally rose high on both sides. The sentiment of many Tories may be presumed to have been expressed by Lord Newark, son of Earl Manvers, when at the annual dinner of the Nottinghamshire Agricultural Society he was ruffianly enough to say:

"He supposed that Mr Bradlaugh meant to make himself objectionable as usual. He heard from an honourable member who sat near him^[177] that he thought of going with a big stick, and he (Lord Newark) hoped that if he came within reach of Mr Bradlaugh he would make use of it."

The stick, however, was not on exhibition at the House of Commons. Bradlaugh's course was to send to the Speaker a letter stating the then position of matters, in view of the action of the law courts; and stating that he proposed to present himself as before. This letter was read to the House before any other business was taken. On Mr Labouchere asking the Government what course they meant to take, Lord Hartington at once

answered that on the following night they would move for leave to bring in an Affirmation Bill. Sir Richard Cross, on the Conservative side, at once announced that he would oppose the Bill, and his statement was loudly cheered. At this stage Inspector Denning asked Bradlaugh to leave the House and reassure the multitude outside, who were beginning to fancy they might be "ill-using him inside."

On 20th February the motion for leave was made, when Sir Henry Drummond Wolff was understood to express himself with ironical approbation, while Mr Chaplin opposed, and Northcote explained that he should vote against the second reading. The motion was carried by 184 votes to 53, most of the Irish party voting in the minority. Not till 23d April did the Bill reach its second reading; and in the meantime a desperate effort was made by the entire Tory party to arouse feeling against the Bill. In the previous session the petitions in Bradlaugh's favour had been signed by 275,000 persons, and those against him by only 65,000, many of these being children. The leeway was now made up. The machinery of the Anglican and Catholic Churches was worked to the utmost to beat up petitions; schools were swept wholesale for signatures, not only in England but abroad;^[178] and large employers of labour were got to procure the signatures of employees *en masse*, reluctant workers being not obscurely threatened with the consequences of refusal. By these means half a million signatures were got up by the 23rd of April, the great majority being those of school-children and coerced employees. *Tantum religio*——. The Tory press likewise put its best foot foremost. In the *St James's Gazette* of 22nd February, Mr Greenwood made an abominable attack on Bradlaugh, the foulest of many foul blows, describing him as "a preacher of certain theories of the sexual relation which, in the opinion of the great majority of Englishmen, are not only immoral but filthy," going on to speak of him as having long been known as the publisher of an obscene tract, and representing him as an advocate of "Free Love, and sundry other doctrines and practices which benefit greatly by the impossibility of referring to them distinctly among decent people." The pamphlet formerly put together by Varley, largely consisting of matter Bradlaugh never wrote, falsified even at that, and partly of passages from him, wrested from their context and falsified in application, was circulated more widely than ever. Many members of Parliament repeated the palpable falsehood that Bradlaugh had been "declared by the House of Commons and the courts of law incapable

of sitting in Parliament;" and Mr H. S. Northcote, son of Sir Stafford, in addition to making this statement to his constituents at Exeter, told them that "when Mr Bradlaugh led a mob of unwashed ruffians down to Parliament Yard" the Government introduced their Bill.

On the second reading, Sir Richard Cross opened the opposition, and began by making the statement that "it was a former Government whip, Mr Adam, who first invited Mr Bradlaugh to go to Northampton"—the grossest form ever given to that particular untruth. He was seconded by Mr M'Cullagh Torrens, a nominal Liberal, who in his work on "Empire in Asia" had affected a high esteem for the principle of religious toleration—in other countries. The Bill, he said, tended "to begin the abjuring of all responsibilities to heaven." Mr W. E. Baxter, following, declared that "not only had Atheists been members of Parliament, but they had sat on the Treasury Bench"—and a member called out "And sit!" Giffard, seeking his revenge at once on Bradlaugh and Lord Coleridge, "repeated without the smallest fear of contradiction that Christianity was a part of the common law of the kingdom." Mr Illingworth happening to speak of "recreant members of the Jewish community," Baron de Worms rose to order, and the Speaker ruled the term "out of order." None of the epithets directed at the Atheist had struck him in that light.

The debate was thrice adjourned. On 26th April Sir H. D. Wolff took it upon him to accuse Lord Chancellor Selborne of using his position to help his political party; and Lord R. Churchill, in a later speech, said the same thing of Lord Coleridge. On the Liberal side, Gladstone made the greatest speech delivered by him during the whole controversy. At first he was elaborate and deprecatory, but gradually he rose to warmth and cogency. "Do you suppose," he asked—

"Do you suppose that we are ignorant that in every contested election which has happened since the case of Mr Bradlaugh came up you have gained votes and we have lost them? (Opposition cheers and counter cheers.) *You* are perfectly aware of it. We are not less aware of it. But if you are perfectly aware of it, is not some credit to be given to us—we giving you the same under circumstances rather more difficult—for presumptive integrity and purity of motive?"

It was a naïve and a vain appeal, but the speech was none the less fine. The most powerful part of its argument was the demonstration that those who consented to drop the Christian element from the oath and held by the

Theistic were treating Christianity, as such, as a thing that could be dispensed with.

"I am not willing, sir, that Christianity—if the appeal is to be made to us as a Christian legislature—shall stand in any rank lower than that which is indispensable." He would not accept bare Theism as the main thing. "The adoption of such a proposition as that—and it is at the very root of your contention—seems to me in the highest degree disparaging to the Christian faith."

And then, contending that a bare belief in a remote and abstract Deity could exist with a complete disbelief in that Deity's having any relation with men, he rolled out "the noble and majestic lines, for such they are, of the Latin poet:"—

"Omnis enim per se divom natura necesse'st
Immortali aevo summa cum pace fruatur
Semota ab nostris rebus sejunctaque longe;
Nam privata dolore omni, private periclis,
Ipsa suis pollens opibus, nil indiga nostri
Nec bene promeritis capitur neque tangitur ira."^[179]

There was no one to follow him up with a citation of the lines which follow on these where they used to stand misplaced in the first book of Lucretius' poem:—

"Humana ante oculos foede cum vita jaceret
In terris oppressa gravi sub religione;"

but some listeners there must have been who bethought them how perfectly this long controversy had answered to the Roman's picture of "life crushed to the earth under the weight of religion;" and they may fitly have murmured "primum Graius homo" of the man whose long battle was even then visibly tending to relieve them one day of the old hypocrisy of adjuring the unknown God.

Touching his mother earth of classic verse, Gladstone drew new strength of eloquence.

"The Deity exists, as those I must say magnificent words set forth, in the remote, inaccessible recesses of which we know nothing, but with us it has no dealing, with us it has no relation. I have purposely gone back to ancient times, but I do not hesitate to say that the specific evil or specific form of irreligion with which in the educated

society of this country you have to contend, and with respect to which you ought to be on your guard, is not blank Atheism. That is a rare opinion that is seldom met with; but what is frequently met with are those forms of opinion which say that whatever is beyond the visible scene, whatever there be beyond this short span of life, you know, and can know, nothing of it. It is a visionary and bootless undertaking to try to fathom it. That, sir, is the specific mischief of the age; but that mischief of the age you do not attempt to touch.... Whom do you seek to admit? You seek to admit Voltaire. You would admit Voltaire, and that is a specimen of your liberality. Voltaire was no taciturn unbeliever. He was the author of that phrase which goes to the heart of every Christian, and of many a professor of religion who is not a Christian—'*Ecrasez l'Infâme*.' Voltaire would not have had the slightest difficulty in taking your oath; and yet that is the state of the law for which you are working up the country to madness." (Loud ministerial cheers.)

Speeches followed varying between imbecility and commonplace; and on the debate being again adjourned, it was re-opened (1st May) by Churchill in a speech of characteristic scurrility.

"The personal supporters of the representative of Atheism," said the noble Lord, "were the residuum, and the rabble, and the scum of the population. The bulk of them were men to whom all restraint, religious, moral, or legal, was odious and intolerable."

An effective reply to other parts of the speech was made by Mr Labouchere, who incidentally made the startling revelation that to his knowledge there were several members who had never taken the oath at all, having signed the roll, but missed swearing in the scramble for the Testaments. At length, on a third adjournment, the question came to the vote. Northcote made an ignominious speech, in which he defended himself on the point of having formerly urged that special legislation was the right course for the Government to take. He admitted that he had said so, but contended that saying so did not commit him to voting for that course when taken. The positive part of the argument was worthy of the negative. But bad as the pleading on the Tory side was, it had with it a majority of votes. On the division there voted only 289 for the second reading, and 292 against. Irish and renegade Liberal votes had just turned the scale; and it was noted that in the majority there voted several members too drunk to walk straight without support.^[180] The result was received with a positive frenzy of delight by the Tories and their Home Rule allies, all alike shouting that they had "beaten Bradlaugh." "The Irish have beaten Bradlaugh," was the cry of Mr Sexton. The Liberals who voted with the majority were the three Hon. Fitzwilliams of Yorkshire, Sir Edward Watkin,^[181] Dr Lyons, Messrs Guest, Nicholson, and Torrens, and Mr Jerningham, a Roman Catholic, who had owed his recent election for Berwick mainly to his having promised to

support Bradlaugh's claim to sit, and who all along broke his word in the House.^[182]

Bradlaugh without hesitation took his usual course, with a difference. He sent a letter to the Speaker, asking to be called to the table in the usual way to take the oath, and, in the case of that course being declined, to be heard at the bar. On 4th May he duly re-presented himself at the bar, and the letter was read by the Speaker. Northcote moved as usual that Bradlaugh be not allowed to swear; and Mr Labouchere moved that he be heard at the bar, which being allowed, he made his Fourth Speech at the Bar. It was comparatively brief, tersely repeating the old pleas, and the old protest—

"I submit that any hindrance which is not prescribed by law is an act which in itself is flagrantly wrong, whoever may commit it, and that the mere fact that a majority of voices in one Chamber may prevent a citizen from appealing to the law in no sense lessens the iniquity of the illegal act, and that history will so judge it, whatever to-day you may think it your right and your duty to do."

After disposing of the old falsehood that the late Liberal whip had recommended him to the Northampton electors, he remarked:—

"I have always regarded the Liberal party as standing in the way of my election, rather than as in any way helping my return. This, however, I submit, was matter unworthy of this House. No such consideration has ever entered at any time into the discussion of any other candidature. I submit that a great House, which claims the powers of one of the highest courts of these realms, should try to be judicial."

Again he exposed the persistent lie that he had "paraded his views," pointing out that even when, at official request, he named the statutes under which he claimed to affirm, he did not in law profess Atheism, since a Theist was legally incompetent to swear if he did not believe in future rewards and punishments, and such Theists were only entitled to affirm under the Acts under which he claimed. Again he protested that he had never uttered his opinions in the House.

"Under great temptation I have refrained from saying a word which could wound the feelings of the most religious, although I have heard within these walls, within but a few hours, language used by one who had declared his religion which I should have felt ashamed to use in any decent assembly."

This referred to an exhibition by Callan, the Catholic henchman of Cardinal Manning, who had repeatedly appeared in the House drunk, and who, in the division of the 3rd, had used such "filthy and blasphemous" language towards another Irish member who proposed to vote for Bradlaugh, that he had to make a formal apology to prevent the matter being raised. On 30th

April, in the adjourned debate, another Irish member, M'Coan, had read some of the false quotations compiled by Varley, and, on being challenged, impudently asserted that Bradlaugh had never repudiated them. A third Irish member, Mr O'Brien, had observed that he "did not believe that any greater number of persons favoured Mr Bradlaugh than would be content to go naked through the streets." Yet another religious member, an English Tory, Mr Ritchie, had declared that the Affirmation Bill would be "the triumph of Atheism and Socialism," and further quoted to the House, as words used by Bradlaugh, words which he had never used, and which were described in the very document quoted as taken from a report for which he was not responsible. The "filthy book," too, had been mentioned; and on this Bradlaugh read the words of Lord Chief Justice Cockburn, hereinbefore printed, with the exculpatory words of the jury. "But all these things," he added, "although they were as true as they are false, give you no right to stand between me and my seat." His peroration was perfect:—

"I heard a strange phrase from a noble lord, that both sides had gone too far to recede. The House honours me too much in putting me on one side and itself on the other. The House, being strong, should be generous. The strong can recede, the generous can give way; but the constituents have a right to more than generosity—they have a right to justice. (Cheers.) The law gives me my seat. In the name of the law I ask for it. I regret that my personality overshadows the principles involved in this great struggle; but I would ask those who have touched my life, not knowing it, who have found for me vices which I do not remember in the memory of my life, I would ask them whether all can afford to cast the first stone—(cheers)—or whether, condemning me for my unworthiness, they will as just judges vacate their own seats, having deprived my constituents of their right here to mine." (Loud cheers.)

It remained to discuss the closing step, as usual. Mr Labouchere moved the previous question in a speech which pointedly raised the issue of the actual presence of other Atheists in the House.

"Since Mr Bradlaugh has been re-elected—since you refused to allow him to take the oath—it is well known by every member of this House that a gentleman has been elected who is of great position in the literary world; and every man who knows anything of English literature knows perfectly well that that gentleman has avowed himself to be an unbeliever in a superintending Providence as clearly as Professor Huxley himself. ('Hear, hear.') I ask, is it not monstrous hypocrisy to allow that hon. member to take the oath, and prevent Mr Bradlaugh from taking it, because you assert that three years ago he had stated within the precincts of this House that he was an Atheist?"

The member referred to was Mr John Morley, who, destined to be Mr Gladstone's most trusted lieutenant, had listened to the Premier's account of "the mischief of the age," but had taken no part in the debate. His Atheism,

or non-Theism, was as notorious as Bradlaugh's. It had been zealously used against him by the Tories in his recent election at Newcastle. The fact that he had "spelt 'God' with a small 'g'" through a whole book was known to the whole newspaper-reading public; and the Tories would certainly have been glad enough to exclude him if they could. But they knew all along that there were Atheists on their own side; and Mr Morley's case could not be raised without raising these. So the "profanation of the oath" was permitted without a murmur by the party which had declared itself incapable of tolerating such a thing; and the flagitious persecution of the avowed Atheist was recommenced all the same.

To Mr Labouchere's charge of "monstrous hypocrisy" no answer was attempted. Gladstone and Northcote with one consent ignored it. On a division, though Gladstone supported Mr Labouchere's motion (which if carried would have enabled Bradlaugh to take the oath), only 165 voted for it, and 271 against.

§ 20.

Three years had now passed since Bradlaugh first sought to take the seat to which he was alike morally and legally entitled—three years of manifold exhausting and sorely burdensome strife, of iniquitous and vile calumny, of lawless and shameful persecution, in part brutally fanatical, in part dishonest and hypocritical in the lowest degree. It had been made to embrace all who were closely connected with him. First Mrs Besant was insultingly refused leave to use the garden of the Royal Botanic Society for her studies, on the score that the daughters of the Curator used it. Later (1883) the Misses Bradlaugh were denied membership of the "Somerville" (Women's) Club on the score that their names were sufficient objection. Yet later (2nd May 1883) Mrs Besant and Miss Bradlaugh were refused admittance to the practical Botany Class at University College, London. On applying by letter, they were requested to present themselves, and then they were told in person by the secretary and the "lady superintendent" that they could not be admitted, because there was "some prejudice" against them. It seemed as if nothing short of the personal insult would suffice the officials concerned; but the Council^[183] endorsed their action at its meeting of 7th May, though the very purpose for which the College had been founded was to dispense with religious qualifications. A memorial requesting the Council

to summon an extraordinary general meeting to consider this action was signed by, among others, Professors Huxley, Bain, and Frankland, and Dr E. B. Tylor; but on the meeting being held, the medical graduates came in large numbers to support the action of the Council, greatly outvoting the others. Only nine voted against. The University College was thus committed to a course of ethical rivalry with the House of Commons, outdoing that body, however, in declining to assign any reason for its action. At the meeting Mr Justice Denman took an active part in justifying the action of the Council, and it went from him to the country that the excluded ladies had "refused to comply with the rules of the College." This was pure fiction. Mrs Besant described it at the time as a "cruel and malignant falsehood, for we complied with every condition laid down to us." Informed of his mis-statement, Mr Justice Denman made no correction. Later in the year an attempt was made to deprive of his chair a Professor of Mathematics in the South Wales University, Mr Lloyd Tanner, who was a member of the National Secular Society, and had helped the movement in support of Bradlaugh's claim. It was, however, defeated by a majority of votes.

These endless acts of persecution, parodied as they were in a thousand acts of less publicity, only roused the persecuted party to more energetic action. The Freethought propaganda was carried further than ever, and naturally did not grow more gentle. On the political side, Bradlaugh set himself afresh to rouse the constituencies, bating no jot of heart or hope. To his own constituents he offered his resignation if they wished it, and once more they emphatically refused. He accordingly issued one more "Appeal to the People," organised a series of addresses and demonstrations in the large towns, and in particular took fresh steps for overthrowing the Liberals who had helped to throw out the Affirmation Bill. Previous menaces had reduced the number of these renegades in the last trial of strength; and Torrens in particular now received hundreds of letters warning him that he need not again stand for Finsbury. In the course of a few months, Bradlaugh had addressed audiences numbering in all over 300,000, and nearly all were unanimously in his favour, while at none did the malcontents number above two per cent. In some towns, as at Halifax and Leeds, he had enormous open-air demonstrations, the numbers coming to some fifty thousand. A densely packed meeting took place in St James's Hall in July; and another Trafalgar Square demonstration was held in August, attended by some thirty

thousand men, of whom hundreds came as delegates from the provinces; and concurrently with these "constitutional" gatherings there was carried on the work of the Association for the Repeal of the Blasphemy Laws, largely conducted by advanced Unitarian clergymen, who worked with a disinterested zeal worthy of the very highest praise, considering how little of personal sympathy they could have had with the imprisoned Freethinkers.

In the way of more direct action, Bradlaugh on 5th July notified Gladstone that he proposed again to present himself to take the oath, and on the 9th Northcote interrogated the Premier on the subject. Left to do as he would, Northcote once more moved that Bradlaugh be excluded from the House until he should engage not to disturb its proceedings; and on a division 232 voted for the motion and only 65 against, Gladstone deprecating any division at all. On the next day, on receipt of the order of exclusion, Bradlaugh notified Captain Gossett, the Sergeant-at-Arms, that if Captain Gossett would say he interpreted the order to involve the use of physical force to resist Bradlaugh's entry, he would take legal proceedings to obtain a restraining injunction from the High Court of Justice against such resistance. In this way the legal question might be raised and settled without a fresh scuffle. In the House the Speaker declined to let this letter be made ground of discussion as a matter of "privilege," though he allowed the letter to Gladstone to be so treated. The Sergeant-at-Arms, however, made the requisite answer, and the action was duly begun (19th July). The Treasury defended, and on Bradlaugh's appeal the case was tried by a "full Court." It came on before Lord Chief Justice Coleridge, Mr Justice Stephen, and Mr Justice Mathew, on 7th December, the defence arguing by Demurrer to the Statement of Claim. Bradlaugh's pleading was one long argument with the judges, who followed him with great care; and on 9th February 1884 they gave their judgment, not unexpectedly, against him. The view taken was, broadly, that "if injustice has been done, it is an injustice for which the courts of law afford no remedy," which had been the contention of the Attorney-General. Mr Justice Stephen, while concurring with Lord Coleridge to the above effect, delivered a separate and very careful judgment. They could not, he said in effect, assume that the House intentionally defied the law. It must have supposed it was within the law. Then the Court could not pronounce its action illegal without hearing its reasons. But the House could not without loss of dignity give the Court its

reasons, or allow the Court to overrule them. Therefore the plaintiff, right or wrong, had no legal redress. If wronged, he must go to the constituencies. In fine, the breaking of any law by the House in its own procedure would not be illegal, or, if it were, the illegality could not be redressed by the law courts. The House of Commons might be restrained in the case of an illegal order against a stranger, but not in the case of an illegal order against one of its own members. If it erred or did injustice, it was in the position of an erring or unjust judge, from whose decision there was no appeal. The rights of the constituency of Northampton and their member were strictly legal rights; but it lay with the House to override them if it would.

Expecting this decision, Bradlaugh had already laid the new situation before his constituents, in order to have their assent to his action on the re-opening of Parliament, and once more they declared their entire confidence in him. He had also arranged with the Tories, through his colleague, to take no action in the House before 11th February, if they would take none. His course now was to go to the House on 11th February, go up to the table with Mr Labouchere and Mr Burt as his introducers, and once more administer the oath to himself.

The Speaker gave the customary order to withdraw, and Northcote, after stating that Bradlaugh had not taken the oath according to the statute, absurdly moved that he "be not allowed to go through the form of repeating the words of the oath prescribed by the statutes." Then ensued the customary miscellaneous debate. Gladstone at much length suggested that there should be no division. Mr Labouchere offered to agree if Northcote would limit his motion to the time within which it would be possible to obtain a legal decision on the legality of Bradlaugh's latest act of self-swearing; but Northcote would not agree, and Mr Labouchere proceeded forcibly to argue the point, not only declaring the act to be in his opinion legal, but adding:—

"I confess that, for my part, I do regard these words of the oath [which Bradlaugh had called an unmeaning form] as an utterly unmeaning form—(Opposition cries of 'Oh, oh')—utterly and absolutely an unmeaning form. To me they are just the same superstitious incantation—('Hear, hear,' laughter, 'Oh, oh,' and 'Order')—as the trash of any Mumbo-Jumbo among African savages. (Renewed laughter, cries of 'Oh, oh,' and 'Order.')

Why do hon. gentlemen say 'Oh, oh'? Are they aware that there are many in this House who regard these words as a blasphemous form? ('Hear, hear.')

I say I regard them as an unmeaning form."

From this point at least, if not before, the proceedings against Bradlaugh in the House may without fear of contradiction be described as an indecent farce. His colleague had in the most aggressive fashion, and within the House, declared the oath to be in his opinion a superstitious, barbarous, and senseless incantation. Mr John Morley, as Positivist, had taken the oath without contradiction. And before either of these episodes Mr Ashton Dilke, whose vacated seat for Newcastle Mr Morley obtained, had declared in the House, in course of debate, that he was without belief in the reigning religion. Bradlaugh, who heard the avowal, remarked on the stilled surprise with which it was received. But no one ever sought to challenge the right of Mr Dilke, Mr Morley, or Mr Labouchere to sit in virtue of having taken an unbelieving oath. The Tory talk in the House of "profanation" is thus stamped once for all as a tissue of the worst hypocrisy; and the Tory leader and all his men stand convicted of a course of dissimulation as cowardly as it was shameless. They would attack the "unpopular" man; they would not obstruct Mr Morley, since that would bring up the question of Tory Atheism; they would not proceed against Mr Labouchere, since he was likely to publish in his journal the names of some of the Tory Atheists.

Gross as it had become, the farce went on. Forster, who now spoke on the subject for the first time, gave a touch of dignity to the debate by protesting against Mr Labouchere's remarks on the oath (though without proposing to have him proceeded against), and saying, as Gladstone and others had said before, that the opposition to Bradlaugh was one of the greatest blows against the cause of religion that had been struck for many years. Northcote, making no comment whatever on Mr Labouchere's hardy avowal, briefly explained the force of his motion; and after this irregularity the debate grew more and more confused. It was known that Bradlaugh meant as before to vote in the division; and the Speaker was repeatedly appealed to to prevent it. He declared he had not the power; and Mr Healy—in one of a series of grossly insolent speeches, in which he spoke of "the Government, Bradlaugh & Co."—moved immediately after the division, before the numbers were announced, that the vote be expunged. After much squabbling, the House divided on this point, when there voted 258 Ayes and 161 Noes. Bradlaugh's vote with the Noes was thus "disallowed;" but after the voting on the original motion had been stated—280 Ayes and 167 Noes—Mr Labouchere announced that Bradlaugh had voted with the Noes on

the motion to expunge his previous vote. The farce was thus pretty complete.

Northcote then made his usual motion to exclude Bradlaugh "from the precincts of the House until he shall engage not further to disturb the proceedings of the House." Again the debate broke out. Mr Labouchere offered to undertake that if the motion was withdrawn Bradlaugh should not disturb the proceedings until he had obtained a legal decision on this last oath-taking; and Gladstone and Bright pointed out the hardship and indignity of excluding Bradlaugh from the very library and lobbies of the House; but Northcote, swayed as usual by the worst of his followers, pressed his motion, disregarding Mr Burt's final repetition of the undertaking that Bradlaugh should not disturb the proceedings till his law case was settled. On a division, 228 voted for the final indignity, and only 120 against. The farce had become as ignoble as meanness could make it; and Northcote was admitted by most people to have fully realised the character in which he was more than once presented by the caricaturists—of pantaloons to Churchill's clown in the Tory pantomime. Churchill took the lead on the following evening when, Bradlaugh having "applied for the Chiltern Hundreds," Mr Labouchere moved that a new writ be issued for Northampton.^[184] The hereditarily noble lord saw that if Bradlaugh were re-elected they would be no further forward; and his object was to exclude him permanently. He had lately given notice of a motion that Bradlaugh be declared incapable in perpetuity of sitting, but had dropped it as hopeless. He now "moved the adjournment of the debate." A straggling and noisy debate ensued, in which Mr Healy was pronounced disorderly by the Speaker for his interruptions of Northcote, whose ally he had been. On a division, only 145 voted for the adjournment, and 203 against. Then more discussion as to whether the Chancellor of the Exchequer had the right to grant the Chiltern Hundreds, the motion for the new writ being finally agreed to.

Unseated for the third time since his perfectly valid return in 1880, Bradlaugh appealed to his constituents to elect him for the fourth time, and was received by them with if possible greater enthusiasm than ever. A new Tory candidate, Mr H. C. Richards, had been for some time in the field, and the seat was fought in the old fashion; but whether owing to the feebleness of the candidate, whom Bradlaugh generally treated with humorous

contempt, or a sense of shame among some of the local Tories, the opposition vote now fell away. The forces of bigotry had squeezed the last possible vote out of the borough, and after a short and strenuous struggle the poll (19th February 1884) ran: Bradlaugh, 4032; Richards, 3664. Bradlaugh had clearly "touched bottom," and begun to rise again. At the general election he had polled 3827, and been 695 above the highest Tory; in 1881 he had only polled 3437, a majority of only 132; in 1882, polling 3796, he was only 108 above his opponent with 3688; now he had reached a higher figure than ever, polling 368 more than the Tory, who was 24 below the last Tory vote. The Tory game was now hopeless so far as Northampton was concerned.

The badgered Northcote, goaded by his lawless following, now proposed to take the step of preventing Bradlaugh from entering the House on his new return. Learning this, Bradlaugh on the 20th wrote a letter of protest to the Speaker and the Premier, and the anticipatory course was prevented. But when on the 21st the Speaker read to the House a second letter in which Bradlaugh formally undertook (as his introducers had undertaken for him before) not to present himself at the table until judgment should be given in the test action to be laid against him by the Government. All the same, Northcote moved, amid cries of "Shame," his old resolution of exclusion "from the precincts." The Tory army had to be solaced somehow for Bradlaugh's decisive victory at the poll. Gladstone opposed, and yet again there was a miscellaneous debate, in the course of which Churchill made the worthy suggestion that the Government meant that Mr Bradlaugh was to be allowed once more to appeal to the mob, in order that not only the House of Commons might be prejudiced, but that even the courts of law might be biased by the demonstration in his favour. On a division, 226 voted for Northcote's motion and only 173 against. Bradlaugh was now denied the use of the House's library for the lawsuit pending against him on the House's behalf. He addressed to Northcote, and printed in his journal, an open letter touched with indignant contempt.

The critical part of the letter, and perhaps the special sting of some of the phrases—as, "You wear knightly orders. You should be above a knave's spitefulness"—moved Northcote to send a long defensive reply, repeating the "profanation" formula, and concluding: "The inconveniences of which you complain are inconveniences which you might, if you chose, put an end

to to-morrow"—which meant that Bradlaugh might have the use of the House if only he would undertake never again under any circumstances to try to take his seat. To this "knightly" suggestion^[185] Bradlaugh replied with perhaps too scrupulous courtesy of form, but with sufficient emphasis, and turned himself once more to the struggle outside.

§ 21.

From this point forward it is difficult to record the course of the Parliamentary struggle with the serious patience hitherto spent on the narrative. On the side of the House it had become a revolting hypocrisy, since Bradlaugh was being ostracised for what other men were allowed to do freely; and the form of legality put on in the resort to the law courts was only a new simulation. The law courts had declared that they could have no possible jurisdiction over the House in such matters however it might break the law, and still the House was formally proceeding to obtain from the law courts penalties against Bradlaugh for trying to fulfil the law when the House hindered him. The House knew quite well that if it had even declared him entitled to affirm under the existing law, no court would have decided otherwise. The hostile decision was here a foregone conclusion; for *a fortiori* the courts, after their last emphatic decision, would not prevent the House from interpreting the law as to swearing in its own way. Only the strenuous energy of Bradlaugh, joined with his chivalrous belief in the ideal rectitude and jurisdiction of the judges, could have set any man in his position on a fresh legal adventure.

Begun in March 1884, the lawsuit at the instance of the Government came on before Lord Chief Justice Coleridge, Mr Justice Grove, Mr Baron Huddleston, "sitting at bar," and a special jury, on 13th, 15th, 17th, and 18th June. Against Bradlaugh were arrayed five counsel,—the Attorney-General, the Solicitor-General, Sir Hardinge Giffard, Mr Danckwertz, and Mr R. S. Wright, and the case was argued at enormous length on a multitude of minutiae as to Bradlaugh's original evidence before the first Select Committee, the practice of the House, the position of the Speaker on 11th February, the law as to what constituted the oath, the force of an oath taken by an atheist, and so on. After two delays, caused by the illness of Lord Coleridge, his summing-up, which was proportionately long and elaborate, was given on 30th June. It advised the jury that the weight of evidence was

to show that Bradlaugh was all along an unbeliever in a Supreme Being—a point which Bradlaugh argued should not have been raised—that in law a person on whose conscience an oath would have "no binding effect" was a person who could not legally take a oath; and that Bradlaugh had not taken the oath in accordance with the practice of Parliament. The other judges concurred; but Lord Coleridge having spoken of inquisitorial questions on belief in general (not those in the Bradlaugh case in particular) as "hateful" and "disgusting," Mr Baron Huddleston desired to express dissent on that head, while Mr Justice Grove said he would call them, "to use a mild term, extremely objectionable." The Lord Chief Justice, remarking that he felt strongly on the matter, gracefully agreed that his words should be "discounted" on that score.

Formally, there went to the jury eight questions, to this effect: (1) Was the Speaker sitting when Bradlaugh took the oath on 11th February? (2) Was he sitting to prepare notes for use in addressing Bradlaugh? (3) Had he resumed his seat to let Bradlaugh swear? (4) Was Bradlaugh then without belief in a Supreme Being? (5) Was he a person on whose conscience an oath, *as an oath*, had no binding force? (6) Had the House full cognisance of these matters through Bradlaugh's avowal? (7) Did he take the oath according to Parliamentary practice? (8) Generally, did he take and subscribe the oath?

The jury's answers were, in brief:—(1) Sitting; (2) Sitting to prepare notes as stated; (3) No; (4) He had no such belief; (5) Yes; (6) Yes; (7) Not according to the "full" practice; (8) Not as an oath.

Bradlaugh at once asked for a stay of judgment in order to enable him "to move for a new trial to move to enter judgment for the defendant *non-obstante veredicto*, and to move for arrest of judgment." Outsiders had supposed that the jury trial ended the matter, but it was not so. Bradlaugh wrote in his journal undauntedly: "If my constituents still give me their confidence, nothing can defeat me;" and when friends wrote that they could see no hope of good from the "wearisome and disappointing litigation," he characteristically answered:—

"There are only two weapons to defend the right with: Law and Force. As yet I try the law; and so long as I believe, as I do believe, the law to be on my side, it is to the law and to public opinion I ought to appeal. My opponents rely on force and trick. If the law was actually against me they would take away my seat by law. This they do not even try to do. They hope to weary my constituents, and to tire and ruin me in this contest. Hampden, resisting ship-money, fought more than three years in the law courts; but his wearisome litigation was not quite in vain. Wilkes, backed by Earl Temple with purse and power, struggled with the Commons through several weary years, and at last Middlesex gave him victory."

The appeal was, on the face of it, a better case than Bradlaugh had had in defending the action of the Crown. It came on, on 6th December, before the same judges, sitting "*in banc*," who had tried the action "at bar," Bradlaugh turning out to be right in his theory of the proper procedure, whereas the judges had all been avowedly in doubt. But the greater apparent force of the case as now put did not avail. Bradlaugh cogently argued that no Act of Parliament gave the least countenance to the notion that Atheists were to be disabled from swearing. The Parliamentary Oaths Act of 1866, cap. xix., enjoins on members of Parliament, with the exception only of those qualified to affirm, the taking of an oath of allegiance of uniform phrasing, thus admitting of no disability, and making an end of any disability which may be supposed to have previously existed. Yet again, an Act of 1867 expressly provided that any subject of Her Majesty, *without reference to his religious belief*, should take the oath of allegiance on taking office. But Lord Coleridge had in the previous trial fully made up his mind that "oath" must mean "adjuration made by one believing in the Deity adjured," and he early indicated that this conviction overthrew all arguments from the mere wording of statutes. On the Act of 1867 he remarked (with a discourtesy which for him was unusual, and which disappears in the report) that "a little common sense and a little knowledge of history" would have made the appellant aware that that Act was passed on behalf of a Roman Catholic judge. Bradlaugh knew the facts well enough, and capped the Lord Chief Justice's history with some more, all going to show that the wish of the legislature had then been to sweep away all religious disabilities whatever. It was all to no purpose. Lord Coleridge was rather a man of strong sentiments than a strong lawyer. He hated all persecution on behalf of religion; and on behalf of Messrs Foote and Ramsey he stated the law of blasphemy in the mildest possible way—a way to which Mr Justice Stephen, albeit a rationalist, declared he could not subscribe. But Lord Coleridge was also an emotional Christian; and though his admired friend

Arnold would readily have taken the oath without any belief in the Deity adjured, his Lordship was strongly averse to having it taken by an "aggressive" Atheist; and though he must have known perfectly well that in Parliament there had for generations been known holders of atheistic views, and that nobody proposed their exclusion, he yet chose to assume that all laws as to oath-taking were meant to exclude oath-taking by Atheists. One or two notable passages took place between him and the appellant. Lord Coleridge, in his nervous irritation at being persistently argued against, once so far forgot himself as to say Bradlaugh was wasting time. The charge was too bad: Bradlaugh was one of the closest and concisest of pleaders, as many judges had admitted; and at a later stage in this trial the Lord Chief Justice took back his words. At another point he somewhat impatiently deprecated a particular line of argument, and Bradlaugh quietly answered, "My Lord, I must fight with what weapons I can." Once or twice more his lordship was rather idly petulant,^[186] but this was transient; and he was very genial when, on his remarking, "It may be, of course, that you are right and we are all wrong," the appellant answered, "With the utmost respect, my lord, that is practically what I am going to contend."

Justice Grove, an amiable and fair though unsubtle judge, argued very courteously (while incidentally avowing that his sympathies were on the side of minimising oaths) that the legislature could not be held to have enacted an oath in the tolerant expectation that it would be taken by some men for whom the adjuration had no meaning. That was no doubt a perfectly reasonable point for a judge to put; but, on the other hand, nothing is more common than the plea of judges—it was made by Justice Grove himself—that they have only to do with the law as it stands; and if in this case they were to look into the probable state of mind of the legislature, it was plainly their business to take into account all the well-known facts of the case, including the notorious fact that members known to their fellow-members to be Atheists or "Lucretian" Theists had repeatedly sat in the House.

Their lordships, of course, repeated their former decision—Lord Coleridge giving the very inaccurate reason that no "new point" or "new argument" had been raised—and the rule for a new trial was refused. Immediately Bradlaugh appealed; and the case was heard (on the motion for a new trial, and, secondarily for seven days' time to move for arrest of judgment after

the first motion should have been adjudged upon) in the Court of Appeal on 15th December by Lords Justices Brett (Master of the Rolls), Cotton, and Lindley. These judges heard the appeal with great patience, and on the 18th gave judgment to the effect that they could not grant a rule for a new trial on the ground that the verdict was against the evidence. But on "many other questions in the case which it is not improbable might all be raised upon the appeal by way of arrest of judgment," they thought it right to grant "a rule *nisi* to show cause upon all the other points taken by the defendant, upon condition that the appeal in arrest of judgment is brought on at the same time." The argument on this rule was taken on 26th January 1885, when the Attorney-General and Sir Hardinge Giffard argued (a point which had been left open before) that no appeal lay, the case being technically a criminal one. This plea, after voluminous argument, was overruled—the point being settled by Bradlaugh's references to portions of the Crown Suits Act which the other side had not dealt with. Then came the argument on the main issue. To a lay listener Lord Justice Brett seemed to give a more strictly judicial attention to the problem than did any of the judges who had dealt with it hitherto, and never was the subject more fully illuminated. In a previous trial Justice Grove had noticed the anomaly that whereas an oath or affirmation was set up as a means of securing true answers, the judge had to satisfy himself beforehand on a witness's bare word as to the nominally all-important point whether an oath would be "binding on his conscience." Bradlaugh now brought out another no less precious anomaly, namely, that the Speaker, at the opening of Parliament, must of necessity administer the oath to himself; and that the first forty members *must positively break the law*, seeing that they swear while there is not a "full House" sitting. Another curious issue was raised by the Court. An unbeliever could certainly be punished for perjury; how, then, could his oath be "no oath," when perjury expressly meant false testimony given on oath? Sir Hardinge Giffard's answer was that no man may "take profit from his own wrong." It might have been more dramatically put that the Christian law says to the Atheist, "Heads, we win; tails, you lose."

Despite the fairness of the hearing given, it soon became apparent that the Master of the Rolls held that "religious test" could only mean test as between different forms of religion, and that to exclude an Atheist from civic rights is not to impose a religious test. Now, the English tests of last century were as between sects, not as between religions; that is, they were

denominational; that is, political. Still, they were always known as religious tests. It would surely follow that "religious test" meant any test connected with religious matters. In that case Lord Justice Brett's distinction was completely arbitrary and fallacious. But on grounds such as these, among others, the judgment was given (28th January) against the appellant. It was certainly an able judgment—as able as it was lengthy. It raised, among other things, the exquisitely complicated anomaly that Bradlaugh could satisfy a judge on his bare statement that he was an Atheist, and yet, after affirming on that ground, could be solemnly examined as to whether he was an Atheist. And the judge very explicitly laid it down that if a non-believer in a falsehood-punishing Deity were to take the oath unopposed, with all the customary formalities, he could on proof be sued for the penalty of £500 for every vote he had given. This meant, if anything, that the Atheists or Agnostics then sitting in Parliament were all so liable.

Lord Justice Cotton, with much simplicity, laid it down that the law of England "undoubtedly" was that if a person in the "unhappy position" of not believing in a lie-avenging Deity took the oath, it was not a real oath. And Lord Justice Lindley, with a certain cynical candour, dealt with Bradlaugh's main argument, that it was absurd to hold that a man is by law incapable of doing that which the law requires him to do. "I agree in the absurdity," said his lordship, "but not in the argument adduced from it." He held that the only solution would be that the defendant "could not be properly elected."

"It is a mistake to suppose," said Lord Justice Lindley further, "and I think it is as well the mistake should be known, that persons who do not believe in a Supreme Being are in the state in which it is now supposed they are. There are old Acts of Parliament still unrepealed by which such people can be cruelly persecuted. Whether that is a state of law which ought to remain or not is not for me to express an opinion upon; but having regard to the fact that these Acts of Parliament still remain unrepealed, I do not see my way to hold judicially that this oath was not kept alive by Parliament *for the very purpose, amongst others, of keeping such people out of Parliament.*"

This last deliverance is memorable on several grounds—memorable as showing the need, from the point of view of one more judge, for a repeal of the brutal laws of the past against heresy; and further memorable as showing once more how ready are judges to rest alternately on mutually exclusive principles of interpretation. On the point as to whether the case was one in which an appeal lay, Lord Justice Lindley grounded his opinion on the fact that there was not to be found in the Judicature Act "the slightest indication of any intention on the part of the legislature" to prevent appeals

in cases which were "previously made civil proceedings for the purposes of appeals." On the same principle, he ought to have looked whether there were the "slightest indication of any intention on the part of the legislature" in modern acts to exclude all Atheists from oath-taking. There is no such indication. Not a word is said of excluding unbelievers. On the contrary, it was only with difficulty that the legislature could be got to meet the fact that there *were* many Atheists who at times had to give testimony in courts of law. Had the legislature really desired to exclude all Atheists from oath-taking it would surely have said so, knowing as it must have done how common unbelieving oath-taking had been. And all the judges, as individuals, must have known perfectly well that privately known Atheists had sat in every Parliament for generations. Such are the conditions of legal judgment on questions of legal principle.

Bradlaugh at once gave notice of appeal to the House of Lords; and, all things considered, he had as good chances of success as ever he had. But this litigation had now reached its climax, and the appeal did not come off. The struggle had gone far towards completing its fifth year, and relief was almost within sight. It was not to come from legislation. Mr Hopwood had undertaken to introduce an affirmation Bill grappling with the whole position, which was not merely an affair of the admission of Atheists, but of providing also for certain religionists who, not being Quakers, Moravians, or Separatists, were not entitled to affirm, though strongly objecting to the oath. And there were yet further matters to be dealt with, as the position of freethinking jurors. But the saving credit of passing such a measure was not in store for the "Liberal" Parliament. At the Liberal Conference on Reform in 1884, presided over by Mr John Morley, a resolution had been unanimously carried in favour of Northampton's right; and at the Conference of the National Liberal Federation in 1885, Mr Hopwood's Bill was unanimously approved of; but though this action was backed up by countless resolutions of Liberal and Radical Clubs, and hundreds of petitions,^{[\[187\]](#)}

the Anglican and Roman Churches set to work as zealously as ever to oppose, the Liberal Government would make no attempt to grant facilities in the House, the Bill was blocked, and nothing was done while that Government remained in office. But when, on their being defeated at their own wish on the Budget, a Conservative Ministry took office, Bradlaugh at

once presented himself (6th July) to be sworn. He might have presented himself before the re-elected Tory ministers, in which case they could not have taken part in the proceedings against him, but he treated them with the chivalry they never showed to him, and allowed the ministers first to be sworn in. The new Chancellor of the Exchequer, Sir Michael Hicks Beach, took up the matter on the lines of Northcote, who was now made a peer, and moved that Bradlaugh be as before excluded from the precincts. Mr Parnell and Mr Healy went further, appealing to the Speaker to have Bradlaugh (who was standing below the bar) wholly excluded from the House at once, before the motion was debated. To this stretch of malice the Speaker could not accede, and the debate proceeded in the usual way. Mr Hopwood moved an amendment declaring legislation to be necessary "on wider grounds than the interests of a constituency." Gladstone, though deprecating any general legislation on the subject, supported the amendment. Only 219 voted for it, however, and 263 against, the majority again including many Home Rulers and a number of Liberals, while many more Liberals had absented themselves. Against most of these, vigorous measures were taken in the constituencies, which now had before them the imminent prospect of a fresh general election. In this election it had been arranged that Bradlaugh should stand for the new borough of East Finsbury, London, as well as for Northampton, on the understanding that if elected for both he should sit for Northampton. This was a generous attempt on the part of the Finsbury Radicals to strengthen his case; but other Radical candidates being less generous, he finally withdrew from the Finsbury candidature to avoid a split in the Radical camp. In Northampton the fight had little excitement in it, the conclusion being foregone. Mr Richards at one of his meetings claimed credit for avoiding personalities, and mentioned that he had in his pockets letters from several persons offering to flood Northampton with slanderous tracts. He did not add that that device had been played out, and had become just a little unsafe besides. Towards the election day virulent placards were resorted to, from force of habit. Bradlaugh did not post a single bill. The poll (25th November) stood:—Labouchere, 4845; Bradlaugh, 4315; Richards, 3890; Bradlaugh thus standing higher than ever before. The difference between him and his colleague was represented by 366 plumpers for Mr Labouchere, and 300 votes split with the Tory, less 126 plumpers for Bradlaugh, and 10 split for him and the Tory. The news was received everywhere with special enthusiasm. But still more significant was the

havoc wrought among those pseudo-Liberal members who had turned the scale against Bradlaugh in the House. Mr Samuel Morley had been forced to retire from Bristol, Mr M'Cullagh Torrens from Finsbury, the Hon. H. W. Fitzwilliam from Dewsbury, Mr Jerningham from Berwick, and then later from Blackpool, the selection being cancelled before the election; Mr George Courtauld, Unitarian, from Maldon, Sir Alexander Gordon from Aberdeenshire, Sir Thomas Chambers from Marylebone, and Baron de Ferrières from Cheltenham. These were all opposed by former supporters on the express ground of their votes in the Northampton question. Others who went to the poll, again, were defeated on the same score. Mr Norwood at Hull was defeated by the running of a special Radical candidate in protest against his anti-Bradlaugh action in the House. Mr A. P. Vivian, a frequent absentee on the question, was defeated in North-west Cornwall, and Sir W. Charley at Ipswich. Mr B. Whitworth, formerly of Drogheda, chosen and then dismissed at Hackney, was defeated at Lewisham. Prominent Tory and other enemies suffered in a hardly less degree. Newdegate, after beginning his candidature, withdrew rather than meet certain defeat; Sir Henry Drummond Wolff was defeated, so was Earl Percy, so was Sir J. E. Wilmot, so was Mr Warton, so was "O'Donnell." Dr Lyons collapsed at nomination in Dublin. M'Coan was thrown out at Lancaster, Mr Nicholson at Petersfield, and Mr Denzil Onslow at Poplar. Of new Tory candidates who had been specially offensive in their hostility, Mr Hammond was beaten at Newcastle, Mr Bruce Wentworth at Barnsley, Mr Holloway at Stroud, and Mr Edwardes-Moss at Southport. There was no mistaking the "Bradlaugh element" in these cases; and though some Radicals who had stood by him were also defeated, as Mr Hopwood and Mr Hugh Mason, that was solely owing to the hostility of the Irish vote, then being manœuvred by Parnell to weaken the Liberals. Much of the work of destroying the renegade Liberals had been done by Bradlaugh in person in his lecturing tours. "I think I have settled a round dozen of them," he remarked some time before the election. One former Liberal member, who had been his persistent enemy in the House, finding defeat staring him in the face through Bradlaugh's action, came to him in his hotel when he was lecturing in the constituency concerned, and humbled himself to ask for mercy. Bradlaugh gravely refused. "You are very hard," whined the petitioner, who had thought fit to work iniquity with the majority for five long years, with as little thought of justice as of generosity.

The tables thus turned, it is probable that in the first Parliament which assembled in 1886, an Affirmation Bill could have been carried in the teeth of the Tory minority, seeing that even some Tory members had had to pledge themselves to support such a Bill; and Mr Serjeant Simon had arranged to re-introduce Mr Hopwood's. But the settlement was precipitated in an unexpected way. Bradlaugh wrote Sir Michael Beach asking how the Government would treat the Bill if introduced, and received a non-committal answer. Soon afterwards it was announced that communications had passed on the subject between Sir Michael and the new Speaker-elect, Mr Peel; and Bradlaugh wrote to ask Sir Michael what they were, but was refused the information, whereupon he strongly protested. The mystery was only cleared up when the new Parliament assembled on 13th January 1886. [188] The new Speaker had determined to reverse the policy of his predecessor in the Bradlaugh case, and the Tory Cabinet in vain sought to dissuade him. On the opening day, before any members were sworn, he informed the House that he had had two communications—one from Sir Michael Hicks Beach, and one from two other members, Mr Raikes and Sir John Kennaway, appealing to him not to let Bradlaugh take the oath. To these requests he flatly declined to accede. In the former Parliament, he pointed out, the Speaker had taken no independent authority on himself, but had always acted on the instructions of the House. "We are assembled," he went on,

"in a new Parliament. I know nothing of the resolutions of the past. (Cheers.) They have lapsed; they are void; they are of no effect in reference to this case. (Renewed cheers.) It is the right, the legal, statutable obligation of members, when returned to this House, to come to the table and take the oath prescribed by statute. ('Hear, hear.') I have no authority, I have no right, original or delegated, to stand between an hon. member and his taking of the oath. ('Hear, hear.') I have been further asked whether, when the House is completed, and after a quorum has been constituted, it would be competent for a motion to be made intervening between the hon. member for Northampton and his taking of the oath. I have come clearly and without hesitation to the conclusion that it would neither be my duty to prohibit the hon. gentleman from coming, nor to permit a motion to be made standing between him and his taking of the oath. (Opposition cheers.) The hon. member takes that oath under whatever risks may attach to him in a court of law. ('Hear, hear.') But it is not for me—I respectfully say it is not for the House—to enter into any inquisition—(cheers)—as to what may be the opinions of a member when he comes to the table to take the oath. I am bound, and the House is bound, by the forms of this House, and by the legal obligations and rights of members. If a member comes to this table and offers to take the oath, I know of no right whatever to intervene between him and the form, of legal and statutable obligation. (Cheers.)"

The Chancellor of the Exchequer in vain sought to make a declaration: he was called to order. Bradlaugh was duly sworn, with a Tory Ministry in nominal command of the House. The protesters against "profanation" had to stand by and see what they had defined as profanation "solemnly"—as the law courts defined solemnity—authorised by the supreme authority of the House. They had refused to permit affirmation; their oath was now, on their own declaration, outraged and trampled upon. At the same time, the whole past procedure of the House, the whole course of the last Speaker, was overruled and impeached as unwarrantable. The House had drunk its cup to the dregs.

§ 22.

The Tory press naturally solaced itself by repeating the well-tried falsehood that Bradlaugh had originally refused to take the oath, and declaring that he had now eaten his words. On 26th January, dissatisfied with that unsubstantial comfort, Mr Raikes asked the Government if they would prevent Bradlaugh from sitting and voting until he had proved his capacity to take the oath, or until the judgment of the Court of Appeal was reversed by a higher tribunal. Sir M. Hicks Beach formally replied that he was not prepared to take action, and no action of the kind was ever taken. Soon the Tories, being in the minority in the House, were turned out and the Liberals installed in their places. Appealed to to enter a *stet processus* in the action in which Bradlaugh had appealed, they timorously declined, dreading Tory comment. But when the Tories later in the year were returned to power by the election following on Mr Gladstone's defeat on his first Home Rule Bill, and Lord Randolph Churchill became leader of the House of Commons, that versatile personage, desirous of placating if possible so formidable and so avowed an enemy as Bradlaugh, gave the relief which the Liberals had refused. Bradlaugh was thus finally secured in his seat by the capitulation of one of the most unscrupulous and offensive of his old enemies. Churchill's allusion in the House to Bradlaugh's supporters as the "scum and dregs of the nation" had elicited from Bradlaugh, in connection with his agitation against perpetual pensions, a short tractate on the manner of the founding of the Churchill family, which struck his lordship in a fashion he had not been used to at the hands of Gladstone, or even of Mr Chamberlain; and he desired to make peace. He did not obtain it.

But not only did the Tory party, as represented by its new leader in the Commons, thus give up all it had contended for: it was finally to make personal submission to the man it had wronged. The Affirmation Bill introduced by Mr Serjeant Simon never reached a debate; and it was left to Bradlaugh to carry one on his own initiative in 1888, by the votes of the men, Tory and Parnellite, who had defeated former Bills. Last of all, it was in the same Tory House of Commons, while Bradlaugh lay dying, that there was carried the resolution he had repeatedly put down, expunging from the journals of the House the old votes for his exclusion, even as the resolutions against Wilkes had been expunged. If the act was one of repentance, it the more certainly implied an infamous wrong done.

There were certainly many reasons why the Tory party should repent. They had "struck for themselves an evil blow," though the sudden rising of the Home Rule issue served to obscure the consequences of their course in the Northampton struggle. It was impossible that as a party they could have gained in credit by it either among the masses or among thoughtful and earnest men. Nothing was more notorious than that nine-tenths of the leading Bradlaugh-baiters were the least worthy men in the House. Wolff, described by Bradlaugh as a noted retailer of *choses grivoises*; Churchill, the noisy and reckless charlatan of the new Toryism, "the Demosthenes of bad taste and vulgar vehemence;"^[189] Tyler, the company-promoter, hooted by the shareholders he had impoverished; "O'Donnell," the turncoat; Callan, the drunken; Newdegate, besotted with more fumes than those of fanaticism; Fowler and Warton, the gross and blatant; Healy, the ever-rowdy—these could not gain good repute from alliance with types like Mr Samuel Morley, and could not be made respectable by the leadership of Northcote, whom they hustled and humiliated. It is not possible to say with entire certainty what had been the general view of Beaconsfield on the case while he lived; but it is difficult to believe that he could have taken any satisfaction in seeing the most prominent function of the new Toryism made out to be the rowdy resistance to the sitting of a freethinking member, and the insolent refusal of a constituency's rights.

There can be no doubt, I think, that one effect of the whole episode was to create a new and widespread intensity of antagonism to the prevailing religion and to the Conservative cause. Men who had before regarded Christianity with indifference or disfavour or contempt, as a delusion, began

to detest it as a living fountain of injustice; and men who had seen in recent Conservatism a policy of diverting the people's attention from home needs by foreign adventure, now saw in it a great machinery for working iniquity within the State. The party which had been seen making gun-wadding of the decalogue in its wars of aggression had now made a crass Semitic Theism the pretext for a dastardly effort to crush one man, partly by way of embarrassing the opposite side; and the party which denounced "disloyalty" took sides with the disloyalists to the same end. Of course, the heat of the immediate struggle did not last on one side any more than on the other; above all, it did not last with Bradlaugh himself; but it is certain that thousands of Freethinkers date their conversion from the time of Bradlaugh's fight with the bigots; and I fancy there are still many who preserve the impression they then gained of what Voltaire meant by "the infamous," and the purpose they then formed to make war on it throughout their lives. As regards Toryism, too, though "each day brings its petty dust, our soon-choked souls to fill," the adherents of that cause may rely on it that for many a citizen, for many a day to come, their declarations of concern for justice and right, in any case whatever, are made derisory by memories of their five-year-long course of gleeful injustice to the Atheist. Time brings its revenges. If Liberals in mass have deserved ten years of frustration, in an effort to do right, by their former treatment of Ireland, Tories in turn have wrought for the cup of defeat they have tasted, and are yet to drain to the dregs. And the Irishmen who, claiming freedom for themselves, shamelessly withheld from another even the rights they already enjoyed—they, too, have paid and are paying for their misdeeds, despite their avowed repentance.

As for the Conservative party, despite its practical recantation, it would be too much to say that there is any real concern among the mass of its members for the five years' carnival of injustice over Bradlaugh. I have gone through Mr Lang's "Life of Northcote" without finding one word of regret for the whole shameful business, though he quotes a passage in which Northcote expressed in his diary a mild deprecation of the ruffianism of some of his followers in the matter. But, indeed, the capacity to do the thing as it was done excludes the capacity to be ashamed of it. Toryism is transmuted, but does not repent. At best, new Tories may at times deprecate the action of their predecessors.

§ 23.

Whatever be the sympathies with which the matter is looked at, there is no gainsaying the historical fact that Bradlaugh's struggle is a decisive episode in constitutional history. It will always rank in English annals with the partially parallel case of Wilkes, dating a hundred and twenty years earlier; and it will be a very bold or a very blind majority which ever again attempts to exclude from the House of Commons a duly-elected member against whom no legal objection lies. Of Wilkes, Mr Gladstone has declared that whether we choose it or not, his name must be enrolled among those of the great champions of English freedom. If that be so, Bradlaugh's name must stand still higher, in that it represents not only the principle of the rights of constituencies, but the principle of freedom of conscience in the last and most serious issue. And in every moral respect, Bradlaugh's case stands above that of Wilkes. The point in which they best compare is their courage; but even the undoubted courage with which Wilkes faced an unpopular king and unpopular ministers was a less rare thing than the fortitude which faced the hate and the slander of half of the more articulate part of the nation. For the rest, though he had the merit of geniality, Wilkes was a poor creature enough in many ways—a rascal towards his wife, a leader of ribald orgies, a prurient poetaster, a briber of constituencies, while professing to be uncorrupting and incorruptible. He was a blasphemer in the strict and really bad sense of a man deriding a Deity in whom he did not profess to disbelieve; he wrote and privately printed indecent verse for the indecency's sake. And if he is to be remembered for courage in that he resisted an unpopular Ministry with a great and aristocratic party to support and salary him, much more so is Bradlaugh, who was scouted and insulted by many even of the Liberals that felt constrained at times to vote on his behalf, and who had little save poor men's help in his long and costly fight. It is significant of the worth of common opinion that Wilkes was much more readily forgiven for real and ill-meant and undisputed obscenity than was Bradlaugh for the earnest and scrupulous defence of true doctrines infamously miscalled obscene. On the point of politics, Wilkes is hardly more justly notable than on the point of character. He had no higher mission than to attack an autocratic and unpopular minister; his very animus was partly the evil and vulgar spirit of racial animosity; he had no high purpose of political reform. After unwilling drudgery in a public office of dignity, he

found his chosen reward in a semi-sinecure. Bradlaugh stood for great causes in the world of thought as well as in the world of action: he was a thinker and a high-minded reformer where Wilkes was at best a high-spirited adventurer.

And as Wilkes was the worse man, so he had the worse case. When elected in 1768, he was legally an outlaw—albeit under an unjust sentence; and his supporters signalled his success by a riot, breaking windows wholesale, mobbing and insulting leading opponents. Afterwards he was elected while a prisoner. Certainly Parliament, in his case, took a more courageously illegal course than it did in Bradlaugh's, not only refusing to admit him, but declaring him disqualified, voiding his seat, and declaring Luttrell member when elected by the minority. The jugglers of 1880-85 kept a member out of his seat without daring to declare the seat therefore vacant, though the law courts hinted not obscurely that an Atheist was *hors la loi* in respect of the chief civic rights. Certainly in the case of Wilkes the King was known to be the main mover in the breaking of the law, and so was more openly putting the liberties of the whole people in jeopardy. But the fact that in Bradlaugh's case the tyrants were bigots and partisans, representing masses of electors, and the wronged man a heretic, only made the danger the more profound. The final triumph of the law-breakers would in his case have been a worse blow to freedom than it could have been in that of Wilkes, just because so many hundreds of thousands of bigots would have rejoiced in it. It would have been more dangerous to democracy, because undermining democracy from within, whereas the ostracism of Wilkes was an ostentatious blow from without. The "many-headed tyranny of an unscrupulous senate" is a more sinister thing when it rests on the fanaticism of thousands than when it is the mere subservience of time-servers to the sovereign; for if the principle were to be practically established that a man may be politically ostracised for theological heresy, the axe would be laid to the root of a greater thing than political privilege. What the Inquisition did for Spain, brainless bigotry might have begun to do for England. It had become clear that the law courts would not give any decision which struck at the freedom of the House of Commons to act as it pleased, our constitution being thus seen to lack the safeguard set up in the Supreme Court of the United States; though the House went through the form of arguing its case before the judges. The value of their decisions was seen when, after Bradlaugh took the oath before Mr Speaker Peel, he was

allowed to sit in peace though he had been declared legally incapable of taking an oath. Evidently the principle of legality had little remaining validity. It may be, nevertheless, that the time is not yet come for the majority of Englishmen to realise fully how much was saved to their heritage by Bradlaugh's long stand against nefarious faith. The language of sincere conviction still blends with the language of cant in calling his opinions "peculiar" or worse; and half of those who stood beside him on the political issue were anxious in avowing their repudiation of his doctrines and his personality. But even in the few years between his struggle and his death there was a change; and to say that he has not yet had his full share of honour is only to say that his fame will be at its clearest in the larger air of a more enlightened day.

CHAPTER IV.

CLOSING YEARS.

1886.

Admitted at last to the seat for which he had fought so long and so hard, Bradlaugh set himself strenuously to work to make up for lost time. With nearly every quality that goes to make a good legislator, and with the most abundant political experience from his youth up, he had reached his fifty-third year before he sat in his place in Parliament by secure tenure. He had fought for that place, in all, eighteen years—chronically during twelve of them, against constitutional opposition; continuously through six of them, against gross injustice. And in these last six years, unhappily, his life went very much quicker than the years. Those who had lived by him through it all recognised that it had made him an old man. A certain aging effect seems to have come from the terrible attack of typhoid fever in New York in 1875; but still in 1880 his portraits show him in his prime, the face mature without being furrowed. In 1886 he looked far more than ten years older. The long battle had left its dire marks.

No private member in his prime, however, went to work in the Parliaments of 1886 with such energy. Before January was out he had obtained leave to bring in his Land Cultivation Bill,^[190] which was backed by Mr Joseph Arch, Mr Thomas Burt, and Mr Labouchere; and he was extorting from the officials exact details as to the Perpetual Pensions, against which he had already for years agitated outside. In March he obtained from the new Liberal Ministry the appointment of a Select Committee on the subject. The debate on Mr Jesse Collings' amendment to the Address, calling for labourers' allotments—the amendment on which the Tory Ministry were thrown out—gave him his first opportunity of striking a blow at the party which for him was identified as much with tyranny in general as with tyranny towards himself. In February he gave the first notice of his intention to raise a question which he later pushed far—that of market rights and tolls; his first move being to call for a return giving minute

particulars as to the state of the case in each municipal borough in England and Wales. And in the same month he was vigorously pressing his proposal for a Labour Bureau on the lines of that of Massachusetts—a proposal to which the Government promptly acceded. In March he took a step abundantly justifiable on public grounds, in moving the reduction of the monstrous vote of £12,000 to Sir H. D. Wolff for six months' unprofitable service abroad, and £3000 more for telegrams in connection with his mission. And he was further able to connect another enemy, Sir Henry Tyler, with systematic breaches of the Truck Act on the part of the Rhymney Iron Company, of which he was a director. Bradlaugh characterised the action of the Company as part of "an infamous system by which poor men are defrauded of part of their earnings." The result was a Government prosecution and the infliction of the fullest statutory penalty. In the way of direct service to labour, he was in the same month appointed a member of the Select Committee on the Employers' Liability Bill, on which he worked hard and carefully. In April came the epoch-marking Home Rule Bill, in the debate on which he made a powerful speech in support, loudly cheered by the Home Rulers who had so long helped to exclude him. He was emphatic against the exclusion of the Irish members, but urged that such points should be left for discussion in committee; and he did his best outside for the second reading by organising a great mass meeting in St James's Hall, presided over by Mr Labouchere, which was in its way a great success, a multitude coming sufficient to fill the hall twice over. His own Land Cultivation Bill came to its second reading; and his speech upon it was well received, though he saw fit not to try to press it to a division. Again in June, shortly before the decisive division, he delivered a second and longer speech in support of the Home Rule Bill, to listen to which to the end Mr Gladstone delayed his dinner; and on the dissolution he issued an "Appeal to the Electors: Mr Gladstone or Lord Salisbury: Which?" He had done more than justice by the people whose representatives had most zealously done him injustice. Readers of his journal had written to urge this on him as one reason for opposing Home Rule. He answered: "If I cannot try to do justice to my political and religious enemies, I am unfit to be a legislator." On the merits of the reform he tersely observed: "Home Rule is no four-leaved shamrock, but it is the beginning of justice."

In the new General Election, a new excitement was given to the contest in Northampton by the candidature of a Liberal Unionist, Mr Turner, a leading

local manufacturer, in coalition with a Conservative. His supporters were extremely confident; but when the vote was counted the figures stood: Labouchere, 4570; Bradlaugh, 4353; Turner, 3850; Lees, 3456. On the declaration of the poll, Mr Turner, being shouted down by the crowd, addressed to the reporters the intimation that he "came forward for the first time to wrest the representation of the town from the greatest and most mischievous demagogue of the present century." But by this time the old obloquy had considerably quieted down. At the beginning of the year the Bishop of Peterborough, Dr Magee, had published a review article in which, while making hostile allusion to Bradlaugh—doubtless in recollection of old criticisms—as an Atheist "whose name certainly neither softens nor sweetens any controversy with which it is connected," he declared forcibly against the Parliamentary Oath altogether. As he truly observed,

"Whatever else our present Parliamentary Oath was designed to effect, it was never designed to keep Atheists out of Parliament. It was, and is, strictly a political test, and for a purpose happily quite remote from modern English politics. It is dynastic.... It does not even ... exclude Republicans; for, should the Parliament which imposes it decide at any time upon the ultimate abolition of monarchy, there would then be no 'successors according to law' to whom to be faithful.... As a political test, it is practically all but obsolete.... It does not even incidentally and indirectly act as a religious test, for no Atheist that we know of has ever refused to take it."

Oddly enough, while arguing for the abolition of the Parliamentary Oath, the Bishop proposed to "retain" the oath in courts of justice, being apparently unaware that there it was already to some extent optional. His opinion on the other point, however, counted for something; and though an appeal was made to the Liberal ministry, as it had been made to their predecessors, to prosecute Bradlaugh afresh for sitting and voting, the ministry refused, and the matter dropped once for all. There was also, of course, a cessation of the attacks on him by Conservative members. One, a Mr E. H. Llewellyn, at a Primrose League meeting early in the year, scurrilously spoke of him as having "seemed more as if he spat upon than kissed" the Testament in taking the oath; but for this congenial indulgence Mr Llewellyn had to make a public apology to Bradlaugh and to the House of Commons alike. Bradlaugh was an excessively inconvenient enemy to have at close quarters.

No one knew this better than Lord Randolph Churchill, who was now promoted to the leadership of the House of Commons over the head of Sir

Michael Hicks Beach. "The most bitter enemy of the Tory party," wrote Bradlaugh, "could hardly have planned for it greater degradation than this leadership." One Tory journalist attributed to him, quite falsely, a proposal to hiss Churchill on his first rising to address the House. That was not his way of fighting. The "new leader," on his part, was extraordinarily conciliatory. When the new Parliament met in August, Churchill made not even a sign of wish to stand again between Bradlaugh and the oath; and when Bradlaugh made his important motion that the House do not assent to the usual Sessional Order prohibiting the interference of peers in elections, his lordship actually offered him a committee for the following year to frame another Order instead, admitting that the existing one was habitually ignored. Bradlaugh, however, pressed the matter to a division, when 126 members supported him, the Liberal leaders voting with the Tory majority against him. His object had been, as the vigilant Newdegate noted, to take the "first step to getting rid of the House of Lords." By allowing peers to interfere freely in elections, he proposed to strike at their hereditary privilege. But the time for such a measure was not yet.

It was understood to be on Churchill's urging, again, that two months afterwards the Tory Attorney-General entered a *stet processus* in the still outstanding appeal to the House of Lords, thus ending an action which the Gladstone Ministry had declined to end at Bradlaugh's request. But Bradlaugh in no way slackened his hostility on this score. On 19th September, in a discussion on the committal of Father Fahy for using threatening language towards magistrates, he reminded the House how its leader had once declared in the House that the Crown could procure the decisions it wanted from certain judges. Churchill, entering the House later, and learning what had been stated, assured Bradlaugh that he had been entirely mistaken, and gave the statement an unqualified denial. On Bradlaugh saying he thought he was right, Churchill made the curious answer: "I am sure he cannot find anywhere a record of my having said such a thing." Bradlaugh immediately went to consult Hansard, and not finding the passage he had expected, came back and frankly confessed the fact to the House. But on turning back he found that he had made an equivalent statement in his letter to Northcote on 1st March 1884, and that Northcote, while disputing in his reply certain of Bradlaugh's assertions, lest he should be taken to admit them, did not dispute this. A more leisurely search in the newspaper files cleared up part of the mystery. Churchill had

repeatedly said in effect what Bradlaugh had attributed to him. In at least three speeches (30th April 1883; 21st February 1884; 12th June 1884) he had directly and indirectly insinuated that the Government could get the decisions they wanted in a collusive action against Bradlaugh by bringing it before judges who had been Liberal Attorneys-General. What had apparently happened was that the noble lord had struck at least one passage out of the Hansard report when, according to custom, the proofs of his speeches were sent to him as to other members for correction afterwards. Having done this, he felt safe in saying that Bradlaugh "could not find anywhere a record" of such a statement on his part. It was a mistaken confidence; and besides publishing the newspaper extracts at the time, Bradlaugh later found an opportunity to pay off his score with interest.

In the October of 1886, meantime, he addressed to the noble lord an open letter of scathing comment on his policy, his tactics, his speeches, and his character. It contained the sentence—referring to "old English gentlemen"—"These belong to a class to which I, as well as yourself, am a stranger—I from birth, and you from habit;" and in reference to his lordship's language (outside) towards Mr Gladstone, it had the passage: "He has often been generous to you—the great can be generous. You might, in taking a leader's place, at least have for the moment aped a leader's dignity. *Noblesse oblige*; but no such obligation weighs on you; *où il n'y a rien le roi perd ses droits*." Yet even after this Churchill sought to make his personal acquaintance and disarm his resentment making repeated attempts to be introduced, and on one occasion actually intervening with a broad compliment in a conversation between Bradlaugh and another member in the smoking-room. Bradlaugh bowed with the old-fashioned ceremony which he adhered to in such cases, but would not further accept the obtruded friendship. He had, however, passed beyond his former disposition to square accounts with the lordling who had called his supporters the "mob, scum, and dregs." I once heard him remark that it was pitiful to see Churchill, with his fidgety, lawyer's-clerk manner and tactics, trying to rise to the dignity of the leadership of the House, trying not to twist his moustache all the time, and to listen to opponents like a statesman. And some story he heard of an act of generosity on Churchill's part helped further to disarm his never very vindictive hostility.

Nothing, indeed, could well surpass the magnanimity with which he put away from him all rancour for the endless insults he had received. New Tory members, expecting perhaps to see in him a truculent demagogue, were disarmed on finding a genial gentleman and comrade, who bore no malice, was excellent company, and played chess as sociably as skilfully. As the years went on, there actually arose a sort of enthusiasm for him among the younger Tories, more than one of whom assured him that they deplored the treatment he had met with at the hands of their party. Of course they did not suffer from the embarrassment of the Liberals at the prospect that the irrepressible Atheist, with his extraordinary gift for legislation, would possibly have to be included in the next Liberal administration.

This feeling began to arise very rapidly among the Radicals outside. His prompt success in securing the Labour Bureau, and in checking the practice of truck in Scotland and England, brought him immediate votes of thanks from labour organizations, though the press at this stage practised against him such a boycott that at a time when he was constantly speaking on the estimates, correspondents wrote deploring his silence in the House. The old tactic of ostracism was not easily unlearned; and the official Liberal journals, as the *Daily News*, for years on end sought to suppress the fact that it was he who had brought about the Labour Bureau. So anxious were such journals to keep him out of sight, that when the important return moved for by him as to market rights and tolls was issued, and had to be discussed, the *News* dealt with it elaborately without mentioning that it was Bradlaugh who had obtained it.

No conspiracy, however, could suppress general knowledge of such a mass of work as he got through, outside the House as well as inside. When it was not sitting, he was on lecturing tours, and I find that in the last three months of 1886, Parliament being in recess, he addressed nearly sixty political meetings in all parts of the country, in addition to his Secularist lecturing, which he never abandoned, though he devoted a larger proportion of his lectures to politics than formerly. In the House, besides working specially at his questions of truck and land cultivation and perpetual pensions, and serving on the committee to consider the effects of the Employers' Liability Act, he was one of the most generally industrious of legislators. All this strain was not for nothing, and at the end of the year we find him suffering from erysipelas and neuritis.

1887.

In the session of 1887, however, he went to work with unslackened energy. In a long speech delivered to a full house in the debate on the address, he attacked the Government on their permission of illegal truck practices, on their Egyptian policy, on their Burmese policy, and on their Irish policy. On the resignation of Lord Randolph Churchill, the new Commons leader, Mr W. H. Smith, continued the Tory policy of concession to the former victim of the party; and he was granted a Select Committee on Perpetual Pensions, himself being a member. The point raised by him last year as to peers' interference in elections was made the subject of investigation for another committee (of seven), moved for by the Government, and on this too he sat. The majority of the committee, of course, soon reported in favour of leaving the Sessional Order unaltered, Bradlaugh and Mr Whitbread dissenting. Meanwhile, he was continuing his attacks on the practice of truck, and got down for discussion a Truck Act Amendment Bill in addition to the Affirmation Bill which he had introduced when Sir John (formerly Mr Sergeant) Simon's came to nothing. In March, too, he took an active part with Mr Howell and Mr Labouchere in the attack on certain members of the Corporation of London, including, and specially, his own old enemy, Alderman Sir R. N. Fowler, for corrupt expenditure. In Fowler's presence Bradlaugh on his part "undertook to specifically connect the hon. baronet with the issue of City funds under conditions which compelled the knowledge on his part that they were corruptly used for the purpose of influencing the decisions of that House. He would prove that up to the hilt." And again he renewed his energetic action against the huge expenditure on Sir H. D. Wolff's mission to Cairo, a mission which, he declared, amid Radical cheers, to be a gross Conservative "job;" and he had the support of 146 members to his motion to quash the vote.

The charges against the Corporation were formally heard before a Select Committee of the House of Commons, Bradlaugh acting as prosecutor. Fowler, without really denying the charges in the House, had described them as "anonymous tittle-tattle;" and on the insufficiency of this disclaimer being pointed out, one of the ministers, Lord G. Hamilton, formally denied the charges on Fowler's behalf. Before the Committee—consisting of Lord Hartington, Sir Joseph Bailey, Mr Dillwyn, Mr Houldsworth, and Mr Stevenson—the statements made as to expenditure were proved,^[191] as

Bradlaugh had promised, "up to the hilt." Fourteen witnesses were examined by him; the City accounts for five years and other documents were closely gone into; and when the alleged payments could no longer be disputed, the defence (conducted by Mr J. Compton Lawrence, Q.C.) took the line of arguing that the challenged payments were within the right of the Corporation. They had been made during a number of years by way of resisting the popular movement for the reform of the municipal government of London. In the words of Bradlaugh:—

"£19,550, 10s. 10d. was proved to have been expended in financing Associations such as the Metropolitan Ratepayers' Association, Metropolitan Local Self-Government Association, Anti-One-Municipality League, and South London Municipal Association, described by Mr Howell as 'bogus' Associations, which were mostly started by paid agents employed by City officials, under the direction of, and with the knowledge of, the Special Committee; and which Associations were used as a means of creating a fraudulent, unfair, and collusive opposition to the proposed legislation for London municipal reform. Improper use and malversation of funds were also shown in promoting and carrying on collusive and fictitious charter movements in Lambeth, Woolwich, Greenwich, and other places in the metropolis, with the view of representing these to Parliament and to the Privy Council as spontaneous and *bona-fide* movements, when they were really only intended as opposition to the Government Bill. (The fictitious nature of the charter movement is especially illustrated by Mr Stoneham's answer: 'When the London Government Bill was dropped, the charter movements were let fall through by the City to a great extent.') Improper use was further shown in paying men to attend in very large numbers for the purpose of opposing, sometimes with violence, the meetings in favour of the reform of the Corporation; in paying for sham deputations, sham meetings in favour of the City, and for unfair reports which were published in the press; in procuring signatures to petitions," etc.

The most extraordinary thing of all was the fact that in the case of one municipal reform meeting in 1883, at least 2000 forged tickets had been issued, and their distribution was not obscurely traced to Corporation officials. In regard to this matter, Fowler was shown to have helped to evade inquiry when it was challenged at the time; and in regard to the improper expenditure, he was shown to have been officially cognisant; and though the Committee let off their fellow-member as lightly as they could, he had a very bad quarter of an hour under Bradlaugh's examination. One by one, the champions of the religiosity of the legislature against the Atheist had been shown to do their cause small credit in their persons. About the same time Bradlaugh took a leading part in exposing in the House a gross and systematic fraud in the preparation of a certain petition from Haggerston, signatures having been forged and invented wholesale, to the

extent even of putting names of infant children and racehorses; and this again was done for payment made by City officials. But on Bradlaugh's side there was no subordination of the public to his private interest; and when, in April 1887, Newdegate died in the odour of sanctity, he displayed no vindictiveness in his comments on the local obituary biography, which of course dealt freely with his own name. "I am credibly informed," he wrote, "that, apart from his bigotry against Catholics and heretics, Mr Newdegate was a kindly country gentleman, well liked by those who knew him. I regret to learn from his biographer that he treated the six years' harassing anxiety and cost to myself, which he did so much to continue, as a subject for merriment."

In respect of his legislative work he was as successful as he was industrious. By the end of April he had got his Truck Bill into the Committee stage; and he secured from the Government, without a blow, the Royal Commission on Market Rights and Tolls for which he moved in a speech of an hour's length.^[192] The manner of this success was singular. In the words of one Tory journal: "It was no secret that the Government intended at first to oppose Mr Bradlaugh's motion, but it gave way on receiving an intimation from a large number of Conservative members sitting below the gangway that, if a division took place, they would be compelled to vote with the junior member for Northampton." So oddly had the tables been turned. Yet he had in no way slackened his opposition to Tory policy. On the Coercion Bill he had made three forcible speeches, and he was always pursuing ministers with awkward questions. His success with the enemy was due simply to the irresistible impression he created of honesty and industry and single-mindedness. And when in May he made a merciless exposure of Churchill on the point above alluded to, of his old imputations on the integrity of Liberal judges, it did not appear that Conservatives failed to enjoy the proceedings. It was in the course of the privilege debate on the *Times'* articles on "Parnellism and Crime." Bradlaugh first elicited from Churchill a repudiation of one of his former utterances, and then proceeded to quote in full the passage from Hansard, with the now verified reference. Another challenge elicited another denial, and yet another quotation, with the reference. They were all ready for this occasion. "I am not responsible for Hansard," cried the noble lord, in much agitation; whereupon Bradlaugh added new and sharper punishment, going on to quote yet more of the damnatory passages from Hansard. "The noble

lord," he went on, "was of opinion in 1884 that the courts of law were not fair tribunals," whereupon Churchill again indicated dissent. "It was perhaps," admitted Bradlaugh, "not quite correct to say that the noble lord was of that opinion—he only said it." And still the castigation went on, the House punctuating it with laughter, till Churchill rose and protested that in regard to his recent speeches on the *Times* question he had been utterly misrepresented. Whereupon "Mr Bradlaugh said he was not dealing with the noble lord's views—he did not know what they were. (Opposition cheers and laughter.) He was only giving the noble lord's words." At the close of the speech, which as a whole was unanswerable, Churchill rose to offer a "personal explanation" on the Hansard business. Delivered with anxious prolixity, it was primarily to the effect that in 1884 his speeches were "greatly compressed" in Hansard, "as is invariably the case with ordinary members," and that the compressed reports could not be taken as true and faithful. This gave Bradlaugh his final opportunity.

"I accept the explanation of the noble lord [on the bearing of his words on the *Times* case], and I can corroborate his statements as to the compression of his speeches, because I used at one time to hear from him expressions which, having unguardedly repeated them without verification, I could not find in Hansard when I went to look for them. (Loud laughter and cheers.) The only mental difficulty I have is to imagine how any process of compression could put words on record which were never spoken. (Loud laughter and cheers.)"

It was as sufficient and artistic a piece of punishment as the House had witnessed for a long time; and Bradlaugh thenceforth considered his accounts with his former vilifier reasonably squared. Besides, in his anxiety to propitiate his powerful opponent, Churchill immediately afterwards declared in a letter to the *Times* that he did not see how Bradlaugh's Oaths Bill could with propriety be opposed by the Conservative party, whose duty it was, by supporting and passing it, to "secure that the Parliamentary oath in future will in all probability only be taken by those who believe in and revere its effective solemnity." This was written in anticipation of the action of a few Conservatives who, rebelling against their own leaders, obstructed the measure when it came on for discussion after other matters about five o'clock in the morning. Sir Edward Clarke, who had zealously resisted all previous bills of the kind, gave his support to this. Twice over, in a House of 300, Bradlaugh had large majorities—of 91 and 104—against adjournment, but still the motions went on. At length, having sat in the House for eleven hours, he gave way, an act for which some outsiders thought fit to blame

him. Some journals, however, took the opportunity to speak of him, on the merits of the question, with a civility they had never before seen occasion to show him. Others made use of the occasion to point out how fully it proved the utter dishonesty of most of the previous Tory opposition to Bradlaugh. Some of the details in the debate gave dramatic corroboration to this view. Colonel Hughes had stood forward as one of the representatives of religion; on which Mr Healy—himself once in that galley—observed that "it was to be hoped Christianity would not be defended by a gentleman who had been scheduled for bribery."

While the Oaths Bill was thus delayed, Bradlaugh contrived by incessant vigilance to get the Truck Bill through Committee in July. He confessed that if he had known beforehand the enormous labour such a Bill involved—"the receiving deputations, the large explanatory correspondence, the huge mass of suggested amendments, the objections from various interests to each amendment, and the utter impossibility of conciliating or satisfying the various sections, some friendly, some hostile, some well-meaning but impracticable"—he might have shrunk from the task. For twenty-seven nights he had watched till the morning hours on the chance of his Bill being reached, and when all was done it seemed for a time as if the Upper House, in its customary manner, would wreck everything. Their lordships' first "amendments" were insufferable, and were sent back to them, the House of Commons backing up Bradlaugh with vigour. Finally their lordships agreed to limit their amendments to a few which, while of course doing harm, did not affect the main work of the Bill, and though some Irish and other members desired to reject it on the score of these, the measure was at length passed.

He had thus in one session carried an important Act, made considerable progress with another, and obtained a Select Committee on Perpetual Pensions and a Royal Commission on Market Rights and Tolls, apart from the Committee appointed by the Government on his former initiative to discuss the action of peers in elections. In the Committee on Pensions his report was unanimously adopted, barring the clauses which dealt with certain payments to the Duchy of Cornwall—in other words, to the Prince of Wales. He had further prosecuted the Corporation of London before yet another Select Committee of the House, effectively damaging one of his enemies in the process, as he had in the previous year secured the

prosecution of another for breach of the law in his capacity of a company director. He had seen yet another enemy, Churchill, deposed from his place of pride, and had incidentally overthrown him in debate. All the while he was doing hard work on the Employers' Liability Committee besides speaking often on the Estimates and on the Coercion Bill, putting an ever-increasing number of solid questions to ministers on grievances submitted to him, many of which were redressed, and in particular pertinaciously pursuing the Indian Office as to certain underhand dealings in the matter of the ruby mines of Burmah. No other member's work could compare with it all; and the press decided that "Bradlaugh's Session" was the proper summary of the Parliamentary season. But, of course, such success evoked jealousy no less than tribute. In the carrying of the Truck Act he had not a little experience of the jealousy of labour leaders and others; and while the official Liberal press still partly boycotted him, the Socialist press made a point of belittling or perverting everything he did. Despite his continuous attacks on Tory policy, his Truck Bill was declared to owe its success to Government adoption. The Socialist *Reynolds* declared that he did little or nothing in Parliament; while the Tory *England* protested that he spoke far too often. As a matter of fact, he had made some sixty-five speeches up to Whitsuntide, thirteen of them against Coercion. But the circumstance which made his Parliamentary industry absolutely unique was that it was carried on alongside of a continuous course of Sunday lecturing, with special attendances at week-day demonstrations thrown in. When the Sunday lectures were in London the strain was comparatively light, as only two were given in the day at the Hall of Science; but in the provinces it is the Secularist practice to have three discourses on the Sunday when a London lecturer comes, and the physical strain of this, it need not be said, is heavy. Thus for Bradlaugh the two days of the week which other members of Parliament could give to rest and recreation were oftenest simply days of travelling and extra speaking. Now and then he could get a Saturday's pike-fishing on the Lea or on a Thames backwater; once or twice in the year he could even run down to Loch Long for two or three days of the very much more bracing fishing there. Even the holiday became a source of fresh work, for he took up with his usual energy the case of the pollution of Loch Long by Glasgow sewage; and it was due to his persistent pressure that the nuisance was at length stopped. He thus made a rich return for the measure of rest and strength gained from his days of fishing—a gain which was at

times wonderful. But though his powers of recuperation were great, the rest-days were far too few; the balance was always heavily on the side of overwork; and so his intimates now saw him year after year showing ever heavier traces of the overwhelming strain of his life. Whether he got to bed early or in the late morning hours, he was always up and at work before eight, attacking his great pile of correspondence, which alone would have seemed to many men to supply a good day's work. Every day's post brought him on an average a round dozen of grievances to be submitted to Parliament, and in every case which he thought worth attention he made careful investigation, always declining to trouble Ministers without good grounds. Then there were the continual letters from poor men of all denominations asking for legal advice gratis—a kind of request he never refused. Yet with it all he found time to write for his journal; and his articles and speeches at this time are as pregnant and efficient as any he ever penned or spoke. Among other things he wrote a weighty little pamphlet: "The Channel Tunnel: Ought the Democracy to Oppose or Support it?" which was widely circulated as the strongest possible popular plea for the undertaking. When next the public is effectively challenged for a vote on that question, it will probably be found that there has been a great transformation of opinion; and not a little of the credit will be due to his pleading. Of the extent of his influence in this and other ways the average metropolitan reader never had any accurate idea, between the grossly unjust attacks of Socialists on the one hand, and the boycotting of the Liberal press on the other. Thus we find him delivering in Birmingham, in October 1887, a great fighting speech on the party situation, of which no report whatever appears in the London papers. It dealt with the question raised by Mr Chamberlain, "Is a National Party possible?" and the answer it gave was a determined and uncompromising attack on the Unionist coalition, this at a time when Liberals and some Radicals were insinuating that he was ingratiating himself in the Tory counsels. This was a type of dozens of provincial addresses delivered by him every year, some of them at immense open-air demonstrations of miners, who always invited him to their great gatherings. Of all this activity the London press revealed hardly a trace, any more than of his hundreds of Sunday lectures every year, of which one or two out of every three were devoted to politics. It is safe to say that no other English politician of his time spoke publicly to such numbers of his fellow-countrymen in the course of each year.

A striking illustration of the new animus against him among "advanced" propagandists came up on the occasion of the deplorable Trafalgar Square episode of 13th November 1887. The Socialist press and some Radical journals sedulously circulated the intimation that "somehow or other Mr Bradlaugh was very conspicuous by his absence," while pointing to his old proceedings in similar crises. He was actually lecturing at the time at West Hartlepool, in fulfilment of an engagement made months before; and next day he was at Hull. On his return he contributed to the *Pall Mall Gazette* a careful statement of the law on the point of the use of Trafalgar Square, criticising and condemning the action of the authorities, and he followed this up with further protests, while advising the Radical M.P.'s concerned to fight out the case at law, and begging those who trusted him to await such legal settlement. Yet several times since his death it has been stated in the press that he exhumed a forgotten law which entitled the Home Secretary to prevent meetings in the Square. The laws he cited were all to the contrary effect, and were well enough known to those officially concerned; the point having been raised, as above mentioned, over one of his own Trafalgar Square demonstrations a few years before. And when Mr Cunninghame Graham and Mr Burns were prosecuted, he gave evidence on their behalf, making a hasty and difficult journey across the country from Leek to London on a telegraphic summons to arrive in time when they were tried at the Old Bailey.

A paragraph which he published in his journal in this connection will serve to mark the degree of political severance which, with no diminution of mutual regard, had arisen between him and his long-trying colleague and partner, Mrs Besant. It ran:—

"As I have on most serious matters of principle recently differed very widely from my brave and loyal co-worker, and as that difference has been regrettably emphasized by her resignation of her editorial functions on this journal, it is the more necessary that I should say how thoroughly I approve, and how grateful I am to her for, her conduct in not only obtaining bail and providing legal assistance for the helpless unfortunates in the hands of the police, but also for her daily personal attendance and wise conduct at the police-stations and police-courts, where she has done so much to abate harsh treatment on the one hand and rash folly on the other. While I should not have marked this out as fitting woman's work, especially in the recent very inclement weather, I desire to record my view that it has been bravely done, well done, and most usefully done; and I wish to mark this the more emphatically as my views and those of Mrs Besant seem more wide apart than I could have deemed possible on many of the points of principle underlying what is every day growing into a more serious struggle."

The severance spoken of had arisen over Mrs Besant's adoption of Socialist principles, a change of attitude on her part which began about 1885, and soon went the length of a somewhat extreme propaganda, afterwards modified in common with the general tone of the Fabian Society, of which she had speedily become the most active member. The joint editorship had now become a practical difficulty as well as a source of complaint among readers; and in October 1887 it was amicably ended, Mrs Besant continuing to act as sub-editor and contributor. She had fought beside Bradlaugh and for him loyally and well, and though the suddenness and vehemence of her new departure had startled and troubled him, his friendship, as the above paragraph shows, had in no way weakened. He was not the man to break a tie for even a serious difference in opinion; though he was also the last man to do what some Socialists contemptibly accused him of doing—arrange that his colleague should take one line and he another in order to promote the circulation of his journal. He did for Socialists what he did for everybody who got into legal trouble on political grounds, and he gave Mrs Besant ample assistance in fighting the case of those who were arrested by the police for open-air propaganda. The most serious change of position on Mrs Besant's part, her conversion to Madame Blavatsky's "Theosophy," was soon to come. Even when that came, in the following year, he neither withdrew his friendship nor asked her to cease contributing to the *Reformer*; but, coming after political differences, the new and deep division of opinion undoubtedly pained and depressed him. He was to find, as so many have found, that when success comes something is sure to go which leaves success a different thing from what was dreamt of.

1888.

The first important task of Bradlaugh on the re-assembling of Parliament was to fight this cause of the right of public meeting in Trafalgar Square. It had been badly enough managed by others. In January he wrote:—

"The conviction of Messrs Cunninghame Graham and Burns for unlawful assembly is, I fear, in great part due to the foolishly boastful evidence of Mr Hyndman and Mr Tims. If the first had been a Crown witness, his evidence on cross-examination could not have been more mischievous to the accused, on the count on which a verdict was found against them; and the incautious replies of Mr Tims to the counsel for the Crown were almost as fatal."

The Government on their part had carried adroitness to the point of cowardice, refusing to arrest Mrs Besant when she sought to have a legal trial on the merits of the right of meeting. The effect of it all was that not only the Liberal leaders, but such journals as the *Daily Chronicle* and the *Daily News*, took the line of deprecating any further public meetings in the Square. Bradlaugh, standing firmly to the claim of right, commented gravely on the promoters of the meeting for "bringing together a huge mass of people whom nobody was prepared to lead or to control;" and he expressed his regret that Mr Saunders, a prosecution against whom was laid and then departed from, should have let the legal question drop. Before the assembling of the House certain metropolitan members, learning that Bradlaugh was determined to raise the question by an amendment on the Address, took the unworthy line of protesting that, as a metropolitan matter, it was no business of his. He offered to leave it to Sir Charles Russell, as the most capable of dealing with it. Sir Charles promptly replied that no one could handle it better than Bradlaugh, but undertook the moving of the leading amendment. In addition to such difficulties Bradlaugh had the trouble of opposing the action of Mrs Besant on the newly-founded Law and Liberty League, promoted by herself and Mr Stead, with its "Ironsides Circles," and other risky arrangements for meeting force with force.

When the House met, Bradlaugh took occasion, before the debates began, to make a personal statement on a matter that had of late frequently come before the public. In February of 1886 he had offered in the House to show that large sums of money, excessive for such a purpose, had been supplied by leading Conservatives of both Houses of Parliament for the promotion of a Trafalgar Square demonstration for "Fair Trade," organised by a Tory agitator named Peters, which had culminated in a riot. Peters had at the time blusterously denied this, but had declined Bradlaugh's challenge to a formal investigation before an arbitrator as at *nisi prius*. In the recent prosecution of Messrs Burns and Cunninghame Graham at Bow Street, Bradlaugh had been pressed by the Crown Counsel on this point, had reaffirmed his statement, and had added that one of the cheques, which he had seen and was prepared to trace, was from Lord Salisbury. This statement was first denied by Lord Salisbury in a letter to the *Times* (2nd December), and was afterwards characterised as wilful perjury in a published letter from his secretary to one Kelly, a colleague of Peters. On the first denial Bradlaugh promptly offered to have the matter investigated before a Committee of the

House of Commons. This offer Lord Salisbury neither accepted nor declined. Bradlaugh now asked the Government to agree to a Select Committee of Investigation, pointing out that he lay under an imputation of perjury from the Prime Minister on a statement which he had made in Parliament. An action for libel, however, had been already begun against Bradlaugh by Peters; and the Ministry, after waiting a few days, answered that the matter was not a proper one for a Select Committee, especially as a lawsuit on it was pending. Bradlaugh, however, pointed out that the action in question could not raise the real issue, and offered to raise it if Lord Salisbury would acknowledge the publication of the letter to Kelly, signed by his secretary. This acknowledgment he sought to obtain by letter, but after delay the noble lord took the singular course of declining to accept legal responsibility for the publication of the letter, as he had not consented to it. When, however, Bradlaugh read this letter of disclaimer in the House, Lord Salisbury sent him a secretarial letter (22nd February) referring to the original letter to the *Times* over his lordship's own signature (in which the truth of Bradlaugh's statement had been denied without charging perjury), and admitting his lordship's legal responsibility for that. That letter, however, was not actionable, and Bradlaugh had replied to it at the time, as he now pointed out. Lord Salisbury then wrote (25th February), repeating that he could accept no responsibility for his letter to Kelly, concerning whom he made the curious statement that he, too, was affected by Bradlaugh's false and injurious charges, though Bradlaugh had never mentioned Kelly's name in the matter. His lordship, however, professed his readiness to facilitate a legal investigation of Bradlaugh's statements, which his lordship inaccurately professed to reproduce. Bradlaugh, protesting against his lordship's tolerating the publication of the charge of perjury, and never once apologising for it, answered that he preferred to have the charge stated in the words in which he made it, and in none other. No reply was offered, and the matter was left to be settled by Peters' action for libel.

The debate on the Trafalgar Square question did not come on for a week or two, and in the meantime one notable episode occurred over a remark made by Bradlaugh in the discussion on an amendment to the Address concerning the Scotch Crofters. The report runs:—

"Mr Bradlaugh said he understood the Chief Secretary to say that the cause of the evil they had to deal with in the Highlands was over-population, and that the sole remedy for this difficulty was emigration. He also understood the right hon. gentleman to

denounce the reckless increase of population in that district during the last forty or fifty years. He felt some astonishment that the right hon. gentleman should put forward such an argument, when he remembered that the right hon. gentleman, and those who sat around him, tried before all England to make him appear as one of the most immoral men alive, because he had tried to teach the people for the last quarter of a century these very evils of over-population, and these very difficulties of their condition connected with reckless increase. It was astounding to hear from the other side such a doctrine put forward to be supported, because, when urged by him in olden times, it had made him the mark for some of the most wicked language that one man could use against another.

"Mr A. J. Balfour: I never in my life used any such language against the hon. gentleman; never, never. (Cheers.)

"Mr Bradlaugh said that, at any rate, the important party of which the right hon. gentleman was then a prominent member, flooded the country with literature containing such attacks, without then one word of repudiation from the right hon. gentleman. But he would not discuss the personal position of the matter further. The sole remedy for the existing distress, according to hon. members opposite, was emigration. But how were they going to apply it? Was the State to undertake the emigration? Were the people to be sent away by force, and to what lands were they to go? In every case they would have to struggle for existence against hostile life-conditions, extremes of heat and cold, hard for starving men to hear. Everywhere they would be confronted with the labour struggle, for we were no longer the sole, or even the principal, colonising people; masses of Germans and other thrifty colonising races were now found in every distant land. Of course, emigration resulted in a few successes, and of these much was heard; but nothing was said about the many miserable failures. Medical men in America and Canada could tell many heart-rending stories of madness supervening on the home-sickness that embittered the emigrant's life. There was no country where pauper emigration would be welcomed. State emigration, if at all, must include on a large scale other distressed subjects. This was impracticable. Emigration of charity was mockery save to the veriest few. No; emigration ought not to be thought of as a remedy until other means had been tried, until the unjust conditions which hampered the poor, and which had been artificially created by the class to which the hon. gentlemen opposite belonged, had been swept away. ('Hear. hear.')

Thus again did Bradlaugh prove that his Neo-Malthusianism was anything but an argument against the political improvement of the lot of the people. The emphatic declaration of Mr Balfour may be held to class him with Mr John Morley, Mr Leonard Courtney, and the late Lord Derby, as a believer in the importance of restriction of population; but it is not on record that he, any more than they, has sought to communicate his belief to the public or his party; and it is certain that, as Bradlaugh remarked, he never said a word in deprecation of the attacks of his fellow-Tories on Bradlaugh as a Neo-Malthusian at a time when such attacks were a main means of keeping him out of his seat.

When at length the Trafalgar Square question was reached (1st March), being raised in a masterly speech by Sir Charles Russell, Bradlaugh followed with one perhaps not less effective, which, lasting till midnight, had to be continued on the following evening. It included a sharp indictment of the conduct of the police, and a broad suggestion that the authorities seemed to have made use of *agents provocateurs*; and it made short work of the official pretence that the Square was Crown property, as having been constituted out of the King's Mews—a statement on a par with Mr Burdett Coutts' citation of the old Act against certain meetings near Parliament without the all-essential clause specifying the kind of meetings forbidden. The King's Mews, Bradlaugh pointed out, had formed only a very small part of the ground, while the rest had been bought and paid for with public money. He challenged an investigation of the conduct of the police, and wound up with an earnest appeal to "those who were elected as Liberals" to resist the tyrannous policy of the Government. The Home Secretary was stung into promising an investigation of the charges against the police; but it is matter of history that the Liberal leaders homologated the action of the Tory Ministry.

A few weeks afterwards (21st March) came the decisive struggle on Bradlaugh's Affirmation Bill (otherwise "Oaths Bill"), which he had failed to force through in the previous session. He moved the second reading in a tersely argued and conciliatory speech; and though some Conservatives, as Mr Stanley Leighton and Mr De Lisle (Catholic), made foolish speeches against it, the great majority of the House was with him. One member, Mr Gedge, made a success of absurdity by arguing that the promoters of the Bill had defined an Atheist as one "*on whom conscience had no binding effect*," and this nonsensical phrase he repeated again and again without recognising its nature, entirely failing at the same time to see the point that the "definition" he meant to quote was that given by a court of law, and not by the promoters of the Bill at all. At length, the second reading was carried over the amendment (which proposed a Royal Commission) by 247 votes to 137. On the substantive motion being put that the Bill be read a second time, obstruction was attempted, which Bradlaugh met by moving the closure. On this he had 334 votes to 50; and the second reading was then formally carried by 250 votes to 100, a majority which surpassed his most sanguine expectations.

To secure the passage of the measure, however, he had to meet the old Christian plea that the permission to affirm—which his Bill gave alike to witnesses, jurors, officials, and members of Parliament, in Scotland and Ireland as well as England—should not be given to believing Christians who, having no conscientious objections to swearing, might seek to evade it because they felt freer to lie on affirmation than on oath. This was urged on the Conservative side as a concession essential to acceptance of the Bill, and Bradlaugh consented to make the provision in Committee. No Liberal opposed; but trouble was to arise later in the matter.

Months after Bradlaugh's undertaking had been given, and after he had put down the promised amendment, some leading Liberal members, who had not before made any protest, raised a strong objection to the concession made, inasmuch as it placed upon every one desiring to affirm the necessity of avowing whether he objected to the oath on religious grounds, or as having no religious opinion. There ought, these members argued, to be no questioning whatever as to reasons. This was a perfectly reasonable objection to make on principle; but it ignored the fact that only by making concessions to the Christian side, to meet the case of superstitious and dishonest Christians, could any relieving measure be carried at all; and it was brought forward surprisingly late in the day. It is not clear, further, that the objectors realised what the amendment actually did, for they protested that while it was all right for Freethinkers, it put a stigma on those who were not prepared to say they had no religious beliefs. The plain answer to this was that such persons, if they objected to an oath, had only to say it was inconsistent with their religious belief. Although the objectors included such able heads as Mr E. Robertson and Dr W. A. Hunter, it must be said that their opposition was not justified by their arguments. It was less difficult to follow the complaint of Mr J. A. Picton, who said he would have no relief from the Bill, inasmuch as he was not without religious belief, but "regarded oath-taking as a humiliating and barbarous custom." In that case, however, Mr Picton might with perfect propriety say that oath-taking was inconsistent with his religious belief. Further, though it is quite fair for Agnostics, Theists, and others to protest that they ought not to be asked for any account of their opinions in a court of justice, it was less than fair for them to propose to leave without any relief whatever the Freethinking jurors who were liable to much worse odium and annoyance than is involved in saying that the oath is inconsistent with one's religious belief; the witnesses

who in Scotland could not affirm on any condition whatever, and in England could only affirm on answering a grossly invidious question; and the members of Parliament who had to take the oath while very much disliking it. With the single exception of Dr Hunter, none of the Liberal objectors to the added clause had made any fight against oaths; the whole brunt of the battle had been left to the Freethinkers. Yet some of those objectors, who had not specially moved a finger for any reform whatever, were now prepared to throw over the measure. Mr John Morley, who had voted for the second reading after hearing Bradlaugh's undertaking to insert the qualifying clause, now made some heated remarks against it, which Bradlaugh dryly characterised as "not very philosophic." They certainly came ill from the editor who had deprecated Bradlaugh's willingness to take any oath. By dint of more forcible remonstrances with other members in the lobby, Bradlaugh secured a majority of 87 votes for the third reading, the figures being 147 to 60. Many of the Liberal objectors, recognising that to vote with the Noes, who were mostly bigots, would be to put themselves in a false position, abstained from voting; and of the 147 in the majority, 92 were Liberals.

The trouble, however, was not yet over. The "Liberal and Radical Union" of Northampton passed by a majority a resolution complaining that the value of the Bill was taken away by the amendment; and some Liberal journals accused Bradlaugh of giving away the principle of religious equality by agreeing to the imposition of "a new test." He met these criticisms in a very temperate letter "To Liberal Editors in general, and the Editor of the *South Wales Daily News* in particular," the latter journal having been one of those which had been most just to him throughout his struggle. The editor replied, acknowledging the courtesy of the criticism, and making his own less extravagant, but making the extraordinary blunder of alleging that even then any member of Parliament could affirm on the ground that oath-taking was contrary to his religious belief—this while avowing that he only dealt with the measure as regarded the Parliamentary oath. His main argument was that there were many people who detested the oath, but could not say it was condemned by their religious belief; and on the score of his measure not relieving such persons, Bradlaugh was pronounced "ungenerous." The truth was that he had done his best to make affirmation absolutely unconditional, but could only carry his Bill at all by making it conditional on the giving of a reason. He had done all he could for all classes of objectors, and he rightly

thought it better to relieve those who suffered most than to secure no relief at all. The further relief claimed by believers should be demanded by them from their fellow-believers. The rational course, clearly, is to abolish oaths altogether, and this Bradlaugh would gladly have done; but it is neither rational nor candid to talk as if this or even a somewhat less measure of reform could possibly be secured by him within two years of his admission to Parliament after a desperate struggle with a majority who stood for the grossest irrationality and injustice. Those who condemned him ought in consistency and decency to have begun an agitation either for making affirmation unconditional—a course which would still leave some people open to annoyance—or for the entire abolition of oaths. Yet, after six years have elapsed, there is still no word of any such movement. It is the old story of the half-way people leaving all the stress of the fighting to the more advanced. These may be permitted to say that it is a little too much to put on avowed Freethinkers, fighting for bare rights under all sorts of calumny and ostracism, the burden of securing an effortless immunity for those who all along stood at best in the rear-guard, if they did anything in the matter at all.

Close on the heels of the second reading of the Affirmation Bill (March) came the debate on the report of the Perpetual Pensions Committee, on which he moved a resolution that steps should be taken by the Government to give effect to the Committee's recommendations. He had a Tory seconder, Mr Louis Jennings; and the debate included a friendly speech, with an acceptable amendment, from Mr W. H. Smith, and a very interesting speech from Gladstone; whereafter the amendment (amended) was incorporated, and the Government stood pledged to "determine" all hereditary pensions with due regard to justice and economy, and to revise the pension system in general. In May, Bradlaugh again (as told in the chapter above, on his "Political Doctrine and Work") pressed his resolution as to the expediency of Compulsory Cultivation of Waste Lands, only to see the House counted out after his seconder (Mr Munro Ferguson) and the mover of an amendment had spoken. He was not to succeed alike in everything. Later in May he had an unpleasant experience in respect of the Government's breach of faith over his motion of a new Rule, to the effect that on a new member presenting himself in due form, the Speaker should forthwith call him to the table. Mr Smith agreed to accept the motion as an "amendment to going into Supply," on its being amended by the clause

"unless the House otherwise resolve," which Bradlaugh was advised was a harmless provision; but when, on the pressure of Sir Henry James (who in the Courts had argued for the House's right to "resolve" to an extent to which Bradlaugh's clause would not allow) and others, he withdrew the clause, the Government threw over the whole motion, though nobody objected to the withdrawal, and the Unionists who had urged the withdrawal of the clause left the House without voting on the motion. It was accordingly rejected by 180 votes to 152.

His main undertaking for 1888, however, succeeded finally, to a marvel. In the House of Lords, the Affirmation Bill might have been held to run considerable risk; but singularly enough, though amendments were talked of, none were pushed, and the Bill passed its third reading (December 1888) absolutely unchanged. In the absence of Lord Herschell, it was taken charge of by Earl Spencer and Lord Coleridge; but what was no less important, it was endorsed by the Archbishop of Canterbury as a desirable measure. As usual, the Church took credit for lending itself to a reform which it had violently resisted. Outsiders were left asking which policy had been the more insincere—the old outcry against all Affirmation Bills or the new pretence of welcoming one. The Lord Chancellor, who, as Sir Hardinge Giffard, had so often opposed Bradlaugh and all his works, was more true to his antecedents, and confessed his jealousy and dislike of the measure, while grudgingly abstaining from trying to defeat it. To Lord Esher, who as a judge had always administered the law as to oaths dead against him, but who now helped the Affirmation Bill through the Upper House, Bradlaugh tendered grave and chivalrous thanks in his journal, adding that none were necessary in the case of the Lord Chancellor.

While the Affirmation Bill was on its way the libel action by Peters was heard and decided. Before it came on, the editor of the *St Stephen's Review* (Mr Allison), who had made a libellous attack on Bradlaugh in respect of the case, was on Bradlaugh's suit tried before Justices Manisty and Hawkins, and submitting himself apologetically to the Court (March 22nd), was let off with a fine of £20 and full costs for his contempt of Court, Mr Justice Hawkins observing that he "very much doubted whether such a fine was an adequate punishment for so gross a contempt. He did not think he had ever seen a worse attempt to affect the administration of justice." The judge added some no less forcible remarks on Mr Allison's explanation that

he had made his attack "to advance the interests of the Conservative cause." But that principle was destined to have a still more remarkable illustration within the law courts themselves, when the libel suit was tried (April 18th) before Mr Baron Huddleston and a special jury. If the action of Peters for libel, in inception and upshot, be not the most extraordinary libel case of modern times, it is only because the judge who tried it gave a no less extraordinary turn to another libel case which came before him eighteen months later. Peters' contention was, in brief, that Bradlaugh had libelled him by stating that he got money from leading Conservatives, including Lord Salisbury, for the promotion of a "Fair Trade" demonstration in Trafalgar Square. His counsel, Mr Lockwood, argued that "if Mr Peters was doing what Mr Bradlaugh accused him of, then Mr Peters was doing a very corrupt thing"—a plea only intelligible as resting on the fact that Peters was the secretary of the "Workmen's National Association for the Abolition of Foreign Sugar Bounties," and as implying that it would be corruption on the part of such a Society to take money from a lord. The evidence led was to the effect that Lord Salisbury had given money, not to Peters, but to Kelly, who was the *fidus Achates* of Peters, but was also secretary to the "Riverside Labourers' Association." Both had for years been known to Lord Salisbury in connection with the sugar protection movement. Kelly had gone down to Hatfield and seen Mr Gunton, the secretary, and in consequence of that interview had sent a letter to Lord Salisbury explaining that money was wanted to give a piece of beef each to 120 of "our best men at Christmas." The said best men were "all fathers of families," and "had never been in receipt of parochial relief." Lord Salisbury, who gave evidence, remembered getting this letter and sending Kelly a cheque for £25; but had no recollection of any talk with Mr Gunton as to Kelly's previous visit to Hatfield, in consequence of which the letter was sent. He thought it unlikely that Kelly would have seen Mr Gunton in that way, but confessed his error when shown that Kelly's letter to him actually mentioned the interview. The landlord of a temperance hotel, which was the headquarters of Peters' and Kelly's activities, testified to having spent this money on provisions, which he distributed to "needy working men," all save a small balance, which was otherwise distributed. He kept no books. Peters was on the committee of distribution.

Now, granting that the money had been honestly spent in the way alleged, there was clearly no libel on Peters in saying that the money had been sent

him to promote the Trafalgar Square demonstration. There would be no wrongdoing in getting money from any one for such a purpose. He declared in his evidence that Lord Salisbury had never given him anything—"nothing, only his friendship." The buffoonery of the plaintiff's evidence, which kept the audience in chronic laughter, was not more remarkable than the bluster of his statements as to his accounts. Never was a demonstration apparently got up with a more enthusiastic zeal by working-men promoters, or with a more simple-minded financial reliance on Providence. Only £4 had been spent on the demonstration—"to obtain bands and banners." What the placards had cost witness could not say; he could not even say whether they had been paid for. The evidence of his colleague, Kelly, was hardly less edifying. He had been one of those who had received Corporation money to get up meetings against municipal reform.

Bradlaugh's defence was that even on the evidence there was no libel. When Baron Huddleston interrupted him to suggest that he should apologise, he answered that he was ready to do so as regarded Lord Salisbury, but he could not deal with the rest of the case on those lines. On the evidence led he was bound to admit that he had been inaccurate as regarded Lord Salisbury's cheque; but his statement had been wider than that, and neither in general nor in particular had it been of the nature of a libel. Further, he had spoken in good faith and on distinct evidence. Peters had on pressure admitted receiving subscriptions from persons outside his Association; and Peters had refused the investigation originally invited in 1886, when the other facts could have been better traced. And Bradlaugh had led evidence as to the receipt by Peters of such cheques, two of which had been shown to him.

In pleading his case, Bradlaugh perhaps made the mistake of being too concise in putting to the jury the point that on any view of the facts no libel had been committed. Baron Huddleston was more circumspect. He turned affably to the jury, and in the most intimate manner laid before them his view that Bradlaugh had directly or indirectly accused Peters of getting up "bogus" meetings—a statement which Bradlaugh had distinctly repudiated, and which was entirely wide of the facts and the evidence. The whole drift of Bradlaugh's charge, as he stated, was "that the Conservative party were playing with edged tools in assisting any such meetings." As the summing-up went on, indeed, it became clear that Baron Huddleston felt this also,

and that in his view there had been a "libellous" statement against Lord Salisbury, who, however, was not the suitor in the action. On the point of law he made no intelligible attempt to rebut Bradlaugh's plea that the statement sued on was in no sense a libel; but he thoughtfully suggested to the jury, with regard to the evidence of a witness called by Bradlaugh, that they could consider what value should be put on the evidence of a man who objected to take the oath. He further took much pains to impress on the jury that "a man could never be allowed to say things against a man, and then, when he found that they were false, to say he was very sorry, but he honestly believed them true. Such a thing would never do." On this instruction the jury found a verdict for Peters, with £300 damages. And yet in the following year (November 1889), when Mrs Besant sued the Rev. Mr Hoskyns for libelling her, during her School Board candidature, in a circular which had the statement: "A Freethinker thus describes the practical outcome of her teaching: 'Chastity is a crime; unbridled sensuality is a virtue,'" the same judge hardily instructed the jury that "the question was not whether Mrs Besant's books were obscene," but as to "the defendant's honesty of belief at the time he had published the handbills." He himself became conscious as he went on of the iniquity of this instruction, and proceeded to cite and vilify passages from Mrs Besant's works, thus doing everything in his power to prejudice the jury on the real issue. But in the end, while professing to put to them the separate issues of publication, libel, and truth in fact, he added the issue: "If untrue, *then did the defendant when he published it honestly and reasonably believe it to be true*, and that it was his duty to publish it, and did he do so without malice?" And yet again he urged that even if the libel were found untrue, "they would have to say whether the defendant had been guilty of *mala fides* in the sense he had explained." His own obtruded opinion was that a priest might justifiably issue such a circular to his parishioners. Thus he laid down for the trial of Mrs Besant's action against a priest the exactly opposite principle to that which he laid down in Peters' action against Bradlaugh. The priest was now adjudged free to do what the judge had said "would never do." The priest confessed in the witness-box that he had not read any of Mrs Besant's books when he issued his circular. He had availed himself of the libel of a pseudonymous scoundrel, making no attempt to ascertain its truth Bradlaugh in his statement as to the Fair Trade demonstration had spoken on the actual evidence of cheques which he saw, and on his knowledge of

the habitual co-operation of Peters and Kelly. But the Conservative judge contrived to find the priest right and Bradlaugh wrong. And it is on the strength of a verdict thus procured that Bradlaugh has since been spoken of as "a convicted libeller."

The view taken of the case by Bradlaugh's fellow-members of Parliament was shown by their instantly getting up a subscription to pay the damages and costs in which he had been mulcted; and the view taken by the legal profession may be gathered from the following verses, which appeared in the *Star*:—

"HALVES.

(AN HISTORICAL POEM.)

DECEMBER, 1885.

Take this cheque, my gentle Kelly,
Fill our starving London's belly:
Hie thee down with dearest Peters
To the lowly primrose eaters;
Tell the unemployed refiners
Cecil sends them of his shiners;
Let each toilworn Tory striver
Batten on this twenty-fiver.

Spread my bounty
Through the county;
But my right hand must not know
What my left hand doth; and so,
If thou value my attention,
Full details must thou not mention.

FEBRUARY, 1886.

Riots! whew! too bad of Kelly.
I must ask him what the—— Well, he
Can't at least pretend that I
Had any finger in this pie.

APRIL, 1888.

Halves, Peters, halves! Honour 'mongst *us*, my sonny;
Had I but tipt the wink a year ago,
You might have gone and whistled for your money,
And *my* straightforwardness been spared a blow.

I was ashamed of giving you the cash:
You were ashamed of getting it from me
Three hundred is the value of that splash
On our fair fame, unspotted previouslee.

Remember, sonny, when your freethought flesher
Showed Charles your name and mine upon that cheque,
Had I owned up, I think you must confess your
Foot would not now have been on Charles's neck.

So halves, my Peters:—nay, I crave not coin:
To touch the brass would not befit my station:
I only ask that Kelly you'll rejoin,
And pay your debt in Tory agitation."

This, unfortunately, was not the only libel suit forced upon Bradlaugh during the year. He had himself to raise another, against a gang of enemies who had laid their heads together to produce a so-called "Life" of him, which was but a tissue of the most malignant libel from beginning to end. It attacked his daughters as well as himself, and was so flagrantly malicious that no legal defence was possible. The nominal author was one Charles R. Mackay, and the nominal publisher was one Gunn—a name which was afterwards admitted by Mackay to be fictitious. Believing that the real author or promoter of the work was Mr Stewart Ross, editor of the *Agnostic Journal* (then the *Secular Review*), one of his most persistent and scurrilous assailants, Bradlaugh set about bringing him to account, and soon procured adequate evidence of his complicity. A friend had accidentally discovered for him that the book was printed by the Edinburgh house of Colston & Co.; and on proceeding against that firm in the Court of Session, he obtained from them an apology, costs, and payment of £25 to his usual beneficiary, the Masonic Boys' School. But the most effective assistance was supplied

by those concerned in issuing the book, who were soon flying at each other's throats. In August 1888 Mr Stewart Ross prosecuted Mackay, with a solicitor named Harvey and his clerk named Major, for conspiracy "to obtain from him £225 with intent to defraud." Mackay had previously brought two actions against Ross, one for slander, and one to recover £500, which actions were settled on the basis that Mackay withdrew "all claim against the defendant for writing the 'Life of Charles Bradlaugh, M.P.," the plaintiff admitting the claim to be "based on an erroneous conception," while Mr Ross was to pay Mackay "in respect of the other claims" the sum of £225, besides writing Mackay a letter "denying the slanders alleged," and opening his columns for subscriptions to a Defence Fund on Mackay's behalf. Mr Ross now alleged, in his prosecution for "conspiracy," that Major (whose employer was Mackay's solicitor) had called on him and alleged that he had seen some pages in Ross's handwriting in the MS. of the Mackay "Life," and "that he (Ross) who had denied all share in the authorship of that work, would be prosecuted for perjury unless he recovered possession of those pages." Ross admittedly agreed to pay £250 (afterwards reduced to £225) to recover the pages. In Court he would not admit that he had written any part of the "Life," but explained that he thought some unpublished MS. of his might have been got hold of for it. The promised MS., he stated, was not returned, and he stopped the cheques he had given towards the promised payment. In cross-examination he confessed to having supplied Mackay with books and "materials" to help him in writing the "Life," and had seen the proofs of it. Another of Ross's coadjutors fiercely quarrelled with him, and handed over to Bradlaugh's solicitor further evidence of his concern in the publication. Mackay, who became bankrupt, did likewise, expressing to Bradlaugh his regret for having been led into the publication by Ross. Bradlaugh was advised, however, that he had evidence enough without their testimony; and at length, after various delays, Mr Ross, through his solicitor, begged Bradlaugh's solicitors to intercede with their client to let him make a voluntary settlement. This being acceded to by Bradlaugh, Mr Ross agreed in Court (15th February 1889, before the Hon. Robert Butler, Master in Chambers) to account for and destroy within four days all copies of the book which had "come into his possession or control," to pay £50 to the Masonic Boys' School, and to pay all Bradlaugh's costs as between solicitor and client. Soon afterwards Mr Ross wrote to the *Star*: "I am not and never

was the publisher of the 'Life,' and I cannot 'destroy all the copies of the work' for the reason that I never possessed more than one copy." Bradlaugh commented that he was still willing to have the case tried in court; and that he had evidence of Ross's sending out a large number of copies of the book for review, and once having close on 200 bound copies on his premises. Mr Ross is understood since to protest that he had been victimized in the matter, and at Bradlaugh's death he penned a remorseful and eulogistic article. Copies of the book are still believed to be on sale in underhand ways; and Mrs Bonner has recently had to take legal proceedings against one London bookseller who announced it in his catalogue, knowing it to be a libel, and not legally saleable.

In connection with the same matter Bradlaugh in 1888-89 brought an action against the *Warrington Observer* for a libellous article founded on the "Life;" and the proprietors, after undertaking to justify, finally withdrew the plea, apologised, and paid the costs and a sum of £25 to the Masonic Boys' School. A Scotch journal, the *Dumfries Standard*, had previously apologised with promptitude, paying costs and £10 to the Masonic Boys' School, which institution thus netted £110 in all from the proceedings in this one matter. Yet further, Bradlaugh sued the *Warrington Observer* for another libel, consisting in the publication of a malicious report of a silly proceeding in which a man who had been subpoenaed by him in the Peters' case applied to a London police magistrate to know whether he could recover "costs" for a day's attendance at the court. The man had actually been paid 10s., and Bradlaugh had refused to pay more. This case was tried (April 1889) before Justice Manisty and a special jury, who awarded Bradlaugh £25 damages—another windfall for the Masonic Boys' School.

As against the manifold annoyance of libels, Bradlaugh had in 1888 one great and solacing relief from a strain which had sorely tried him. His various lawsuits over the Oath question, despite the success of those against Newdegate, and the saving of outlay through his pleading his own cases, had left him saddled with a special debt of between £2000 and £3000, on which interest was always running. And, even as the lawsuits themselves helped to cripple his power of earning while they were going on, his intense application to his Parliamentary work had limited his earnings in the years following on his admission. His whole sources of income were his lectures, his journal, and his publishing business. But he could no longer give proper

personal attention to the pushing of the business; the lecturing was curtailed; and the journal fell off in circulation just when it might have helped him most. Thousands of miners had been among its subscribers, despite its non-democratic price of twopence; but prolonged distress among the miners caused many of these subscribers to emigrate, while many more could no longer buy it. In villages where forty or fifty copies had been bought, one or two had to do duty for all the remaining readers. All the while the borrowed capital on which the Freethought Publishing Company had opened business in Fleet Street had to bear interest, whereas, in the ordinary course of things, it had been hoped that the principal would have been repaid in the years that, as the event came about, had to be devoted to a desperate struggle against political injustice. Freethinking friends, who knew how he was worried by the fresh debts incurred in the struggle, started a fund in 1886 to meet the more pressing burden of £750, which then had to be repaid, and over £500 was then collected. But in August of 1888 his embarrassments became so serious that, answering correspondents who urged a holiday on him, he wrote: "My great trouble now is lest I should be unable to earn enough to meet my many heavy obligations, in which case I should be most reluctantly obliged to relinquish my Parliamentary career." He was then addressing seven and eight meetings a week, while other members were recruiting on the moors and on the Continent. The avowal, through no action of his, got into the newspapers, and was the means of setting agoing a general public subscription, the credit for starting which is due to Mr W. T. Stead, then the editor of the *Pall Mall Gazette*, whose action in the matter was chivalrous and generous in the highest degree. Another fund was opened in the columns of the *Star*, another at Northampton, another in the *Halifax Courier*, and the upshot was that in a month's time there had been subscribed close upon £2500. There were over 6000 separate donations, and the subscribers' names indicated a remarkable range of recognition. In addition to Freethinkers and Northampton friends who had helped nobly before and now helped again, there were remittances from sympathisers whose goodwill had not before been known to the subject. Sir T. H. Farrer, Lady Ripon, Mr D. F. Schloss, Lord Hobhouse (in "acknowledgment of gallant service done for mankind"), Mr Stansfeld, Mr T. B. Potter, Mr M'Ewan, M.P., Admiral Maxse, W. M. Rossetti, Auberon Herbert, Mrs Ernestine Rose, Mr Labouchere, Lord Rosebery, Mr Newnes, Lord J. Hervey, Mr Munro

Ferguson, are a few of the best-known names that catch the eye in the long lists, which include thousands of signatures. A number of Churchmen and Conservatives subscribed as such, some of them largely; £200 was given by one Freethinker over an initial, and £100 "from Melbourne;" groups of workers and clerks made up sums among them; clubs collected goodly totals; widows gave their mites; and hundreds of scattered toilers gave yet again of their scanty pence to the man they believed in. At his wish, the funds were closed, as far as possible, on his birthday, 26th September, when he counted fifty-six years, *bien sonnés*. Had he allowed the subscription to continue, the amount would probably have been doubled. As it was, he paid off all his outstanding law debts, and had a clear £1000 to put towards the others; and he turned with new cheerfulness and courage to his tasks, his holiday, as usual, being of the shortest. But hard upon the great relief came a great blow, of the kind that turns good fortune to ashes. On 2nd December his daughter Alice died of typhoid fever, after sixteen days' illness, aged thirty-two. She was her father's daughter in her high spirit, in her generosity, in her energy, and in the thoroughness of her work as a student and teacher of biology, though for all her years of ungrudging service in the latter capacity there is only left to show, apart from the gain and the gratitude of those she taught, her little tract on "Mind considered as a Bodily Function." It had been her wish that her body should be cremated; but the crematorium just then chanced to be out of order, and she had to be buried. Briefly acknowledging condolences, and replying to the request of many friends to be permitted to attend the funeral, her father wrote, to appear after it was over, the lines: "Any public funeral would have been painful to me; and I trust I offend none in not acceding. The funeral, private and silent, will have taken place at Woking Cemetery. The funeral wreaths and flowers sent are reverently laid on the grave."

The year thus grievously closed had been for Bradlaugh as full as the preceding ones of political work, which involved strife over and above that of the lawsuits, and over the Oaths Bill. On two issues he came in conflict with sections of the democracy. The first was Sir John Lubbock's Early Closing Bill, one of those measures in which legislatures go about to remove, as it were, tumours and swellings by applying a vice to them. Declaring himself strongly in favour of the shortening of hours by voluntary effort, Bradlaugh vigorously attacked the Bill as an arbitrary and capricious

application of force on wrong principles, pointing out that it would close shops irrespectively of the length of the shifts worked in them by the assistants, and that it left untouched public-houses and tobacco-shops, which were kept open latest. It had the further demerit of renewing the old Sunday Trading Act of Charles II. and increasing the penalties. On a vote (May) it was rejected by 278 to 95. This was one of several points at which Bradlaugh came in conflict with the policy of empirical regulation in which some Socialists go hand in hand with some Conservatives. He was blamed, as before mentioned, for rejecting State interference in some cases, while urging it in others, as that of truck. The criticism failed to note that he opposed truck as a form of fraud, not at all necessarily arising out of the economic situation, whereas hours of labour are determined by the whole economic situation. While offending some Radicals as well as Socialists by opposing time-laws, he offended the extreme Individualists by supporting Public Libraries, which he justified as he had justified State education, and as being a rather more defensible form of public expenditure than much of the outlay on armaments, to which so few individualists strongly demur, on principle or in practice.

But his sharpest conflict with men usually on his own side was over the Employers' Liability Bill, to which he had given constant and laborious attention as a member of the Committee appointed to consider the subject in 1886. He had then and afterwards taken every possible pains to get at the views of the workers, had spoken on the subject before many thousands of them, and had done all he could to make the Bill as strong a measure as could be carried. He did not like it in every respect; he objected to the retention in any form of the doctrine of common employment, and of the principle of contracting-out, both of which he had sought to restrict by his action as far as possible; but the measure was in several respects an improvement on the Trade Unions Bill of 1886, then introduced by Mr Broadhurst, Mr Burt, and others, to amend the Liberal Act of 1880. That Bill had been referred to a Select Committee under the Gladstone Government, which Committee duly reported. The Bill now (1888) under discussion was, save for one or two points, either the re-enactment of the Act of 1880, or the formulation of the suggestions of the Select Committee of 1886. It was, however, strongly opposed by the labour leaders, especially by Mr Broadhurst, who denounced it as "a sham, misleading, mischievous—the worst Bill ever introduced to the House," and moved its rejection on

the second reading (December), after it had been amended by the Standing Committee on Law. On this, Bradlaugh had a sharp brush with him, pointing out that with two exceptions all the complaints urged against the 1888 Bill struck equally at Mr Broadhurst's own Bill of 1886. The hon. gentleman denounced the new Bill as protecting the London and North Western Railway Company, whereas it did exactly, in that regard, what his own Bill had done; and an amendment which he had moved, as expressing his latest wishes, would equally have legalised that Company's arrangement with its employees. Bradlaugh's criticism was perhaps the sharper, inasmuch as he believed that the Liberal labour leaders were mainly concerned to throw out the Bill because it was introduced by a Conservative Government, who would in due course have claimed the credit if it had passed. Bradlaugh knew well enough that the Conservative party systematically facilitated certain popular measures which the same party would have strongly resisted when introduced by Liberals; but that was for him no reason for refusing to pass the measures so facilitated. He took all he could get, and fought for the return of a Liberal Government all the same. Mr Broadhurst, it is believed, afterwards regretted in some respects the attitude he took up, as did Sir William Harcourt, who hastily supported Mr Broadhurst by accusing Bradlaugh of attacking the trade unions in general—a charge which Bradlaugh instantly and warmly repudiated. However that may be, Bradlaugh's case may be read by those who care in his letter to his friend, Thomas Burt, M.P., published as a pamphlet. Mr Burt sent a reply, to which Bradlaugh gave prominence in his journal, in which one of his phrases, as to "setting the employed against the employer," was objected to; and on this point Bradlaugh explained the precise limit within which he applied it. He always opposed those workers who sought to make it illegal for masters to insure themselves against loss through accidents to their men; and on that point Mr Burt fully agreed with him.

A less prominent but important part of his dealings with labour problems was his service on the Committee which investigated the subject of the immigration of destitute aliens, and on that which investigated the working of Friendly Societies and Industrial Assurance Societies. As to the destitute immigrants, he was satisfied that they were not then numerous enough to justify any legislative action.

While to some extent in conflict, as we have seen, with some of his fellow Radicals, he was able to co-operate actively with the Irish party. On the Bill for the Commission to investigate the charges against the Irish members, he made what he confessed he believed to have been one of his best parliamentary speeches, but found it either ignored or "cut down to nothing" in the press. Recognition was forced, on the other hand, by his ever-increasing work on behalf of India, which in the course of the remaining two years of his life was to make his name known to every Indian interested in the affairs of the dependency.

1889.

Though already showing sad signs of failing health, Bradlaugh seemed to begin the session of 1889 with even extra energy. He laid down for himself at once a resolution dissenting from the Government's rate of commutation for perpetual pensions; a motion to expunge from the journals of the House the old resolutions excluding him; a fresh resolution on the utilisation of waste lands; a repetition of his motion for a new Rule as to the calling of members to the table; and a motion for a Royal Commission to consider the grievances of the native population of India; and he further introduced his Bill for the repeal of the Blasphemy Laws, and a Bill for abolishing political pensions. On the first paragraph of the address he made a strong speech in opposition, criticising the foreign, Indian, and colonial policy of the Government; and in regard to Ireland he made another of still greater vigour, setting out and ending with a telling attack on Mr Chamberlain, and vehemently impeaching the whole drift of Mr Balfour's policy in Ireland. Yet, again, he spoke on the Trafalgar Square question.

The first reached of his motions was that for the expunging of the resolutions excluding him in 1880, on which (8th March) he made an extremely temperate speech, assuring the House, however, that on behalf of his constituents he would certainly go on making his motion until it should be carried. The Government strongly opposed, through Sir Michael Hicks Beach and Sir Edward Clarke, who were however answered by Sir Henry James and Sir William Harcourt, and Bradlaugh had 79 votes to 122. He certainly did little about this time to propitiate the Government, making repeated attacks on their Irish policy and their colonial administration, besides keeping up such a fire of questions on grievances of every

description, submitted to him from all parts of the world—miscarriages of justice, official misdeeds and tyrannies, breaches of the Truck Act, jobs domestic and foreign, misdirection and ruin of emigrants, fleecing of workers in Government employ, waste of money on royal palaces, Irish oppression, and a score of things which cannot even be catalogued. Probably no non-official member had such a budget of daily business; and certainly none was more in earnest. At the beginning of April we find him writing:—

"I confess that I left the House about 1 A.M. on Tuesday, after a long sitting, in a very bad temper. All our front bench voted in favour of the Government resolution to spend £21,500,000 on the Navy, and to raise £10,000,000 of this by increasing the National Debt."

Of State finance he was the most vigilant of critics; and he caused much Tory resentment by habitually impugning the claim that the old purchase of Suez Canal shares had been a good investment. At least ten millions, he pointed out, had been spent in Egypt in pursuit of the policy of looking after the shares in question.

There was thus small sign of Conservative complaisance towards his Bill for the Abolition of the Blasphemy Laws. As always on such measures, he spoke with extreme concision and moderation, packing his argument with authoritative deliverances, and making only a quiet and simple appeal to good feeling. Similar bills had been introduced by Professor Courtney Kenny and other Nonconformists in the two preceding years, but had come to nothing. At first the promoters had inserted what is known as the "Indian clause," an extraordinary form of enactment which provides that any use of language "likely" to hurt religious feelings and cause disturbance, with the "intention" of so hurting feelings, should remain punishable. This clause had been unanimously rejected by Freethinkers as making fully a worse law than the old, the vague expressions as to "intention" and "feeling" being capable of a construction such as bigots had not ventured to put on the blasphemy laws, and the principle being plainly destructive of that of free discussion. Even one or two religious bodies petitioned against the Bill on the latter score. The dissatisfaction with the clause was so great that it was dropped, but even then it was not till Bradlaugh took up the Bill that it reached a second reading (12th April). It was now opposed not only by Tories, but by pious Liberals, Mr Samuel Smith and Mr Waddy in particular taking pains to get up a panic about the possibility of having impious

caricatures distributed at the doors of churches and Sunday schools, and children's minds blasted by blasphemous placards. Finally there voted only 46 for and 141 against the second reading. Most of the Liberal leaders were conspicuous by their absence.

He was better supported in the following month in his motion to dissent from the Government's system of commuting perpetual pensions. It was seconded by Mr Hanbury; and after a debate, in which Mr Gladstone spoke at some length in support of the resolution, the closure was carried on Bradlaugh's motion by 359 votes to 96, and the resolution was only rejected by 264 votes to 205. The moving of the closure in the midst of a speech by Dr Clark—a step which Bradlaugh declared to be fully justified by all the circumstances—gave some offence among Liberals; and just before, Bradlaugh had been made the subject of a furious newspaper attack by Mr John Burns, who pronounced him "the greatest enemy of labour in the House of Commons," and an opponent of "Employers' Liability Bills and other measures affecting the real interests of the people;" described him as shirking the Trafalgar Square question; and attacked him for having resisted a motion to reduce the Lord Chancellor's salary. The last step would have struck most people as one of peculiar chivalry, seeing that the Lord Chancellor had been one of Bradlaugh's most persistent and embittered personal enemies; but as the other items show, Mr Burns was not much concerned as to the validity of his charges. He even chose to speak of Bradlaugh as having sought an interview with him, when the fact was that Mrs Besant had introduced him to Bradlaugh to get the benefit of his legal advice. A more offensive attack was made on Bradlaugh shortly afterwards by Mr F. C. Philips in a serial in the magazine *Time*. The novelist made one of his characters allude to "a ruffian in the United States—a colonel, I believe—who is a kind of Yankee Bradlaugh, only that he has the courage of his convictions, which Bradlaugh has not." This was by far the least offensive part of the passage; and Bradlaugh, after expressing his surprise that any editor or publisher should permit such a wanton attack, added:—

"F. C. Philips is right in saying, at any rate so far as he is concerned, that I have not the courage of my opinions, for my opinion is that I ought to horsewhip him. As I will not do that, I reprint his words."

The publishers promptly and cordially apologised for the outrage, which had taken place entirely without their knowledge, and which was really a

piece of gratuitous literary ruffianism, not easily to be matched in modern times.

Much more troublous than any scurrilities or injustices from without was the shock which now came upon him from Mrs Besant's definite avowal of her conversion to the so-called "Theosophy" of Madame Blavatsky. No persistence of personal regard could countervail the complete sense of intellectual sundering from the friend and colleague of so many years which this involved for him; and the change was the more felt by him for that his physique was now fast giving way. But he held on his course with unchanging fortitude, adding fresh Freethought work to the ever-growing bulk of his work for India, and adding to his earnings as he could by articles for the reviews which were now open to him. An article on "Humanity's Gain from Unbelief," contributed in the spring to the *North American Review*, elicited an invitation to debate the point with the Rev. Mr Marsden Gibson, M.A., a Newcastle clergyman. This was accepted, and the debate took place at Newcastle in September, before densely packed audiences, on two successive nights. It was conducted with good feeling on both sides, the nearest approach to personalities being in respect of Mr Gibson's using the argument that Bradlaugh "stood alone," since "at least eleven apostles of the Secularist party" had left it within twenty years, Mrs Besant's being the only name given. Bradlaugh drily replied that he doubted whether the assertion was material to the question, but that if it were he could remind Mr Gibson "that eleven apostles deserted *his* founder in the sorest hour of his need." One bystander, not a Secularist, summed up the debate as a matter of Bradlaugh launching cannon-balls while his opponent spun cobwebs, a criticism partly justified by the rev. gentleman's defining "unbelief" as a state of mental indecision, whereas Bradlaugh, of course, used the term to signify the critical and challenging spirit. But the open-minded reader can judge for himself on the published verbatim report. It elicited a number of sermons, some decent and courteous, others otherwise.

If Bradlaugh could have spent his autumns on Loch Long (where at last he had secured for the dwellers and health-seekers an almost complete stoppage of the pollution of the waters by the discharge of Clyde dredgings and other horrors) instead of in the usual round of lecturing, he might still have been among us. But he could never have the rest needed to build up his strength after the session's long drain on it; his vascular system was fast

running down, and in October 1889 he was at length prostrated by a dangerous illness, a manifestation of the Bright's disease which was soon afterwards to destroy him. A surprising and touching proof of the change in public feeling towards him was given in the offering up of prayers in many churches for his recovery—a display of goodwill not undone by shoals of religious tracts, or even by the already started legend that he was "altering his opinions." One clergyman, the Rev. F. E. Millson of Halifax, generously gave a lecture specially to make a collection to help the sick man financially, which realised £10; and Mr M'Ewan, M.P., with characteristic munificence, sent him a cheque for £200 to enable him to take a health voyage to Bombay, as advised by the doctors. After weeks of extreme danger, he began slowly to regain ground. The great frame was not to be overthrown by one attack. But the seizure had been a terrible one: he had looked as close on death, he told us, as a man could look and live; and it was with heavy hearts that those who loved him saw him set sail in cold November for India. Before going, he penned a few notes, calmly contradicting the absurd story of his change of opinions, and other legends. "It would be ill-becoming to boast," he wrote, "but I may say that my convictions and teachings have not been with me subjects of doubt or uncertainty." One of the legends, circulated by the *British Weekly*, was to the effect that "on one occasion he said that he had almost been persuaded by a sermon of the Rev. Arthur Mursell." On this he remarked that the story was pure fiction; that though he had had friendly services from him, he had only heard Mr Mursell preach once in his life; and that all he remembered of it was the concluding intimation: "My subject next Sunday will be 'Beware of the Dog.'" The reverend editor of the *British Weekly* had thought fit to add to his tale the judgment: "He (Mr Bradlaugh) has the earthliest of minds, is without a touch of poetry, imagination, or yearning"—a Christian characterisation which the patient treated with the charity it so eminently lacked.

There was a pathetic fitness in the advice which sent the sorely shaken man to India to recover, if it might be, health wherewith to work. It was just after delivering a lecture on India that he felt the first grasp of his illness. What strength he had had, he had indeed freely spent for India. In 1888 he had handled more Indian matters than in any previous year; and in particular had made (27th August) an important speech (reprinted under the title: "The Story of a Famine Insurance Fund and what was done with it") by way of

protest, in the discussion on the Indian Budget, against the mismanagement of Indian affairs. Early in the session he had obtained a first place for his notice of motion on Indian grievances, but the Government took away the time; and he now made his criticism none the less forcible. None of his preserved speeches will better show the peculiar energy of his grasp of Indian questions, and of his pressure on the Indian Government; few indeed will better show one of the great characteristics of his speaking—the intense and constant pressure of his argument, the continuance of the highest stress of thought and feeling without a moment's lapse into incoherence or verbiage. It was in particular a crushing indictment of the action of Lord Lytton—the most destructive ever brought against him, Anglo-Indians say; and the ultimate effect of it was that the misapplied famine insurance fund was at length restored to its proper and solemnly pledged purpose.

It was a very different pulse and note that marked the short and grave address delivered by the stricken orator to the Indian Congress of December 1889. On board the *Ballarat*, jotting down a voyager's "log" for the friendly readers of his journal, he declared on the third day: "My health is coming back very fast; my hopes are rising even more rapidly;" but a man does not come back in a week or two to health from the door of death; the recovery slackened; and when he reached Bombay on the 23rd he was still far from convalescence. His reception would have electrified him into strength again if enthusiasm could. In the Congress Building, for the occasion of his coming, there were added to the 2000 delegates 3000 spectators, and the whole multitude rose to their feet in mass to cheer him as he appeared on the platform. Hundreds of addresses for presentation had been sent to him from all parts of India, some of them in rich cases, or accompanied by beautiful gifts in gold and silver and ivory and sandalwood. The address prepared by the Congress itself was read in lieu of all by the chairman, Sir William Wedderburn, and then the guest made his speech, a grave oration, touched with the tremour of recent suffering and restrained by the sense of broken strength, but full of greatness and dignity—a speech worthy of the man and of the occasion, weighty and wise in its counsels, urging patience, and disclaiming praise. It is impossible to read it without catching the vibration of its deep emotion, and as it were the breath of the listening host. The sight of the living mass, and the hearing of the actual proceedings at the Congress, gave him a new and illuminating knowledge of the great forces he had been dealing with; but he had nothing to unsay or unthink. Of the

vitality of the Congress movement he was well assured, and he could gather for himself how much of sympathy among English civil servants had as yet to be concealed.

He had no time to give to seeing the regions and the peoples which the Congress represented; and in any case it was the voyage that was to restore him if anything would. So on 3rd January he set sail from Bombay for home, receiving a tremendous ovation at the Apollo Bunder, where the carriage could scarcely get through the crowds that rained flowers on him and Sir William Wedderburn. The end of January found him once more at his library table and at his work, "marvellously better," indeed, but not restored. There was to be no restoration.

1890-1891.

Before sailing for India Bradlaugh had issued a summons to an extraordinary and special general meeting of the members of the National Secular Society, to be held after his return on 16th February, to receive from him a special statement, and his resignation of the Presidentship, and to elect a successor. This last was a step he had hoped to postpone until he had carried a Bill repealing the blasphemy laws. Freethought and Freethinkers would in that event stand free and equal before the law; and, with endless tasks before him as a legislator, he felt he might fitly withdraw from the more militant and organising work of Secularism, of which he had done so much. But looking to his defeat on his Bill in 1889, and to the desperate illness he had just gone through, he felt he must needs lighten his burdens forthwith as best he could.

The scene of his resignation was a touching one. From all parts of England came men who had fought with and for him, some of them for a good thirty years listening to his teaching and spreading it around, criticising him at times, but always admiring him, standing by him in battle and rejoicing with him in victory; and when he rose to lay down his leadership, and the cheers of welcome on his recovery rang warmer and warmer, it was some time before he could command himself to speak. A few moving periods told of the necessity he lay under of giving up a task which he was no longer fulfilling as he held it ought to be fulfilled. The party would have rejoiced to have him hold the office nominally, letting another do the work. But he

"must be a real President or none. My fault," he went on, "has sometimes been that I have been too real a one (laughter), but it is no easy matter to lead such a voluntary movement as ours. I think I am entitled to say that the movement is stronger when I am giving up this badge of office (holding up Richard Carlile's chairman's hammer) than when I first took the presidential chair." And a thunderous cheer endorsed the claim.

The office had no emoluments whatever. The little wooden hammer and its memories had been the prize for a generation of work involving much spending. He calculated that during thirty years he had given to the Society and its branches, as proceeds of benefit lectures, some £3000; and the members on their part gladly relieved him of certain money obligations of considerably less amount. He ended:—

"I do not say, 'We part friends,' because this is not parting. The movement is still as much to me as ever, as much as it has been during my life. For more than forty years I have been a speaker among you. Now I lay down the wand of office, and the right to give command, but I hope always to remain with you a trusted counsellor. And to you, I hope unstained—to you, I hope untarnished, I give back the trust you gave."

When the cheering and the addresses and resolutions had been got through, he proposed as his successor in the Presidentship Mr G. W. Foote, the able editor of the *Freethinker* and the leading lecturer in the movement; and on Mr Foote's being unanimously elected, he handed over to the new President the hammer of office, with the words: "I give it to you, George William Foote; and I trust that when it becomes your painful duty to resign, as I do now, the progress that has been made in the cause while you have held it will be such as to compensate for the pain."

In dismissing the meeting he gave it some grave words of counsel:—

"The battle of Freethought in this country is not over. There are signs, not far off, of possible strife, and there will be needed wise heads, cool heads, and firm hearts. There is a tendency to renew the anti-Jewish cry; and you may easily, in connection with the lower phases of the Salvation Army, get excitement and tension that need a greater self-command than is always shown among us, if personal conflict is to be avoided. The forthcoming report on sweating may bring about an attempt to raise the anti-Jewish cry; and it is impossible to have strife between religions without the possibility of the various religions turning on the one party that is outside all. One element of danger in Europe is the approach of the Roman Catholic Church towards meddling in political life.... Beware when that great Church, whose power none can deny, the capacity of whose leading men is marked, tries to use the democracy as its weapon. There is danger to freedom of thought, to freedom of speech, to freedom of action. The great struggle in this country will not be between Freethought and the Church of England, nor between Freethought and Dissent, but—as I have long taught, and now repeat—between Freethought and Rome."

To his political work he turned with all the strength he could command. At Northampton his constituents welcomed him back with joyful enthusiasm, and an address from the Liberal and Radical Association formally expressed their felicitations. When he addressed them, he had to stand for several minutes on end before the cheering and singing would subside. The speech had some pregnant passages:—

"I, personally, am not so hopeful as my colleague of a democratic Parliament in England. And why? Because a democratic Parliament in England can only come when you pay each servant there for the work and the service he renders you—(cheers)—and when the worry and the wear-and-tear of earning a livelihood beside his work do not"—he ended the sentence shortly—"sometimes break the man down."

On points of policy he went on to express himself firmly and uncompromisingly as to the Eight Hours' movement, against which he had already written and spoken as being utterly fallacious on the side of practice and pernicious in point of principle; and taking the demand for a time-law as the prelude to a demand for a wage-law, he assailed the entire movement as illustrating the practical application of Socialist theory to practice, both democratic and despotic:—

"As you all know well, I have always been in favour of Trade Unions; as you know also, I have spoken for them, and I have worked with them. (Cheers.) But I say here, I am utterly against—and though it should cost me my seat in Parliament to-morrow, I would be against—the doctrine and opinion that Parliament could thus add one farthing to a man's wage, or one jot to a man's comfort. (Cheers.) What Parliament can do is, remove restrictions; what Parliament can do is, reduce expenditure; and what the Emperor of Germany had better do, instead of summoning a conference of the nations of the world, is to disarm twenty regiments (great cheering), and send back to the plough and to the machine a huge number of men who now live upon the labour of others, and lessen the wage of others, by being soldiers instead of working men. (Loud cheers.) I speak most strongly on this, because I feel most strongly on it ('Hear hear.') I am not one of those, as you will know, who have ever yet, and I have passed too close to the end of my life to have any thought at anyrate to become one now—I am not one of those who have ever flattered the people, or striven to win their favour by telling them that from the Crown or from the Parliament that could be got which could not be got from themselves, by themselves. (Cheers.) I would impress upon you this. What the State gives to you, the State takes from you first; it further charges you with the cost of collection, and with the cost of distribution. ('Hear, hear.') Better by far for you that you should save for yourselves and spend for yourselves, than put into the purse of the State your earnings, of which only part can at best come back. (Cheers)."

Just after the Northampton meeting came the death of the man who had been his right hand in all his struggles there from the first—Thomas Adams, now ex-Mayor. Mr Adams had been a valued friend as well as a trusted agent, and his death came as another of the thickening blows of fate upon the rapidly aging man. In Parliament, all the same, he stuck sternly to his tasks. At the opening he had set down for himself important amendments to the Indian Councils Amendment Bill and to the Criminal Law Practice Amendment Bill; a repetition of his motions as to waste lands and the expunging of the old resolutions excluding him; and a motion on behalf of the financial Reform Association, calling for the abolition of the gold and silver duties and compulsory hallmarking; and he introduced besides an India Bill of his preparation. He at once resumed work, too, on the Royal Commission on Vaccination, on which he had done careful work in the previous year, charging himself as he did to watch over the case for the anti-

vaccinators, though not committing himself definitely to their view of the facts. He had been left out of the previous Royal Commission (moved for by himself) on Market Rights and Tolls—partly, it was thought, because Her Majesty could hardly be asked to include the Republican and Atheist in a list of "trustworthy and well-beloved" counsellors; but in the Vaccination Commission the difficulty was somehow overridden.

In the House, his first long speech was in opposition to the motion of Mr Cunninghame Graham on the Address with regard to the restriction of adult hours of labour by international legislation, and the sending of a delegate to the "Berlin Conference" to support such proposals there. The speech was a very vigorous one, and besides exposing some bad blunders in Mr Graham's figures, argued strongly against the policy of a time-law as a crude and superficial treatment of a far-reaching economic problem. During the course of the year he developed this criticism in various review articles and otherwise; and a systematic treatment of it was to have made a large part of the book on "Labour and Law" on which he was engaged at his death. Among his other Parliamentary discussions he fought his colleague's battle on the occasion on which Mr Labouchere was suspended for persisting in the declaration: "I do not believe Lord Salisbury"—in connection with the escape of Lord Arthur Somerset from a criminal prosecution.

He continued to incur a fair share of the personal abuse of which he had had such ample experience. The *Observer* told him that he was an object of "loathing" to Hindoos on account of his religious and Malthusian views; Mr Hyndman described him and Mr Burt as "friends of the plundering classes;" Mr William Morris's *Commonweal* dubbed him a "renegade;" and Mr Cunninghame Graham, by way of retaliation for punishment, declared his work to have consisted mainly in fighting about the oath and the existence of a Deity. The *Lady's Pictorial Journal* more subtly described him as "no longer the rough, rugged, carelessly-dressed man of the people, who once vainly sought admission to the popular Chamber, but a grave, dignified, and well-groomed senator;" and this legend of his "transformation" did duty with many as an exculpation of their own past brutalities. It almost seems heartless, as against such self-absolved penitents, to record the fact that in his costume he had always been the most conservative of men, and that he dressed in 1890 exactly as he had dressed in 1880 and 1870. The clerical stories of "awful examples" of ruined infidels, tacked on somehow to his

name, and the more obviously knavish stories of his having been "shown up" or "confounded" on the platform, continued to have their customary circulation; and during his illness and his absence the libellous "Life," of which the surplus copies had *not* been destroyed, was more actively circulated.

Accustomed as he was to the steadfast repetition of religious fictions against him after all manner of refutation and contradiction, he was somewhat astonished at the length to which some of the labour leaders had contrived to mislead their followers as to his action in the House. At a Labour Electoral Congress at Hanley, in April, one speaker, who declared himself otherwise friendly, actually moved a resolution "That this Congress regrets the determined opposition of Mr Charles Bradlaugh to the Employers' Liability Bill, as the working men of this country desire it to be passed, and refuses to recognise him as a labour representative." As has been above told, he had been the strongest supporter of the Bill, whereas its rejection had been moved by Mr Broadhurst. The mover may have been under a hallucination in which the roles of Mr Broadhurst and Bradlaugh were reversed; but the extent to which working men can go astray under such hallucinations was shown by the fact that the resolution was actually carried. The irrational hostility thus shown was of course not lessened when, in the debate on Mr Bartley's motion for an inquiry into profit-sharing, Bradlaugh administered another unsparing correction to Mr Cuninghame Graham, who in his excitement became so "interruptionous" as nearly to get himself suspended. "The hon. member," said Bradlaugh among other things, "charged Liberals and Nationalists with having done nothing to prevent the starvation of one man whose terrible death he had brought before the House; but what did he do himself except promote a strike in the district, one result of which was that many men were now without employment who had theretofore at least been kept from starving?" Mr Graham, with his youth and health, was no match for Bradlaugh, out of health.

While politics were thus growing increasingly contentious for him, he paradoxically found calm in new resorts to the theological controversy. A series of serenely trenchant papers on the question "Are the Hebrew Scriptures Impregnable?" in criticism of the treatise of Mr Gladstone—a criticism to which the right hon. gentleman offered no reply—were among

his writings during the session. He had increasing satisfaction, too, in his work for India; and on the occasion of a reception at Northampton to the delegates of the Indian Congress, he delivered a most eloquent speech, full of his old fire, though towards the end he was fain to express the wish that he had the force and fire of the old years. In the House, in the course of the session, besides constantly pressing Indian needs on the Secretary of State, he made an important speech on the case of the Maharaja of Kashmir, whose high-handed deposition by the Indian Government, on the scantiest justification, had seemed to him as worthy of reprobation as wrongs to common folk. Republican as he was, he would never admit that an Imperial Government, which itself professed to rest on hereditary monarchy, had the right to tread underfoot at pleasure the titles of Indian princes; and he saw at once what the Imperialists are so slow to see, that a brutal disregard of the established titles of such princes is the surest way to breed disaffection to British rule, which has the least satisfactory title of all. The official Liberal press, of course, lectured him for his failure to see that the official course was the right one, and charged him with championing a corrupt native despot. The sufficient answer to such deliverances was and is that within three years the Maharaja of Kashmir was restored, just as the famine fund was restored on Bradlaugh's previous pressure. From such eloquent facts we may infer what he might have done for the reform of Indian administration had he lived, and what a loss to the cause was his death, just as his most important plans were coming within sight of effective discussion. In his last enfeebled years he did for India what some men might have reckoned good work for a lifetime.

Weakened as he was, he entered on one undertaking during the summer, which, in the state of his health, was anything but prudent. Mr John Burns, in a public speech, spoke vaguely of challenging him to a debate in some very large hall on the Eight Hours question; but on being asked to come to business, declared that nothing would meet his wishes short of an open-air debate which could be "heard" by 200,000 persons, who were to vote on the issue—a farcical proposition which made an end of the matter so far as Mr Burns was concerned. Mr Hyndman, however, who from endorsing Mr Burns' denunciations of Mr Bradlaugh had in due course passed to denouncing Mr Burns, wrote to Bradlaugh challenging him in Mr Burns' place. "I observe," he put it, "that John Burns imposes such terms in relation to his debate with you, that he obviously does not wish it to come off."

After some contentious preliminaries, a debate on the Eight Hours question came off between Mr Hyndman and Bradlaugh in St James's Hall on the evening of 23rd July. It was, like most of the debates on Socialism held in London, a noisy scene, many of the Socialists present being disorderly in the extreme; and it was grievous to some of us to think that Bradlaugh, with his failing health and slackening nerves, should have the strain of such a meeting for such a grossly inconsiderate audience as made up the following of his opponent. The published report will serve to show whether the advocacy on the other side made the debate worth holding.

Twice in this year did Bradlaugh seek fresh strength on his fishing ground of Loch Long, far from the madding crowd. Failing still to build himself up to anything like his old standard of health, he grew more and more anxious about his money matters, the successful management of which depended so much on his keeping up his personal earnings. Physically unable to lecture so much as formerly, he sought by writing review articles to keep up a sufficient income to meet all his obligations. But on the other hand, he found himself at length obliged to close the Freethought Publishing Company's shop in Fleet Street, which meant too burdensome a cost for a bookselling business, even were that business not one-half boycotted by "the trade," and catering for only a section of the reading public. Appealing to that section to help him in the way of clearance sales, he wrote: "There are some folk who repeatedly say that I am rich. I should be a very happy man if to-morrow I could assign all my assets, except my library, which I should not like to lose, to any one who would discharge my liabilities." The closing of the shop was made the occasion of another painful step—the dissolution (December 1890) of the partnership which had for so many years subsisted between him and Mrs Besant. They had diverged too far in thought to permit of the old community of interest, though to the last Mrs Besant continued to write for the *National Reformer*, and there was no cessation of friendly intercourse.

Hardly was the dissolution accomplished when once more the overwrought man was struck down by the malady which had barely let him go a year before, and which this time was not to be fought off. On the 10th of January 1891 he came home very ill indeed, hypertrophy of the heart having followed on the old Bright's disease. After the first seizure was over, he went to see his physician, who diagnosed the trouble. Still he did not take to

bed, and about midnight on the 13th an attack of spasm of the heart, as he wrote in the last notes he penned or dictated, "nearly finished my chequered life." It was soon to end indeed. He rose to work as usual the next morning, and was unwilling even to have the doctor called in again; but on the day after he was persuaded to take to bed, though he went reluctantly, not dreaming at first that the end was so near. He had the best of doctoring and nursing; being attended by his old friend, Dr Ramskill, and by his near neighbour, Dr Bell; while he had in his daughter a nurse for whom the doctors had nothing but praise; but the case was past cure. He faced the end, as he had done twice before, with perfect tranquillity, sorry to close his work, but calm with the calmness of a perfectly brave and sane man. Coming from Scotland to see him a little before the end, I found him in the perfect possession of his judgment, occupying himself among other things by auditing the peculiar accounts of the Salvation Army, which he had mastered much more thoroughly than their framers liked; and at that time, though they had no hope, the doctors thought his illness would be a long one. He himself, I saw, was prepared for the worst. The one regret he expressed was that he probably should not be able to move once more the motion he had put down yet again at the beginning of the winter session, for the expunging from the journals of the House of the old resolutions excluding him. He had set his heart on carrying that motion, even as a similar one had been carried after the lapse of years in the case of Wilkes. And, happily, across the very shades of death there came for him a light of comfort on this his last desire. Dr W. A. Hunter, M.P., on being appealed to without the dying man's knowledge, instantly and kindly consented to move the resolution on his behalf on 27th January, when its turn came; and Bradlaugh, when told of what had been arranged, declared that that was the very choice he should have made, and turned contentedly to his rest, though he did not suppose the motion would even now be carried.

Dr Hunter's success, however, was complete. The motion was opposed at great length by the Solicitor-General, Sir Edward Clarke; but after Gladstone had delivered a conciliatory speech, the front bench agreed to accept the motion on condition that the words characterising the resolutions to be expunged "as subversive of the rights of the whole body of electors of the kingdom" should be dropped. These words had been copied from the motion in the Wilkes case, so as to follow precedent; but of course the essential thing was the consent to the expunging of the resolutions, which

very sufficiently implied all that was said in the withdrawn words. So, after Sir Edward Clarke had protested against a deletion, which he admitted to be "a mark of ignominy," Mr W. H. Smith agreed to the motion; and although Mr De Lisle made a foolish speech in opposition, even he expressed his "deep regret at the illness of Mr Bradlaugh," while Sir Walter Barttelot not only deplored that there should be any lack of unanimity, but expressed his admiration of the straightforwardness Mr Bradlaugh had shown in the discharge of his duties as a member. "God grant that the junior member for Northampton might recover; but whatever happened, hon. members would feel that, by accepting this motion, they had done a generous act towards a man who had endeavoured to do his duty." So the motion was finally carried without dissent, amid cheers, and the wrongful resolutions were formally expunged.

Alas, when the news of the triumph was telegraphed by Dr Hunter, it was too late to tell the dying man. Day by day he had grown weaker, albeit cheerful and even sanguine when he drowsily talked of himself; and now he had sunk so low that his daughter dared not rouse him with so exciting a message. He never fully regained consciousness; and those about him learned how bitter a thing it could be

"To hear the world applaud the hollow ghost
Which blamed the living man."

The end came on the morning of 30th January 1891. He was fifty-seven years and four months old.

As in his previous illness, prayers had been offered up for him in many churches; and many were the tributes of those who had been opposed to him in religion and in politics; still more, of course, of those more in agreement with him. But his daughter had been driven to take the precaution of procuring signed testimony, from those who had been attending him, that during his illness he was never heard to utter one word "either directly or indirectly bearing upon religion or any religious subject." The eternal pretence of a "recantation" was already current afresh, as it had been after he resigned his presidentship of the National Secular Society, even while he was writing his arguments against Mr Gladstone's book, and re-stating his Atheism as explicitly as ever in his "Doubts in Dialogue." One

of the last non-political lectures he had given, in November, had been a manifesto on "My Heresy now and Thirty-six Years ago;" and in December he had discoursed on "Life, Death, and Immortality" with no faltering in his doctrine.

The funeral was on 3rd February, at Brookwood Cemetery. He had never troubled himself as to how his body should be dealt with, so his daughter chose that it should be in the "earth to earth" fashion. At his express wish, written in a will dated some years before, the burial was perfectly silent—an arrangement which caused some regret among friends, and some characteristic phrases about "being buried like a dog" from others, who could not feel the pathos and solemnity of the silent sepulture, amid the uncovered multitude who had come to pay their last tribute at the grave of the man they had honoured and loved. As he had always disliked the shows of mourning and the badges of grief, those who knew his tastes wore none. But the grief of the thousands who filled the trains from London to the burial-place was such as needed no other attestation. They were of both sexes and all classes, from costermongers to right honourables; they came from all parts of England; and soldiers' red coats and the bronzed faces of hundreds of Hindus gave a wide significance of aspect to the throng. Hundreds, many of them from Northampton, had brought the little tri-coloured rosettes they used to wear in the old fighting days; and many threw these in the grave, some saying as they did so that their work too was done, now that he was gone.

Over an hour after the coffin had been laid in the earth, when it was thought that the multitude had passed away, the immediate friends and mourners of the dead went back to take a last look, and they found that a lingering band of devoted men had got the shovels from the workmen, and were one by one obtaining the last sad privilege of casting their handful of earth into the grave.

CONCLUSION.

If the foregoing volumes have not shown what manner of man Bradlaugh was, as well as what he did, they have been written in vain. But it may be fitting to attempt, in a closing page or two, some general estimate of his personality. The present writer is, indeed, conscious of unfitness for the

task, were it only because of a personal affection which must somewhat bias criticism. But when a man has had so much evil said of him as Bradlaugh had throughout his life, the inclining of the balance a little way towards love and admiration may be forgiven. Indeed, most men would find it hard to write of him with perfect impartiality. He inspired, as a rule, either aversion or admiration, and the furious enmities of which these pages bear record were in a way the correlative of the intense devotion given to him by thousands.

Such a description would in some cases suggest an intensely passionate and ill-balanced nature, at once winning and grievously faulty; hardly a man of keenly analytic intellect, remarkable self-control, and extreme sagacity. Yet these latter qualities he certainly had. He was in truth a singular combination of chivalrous heroism and practical wisdom—a combination such as I cannot find a parallel for in memory. He had the quixotic ardour of a young enthusiast, an ardour which never left him to the end; and he combined it with a political foresight and judgment such as few modern English statesmen have exhibited. It was the ardour for justice and truth, the forthright sincerity and disregard of convenient conformities, that won him the love and allegiance of men who possessed and valued courage; and it was his keen sagacity that kept their adherence. In modern England he stands out singularly as a powerful and prominent man who chose to set his face openly and systematically against what he held to be shams and delusions, though the impeaching of them brought him the bitterest hostility, the foulest calumny, and a perpetual struggle, where a mere tacit conformity would have meant manifold success, wealth, and ease. There is no country in which straightforwardness and single-mindedness are more belauded than in England, and perhaps none in which they are scarcer. The praise of them forms part of the "cant that does not know it is cant," which Carlyle denounced, and exemplified. Men declare their esteem for courage and sincerity; and when they meet a shining example of these virtues they cast their mud with the unthinking vulgar. No amount of reiteration of phrases about prophets who have been stoned by the Scribes and Pharisees can withhold the average moralist from joining the Scribes and Pharisees when the next prophet shows face. To panegyrisé old prophets in platitudes is such a very different thing from recognising a new one in the marketplace and taking him by the hand.

Of course, while men do unquestionably dislike an innovator and fighter for being more honest and plain-spoken than themselves, they do not openly put their enmity on those grounds. They must find sins and faults for him: what faults he has they will magnify and multiply. And as, of course, all of us who practise any self-criticism at all can realise that the hostilities we set up, however unjust we hold them to be, have a certain basis in our shortcomings, it is only reasonable to look for part of the pretext of Bradlaugh's enemies in his. What then were his faults? We have seen and heard enough of those falsely imputed: what was his real share of human infirmity? I have heard him accused, by people who were not rabidly hostile, of egoism, vanity, love of flattery, and a tendency to be overbearing. For perhaps all of these charges he would himself have more readily admitted a foundation than would his sympathetic friends. He used to make humorous allusion, in his speeches at Freethought gatherings, to his despotism in the chair. He ruled conferences with a rod, not of iron but of ivory—the rod of absolute technical law. He was the most swift and unyielding of chairmen; and men unwittingly out of order called him not only hard but unjust. But some who had resented his way in these matters have been known spontaneously to wish for his ruling hand when it was still. In all matters where authority and command belonged to the situation, and he was in authority, he ruled with a military firmness and quickness; and as no man can miss making mistakes, he must have made some, though they would be hard to prove. Nay, he himself avowed a certain stress of nervous energy which, on bustling occasions, made him abrupt and impatient of meddling and dilatoriness. This overplus of energy came out quaintly in his inveterate habit of being much too early for a train. He had, in fact, the relative defect of the Napoleonic quality of swift decision and intense determination. Thus, as one Freethinker once told him, his manner was not always "economical;" and the hostilities he aroused were apt to be as intense as the admirations, and to be hindrances to his career. Most of his enemies were themselves certainly faulty men, and not a few were very bad men indeed; but he would not have denied that he might at times have made an honest man his unfriend. Such an abnormal will-power as his^[193] cannot miss making some of the manifestations of excess of driving power in the human machine. But nothing could be more mistaken, or more unjust, than to make out that this stress of will-power made him an unjust or an inconsiderate man. On the contrary, tried by the decisive tests of his family

life and his relation to his colleagues, he was the fairest and most tolerant of men. Of his family virtues his daughter has told: of his considerateness as an editor all who worked with him can speak. I never knew or heard of one who even came near him in his regard for the independence of his contributors, and in his concern to give the fullest hearing to opponents. In all the essentials of just-mindedness he was singularly well endowed; it was only in respect of physiological over-emphasis that he could ever be impeached. And even on that score, as has been above abundantly shown, it is utterly false that he was ever brutal in speech, or arrogant or discourteous in intercourse or controversy. He was even criticised at times for a certain old-world courtliness, more continental than English, and this long before he had won general recognition. A thousand printed reports and testimonies go to dispose of vague and unsupported aspersions. I am told that in the last year or two of his life, when his nervous and vascular system was breaking up, he was at times sharply impatient of incompetent opposition on the secular platform, but that is a small matter against the self-control of a lifetime. Tried by, or in comparison with, his peers, he needs no vindication.

On the points of "egoism" and "vanity" I have heard him forestall criticism. He confessed that he sought power, and shaped his life to attain his ambitions—these being what they were. He had simply the egoism of an extremely powerful man with an end in view. But it was never the egoism of a Napoleon, stooping to meanness as readily as it hazarded battles. He was an honourable gentleman to the end. Those who deprecated his legal way of fighting legal battles simply failed to appreciate the lawyer's method. That he was a born as well as a trained lawyer many lawyers have admitted; and he fought technically, and thwarted his enemies by technicalities, because law was to him a technique. Nobody but a man with a genuine belief in it as a technical system would have gone to law as often as he did, even to resist gross injustice. On the point of "vanity," again, he frankly anticipated criticism. "Oh, don't say that: *I am very vain*," I once heard him say to Madame Venturi when she was protesting that a certain statesman's vanity was insufferable. Of course such a confession could not come from a really vain man. He once spoke of "the Irish part of my character" as something that his friends must allow for. A man who can thus detect foibles in himself is not badly swayed by them. As for the charge that he was susceptible to flattery—a variant on the trite and stupid charge of "love of notoriety"—it came latterly, I think, only from Liberals in the

House who grudged his popularity among the Tories, they themselves seeing in him a stumblingblock to that species of success which both parties are so apt to set above pursuit of principle. The later Tories, having nothing to suffer in the esteem of the pious from friendship with him, showed him some consideration; while the official Liberals uneasily anticipated the demand from their supporters outside that Bradlaugh should be in the next Liberal Cabinet. It is painful to have to say that to such Liberals his death was a relief. And it is intelligible that they should prefer to see in his geniality and courtesy a fishing for Tory flattery rather than a manly merit. If after years of desperate strife, conscious of failing health, the aging fighter had been sedulous to win goodwill, it would have been small harm; but he was genial out of the very warmth of heart that had made him a fighter. Of his unwavering fidelity to the Radical principles of his life it would be vain to say anything here if the preceding pages have not made it clear. The respect which he won from political opponents in the House was no result of compromise on his part, or of his resistance to certain Socialist doctrines. He was in sharp collision with them on other issues to the last. A good testimony to the genuineness of their respect is that which comes from the late Mr W. H. Smith, in his biography by Sir Herbert Maxwell. It is there told that once in 1886 Mr Smith's private secretary, travelling in the same railway carriage with Bradlaugh, happened to mention the station at which he was going to stop. "Ah, you are going to stay with Mr Smith," said Bradlaugh. "Well, I don't suppose there is a man in the House of Commons or in England with whom I am more widely at variance on many subjects, yet there is none for whom I have more sincere respect." In the evening the secretary told his host that he had travelled down with Bradlaugh. "Indeed," said Smith. "Well, it's a strange thing; I don't believe there is a man whose opinions I hold in greater abhorrence than Bradlaugh's; but I cannot help feeling that there is not an honester man in Parliament." And I have myself heard Bradlaugh speak in private of the genuineness and simplicity of Smith's character—in respect of such a matter as private donations to churches—even at a time when he had penned humorous paragraphs on Smith's head-butler manner of leading the legislature. Both men were honest, and that was a ground of sympathy. And though the professor of the "religion of love" had to express "abhorrence" of the opinions he rejected, he called to make friendly inquiry when

Bradlaugh lay on his deathbed—an attention paid by none of the Liberal leaders.

But this honesty, which won him the regard of antagonists when they came close enough to see it, was simply the manifestation in political life of the fundamental and propulsive love of truth and reason which made him an Atheist propagandist. He happened to care for truth and justice all round, where other men were satisfied with a measure of homage to one or two principles they cared to recognise, or prejudices they cared to gratify. He had leapt forward, from his youth up, at the sound of the trumpet in every good cause, where they had mostly been careful to count the cost.

"No fetter but galled his wrist;
No wrong that was not his own."

And to his last days, he never learned the sordid lessons of prudent conformity even where they might have meant a serious lightening of his burdens. Once in the last year of his life, I commented jestingly, as laying down the code of commercial journalism, or his devotion of columns of his journal to dry details of the Indian grievances he took up, when he might have raised the circulation by lampooning his fellow-members. He felt so strongly on the subject of English disregard of Indian claims that even the jest disturbed him, and he met it with an *Et tu, Brute*. No man was saner in the adjustment of a necessary compromise in legislation; but no man was ever more innocent of the spirit of Nothingarianism. "Good God, Bradlaugh," said a friendly Conservative member to him one day, reproaching him for his quixotry, "what does it matter whether there is a God or not?" The amiable indifferentists who subscribe to that philosophy, though they may have been able to appreciate him as a companion, will never be able to understand the enthusiasm which Bradlaugh aroused in thousands of those who followed him, and even in some whose way of thought diverged far from his. I have heard of one eminent professional man who long wore Bradlaugh's portrait next his breast, and long hesitated between following him and turning Catholic. Men who never had any leanings that way could the more heartily give their devotion. Certain it is that Bradlaugh evoked a passion of love and loyalty from thousands, such as no other public man of his day called forth. His followers followed him as Nelson's men did Nelson. Mr Gladstone has the enthusiastic reverence of

myriads; but men who would go through fire and water for their leader, and give up their tobacco to send him a weekly sixpence, were to be looked for rather in Bradlaugh's following than his.

Men turned instinctively to Bradlaugh as to a born leader. Had any great social convulsion arisen in his time, such as some foretell for the near future, he would infallibly have come to the front as none of his political contemporaries were fitted to do—as Cromwell did and as Danton did. In him the faculty of action was not limited to the sphere of the forum and the bureau. It has been told^[194] how, when in Spain, he offered to the Republican leaders to go with fifty horsemen and shoot the traitorous general in the north; and we may safely hold with the narrator of this episode that "he would have done it" had the offer been accepted. Among the many adventures of his younger days, the details of which will probably never now be put together, was a singular attempt in which he took part to secure the election of a Liberal Pope. He carried letters to and fro in Europe on behalf of Italian and other democrats who had conceived the scheme. All I learned from him was the fact of his positively taking part in the enterprise, which, of course, failed. In these and other journeys he ran many risks; and he told a funny story of how, travelling one night in a German train with a good deal of money in his possession, and being awakened from his sleep, with the train at full speed, by the conductor's lamp presented to his face, after the continental fashion, where on his lying down there had been no one else in the compartment, he in an instant had that startling and startled functionary by the throat in the opposite corner of the carriage. His army training and his later experiences had developed in him a remarkable turn for dealing promptly with physical emergencies; and persons who sought, in the old days, to block the "Reform" processions for the leading of which he was responsible, came to swift and serious confusion. To the last he had in him something of Cromwell's Berserker temper, though at his blood's hottest he could never have been guilty of the Puritan's ferocity. It came out in him in such acts as his personal seizure and expulsion of rowdies from his meetings. I saw him effect this dramatically enough at one of the great St James's Hall meetings he organised about 1886. Tories had come with forged tickets, but were detected and ejected; and these, or others, determined to give due trouble, took the course of keeping up a loud and distracting tapping on the glass door at the off end of one of the balconies. The disturbers being in great force outside, the

doorkeepers were helpless; the loud click-click was disconcerting the speaker then on his feet; and the audience were growing more and more irritated and restless. Bradlaugh left the chair, passed down and then up to the balcony, made his way along to the door, opened it sharply and disappeared, but in a moment re-entered, holding a man by the collar. This was the ringleader with the stick. Startled at the apparition of Bradlaugh, he had involuntarily raised that weapon; but in a flash it was out of his hands and broken across Bradlaugh's knee. The pale disturber was then taken by his captor—still by the collar—along the crowded balcony to the platform end, where he was ejected by the other doorway. He did not return: his followers broke up; and the meeting proceeded in peace, after a spontaneous expression of its satisfaction at the manner of the relief. That there was nobody like Bradlaugh for an awkward emergency, was the fresh verdict of his followers.

And these things, and his shaping of his life, were all of a piece with the extraordinary effectiveness of his oratory. In tempestuous power and intensity of feeling it surpassed any that it has ever been my lot to listen to: it roused men to great thrills of sympathy apart from any of that foregone approbation which swells the cheering for so many political leaders. He could make enthusiastic followers at one hearing, and keep them for a generation. Oratory was with him not an art, but an inspiration; he even misused his wonderfully powerful voice; but he sounded easily all the notes of eloquence, giving at times the whole gamut of effect, jest, pathos, gravity, reasoning, epigram, and thunderous vehemence, in a quarter of an hour's speech. The platform was pre-eminently his place; and no one who merely reads his articles written for reading, tersely strong as his style generally is, can know the extent of his power over language. It did not lie in any special sonority of vocabulary or choice of cadence, but in a volcanic sincerity and spontaneous fire of speech which yet never passed beyond the control of logic and judgment—something equally removed from the measured passion and forceful dignity of Bright, and the copious mellifluence of Gladstone. It was the oratory of unswerving conviction, grave or impassioned or satirical in turn, but always felt and never factitious. He spoke as he lived and fought, going straight for his mark, and staking all on the issue.

To those whom his career leaves cold and whom his character cannot attract, it is enough to say that those who applaud the career and honour the character recognise in them, in their special kind, that invincible and unforgettable something which marks men for remembrance long after their immediate influence has passed away—the something which in artists and poets and warriors we call genius. What Mr John Morley has called the dæmonic elements of character, but may perhaps better be called the dynamic elements, were present in Bradlaugh in a degree which gives a personality a lasting interest. Beside the cautious and merely judicious or clever men, he stands out as one of larger mould and greater fibre, a battling and conquering Titan, sure of the sympathetic retrospect of happier days. It is not merely that as a statesman he impressed friends and foes alike with his insight and his sagacity; and that he combined the fire of the orator with the exactitude of the scholar and the rigorous thinking of the born reasoner; but that in him sagacity never ceased to be heroic, and that his commanding powers rested on a character more commanding still. When, in September 1892, twenty months after his death, a gathering was held in his memory on the occasion of the completion of the bust for his grave, the enthusiasm was as strong, the throng as dense, the tributes as warm, the sympathy as keen, as on the day he was struck down. His name is verily not written in water. And the bronze bust on his tomb, recalling as it does the high front and the unflinching eye which his friends loved to associate with him, and seeming as it does to face fate with an immovable strength and firmness, will for many a year say to passers-by what has been sought to be told in these pages—"This was a man."

THE END.

APPENDICES

APPENDIX I.

MR. BRADLAUGH'S BIRTHPLACE.

On p. 3 it is stated that Mr. Bradlaugh was born at No. 5, Bacchus Walk, Hoxton, but this appears to be an error, of which I only became aware in 1905. In that year the London County Council had under consideration the question of placing a tablet on the house in which my father was born, and they wrote me for the purpose of obtaining documentary or other evidence as to the identity of the house. As a result of careful inquiries I found that the birthplace of my father was No. 31, and not No. 5, as I had previously believed. As it was possible that the street had been renumbered, the London County Council undertook to try to find out, and Mr. Gomme, Clerk to the Council, subsequently wrote me that although this point could not be determined with exactitude:

"The probabilities are that the street had not been renumbered since the date of Bradlaugh's birth. If such is the case the house in which he was born has disappeared, for about 1883, No. 31 Bacchus Walk was with a block of other houses in the street demolished to provide a site for the present St. John's Road School, Hoxton. On my reporting these facts, the Committee of the Council dealing with the matter regretfully decided that under the circumstances they could take no further action with regard to this house.

"It will interest you to know that the Committee have also taken steps with a view to the erection of a tablet on No. 20, Circus Road, S. John's Wood, where your father died, after having resided there for a considerable period. The owner of the house, however, refused to consent to the erection of a tablet, and the Committee were thus compelled to abandon the idea of indicating this house."

H. B. B.

APPENDIX II.

LORD DUFFERIN AND CHARLES BRADLAUGH.

The following significant correspondence between Lord Dufferin and Mr. Bradlaugh is now (1908) included for the first time in this biography.

Lord Dufferin's letters are written throughout in his own handwriting, and the draft of my father's letter is written by his own hand. I am the more fortunate in having this, because it was very rare indeed for him either to make a draft of his letters or to write at such length. The occasion was, however, one of more than usual importance. Lord Dufferin sent with his letter a copy of the speech he delivered at the St. Andrew's dinner, Calcutta, on November 30, 1888, ten days before he ceased to be Viceroy of India. It makes a booklet of 21 quarto pages, and it is to this that reference is made in the letters.

H. B. B.

"Lord Dufferin presents his compliments to Mr. Bradlaugh, and, well knowing that even his bitterest opponents are ready to recognise not only Mr. Bradlaugh's ability, but also his perfect sincerity, uprightness and honesty of purpose, he takes the liberty of addressing him in reference to a lecture which Mr. Bradlaugh delivered in the Tyne Theatre at Newcastle on the subject of our Indian Empire. In that lecture, though Mr. Bradlaugh did not refer to Lord Dufferin in unduly harsh or unfriendly terms, he did certainly misrepresent both the words and the tenor of his Calcutta speech. This probably arose from the fact of the *Times* correspondent having only telegraphed those parts of the speech with which he himself especially sympathised. Under these circumstances, Lord Dufferin has taken the liberty of sending Mr. Bradlaugh a full copy of the speech as it was delivered. The statements in Mr. Bradlaugh's lecture to which Lord Dufferin particularly objects are:—First, that Lord Dufferin has misrepresented the avowed views of the Congress and its supporters. He can assure him that he has not done so. Mr. Bradlaugh may be quite certain that, before saying what he did, Lord Dufferin took every precaution to verify his references, and that the proceedings of the Congress and of the Committees whose conclusions the Congress adopted, were precisely what he described. It is true, at the last meeting, thanks to the friendly warnings which Lord Dufferin had given, the attitude and suggestions of the Congress were much more reasonable and moderate.

"The second statement in Mr. Bradlaugh's address to which Lord Dufferin objects, is where he says that Lord Dufferin asserted that these Congresses were seditious. Again he begs to assure Mr. Bradlaugh that he never, either directly or by implication, gave utterance to such an opinion. He has always referred to the Congress in terms of

sympathy and respect, and treated the members with great personal civility. What he criticised was the distribution, amongst an ignorant population, under the auspices of some ill-advised persons who were not even natives, but with the authority of the Congress, of pamphlets which were calculated to excite the hatred of the people against her Majesty's Government in India.

"Mr. Bradlaugh also seems to imply that Lord Dufferin has opposed himself to the native demands for a reform in the Civil Service. So far from this being the case, before the Congress even put forward any such suggestions, Lord Dufferin had appointed a Commission, with Sir Charles Aitchison (one of the most liberal-minded men that have ever been in India) as chairman, and some leading natives as members, to propound a scheme for the larger admission of natives into the higher ranks of the Civil Service. This Commission has recommended that over 120 offices now closed to natives should be thrown open to them.

"However, if Mr. Bradlaugh will only read Lord Dufferin's speech, Lord Dufferin thinks he will see that it is conceived in a totally different tone and spirit from that which Mr. Bradlaugh has himself imagined, and he may tell Mr. Bradlaugh in confidence—though, of course, he would desire that it should remain unknown to anyone else—that he himself has been doing his very best to forward such a reform of the Provincial Councils in India as Mr. Bradlaugh appears to advocate. In further illustration of his position, Lord Dufferin may mention that Mr. Yule, the gentleman who acted as chairman of the last Congress at Allahabad, was present on the occasion on which Lord Dufferin delivered the speech which Mr. Bradlaugh has criticised, and, at its conclusion, went out of his way to thank him for it as being calculated to do the very greatest good.

"Mr. Bradlaugh has also fallen into an error in considering that Lord Dufferin's speech is likely to cause embarrassment to Lord Lansdowne. It was intended, on the contrary, to produce the very opposite effect, and to smooth Lord Lansdowne's way for him; and it is in this light that both Lord Lansdowne himself and his friends regard it; for it is obvious that Lord Dufferin having undertaken the disagreeable task of pointing out the extravagances into which the Congress was being insensibly led, there will remain to Lord Lansdowne the agreeable duty of inaugurating whatever concessions it may be possible to make.

"In conclusion, Lord Dufferin hopes Mr. Bradlaugh will understand what perhaps is not readily appreciated by those who have not lived in India; namely, that the Government of India is perpetually fighting, on behalf of the great masses of the population, against the encroachments and usurpations of what may be called the specialised interests; for, unlike almost all other Governments, it is unconnected by ties of prejudice or self-interest with any particular class or section of the community it governs.

"Lord Dufferin is quite satisfied that Mr. Bradlaugh will forgive him for troubling him with this short letter of explanation.

"British Embassy, Rome.
"7th February, 1889."

(Draft Letter.)

"Mr. Bradlaugh, in acknowledging Lord Dufferin's 'private and confidential' letter of February 7th, desires to specially recognise the frank and more than kindly tone of that letter, and trusts that in the observations which Mr. Bradlaugh feels called upon to submit to Lord Dufferin's consideration, he may be pardoned if he ventures sometimes to wholly differ, even on statements of fact, from one so eminent, and one whose recent Vice-regal position entitles him to special respect and attention in matters concerning India. It is true that at the time of the Newcastle speech and until the receipt of the letter of February 7th, Mr. Bradlaugh had only seen the Calcutta speech as given in the *Times*, and he is exceedingly obliged to Lord Dufferin for the more accurate and complete report enclosed in his Lordship's letter. Perhaps Mr. Bradlaugh may be permitted to add that although the report of his own Newcastle speech as given in the *Newcastle Daily Leader* is very full and, on the whole, fairly accurate, it is necessarily not verbatim, and has appeared without any correction. The report in the *Newcastle Daily Chronicle* was less full, and though fair, has, in abbreviating, occasionally varied the meaning. This observation is only offered because of the importance the speech acquires by Lord Dufferin's notice of its purport. Mr. Bradlaugh, in charging Lord Dufferin with misrepresenting the avowed views of the Congress, was careful to express his opinion that Lord Dufferin had been misled by inaccurate information, and if now Mr. Bradlaugh had alone the Calcutta speech to guide him, he would still incline to that view; for the words on p. 9, line 26, 'the ideal authoritatively suggested, as I understand' seem to imply that Lord Dufferin spoke rather on information received than on his personal knowledge, but in view of Lord Dufferin's declaration that 'he took every precaution to verify his references, and that the proceedings of the Congress and of the Committees whose conclusions the Congress adopted were precisely what he described,' Mr. Bradlaugh trusts that he may be permitted to justify and maintain his criticism of Lord Dufferin's words as follows (Calcutta speech, p. 9, line 20, to p. 10, line 1):—

"Some intelligent, loyal, patriotic, and well-meaning men are desirous of taking, I will not say a further step in advance, but a very big jump into the unknown—by the application to India of democratic methods of government and the adoption of a Parliamentary system, which England herself has only reached by slow degrees and through the discipline of many centuries of preparation. The ideal authoritatively suggested, as I understand, is the creation of a representative body or bodies in which the official element shall be in the minority who shall have the power of the purse, and who through this instrumentality shall be able to bring the British Executive into subjection to their will.'

"On this Mr. Bradlaugh ventures to refer Lord Dufferin to the only authoritative suggestion of which he is aware, *i.e.*, the actual resolutions of the Congresses defining their 'tentative suggestions' of reform and which seem to him to so essentially contradict the understanding arrived at by Lord Dufferin that Mr. Bradlaugh requotes their tenor from Resolution 4, with its sub-sections, as printed in the report of the Calcutta Congress, which, he respectfully submits, completely justify his Newcastle speech; he believes that these resolutions were precisely re-affirmed at Madras and Allahabad:—

""(1.)—The number of persons composing the Legislative Councils, both Provincial and of the Governor-General, to be materially increased. Not less than one-half the Members of such enlarged Councils to be elected. Not more than one-fourth to be officials, having seats *ex-officio* in such Councils, and not more than one-fourth to be Members, official or non-official, nominated by Government.

""(2.) The right to elect members to the Provincial Councils to be conferred only on those classes and members of the community, *primâ facie*, capable of exercising it wisely and independently.'

And, after suggesting possible elective bodies, it concludes:—

""But whatever system be adopted (and the details must be worked out separately for each province) care must be taken that all sections of the community and all great interests are adequately represented.'

In sub-section 6 providing that:—

""All legislative measures and all financial questions, including all Budgets, whether these involve new or enhanced taxation or not, to be necessarily submitted to, and dealt with by, these Councils.'

And giving right of interpellation, it is

'provided that if the subject in regard to which the inquiry is made involves matters of foreign policy, military dispositions or strategy, or is otherwise of such a nature that, in the opinion of the Executive, the public interest would be materially imperilled by the communication of the information asked for, it shall be competent for them to instruct the *ex-officio* Members, or one of them, to reply accordingly and decline to furnish the information asked for.'

And by sub-section 7 it is expressly declared that:—

""The Executive Government shall possess the power of overruling the decision arrived at by the majority of the Council in every case in which, in its opinion, the public interests would suffer by the acceptance of such decision.'

"As it was on the faith of his reading of these resolutions, which he had in his hand when speaking at Newcastle, that Mr. Bradlaugh made the statement to which Lord Dufferin objects, he ventures to submit that such resolutions show clearly (1) that there is no attempt whatever at 'the application to India of democratic methods of government'; or (2) at 'the adoption of a Parliamentary system which England herself has only reached by slow degrees'; (3) there is no creation of a representative body or bodies, there is simply the proposal that an existing body shall be enlarged and half of it made representative under special limitations of electorate; (4) the Executive is only mentioned to preserve it as paramount and with overruling power over the Legislative Councils which alone are meant or referred to; (5) though it is true that it is proposed that the purely 'official element' shall be a minority, as sitting *ex-officio*, it is also stated that a moiety of the Legislative Council shall be non-elected Government nominees, such nominees being either official or non-official as the Executive may decide.

"Mr. Bradlaugh notes that Lord Dufferin considers that 'the attitude and suggestions of the Allahabad Congress were much more reasonable and moderate,' and as Mr. Bradlaugh has not yet received any authorised report of that Congress he differs from Lord Dufferin with great hesitation; but so far as he is able to judge from the newspaper reports, and from the comparison of these with the official reports of the three previous Congresses, the attitude in each case was that of moderate statement of grievances with explicit declaration of loyalty to the British Empire. Mr. Bradlaugh

feels that on this point Lord Dufferin, who tendered hospitality to the Congress of 1886, speaks with more perfect knowledge than himself, but, judging as an outsider, from the official reports and guided by the extremely amicable relations between Lord Dufferin as Viceroy and the Congress of 1886, Mr. Bradlaugh, whilst gladly recognising the justice of Lord Dufferin's judgment that the attitude and suggestions of the Congress just held were reasonable and moderate, can find no ground for supposing that there was any difference in these respects at Allahabad from the former Congresses at Bombay, Calcutta, or Madras.

"Mr. Bradlaugh is in the highest degree grateful to Lord Dufferin for his repudiation and contradiction of the view urged by Mr. Bradlaugh at Newcastle, that Lord Dufferin had described the Congresses as seditious. Mr. Bradlaugh trusts that he may be permitted to point out that in a question put on the notice paper of the House of Commons by Mr. J. M. Maclean, M.P., immediately on the publication in the *Times* of the telegraphic summary of Lord Dufferin's Calcutta speech, Mr. Maclean claimed, under cover of that speech, to describe the Congress as one which 'aims at destroying the security of English Rule in India.' On this point Mr. Bradlaugh, in speaking in the future, will take care that it shall be clearly understood that Lord Dufferin 'has always referred to the Congress in terms of sympathy and respect,' and Mr. Bradlaugh tenders to Lord Dufferin his sincere apology that, misled by the *Times* version and by Mr. Maclean's gloss, he attributed to Lord Dufferin any views hostile to the Congress. With reference to the publications to which Lord Dufferin refers, but which he does not specifically quote, it would ill become Mr. Bradlaugh, without more complete information, to do more than submit that he is unaware of any pamphlets issued by the authority of the Congress 'calculated to excite the hatred of the people against her Majesty's Government in India.' If Lord Dufferin refers to 'the Catechism,' Mr. Bradlaugh observes that the author appeals to the people 'to lay aside their petty jealousies and race antipathies and learn their duties as loyal citizens of the British Empire.'

"Mr. Bradlaugh does not think that, either at Newcastle or elsewhere, he has ever implied that Lord Dufferin was opposed to Indian Civil Service Reform, and he is glad to know that the natives of India may count on Lord Dufferin's powerful help. Mr. Bradlaugh has not yet had the opportunity of fully considering the report, and may possibly underrate its favourable character to the natives. The recommendations to open some 108 offices to natives must be considered with reference to the contention that, under the statutory service rules, at least 150 offices should be so open. Mr. Bradlaugh pleads guilty to a little confusion as to dates, probably the result of insufficient knowledge. Lord Dufferin speaks of the Commission (appointed October 4th, 1886) as 'before the Congress ever put forward any such suggestions.' Mr. Bradlaugh ventures to think that Lord Dufferin has overlooked the resolution on this subject of the Bombay Congress, December, 1885.

"As desired by Lord Dufferin, Mr. Bradlaugh has most carefully read the authorised report of his Lordship's Calcutta speech, and especially thanks Lord Dufferin for the confidential intimation 'that he himself has been doing his very best to forward such a reform of the Provincial Councils in India as Mr. Bradlaugh appears to advocate'; this Mr. Bradlaugh assumes is intended by the parts underlined by Lord Dufferin on p. 18; but it is respectfully submitted that the words on p. 17 might, without Lord Dufferin's kindly confidential assurance, not unreasonably have been held to imply that his Lordship charged the Congress with seeking to effectuate constitutional changes by a stroke of the pen and without deliberation, when, in fact, the very first resolution of

the first Congress asked for enquiry by Royal Commission, and it is for such an enquiry that Mr. Bradlaugh has already placed a notice on the order book of the House of Commons.

"Mr. Bradlaugh is pleased to learn that he has fallen into error in considering that Lord Dufferin's speech was likely to cause embarrassment to Lord Lansdowne, and he entirely accepts Lord Dufferin's assurance that it was intended to produce the opposite effect; but, in justice to himself, he thinks it right to submit that confidential information from India leads him to the belief that same embarrassment has actually already arisen.

"Mr. Bradlaugh fears that, although he has left many points untouched, he will already have exhausted Lord Dufferin's patience, but he trusts that the generous disposition and courteous frankness which prompted Lord Dufferin's letter of the 7th will serve as excuse for any *brusquerie* in Mr. Bradlaugh's present letter."

"5, Upper Berkeley Street, W.
"22nd Feb., 1889.

"My dear Mr. Bradlaugh,—

"I hope you will forgive me for taking the liberty of addressing you in the above direct manner; but I am so sensible of the friendly tone of your letter of the 19th, and so shocked at having given so much trouble to a busy man like yourself, that I presume to slip into the more familiar way of writing.

"With regard to the points you raise in your letter:—one thing has evidently escaped your observation, namely, that my remarks in the main were not addressed specially to the Congress, but to 'some of our friends, who, etc., etc.,' and in this category I embraced all those, whether speakers, writers, or other persons, who (for the sake of briefness) I may denominate the advanced party in India. Again, where I said 'the idea authoritatively suggested as I understand,' I referred to a speech, or rather, I think, a letter of Mr. Hume's. Mr. Hume is the Chief Secretary of the Congress, and certainly speaks with authority, if not in the name of the Congress itself, at all events in that of the Congress party. I also had in my mind the speeches of the two previous Presidents of the Congress, as well as the manifestoes put forth by the Congress Press. The only respect in which I criticised the conduct of the Congress itself was in regard to its official sanction to the distribution of the pamphlets, and I do not think anybody can say that the terms I used were very severe. However, I am most unwilling to give you any further trouble in writing, but I should esteem it a great pleasure if I might be allowed to make your acquaintance, and to have an opportunity of talking over some of these matters with you. I make this suggestion because I believe I could not be doing a greater service both to India and to the public than by placing myself at your disposal in regard to any information you may desire to have about India. I shall be in town till next Thursday, when I return to Rome; but I shall be happy to wait upon you at any day or hour you may name, or to receive you here, if that should be more convenient to you. On Sunday I shall be engaged; but every other day up to the date of my departure I shall be free.

"Believe me, my dear Mr. Bradlaugh,
"Yours sincerely,

"DUFFERIN AND AVA."

"5 Upper Berkeley Street, W.
"Feb. 24, 1889.

"My dear Mr. Bradlaugh,—

"Many thanks for your kind little note of to-day. It will give me the greatest pleasure to receive you here at 1.15 to-morrow, Monday.

"Yours sincerely,

"DUFFERIN AND AVA."

"British Embassy, Rome,
"2nd April, 1889.

"My dear Mr. Bradlaugh,—

"I am very much obliged to you for your kindness in sending me the notice of your motion. There are already indications of the willingness, both of the present Viceroy and of the Government at home, to modify the existing régime in India, and I have no doubt that you will obtain some satisfactory assurances in regard to, at all events a portion of your suggestions. I am strongly of opinion, however, that for the present it would be wiser to apply whatever reforms may be found desirable to the Provincial Councils, and to leave the Governor-General's Council untouched, except so far as allowing the Budget to be discussed, and giving to the members the right of asking questions under certain specified conditions. The Supreme Council of the Governor-General is almost always engaged in the consideration of large Imperial questions, in regard to which it would not be likely to receive any great assistance from the native members who might be added to it; and, even if this were not the case, it would be well to watch how the proposed changes in the Provincial Councils had worked. Moreover, I think our efforts should be applied rather to the decentralisation of our Indian Administration than to its greater unification, and I made considerable efforts in India to promote and expand this principle. In any event, I am sure the discussion which you will have provoked will prove very useful; and I am very glad that the conduct of it should be in the hands of a prudent, wise, and responsible person like yourself, instead of having been laid hold of by some adventurous *franc-tireur*, whose only object might possibly have been to let off a few fireworks for his own glorification.

"Yours sincerely,

"DUFFERIN AND AVA."

APPENDIX III.

A NOTE ON THE MOTION TO EXPUNGE THE RESOLUTIONS OF EXCLUSION FROM THE JOURNALS OF THE HOUSE.

When, with the kind help of his ever-devoted friend, Mr. John M. Robertson, I was writing this record of my father's life and work, there was one matter upon which neither of us felt able to enter very fully. I refer to the carrying of the motion to expunge from the journals of the House the resolution to exclude him passed on the 22nd of June, 1880.

I believe that the time has now come when I may, without unfairness to anyone, and without the slightest violation of confidence, state exactly what took place in regard to the moving of that resolution.

It may be remembered that Mr. Bradlaugh fell ill on January 10th, 1891, and that some five days later he had to take to that bed from which he never rose again. Mr. John M. Robertson was at the time in Edinburgh, on the staff of the *Scottish Leader*, and on the evening of Friday, the 16th, a mutual friend told me that Mr. Robertson had desired to know if Mr. Bradlaugh became worse, and that if he could be of any service he would come to London at a moment's notice. "Send for him now, then," I said, "for my father is dying."

Mr. Robertson came by the night mail on Saturday. He asked what he could do, and I put my difficulty before him. Mr. Bradlaugh had secured the first place on January 27th to move the resolution rescinding the resolution of 1880; he now knew that he would not be able to go to the House on that day, and he was troubling very much about it. He had had small hope of carrying the resolution, but he expected to get a substantial vote, and that would have satisfied him for the present. My ideas of the standing orders and rules of the House were not very definite, and I consulted Mr. Robertson whether we could not get someone to move the resolution in his place. I suggested that if it were thought wise, I would go to Mr. Gladstone—for I knew well that a small man would not do—and urge him to do it. I, at least, could not take an impartial view of the "Bradlaugh incident," and,

rightly or wrongly, thought that Mr. Gladstone owed my father some amends for certain expressions he had used, and also for not having taken a bolder and stronger position from the very first. Mr. Robertson, however, was doubtful about Gladstone; other names were mentioned, and amongst them, that of Dr. Hunter. However, we were still ignorant of whether it would be possible to substitute anyone's name for my father's, and this we had to find out. I then returned to my father's bedside, and mentioning that Mr. Robertson had come on a flying visit to London, asked if he would like to see him for a few minutes. This my father was very pleased to do, and Mr. Robertson went to have a little chat with him. The subject of the resolution soon came up, and my father told Mr. Robertson how deep his vexation was that he would be unable to be in his place in the House, and, in answer to careful inquiries, said no other name could be substituted for his; but it happened that the impression was so general that he would take the whole time of the House that no one had thought it worth while to put his name down for the second place. Mr. Robertson left him without, of course, giving any hint of what was in our minds; it was so likely that we should fail that we did not wish to disturb him about it. If we should succeed that would be ample time to tell him; if we should fail, he would never know.

At the earliest possible moment on Monday morning Mr. Robertson went to see Dr. Hunter, and explained the whole matter to him. But before Mr. Robertson had actually reached the point of asking him to move the resolution, Dr. Hunter offered to do so if the second place was still open. Then I told my father of Dr. Hunter's offer, without, of course, saying anything of our share in inviting it. We had our reward in his delighted surprise. "Hunter will do it, you say?... The very man I would have chosen." I was more than pleased, for I had aimed high in my thoughts, and was doubtful whether Dr. Hunter was big enough! A little later, in thinking it all over, he asked, "You think I can quite rely upon Hunter doing it?" On my answering in the affirmative, he dictated letters to Dr. Hunter and two or three other members of Parliament. When a day or two after it was rumoured that Gladstone was to speak, he was quite pleased, although, as he said, "If Gladstone speaks that settles it; the Government will be bound to take it up; and, of course, they hold the majority; but I shan't mind that."

On the morning of Friday, the 23rd, he was shockingly ill, and waited in restless anxiety until the messenger should bring the "Order Paper." When he found that Dr. Hunter had been able to secure the place for his motion, and that his name was actually down on the Paper for that purpose, he was satisfied, and after dictating a couple of letters he gave himself up to rest.

On Friday night came the hemiplegia and unconsciousness; my father's work was done. Letters came from friends in different parts of the country, telling how they were urging their members to be present in their places on the 27th; letters came from Members themselves, promising their support; but they came to a man who could no longer read them. At last came the morning of January 27th, and with the first post the following letter from Dr. Hunter:—

"2, Brick Court, Temple,
"26/1/91.

"Dear Mrs. Bonner,—Mr. W. H. Smith has sent for me and speaking in the kindest manner of your father and of his appreciation of his valuable services in the House of Commons said that it would be extremely painful to him to discuss the motion, in the present state of your father's health. He is, therefore, prepared to give a day during the present Session so as to put the motion in as good a position as it is to-morrow, if I do not proceed to-morrow. I stated that, subject to Mr. Bradlaugh's own opinion, I considered it a fair offer, and personally would have no hesitation in leaving the motion to be taken up at a more convenient time by your father himself. You will exercise, of course, your discretion in consulting him on the subject, and I stated to the First Lord that I should let him know before business begins to-morrow what course I should follow. If you approve, or your father is well enough to enter upon the question and approves, kindly send me a telegram to 2, Brick Court, Temple, to-morrow morning.

"I am, yours very truly,
"W. A. HUNTER."

I was in despair. Here was my father lying absolutely unconscious and dying. I knew that if that resolution was not moved that day it never would be moved. I had assured him positively that Dr. Hunter would do it; he had trusted me, and now I felt like a traitor. I sat down and wrote to Dr. Hunter, telling him that it was impossible for me to consult my father, since he was lying unconscious, that he had sunk into unconsciousness believing that this resolution would be moved, and, when he recovered, how was I to tell him that he had been deceived? I thanked Mr. Smith for his kindness, but I was firmly of opinion that the resolution should be moved whether it were carried or not; it was due to the treatment he had received from the Members of the House that Mr. Bradlaugh lay where he was, and they owed

it to him to at least consider a resolution which should wipe out from the records of the House the resolution expelling him. I hardly knew what I wrote; I was so agitated. I hardly know now, except that it was to the effect as I have written, and through all my agitation I preserved two dominant ideas: first, to say all I could to induce Dr. Hunter to move the resolution; and, next, while picturing the very serious condition in which my father lay, not to let it be known that he was then actually dying.

The letter was despatched by special messenger, but after it was gone I felt I had not said half enough. My husband then went to find Dr. Hunter, and see him personally, but was unable to see him until about mid-day at the House. Dr. Hunter then said he had shown my letter to several members; they agreed, in consequence, that the resolution ought to be moved; and that he had decided to do so. Some of the members thought that the letter ought to be read to the House, but in any case he wished to know if I had any objection to its being shown to Mr. Smith. Dr. Hunter then saw Mr. Smith, who not only withdrew all opposition to the moving of the resolution, but also agreed to withdraw the Government opposition to the resolution itself. This decision was arrived at so late that it was (so it was said) unknown to the Solicitor-General when he got up to oppose the resolution.

When the telegrams of congratulation—the first, if I recollect rightly, was from Sir John Mowbray—began to pour in, and he to whom they were addressed lay there unconscious of all, the tragedy of it seemed almost more than one could bear.

On the same evening Dr. Hunter considerably wrote me this further letter, acquainting me with what had taken place:—

"National Liberal Club,
"Whitehall Place, S.W.,
"27/1/91.

"Dear Mrs. Bonner,—I cannot say how glad I am that the House has unanimously accepted your father's Resolution. I trust that he will have improved sufficiently to be made acquainted with the news.

"After seeing your husband I had no scruple in showing your letter to Mr. Smith, and, without assuming any violent assumption, I think it had something to do with the result. On taking his place this afternoon, he nodded to me significantly, as much as to say he recognised the necessity of my proceeding with the Resolution. The soundness of your opinion has been shown by the result.

"Many members spoke to me, all expressing their deepest sympathy, and on both sides there was a general feeling of relief that an agreement was come to.

"The reports in the papers will, when you have time, fully inform you of the course of the debate; but I may add that Mr. Gladstone was extremely gratified, on many grounds, and turning round offered me his warmest congratulations.

"There is but one universal feeling among members of all sections of opinion—an earnest desire and hope that your father may be spared to continue his services to the State.

"Yours very truly,
"W. A. HUNTER."

Those who have followed the story of my father's life will be interested in learning how narrowly this resolution failed to be moved and carried. That it turned out as it did was owing, in the first place, to Mr. Robertson, who found the man to move it, in the next, to Dr. Hunter who carried it through, and, finally, to the real goodness of heart of Mr. W. H. Smith.

HYPATIA BRADLAUGH BONNER.

April, 1906.

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FOOTNOTES:

[1] In reference to Mr Bradlaugh's voyage in the *Parthia* I append an extract from the *New York Herald* for 7th September 1881, which purports to be an account of an interview between the reporter of that journal and Mr J. Walter, M.P., of the *Times*:—

"THE BRADLAUGH INCIDENT.

"Don't you think Bradlaugh was harshly treated?' 'Oh dear, no,' was Mr. Walter's eager response. 'That's all nonsense about his having crysipelas, and having been so brutally treated. He's a perfect ruffian. A fellow-passenger on the *Bothnia* told me of Bradlaugh and some of his comrades violently disturbing some religious services held on board the *Parthia*, so that Captain Watson was compelled to threaten him with putting him in irons before he would stop.'"

My father, of course, wrote to the *New York Herald* and to Mr Walter, contradicting this, saying that the statement was "monstrously untrue." He made only the one voyage on the *Parthia*; he said: "No attempt of any kind was made by any one to disturb religious services during that voyage. There was a disagreement between Captain Watson and the passengers as to the singing after dinner in the smoking-room, but it had not the smallest connection with religious services. The particulars were given in a letter signed by the passengers, and which was published at the time in several of the American papers. I never sang in my life, and was most certainly not even one of the singers."

[2] *Chicago Tribune*.

[3] He spoke in M'Cormick's Hall to an audience of 3600 persons, of whom 3500 had paid for admission; the hall had never been so full before, and the audience was as enthusiastic as it was large.

[4] "My mind being free from any doubts on these bewildering matters of speculation," he said, "I have experienced for twenty years the most perfect mental repose; and now I find that the near approach of death, the 'grim King of Terrors,' gives me not the slightest alarm. I have suffered, and am suffering, most intensely both by night and day; but this has not produced the least symptom of change of opinion. No amount of bodily torture can alter a mental conviction."

[5] See page 322.

[6] See p. 320.

[7] The late Mr Grote, however, thought sufficiently of this pamphlet to preserve it in his own library. He, moreover, presented a copy to the library of the London University, where it was at the time of this prosecution.

[8] One of the reasons given for withdrawing Mabel Besant from her mother's charge was that while with her she was liable to come in contact with Charles Bradlaugh.

[9] From the time when Mr Holyoake refused to continue to publish "The Bible: what it is," there were several instances of a want of friendliness on his part towards Mr Bradlaugh, and sometimes—as at this trial and in the Parliamentary struggle—these occurred at a most critical moment in my father's career. Mr

Bradlaugh, of course, generally retaliated; but when his first vexation and anger had passed, he always showed himself willing to forget and forgive. One of the very first things he did on his return from America in 1875 was to join in an effort to buy an annuity for Mr Holyoake, who had been so prostrated by illness that at that time it was thought that he would not be capable of continuous work again. Notwithstanding old differences, some of which had been extremely and bitterly personal, my father joined in the appeal with the utmost heartiness, and expressed his vexation that the readers of the *National Reformer* had not been permitted to be amongst the earliest subscribers to the fund.

[10] Mr Arthur Walter, son of the principal proprietor of the *Times*, was on the jury.

[11] *Eastern Post*.

[12] June and July 1875.

[13] April 23rd, 1876.

[14] *Liverpool Post*.

[15] "At the Bar he would be a bully, in the pulpit a passing sensation, on the stage a passion-tearing Othello, in the Press a competent American editor, in Parliament a failure."

[16] From the *Darlington and Stockton Times*.

[17] "Has, or is, Man a Soul?" Two nights' debate with Rev. W. M. Westerby.

[18] "Has Man a Soul?" Theological Essays by C. Bradlaugh, vol. i.

[19] Although the lecture was purely political, the subject being "National Taxation," the *Oxford Times* attempted to justify this rowdyism by saying, "A man who identifies himself with a creed which denies the doctrine of reward and punishment in the future life cannot reasonably expect toleration here."

[20] Dr Nichols had an amusing article on this meeting in the *Living Age*. "The juvenile sawbones," he said, "climbed upon the platform and moved their amendments with admirable audacity. They had not much to say, and they did not know how to say what they had thought of saying; but they mounted the breach bravely enough for all that. And the Malthusian majority behaved very well—much better than English audiences usually do when there is opposition. In the sudden charge that swept the forlorn hope out of the fortress, it looked for a few moments as if there might be a case for the coroner, but Mr Bradlaugh's disciples were mindful of his teachings."

[21] This was done by the *Eastern Post*.

[22] The *Pall Mall Gazette*. Mr Austin Holyoake wrote a short letter contradicting this report, and giving the simple facts of the case, but his letter was not inserted.

[23] *Daily News*.

[24] *City Press*.

[25] As late as January 1884, however, Mr Bradlaugh noted a case reported in several newspapers of a private in the Hampshire Regiment, who cried, "God strike me blind!" and who thereupon "felt drowsy, and stretched himself on his

bed, but when he attempted to open his eyes, he found he could not do so, and he has since been wholly deprived of the use of his eyes. He was conveyed to the Haslar Military Hospital, where he remains." As this was tolerably definite, inquiries were made at the Hospital. In answer to these, the principal wrote: "There is no truth whatever in the statement, and the lad who is supposed to have sworn never swore at all. He has a weak right eye; it was slightly inflamed—the result of a cold—but he is now quite well. He is very indignant and hurt at the statement, and, if he did swear, he is not blind."

[26] Mr Bradlaugh was neither the projector nor the advocate of the Good Friday promenade.

[27] Kneeland died in 1844. The tale was repeatedly contradicted.

[28] Emma Martin died in 1857. In her case also it was contradicted.

[29] *National Reformer*, June 6th, 1880.

[30] *Deal and Sandwich Mercury*, Sept. 26.

[31] *Crewe Guardian*.

[32] *Northern Ensign*, May 17.

[33] This person was still telling this story in December 1883.

[34] The editor of the *Huddersfield Examiner*, commenting on the evidence, said: "We do not believe it, as we do not think Mr Bradlaugh such a fool as to make such a silly exhibition of himself; and because we know that similar things have been affirmed of him in Huddersfield. For instance, a person called at our office last week, stating that he had heard Mr Bradlaugh utter such a challenge, and saw him pull out his watch in the manner stated in the course of the debate with the Rev. Mr M'Cann in Huddersfield. To our certain knowledge no such occurrence ever took place, and yet the man making the statement appeared to be fully convinced that he had heard and seen what he described as having taken place, and he was prepared to give evidence on the subject if called upon to do so.... Imagination and feeling play a much larger part than reason in the mental operations of not a few well-meaning persons and allowance must be made for this when we hear such charges as that now made against Mr Bradlaugh. Strong dislike is felt by many against both the man and his opinions on religious subjects, and this exposes him to misrepresentation and injustice."

[35] At Selhurst, in June 1885.

[36] "National Life and Character," by C. H. Pearson.

[37] *Stroud News*, May 28.

[38] Mrs Bradlaugh died in April 1871.

[39] Tried 25th April 1876 at Nisi Prius, before Mr Justice Field and a special jury.

[40] *Belfast Times*, April 8, 1872.

[41] *Saturday Review*, September 14, 1872.

[42] At his death in 1879 Mr William Thomson of Montrose left £1000 to Mr Bradlaugh as President of the National Secular Society, which sum he was at liberty to invest in the Freethought Publishing Company, on condition that he

paid the Society £5 a month while it lasted. This he did regularly from 1879 until February 1890, when the Society generously released him from the remainder.

[43] See Speeches by Charles Bradlaugh.

[44] In the case against Foote and Ramsey the jury disagreed. The prosecution then entered a *nolle prosequi*.

[45] Mr Bradlaugh applied for a summons against Inspector Denning, but this application was refused.

[46] These proceedings—except the libel case, which has been already noticed—will be found fully dealt with by Mr J. M. Robertson in Part II., in his account of Mr Bradlaugh's Parliamentary struggle.

[47] This attack upon Mr Bradlaugh through his daughters, insignificant and inoffensive though we were, was no new idea. In 1877 an attempt was made to introduce female students into the classes of the City of London College. At my father's suggestion my sister and I, who at that time took little interest in the matter, joined Mr Levy's Class on Political Economy. I went up for the examination at the end of the term, and, to my surprise and my father's delight, I took a second-class certificate. But the City of London College were divided upon the subject of the admission of female students, and, after much acrimonious discussion, Mr Armytage Bakewell, a member of the Council, carried his intolerance so far as to turn the dispute upon the admission of my sister and myself. He wrote to the *City Press* that "though the ostensible subject of controversy has been whether females should attend the young men's classes or not, there was well known to be a wider divergence," and that was "best indicated by the fact that Mr Bradlaugh's daughters attended Mr Levy's classes." It is only just to the City of London College to add that the Council, while repudiating any responsibility for Mr Bakewell's conduct, expressed "their regret that any allusion had been made to Mr Bradlaugh's daughters" in the letter alluded to. The City of London College decided against the further admission of women, and within a few days of their decision had to listen to Lord Houghton's congratulations upon their liberality in admitting women when he presented me with my certificate! He had not been informed that the College had just come to the contrary resolution.

[48] March 1883.

[49] May 1883.

[50] 1884. Five years later the National Liberal Club spontaneously elected Mr Bradlaugh, without his knowledge, a member paying his first year's subscription.

[51] Seven persons were allowed to enter with each petition.

[52] *National Reformer*, April 27, 1884.

[53] I have lately heard a touching story of a cabman who drove Mr Bradlaugh several times. He greatly admired my father, but was too shy to speak to him. Every time he took a fare from him he gave it away to some charitable object. He said he could not spend Mr Bradlaugh's money on himself, he felt that "he must do some good with it."

[54] The *Plymouth and Exeter Gazette* (April 1878) reproved Mr Bradlaugh for the glaring inconsistency of his practice with his democratic principles, "by

living in the most aristocratic style."

[55] The *Leeds Daily News* (July 1883) said his income was £12,000 a year.

[56] He was frequently charged with drinking expensive wines, but the hock he had straight from Bensheim at a cost of 1s. 3d. per bottle (including carriage and duty); the burgundy came direct from Beaune, and cost a trifle more.

[57] During the time he was not allowed to take his seat he attended the House constantly, sitting under the gallery in a seat technically outside the House.

[58] One year he calculated that he had written 1200 letters of advice in the twelvemonth—this, of course, in addition to general correspondence.

[59] The following extracts, taken at hazard from New Year's addresses to his friends in the *National Reformer*, will show how grateful he was to them for their help and what support he found in their love and trust:—

"Women and men, I have great need of your strength to make me strong, of your courage to make me brave. I am in a breach where I must fall fighting or go through. I will not turn, but I could not win if I had to fight alone" (1st January 1882).

"1883 has freed me from some troubles and cleared me of some peril, but it leaves me in 1884 a legacy of unfinished fighting. I thank the friends of the dead year, without whose help I, too, must have been nearly as dead as the old year itself.... I have had more kindnesses shown me than my deservings warrant, more love than I have yet earned, and I open the gate of 1884 most hopefully because I know how many hundred kindly hearts there are to cheer me if my uphill road should prove even harder to climb than in the years of yesterday" (6th January 1884).

"The present greeting is first to our old friends; some poor folk who early in 1860 took No. 1 [of the *National Reformer*], and have through good and ill report kept steadily with us through the more than a quarter of a century struggle for existence" (3rd January 1886).

[60] *Bognor Observer*, February 1887.

[61] One at the Shoreditch Town Hall in May 1884, on behalf of the Hackney United Radical Club, realised as much as £40. The hall was packed in every corner, and hundreds were unable to gain admittance.

[62] Mr Bradlaugh asked for it to be closed on 26th September.

[63] This I think has been recognised by most people. In December 1884 the *Weekly Dispatch* spoke of the "great strain" put upon Mr Bradlaugh, "under which a man less vigorous in mind and body would long ere this have broken down."

[64] The doctors would not allow Mr Bradlaugh to remain in his bedroom; one of them told him indignantly—albeit with some exaggeration—that he would have better accommodation in the workhouse!

[65] Wednesday, 10th December. This was the last lecture Mr Bradlaugh ever delivered. The subject was "The Evidence for the Gospels," in criticism of Dr Watkin's Bampton lectures.

[66] A person writing in the *Swansea Journal* for 7th February 1891 said that some time previously Mr Bradlaugh *had told him* of his sufferings from *angina pectoris*. This is utterly untrue; my father never suffered from this complaint, nor until his fatal illness was he ever conscious that he had anything wrong with his heart. In a private letter to a friend written on the 14th—almost the last written with his own hand—he says distinctly, "I have never suffered from heart or lungs before." The mania for invention is extraordinary.

[67] This was exactly in accordance with Mr Bradlaugh's wishes. In a will dated 1884 he said: "I direct that my body shall be buried as cheaply as possible, and that no speeches be permitted at my funeral." His last will, which consisted of a few lines only, contained no directions on this matter.

[68] The library included some 7000 volumes, in addition to about 3000 Blue Books, and a large number of unbound pamphlets. The books were sold by post from the catalogue, and went to all parts of the world. They realised £550 after all expenses were paid, and about 1000 volumes remained unsold.

[69] Through the generosity of "Edna Lyall," I was able to buy these for myself.

[70] This is all that can be pleaded in favour of the deliberate representation of Voltaire as an Atheist by the late Archbishop Thomson, at the Church Congress of 1881. But the ignorance of the upper English clergy in general on such matters is amazing. In January 1881, Archdeacon (then Canon) Farrar, preaching in Westminster Abbey, represented Robespierre's Reign of Terror as a "reign of avowed Atheism;" identified the Deistic cult of the "Supreme Being" with that of the "goddess of Reason;" and accounted for the fall of Robespierre by the statement that, "God *awoke once more*, and with one thunderclap smote the sanhedrim of the insurrection, prostrated the apostate race." This orator once expressed horror at the thought that Disestablishment might enable Bradlaugh to speak in St Paul's. Bradlaugh might have remarked on what the Establishment permitted at Westminster Abbey.

[71] The English translation, in the original issue, is in parts completely perverted to the language of Theism, whether out of fear or of Deistic prejudice on the part of the translator. Even the edition prefaced by Bradlaugh—who did not think of checking the text—preserves the perversions of the first translator.

[72] This fact is entirely ignored by Professor Flint in his defence of the old plea of Foster and Chalmers against Mr Holyoake in "Anti-Theistic Theories," App. ii.

[73] John Mill, after stating that his father held that "concerning the origin of things nothing whatever can be known," remarks that "Dogmatic Atheism he looked upon as absurd; as most of those whom the world has considered Atheists have always done" ("Autobiography," p. 39). It is difficult to guess what is here meant by "dogmatic Atheism;" but certainly no statement made above is more "dogmatic" than the proposition cited from Mill, senior. It clearly involves rejection of all Theism.

[74] One of the most capable metaphysicians I have personally known was an inferior stone-mason.

[75] It was not merely the orthodoxy of past ages that saw virtual Atheism in the position of Spinoza. Jacobi expressly and constantly maintained that Spinozism

and Atheism came to the same thing. A God who is not outside the world, he argued, is as good as no God. At the same time, he admitted that the understanding had no escape from the logical demonstration of the impossibility of a personal God; and that the Theist must throw himself "overhead into the depths of faith." See Pünjer's "History of the Christian Philosophy of Religion," Eng. tr., p. 632.

[76] Pamphlet on "Heresy: its Utility and Morality. A Plea and a Justification," 3rd. ed. p. 35.

[77] It is unnecessary here to put the further argument that if we infer intelligence behind the universe by human analogy, we are bound in consistency to infer organism for the intelligence. Dr Martineau in his "Modern Materialism," takes refuge from this argument in declamation, treating the demand for consistency as if it had been a substantive plea.

[78] See an examination of the positions of Knight, Davidson, and Kaftan, in the *Free Review*, August, 1894.

[79] "Anti-Theistic Theories," 4th ed. p. 517.

[80] *Id.*, pp. 518, 519.

[81] Pamphlet, "Is there a God?" p. 1.

[82] Second reply to Bishop Magee, p. 35.

[83] Mr Spencer (p. 31) represents the "Atheistic theory" as professing to "conceive" an infinite and eternal universe, and thereby to "explain" it, when the very essence of Atheism is to insist (as does Mr Spencer) that infinity is only the negation of conceptions, and that an infinite universe cannot be "explained."

[84] "Naturalist" seems first to have been used in this sense by Holbach.

[85] "What we call the operations of the mind are functions of the brain and the *materials of consciousness* are products of cerebral activity" ("Hume," p. 80). Mr Huxley goes on, "It is hardly necessary to point out that the doctrine just laid down is what is commonly called Materialism."

[86] Section on "The Value of Matter" (*Werth des Stoffs*), Eng. tr., p. 68.

[87] Section on "Motion," *end*.

[88] Section on the "Value of Matter" (*Werth des Stoffs*), *end*.

[89] Section on the "Value of Matter" (*Werth des Stoffs*), *end*.

[90] Section on the "Value of Matter" (*Werth des Stoffs*), *end*.

[91] See his "Critiques and Addresses," p. 306.

[92] A refinement on the old simplicity is reached when we find Mr Huxley sneering at Materialists whose teaching is really more circumspect than his own, and Mr Harrison in turn execrating in the name of "religion" the medical materialism of Mr Huxley, where the latter is simply putting forward as an original speculation a well-established pathological fact.

[93] This is, of course, a widely different doctrine from what is commonly known as Spiritualism: the belief in the perpetuity of human personalities, in a bodily form, without other bodily qualities.

[94] Tyndall answered to this argument that the flash of light from the union of oxygen and hydrogen "is an affair of consciousness, the objective counterpart of which is a vibration. It is a flash only by our interpretation." But that is no answer at all. Tyndall never went into the psychological problem fully.

[95] Debate with Dr M'Cann, p. 17.

[96] Preface to "The Bible: What it is," 1865.

[97] There is some reason to suspect that there has happened in this country what Bibliophile Jacob, in his preface to his addition of Cyrano de Bergerac, declares to have happened on a large scale in France—a zealous destruction of Freethinking works by pious purchasers. But it lies with these to supply the main evidence.

[98] Pamphlet on Heresy, p. 48.

[99] Thus, when in July or August 1882 an open-air Freethought meeting was attacked by riotous Salvationists, Bradlaugh strongly urged avoidance of provocation, and that, "above all, Freethinkers must avoid being drawn into physical conflict with Salvationists" (*National Reformer*, August 13, 1882).

[100] Fisher Unwin.

[101] The matter was dealt with at some length in the *National Reformer* of January 15, 1893.

[102] In October (?) 1882, the Quaker *Friend* testified to the "melancholy" fact that "with, of course, honourable exceptions, the most inveterate opponents of militarism are to be found among secularists and socialists." Soon afterwards Bishop Ellicott regretfully avowed that unbelief had acquired new and dangerous characteristics, in that it "now was very often found co-existent with what they were bound to speak of as a moral and in many cases a philanthropic life."

[103] Address at the National Secular Society's Conference.

[104] Published in 1861. Reprinted 1883.

[105] J. S. Mill's Autobiography, pp. 107, 167. A still more striking illustration of the way in which one rationalist may "steal the horse" while another may not "look over the hedge," is the following passage in Mill's book:—"On these grounds I was not only as ardent as ever for democratic institutions, but earnestly hoped that Owenite, St. Simonian, and all other anti-property doctrines might spread widely among the poorer classes; *not that I thought these doctrines true*, or desired that they should be acted on, but in order that the higher classes *might be made to see that they had far more to fear* from the poor when uneducated than when educated."

[106] His comment on Mr Gladstone's reply to Colonel Ingersoll is, however, a model of respectful exposure of a very bad case.

[107] "Five Dead Men whom I knew," p. 6.

[108] Of Henry Loader, a professed Christian.

[109] He was fined £40, while two brothel-keepers were fined only £5 each in the same week.

[110] Pamphlet on "The Land, the People, and the Coming Struggle," fourth ed., p. 8.

[111] This stipulation was often ignored, and he was accused of wanting to parcel out Hyde Park in allotments.

[112] For the details of the case in favour of compulsory cultivation of land, see Bradlaugh's pamphlet on the subject, published 1887.

[113] It has lately been advanced by a "Unionist" politician, Mr T. W. Russell, in the *New Review*.

[114] November 1881, p. 842.

[115] His longer criticisms of Socialism make a fair volume. They are: (1) Socialism; For and Against: written debate with Mrs Besant, 1887; (2) Will Socialism benefit the English People? debate with Mr Hyndman, 1883; (3) Written debate with Mr Belfort Bax, under same title; (4) "Socialism; its Fallacies and Dangers," article in *North American Review*, January 1887, reprinted as a pamphlet; Pamphlet, "Some objections to Socialism," 1884. See also his articles and debate on the "Eight Hours Question," and his lecture on "Capital and Labour."

[116] I happened to be standing by when, at a Freethought Conference, the late Dr Cæsar de Pæpe, a leading Belgian Socialist and Freethinker, personally and fraternally remonstrated with Bradlaugh on his opposition to Socialism. He vehemently answered that he had found the English Socialists among the most unscrupulous of his enemies, they having not only lied about him freely, but put in his mouth all sorts of things he had never said or thought.

[117] "Parliament and the Poor."

[118] *National Reformer*, Nov. 20, 1888.

[119] Then edited by Mr Frederick Greenwood.

[120] Those were "the days of all-night sittings," forced by the policy of the Nationalists; and Bradlaugh missed voting on the motion for leave to bring in the Coercion Bill, by reason of having gone home to rest after having sat for twenty-six hours out of thirty, the vote being suddenly taken in his absence on the decision of the Speaker.

[121] In the action of *Richards v. Hough and Co.*, however, in May 1882, Mr Justice Grove expressly remarked that some judges did not think it necessary to enquire at all as to the belief of a witness claiming to affirm. In the prosecution of Bradlaugh, Foote, and Ramsay in 1883 for blasphemy, on the other hand, Lord Coleridge, a very considerate judge, expressly asked Mr Foote, before letting him affirm, whether the oath "would be binding on his conscience," though Mr Foote, declaring himself an atheist, rightly objected to such a query. His lordship after discussion agreed to modify the question, making it apply only to the words of invocation; and he put the question with still more modification to Mrs Besant, who, warned by what had been done to her partner, declared in so many words that any promise she made would be binding on her, whatever the form.

[122] Sir Henry James later avowed that they adhered to that opinion all along.

[123] In the discussion on the Burials Bill, 1881.

[124] He wrote in his diary at the time: "It seems strange to require an oath from a Christian, and *to dispense with it from an Atheist*. Would it not be better to do away with the member's oath altogether, and make the affirmation general?" (Mr Lang's "Life of Northcote," ii. 154.)

[125] These were Mr Gorst, Lord Randolph Churchill, and Mr A. J. Balfour. The latter took little oral part in the Bradlaugh struggle, but always voted with his party.

[126] Northcote's diary, so far as published, naturally offers no confession or explanation as to the change in his attitude. Under date May 24, he simply records that "we agreed to stand firm for Wolff's motion" (Mr Lang's "Life," ii. 159).

[127] Macmillan & Co., "The English Citizen" series.

[128] A technical assent to this ambiguous question was, as we have seen, the condition attached to affirmation in the law courts. But common decency usually gave the formula there a purely technical and non-natural force.

[129] Printed in *National Reformer* of 30th May 1889, p. 338, and in several London newspapers.

[130] Some years afterwards he stated in the House that what he had really said was "one Deity or the other," meaning either the Unitarian or the Trinitarian God. The explanation did not seem to be credited.

[131] It is worth noting that Mr Keir Hardie, a professed Christian Socialist, when recently (28th June) protesting against the foolish ceremony of congratulating the Queen on the birth of a great-grandchild in the direct line, went the length of declaring, "I owe no allegiance to any hereditary ruler"—this after he had sworn allegiance to the Queen. Bradlaugh never stultified himself in this fashion.

[132] Report in *Standard* of 11th June 1880.

[133] See the report of the Committee's proceedings, reprinted in his "True Story of my Parliamentary Struggle."

[134] In a case not legally reported, however—that of *ex parte* Lennard vs Woolrych, in the Court of Queen's Bench, in April 1875.

[135] On the other hand, Tory journalists went much further astray in asserting that Bolingbroke believed in future rewards and punishments.

[136] It should be noted that the "kicked-out" idea is a favourite one with the cartoonist. He used it lately in the case of the Irish Evicted Tenants Bill.

[137] The Select Committee persistently examined him to get avowals which he had not made, and had no wish to volunteer.

[138] The *Echo* of 25th May 1880 has the passage: "Say what we like, occupants of the Tory benches are penetrated with deep and undying religious convictions. The very reference to an unbeliever, unless it is in fierce denunciation of him, reddens their faces.... But strange to say, the very men who apparently were so jealous of religious or semi-religious forms last evening will this evening vote that Parliament shall not sit to-morrow because it will be the Derby day. Now if

there be one place on this wide earth which may be denominated a pandemonium it is the Epsom Downs on a Derby day."

[139] See the verbatim report reprinted in the volume of his Speeches.

[140] The reference was to the ever-offensive Sir Henry Tyler, who had made a cowardly allusion to Mrs Besant.

[141] This perhaps understates Beaconsfield's protest. Bradlaugh heard that he condemned the whole proceedings, and called his followers "fools" for their pains.

[142] Again he was surrendering his own convictions to the partisanism of his colleagues. He had been personally willing to support legislation for the settlement of the difficulty, but was overruled as usual by his associates. See Mr Lang's "Life," ii. 172.

[143] A friendly action by Mr Swaagman, for all the remaining penalties that might arise, served to forestall other speculative suits.

[144] Mr Lang, in the page of random jottings in which he "sketches" the Bradlaugh story, makes the misleading statement that he only sat "for a few weeks under statutory liability" ("Life of Northcote," ii. 137).

[145] The same member tried to raise the question on a vote in supply.

[146] "Language fit for a Yahoo," was the description given of Hay's scurrility by the *Scotsman*.

[147] For publishing the "watch" libel.

[148] The *National Reformer* of 16th January 1881 contains, besides Bradlaugh's own protest, articles by two leading contributors strongly condemning the measure and criticising its defenders, including Bright.

[149] See above, p. 201.

[150] Bradlaugh put the technicalities thus to the Lord Chancellor in the Court of Appeal on 27th March:—"There are issues of fact untouched by the demurrer, and there is the first paragraph of the statement of defence, on which I may possibly defeat the plaintiff even should the allowance of the demurrer be maintained."

[151] In the House of Commons on 7th February 1882 Earl Percy asserted that Bradlaugh's friends had fabricated tickets for the meeting. The statement was absolutely false.

[152] April 27, 1881.

[153] May 6, 1881.

[154] Given in a special number of the *National Reformer*.

[155] Formally, Newdegate was bound to pay Bradlaugh's costs if Bradlaugh won, but had the fact of the maintenance never come out, it would have been an easy matter for Clarke to become bankrupt, and leave Bradlaugh no redress, while he himself could be privately reimbursed by Newdegate.

[156] Mr Vaughan had twice previously given decisions against Bradlaugh, and both had been upset on appeal.

[157] The essential unveracity of Northcote's political character is shown by the fact that after thus using the "numbers" argument against Bradlaugh, he himself solemnly denounced the principle. Speaking at Edinburgh in 1884 (see Mr Lang's "Life," ii. 218) he said: "I am afraid that the Government will take far too much to the numerical principle, and if you take to the principle of mere numbers, depend upon it you will be introducing the most dangerous change into the Constitution." Exactly what Bradlaugh had said to him.

[158] In this particular speech he used the phrase "that grand old man" of Gladstone. It was probably he who set the fashion.

[159] Mr Cavendish Bentinck.

[160] Elected for Oxford.

[161] Bradlaugh noted later in his journal that the petition was "alleged to be signed by 10,300 freemen of Northampton." This, he remarked, "cannot possibly be true, as the freemen do not amount to that number." They really numbered about 300! It turned out that thousands of the signatures were those of school-children.

[162] *National Reformer*, April 2, 1882.

[163] A question put to Mr Mundella on 18th June in the House elicited the fact that the Hall of Science classes had been established, and received grants, under the late Tory administration. On this Lord George Hamilton was petty enough to put the blame on his subordinates. Mr Mundella answered that for his part he was responsible for anything done by his subordinates.

[164] Letter of 8th May 1883.

[165] If further samples are needed of the general untruthfulness, they can be given by the dozen. Even men of good standing spoke with a disregard of scruple which put them outside courteous correction. Bradlaugh was driven to characterise Sir Edward Watkin as "an exceedingly and wantonly untruthful person." In November 1882 he represented to his Folkestone constituents that he would not have stood in the way of Bradlaugh either swearing or affirming, but that he resisted when Bradlaugh "distinctly outraged all that they held sacred." This presumably referred to the self-administered oath of 1882. But Sir E. Watkin had voted against Bradlaugh being allowed to swear on 27th April 1881. The Hon. Mr Stansfeld, speaking at Halifax in October 1882, actually represented that the oath was "on the true faith of a Christian;" and repeated the untruth that Bradlaugh had "said that the oath had no binding effect on his conscience." The Rev. Canon Gascoigne Weldon, of Rothesay, asserted in writing that Bradlaugh "boasted publicly that he sought entrance into the House of Commons to insult its members and all its past glorious history, and level it, if possible, with its sister House, to the ground."

[166] Mr Samuel Morley, speaking at Bristol in November 1882, admitted to his constituents that "while Mr Bradlaugh was in the House of Commons, nothing could exceed the propriety of his conduct;" but declared he would oppose his re-entrance because Bradlaugh continued "his system of violent, offensive, and disgusting attacks on the faith which he (Mr Morley) in common with the great bulk of the English people, held." To men like Mr Morley, all rationalist propaganda was "violent, offensive, and disgusting;" but they had no scruples

about violent, offensive, and disgusting attacks on rationalists. Soon afterwards Mr Morley grossly misrepresented Bradlaugh's action, and on being challenged admitted the fact and made a correction. Soon again, however, Mr Morley spoke of Bradlaugh as writing in the *Freethinker*, and on being challenged, made neither admission nor correction. The champions of the oath, generally speaking, exhibited a constitutional incapacity for accuracy.

[167] In the summer of 1882 the total of petitions had mounted to over 100, and the signatures numbered over 250,000.

[168] He sat for Harwich.

[169] A jury had been sworn in, but it was agreed all round that there was no question of fact for them, and they were discharged on the 9th, Lord Coleridge trying the case as one of law.

[170] This had been cited in the Court of Appeal for another purpose.

[171] The introduction as a regular feature of "Comic Bible Sketches," of a kind which Mr Bradlaugh and Mrs Besant were not prepared to defend.

[172] 23rd January 1883.

[173] March 1883.

[174] To do Mr Morley justice, it should be acknowledged that he unsaid his vindication in the same book.

[175] It was printed in the *National Reformer* of 1st April 1883.

[176] Cited in *National Reformer*, 18th February, p. 101.

[177] The hon. members were: Lord Galway, Messrs Foljambe and Nicholson, and Colonel Seely.

[178] A barrister wrote to Bradlaugh enclosing a letter from his daughter, aged fifteen, at school at Frankfort, telling how the English chaplain there called and asked all the English girls at the school to sign a petition against the Affirmation Bill (*National Reformer*, 15th April 1883).

[179] Lucretius, ii. 646-651. It was thought notable that the orator did not allude to the kindred passage in his beloved Homer (*Odyssey*, vi. 41), splendidly rendered by Lucretius (iii. 18-22), and choicely paraphrased by Tennyson in his poem "Lucretius." The best expression in English verse of the idea in the passage quoted by Gladstone is again Tennyson's—the great passage a the close of the "Lotos Eaters."

[180] Bradlaugh later publicly specified Newdegate as having been tipsy, "not for the first time;" and Newdegate, though denying the charge, did not bring an action for libel.

[181] It should be said that Sir Edward Watkin is understood to regret his action.

[182] Mr Jerningham defended himself by asserting that Bradlaugh had written a "Comic History of Christ," which was one lie more. On being corrected, he told another, saying that Bradlaugh admitted having written the Introduction.

[183] The President was Lord Kimberley; the Treasurer Sir Julian Goldsmid; and the Council included Lord Belper, Sir B. N. Ellis, Sir A. Hobhouse, Lord Reay,

and Sir George Young. I cannot ascertain who were present, save that Sir A. Hobhouse was one.

[184] In this case the Government arranged to sue Bradlaugh in the Courts for the penalties that would be incurred if his last oath-taking and voting were pronounced illegal by the Courts. It was accordingly left to Bradlaugh to vacate his seat by his own act.

[185] The harping on the "chivalry" of Northcote by Mr Lang and others is an interesting light on the nature of their ideals. Northcote was certainly more of a gentleman than were his accomplices in the Bradlaugh struggle, but barring his comparative moderation, there was not a gleam of "chivalry" in his whole conduct of the business. As for the mass of his followers, they had, as Sir George Trevelyan has said of the Tories who ostracised Wilkes, "as much chivalry in them as a pack of prairie wolves round a wounded buffalo." Mr Lang ("Life," ii. 136) writes that "an acute and well-informed critic has singled out Sir Stafford Northcote's treatment of the questions raised by Mr Bradlaugh as the best example of Sir Stafford Northcote's tact and adroitness." The "adroitness" need not be disputed. But Mr Lang, on his own part, holds that "it would throw no light on Sir Stafford Northcote's leadership to follow the details of this tedious and protracted struggle." For "light" and "leadership," read "credit" and "character," and the proposition would be quite valid.

[186] I was present at this trial, and took notes for an article.

[187] By August, 655 petitions had been presented, with 77,639 signatures.

[188] This Parliament is alluded to as "of 1885" by Mr Walpole, Mr Lang, and others. It was elected in 1885, but did not assemble till 1886.

[189] Byron's description of a better man.

[190] Described in a previous chapter, p. 182.

[191] See the Blue-Book, "Report London Corporation (Charges of Malversation)," together with the Proceedings of the Committee, Minutes of Evidence, and Appendix, Parliamentary Paper, 161, 1887. A brief account of the matter was written by Bradlaugh for *Our Corner*, July and August 1887, under the title, "How the City Fathers Fight."

[192] Circulated as a pamphlet in immense numbers by the Cobden Club, and reprinted among his speeches.

[193] His head gave a remarkable corroboration to the classification of the old phrenology, now being revindicated by the posthumous work of Mr Mattieu Williams. It had a highly intellectual cast at the brow, but the whole head sloped up to the organ of will, which dominated everything in his skull outline as in his character.

[194] *National Reformer*, February 8, 1891.

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2) ***

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